PART FOUR | A HOUSE DIVIDED AND REBUILT

UNIT 4
A HOUSE DIVIDED AND REBUILT

Chapters 13, 14, and 15 | 1830-1877

Scholarly Article Reader

Selected scholarship from the instructor's JSTOR collection

INCLUDED	221 two-page excerpts from every unique article in the supplied collection.
COVERAGE	All 15 Unit 4 essay prompts across Chapters 13-15.
FORMAT	Exact facsimile pages with original typography, pagination, note calls, and notes.
CITATIONS	Chicago Notes and Bibliography with stable JSTOR links.

Prepared October 20, 2026 from the supplied article PDFs.

Reader's Guide

What this volume is

This is a companion to the Primary Source Reader and the monograph-based Secondary Source Reader. It collects journal-article scholarship as a distinct source type: shorter, focused interventions in historical debates, methods, and evidence.

How selections were made

The reader includes every unique article in the supplied collection, organized by the Unit 4 chapter it most directly supports. Chapter-coded labels make the evidence easy to locate and distinguish from primary-source and monograph-reader numbering.

Facsimile excerpts

Each entry reproduces two continuous pages directly from the supplied PDF. Original page numbers, note calls, notes, emphasis, tables, and spelling remain visible. The first page of each entry identifies the article and source locator; the final page supplies citation forms.

Citing these readings

Use the full footnote citation the first time you cite an article and the shortened form thereafter. Cite the original journal pages shown on the facsimile, not reader page numbers. Create your own footnote numbering. If an article quotes a primary document that you did not consult separately, use a quoted-in note. Include only works you actually use in your bibliography.

Access

Stable JSTOR links identify the supplied articles. Access may require the Bakersfield College library login. The source PDFs remain in the Scholarly Articles folder for reading beyond the excerpt.

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Thomas B. Alexander

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The Civil War as Institutional Fulfillment

By Thomas B. Alexander

American historians perennially encounter hagiography of the Founding Fathers, quadrennially surging to flood stage.[1] Efforts to counteract it sometimes seem like sweeping at the tide, but I suppose we are conditioned to sweep without much discussion of the broom. After being inundated this past season by such pronouncements as "sound philosophy" is "the philosophy of this Republic's founders,"[2] and "The wizard of Monticello would be saddened and shocked by much of contemporary America,"[3] I was momentarily heartened by seeing a feature article entitled "A History Lesson: We Live in a Time Remarkably Similar to the 1850s . . . ." The conclusion, alas, was that "We are not likely to suffer too much. The Founding Fathers designed the Constitution so it would work under weak, as well as under strong, leadership."[4]

A development of the past two years that makes overlooking such statements more difficult is the widespread revulsion at the prospect of a national constitutional convention, revulsion not so much from rejection of the stated objective as from foreboding that such a convention might not be restrained from broader revampings of the

[1] Newspaper editorials and syndicated columns, as usual, have furnished much from which to select examples. There may be some significance to the fact that considerably less worship of the founders appears in national television network news and feature presentations. I wish to express my appreciation for assistance from my colleagues, Noble E. Cunningham, Jr., and William M. Wiecek, for extraordinary secretarial support from Phyllis K. Dussel, and for scrutiny nonpareil from Elise Pritchett Alexander. It is taken for granted, but should be said, that I am deeply indebted to Sanford W. Higginbotham.

[2] Nationally syndicated column of George F. Will, in the Columbia (Mo.) *Daily Tribune,* August 10, 1980.

[3] Nationally syndicated column of Smith Hempstone, *ibid.,* July 13, 1980. The title in this newspaper was "America Still Mankind's Best Hope."

[4] George E. Reedy, Special to *Newsday,* published as a syndicated feature article, *ibid.,* May 20, 1980. Reedy was press secretary for President Lyndon Baines Johnson.

Mr. Alexander is Frederick A. Middlebush Professor of History at the University of Missouri–Columbia. A condensed version of this paper was delivered as the presidential address at the annual meeting of the Southern Historical Association in Atlanta, Georgia, November 13, 1980.

The Journal of Southern History
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Constitution. Patrick Henry in 1787 was no more certain that he "smelt a rat" than are commentators today from every quarter of our political firmament. A noted liberal newspaper warns "that every visionary schemer, radical dreamer and patent medicine salesman in America would show up at the convention, turning it into a constitutional Tower of Babel."[5] A New York *Times* correspondent borrows famous rhetoric: "A specter is haunting Congress . . . the specter of a constitutional convention."[6] A former executive secretary of the Council of Economic Advisers warns that "any nationwide convention called today might be dominated by pros running a huge national con game with a stacked deck of cards."[7] And a distinguished professor of law at Stanford entitles a published address "Constitutional Brinksmanship: Stumbling Toward a Convention."[8] Not all of this dismay reflects unwillingness to consider fundamental change, but reinforcement of such unwillingness is the net effect, an effect I find disturbing. I am among I can only guess how many millions who agree with Douglas Dillon, quoted approvingly by James Reston, that "What we are suffering from today is . . . . the beginnings of a crisis in the operation of our basic system of government." And "until we are prepared to examine the basic structure . . . ," Dillon predicts, "our problems will remain with us and, in all probability, increase in severity."[9] My belief is that the history of that basic system's functioning is relevant to such an examination, and my purpose this evening is to undertake a very limited and modest consideration of the portion of our institutional performance most familiar to me, that related to the coming of the Civil War.

I think that an overview reference to the war in a distinguished and currently popular textbook is typical. "One must discover how democratic institutions and practices expanded during the nineteenth century and received their crucial testing in the American Civil War." Note that democratic institutions actively expanded but passively received their testing in the Civil War, as though in some natural cataclysm. The nation's heedless course into the mael-

[5] Editorial entitled "An Unnecessary Risk" in the St. Louis *Post-Dispatch,* February 22, 1980, which included a warning that such a convention could even propose to repeal the Bill of Rights.

[6] Quoted by Bertram M. Gross in "The Con-Con Con: Unbalancing the Constitution," *Nation,* CCVIII (April 28, 1979), 449.

[7] Gross, *ibid.,* 465. Gross was distinguished professor at Hunter College.

[8] *Vital Speeches of the Day,* XLV (June 1, 1979), 506–509. An address by Gerald Gunther before the Commonwealth Club of California, Los Angeles, May 4, 1979.

[9] Nationally syndicated column of James Reston, in the St. Louis *Post-Dispatch,* December 27, 1979.

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.2 - Secession and Slavery as a Positive Good: The Impact of the Anthony Burns Drama in Boston on Virginia

Gordon S. Barker

ARTICLE	Secession and Slavery as a Positive Good: The Impact of the Anthony Burns Drama in Boston on Virginia
JOURNAL	The Virginia Magazine of History and Biography 118, no. 2 (2010)
EXCERPT	Original journal pages 137-138
JSTOR	https://www.jstor.org/stable/20788070

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GORDON S. BARKER

Secession and Slavery as a Positive Good

The Impact of the Anthony Burns Drama in Boston on Virginia

On 2 June 1854, only hours after Slave Commissioner Edward Greely Loring certified Col. Charles Suttle's ownership claim to Anthony Burns and declared that he could be returned to slavery in Virginia, Burns emerged from the Boston courthouse under heavy guard. With state militia and United States troops lining the route that the Burns procession would follow to Boston's T-Wharf and U.S. Marines patrolling the waterfront, some fifty thousand spectators caught their last glimpse of Virginia's now famous fugitive slave. The armed guard, protected from the rear by a cannon manned by members of the U.S. artillery from Fort Independence, escorted Burns to the *John Taylor*, waiting in the harbor to take him to the revenue cutter *Morris*, which would carry him on to Norfolk, Virginia. It was a grand spectacle and an unprecedented show of antebellum America's military force in a time of peace, but President Franklin Pierce and his officials in Boston wanted to make sure that there would not be another rescue attempt by abolitionists. A week earlier, after the Boston Vigilance Committee's Faneuil Hall rally in support of Burns, a group of antislavery militants led by the Rev. Thomas Wentworth Higginson and the black abolitionist Lewis Hayden battered down a courthouse door in an attempt to rescue Burns. A handful of armed guards repulsed the attack and sounded an alarm; police converged on the scene and made a number of arrests. During the incident, a guard named James Batchelder was killed.

From Norfolk, Burns was taken to Richmond and placed in Robert Lumpkin's infamous slave jail, ending his quest for freedom that began four

Gordon S. Barker is an assistant professor of history at Bishop's University in Canada.

VIRGINIA MAGAZINE OF HISTORY AND BIOGRAPHY VOL. 118 • NO. 2

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months earlier when he stowed away on a ship leaving Richmond for Boston. In the fall, Suttle sold Burns at auction to David McDaniel, a North Carolina slave-trader known for reaping huge profits from selling slaves to the Deep South.

Returning to bondage, Burns could take little consolation in the fact that his plight concerned thousands, perhaps even millions, of antebellum Americans who wanted to confront the question of slavery in one way or another. He could never have imagined that generations of scholars would later regard his extraordinary rendition as a watershed that ignited a "pocket revolution" in Emerson's Boston and precipitated an antislavery groundswell that helped to set the stage for the Civil War and the abolition of slavery.[1] Burns also probably took little solace from the fact that his fate had especially touched African Americans throughout the North, strengthened their resistance against the Fugitive Slave Law of 1850, and encouraged them to adopt more determined action against a hateful institution that enslaved their brethren and degraded them.

But if the Anthony Burns drama aroused and united blacks throughout the North, it also served as a call to action for many slaveholding Virginians and other southern whites. Undoubtedly President Pierce thought that decisive action in support of the Fugitive Slave Law, particularly the commitment of United States troops and financial resources to return Burns to his master, would set white southerners at ease and make them feel secure in the Union.[2] He probably remembered that a few years earlier during the debates surrounding the Compromise of 1850 many southerners had embraced the resolutions that became known as the Georgia Platform, which declared that the Union could only be preserved by "a faithful execution of the *Fugitive Slave Law*."[3] John Reuben Thompson, the renowned editor of the *Southern Literary Messenger*, supported this position and argued that it was consistent with that taken by the Founding Fathers in Philadelphia in 1787. "No man of sound mind can read the Debates of the Convention that framed the Constitution," wrote Thompson, "and not be convinced that without the clause for the rendition of fugitive slaves, no compact could have been formed between our ancestors." In light of this, he said, "[S]urely when that compact is set at naught—when we can no longer safely repose under its over-arching canopy—when bad, base men, with the lie upon their lips,

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.3 - The Influence of Slavery in the Colonization of Texas

Eugene C. Barker

ARTICLE	The Influence of Slavery in the Colonization of Texas
JOURNAL	The Mississippi Valley Historical Review 11, no. 1 (1924)
EXCERPT	Original journal pages 3-4
JSTOR	https://www.jstor.org/stable/1891925

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THE MISSISSIPPI VALLEY HISTORICAL REVIEW

VOL. XI, NO. 1 JUNE, 1924

THE INFLUENCE OF SLAVERY IN THE COLONIZATION OF TEXAS

Benjamin Lundy published in 1836, at the close of the Texas revolution, a pamphlet entitled: *The war in Texas; a review of facts and circumstances, showing that this contest is the result of a long premeditated crusade against the government set on foot by slaveholders, land speculators, etc., with the view of re-establishing, extending and perpetuating the system of slavery and the slave trade in the Republic of Mexico.*[1] Expanding this thesis, he declared: "It is susceptible of the clearest demonstration that the immediate cause and the leading object of this contest originated in a settled design among the slaveholders of this country (with landspeculators and slavetraders) to wrest the large and valuable territory of Texas from the Mexican Republic in order to re-establish the System of Slavery, to open a vast and profitable Slave Market therein, and, ultimately to annex it to the United States."

Lundy states thus what came to be the "authorized version" of the motives behind the settlement, revolt, and annexation of Texas. He furnished material for John Quincy Adams' stinging speeches against the slave power and drew authority from them, in turn, to ballast his own productions; and historians for half a century rested complacently on both, with no uncomfortable pricking of the inquisitive, critical instinct which they applied to the analysis of other sources and other subjects.

The very plausibility of the argument disarmed skepticism: (1) When the echoes of the battle for the admission of Mis-

[1] "Printed for the author, by Merrihew and Gunn, No. 7 Carters' Alley" (Philadelphia, 1836). Lundy wrote under the pseudonym, "A Citizen of the United States."

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souri had subsided, southern statesmen found themselves possessed of eighty-two votes in the house of representatives against a hundred and five from the free states, and with only the narrow point of the sprawling V-shaped Louisiana purchase from which to recruit new slave states to maintain the indispensable balance in the senate. But north and west of Missouri stretched the vast open mouth of the V, inviting the indefinite multiplication of free states. The next year saw the beginning of the Anglo-American movement to Texas. For the most part, emigrants went directly from the slave states. A fair proportion owned slaves, whom they took with them. The purpose was obvious, was it not, to fasten the hold of slavery on the province and trust to future machinations to bring it into the United States? Individuals need not be, and perhaps were not, conscious of this; but they were active instruments, none the less, it was implied, of the malignant, farseeing slavocracy. (2) The emigrants evaded every attempt of Mexico to exclude slavery from Texas and, when strong enough to dare, it was said, once convinced that the government would not sell the province to the United States, they declared its independence. (3) The revolutionary constitution of the new republic guaranteed slavery and permitted importation of slaves from the United States — which proved, did it not, that that had been the object of the revolution? (4) The Texans drew their strength for the war with Mexico from the United States — from slaveholders in the south and land speculators in the north, it was alleged — and President Jackson, a slave owner himself and the tool of slavocrats, it was charged, winked at violations of neutrality and even permitted a military occupation of Mexico territory in order to intimidate the Mexican army and prevent the complete overthrow of the rebels. (5) At their first general election, in which recent volunteers from the United States enjoyed the franchise, the Texans voted almost unanimously for annexation. (6) We recognized their independence with indecent haste; and, finally, after a period of hypocritical hesitation, annexed them.

These were the essential links in the chain of circumstantial evidence, compounded of fact, assumption, and false implica-

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.4 - Texas as Viewed from Mexico, 1820-1834

Nettie Lee Benson

ARTICLE	Texas as Viewed from Mexico, 1820-1834
JOURNAL	The Southwestern Historical Quarterly 90, no. 3 (1987)
EXCERPT	Original journal pages 219-220
JSTOR	https://www.jstor.org/stable/30239965

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Texas as Viewed from Mexico, 1820–1834

Nettie Lee Benson*

Texas in 1820 was hardly in the thought of any Mexicans other than those few thousand living there, still under the domination of their Spanish ruler. Texas was temporarily at peace again. The long-debated subject of the boundary with the United States of America had been concluded finally with the Adams-Onís Treaty of February 22, 1819; and the most recent invasion of Americans, led by General James Long, had been repelled by the Spanish forces prior to 1820. The Spanish commandant general, Joaquín de Arredondo, had Texas under control during 1820 and the first half of 1821. He reported semimonthly to Mexico City that all was tranquil in the area under his command, and no other noteworthy comment appeared in the Mexico City newspapers in relation to Texas.[1] It is possible that Texas was in the minds of those young Mexicans who feared being drafted into the army to be sent to the Texas frontier to withstand the American aggressors, especially those Mexicans living in the neighboring provinces of Coahuila, Nuevo León, and Nuevo Santander, where this drafting process had occurred so frequently in the previous years of that century, and for the return home of whose soldiers parents and wives were constantly importuning the Spanish government.

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* Nettie Lee Benson is professor of history at the Univesity of Texas, Austin. Her research has focused on Mexican history in the early nineteenth century. Dr. Benson has been involved extensively with Latin American librarianship, academic publishing, and professional organizations. The Casa de Cultura Americana awarded her the Premio America in 1974, and the Mexican government conferred on her the Order of the Aztec Eagle in 1979. In 1975, the Latin American Collection at the University of Texas, Austin, was renamed for her, in recognition of the role she played, over a period of thirty-three years as director, in developing the Collection as one of the foremost libraries of its kind in the world.

[1] *Gaceta del gobierno de México* (Mexico City), Jan.-Dec., 1820. No other comment relating to Texas was found in the *Gaceta*, or in the Mexico City weekly *Semanario político y literario de México*, July, 1820–Jan. 30, 1822, or in the tri-weekly *Noticioso general* (Mexico City), Jan.–Dec., 1820.

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The preceding paragraph clearly indicates the general view of Texas by Mexico (and Spain) until Mexican independence was realized in September, 1821. Throughout the period 1820–1834 internal and external events relating to the maintenance of the territorial integrity of the nation continued to condition the view of Texas and its population. Maintenance of territorial integrity through population (or colonization) was a constant factor drawing attention to Texas, which during this entire period was considered the proving ground for its successful realization for all of its frontiers.

Not until March 1, 1821, did Texas receive attention in Mexico or Spain. On that date the Spanish minister for overseas affairs, in his report to the Spanish Cortes, stated that the distribution of land in America was of the greatest importance both politically and economically and that the king expected the most marvelous results in both aspects. "The populating of Texas," the minister said, "required the most urgent circumspection as well as the greatest prudence in the matter of the distribution of the land of that immense territory."[2]

The Committee on Overseas Affairs of the Cortes, chaired by the Mexican deputy José Miguel Ramos Arizpe, representing the Eastern Interior Provinces, which included Texas, and with another Mexican, Francisco Fagoaga, serving on it, began at once to draw up a Project for the Colonization of the Americas, which was read to the Cortes on June 6, 1821, and debated in that body between June 16 and 26.[3] Twelve Mexican deputies participated actively in the debates, whereas only five peninsular deputies raised any questions in regard to the thirty-one articles. This activity in the Spanish Cortes reveals the thinking of those Mexicans in regard to Texas.

In the debate on proposed article 8, providing that land granted for settlement had to be vacant land not belonging to any particular person, Deputy Juan Bautista Valdés, representing the provinces of Nuevo León, Coahuila, and Texas, urged the greatest circumspection in the admission of all classes of foreigners, because the Spanish monarchy ran the "great risk of dismemberment of that part of America in which Texas" was located. He argued that Texas, "being the most fertile and the richest of all the land immediately adjacent to the United States, had always excited [that country's] envy and that this measure would afford [the U.S.] the easiest and most advantageous method to obtain

[2] "Memoria leído a las Cortes por el secretario de la gobernación de ultramar," *Diario de las sesiones de las Cortes: legislatura de 1821* (3 vols.; Madrid, 1872), I, 125–126. Translations are by the author unless otherwise noted.

[3] "Proyecto de decreto sobre el fomento y aumento de población y repartimiento de terrenos en la España ultramarina," *Diario de . . . las Cortes,* III, 2,082–2,083.

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.5 - Mexican Opinion and the Texas Revolution

Gene Brack

ARTICLE	Mexican Opinion and the Texas Revolution
JOURNAL	The Southwestern Historical Quarterly 72, no. 2 (1968)
EXCERPT	Original journal pages 170-171
JSTOR	https://www.jstor.org/stable/30238012

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Mexican Opinion and the Texas Revolution

GENE BRACK*

MEXICO EXPERIENCED A TRAGEDY OF STUNNING PROPORTIONS IN 1836, only fifteen years after her independence. Not only a battle and a province were lost at San Jacinto, but also honor, pride, and confidence. So traumatic was the defeat that for years Mexicans refused to recognize its conclusiveness.[1]

Texas had become enormously important to Mexico, partly as a valuable province, perhaps still more as a proving ground where American expansion had to be checked. Failure in Texas left Mexico with a deep sense of incapacity. From the depths of her disappointment and frustration she assigned the cause of the catastrophe to the ambition, arrogance, and duplicity of the United States. Thus, perhaps more than any other single issue, Texas contributed to the shaping of the Mexican attitude toward her northern neighbor.

Prior to 1836, informed Mexicans tended to view the United States ambivalently. They admired its institutions, the strength of its economy, the stability of its government, the energy and initiative of its people. Many Mexicans believed their country might profit by emulating American methods in dealing with the problems of nationhood. But at the same time, Mexicans looked with apprehension at their northern neighbor as it advanced ever more rapidly toward the territory of Mexico.[2]

Initial diplomatic relations between the two countries contributed

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*Mr. Brack is assistant professor of history, New Mexico State University, Las Cruces. A slightly different version of this paper was given at the annual meeting of the Association, May 17, 1968.

[1]Mexico's futile efforts to reconquer Texas are described at length in Joseph Milton Nance, *After San Jacinto: The Texas-Mexican Frontier, 1836-1841* (Austin, 1963), and *Attack and Counterattack The Texas-Mexican Frontier, 1842* (Austin, 1964). There are numerous well-known studies of the diplomatic and political aspects of the revolt. Among them are George Lockhart Rives, *The United States and Mexico, 1821-1848* (2 vols.; New York, 1913); Eugene C. Barker, *The Life of Stephen F. Austin* (Dallas, 1925); William C. Binkley, *The Texas Revolution* (Baton Rouge, 1952); and Hubert Howe Bancroft, *History of the North Mexican States and Texas* (2 vols.; San Francisco, 1884-1889). For the Mexican point of view see Carlos Bosch García, *Historia de las relaciones entre México y los Estados Unidos, 1819-1848* (Mexico, 1961), and Carlos E. Castañeda (ed. and trans.), *The Mexican Side of the Texas Revolution* (Dallas, 1928).

[2]Gene M. Brack, "Imperious Neighbor: The Mexican View of the United States, 1821-1846" (Ph.D. dissertation, University of Texas, Austin, 1967), 1-26.

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to Mexican suspicions. From Washington, Mexican representatives reported that Americans had little regard for Mexicans, that the two nations were probably destined to become enemies, and, most ominously, that Americans had designs upon Mexican soil.[3] The first American minister to Mexico, Joel R. Poinsett, by blatantly interfering in Mexican politics, deepened Mexican hostility and mistrust.[4]

But by the early 1830's it was American pressure upon Texas that captured the attention of Mexicans. Before that time there had been very little contact between the citizens of the United States and of Mexico. To most Mexicans the Americans remained a strange, alien people, seen in dim focus from a great distance; the Mexican view had not yet been sharpened by the personal experiences and the first-hand knowledge requisite to understanding. The day was soon to arrive, however, when, in the distant province of Texas, the acquaintance would become more intimate.

It was during Poinsett's mission that Mexicans began to take an active interest in Texas. Americans had been migrating to the province since 1822, of course, and it was widely feared that the United States coveted it, but little attention was given to the matter until about 1827, when a combination of events caused Mexico to turn with some alarm to the subject of Texas.

One of Poinsett's objectives in Mexico was to obtain a treaty of limits. In preparing for the negotiations the Mexican government conducted a systematic search of its archives for all documents relating to the boundary between Mexico and the United States. It consulted the papers of Luis de Onís, the Spanish diplomat who in 1819 had negotiated the treaty that established the western boundary of the United States. Onís was deeply hostile to the United States and warned of its territorial ambitions, and in their own correspondence Mexican negotiators revealed a decided mistrust of American motives.[5]

To prepare themselves for the pending negotiations, the Mexicans established a commission to survey the unmarked boundary of 1819.

[3]Joseph C. McElhannon, "Imperial Mexico and the United States," in Thomas E. Cotner and Carlos E. Castañeda (eds.), *Essays in Mexican History* (Austin, 1958), 138.

[4]J. Fred Rippy, *Joel R. Poinsett, Versatile American* (Durham, 1935), 104-133.

[5]Request for correspondence, March 29, 1826, Archivo General de la Nacion, Mexico, Relaciones Exteriores (AGNM transcript 554; University of Texas Archives, Austin), 99. The entire volume of transcripts concerns preparations for the boundary negotiations. Archivo General de la Nacion, Mexico, is hereafter cited as AGNM; all transcripts cited below are in the University of Texas Archives, Austin.

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.6 - Mexican Opinion, American Racism, and the War of 1846

Gene M. Brack

ARTICLE	Mexican Opinion, American Racism, and the War of 1846
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Mexican Opinion, American Racism, and the War of 1846

Gene M. Brack

When Mexican forces attacked a detachment of General Zachary Taylor's army on the east bank of the Rio Grande in April 1846, President James K. Polk justified a declaration of war against Mexico with the charge that "American blood" had been shed upon "American soil." The clash culminated two decades of abrasive relations between the United States and Mexico. By 1846 the most palpable cause of contention was the rapid expansion of the United States toward the borderlands of Mexico. The Polk administration appeared determined to carry forward a program of expansion which would ultimately embrace much of northern Mexico. The Mexican government seemed equally determined to avoid losing any part of her national domain. For nine years Mexico had refused to recognize Texas independence and more recently had rejected Polk's offer to purchase upper California. Failing to gain concessions by peaceful means, Polk then made a show of force: it did not fit the purpose of the president's war message to acknowledge that the boundary between the United States and Mexico was undetermined, the area between the Nueces and Rio Grande rivers being disputed territory rather than "American soil"; that for weeks the mouth of the Rio Grande had lain under an American blockade; that an American squadron hovered near Vera Cruz; or that an American "exploratory" expedition had entered upper California.[1]

Gene M. Brack is assistant professor of history at New Mexico State University.

[1] The body of literature treating the origins of the Mexican War is somewhat sparse, and it tends to concentrate upon the motives and methods of the United States. The once fashionable theory that American policy toward Mexico was motivated by a southern conspiracy designed to expand slavery has been discredited. William Jay, *A Review of the Causes and Consequences of the Mexican War* (Boston 1849), and Hermann von Holst's treatment of the war in volume three of his *Constitutional and Political History of the United States* (Chicago 1881), typified the conspiracy thesis. Chauncey W. Boucher, "In Re That Agressive Slavocracy," *Mississippi Valley His-*

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Merely to cite American provocations does not wholly explain Mexico's reaction. Her decision to fight rather than surrender territory by any means was a momentous one for both countries, yet since the publication in 1919 of Justin H. Smith's *The War With Mexico*, American writers have given scant attention to the factors that may have influenced Mexico's course of action. Smith explained that the decision was in large measure based upon Mexican confidence in their military superiority; believing their army larger and more powerful, Mexicans also remembered that the United States had demonstrated martial ineptitude during the War of 1812. Thus, according to Smith, Mexicans sought war, for, "vain and superficial, they did not realize their weakness."[2]

But for years Mexico had vowed to respond to American annexation of Texas with an immediate declaration of war against the United States. Therefore, if she sought war, why did Mexico not launch it in 1845 when Texas joined the American Union? It was the administration of José Joaquín de Herrera, who had become president in December 1844, that determined Mexico's response to annexation. Herrera's alternatives were

torical Review, VIII (June 1921), 13–79, effectively challenged its validity. Albert Weinberg, *Manifest Destiny* (Baltimore 1935), suggests that Americans believed themselves divinely willed to achieve continental dominion, a view expanded upon and somewhat modified by Frederick Merk's penetrating *Manifest Destiny and Mission in American History* (New York 1963). Norman Graebner, *Empire on the Pacific* (New York 1955), describes the importance of California's seaports in luring Americans westward. Richard R. Stenberg, "President Polk and the Annexation of Texas," *Southwestern Social Science Quarterly*, XIV (March 1934), 333–356, and Stenberg, "The Failure of Polk's Mexican War Intrigue of 1845," *Pacific Historical Review*, IV (March 1935), 39–68, portray Polk as the person most directly responsible for the war. Glenn Price, *The Origins of the Mexican War: The Polk-Stockton Intrigue* (Austin 1967), takes a similar view of Polk's behavior. Polk's most recent biographer, Charles G. Sellers, is also critical of the president's actions in his *James K. Polk, Continentalist, 1843–1846* (Princeton 1966). Diplomatic relations between the two countries prior to the war are described in Jesse H. Reeves, *American Diplomacy under Tyler and Polk* (New York 1906), and George Lockhart Rives, *The United States and Mexico, 1821–1848* 2 vols. (New York 1913).

[2] Justin H. Smith, *The War with Mexico* 2 vols. (New York 1919), I, 115. Although Smith's work is marred by an overzealous defense of the United States and indictment of Mexico, it remains useful because of the depth of his research. No subsequent treatment of the war has been based so extensively upon research in foreign archives and, possibly for that reason, his interpretation has been unduly influential. Mexican confidence on the eve of the war appears persistently in the pages of general accounts of the conflict. See, for instance, Robert S. Henry, *The Story of the Mexican War* (New York 1950), 36; Otis A. Singletary, *The Mexican War* (Chicago 1960), 20–21; and David Lavender, *Climax at Buena Vista* (New York 1966), 45. Smith's interpretation has reappeared in all its anti-Mexican zeal in a recent work by a Pulitzer Prize-winning historian, William H. Goetzmann's *When the Eagle Screamed* (New York 1966), chapter IV.

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.7 - Texas and the Riddle of Secession

Walter L. Buenger

ARTICLE	Texas and the Riddle of Secession
JOURNAL	The Southwestern Historical Quarterly 87, no. 2 (1983)
EXCERPT	Original journal pages 151-152
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Texas and the Riddle of Secession

WALTER L. BUENGER*

SECESSION REMAINS A MYSTIFYING PUZZLE, A PUZZLE WHOSE SOLUTION in 1861 was a bloody civil war and a puzzle whose solution in our time still defies rational explanation. From the end of the American Revolution until the start of the Civil War, the United States survived a series of intensely bitter internal disputes. Yet within the span of a few months in the winter of 1860–1861 the nation split apart, and a civil war soon began that resulted in over one million casualties. In Texas, secession seemed all the more improbable. Texans had continually asked to become part of the Union from 1836 to 1845. Their precarious position on the southwestern frontier reminded them daily of the value of belonging to a large and powerful nation. Prosperity seemed to preclude a political upheaval in 1860. The burgeoning trade in cotton, hides, and sugar flowing out of the commercial centers of Texas gave promise of making it one of the richest states in the Union. Slavery, while a major part of the social and economic life in some regions of Texas, was almost absent in other regions, and, except for Tennessee and Arkansas, Texas slaves made up the smallest percentage of the total population of any state in the Confederacy. Reflecting its position on the border of the South, politics in Texas on the eve of secession was dominated not by militant secessionists or unionists but by more moderate folk, who wanted to preserve the Union and the status quo if the costs of such action were not too high. At no time before 1860 did these moderates, who comprised a clear majority of the electorate, move persistently and urgently away from their comfortable middle ground. Nonetheless, before the firing on Fort Sumter changed the political question to either defending one's home or defecting to the enemy in defense of principle, Texans voted to secede by a three-to-one margin.[1]

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*Walter L. Buenger is an assistant professor of history at Texas A&M University.

[1]For the election returns in the secession referendum see Joe T. Timmons, "The Referendum in Texas on the Ordinance of Secession, February 23, 1861: The Vote," *East Texas Historical Journal* (*ETHJ*), XI (Fall, 1973), 12–28. On the population of the southern states and Civil War casualty figures see E[verette] B. Long, *The Civil War Day by Day:*

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At least four distinct explanations have been offered for the secession of Texas. In 1863 James P. Newcomb, a Texas unionist who had fled north, summed up the opinion of many contemporary observers of secession when he published his *Sketch of Secession Times in Texas*. Newcomb attributed secession to a conspiracy led by a handful of radical and self-serving Texans who duped the public into believing slavery and southern rights could only be preserved by secession. Ever since, the tendency to ascribe secession to a small band of plotters or, depending upon one's point of view, a group of vigilant patriots, has been a persistent theme in secession studies.[2] In the early twentieth century, troubled by secession in Texas, Charles William Ramsdell put forward a second interpretation. In his essay on "The Frontier and Secession," Ramsdell argued that not only did its frontier environment make Texas different from other southern states, but that in some ways the state's peculiar local conditions and pragmatic concerns created an impetus for secession. According to Ramsdell, not just concern for slavery but also bitter resentment of the federal government's failure to provide adequate protection from Indian attack caused frontiersmen to accept secession.[3] In the 1950s, following the lead of Avery O. Craven, interpreters of secession in Texas examined the

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An Almanac, 1861–1865 (New York, 1971), 701, 702, 709–712. For evidence that the vast majority of Texas voters clustered around the political center see Francis Richard Lubbock, *Six Decades in Texas; or, Memoirs of Francis Richard Lubbock, Governor of Texas in War Time, 1861–63. A Personal Experience in Business, War, and Politics,* ed. C[adwell] W. Raines (Austin, 1900), 179–313; *Standard* (Clarksville), Aug. 6, 13, 20, Nov. 5, Dec. 17, 1859, Oct. 13, 20, 27, 1860, Jan. 19, 26, 1861; *True Issue* (La Grange), Aug. 6, 13, 1859, Jan. 10, 17, 24, 1861. On the economic boom in Texas see Lewis Cecil Gray, *History of Agriculture in the Southern United States to 1860* (2 vols.; Washington, D.C., 1933), II, 905–907; Raymond E. White, "Cotton Ginning in Texas to 1861," *Southwestern Historical Quarterly (SHQ)*, LXI (Oct., 1957), 257–269; Vera Lea Dugus, "Texas Industry, 1860–1880," ibid., LIX (Oct., 1955), 151–157.

[2]James P. Newcomb, *Sketch of Secession Times in Texas and Journal of Travel from Texas through Mexico to California, including a History of the "Box Colony"* (San Francisco, 1863), 1–12. On Newcomb see Dale A. Somers, "James P. Newcomb: The Making of a Radical," *SHQ*, LXXII (Apr., 1969), 449–469; Roy Sylvan Dunn, "The KGC in Texas, 1860–1861," ibid., LXX (Apr., 1967), 543–573. For other contemporaries who believed secession to be the work of conspirators and demagogues see J[ohn] T. Sprague, *The Treachery in Texas, the Secession of Texas, and the Arrest of the United States Officers and Soldiers Serving in Texas* (New York, 1862); Sam Houston, "Speech at Brenham," Mar. 31, 1861, *The Writings of Sam Houston, 1813–1863*, ed. Amelia W. Williams and Eugene C. Barker (8 vols.; Austin, 1938–1943), VIII, 295–299. For later studies that also stress the role of heroes and anti-heroes see Edward R. Maher, "Secession in Texas" (Ph.D. diss., Fordham University, 1960); Leonard Bailey, "Unionist Editors in Texas during the Secession Crisis" (M.A. thesis, Texas Southern University, 1973); Oran Lonnie Sinclair, "Crossroads of Conviction: A Study of the Texas Political Mind, 1856–1861" (Ph.D. diss., Rice University, 1975).

[3]Charles William Ramsdell, "The Frontier and Secession," *Studies in Southern History*

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.8 - Slavery in Early Texas. I

Lester G. Bugbee

ARTICLE	Slavery in Early Texas. I
JOURNAL	Political Science Quarterly 13, no. 3 (1898)
EXCERPT	Original journal pages 389-390
JSTOR	https://www.jstor.org/stable/2140047

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Volume XIII.] *September, 1898.* [*Number 3.*

POLITICAL SCIENCE QUARTERLY.

SLAVERY IN EARLY TEXAS. I.

THE history of slavery in Texas, so far as it is of interest to us, began with the year 1821, when Moses Austin received permission to plant an Anglo-American colony on the banks of the Colorado and the Brazos. There may have been a few negroes in the little towns of Bexar and La Bahia at that time, but the number must have been insignificant and limited wholly to personal servants in the families of the well-to-do.[1] The coming of the energetic pioneers from the United States and the development of the rich bottom lands of Texas marked the beginning of a new era, not only in the history of Mexico, but in that of America; and the question of slavery in this wilderness, at that time seemingly of interest only to a few thousand farmers, was soon to engage the attention and determine the policy of the great neighboring nation.

Under the Spanish rule in Mexico negro slavery was tolerated and protected. The conditions, however, were so unfavorable that the institution never obtained a secure foothold, and was almost unknown outside of Vera Cruz and the hot lands. Even in the most favorable localities and after the introduction of cane growing, the slaves formed no considerable element in the population of the country. As late as 1793, according to Humboldt, there were not more than nine or ten thousand in

[1] In a total population of 3005, December 31, 1792, there were 34 negroes and 415 mulattoes; no mention is made of slaves. — Census of Texas, Texas Archives, No. 345

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all New Spain.[1] H. G. Ward, the British agent in Mexico in 1825–27, believed that the number did not exceed six thousand in 1793, and that it continued to decrease till 1827. So many were manumitted, and so many received their freedom during the long struggle for independence by joining the ranks of the patriot army, that Ward thought he was "justified in stating that there is now hardly a single slave in the central portion of the republic."[2] Not one could be found in the valley of Cuernavaca, or even in the Orizaba and Cordova regions, which are the great sugar and coffee districts of Mexico.[3] About fifteen years later, Waddy Thompson, the representative of the United States government, did not see half a dozen negroes during his entire residence of two years in the Mexican capital.[4]

The petition of Moses Austin for permission to settle an Anglo-American colony in Texas was officially granted in January, 1821. No mention was made of slavery in either the petition or the grant. It was the intention of Austin, however, to draw most of his colonists from the southern United States; and there can be but little doubt that he would have favored the removal of slaves to Texas as part of the capital of his planters. But it was not for him to lead the migration for which he had prepared the way. The long journey to San Antonio de Bexar, with its hardships and exposure, resulted in his death,[5] and the work of carrying forward the colonization of Texas fell to his son.

Stephen Fuller Austin, then a young man of twenty-eight, at once made an exploring tour through Texas, was recognized as heir to his father's grant, and received the governor's approval of the plan which he had drawn up for the distribution of lands.[6] This plan, after making provision for the head of the family and allowing a liberal portion for the wife and each

[1] Humboldt, Ensayo politico sobre la Nueva España, I, 252.
[2] Ward, Mexico in 1827, I, 27.
[3] *Ibid.*, p. 29.
[4] Thompson, Recollections of Mexico, p. 5.
[5] He died in Missouri, June 10, 1821.
[6] H. H. Bancroft, North Mexican States and Texas, II, 60.

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.9 - Manifest Mirth: The Humorous Critique of Manifest Destiny, 1846–1858

Daniel Burge

ARTICLE	Manifest Mirth: The Humorous Critique of Manifest Destiny, 1846–1858
JOURNAL	Western Historical Quarterly 47, no. 3 (2016)
EXCERPT	Original journal pages 283-284
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Manifest Mirth: The Humorous Critique of Manifest Destiny, 1846–1858

Daniel Burge

In the period from 1846 to 1858, opponents of Manifest Destiny brought forth a comprehensive critique of the ideology. Relying heavily upon humor, they highlighted its ethical and religious inconsistencies. In doing so, they managed to blunt the appeal of Manifest Destiny, which restrained the growth of the American empire.

En el periodo de 1846 a 1858 los oponentes a la doctrina del Destino Manifiesto criticaron ampliamente esta ideología. Apoyándose fuertemente en el humor, hicieron énfasis en las inconsistencias éticas y religiosas. Al hacer esto, lograron embotar el interés de la doctrina del Destino Manifiesto, lo cual impidió el crecimiento del imperio Americano.

Edward Dickinson Baker was fed up. Sitting in the U.S. House of Representatives in January 1846, he had recently listened to a lengthy speech by fellow Whig Robert C. Winthrop. In his speech, Winthrop railed against a new idea that he had read about called Manifest Destiny, and this clearly irritated Congressman Baker.[1] Baker promptly delivered a full-length rebuttal of Winthrop's speech. Observing that a defense was necessary for a doctrine "which had excited some sneers," Baker then launched into a vitriolic speech that included a direct mention of Winthrop's ancestors, who, Baker pointed out, had believed in "destiny" and who would certainly have believed in the idea of Manifest Destiny. "There was such a thing as the destiny for this American race," Baker lectured his audience, "a destiny that would yet appear on the great chart of human history." Baker made it clear that the United States should have all of Oregon and indeed the entire continent of North America. Providence had so decreed. Most of Baker's audience,

Daniel Burge is a PhD candidate at the University of Alabama. His dissertation, currently in progress, explores opposition to Manifest Destiny from 1846 to 1872. He thanks Joshua Rothman, Teresa Cribelli, Steven Bunker, and the two anonymous *WHQ* reviewers for their suggestions. Special thanks go to George Rable, who, as always, provided both timely advice and helpful criticism.

[1] Cong. Globe, Appendix, 29th Cong., 1st Sess. 99–100 (1846).

The Western Historical Quarterly 47 (Autumn 2016): 283–302. doi: 10.1093/whq/whw087
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however, did not seem to agree. While Baker delivered his speech—the first in Congress in defense of Manifest Destiny—many members of that esteemed body broke out in laughter. They found the idea of Manifest Destiny funny.[2]

Historians have generally overlooked this laughter. Albert K. Weinberg, in his pioneering study, did note that Baker was the first individual to defend the idea of Manifest Destiny on the floor of Congress, but he used Baker's speech as his evidence that expansionists seized upon the phrase and used it to bury all opposition to it.[3] Most historians have followed Weinberg's lead and examined and analyzed the ideology of Manifest Destiny from the perspective of its proponents.[4] This has led to a rather standardized definition of the term as an ideology, based upon racial notions of Anglo-Saxon superiority and the dominance of the Protestant religion, that contributed to American expansion in the late 1840s and early 1850s. Americans, fueled by this belief in their own superiority and their mission to remake the world in their image, brushed aside ideas of international law and surged into Mexican-, British-, and Spanish-controlled lands. Most historians have agreed on the overwhelming popularity of this ideology and effectively labeled the era stretching from 1846 to 1854 as the era of Manifest Destiny.[5]

Yet, if Manifest Destiny was overwhelmingly popular, why did Baker's introduction of the phrase meet with riotous laughter? Tracing those who scoffed at the idea of Manifest Destiny will show that, as an ideology, it was not tacitly accepted by the bulk of the American public. Opponents contested and challenged it throughout the antebellum period. Here, I examine the ways in which this opposition coalesced and trace how the opponents of Manifest Destiny combated the ideology. Because of the vastness of the literature, my examination focuses on humor and the types of humorous arguments that were developed to counteract Manifest Destiny. Although humor can be perceived as a strange medium to convey a political message, it perhaps would have been less surprising

[2] Cong. Globe, 29th Cong., 1st Sess. 136–7 (1846). This is based on the recollection of Rep. Jacob Collamer, who noted of the speech, "This plea of 'manifest destiny' was first avowed in this House in reference to the Oregon question by a gentleman from Illinois, [Mr. Baker.] At that time it produced general laughter; it was matter of general derision through the House." See Cong. Globe, 30th Cong., 1st Sess. 283 (1848). This assertion is backed up by the fact that E. D. Baker's name became synonymous with the phrase. See "Miscellaneous Affairs," *New York Herald*, 20 July 1847 and *St. Louis Union*, n.d., quoted in *Boston Post*, 23 August 1847.

[3] Albert K. Weinberg, *Manifest Destiny: A Study in Nationalist Expansionism in American History* (1935; repr., Chicago, 1963), 143.

[4] Key works on Manifest Destiny and the Young America movement include Weinberg, *Manifest Destiny*; Norman A. Graebner, *Empire on the Pacific: A Study in American Continental Expansion* (New York, 1955); Reginald Horsman, *Race and Manifest Destiny: The Origins of American Racial Anglo-Saxonism* (Cambridge, MA, 1981); Thomas R. Hietala, *Manifest Destiny: Anxious Aggrandizement in Late Jacksonian America* (Ithaca, 1985); Anders Stephanson, *Manifest Destiny: American Expansion and the Empire of Right* (New York, 1995); and Amy S. Greenberg, *Manifest Manhood and the Antebellum American Empire* (New York, 2005).

[5] Walter Nugent, *Habits of Empire: A History of American Expansion* (New York, 2008), 222.

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.10 - 'Sometimes When I Hear the Winds Sigh': Mortality on the Overland Trail

Robert W. Carter

ARTICLE	'Sometimes When I Hear the Winds Sigh': Mortality on the Overland Trail
JOURNAL	California History 74, no. 2 (1995)
EXCERPT	Original journal pages 146-147
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"Sometimes When I Hear the Winds Sigh" Mortality on the Overland Trail[1]

by Robert W. Carter

The overland migrations of mid-nineteenth-century America were indeed full of difficulties, hardships, and all too often tragedy. The problems experienced by the emigrants, contrary to popular folklore, did not generally involve outlaws or Indians. Trouble instead manifested itself not through these romantic images created by popular fiction and media, but through mundane, though more lethal, encounters with disease, accidental trauma, and the elements. What kept the emigrants alive and moving was not merely their will to survive, but their mutual support and willingness to work together as a community.

The nomadic community of the overland trail was, like any other frontier community, organized under the need for mutual assistance. This was especially important in time of dire need, and it was in these critical times that the community and its members were at their best. Whether to defend the company from a hostile environment, feed the starving, care for the sick, or bury the dead, this nomadic community, like its sedentary counterpart, pulled together to support its own. As one gold-rush emigrant stated in 1849:

> Never have I seen so much hospitality & good feeling anywhere exhibited as since I have been on this route. Let any stranger visit camp no matter who or where, & the best of everything is brought out, he is fed, & caressed almost universally…. Nor have I seen any man in trouble, deserted, without all the assistance they could render[2]

Almost immediately upon departure from one of the many jumping off points along the Missouri River, the need for communal support became readily evident. The emigrants had barely reached the actual trail when they ran head-on into the worst dangers and most prevalent cause of death on the overland trail: disease,[3] which was responsible for nine out of every ten overland emigrant deaths enroute.[4] Of all the diseases the emigrants encountered along the trail, cholera was the most common and the most deadly. It was a disease with which people were more familiar, yet it was little understood. It would strike suddenly, with no warning, often killing the victim within hours of the first symptoms.[5] It was so uncontrollable that often entire families, even whole emigrating companies, would be wiped out.[6] In one case in 1849, cholera took six out of a company of seven.[7]

A waterborne disease caused by the lack of proper sanitation, cholera was especially prevalent in crowded urban areas. It was transmitted through the polluted drinking water in the already congested cities of Independence, St. Louis, and St. Joseph, Missouri, all of which were major jumping off points for the overland trail, a situation that further augmented the problem. During the peak emigration years, with the influx of thousands of emigrants, these cities were especially susceptible to the bacteria, and with the lack of proper facilities to control the disease and the lack of knowledge of germs and bacteria as causation for cholera, all three cities became prime breeding grounds for the disease. The spread of cholera went unchecked and soon reached epidemic proportions between the years of 1848 and 1855, particularly in 1849, 1850, and 1852, when the mortality rate averged 2,000 deaths annually. It killed over 4,000 in the city of St. Louis alone in 1849.[8] St. Louis was not the only city affected; the pestilence swept

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"Death Scene on the Plains," artist unknown, appeared January 1, 1856, in the Sacramento *Pictorial Union*. The number of deaths from cholera on the overland trail is difficult to establish. Many grave-markers observed and meticulously recorded by diarist J. Goldsborough Bruff do not list the cause of death, and many graves were left unmarked. Estimates for the number of deaths for the year 1849 alone range from 750 to 5000. *Courtesy Bancroft Library.*

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Carter, Robert W. "'Sometimes When I Hear the Winds Sigh': Mortality on the Overland Trail." *California History* 74, no. 2 (1995): 146–161. https://www.jstor.org/stable/25177489.

Footnote citation

Robert W. Carter, "'Sometimes When I Hear the Winds Sigh': Mortality on the Overland Trail," *California History* 74, no. 2 (1995): 146–147, https://www.jstor.org/stable/25177489.

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Carter, "'Sometimes When I Hear," 146–147.

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STABLE LINK	https://www.jstor.org/stable/25177489

CHAPTER 13 | SCHOLARLY ARTICLE

A13.11 - Manifest Destiny and the Pacific

Dan E. Clark

ARTICLE	Manifest Destiny and the Pacific
JOURNAL	Pacific Historical Review 1, no. 1 (1932)
EXCERPT	Original journal pages 1-2
JSTOR	https://www.jstor.org/stable/3633743

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[Vol. 1, no. 1]

Manifest Destiny and the Pacific[1]

Dan E. Clark

The launching by this association of a new quarterly, devoted in its scope to the history of the entire basin of the Pacific, indicates an appreciation of the importance of the Pacific Coast of the United States and of its close relationship to the other lands in and bordering on this great ocean. Consideration of the significance of the forthcoming publication suggested to the writer that it would not be inappropriate on this occasion to review briefly some of the many predictions made in the past regarding the destiny of America, both on this coast and across the Pacific Ocean.

The term Manifest Destiny is here used in a broad sense. It includes, in the first place, the emotion which prompted Elkanah Watson, prophesying in 1778 for the year 1900, to speak of "the decrees of the Almighty, who has evidently raised up this nation to become a lamp to guide degraded and oppressed humanity";[2] or Albert J. Beveridge in 1900 to call America "trustee, under God, of the civilization of the world."[3] This is the chosen-people, beacon-to-mankind interpretation of America's mission and duty. This is the view of which Carl Schurz wrote, although without adding his approval, when he referred to the "youthful optimism . . . inspiring the minds of many Americans with the idea that this republic, being charged with the mission of bearing the banner of freedom over the whole civilized world, could transform any country, inhabited by any kind of population, into something like itself

[1] Presidential Address delivered before the Pacific Coast Branch of The American Historical Association at Berkeley, California, December 29, 1931.

[2] Quoted in Jesse Lee Bennett, *The Essential American Tradition* (New York, 1925), 296.

[3] *Congressional Record*, 56 cong., 1 sess., 704.

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simply by extending over it the magic charm of its political institutions."[4]

Then there is the doctrine of pre-ordination or inevitability governing the westward progress of the "star of empire." For some it was divine command and the superintending guidance of Providence that furnished the irresistible impulse. Others based their prophecies on the ceaseless inward urge which had for so long been impelling Anglo-saxon peoples westward. Still others referred to the certainty that American dominion and American enterprise must seek their natural boundaries, as water seeks its level. All these are included in the meaning of Manifest Destiny as here used.

The writer feels no necessity to pass judgment on the sincerity or motives of those who eloquently propounded the views, hereafter mentioned or quoted, in regard to the unavoidable rôle which America was destined to play on both shores of the Pacific. Most of these men lived long before the day of the modern cynic and de-bunker. If there was dross mingled with the gold in their exaltation and enthusiasm, few of them were conscious of it. America was still the land of the free and the home of the brave. At the same time it is true that there were always those who denied the force of predestinarian logic; and at the close of the last century there were many critics who exposed selfish economic imperialism lurking behind fine-sounding phrases.

The definite formulation of the doctrine of Manifest Destiny no doubt belongs to the decade of the roaring forties. With respect to the Pacific Coast and the Pacific, however, it seems certain that the essential features of that idea were in men's minds at a considerably earlier date. Even Coleridge in his later years was constrained to say: "The possible destiny of the United States of America, as a nation of a hundred millions of freemen, stretching from the Atlantic to the Pacific, living under the laws of Alfred, and speaking the language of Shakespeare and Milton, is an august conception."[5]

[4] Carl Schurz, "Manifest Destiny" in *Harper's Monthly*, LXXXVII, 737 (1893).

[5] Coleridge's *Table Talk*, quoted on the title page of Robert Greenhow, *The History*

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.12 - Santa Anna and the Gómez Farías Administration in Mexico, 1833-1834

Michael P. Costeloe

ARTICLE	Santa Anna and the Gómez Farías Administration in Mexico, 1833-1834
JOURNAL	The Americas 31, no. 1 (1974)
EXCERPT	Original journal pages 18-19
JSTOR	https://www.jstor.org/stable/980380

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SANTA ANNA AND THE GÓMEZ FARÍAS ADMINISTRATION IN MEXICO, 1833-1834

DESPITE numerous biographies, Antonio López de Santa Anna remains one of the most enigmatic characters to have emerged in nineteenth century Latin America. Often dismissed by his many detractors as an unprincipled opportunist in the worst military caudillo tradition, he nevertheless dominated the turbulent and often chaotic Mexican political scene in the thirty years between independence and the Reform. His life has naturally been subjected to close scrutiny by both his contemporaries and more recent historians but his genius for political manouevre and equivocation have left many episodes in his career obscure and subject to doubt. Perhaps nowhere is this more the case than in his first presidency from 1833-1834 and in particular in his relations with his vice-president Gómez Farías' administration. This article seeks to examine his activities and ambitions in these years, and to suggest reasons, which hitherto have been overlooked or at least not given sufficient attention by his biographers, why he chose to betray and destroy the liberals' first attempt at reform.[1]

Santa Anna's campaign for the presidency began at Veracruz on 2 January 1832. On that evening a plan was issued in the name of the local garrison commander, Pedro Landero, calling on vice-president Bustamante to dismiss his cabinet.[2] Article 3 stated the intention of the *pronunciados* to invite Santa Anna to assume military command. The next day he left his estate near Jalapa and hastened to Veracruz. On 4 January he wrote to Bustamante saying that he had been aware for some time of the opposition to the ministers, but he had now come to the conclusion that there was real public dislike and even hatred of them. Public opinion had to be obeyed, he declared, and he himself had received letters and exhortations for some time urging him to act. He was participating however, solely in the role of mediator between the garrison and the government, and not as a hostile enemy with weapons to hand ready to dispute

[1] This article is based on my study of the first Federal Republic, to be published by the Fondo de Cultura Económica. For financial assistance towards my research, I am grateful to the Sir Ernest Cassel Educational Trust and the American Philosophical Society.

[2] Landero was alleged to have lost 18,000 pesos of the garrison's funds in gambling: *El Sol*, 10 January 1832. Callcott states that Santa Anna offered to pay off the debt provided Landero initiated the revolt: W. H. Callcott, *Santa Anna* (Connecticut, 1964), p. 88. The full text of the plan is in the newspaper *El Fénix de la Libertad*, 11 January 1832.

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power. He pointed out his previous declarations of support for Bustamante and he reiterated his view that the vice-president should complete his constitutional term of office. "Have no doubt', he wrote, "my sword will sustain at all cost the vice-president of the republic, D. Anastasio Bustamante."[3]

Santa Anna's altruistic claims to be no more than a mediator were received in the capital with even less credibility than the rebels' statement that their only aim was the removal of the cabinet. In retrospect it is clear that, having spent his days since the downfall of Guerrero in 1829 in retirement on his estate, he had concluded that he was to be the next president of the republic.[4] He faced however, various difficulties. In strictly constitutional terms, the next presidential election was due to be held in the autumn of 1832, with the successful candidate taking office on 1 April 1833. There were two routes open to him; first, campaign and win the election, or secondly, achieve the same end by armed revolt. His decision not to rely on the electoral process reflected a corrct assessment of his own political support. Most of his partisans were in the lower ranks of the military, and within the party political spectrum included only those on the extreme fringe, the former *yorkinos* and Guerrero adherents. The latter had been mostly deprived of their public offices by the Bustamante government and hence they had no control or influence in the vital state legislatures which were to elect the next president. Perhaps an even more important consideration was that other candidates for the presidency, especially a group supporting General Mier y Terán, were rapidly gaining organization and strength. They were attracting the allegiance of the political moderates, both conservative and liberal, the so-called *hombres de bien*, who were growing disillusioned with the pro-military and pro-clerical policies of Lucas Alamán and his cabinet colleagues. Santa Anna knew that he had no chance of electoral support from them. Hence he rejected reliance on the ballot box in favour of revolt but here timing was a crucial factor. He had to act quickly to forestall his more orthodox presidential rivals but in January 1832 it was too early to rebel openly in pursuit of the presidency. He needed a pretext for the time being and this was provided by the campaign that had already been underway for some months against the ministers, particularly against Alamán and Facio. Action in favour of this cause had the additional advantage in that it might well gain him favour among some federalists in the legislatures who feared the centralization of power being implemented by Alamán.

[3] There is a copy of this letter in the Gómez Farías Papers, University of Texas, folder 115.

[4] See Santa Anna's letter of 11 November 1831, cited in Callcott, *Santa Anna*, pp. 87-88.

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Footnote citation

Michael P. Costeloe, "Santa Anna and the Gómez Farías Administration in Mexico, 1833-1834," *The Americas* 31, no. 1 (1974): 18–19, https://www.jstor.org/stable/980380.

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Costeloe, "Santa Anna," 18–19.

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.13 - Southern Protestantism and Secession

W. Harrison Daniel

ARTICLE	Southern Protestantism and Secession
JOURNAL	The Historian 29, no. 3 (1967)
EXCERPT	Original journal pages 391-392
JSTOR	https://www.jstor.org/stable/24442607

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Southern Protestantism and Secession

W. HARRISON DANIEL*

CHURCHMEN in the South were keenly aware of the significance of the national election in 1860 and for months prior to November had sought to counsel their constituencies concerning it. Early in the summer editors of various denominational weekly newspapers took a cautious position on the campaign, the election, and political activities. One of the first papers to discuss current political issues was the *Due West Telescope;* on July 13 it advised all Christians to take a vital interest in the forthcoming election but cautioned them not to enter into political squabbles. Christians, it noted, should plan to vote and also pray that the political storm raging throughout the land should pass peacefully. Several weeks later the Virginia Baptist paper, the *Religious Herald,* asked its readers to "invoke the aid of God" to quell the attacks of Southern disunionists and Northern fanatics or else they would destroy the nation. The *Central Presbyterian* denounced secession in September and declared that disunion would result in a "horrible Civil War." Similar sentiments were also expressed by denominational periodicals in the deep South. Three weeks prior to the election the *New Orleans Christian Advocate,* a Methodist journal, explained that if the "Black Republican" nominee, Abraham Lincoln, were elected, it would not endanger Southern institutions. Southerners were cautioned to be calm, remembering that, if elected, he would serve for only four years. A week before the election the *South Western Baptist* urged its readers to turn from "fanatics" and "demagogues" who spread fear and distrust

* The author is Associate Professor of History at the University of Richmond, Richmond, Virginia.

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and wish to destroy the Union. They were advised to support "sober men" who "love the Union." The *Church Intelligencer,* an official publication of the Protestant Episcopal Church, recommended that Friday prior to the election be observed as a day of fasting and prayer "for peace, prosperity, and perpetual union of our beloved land." Presbyterian synods in North Carolina and Virginia asked that Christians beseech Almighty God to "forgive our national sins, heal our differences, and continue us a united and prosperous people."[1]

The Synod of Virginia urged clergymen to preach sermons, prior to the election, on the duty of Christians as peacemakers. The one by Robert Lewis Dabney, moderator of this synod, delivered on November 1, denounced the activities of passionate men who had disturbed the unity of the nation and aroused fears of war. He pleaded with the citizens to vote for virtuous men and to pray for peace.[2] Extensive research has not disclosed a single religious newspaper or denominational leader which officially and openly espoused secession prior to the election of Abraham Lincoln. Christians in the South were cautioned to avoid the spirit of fanaticism, to be calm and moderate in their actions and speech, to seek the aid of God, ignore party, and vote for honest men.[3]

After the election of Lincoln but prior to the passage

[1] *Due West Telescope,* Due West, South Carolina, July 13, 1860 (this paper was the organ of the Southern Associate Reformed Presbyterian Synod); *Religious Herald,* Richmond, August 9, 1860; *Central Presbyterian,* Richmond, September 8, 1860; *New Orleans Christian Advocate,* New Orleans, October 17, 1860; *South Western Baptist,* Tuskegee, October 25, 1860; *Church Intelligencer,* Raleigh, November 1, 1860. See also the *North Carolina Presbyterian,* Fayetteville, October 13, November 3, 1860.

[2] Thomas C. Johnson, *The Life and Letters of Robert Lewis Dabney* (Richmond, 1903), 212; James H. Thornwell and others, *Fast Day Sermons: On the State of the Country* (New York, 1861), 83, 86.

[3] For examples see *Church Intelligencer,* Raleigh, July 12, 1860; *North Carolina Christian Advocate,* Raleigh, July 31, 1860; *Southern Baptist,* Charleston, August 4, 1860; *Tennessee Baptist,* Nashville, August 11, 1860; *North Carolina Presbyterian,* Fayetteville, October 20, 1860.

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Daniel, "Southern Protestantism and Secession," 391–392.

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.14 - Bexar: Profile of a Tejano Community, 1820-1832

Jesús F. de la Teja and John Wheat

ARTICLE	Bexar: Profile of a Tejano Community, 1820-1832
JOURNAL	The Southwestern Historical Quarterly 89, no. 1 (1985)
EXCERPT	Original journal pages 7-8
JSTOR	https://www.jstor.org/stable/30236992

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Bexar: Profile of a Tejano Community, 1820–1832

Jesús F. de la Teja and John Wheat*

Mexicans settled Texas a full century before the first Anglo-American colonists arrived. Anglo-American settlement began with the Mexican period of Texas history (1821–1836), a period in which Mexican Texans, or Tejanos, witnessed many significant changes in their region. By 1832, three years before the revolutionary struggle in Texas began, these changes had both fueled the Tejanos' aspirations and frustrated their attempts to realize them. A major statement in 1832 by Tejano leaders, reviewing their experience under the Mexican republic, was a critical event in the history of Mexican Texas. Yet historians have largely neglected the Tejano experience of this period and focused instead on the story of Anglo-American colonization and revolution.[1] In part this neglect stems from the traditional Anglo bias in Texas historical writing, coupled with a language barrier that has prevented many historians from using essential Mexican sources. On the eve of the Texas Sesquicentennial, which commemorates the passing of that era, it is important to understand the world of the native Mexican communities of Texas, their people and institutions, their patterns of community life, and their view of the broader world.

Chief among these communities was the capital, San Antonio de Béxar, commonly known during this period as Bexar. Established by

*Jesús F. de la Teja is assistant archivist at the Texas General Land Office, where he is currently working on an inventory and calendar of the Spanish- and Mexican-period records of the agency. He is also conducting research on social structure and land tenure in colonial San Antonio for his Ph.D. dissertation in history at the University of Texas at Austin.

John Wheat has been archives translator at the Barker Texas History Center at the University of Texas at Austin since 1978. In that time he has completed twenty-one volumes of Bexar Archives Translations. A professional archivist/librarian, historian, and Latin American area specialist, he has taught in the Graduate School of Library and Information Science at UT, Austin, served as a translator and interpreter of Spanish, and produced Spanish-language radio programs and concerts.

[1]Two unpublished works dealing with Tejanos during the Mexican Republic and early statehood years are Andrew A. Tijerina, "Tejanos and Texas: The Native Mexicans of Texas, 1820–1850" (Ph.D. diss., University of Texas at Austin, 1977); and Fane Downs, "History of Mexicans in Texas, 1820–1845" (Ph.D. diss., Texas Tech University, 1970). See also Arnoldo De León, *The Tejano Community, 1836–1900* (Albuquerque, 1982), 1–22.

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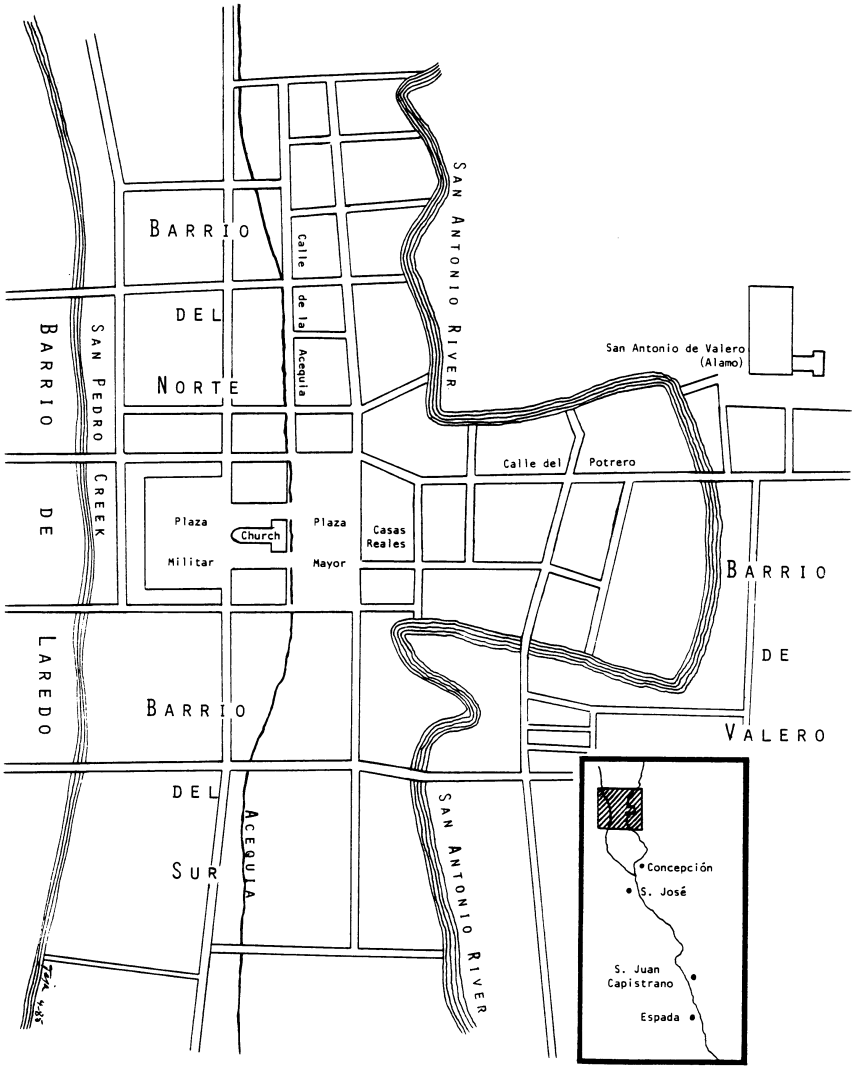

San Antonio de Béxar.

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Footnote citation

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.15 - Discovering the Tejano Community in 'Early' Texas

Jesús F. de la Teja

ARTICLE	Discovering the Tejano Community in 'Early' Texas
JOURNAL	Journal of the Early Republic 18, no. 1 (1998)
EXCERPT	Original journal pages 73-74
JSTOR	https://www.jstor.org/stable/3124734

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DISCOVERING THE TEJANO COMMUNITY IN "EARLY" TEXAS

Jesús F. de la Teja

Most Anglo-American writers refer to the Texas of the 1820s, 1830s, and 1840s as early Texas, and in one sense they are right. The transformation of Texas into a member state of the American Union began in those years. Most of the country that the Anglo-American colonies and later the republic occupied was wilderness, as that term was defined by Euro-American concepts of wilderness and civilization. Unquestionably, however, there was an even earlier Texas—a Texas that existed within a Hispanic historical context and responded to Spanish-Mexican social, economic, political, and religious norms. Before that, there had been no Texas. To the Indian peoples who inhabited the coastal prairies, the piney woods, the high plains, and the mountains and basins of the extreme southern Rockies, there were very different economic and political geographies, most of which remain a mystery to us today.[1] Nevertheless,

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Jesús F. de la Teja is associate professor of history at Southwest Texas State University, San Marcos, Texas. He is the author of a number of works on colonial and Mexican-period Texas and the Southwest, including *San Antonio de Béxar: A Community on New Spain's Northern Frontier* (1995) and *A Revolution Remembered: The Memoirs and Selected Correspondence of Juan N. Seguín* (1991). He is also managing editor of *Catholic Southwest: A Journal of History and Culture*. An earlier version of this essay was presented in 1994 at the University of Texas at Arlington conference, "The Challenge of Statehood: A Sesquicentennial Symposium on Texas Annexation."

[1] In this essay, the geographic extent of Texas is defined according to colonial (1716-1821) and Mexican era (1821-36) boundaries, which coincide with that area over which the Republic exercised effective control. The historiography of Texas is extensive. The following works are listed as examples of the most recent scholarship in their particular fields, which form a good starting place for study of early Texas history. A historiographical essay covering early Texas's place in relation to United States history is Gerald E. Poyo and Gilberto M. Hinojosa, "Spanish Texas and Borderlands Historiography in Transition: Implications for United States History," *Journal of American History*, 75 (Sept. 1988), 393-416. The best narrative survey of Spanish-colonial Texas history is Donald Chipman, *Spanish Texas, 1519-1821* (Austin, 1992); the best monograph on socio-economic history during that period is Jesús F. de la Teja, *San Antonio de Béxar: A Community on New Spain's Northern Frontier* (Albuquerque, 1995); a recent study of Tejanos during the Mexican period (1821-35) is Andrés Tijerina, *Tejanos and Texas Under the Mexican Flag, 1821-1836* (College Station, 1994); the best single volume on the Indian peoples of Texas remains W.W. Newcomb, Jr., *The Indians of Texas: From Prehistoric to Modern Times* (Austin, 1961); a thorough study of relations among the various Indian

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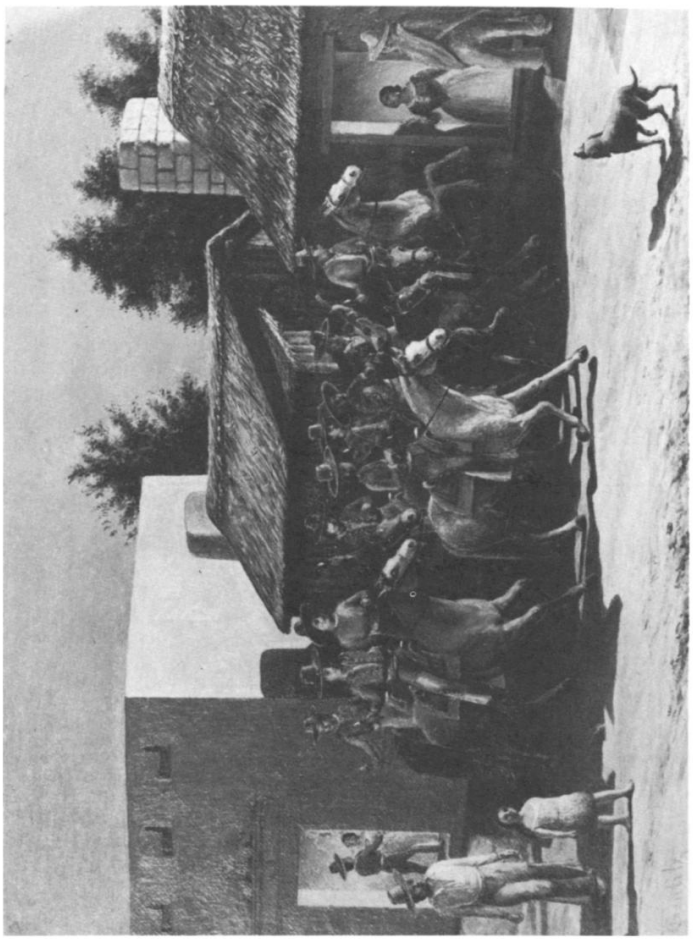

"El convite para el baile," ["Invitation to the dance"] Theodore Gentilz (1819-1906), oil on canvas, Yanaguana Society Collection, Daughters of the Republic of Texas Library, San Antonio. The horse culture of the Tejanos, perfectly suited to the vast semi-arid expanses of the Mexican north and Texas, served as the wellspring for America's cowboy culture of the latter nineteenth century.

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.16 - Whither Tejano History: Origins, Development, and Status

Arnoldo De León

ARTICLE	Whither Tejano History: Origins, Development, and Status
JOURNAL	The Southwestern Historical Quarterly 106, no. 3 (2003)
EXCERPT	Original journal pages 349-350
JSTOR	https://www.jstor.org/stable/30239343

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Historian Carlos E. Castañeda, in an original illustration by José Cisneros. The most prolific Mexican American historian ever, Castañeda's pioneering works focused on the Spanish and Mexican background of Tejano history. *Courtesy Félix D. Almaráz Jr.*

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Whither Tejano History: Origins, Development, and Status

Arnoldo De León*

What is Tejano history? Three decades ago, no one would have recognized the term, yet today most every historian in the state of Texas can offer at least some elementary definition of the concept. Simply put, "Tejano history" is the study of Mexican Americans in the Lone Star State, and constitutes part of overall Texas history as do African American and women's history. However, the sub-field of Tejano history also fits under the wider purview of "Chicano history," for its origins lie there, and it is the latter that has influenced it more than has mainstream Texas historiography.

Students of Chicano history continue to see the history of Mexican-descent people through lenses originally introduced during the 1970s, when the first generation of Mexican American researchers conceptualized it. Certainly the study of Chicano history has undergone change over the last decades. It has borrowed research tools from disciplines outside history, produced innovative ways of searching for the truth, and expanded its ranks by recruiting both Mexican-descent scholars—men and women—too young to have been a part of its beginnings and a growing circle of Anglo American writers. Nonetheless, such features as its early premises, periodization, and the topics chosen for study still reflect links to its initial foundations and remain as distinguishable features of the field.[1]

Tejano history, as an academic discipline, is so well-accepted today by mainstream Texas scholarship that no textbook, collection of essays, or

*Arnoldo De León is the C. J. "Red" Davidson Professor of History at Angelo State University. He is the author of numerous works on Tejanos and is currently on the board of the Texas Council for the Humanities. The author wishes to give special thanks to the several scholars who read early drafts of this article, but most especially to Roberto R. Treviño (University of Texas at Arlington) and Manuel G. Gonzales (Diablo Valley College, Pleasant Hill, California).

[1] Manuel G. Gonzales and Cynthia M. Gonzales (eds.), *En Aquel Entonces: Readings in Mexican-American History* (Bloomington: Indiana University Press, 2000), xi, xiii–xv; Refugio I. Rochín and Dennis N. Valdés (eds.), *Voices of a New Chicana/o History* (East Lansing: Michigan State University Press, 2000), 1–22.

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.17 - Independent Indians and the U.S.-Mexican War

Brian DeLay

ARTICLE	Independent Indians and the U.S.-Mexican War
JOURNAL	The American Historical Review 112, no. 1 (2007)
EXCERPT	Original journal pages 35-36
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Independent Indians and the U.S.-Mexican War

BRIAN DELAY

In the summer of 1845, amid mounting concern that the United States and Mexico would go to war over Texas, the New Orleans *Commercial Bulletin* reported that a Comanche Indian force of "extraordinary magnitude" was preparing to descend upon the "weakened population" of northern Mexico. According to the editors, the whole of the Mexican north would soon be "engulfed in a terrible Indian war." This fact would "powerfully influence political relations" and "would have to be considered as a new element in diplomatic calculations." The translated article soon appeared in Mexican newspapers, including Durango's *Registro Oficial*. The paper's editors admitted that Comanches posed a tremendous threat, but blamed their "philanthropic" American neighbors for that. From Durango's perspective, Americans were "impelling" and "inviting" Indians across the frontier, encouraging "the evils that always attend the depredations of the savage," all with an eye to acquiring lands that excited the "insatiable greed" of the United States.[1]

This cross-border conversation had a broad and tragic context. In the early 1830s, following what for most had been nearly two generations of imperfect peace, Comanches, Kiowas, Navajos, and several different tribes of Apaches dramatically increased their attacks upon northern Mexican settlements. While contexts and motivations varied widely, most of the escalating violence reflected Mexico's declining military and diplomatic capabilities, as well as burgeoning markets for stolen livestock and captives. Indian men raided Mexican ranches, haciendas, and towns, killing or capturing the people they found there, and stealing or destroying animals and other property. When able, Mexicans responded by attacking their enemies with comparable cruelty and avarice. Raids expanded, breeding reprisals and deepening enmities, until the searing violence touched all or parts of nine states.

These events had powerful but virtually forgotten consequences for the course and outcome of the U.S.-Mexican War. In pursuing their own material, strategic, and cultural goals, indigenous polities in the Mexican north remade the ground upon which Mexico and the United States would compete in the mid-1840s. Raids and counter-raids claimed thousands of lives, ruined critical sectors of northern Mexico's

I gratefully acknowledge those who have critiqued and encouraged this essay throughout its many incarnations: Fred Anderson, Diliana Angelova, John Coatsworth, Jonathan Conant, Bill Gienapp, Daniel Gutiérrez, Joanne Meyerowitz, Christopher Morris, Robert Schneider, Laurel Thatcher Ulrich, David Weber, John Womack Jr., and the *AHR*'s anonymous readers and staff. I would also like to thank the donors, staff, faculty, and fellows of the Clements Center for Southwest Studies at Southern Methodist University, where I completed an important round of revisions on this article.

[1] *El Registro Oficial del Gobierno del departamento de Durango*, August 17, 1845. The editors reprinted translated portions of the *Bulletin*'s editorial from *El Diario de Veracruz*.

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economy, stalled the north's demographic growth, depopulated much of its vast countryside, and fueled divisive conflicts between Mexicans at nearly every level of political integration. Exhausted, impoverished, and divided by fifteen years of war, and facing ongoing and even intensifying Indian raids, northern Mexicans were singularly unprepared to resist the U.S. Army in 1846 or to sustain a significant insurgency against occupation forces.

At the same time, as the editorials from New Orleans and Durango suggest, Indian raiders shaped how Americans and Mexicans viewed each other in advance of the war. From Texas to Washington, Anglo-American observers began looking at Mexico *through* the autonomous native peoples of the borderlands, as if these Indians were lenses calibrated to reveal essential information about Mexicans, their lands, and their futures in North America.[2] Schooled in Indian removal—that supreme exhibition of state power over native peoples—Americans watched Indians driving Mexicans backward, and this observation inspired ambitions and tactics for continental expansion. Mexicans living through the conflicts could not afford the same creative detachment, but they too came to gaze through Indians rather than at them. Mexicans saw Americans standing behind *los indios bárbaros*, employing them as proxies in a plan to seize Mexico's territory. In other words, Americans and Mexicans both used Indians to conceive of and talk about each other, synthesizing the actions of Comanches, Apaches, Navajos, and others into narratives of the nation-state. Conversations about Indian raiders conditioned Mexican responses to the U.S. invasion, informed American expectations, war plans, and occupation strategy, and figured prominently in the debate over how much land Mexico should have to surrender in defeat.

Thus U.S. expansion into Mexican territory should be viewed not as the culmination of one story, but rather as the collision of two. The more familiar tale about competition between a thriving and a faltering republic intersected in neglected but decisive ways with a story—or, more precisely, multiple stories—about independent Indian peoples pursuing their own interests at the margins of state power. Such a reinterpretation is long overdue, because Indians remain all but invisible in the narrative of the U.S.-Mexican War and its economic, military, and ideological context. This is not for lack of sources. Reports and commentaries on Indian raiders are common in American sources from the time, widespread in Mexico City's publications, and ubiquitous in northern Mexico's newspapers and official correspondence.[3] Ralph Adam Smith and Isidro Vizcaya Canales long ago tapped into this material to give scholars on both sides of the border glimpses into the devastation suffered

[2] I use the terms "autonomous" and "independent" to distinguish Comanches, Kiowas, Apaches, and Navajos from the large majority of indigenous peoples in North America, those in Mexico who by the nineteenth century had long since come under some kind of subordination by nonnative political authorities. Following independence, Mexican officials also came into conflict with semi-autonomous peoples such as the Yaquis and Mayos of northwestern Mexico, but such "rebellions" stood outside of the discourses that are central to my analysis. See Evelyn Hu-DeHart, *Yaqui Resistance and Survival: The Struggle for Land and Autonomy, 1821–1910* (Madison, Wis., 1984), 18–65; Cynthia Radding, *Wandering Peoples: Colonialism, Ethnic Spaces, and Ecological Frontiers in Northwestern Mexico, 1700–1850* (Durham, N.C., 1997), 288–301.

[3] Newspapers are especially valuable sources from this period of northern Mexico's history, because when military and civilian officials corresponded about Indians, editors usually published the letters in their entirety rather than summarize their contents. For this reason, it is possible to recover in some detail Mexican interactions with Indians in any given state by working with the state's official newspaper.

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.18 - The Wider World of the Handsome Man: Southern Plains Indians Invade Mexico, 1830-1848

Brian DeLay

ARTICLE	The Wider World of the Handsome Man: Southern Plains Indians Invade Mexico, 1830-1848
JOURNAL	Journal of the Early Republic 27, no. 1 (2007)
EXCERPT	Original journal pages 83-84
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The Wider World of the Handsome Man

Southern Plains Indians Invade Mexico, 1830–1848

BRIAN DELAY

Fanny Calderón de la Barca loved a good story, and in 1841 people in Mexico City were telling stories about Comanches. Early in the year, the wife of the Spanish minister would have heard astonishing reports about an army of the Indians attacking Coahuila's state capital, Saltillo, and its surrounding towns, stealing sixteen hundred horses, taking two dozen captives, and killing one hundred and two Mexicans, including a former governor. Mexico City's press ran hundreds of stories on the north's *indios bárbaros* in 1841, and anyone claiming to have knowledge of them found an eager audience. Calderón met a colonel who thrilled her and her companions with "an account of his warfare against the Comanches, in which service he has been terribly wounded." The colonel considered them "an exceedingly handsome, fine-looking race," with remarkable resources in both trade and war. Calderón learned more from an old soldier covered in wounds from Santa Anna's ill-fated Texas campaign. The veteran evinced a "devout horror" of Comanches, and stated "his firm conviction that we should see [them] on the streets of Mexico [City] one of these days."[1]

Brian DeLay is an assistant professor of history at the University of Colorado, Boulder. He thanks Diliana Angelova and the *JER*'s anonymous readers for helpful comments. He wrote this article as a fellow at the Clements Center for Southwest Studies at Southern Methodist University, and gratefully acknowledges his debts—financial, intellectual, and otherwise—to the center, its fellows, faculty, and staff.

1. Howard T. Fisher and Marion Hall, eds., *Life in Mexico: The Letters of Fanny Calderón de la Barca* (New York, 1966), 552, 509. For the hacienda, see Víctor Orozco Orozco, *Las guerras indias en la historia de Chihuahua: Primeras fases* (Mexico City, 1992), 153. For Saltillo, see "Estado que manifiesta las vic-

Journal of the Early Republic, 27 (Spring 2007)
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Thanks to a surge in scholarship during the past fifteen years, we now have a sophisticated picture of the people who so transfixed the scarred soldier's "gaping audience." This recent work has enriched our understanding of Comanche ethnogenesis, economic activity, diplomacy, kinship, spirituality and ritual, gender relations and labor, honor, territorial expansion, captive-taking, hunting and pastoralism, and politics. But Comanche specialists have been curiously disinterested in what their subjects did below the Rio Grande. Though the recent work often acknowledges that Comanches and their allies increasingly seized horses and captives from Mexican settlements in the 1830s and 1840s, plains scholars have not examined these activities through the source material in present-day Mexico. Partly this reflects a more general tendency to read the modern border backward into history. It is also the case that the extraordinarily violent raiding campaigns of these decades fit poorly with the dominant themes in prereservation American Indian historiography—resistance to colonialism and, more recently, hybridity, interdependence, and mutual accommodation.[2]

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timas sacrificados por los bárbaros . . . ," Saltillo, Feb. 6, 1841, C 86, E13, 1f, Presidencia Municipal, Archivo municipal de Saltillo, Saltillo, Coahuila. For press reports, see Antonio Escobar Ohmstede and Teresa Rojas Rabiela, eds., *La presencia del indígena en la prensa capitalina del siglo XIX* (Mexico City, 1992), cuadros 1 and 2.

2. Most of this new work is cited below. See also William C. Meadows, *Kiowa, Apache, and Comanche Military Societies: Enduring Veterans, 1800 to the Present* (Austin, TX, 1999); Juliana Barr, "The 'Seductions' of Texas: The Political Language of Gender in the Conquests of Texas, 1690–1803" (Ph.D. diss., University of Wisconsin, 1999); Daniel J. Gelo, "'Comanche Land and Ever Has Been': A Native Geography of the Nineteenth-Century Comanchería," *Southwestern Historical Quarterly* 103 (Oct. 2000), 274–307; Gerald Betty, *Comanche Society: Before the Reservation* (College Station, TX, 2002); Martha McCollough, *Three Nations, One Place: A Comparative Ethnohistory of Social Change Among the Comanches and Hasinais During Spain's Colonial Era, 1689–1821* (New York, 2004). Ralph Adam Smith and Isidro Vizcaya Canales long ago alerted scholars to the scope and violence of Comanche raiding in northern Mexico. See Ralph A. Smith, "The Comanche Invasion of Mexico in the Fall of 1845," *West Texas Historical Association Year Book* 35 (1959), 3–28; "The Comanche Bridge Between Oklahoma and Mexico, 1843–1844," *Chronicles of Oklahoma* 39 (Spring 1961), 54–69; "Indians in American-Mexican Relations before the War of 1846," *Hispanic American Historical Review* 43 (Feb. 1963), 34–64; Isidro Vizcaya Canales, ed., *La invasión de los indios bárbaros al noreste de México en los años de 1840 y 1841* (Monterrey, 1968).

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.19 - Who Won the Secession Election in Louisiana?

Charles B. Dew

ARTICLE	Who Won the Secession Election in Louisiana?
JOURNAL	The Journal of Southern History 36, no. 1 (1970)
EXCERPT	Original journal pages 18-19
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Who Won the Secession Election in Louisiana?

By Charles B. Dew

Of all the states in the lower South, Louisiana seemed the most firmly attached to the Union in 1860. New Orleans, the South's largest and most cosmopolitan city, had strong commercial ties with the upper Mississippi Valley, and her shipping and financial activities were closely associated with the major eastern ports, New York in particular. In addition, the city's business elite had a large and prominent northern-born element, and many of these influential businessmen were, at best, lukewarm to the secessionist cause.[1] New Orleans' sizable immigrant population also displayed a notable lack of enthusiasm for secession during the 1850s. In the opinion of Senator John Slidell, the master manipulator of the state Democratic organization, the Irish and the Germans in the Crescent City were "at heart abolitionists."[2]

The radical cause had much more support in rural areas of the state, but even here the dissidents were numerous. Secessionist sentiment ran strongest in the cotton parishes along the Mississippi and Red rivers, districts characterized by large plantations and a heavy concentration of slaves. In the Delta parishes of southern Louisiana, however, the protective federal tariff on sugar tempered enthusiasm for secession, and the yeomen farmers in the northern part of the state, like their counterparts elsewhere in the southern hill country, also showed a strong strain of Unionism.[3] In October 1860 when Governor William H. Gist of South Carolina requested information on what course Louisiana would take if

[1] Robert C. Reinders, *End of an Era: New Orleans, 1850–1860* (New Orleans, 1964), 36–44; William W. Chenault and Robert C. Reinders, "The Northern-born Community of New Orleans in the 1850s," *Journal of American History*, LI (September 1964), 237–39, 245–46.

[2] Quoted in James K. Greer, "Louisiana Politics, 1845–1861," *Louisiana Historical Quarterly*, XIII (October 1930), 624; see also Earl F. Niehaus, *The Irish in New Orleans, 1800–1860* (Baton Rouge, 1965), 157.

[3] Roger W. Shugg, *Origins of Class Struggle in Louisiana: A Social History of White Farmers and Laborers During Slavery and After, 1840–1875* (University, La., 1939), 157–58, 160–61; J. Carlyle Sitterson, *Sugar Country: The Cane Sugar Industry in the South, 1753–1950* ([Lexington, Ky.], 1953), 177–78.

Mr. Dew is associate professor of history at the University of Missouri at Columbia.

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Lincoln were elected, Governor Thomas O. Moore replied in terms that reflected the state's decidedly mixed feelings on secession. Even if the Republicans won in November, "I shall not advise the secession of my state," Moore wrote, "& I will add that I do not think the people of Louisiana will ultimately decide in favor of that course."[4]

Less than three months after Governor Moore made his prediction, the people of Louisiana voted in a statewide election to leave the Union. Or so it appeared. The election held on January 7, 1861, for delegates to a state convention apparently resulted in a victory for the Secessionist forces, since a majority of the winning candidates were pledged to support the state's unconditional withdrawal from the Union. But doubts about the secession election have persisted, in part because of the previous strength of Unionism in the state but primarily because the official election returns were not made public either at that time or subsequently. Not only have we lacked proof that the Secessionists really won a majority of the popular vote and, if they did win, what their margin of victory was; we have not even known the names of all the candidates.[5] The recent discovery of the manuscript returns of this crucial election makes it possible to answer these questions and settle the long-standing controversy over the only referendum ever held in Louisiana on the question of secession. The actual count in the January 7 election is published here for the first time.

Louisiana took her first formal steps toward disunion shortly after Lincoln's victory. On November 19, 1860, Governor Moore, apparently under the influence of his political patron, John Slidell, abruptly reversed his earlier stand and issued a call for a special legislative session to consider the critical situation then facing the state.[6] When the legislators met in Baton Rouge on December

[4] Moore to Gist, October 26, 1860, in Records of the Louisiana State Government, 1850–88, National Archives Microfilm Publications, M-359, Roll 4. This is a portion of the War Department Collection of Confederate Records returned to the states in 1961. It was formerly a part of Record Group 109 in the National Archives.

[5] For a complete list of the candidates, the vote each received, and, when known, their position on the secession issue, see Charles B. Dew, "The Long Lost Returns: The Candidates and Their Totals in Louisiana's Secession Election," *Louisiana History*, X (Fall 1969), 353–69.

[6] Shugg, *Origins of Class Struggle*, 161; Allan Nevins, *The Emergence of Lincoln* (2 vols., New York, 1950), II, 420–21; Gary Earl Sanders, "The Election to the Secession Convention in Louisiana" (unpublished M.A. thesis, Louisiana State University, 1968), 26. Shugg calls Moore a "puppet" of Slidell, and Nevins refers to Moore as Slidell's "creature."

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.20 - Conspiracy or Popular Movement: The Historiography of Southern Support for Secession

William J. Donnelly

ARTICLE	Conspiracy or Popular Movement: The Historiography of Southern Support for Secession
JOURNAL	The North Carolina Historical Review 42, no. 1 (1965)
EXCERPT	Original journal pages 70-71
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CONSPIRACY OR POPULAR MOVEMENT: THE HISTORIOGRAPHY OF SOUTHERN SUPPORT FOR SECESSION

By William J. Donnelly *

On December 20, 1860, South Carolina seceded. By January 8, 1861, the Gulf States returned secessionist majorities to their state conventions, and by the end of the month Mississippi, Alabama, Florida, Georgia, Louisiana, and Texas followed South Carolina's example and "resumed" their sovereignty. After the fall of Fort Sumter and Lincoln's call for troops, the seceding Border States, Arkansas, Virginia, Tennessee, and North Carolina, joined the Lower South and completed secession.[1]

Though American historians agreed on the facts of secession, they often differed over its nature and causes. Some stressed the long-term sectional conflict, others the immediate events of withdrawal, as the cause of the South's seceding. Some stressed southern grievances, others blamed Republican victory and intransigence. And whether the South was justified or unwise, whether secession and war were inevitable or repressible, and whether northerners and southerners of the 1860's had conspired or blundered or merely defended their rights influenced historians' views of the Civil War and affected their assessment of secession.

In describing secession, succeeding generations of historians gave differing interpretations of southern support for the movement. To some, conspirators hastily voted the South out of the Union. To others, "the people" worked their will. Most, however, abandoned the exclusive categories of conspiracy and popular movement, gave a

* Mr. Donnelly is Instructor in American History, Saint Paul's College, Lawrenceville, Virginia.

[1] Avery O. Craven, *The Growth of Southern Nationalism, 1848-1861* (Baton Rouge: Louisiana State University Press, 1953), 362, 365, 367-369, 372, 375, hereinafter cited as Craven, *Southern Nationalism*; William B. Hesseltine and David L. Smiley, *The South in American History* (Englewood Cliffs, New Jersey: Prentice-Hall, Inc., 1960), 273, hereinafter cited as Hesseltine and Smiley, *The South*; Dwight L. Dumond (ed.), *Southern Editorials on Secession* (New York: The Macmillan Company, 1931), xx, hereinafter cited as Dumond, *Southern Editorials*.

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more sophisticated interpretation of secession, yet still questioned whether or not southerners wanted to secede.

"The present secession movement," Stephen A. Douglas told a large crowd in Chicago in 1861, "is the result of an enormous conspiracy formed . . . by leaders in the Southern Confederacy more than twelve months ago." Abraham Lincoln agreed. Before a special session of Congress of July 4, 1861, Lincoln blamed the war on "seceder politicians" and absolved most southerners from complicity in secession. George Bancroft, at the time more a partisan than a scholar, also viewed secession as a conspiracy. In a letter to a British friend, he emphasized southern unionism, claiming that plotting politicians, not the people, disrupted the Union to erect a "slave empire." [2]

During and immediately after the war, Union sympathizers further elaborated the conspiracy theory. Popular writers and politicians, condemning rather than explaining secession, used their histories to assign personal guilt for rebellion and war. But despite their agreement on the nature of secession, they disagreed on the motives for it. Elliot G. Storke, for example, said the South seceded to protect slavery. William G. Brownlow and Joel T. Headly thought slavery a sham issue and said that the loss of political power and patronage drove the South to secession.[3]

All, however, felt that the majority of southerners were loyal and law-abiding. Disaffected politicians put secession over on the South. They had not acted rashly, for they followed a long-planned and well executed plot. And according to "Parson" Brownlow, one of the "faithful among the faithless" of Tennessee, they enacted "the most wicked, diabolical, and infernal scheme ever set on foot for the ruin of any country." [4]

Henry Wilson, James G. Blaine, and John A. Logan, who in their

[2] *New York Daily Tribune*, June 13, 1861; John G. Nicolay and John M. Hay (eds.), *The Complete Works of Abraham Lincoln* (New York: F. D. Tandy Company, 12 volumes, 1905), VI, 297-325; George Bancroft to Dean Milman, August 15, 1861, in Mark A. DeWolfe Howe, *The Life and Letters of George Bancroft* (New York: Charles Scribner's Sons, 2 volumes, 1908), II, 133-143; all as cited in Thomas J. Pressly, *Americans Interpret Their Civil War* (Princeton, New Jersey: Princeton University Press, 1954), 5, 8-10, hereinafter cited as Pressly, *Civil War*.

[3] Elliot G. Storke, *A Complete History of the Great American Rebellion* (Auburn, New York: The Auburn Publishing Company, 2 volumes, 1863), I, 23-24, hereinafter cited as Storke, *Great American Rebellion*; William G. Brownlow, *Sketches of the Rise, Progress and Decline of Secession* (Philadelphia, Pennsylvania: George W. Childs, 1862), 116-117, hereinafter cited as Brownlow, *Secession;* Joel T. Headley, *The Great Rebellion: A History of the Civil War in the United States* (Hartford, Connecticut: American Publishing Company, 2 volumes bound in 1, 1866-1867), I, 11, hereinafter cited as Headley, *The Great Rebellion.*

[4] Pressly, *Civil War*, 18; Storke, *Great American Rebellion*, I, 143-144; Headley, *The Great Rebellion*, I, 37-38; Brownlow, *Secession*, 6, 92-93, 158-159.

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Donnelly, William J. "Conspiracy or Popular Movement: The Historiography of Southern Support for Secession." *The North Carolina Historical Review* 42, no. 1 (1965): 70–84. https://www.jstor.org/stable/23517812.

Footnote citation

William J. Donnelly, "Conspiracy or Popular Movement: The Historiography of Southern Support for Secession," *The North Carolina Historical Review* 42, no. 1 (1965): 70–71, https://www.jstor.org/stable/23517812.

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.21 - The Oregon Trail in the Columbia Gorge, 1843-1855: The Final Ordeal

G. Thomas Edwards

ARTICLE	The Oregon Trail in the Columbia Gorge, 1843-1855: The Final Ordeal
JOURNAL	Oregon Historical Quarterly 97, no. 2 (1996)
EXCERPT	Original journal pages 134-135
JSTOR	https://www.jstor.org/stable/20614728

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The Oregon Trail in the Columbia Gorge, 1843–1855: The Final Ordeal

By G. Thomas Edwards

This illustration, taken from Frances Fuller Victor's *The River of the West*, depicts the "final ordeal" tragedy of the Applegate overland party of 1843, in which three persons were drowned when a canoe struck a rock and overturned in the Columbia River rapids. (OHS neg. OrHi 93898)

TOM EDWARDS *here compiles some colorful testimony about a lesser-known part of the Oregon Trail experience.*

THE OREGON TRAIL undeniably holds a vivid place in the popular imagination. The one-hundred-fiftieth anniversary of the overland immigration of 1843 (called the Great Migration) has prompted reenactments of trail travel, community celebrations, tourism (to the Oregon Trail Regional Museum in Baker City, in particular), and a considerable body of writing. However, little attention so far has

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been paid to what was, for many overlanders, the "final ordeal" of their journey.

Historian John D. Unruh's authoritative account of the overland migration, *The Plains Across*, includes only a brief treatment of this "final" portion of the Oregon Trail (between The Dalles, on the Columbia River, and the Willamette Valley). Nonetheless, we can estimate from Unruh's data that between 1843 and 1855 as many as 22,000 overlanders navigated the treacherous hundred-mile route through the Columbia Gorge.[1] Moreover, a research of the trail literature pertaining specifically to the gorge route supports Unruh's assertion that this portion of the "trip . . . was rarely accomplished without some loss of possessions, if not of life."[2] While diaries, journals, and reminiscences show that travelers dismissed their fear of Indians once they reached The Dalles (and henceforth could forgo the irksome chore of nighttime guard duty), boating the powerful river created a whole new set of challenges: among them, nighttime voyages through driving rainstorms, precarious cattle trails along canyon walls, heavily forested portage trails, and encounters with grasping speculators.

The undammed Columbia River and the Cascade Mountains made heavy demands on the weary overlanders.

When Lewis and Clark followed the exacting route through the Columbia Gorge in 1805 and 1806, they were exasperated by Indian thievery; a decade later North West Company fur trappers still battled some of these same river tribes. By the 1840s and 1850s, however, families traveling the gorge rarely complained about the Native inhabitants. Decimated by disease and now dominated by the Hudson's Bay Company (HBC), these small tribes were no longer a menace. In fact, they were frequently anxious to assist overlanders by supplying them with fish, by canoeing them, and by swimming their animals across streams. One traveler, who spoke for many, judged that he experienced "more danger from speculators, ferrymen and traders than from Indians."[3] Another exasperated writer agreed, calling the Indians peaceable and the sharpsters "a constant drain on your purse."[4]

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.22 - Women and Their Families on the Overland Trail to California and Oregon, 1842-1867

Johnny Faragher and Christine Stansell

ARTICLE	Women and Their Families on the Overland Trail to California and Oregon, 1842-1867
JOURNAL	Feminist Studies 2, no. 2/3 (1975)
EXCERPT	Original journal pages 150-151
JSTOR	https://www.jstor.org/stable/3177779

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WOMEN AND THEIR FAMILIES ON THE OVERLAND TRAIL TO CALIFORNIA AND OREGON, 1842-1867

Johnny Faragher and Christine Stansell

I am not a wheatfield
nor the virgin forest

I never chose this place
yet I am of it now

—Adrienne Rich
"From an Old House in America"

From 1841 until 1867, the year in which the transcontinental railroad was completed, nearly 350,000 North Americans emigrated to the Pacific coast along the western wagon road known variously as the Oregon, the California, or simply the Overland Trail. This migration was essentially a family phenomenon. Although single men constituted the majority of the party which pioneered large-scale emigration on the Overland Trail in 1841, significant numbers of women and children were already present in the wagon trains of the next season. Families made up the preponderant proportion of the migrations throughout the 1840s. In 1849, during the overwhelmingly male Gold Rush, the number dropped precipitously, but after 1851 families once again assumed dominance in the overland migration.[1] The contention that "the family was the one substantial social institution" on the frontier is too sweeping, yet it is underniable that the white family largely mediated the incorporation of the western territories into the American nation.[2]

The emigrating families were a heterogeneous lot. Some came from farms in the midwest and upper South, many from small midwestern towns, and others from northeastern and midwestern cities. Clerks and shopkeepers as well as farmers outfitted their wagons in Independence, St. Louis, or Westport Landing on the Missouri. Since costs for supplies, travel, and settlement were not negligible,[3] few of the very poor were present, nor were the exceptionally prosperous. The dreams of fortune which lured the wagon trains into new lands were those of modest men whose hopes were pinned to small farms or larger dry-goods stores, more fertile soil or more customers, better market prospects and a steadily expanding economy.

For every member of the family, the trip West was exhausting, toilsome, and often grueling. Each year in late spring, westbound emigrants gathered for the

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journey at spots along the Missouri River and moved out in parties of ten to several hundred wagons. Aggregates of nuclear families, loosely attached by kinship or friendship, traveled together or joined an even larger caravan.[4] Coast-bound families traveled by ox-drawn wagons at the frustratingly slow pace of fifteen to twenty miles per day. They worked their way up the Platte River valley through what is now Kansas and Nebraska, crossing the Rockies at South Pass in southwestern Wyoming by mid-summer. The Platte route was relatively easy going, but from present-day Idaho, where the roads to California and Oregon diverged, to their final destinations, the pioneers faced disastrous conditions: scorching deserts, boggy salt flats, and rugged mountains. By this time, families had been on the road some three months and were only at the midpoint of the journey; the environment, along with the wear of the road, made the last months difficult almost beyond endurance. Finally, in late fall or early winter the pioneers straggled into their promised lands, after six months and over two thousand miles of hardship.[5]

As this journey progressed, bare necessity became the determinant of most of each day's activities. The primary task of surviving and getting to the coast gradually suspended accustomed patterns of dividing work between women and men. All able-bodied adults worked all day in one way or another to keep the family moving. Women's work was no less indispensable than men's; indeed, as the summer wore on, the boundaries dividing the work of the sexes were threatened, blurred, and transgressed.

The vicissitudes of the trail opened new possibilities for expanded work roles for women, and in the cooperative work of the family there existed a basis for a vigorous struggle for female-male equality. But most women did not see the experience in this way. They viewed it as a male enterprise from its very inception. Women experienced the breakdown of the sexual division of labor as a dissolution of their own autonomous "sphere." Bereft of the footing which this independent base gave them, they lacked a cultural rationale for the work they did, and remained estranged from the possibilities of the enlarged scope and power of family life on the trail. Instead, women fought *against* the forces of necessity to hold together the few fragments of female subculture left to them. We have been bequeathed a remarkable record of this struggle in the diaries, journals, and memoirs of emigrating women. In this study, we will examine a particular habit of living, or culture, in conflict with the new material circumstances of the Trail, and the efforts of women to maintain a place, a sphere of their own.

The overland family was not a homogeneous unit, its members imbued with identical aspirations and desires. On the contrary, the period of westward movement was also one of multiplying schisms within those families whose location and social status placed them in the mainstream of national culture.[6] Child-rearing tracts, housekeeping manuals, and etiquette books by the hundreds proscribed and rationalized to these Americans a radical separation of the work responsibilities and social duties of mothers and fathers; popular thought assigned unique personality

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.23 - Commerce and Conquest in Early American Foreign Relations, 1750–1850

Paul A. Gilje

ARTICLE	Commerce and Conquest in Early American Foreign Relations, 1750–1850
JOURNAL	Journal of the Early Republic 37, no. 4 (2017)
EXCERPT	Original journal pages 735-736
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Commerce and Conquest in Early American Foreign Relations, 1750–1850

PAUL A. GILJE

Early American foreign relations revolved around commerce. Most books on American diplomatic history begin with the premise that the United States inevitably occupied a continent. When we think about foreign relations, therefore, we all too often think about conquest. Consider two recent and crucial studies. Peter Onuf's sophisticated analysis of Jefferson's ideas on nationhood assumes that the Sage of Monticello believed that the United States would march across the continent to form an empire of liberty. Eliga Gould shares this perspective and argues that as early as 1776 Americans planned on replacing the British empire with a continental nation of their own that would allow the United States to be an equal among the powers of the earth. Although scholars like Onuf and Gould emphasize an early vision of an inevitable expansion, they also acknowledge the importance of commerce. Onuf discusses Jefferson's interest in commerce as a "beneficent, harmonizing, and civilizing" force and contends that the faith in free trade would enable a commercial expansion that would lead to "the proliferation of Jefferson's freeholding farmers." Gould recognizes that international trade agreements contributed to making the United States treaty worthy.[1]

Paul A. Gilje is George Lynn Cross Research Professor of History at the University of Oklahoma. His most recent books are *To Swear Like a Sailor: Maritime Culture in America, 1750–1850* (New York, 2016) and *Free Trade and Sailors' Rights in the War of 1812* (New York, 2013).

1. Bradford Perkins, *The Cambridge History of American Foreign Relations, Volume 1: The Creation of a Republican Empire, 1776–1865* (Cambridge, UK, 1993); Walter Nugent, *Habits of Empire: A History of American Expansion* (New York, 2008); William Earl Weeks, *The New Cambridge History of American Foreign Relations, Volume I: Dimensions of the Early American Empire, 1754–1865*

Journal of the Early Republic, 37 (Winter 2017)
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Acknowledging commerce, however, is not the same thing as placing it at the crux of analysis. This essay seeks to alter our understanding of the relative importance of commerce and expansion in early America by relating the story of American foreign policy for over a century moving into and out of the Revolution. Although one essay cannot provide a complete history of early American foreign policy, it can direct our attention to key trends and points of transition.

Tracing this narrative of the role of commerce in American diplomacy reveals both continuity and change. Commerce remained the focus of foreign relations during the colonial period, the experience of the American Revolution, and the early years of the American republic. Revolutionaries seized upon the ideals of the Enlightenment to decry the restricted trade practices of mercantilism dictated by the British empire and asserted a policy of free trade reflective of the Age of Reason. Conquest and expansion remained secondary to interest in commerce in the 1780s, 1790s, and early 1800s. Indeed, the first serious steps toward American expansion—the Mississippi River boundary of the Treaty of

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(Cambridge, UK, 2013). For other traditional examples of the emphasis on expansion, see Bradford Perkins, "Interests, Values, and the Prism: The Sources of American Foreign Policy," *Journal of the Early Republic* 14 (Winter 1994), 458–66; Francis D. Cogliano, *Emperor of Liberty: Thomas Jefferson's Foreign Policy* (New Haven, CT, 2014); James D. Drake, *The Nation's Nature: How Continental Presumptions Gave Rise to the United States of America* (Charlottesville, VA, 2011); Richard Kluger, *Seizing Destiny: How America Grew from Sea to Shining Sea* (New York, 2007); Bethel Saler, "An Empire of Liberty, a State of Empire: The U. S. National State before and after the Revolution of 1800," in *The Revolution of 1800: Democracy, Race, and the New Republic*, ed. James Horn et al. (Charlottesville, VA, 2002), 360–82. For a different approach to Jefferson's empire of liberty, see Julian P. Boyd, "Thomas Jefferson's Empire of Liberty," *Virginia Quarterly Review* 24, no. 4 (1948), 538–54; and Paul A. Gilje, *Free Trade and Sailors' Rights in the War of 1812* (New York, 2013), 127–36; Lawrence S. Kaplan, *Colonies into Nation: American Diplomacy, 1763–1801* (New York, 1972); Robert W. Tucker and David C. Hendrickson, *Empire of Liberty: The Statecraft of Thomas Jefferson* (New York, 1990). Peter S. Onuf, *Jefferson's Empire: The Language of American Nationhood* (Charlottesville, VA, 2000), quotations at 68, 71; Onuf, "The Empire of Liberty: Land of the Free and Home of the Slave," in *The World of the Revolutionary American Republic: Land, Labor, and the Conflict for a Continent*, ed. Andrew Shankman (New York, 2014), 195–217; Eliga H. Gould, *Among the Powers of the Earth: The American Revolution and the Making of a New World Empire* (Cambridge, MA, 2012).

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.24 - A Brush with Mexico

Piero Gleijeses

ARTICLE	A Brush with Mexico
JOURNAL	Diplomatic History 29, no. 2 (2005)
EXCERPT	Original journal pages 223-224
JSTOR	https://www.jstor.org/stable/24914848

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PIERO GLEIJESES

A Brush with Mexico

On 13 May 1846—two days after President James Polk had informed Congress that Mexican troops had crossed the Rio Grande and that American blood had been shed on American soil—the Washington *National Intelligencer* published a letter from a Whig representative from Maine, Luther Severance: "It is . . . on Mexican soil that blood has been shed. The war has not been commenced by Mexico but by the President of the United States, without the authority of Congress and without any necessity."[1]

It is well known that Polk's war message provoked a fierce, albeit brief, debate in Congress and in the press. John M. Clayton (Whig-DE) spoke for many in the Senate when he said, "The whole conduct of the Executive . . . has been utterly unjustifiable. If the acts of the Executive do not amount to acts of war, they are acts which necessarily tended to provoke war, and to bring on war, and that without consulting Congress." And Garrett Davis (Whig-KY) spoke for many in the House when he concluded, "It is our own President who began this war. He has been carrying it on for months in a series of acts."[2]

Davis was right. Polk had been pursuing a belligerent policy toward Mexico since the fall of 1845, when Mexico had agreed to receive a U.S. envoy to discuss the annexation of Texas to the United States. But where were Severance, Clayton, Davis, and the other members of Congress who expressed such outrage in May during the preceding months? Did they voice their opposition while Polk carried out the "series of acts" that, in Clayton's words, "necessarily tended to provoke war"? And was this opposition echoed in the newspapers that harshly criticized Polk's war message after it was sent to Congress? Or were Polk's moves so stealthy that no one could see the drift to war?

Historians have discussed the expansionist mood of Manifest Destiny that held sway among Americans at the time; they have dissected Polk's policy toward Mexico; but they have consistently treated the debate that followed Polk's war message as the starting point in their discussion of opposition to the war.[3] Indeed, the most exhaustive discussion of the opposition in the months

1. Luther Severance, 12 May 1846. *National Intelligencer* (Washington, DC), 13 May 1846, 3.

2. John M. Clayton, *Congressional Globe*, 29th Cong., 1st sess., 11 May 1846, 786; Garrett Davis, 11 May 1846, ibid., 794.

3. The best discussions of Polk's Mexican policy are David Pletcher, *The Diplomacy of Annexation: Texas, Oregon, and the Mexican War* (Columbia, MO, 1973) and Charles Sellers,

Diplomatic History, Vol. 29, No. 2 (April 2005). © 2005 The Society for Historians of American Foreign Relations (SHAFR). Published by Blackwell Publishing, Inc., 350 Main Street, Malden, MA, 02148, USA and 9600 Garsington Road, Oxford OX4 2DQ, UK.

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that preceded the conflict is provided in John Schroeder's excellent *Mr. Polk's War: American Opposition and Dissent, 1846–1848*, which notes merely that "Polk's Mexican activities were neglected by politicians of both parties as the nation drifted toward war." A few Whig and Democratic leaders "were disturbed by the situation along the border, but chose to remain silent."[4]

Why did they remain silent? In the months that preceded the war, Polk's key moves toward Mexico were relatively transparent. He sent a minister to negotiate with Mexico and by early 1846 it was public knowledge that the mission was stalemated; he ordered General Zachary Taylor's army to the Rio Grande and by early March his order was public knowledge. The drift to war was like a slow-motion fall.

Why, then, were Polk's activities "neglected" by those politicians and newspapers editors who later opposed the war? Was it because they were preoccupied with the danger of war with England over Oregon? Was it because they thought victory over Mexico would be easy? Did they feel no moral outrage over the prospect of a war of aggression against a weak neighbor? And did they not have even a hint of anxiety that war with Mexico could deepen the sectional conflict?

An examination of the domestic debate in the months that led to war sheds light on Polk's freedom of maneuver as he developed his policy toward Mexico. It also clarifies the United States' responsibility for the war. A narrow focus—on the brouhaha that followed Polk's 11 May message—may be comforting. It indicates that Americans rose in moral outrage to protest the administration's violence against the weak neighbor—but it masks the larger issue: where was the opposition when it could have made a difference, before American blood had been shed "on American soil"?

This essay will focus on the debate in the American press and the U.S. Congress over relations with Mexico from the fall of 1845 until 11 May 1846. In order to provide the necessary context, I begin by describing the Mexican-American quarrel from its inception through the outbreak of hostilities. I conclude the essay with a reassessment of the responsibility for the war of the different protagonists: Polk, his critics at home, and Mexico.

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4. John Schroeder, *Mr. Polk's War: American Opposition and Dissent 1846–1848* (Madison, WI, 1973), 10.

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.25 - American Interest in California, 1845

Norman A. Graebner

ARTICLE	American Interest in California, 1845
JOURNAL	Pacific Historical Review 22, no. 1 (1953)
EXCERPT	Original journal pages 13-14
JSTOR	https://www.jstor.org/stable/4491984

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American Interest in California, 1845

NORMAN A. GRAEBNER

[Norman A. Graebner is associate professor of history in Iowa State College. This year he is a visiting member of the history department at Stanford.]

GEORGE BANCROFT, James K. Polk's first secretary of the navy, wrote forty years after the startling events of the 'forties that the youthful Tennesseean entered the presidency with four great ambitions, not the least of which was the acquisition of California.[1] The subsequent history of his administration seems to substantiate this view. If this statement of Polk's purposes is true, however, the new President was somewhat ahead of public opinion on March 4, 1845. It is apparent that geographical predestination alone had convinced numerous British and American writers that the United States would one day reach the Pacific, and some regarded the prospect with considerable pleasure.[2] For a decade American officials had viewed California with interest and at least two administrations had even sought to purchase the region.[3] California, however, was no issue in the campaign of 1844, and one finds in the newspapers little more than the barest mention of it prior to Polk's inauguration.[4] In all the distant portions of the Western Hemisphere to which American expansionists hoped to extend the "area of freedom," this Mexican province had not been singled out as an immediate objective by politicians or editorial writers.

For some time prior to Polk's inauguration, American expansionism had pointed primarily toward Texas. Since the 1820's settlers by the thousands had gone across the boundary into that province. Annexation was a major issue in the campaign of 1844 and was one of the factors that swept Polk into office. Under the compulsion of Democratic oratory and newspaper editorials expansionism became fused with a "spiritual exaltation" (which E. D. Adams once attributed to America's conviction of the perfection of her institutions) to produce a new emotion called Manifest

[1] James Schouler, *History of the United States of America Under the Constitution* (New York, 1894), IV, 498.

[2] Dan Elbert Clark, "Manifest Destiny and the Pacific," *Pacific Historical Review*, I (1932), 2–7.

[3] Both the Jackson and Tyler administrations attempted to purchase California. For a brief account of these efforts see Justin H. Smith, *The War with Mexico* (New York, 1919), I, 324.

[4] This conclusion is based on a wide examination of the important newspapers and manuscripts for the period in the Library of Congress, the New York Public Library, and the University of Chicago Library.

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Destiny.[5] Three days before President Tyler transferred his duties to his successor he signed the famed Joint Resolution which invited Texas to join the Union. This annexation, however, by no means satiated the American appetite for land.

Texas annexation pointed the way toward new acquisitions in the Southwest by destroying quite effectively the respect which many citizens of the United States still held for Mexico's territorial integrity. "The Rio Grande has no more efficacy as a permanent barrier against the extension of Anglo-Saxon power than the Sabine possessed," predicted the Baltimore *American* in March, 1845. In the course of the Texas debate James E. Belser of Alabama had declared that it was useless to talk of limiting the "area of freedom—the area of the Anglo-Saxon race." The course of America was westward. In another half century, he cried, one would "hear the song of the American reaper on the shores of the Pacific."[6] By the spring of 1845 the dream of a continental, ocean-bound republic stimulated the nation's emotions. "The flight of the eagle is toward the west, and there it is he spreads his wings for freedom," ran an observation of the New York *Herald*.[7] The same popular feelings which carried Texas annexation, voiced the editors, would soon bring California into the Union.

Although this sudden interest in California was buttressed by the logic of geography, it was quickly expanded into crusading proportions by several more tangible factors. First among these was the widespread realization that the ineptness of Mexican rule was rapidly casting California adrift. In 1842 the Mexican government had dispatched an army to reëstablish its control over the province. For two years the revolutionary tendencies remained quiescent.[8] Then early in 1845 the American press reported that General Manuel Micheltorena's troops had met defeat at the hands of the Californians. The ease with which this Mexican officer was defeated spoke volumes. Contrasted with other revolutionary movements, noted the New York *Herald*, this was a "ludicrous affair." In the final "desperate conflict" the slain and wounded amounted to six horses; yet the action had been conclusive enough to prompt the general

[5] Ephraim D. Adams, *The Power of Ideals in American History* (New Haven, 1913), 93.

[6] *Cong. Globe*, 28th Cong., 2d sess., 88.

[7] New York *Herald*, July 2, 1845; St. Louis *Missouri Reporter*, May 31, 1845; New York *Journal of Commerce*, March 5, 1845. Said John Wentworth of the Chicago *Democrat* in March, 1845, "The United States must possess California." See William E. Dodd, "The West and the War with Mexico," *Journal of the Illinois State Historical Society*, V (1912), 163.

[8] Robert Glass Cleland, *A History of California: The American Period* (New York, 1922), 156–157.

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.26 - Lessons of the Mexican War

Norman A. Graebner

ARTICLE	Lessons of the Mexican War
JOURNAL	Pacific Historical Review 47, no. 3 (1978)
EXCERPT	Original journal pages 325-326
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Lessons of the Mexican War

Norman A. Graebner

The author is Stettinius Professor of Modern American History in the University of Virginia.

FOR A NATION SURFEITED with victory and tired of its war with Mexico, the prospects of peace appeared immediate and bright in the early fall of 1847. During the previous year, the two invading American armies under Zachary Taylor and Winfield Scott had swept the Mexican forces before them. Scott's troops, having fought their way from Vera Cruz to Puebla, had entered the Valley of Mexico. There, in August 1847, they won notable victories at Contreras and Churubusco. When the Mexicans offered no acceptable armistice, Scott ordered a reconnaissance of the defenses before Mexico City. Thereafter, the Americans quickly stormed the Mexican fortresses of Molino del Rey and Chapultepec. By early September, Scott's army stood poised before the Mexican capital itself. Still, American conservatives, such as Daniel Webster, had wondered throughout that year of unbroken military triumphs whether the United States could as easily translate these victories against Mexico into a satisfactory peace as it had earlier converted less satisfactory wars into highly acceptable treaties with Great Britain.[1]

At the outbreak of the war with Mexico in May 1846, President James K. Polk had anticipated not only a series of military successes but also an accompanying diplomacy with the

1 See Webster to D. Fletcher Webster, Aug. 6, 1846, in C. H. Van Tyne, ed., *The Letters of Daniel Webster* (New York, 1902), 343. For a similar warning that victory would not necessarily lead to a satisfactory peace, see *The Times* (London), Nov. 9, 1846.

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defeated enemy which would bring peace as well as his territorial war aims. Instead, he discovered to his chagrin that for the United States—a nation overwhelmingly powerful when contrasted to the enemy of the moment—military policy was far less demanding than diplomacy. Somehow the easy military victories of the United States did not assure a satisfactory conclusion of the war at all, for even in defeat the Mexican government balked at Polk's territorial demands.

Polk hesitated to desert the struggle until he had achieved some gains commensurate with the cost of the war. Yet Mexican officials continued to avoid a diplomatic confrontation. Clearly the administration was in trouble. As the conflict dragged on, the beleaguered President requested of Congress larger military appropriations to escalate the pressures on the ephemeral enemy that would not treat. Congress, it seemed, had no choice but to meet the President's demands. As one Whig writer complained, Congress "would never refuse to grant anything and everything necessary or proper for the support and succor of our brave troops, placed, without any fault of theirs, in the heart of a distant country, and struggling with every peril, discomfort and difficulty."[2]

As Polk searched for a way out of his dilemma, war critics—and they were legion—reminded the nation that the President and his advisers alone were responsible for the decisions that led to war and placed a modern army in a backward and politically chaotic country where it could no longer discover any significant strategic objectives. "The responsibility of the President and his administration in permitting the country to become involved in a war which could and should have been avoided," charged *The American Review,* official organ of the Whig opposition, "is fearfully great. Among a virtuous and wise people, this condemnation alone should be enough to overwhelm those who have been guilty of so great a crime. A civilized and Christian people engaged in an unnecessary war, in the middle of the nineteenth century, is a spectacle of backsliding and crime over which angels may weep." As the attack on the war mounted in intensity each succeeding week,

[2]"The Whigs and the War," *The American Review,* VI (Oct. 1847), 343.

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.27 - The Mexican War: A Study in Causation

Norman A. Graebner

ARTICLE	The Mexican War: A Study in Causation
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EXCERPT	Original journal pages 405-406
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The Mexican War: A Study in Causation

Norman A. Graebner

The author is Stettinius Professor of Modern American History in the University of Virginia.

On may 11, 1846, President James K. Polk presented his war message to Congress. After reviewing the skirmish between General Zachary Taylor's dragoons and a body of Mexican soldiers along the Rio Grande, the President asserted that Mexico "has passed the boundary of the United States, has invaded our territory and shed American blood upon the American soil. . . . [W]ar exists, and, notwithstanding all our efforts to avoid it, exists by act of Mexico. . . ." No country could have had a superior case for war. Democrats in large numbers (for it was largely a partisan matter) responded with the patriotic fervor which Polk expected of them. "Our government has permitted itself to be insulted long enough," wrote one Georgian. "The blood of her citizens has been spilt on her own soil. It appeals to us for vengeance." Still, some members of Congress, recalling more accurately than the President the circumstances of the conflict, soon rendered the Mexican War the most reviled in American history—at least until the Vietnam war of the 1960s. One outraged Whig termed the war "illegal, unrighteous, and damnable." Whigs questioned both Polk's honesty and his sense of geography. Congressman Joshua Giddings of Ohio accused the President of "planting the standard of the United States on foreign soil, and using the military forces of the United States to violate every principle of international law and of moral justice." To vote for the war, admitted Senator John C. Calhoun, was "to plunge a dagger into his own heart,

Pacific Historical Review

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and more so." Some critics in Congress openly wished the Mexicans well.

For well over a century such profound differences in perception have pervaded American writings on the Mexican War. Even in the past decade, historians have reached conclusions on the question of war guilt as disparate as those which separated Polk from his wartime conservative and abolitionist critics. Justin H. Smith's *The War with Mexico* stands at the core of the perennial debate. Few books of American history have such impressive scholarly credentials; the footnotes and bibliography alone seem worthy of the Pulitzer Prize which the book received in 1920. According to Smith, the war was "deliberately precipitated by the will and act of Mexico."[1] For the past half century every judgment of the Mexican War has begun with the acceptance or rejection of that verdict. Bernard DeVoto, in *The Year of Decision*, wondered how Smith could accept conclusions which denied the very facts he presented. "If there is a more consistently wrongheaded book in our history, or one which so freely cites facts in support of judgments which those facts controvert," wrote DeVoto, "I have not encountered it."[2] Similarly Glenn W. Price, in his *Origins of the War with Mexico*, concluded that "Smith's work, in all its argument that pertained to the origins of the War, was simply preposterous as history. . . ."[3] Yet as recently as 1971 Seymour V. Connor and Odie B. Faulk, in their *North America Divided: The Mexican War, 1846–1848*, while acknowledging that they did not follow Smith "slavishly," concluded that Smith's study "remains today a monument of historical scholarship."[4] Although nationalistic biases will color the judgments of those who study war, it seems strange that historical agreement on a subject as remote and as well documented as the Mexican War should be that elusive. President Polk's diary, published in 1910, remains the last major addition to the historic record on the origins of that war.

[1]Justin H. Smith, *The War with Mexico* (New York, 1919), I, 155.
[2]Bernard DeVoto, *The Year of Decision: 1846* (Boston, 1943), 510.
[3]Glenn W. Price, *Origins of the War with Mexico: The Polk-Stockton Intrigue* (Austin, Tex., 1967), 103.
[4]Seymour V. Connor and Odie B. Faulk, *North America Divided: The Mexican War 1846–1848* (New York, 1971), 192–193.

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.28 - 'The Cave of the Winds' and the Compromise of 1850

Holman Hamilton

ARTICLE	'The Cave of the Winds' and the Compromise of 1850
JOURNAL	The Journal of Southern History 23, no. 3 (1957)
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'The Cave of the Winds' and the Compromise of 1850

By HOLMAN HAMILTON

IF AEOLUS HAD FORSAKEN HIS CAVE OF THE WINDS TO VISIT Washington in late 1849, he would have felt thoroughly at home in the United States House of Representatives. Never before, in six decades under the Federal Constitution, had congressional chaos been more evident. Wordiness emanated from men who under normal conditions would have busied themselves with organization. For three hectic weeks the House could not organize because there was no Speaker on the dais, and none could be elected. House rules called for a majority decision, but there was no majority. And so, during most of December, orators tore passions to tatters and members voted ineffectually while the mere clerk of the previous session presided and sought a modicum of order. Often at night, when adjournment came, caucuses met in that same chamber—and southern, northern, western, and eastern partisan and factional storms continued as before. The House of December 1849 was truly a cave of political winds.

Capable men were members, people of past or future prominence. Horace Mann of Massachusetts and Henry W. Hilliard of Alabama were educators and men of literary skill. Thaddeus Stevens of Pennsylvania and Jacob Thompson of Mississippi represented extremist elements. The roster of able congressmen included Robert Ward Johnson of Arkansas, John A. McClernand and William A. Richardson of Illinois, Albert G. Brown of Mississippi, and James L. Orr of South Carolina. Thomas L. Clingman and David Outlaw of North Carolina rubbed elbows with Joshua R. Giddings of Ohio, James X. McLanahan of Pennsylvania, Frederick P. Stanton of Tennessee, and Volney E. Howard

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of Texas. In the large New York delegation were James Brooks, William Duer, and Preston King. Georgia had sent three gifted men in Howell Cobb, Alexander H. Stephens, and Robert Toombs. From Massachusetts came the scholarly Robert C. Winthrop, Speaker of the Thirtieth Congress; from Kentucky, the resourceful Linn Boyd who (like Orr) was a future Speaker; from New Jersey, the wealthy businessman James G. King; from Ohio, the irrepressible Free Soiler, Joseph M. Root; from Tennessee, a future president, Andrew Johnson of the Greeneville district; and from Virginia the devoted Richmond Democrat James A. Seddon.

Although these and other representatives measured up to standards of previous Congresses, they and their chamber soon would be overshadowed by a Senate of unusual brilliance. For the Thirty-first Congress was the one in which John C. Calhoun, Henry Clay, and Daniel Webster met for the final time. Thomas Hart Benton was a senator, too, and the tall Texan, Sam Houston of Huntsville, joined veterans like Alabama's William R. King and relative newcomers like Henry S. Foote in the senatorial drama. Leaders of the younger generation, Salmon P. Chase, Jefferson Davis, Stephen A. Douglas, William H. Seward, stood ready to challenge older senators' prominence.

At the start of the Thirty-first Congress, the contrast between the two houses seemed rooted less in personalities than in voting alignments. If the Senate Democracy's nationalistic and sectionalistic blocs were at odds on policy fundamentals, the large Democratic paper majority presented a united front for organizational purposes. Vice President Millard Fillmore was a Whig, but Senate Democrats experienced no difficulty in dominating the committees.[1] Meeting and adjourning from day to day with no extensive debate, the Senate at the outset marked time while the House wrangled. Though some representatives like Meredith P. Gentry and George W. Julian reached Washington late, nearly all of the 231 House seats were occupied from the beginning. Of the members answering the roll call on the first ballot and the last, 108 were Democrats, 103 Whigs, and nine Free Soilers—while a single congressman (Lewis C. Levin) belonged to the Native American party. The principal candidates for Speaker

[1] *Cong. Globe,* 31 Cong., 1 Sess., 40-41, 44-45.

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.29 - 'To Preserve African Slavery': The Secession Commissioners to Texas, 1861

Matthew K. Hamilton

ARTICLE	'To Preserve African Slavery': The Secession Commissioners to Texas, 1861
JOURNAL	The Southwestern Historical Quarterly 114, no. 4 (2011)
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"To Preserve African Slavery": The Secession Commissioners to Texas, 1861

By Matthew K. Hamilton*

During the secession crisis in late 1860 and early 1861, five states of the lower South appointed commissioners to travel to the other slave states with the purpose of swaying their fellow Southerners to leave the Union and form a Southern Confederacy. Mississippi, Alabama, South Carolina, Georgia, and Louisiana appointed a total of fifty-five commissioners who journeyed to the farthest reaches of the South between December 1860 and April 1861. However, they were not, for the most part, the famous names of the 1860–61 secessionist movement. Indeed, outside of their home states they were rather obscure figures. Most of the commissioners were lawyers, judges, doctors, newspaper editors, farmers, and planters. The vast majority of them had modest reputations as politicians, and most were recognized for possessing above average oratorical skills. These attributes qualified them for their role as secession commissioners.[1]

Once the commissioners arrived in the states they were assigned to visit, most addressed the state legislatures or conventions that would vote on secession. They delivered speeches to large crowds whenever possible and wrote letters to governors and state legislators. The commissioners' letters, speeches, and actions provide an unparalleled insight into the mindset of the secessionist movement during the critical weeks before the Civil War. Their message was clear, their resolve immense. When they set out to

* Matthew K. Hamilton is a doctoral student at the University of North Texas. His primary fields of study include the Antebellum South and the Civil War. He is currently researching the family history of David G. and Robert Mills of Brazoria County, Texas, from their arrival in Texas to the end of the Civil War. The Mills brothers ran a merchandising business, R. and D. G. Mills and Company, and large sugar plantations. By 1860 the brothers owned more than 200,000 acres and 800 slaves, making them the largest slaveholders in Texas. The author would like to thank Randolph B. Campbell, Richard G. Lowe, and Ryan Schumacher for reading and critiquing drafts and portions of this essay.

[1] For a description of the secession commissioners in general, see Charles B. Dew, *Apostles of Disunion: Southern Secession Commissioners and the Causes of the Civil War* (Charlottesville: University Press of Virginia, 2001), 18–21.

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their assigned states in late 1860 and early 1861, they carried with them the seeds of secession, the formation of a new Southern Confederacy, and ultimately civil war.

Despite the important role that the secession commissioners were expected to play during the secession crisis of 1860–61, little has been written about them. Indeed, only two major scholarly works have been produced. In 1963 Durward Long described the labors of Alabama's commissioners. He concluded, among other things, that the efforts of Alabama's commissioners were significant because they provided meaningful consultation between the slave states during the secession crisis. As a result, Alabama sensed that it would not be alone in seceding from the Union and could count on allies in the event of coercion by the new administration in Washington. Thus, Long described an important dimension to the commissioners' message. The nationalistic qualities of the commissioners' actions and speeches, and their desire to build a consensus among the slave states formed an essential element of their missions.[2] The only other significant scholarly study on the commissioners is Charles B. Dew's *Apostles of Disunion.* Larger in scope than Long's treatment, Dew's account included the actions, letters, and speeches of forty-one of the fifty-five men who served as commissioners. He concluded that the commissioners represented a belief that the "racial fate of their region was hanging in the balance in the wake of Lincoln's election." To Dew, secession and the formation of a Southern Confederacy were a means by which the slave states could maintain white supremacy in the American South. [3] Alabama, South Carolina, Georgia, and Louisiana all sent commissioners to Texas, but the story of their visits remains largely untold. James Martin Calhoun, the commissioner sent by Alabama was given only slight mention by Durward Long, and although Dew covered forty-one of the fifty-five commissioners, he examined only a single commissioner to Texas, John McQueen from South Carolina.[4]

This study will identify all four of the secession commissioners who came to Texas in early 1861 and describe their contact with leaders in the Lone Star State. The purpose is not to argue that these emissaries for secession had a major role in convincing Texas to leave the Union because evidence indicates that sentiment in favor of disunion controlled the Lone Star State well before they arrived. Instead, the focus of this study is an analysis of the arguments utilized by the commissioners as they sought to accomplish their mission to Texas. Did they attempt to foster

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[2] Durward Long, "Alabama's Secession Commissioners," *Civil War History* 9 (March 1963): 55–66.

[3] Dew, *Apostles of Disunion.* See also Charles B. Dew, "Apostles of Secession," *North & South* 4 (April 2004): 24–38.

[4] Long, "Alabama's Secession Commissioners," 55–56; Dew, *Apostles of Disunion,* 47–49, 58, 77.

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.30 - Democratic Senate Leadership and the Compromise of 1850

Holman Hamilton

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Democratic Senate Leadership and the Compromise of 1850

By Holman Hamilton

In approaching the Compromise of 1850, the modern historian is likely to find himself on ground previously and even repeatedly traversed. The last appearance of Clay, Calhoun, and Webster in the Senate spotlight, the shadow of the second Fugitive Slave Law, the growing prominence of William H. Seward and Salmon P. Chase — these and similar landmarks make the usual roads to the Compromise familiar terrain.[1]

Yet one wonders whether the old historical highways can lead to a successful reappraisal of an oft-accepted story, which the eloquent triumvirate of "America's silver age" has all but monopolized. A number of facts project reasonable doubt. Despite the repeated emphasis which writers have placed on Daniel Webster's "Seventh of March Speech," only one northern Whig senator, James Cooper of Pennsylvania, supported Webster as long as President Zachary Taylor lived. Owing to Henry Clay's prominence in the debates, readers are disposed to assume that Whigs provided most of the votes for Clay's "Omnibus Bill." Actually, it was a Whig, James A. Pearce of Maryland, who spiked Clay's efforts on July 31, 1850; nearly all the Whigs then deserted Clay,[2] and the bulk of the backing given first to Clay and later to Stephen A. Douglas stemmed from Democratic ranks. It is known, of course, that John C. Calhoun died when the "Great Debate" was barely under way. But the role of another southern senator, Henry S. Foote of Mississippi, from the mild winter days of early 1850 through the steamy Washington summer, has been obscured — perhaps by Calhoun's reputation and death.

[1] This article received the Mississippi Valley Historical Association's Pelzer Award for 1954.

[2] *Cong. Globe*, 31 Cong., 1 Sess., Appendix, 1473-79.

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Although such truths as these have been touched upon by a number of writers,[3] there has been no documented synthesis of the detached parts of the picture puzzle. Some of the fragmentary parts have but recently been discovered. Others, large and small, remain missing today. Still, the major outlines of the picture can be re-created through a point-by-point analysis of aims, methods, votes, and contributions of Senate Whig and Democratic leaders. Such an analysis provides a key or clue to precisely what was going on behind the spectacular façade of rhetoric and drama.

Albert Bushnell Hart, Albert J. Beveridge, and Charles A. and Mary R. Beard are only a few of the numerous authors who have magnified Clay's and Webster's influence far beyond the limits of the facts. According to Hart, in early 1850 "the Compromise was already decided, since the agreement of Clay and Webster meant the effective coalition of Southern Whigs and Northern 'Cotton Whigs'." Also, said Hart, Webster's Seventh of March Speech "was virtually an announcement that the Senate would vote for the Compromise."[4] Actually, President Taylor's death in July and Millard Fillmore's accession — together with the switch from Clay's methods to Douglas' methods — provided the deciding factors, and none of these things could have been foreseen in March.

Beveridge went into considerable detail to do justice to the remarks of Jefferson Davis, Seward, Douglas, and Chase. For this he deserves commendation. But, in the pages of his second volume on Abraham Lincoln, his lucid discussion suddenly breaks down. The importance of Taylor's death is slighted. Beveridge seems satisfied to say: "So opposition disintegrated and, one after another, the measures suggested by Clay were enacted."[5] A poorly informed reader of Beveridge's book is at a loss to know how and why the Compromise finally survived.

Charles A. and Mary R. Beard, in *The Rise of American Civilization*, have no doubt influenced students by the tens of thousands.

[3] There is no adequate, full-scale study of the Compromise of 1850. Perhaps the clearest picture of what the present writer considers the correct story may be derived from two sources: Frank H. Hodder, "The Authorship of the Compromise of 1850," *Mississippi Valley Historical Review* (Cedar Rapids), XXII (March, 1936), 525-36; and George F. Milton, *The Eve of Conflict: Stephen A. Douglas and the Needless War* (Boston, 1934). See also George D. Harmon, "Douglas and the Compromise of 1850," *Journal of the Illinois State Historical Society* (Springfield), XXI (January, 1929), 453-99.

[4] Albert B. Hart, *Salmon Portland Chase* (Boston, 1899), 124.

[5] Albert J. Beveridge, *Abraham Lincoln, 1809-1858* (2 vols., Boston, 1928), II, 118-30.

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.31 - The Causes of the Mexican War: A Note on Changing Interpretations

Peter T. Harstad and Richard W. Resh

ARTICLE	The Causes of the Mexican War: A Note on Changing Interpretations
JOURNAL	Arizona and the West 6, no. 4 (1964)
EXCERPT	Original journal pages 289-290
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THE CAUSES OF THE MEXICAN WAR

A NOTE ON CHANGING INTERPRETATIONS*

by

PETER T. HARSTAD

and

RICHARD W. RESH

Dr. Harstad is a member of the history department at Idaho State University, Pocatello, Idaho, and has published several articles concerning the history of the frontier. Mr. Resh is a doctoral candidate in history at the University of Wisconsin.

IN THE MID 1940s the Mexican War centennial passed almost without notice in this country. Neither pictorial magazines nor historical journals were glutted with the subject, and no worthwhile book appeared. This was not because the war was uninteresting and unimportant, for popular writers could have recounted the campaigns of General Taylor or General Scott, and historians could have pointed out that victory brought the entire Southwest into American possession. Perhaps an immediate reason why an anniversary conscious nation did not respond was because it would have been unpolitic to extoll the American character of an hundred years earlier, a character whose appetite had drawn

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*This article is a consolidation of papers prepared for a course in diplomatic history conducted by Professor Richard N. Current at the University of Wisconsin. No attempt is made to discuss all the histories of the Mexican War. Some of the better-known histories, such as R. S. Ripley's *War with Mexico* (2 vols., New York, 1849), offer no real interpretations as to the causes of the war, and therefore have not been included. Only one example of a given point of view is presented. An additional study of interest is Roberto Esquenazi-Mayo's "Historiografía de la guerra entre México y los EE. UU.," *Duquesne Hispanic Review*, I (Fall 1962), 33–48; and (Winter 1962), 7–35. This journal is published by the Duquesne University Press, Pittsburgh, Pennsylvania, three times a year.

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the United States into war with a nation that was its ally in World War II.

Even before the fighting ceased, students of the Mexican War began speculating as to the causes. The first commentaries appeared immediately following the war, during a period when feelings of repression and gloom, generated largely by abolitionists, enshrouded the conflict. The abolitionists advanced the view that the war was precipitated by Southern slaveholders conspiring to acquire lands for the creation of new slave states. Though many contemporaries, North and South, held different views, the issues involved soon became so thoroughly entangled with that of slavery that few historians during the nineteenth century were able to free themselves from this web. Not until the first decades of the twentieth century did a majority of historians present the war as one waged for the extension of the national boundaries — a cause quite divorced from the slavery issue. Despite this change in interpretation, however, the shroud of the early propagandists still hangs over the Mexican War. Even today extreme patriots are likely to see an element of truth in the charge that this was a war of aggression against a weak neighbor.

By 1850, at least a dozen volumes purporting to relate the true history of the conflict had appeared in the United States. As might be expected, these volumes, highly patriotic in tone, explained the conflict in terms of the preservation of the national honor. An additional aim was to refute the popular view that a citizens' army, composed of young men drawn from the workshop, countinghouse, and farm, was incapable of waging an offensive war.[1] Widespread interest in the war with Mexico, however, reflected partisan passions rather than spontaneous enthusiasm arising from the call to arms and military triumphs.

Two partisan historians who interpreted the Mexican War in a light favorable to the Democratic administration were John S. Jenkins and Nahum Capen. According to John S. Jenkins,[2] a lawyer who in 1848 wrote the first scholarly account of the conflict, territorial aggrandizement was not a war aim, even though, at the outset, it was forseen that the successful prosecution of the war "would be followed by the

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[1] See, for example, H. Judge Moore, *Scott's Campaign in Mexico* (Charleston, 1849), vi–vii.

[2] John S. Jenkins, *History of the War Between the United States and Mexico* (Auburn, New York, 1850), 93, 499.

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.32 - The Rise and Fall of Plains Indian Horse Cultures

Pekka Hämäläinen

ARTICLE	The Rise and Fall of Plains Indian Horse Cultures
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EXCERPT	Original journal pages 833-834
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The Rise and Fall of Plains Indian Horse Cultures

Pekka Hämäläinen

After more than a century of intense academic scrutiny and popular fascination, the history of Plains Indians and horses has become a quintessential American epic. A sweeping story of cultural collision and fusion, it tells how the obscure foot nomads of the Great Plains encountered and embraced the peculiar Old World export and, by reinventing themselves as equestrian people, created one of history's most renowned horse cultures, personified in the iconic figure of the mounted warrior. Such romantic images may have lost much of their appeal for modern historians, but recent academic trends have, rather curiously, only further glorified the history of Plains Indians and horses. As studies in Indian-European relations and environmental history have established the destructiveness of the Columbian exchange, it has become standard academic practice to set the splendor and prosperity of the mounted Plains Indians against the dark backdrop of death, disease, and despair that defines Europe's biological expansion to the Americas. In today's scholarship, the Plains Indian horse culture represents the ultimate anomaly—ecological imperialism working to Indians' advantage.[1]

Taking a cue from that juxtaposition, virtually all modern histories portray the rise of the Plains Indian horse culture as a straightforward success story. According to this view, horses spread northward from the Spanish Southwest, repeatedly creating a frontier of fresh possibility, opening for each tribe in its path a new era of unforeseen wealth, power, and security. With the dispersal completed by the late eighteenth century, the entire Plains became the scene for an equestrian experiment that lifted the Indians, both materially and figuratively, to a new level of existence, while uniquely equipping them to resist future Euro-American invasions.[2] Arguably, this view holds its appeal because it makes for a compelling and fundamentally uplifting story that is easy to incorporate into historical overviews and textbooks.

Pekka Hämäläinen is an assistant professor of early American history at Texas A&M University (TAMU) and currently a fellow at the University of Helsinki's Collegium for Advanced Studies. He wishes to thank Matthew Babcock, Mark Ellis, Ross Frank, David Weber, David Wishart, John Wunder, his colleagues at TAMU, and the referees for the *JAH*. He also thanks the Clements Center for Southwest Studies at Southern Methodist University for a fellowship that helped him prepare this article.

Readers may contact Hämäläinen at <hamalainen@tamu.edu>.

[1] See, for example, Alfred W. Crosby, *Germs, Seeds, and Animals: Studies in Ecological History* (Armonk, 1994), 55; and Alan Taylor, *American Colonies* (New York, 2001), 49.

[2] See, for example, Alice Beck Kehoe, *North American Indians: A Comprehensive Account* (1981; Englewood Cliffs, 1992), 297–98, 311–13; and Felipe Fernández-Armesto, *Civilizations* (London, 2001), 91.

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That success story has a bleak undercurrent that went largely unnoticed until recently, when ground-breaking studies shed light on the harmful effects of horses on Plains Indian socioeconomic systems and the environment.[3] Horses did bring new possibilities, prosperity, and power to Plains Indians, but they also brought destabilization, dispossession, and destruction. The transformational power of horses was simply too vast. Although Plains Indians had experienced constant and profound culture changes before European contact, the sudden appearance of horses among dog-using pedestrian people set off changes that could spin out of control as easily as they could make life richer and more comfortable. Horses helped Indians do virtually everything—move, hunt, trade, and wage war—more effectively, but they also disrupted subsistence economies, wrecked grassland and bison ecologies, created new social inequalities, unhinged gender relations, undermined traditional political hierarchies, and intensified resource competition and warfare. The introduction of horses, then, was a decidedly mixed blessing. The horse era began for most Plains Indians with high expectations but soon collapsed into a series of unsolvable economic, social, political, and ecological contradictions.

The purpose of this essay is to trace those contradictions. Rather than merely listing the evils of equestrianism, it shows how both the drawbacks and the benefits of horse use shaped the history of Plains Indians. Indeed, conventional histories have not only underestimated the negative aspects of horse use; they may have even more glaringly underestimated some of its empowering effects. The history of Plains Indian equestrianism, in short, is a story of astounding successes and inevitable, daunting failures. Moreover, this essay argues, the patterns of success and failure took widely different forms in different parts of the Plains, giving rise to several distinctive horse cultures. Traditionally, scholars have recognized only two Plains horse cultures: the classic, flamboyant equestrian culture of the western Plains nomads and the less dynamic horse culture of the eastern Plains village farmers. Inherent in that model is a tendency to cast the villagers as cultural reactionaries who failed to embrace the liberating powers of equestrianism and, locked in space and time, were crushed by the double invasion of the aggressive nomads and the encroaching Americans.[4]

The east-west, farmer-nomad dichotomy reflects both continuing academic efforts to categorize native societies into such artificial entities as culture areas and, more broadly, the long-standing scholarly conviction that North American history is best understood along longitudinal lines. In that view, the Mississippi watershed, the line of semiaridity along the ninety-eighth meridian, and the Rocky Mountains were and

[3] Dan Flores, "Bison Ecology and Bison Diplomacy: The Southern Plains from 1800 to 1850," *Journal of American History,* 78 (Sept. 1991), 465–85; James E. Sherow, "Workings of the Geodialectic: High Plains Indians and Their Horses in the Region of the Arkansas River Valley, 1800–1870," *Environmental History Review,* 16 (Summer 1992), 61–84; Elliott West, *The Contested Plains: Indians, Goldseekers, and the Rush to Colorado* (Lawrence, 1998); Richard White, *The Roots of Dependency: Subsistence, Environment, and Social Change among the Choctaws, Pawnees, and Navajos* (Lincoln, 1983).

[4] The classic treatise is Preston Holder, *The Hoe and the Horse on the Plains: A Study of Cultural Development among North American Indians* (Lincoln, 1970). The recent *Handbook of North American Indians* volume on the Plains presents a less biased view of the villagers but retains the east-west dichotomy. See Raymond J. DeMallie, "Introduction," in *The Handbook of North American Indians,* vol. XIII: *Plains,* ed. Raymond J. DeMallie (Washington, 2001), 6.

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.33 - Tory Sentiment in Anglo-Texan Public Opinion, 1832-1836

Margaret Swett Henson

ARTICLE	Tory Sentiment in Anglo-Texan Public Opinion, 1832-1836
JOURNAL	The Southwestern Historical Quarterly 90, no. 1 (1986)
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Tory Sentiment in Anglo-Texan Public Opinion, 1832–1836

Margaret Swett Henson*

Public support in Texas for the acts of violence against the centralist administration of Mexico was not unanimous, but this fact has received little attention from historians. Texas public opinion during this period in general has drawn few scholars. William C. Binkley mentioned public opinion as one factor that led the Anglo-Texans toward revolution, but he did not develop it as a separate topic. Eugene C. Barker, in his biography of Stephen F. Austin, referred to public attitudes and the empresario's efforts to shape them. Barker also focused on public opinion during the spring and summer of 1835 in a 1911 essay that sought to explain the commencement of separationist sentiment, but the article was limited to that brief period.[1] Most histories have concentrated instead on the more exciting military and political events. The present essay, while mentioning those events, will explore tory sentiment that arose in 1832 and 1835–1836 in Anglo-Texan neighborhoods.

Nineteenth-century writers, often closely associated with participants of the Texas Revolution, mentioned the similarities between the Texas and American revolutions and usually lauded the successful patriots. They noted that both movements had committees of correspondence, preliminary battles, and subsequent declarations of independence, but

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*Margaret Swett Henson is retired from the Department of History at the University of Houston Clear Lake. She is the author of a number of works on early Texas and regional history, including *Samuel May Williams, Early Texas Entrepreneur* (1976), *Juan Davis Bradburn: A Reappraisal of the Mexican Commander of Anahuac* (1982), *Anglo American Women in Texas, 1820–1850* (1982), *Baytown: A History* (1986), and "Chambers County: A Pictorial History" (forthcoming in 1986).

[1] William C. Binkley, *The Texas Revolution* (Baton Rouge, 1952), 47, 57, 120; Eugene C. Barker, *The Life of Stephen F. Austin, Founder of Texas, 1793–1836: A Chapter in the Westward Movement of the Anglo-American People* (2nd ed.; Austin, 1949), 337–339, 345, 353, 358, 376, 411–413, 425–426; Eugene C. Barker, "Public Opinion in Texas Preceding the Revolution," American Historical Association, *Annual Report, 1911* (Washington, D.C., 1913), 219–228.

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they did not usually mention tory dissidents.[2] A few contemporaries labeled the 1832 dissenters tories, a word associated with both English history and the American Revolution, but the negative connotation caused most historians to avoid it. The two sides of the issue in 1835 were characterized at the time by the terms peace party, on the one hand, and war party, or occasionally tories, on the other. Tory was an especially popular term for those dissenters living east of the San Jacinto River, who clung to their loyalist position until after the battle of San Jacinto in April, 1836.

Dictionaries agree that a tory is a conservative in any party: in English history tories were those who supported the Crown against the progressive Whig party, and during the American Revolution tories were loyalists who sustained the claims of the king. The term, therefore, can apply to those Texans who opposed the attacks against Anahuac and Velasco in 1832 and the efforts of the peace party in 1835–1836. The word tory in this essay is interchangeable with conservative, loyalist, and peace party.

Dissent appeared inevitable in Texas, given the contentious nature of Anglo-Americans. As sons and grandsons of the American Revolution, with inherited notions of their rights as free men, Anglo-Texans protested when acts of the Mexican government violated their perceptions of liberty and justice. But these new Mexican citizens could not agree on proposed remedies or on who was to lead them. Individualism and independent action, more than a united planned remonstrance, characterized the reactions of the Anglo-Texans.

Erroneously assuming that republics were alike, most immigrants from the United States failed to understand that the Mexican Constitution of 1824 lacked a bill of rights providing such traditional American guarantees as trial by jury, the right to assemble, and freedom of speech. For their part, the Mexicans wanted immigrant frontiersmen to develop agriculture on their northeastern border and to defend the area from hostile Indians because the new republic was without the

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[2]See Henry Stuart Foote, *Texas and the Texans* . . . (2 vols.; Philadelphia, 1841), II, 93–96, for comparisons of the revolutions. David B. Edward, *The History of Texas* . . . (Cincinnati, 1836), 249, mentions both "Whigs" and "Tories" in his description of the events of 1832, but he was a Scot and sympathetic toward Mexico. Ibid., ix, xi–xii.

Modern historians who have referred to the tories include Frank X. Tolbert, *The Day of San Jacinto* (New York, 1959), 65, 100, 199, 246; Andrew Forest Muir, "Tories in Texas, 1836," *Texas Military History,* IV (Summer, 1984), 81–94, who concludes that there were none on the San Jacinto River; Clyde Allen True, "John A. Williams: Champions of Mexico in the Early Days of the Texas Revolution," *Southwestern Historical Quarterly,* XLVII (Oct., 1943), 107–119 (the *Quarterly* is cited hereafter as *SHQ*); and Kent Gardien, "Kokernot and His Tory," *Texana,* VIII, No. 3 (1970), 269–294, who says there was at least one tory in 1836.

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.34 - An Ambiguous Democrat: Joseph Brown and Georgia's Road to Secession

Wallace T. Hettle

ARTICLE	An Ambiguous Democrat: Joseph Brown and Georgia's Road to Secession
JOURNAL	The Georgia Historical Quarterly 81, no. 3 (1997)
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An Ambiguous Democrat: Joseph Brown and Georgia's Road to Secession

By Wallace T. Hettle

Few figures in Georgia history remain as enigmatic as Governor Joseph Brown. Brown's contradictory history involved wild swings between affection and animosity for the planter class throughout the Civil War era. Journalist J. Henley Smith spoke for many when he wrote, "I can't understand what the man means unless it is to be contrary."[1] Historians have echoed this judgment, describing him as "vacillating."[2] Part of the frustration about Brown stems from a seeming paradox: the leader of upcountry radical yeomen led the drive to secession. The view that Brown represented the upcountry entered historiography in the pioneering work of Ulrich B. Phillips, who called Brown's election "a shock to the aristocratic regime in Georgia" because it placed a leader of "the sturdy yeomanry" in office.[3]

While Brown portrayed himself as a radical agrarian fighting with plantation aristocrats, his real position was more ambiguous.

[1]J. Henley Smith to Alexander Stephens, June 21, 1862, Stephens Papers, Library of Congress, copy at University of Georgia Libraries.
[2]William C. Davis, *"A Government of Our Own": The Making of the Confederacy* (New York, 1994), 54-71, 131.
[3]Ulrich Bonnell Phillips, *Georgia and State's Rights* (Washington, D.C., 1902), 182.

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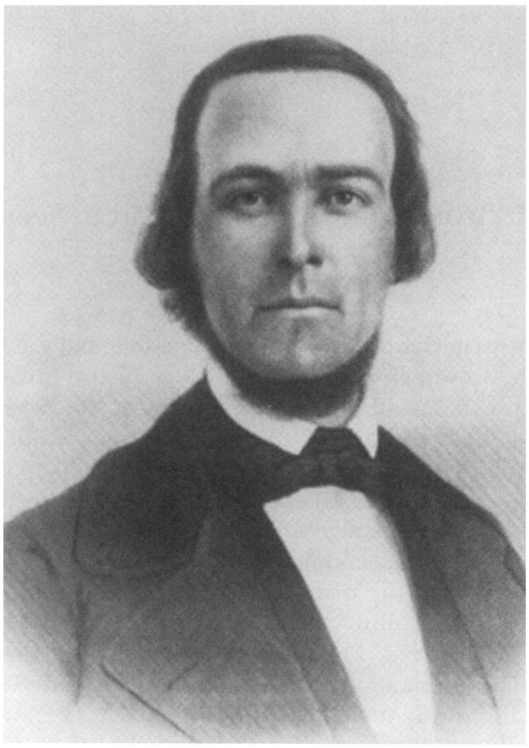

Governor Brown skillfully mobilized much of his north Georgia constituency in support of secession by "embracing an appeal to the poor people of the mountains" that only he, among the state's Democratic leadership, could have made credible or effective. *Portrait of Brown (ca. 1860) from the Georgia Department of Archives and History.*

A son of the upcountry, he was also a slaveholder, judge, and Yale law graduate.[4] Far from being a "shock to aristocracy," his rise to power in the gubernatorial campaign of 1857 was managed by elite Democratic operatives. Brown, torn between the yeoman constituents who comprised his base of support and the Democratic kingpins who brought him to power, provides a challenge to

[4]Joseph H. Parks, *Joseph E. Brown of Georgia* (Baton Rouge, La., 1977).

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.35 - The Authorship of the Compromise of 1850

F. H. Hodder

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THE AUTHORSHIP OF THE COMPROMISE OF 1850

By F. H. Hodder

The discussion of the Compromise of 1850 has ordinarily been obscured by a mass of details. It is necessary to clear away the underbrush in order to see the trees. There were five outstanding questions in controversy:

1. The admission of California.
2. The organization of the territories of Utah and New Mexico.
3. The Texas boundary.
4. Slavery in the District of Columbia.
5. An effective fugitive slave law.

Henry Clay in enumerating these questions counted them off upon his fingers and called them the five bleeding wounds of the republic whereupon Thomas H. Benton remarked that Clay would have found more bleeding wounds if he had had more fingers. By concentrating upon these five points the student can keep his bearings in wading through the almost interminable debates that fill the pages of the *Globe* during the first session of the thirty-first Congress.[1]

California had formed a free state constitution and was applying for admission to the Union. The North felt that she was entitled to immediate admission. The South proposed to withhold admission in order to prevent the prohibition of slavery in the territories of Utah and New Mexico. It is not probable that the South seriously expected to establish slavery in these territories but contended that the prohibition of slavery would deprive her of equal rights there and would put a stigma upon her institutions. The North was unwilling to extend slavery to territory already free under Mexican law. By far the most difficult of the five questions was the settlement of the Mexican boundary.

[1] References to the *Congressional Globe* are for this session unless otherwise stated. Material in the *Globe* and in the *Senate* and *House Journals* may be located by the dates given.

George D. Harmon, "Douglas and the Compromise of 1850," in *Journal of the Illinois State Historical Society*, XXI (1929), 453-99 — reprinted separately by Lehigh University — discusses some phases of this debate more fully than this paper.

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In the controversy with Mexico the United States had claimed that Texas extended to the Rio Grande. Texas extended her territory to the Rio Grande not only at the south but to the north as well and included within her limits the larger part of the Mexican state of New Mexico that lay east of the river. She had divided the region into counties and threatened to take forcible possession if her claim were denied, a step which would have precipitated a civil war that might easily have involved the whole Union. The South supported the claim of Texas because it extended slave territory. The North opposed it in the hope of saving this region for freedom. Obviously New Mexico could not be organized without settling the boundary between her and Texas. Since the decision of the Supreme Court in the Prigg case the South had clamored for an effective fugitive slave law. The North grudgingly admitted that the South was entitled to such a law under the Constitution but claimed that the growth of anti-slavery sentiment in the North rendered its execution impracticable. For years the North had urged and the South opposed the abolition of slavery and the slave trade in the District of Columbia.

The first resolution and the first bill for the organization of the territory acquired from Mexico presented at this session of Congress were offered by Senator Henry S. Foote of Mississippi. They were never considered but his early presentation of them accounts for the large part that he played in the later discussion. January 4, 1850 Senator James M. Mason of Virginia introduced a fugitive slave bill and January 16 Senator Benton of Missouri introduced a bill to settle the Texan boundary.

Clay thought that the only hope of settlement lay in considering all of these questions as a whole. He therefore prepared a set of resolutions, which he first submitted to Daniel Webster and to Foote, and, after receiving assurance of their support, introduced in the Senate, January 29. The five points of his resolutions were:

1. Admit California under her free state constitution.
2. Organize Utah and New Mexico without prohibition of slavery for the reason that the region was already free under Mexican law.
3. Establish the old boundary of New Mexico and compensate Texas for her loss of territory by a money payment.

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.36 - Three Georgia Unionists and the Compromise of 1850

John T. Hubbell

ARTICLE	Three Georgia Unionists and the Compromise of 1850
JOURNAL	The Georgia Historical Quarterly 51, no. 3 (1967)
EXCERPT	Original journal pages 307-308
JSTOR	https://www.jstor.org/stable/40578706

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Three Georgia Unionists and the Compromise of 1850

By John T. Hubbell*

THE United States Congress that convened in December, 1849, was called upon to resolve one of the most critical issues in the history of the Republic. Born of war and nurtured by sectional malice, the crisis centered on the question of slavery, or more explicitly, the extension of slavery into the territories newly won from Mexico.

Impassioned debate in the chambers of Congress was echoed in press and pulpit. Traditional party lines were endangered by emerging sectional alignments. "Free soil and free men" was the oft heard cry in the North; the disciples of Calhoun answered with talk of southern rights and dark threats of secession.

Caught in the maelstrom were calmer men whose sectional loyalties were balanced by a desire to preserve the Union, though they too were sometimes moved to intemperate language. From Georgia came three men of this persuasion. Two of them, Alexander H. Stephens and Robert Augustus Toombs, were Whigs; the third, Howell Cobb, was a Democrat. Each was to play a vital role in that dramatic year of compromise.

Cobb, scion of a prominent Athens, Georgia, family, was first elected to Congress in 1842. His constituency, in northeastern Georgia, was composed mainly of a small white-farmer element. Although they had little direct interest in slavery, they were keenly interested in state and national politics. Cobb shared their strongly Unionist sentiment to the extent of refusing to assist Calhoun in forming a Southern Rights party. Calhoun's aim, he said, was "to supplant in the south the *democratic party*. Such I have no doubt is his purpose, and for that object he prepared it [his Southern Address] and *designedly* failed to make any discrimination between Northern Democrats, Whigs, and abolition-

*Editor of *Civil War History*, published at The University of Iowa, Iowa City Iowa.

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ists."[1] Cobb felt, as did many, that the South's interests were most secure within the framework of a national party.

Stephens, chiefly remembered as the anti-Davis Vice-President of the Confederacy, entered the House in 1843. Initially his high-pitched voice provoked laughter, but his colleagues soon learned that his gaunt, almost skeletal figure housed an indomitable will and powerful intellect. An honor graduate of the University of Georgia and a skilled lawyer, his foremost goal in politics was the defense of what he deemed Constitutional rights, *i.e.*, southern rights and interests.[2]

Robert Toombs, for some years a power in Georgia politics, first received national prominence during the winter of 1849-1850 for his eloquent statements of southern policy. He, like Cobb, was the son of an eminent planter, and like Stephens attended the University of Georgia. But unlike Cobb and Stephens he did not graduate. Instead, he was asked to withdraw after what has been described as an "escapade." He subsequently completed his college education at Union College in New York. Toombs, for all his irascible qualities, was at home either in the drawing room or tavern, equally fond of good bourbon and the classics. He proved a powerful as well as colorful addition to the Georgia delegation to Congress.[3]

Presaging the legislative battle to come was the bitter contest for the Speakership. The House members, 112 Democrats, 105 Whigs, and 14 Free Soilers, were embroiled in sectional conflict from the first caucus. Stephens and Toombs, fearing an alliance of Free Soilers and northern Whigs, presented a resolution in the Whig caucus to the effect that Congress ought not interfere with slavery either in the territories or in the District of Columbia. Upon refusal of their fellows to entertain the resolution they bolted and thereafter refused to assist their party in organizing the House. Indeed, they proved to be an obstructive force.[4]

Neither of the two major parties could command a majority, as two splinter groups, the Free Soilers and the disaffected Whigs, held the balance of power in the House. Cobb, nominated by the Democrats, thought his election impossible because of the number

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.37 - Property Rights in Slavery and the Coming of the Civil War

James L. Huston

ARTICLE	Property Rights in Slavery and the Coming of the Civil War
JOURNAL	The Journal of Southern History 65, no. 2 (1999)
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Property Rights in Slavery and the Coming of the Civil War

By JAMES L. HUSTON

CERTAIN HISTORICAL QUESTIONS NEVER SEEM TO BE SATISFACTORILY answered. Such is the case with inquiries regarding the origins of the American Civil War, meaning specifically what forces tore the nation apart—as opposed to what particular circumstances led to armed conflict. One set of interpretations focuses on ideological forces that produced secession: antislavery convictions, a northern free labor ideology, and a southern adherence to neoclassical republicanism.[1] Another set deals with political factors: a manipulable federal political system, ambitious and blundering politicians, northern paranoia concerning the "slave power," southern fear of a "free soil conspiracy," northern lust for national consolidation, and—the leading contender—failure of the second party system to handle immigration and religious diversity, which enabled a new sectional division of parties to arise.[2]

[1] Emphasis on antislavery convictions can be located in David M. Potter, *The Impending Crisis, 1848–1861,* edited by Don E. Fehrenbacher (New York, 1976), 328–55; and Richard J. Carwardine, *Evangelicals and Politics in Antebellum America* (New Haven, 1993), 323. The theme of free labor and southern republicanism is elaborated by Eric Foner, *Free Soil, Free Labor, Free Men: The Ideology of the Republican Party before the Civil War* (2d ed.; New York and Oxford, 1995), Chap. 1. On republicanism see Lacy K. Ford Jr., *Origins of Southern Radicalism: The South Carolina Upcountry, 1800–1860* (New York, 1988), 121–25, 138, 351–54, and 372; Kenneth S. Greenberg, *Masters and Statesmen: The Political Culture of American Slavery* (Baltimore, 1985), ix–x, 3–14, and 125–35; and Michael A. Morrison, *Slavery and the American West: The Eclipse of Manifest Destiny and the Coming of the Civil War* (Chapel Hill, 1997), 7–8. Another strain of ideological explanation involves the rise of southern nationalism, usually seen as an ideology created to defend slavery; John McCardell, *The Idea of a Southern Nation: Southern Nationalists and Southern Nationalism, 1830–1860* (New York, 1979), 3–4 and 336–37; and Drew Gilpin Faust, *The Creation of Confederate Nationalism: Ideology and Identity in the Civil War South* (Baton Rouge, 1988), 10 and 59–61.

I am indebted to Vernon Volpe, the late Bill Cecil-Fronsman, Peter Knupfer, James Chase, and George McJimsey for their comments on papers that I have given relating to this topic at various meetings of the Mid-America Conference on History.

[2] Lee Benson, *Toward the Scientific Study of History: Selected Essays* (Philadelphia, 1972), 307–26; John H. Aldrich, *Why Parties? The Origin and Transformation of Political Parties in America* (Chicago, 1995), Chap. 5; William E. Gienapp, "The Republican Party and the Slave Power," in Robert H. Abzug and Stephen E. Maizlish, eds., *New Perspectives on Race and*

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The progressive historians fashioned the most enduring economic explanation for the Civil War: It was caused by the struggle between southern plantation masters and northern industrialists for control of the federal government.[3] A special form of this argument holds that the slaveholding class was prebourgeois and incapable of amicable relations with a dynamic northern bourgeois class.[4] Economic historians have added to this explanation the southern interest in preserving capital gains obtained from slaveholding and the fear of loss of property in slaves—arguments insufficiently heeded by historians.[5]

The development of the new social history in the mid-twentieth century has greatly expanded the interpretations about the war's origins. Much of what social historians write about the Civil War derives directly or indirectly from modernization theory. The North was developing industrially and commercially, and the South remained mired in agrarian ways, producing a tension that somehow touched off the conflict.[6] From that base have sprung a number of theories employing some variant of class analysis.[7] Social historians have promoted as causative agents the ideas of the South as an "honor" society that reacted violently to northern criticisms, the power of the race question in thwarting peaceful solutions, the different ethnic makeup of the

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Slavery in America: Essays in Honor of Kenneth M. Stampp (Lexington, 1986), 51–78; J. Mills Thornton III, *Politics and Power in a Slave Society: Alabama, 1800–1860* (Baton Rouge, 1978), 204–27; and William B. Hesseltine, *Sections and Politics: Selected Essays,* edited by Richard N. Current (Madison, 1968), 101–13. The discussion of the collapse of the second party system by Michael F. Holt is generally considered to be the prime explanation for the war. See Holt, *The Political Crisis of the 1850s* (New York, 1978).

[3] Charles A. Beard and Mary R. Beard, *The Rise of American Civilization* (New York, 1927), II, 3–10, 28–31, 50–51, and 99–115; and Louis M. Hacker, *The Triumph of American Capitalism: The Development of Forces in American History to the End of the Nineteenth Century* (New York, 1940), 322–24 and 339–42.

[4] Eugene D. Genovese, *The Political Economy of Slavery: Studies in the Economy and Society of the Slave South* (New York, 1965), 3–10 and 243–74; and Genovese, *The World the Slaveholders Made: Two Essays in Interpretation* (New York, 1969), 95–102 and 118–31.

[5] Gavin Wright, *The Political Economy of the Cotton South: Households, Markets, and Wealth in the Nineteenth Century* (New York, 1978), 129–30, and 140–57; Gerald Gunderson, "The Origin of the American Civil War," *Journal of Economic History,* XXXIV (December 1974), 915–950; and Roger L. Ransom, *Conflict and Compromise: The Political Economy of Slavery, Emancipation, and the American Civil War* (Cambridge, Eng., 1989), 10–16, 41–72, and 101–2. It is fair to state that these authors have heavily influenced my ideas on the subject and that this article is built upon their powerful conclusions, although I am not sure that any would find the structure I create worthy of their foundations.

[6] Richard D. Brown, *Modernization: The Transformation of American Life, 1600–1865* (New York, 1976), 3–22 and 159–76. For a direct application, see James M. McPherson, *Ordeal by Fire: The Civil War and Reconstruction* (2d ed.; New York, 1992), 5–25.

[7] Bruce Levine, *Half Slave and Half Free: The Roots of Civil War* (New York, 1992), Chaps. 2, 3, 5; Michael P. Johnson, *Toward a Patriarchal Republic: The Secession of Georgia* (Baton Rouge, 1977), xviii–xxi; John Ashworth, *Slavery, Capitalism, and Politics in the Antebellum Republic.* Vol. I: *Commerce and Compromise, 1820–1850* (Cambridge, Eng., 1995), ix–x, 149, and 157–66.

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.38 - William Parrott, American Claims, and the Mexican War

Peter M. Jonas

ARTICLE	William Parrott, American Claims, and the Mexican War
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WILLIAM PARROTT, AMERICAN CLAIMS, AND THE MEXICAN WAR

Peter M. Jonas

The subject of claims is important in the history of relations between the United States and Mexico prior to the Mexican War. Mexico's stormy history following independence, its close proximity to the United States, and the presence of a considerable number of American citizens and businessmen in Mexico all strained relations between the two nations. A number of American claims accumulated and created controversy in diplomatic channels. Eventually, political and economic problems enshrouded foreign relations. William Stuart Parrott was an American who played a significant role as a private businessman and agent of the United States government. Parrott's business career and subsequent claims against the Mexican government were typical of the early and mid-nineteenth century history of American merchants in Mexico. Few Americans, however, became so involved in such important affairs. If Parrott had been either solely a entrepreneur or a diplomat, he might have succeeded. His attempts to run both in double harness were at the heart of his undoing as the demands of the two enterprises often clashed.

Parrott was born around 1796 to a well-respected Virginia family. As an adult, he became a diplomat and enterprising businessman, acquiring and then losing a sizable estate.[1] Parrott cut the figure of an

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[1] Waddy Thompson to Daniel Webster, Nov. 30, 1842, Despatches from United States Ministers to Mexico, Diplomatic Correspondence, State Department Records, RG 59 (National Archives and Record Service, Washington, D.C.).

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upwardly mobile, adventurous nineteenth-century agriculturalist. A respected and successful individual, he has remained relatively obscure, and even his contemporaries did not seem to have a clear impression of the man. The Parrott family emigrated to Halifax County, Virginia in 1800, settling into the serene and isolated western frontier. The majestic scenery, melancholy atmosphere, and rough lifestyle made a lasting impression on young William. Religion and education proved important elements of Parrott's early years; he took advantage of all available opportunities. Imbued with a wilderness spirit and supported by his family, William Parrott received a well-rounded education. His childhood was ordinary, simple, and filled with practical lessons in life.

At the age of seventeen, stirred by war and inspired by a strong admiration for General Andrew Jackson, Parrott volunteered for service in the Tennessee militia with aspirations of fighting in the War of 1812. Jackson commanded this force, and the two men established a passing friendship.[2] Serving as a private in the regiment, Parrott was young but performed admirably in the battle of New Orleans, evoking high praise from superior officers. The private was remembered for his bravery, his merits as a gentleman, and as a man who gallantly fought by the side of the future President Jackson. During the war, Parrott received a severe leg wound, which caused him to limp the for remainder of his life.[3] Thus began his long, meritorious service in the government of the United States.

In 1818, motivated by an adventuresome spirit and a vision of a new world, Parrott traveled in search of fortune and fame to Cuba, even though other Americans viewed the island as a ''pest-hole'' because of rampant disease. While realizing neither fortune nor fame, Parrott did acquire a fascination and appreciation for Spanish culture. After Parrott returned to the United States, he completed studies in dentistry sometime prior to 1822, then migrated to Mexico in order to practice his chosen profession. In later years he accurately characterized this venture as the ''memorable Epoch'' of 1822 when Mexico was engaged in its fierce fight for independence from Spain.[4]

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[2] Parrott to Jackson, Dec. 14, 1844, Andrew Jackson Papers (Library of Congress, Washington, D.C.). For additional information, see Robert V. Remini, *Andrew Jackson and the Course of American Empire, 1767-1821* (New York 1977), 167-170.

[3] Anthony Butler to Louis McLane, Apr. 27, 1834, Despatches from United States Ministers, RG 59.

[4] Parrott to Austin, Mar. 16, 1831, in Eugene C. Barker, ed., ''The Austin Papers,'' *Report of the American Historical Association for the Year 1922* (2 vols.,

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.39 - 'Mexico in His Head': Slavery and the Texas-Mexico Border, 1810-1860

Sean Kelley

ARTICLE	'Mexico in His Head': Slavery and the Texas-Mexico Border, 1810-1860
JOURNAL	Journal of Social History 37, no. 3 (2004)
EXCERPT	Original journal pages 709-710
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"MEXICO IN HIS HEAD": SLAVERY AND THE TEXAS-MEXICO BORDER, 1810–1860

By Sean Kelley Hartwick College

In September 1851, six years after Texas was annexed by the United States and fifteen years after independence from Mexico, Guy M. Bryan, politician and slaveholder of Brazoria County, wrote his brother-in-law in response to a proposal to swap a tract of land for a slave. Bryan seems to have liked the idea and planned to inspect his brother-in-law's slave that evening, but a disturbing rumor prompted him to reconsider. "The negroe he has got Mexico in his head," he wrote, referring to the prospect of seeing the slave escape to the south, adding, "on this account I may not buy." The record is silent on whether Bryan went ahead with the deal, but his dilemma reveals something of the nature of slavery in the U.S. Mexico borderlands: enslaved residents of Texas invested the border with a set of meanings that formed the core of an oppositional culture, shaping numerous acts of resistance.[1]

Historians of Texas slavery have long recognized that Mexico attracted and harbored refugees from the state's plantations. But in chronicling the efforts of enslaved Texans to reach freedom in Mexico, scholars have overlooked two important issues. First, they have generally treated the border itself as an unproblematic given, ignoring not only the conflicts that resulted in the frequent redrawing of the boundary between the U.S., the Texas Republic, and Mexico/New Spain, but also the changing significance of the border that accompanied each shift. The issue warrants serious consideration. National boundaries delineated the scope of state power, which, through military support and the passage of slave codes, was vital to the maintenance of slavery. A second, and closely related issue is the ability of enslaved Texans to project a definition of the border. They did not simply react to the various redrawings of the border; in the crucible of their own interpretive communities they invested the border with liberationist significance, helping to set off a chain of events that resulted in Texas independence and the establishment of a slaveholding republic. Ironically though, the drawing of a clear border between slavery and non-slavery only inspired more flight toward the Rio Grande.[2]

If historians of Texas slavery have largely ignored the issue of borders and boundaries, historians of Mexico and the U.S. West certainly have not. The concept of a borderland has evolved considerably since Herbert Bolton first envisioned it in the early 20th century as the meeting place of rival European empires in western North America.[3] Cultural and literary critics, such as Gloria Anzaldúa, have seen the borderlands as a "third country in-between" Anglo-American and Mexican cultures, characterized by a high degree of hybridity and resistance.[4] Although most historians have embraced Anzaldúa's concept of a cultural borderland, her tendency to treat it as continuous and timeless has generated calls for greater historical specificity. In response, Jeremy Adelman and Stephen Aron have proposed a three-part typology consisting of "frontiers,"

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"borderlands," and "bordered lands," with each ideal type defined by the degree and nature of state control over the area in question. Frontiers, according to Adelman and Aron, are simply meeting places of peoples; borderlands are the meeting places of empires; bordered lands are the formally recognized meeting places of sovereign states. The succession of one form by the other, they argue, had important consequences for those "in between," presenting them with different sets of problems and opportunities.[5]

Anzaldúa's emphasis on cultural creativity and resistance and Adelman and Aron's emphasis on change over time are not inherently incompatible; both resonate with themes in the history of slavery and African American culture. In Texas, slaves created different meanings for the border as it moved. We may divide the process by which the Mexican border became associated with nonslavery into four periods. In the first, which lasted until approximately 1820, the geographic boundary between the United States and New Spain (soon to be Mexico) was undetermined. Because slavery was legal in both areas, slaves did not attach any particular significance to the border, although some fled to Texas recognizing that it would be difficult for masters to pursue runaways into Spanish territory. The second period, approximately 1820 to 1829, saw the beginnings of plantation slavery, but as yet only a faint connection between Mexico and the idea of freedom. The third period, 1829 to 1845, saw tensions escalate between Anglo Texans and the Mexican government over a number of issues, including slavery, resulting in the establishment of an independent slaveholding republic and culminating in the annexation of Texas as a slave state, solidifying once and for all the linkage of Mexico with freedom. Thousands of slaves acted on this vision and fled across the Rio Grande. Finally, in the years after emancipation, the image of Mexico symbolized not only a collective history of resistance to slavery, but also served as a reminder that the racial hierarchies of the postwar South were by no means natural, inevitable, or just.[6]

* * * * *

Slavery in the Americas was not always limited by national or imperial boundaries. Until the Age of Revolution, slavery, though more prominent in some places than others, existed throughout the hemisphere. In Mexico, slavery was an institution of some consequence for more than a century after the Conquest. Epidemics in the sixteenth century had proven so devastating to the native population that Spanish landowners found it necessary to look abroad for laborers. In 1518, a year before Cortés made landfall on the Mexican coast, Spain contracted with Portugal to supply slaves to its New World colonies. For the next two centuries, enslaved laborers could be found in cities, mines, fields, and workshops throughout New Spain. By the eighteenth century, however, population growth among indios and mestizos in the colony had rendered importations of unfree laborers unnecessary, and slave prices, the best index of demand for slave labor, dropped by more than 50% from their early seventeenth-century peak. On the eve of independence in 1821, there were only about 3,000 slaves left in all of New Spain. Most of these worked as domestics and laborers in urban areas, although some toiled on rural farms and haciendas. Only a very small

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.40 - Henry Clay's Constitutional Unionism

Peter B. Knupfer

ARTICLE	Henry Clay's Constitutional Unionism
JOURNAL	The Register of the Kentucky Historical Society 89, no. 1 (1991)
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Henry Clay's Constitutional Unionism

by Peter B. Knupfer

I

"I go for honorable compromise whenever it can be made," Henry Clay declared during the heated Senate debate over slavery in 1850. Few historians would quarrel with Clay's commitment to compromise; indeed, the concept has become an essential theme for his biographers, for perhaps only "compromise" can explain the many reversals, inconsistencies, and contradictions that littered his controversial public life. To many Clay scholars, the Kentuckian was simply a gamester, a pragmatic compromiser who brilliantly manipulated the language and style of antebellum politics in his relentless quest for the presidency. Heading up a long line of Clay-watchers, John T. Morse wrote in 1889 that "his panacea, his watchword, his purpose was always Compromise," which fostered "the most shallow and transitory statesmanship" on sectional issues. Erratic and temperamental, he was "at once everywhere and nowhere" on the tariff, Morse argued, and "on slavery he was much worse." Apparently, Clay's only two firm, consistent opinions — his hatred of Andrew Jackson and his patriotism — intensified instead of sobered his ambitions. His constitutionalism was a jumble of contradictions, Robert Seager tells us, as Clay switched "from broad to narrow to various in-between interpretations of it with the ease of changing his vest." In the end, Clay's compromising betrayed his principles, unmasked his superficial intellect, and deflated his statesmanship.[1]

Dr. Knupfer is a visiting assistant professor of history at Arizona State University. His doctoral dissertation at the University of Wisconsin examined " 'The Union As It Was': The Civic Tradition of Compromise Before the Civil War."

[1]Senate speech, *Congressional Globe*, 31st Cong., 1st sess., July 22, 1850, Appendix: 1408 (hereafter *CG*, Congress: session); John T. Morse, Jr., in preface, Carl Schurz, *Henry Clay*, 2 vols. (Boston, [1877], 1889), 1:xxvii-xxviii; Robert Seager II, "Henry Clay and the Politics of Compromise and Non-Compromise," *Register of the Kentucky Historical Society* 85 (1987): 6. George Dangerfield's memorable portrait of Clay in *The Era of Good Feelings* (New York, 1952), 10-13, is a classic statement of this interpretation. Schurz, *Henry Clay*, 1:23-24, fixes Clay's profession as an "orator," describes him as an "arranger of measures," and notes how his superficial brilliance enabled him "to

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Unfortunately, this line of thinking distorts the relationship between Clay and compromise just as it obscures Clay's special legacy to us. Premised on the belief that Clay had few, if any, consistent opinions of lasting value, this image of Clay accords too much prominence to compromise and leaves Clay's ideas adrift. And its portrait of Clay assumes a backdrop of modern party politics and interest-group political activity that, according to recent research, comprises only a part of the larger set of political customs and conventions that shaped Clay's political world.[2] Everybody compromises, especially politicians. But unlike most politicians, Clay explained compromise and placed it within a historical, constitutional, and ethical context that goes far toward explaining his opinions on transient policy questions. If we set aside the standard biographical treatment of Clay's life as an episodic series of challenges to his soaring ambition, and instead treat him as a trenchant observer of the operation of the constitutional system, then a remarkably consistent, if conventional, body of political thought appears.

Henry Clay was a Constitutional Unionist who believed that the Constitution limited the power and scope of the Union by establishing a system partly federal, partly national. This equivocal legacy from the founding fathers dictated the statesman's true duty — to seek the domestic tranquility and a stronger Union by cultivating the people's willingness to make sacrifices over time. Certainly, compromise played a pivotal role in this scheme, but not as a theory. Compromise was both strategy and symbol — a necessary procedure in a pluralistic republic, and a continuing

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make little tell for much, and to outshine men of vastly greater learning." See also Glyndon G. Van Deusen, *Life of Henry Clay* (Boston, 1937), 425-26, and Clement Eaton, *Henry Clay and the Art of American Politics* (Boston, 1957), 89. Several recent revisions of Clay portend a long-overdue reconsideration of the Kentuckian. Daniel W. Howe, *The Political Culture of the American Whigs* (Chicago, 1979), 123-49, was the first historian to give serious attention to Clay's political ideas and their place in contemporary political culture; Thomas Brown, *Politics and Statesmanship: Essays on the American Whig Party* (Columbia, Mo., 1983), 119-53, offers a similar interpretation; and Merrill D. Peterson, *The Great Triumvirate: Webster, Clay, and Calhoun* (New York, 1987), is a fresh reassessment of Clay's statesmanship.

[2]For an example, see John Ashworth, *"Agrarians and Aristocrats": Party Political Ideology in the United States, 1837-1846* (Cambridge, 1983).

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.41 - Visions of the Northwest Coast: Gwin and Seward in the 1850s

Howard I. Kushner

ARTICLE	Visions of the Northwest Coast: Gwin and Seward in the 1850s
JOURNAL	The Western Historical Quarterly 4, no. 3 (1973)
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Visions of the Northwest Coast: Gwin and Seward in the 1850s

Howard I. Kushner

As Joel Silbey has pointed out, the domestic portrait of the 1850s has been distorted because of scholars' commitments to a Civil War synthesis that proclaims the nation spent that decade in sectional conflict awaiting a general national disintegration.[1] This sectional bias has precluded, as well, a fair picture of American attitudes toward expansionism in the fifties. Many historians have assumed, along with Frederick Merk, that expansionism virtually disappeared from American thought after 1848.[2] Others have argued that, while such sentiment existed in this prewar period for the annexation of both Cuba and Mexico, the refusal of Northern Whigs and Northern Democrats to support such acquisitions because they could result in the extension of slavery doomed expansionist plans.[3] Both these views, however, neglect the attempt by important elements of the leadership of both parties to expand commercially and territorially into the Pacific Northwest. These schemes suffered from neither sectional bias nor from political party opposition. Only the actual

Howard I. Kushner is assistant professor of history at State University of New York College at Fredonia.

[1] Joel H. Silbey, "The Civil War Synthesis in American Political History," *Civil War History,* X (June 1964), 130–40.

[2] Frederick Merk, *Manifest Destiny and Mission in American History: A Reinterpretation* (New York, 1963), 227.

[3] Samuel Flagg Bemis has argued that "the crowding vehemence of sectional politics in the United States broke down the expansionist program of the Democratic Party" in the 1850s. *A Short History of American Foreign Policy and Diplomacy* (New York, 1959), 200. Thomas A. Bailey believes that "if the slavery issue had not appeared as an apple of discord" Cuba, Mexico, and much of Latin America would have been annexed. *A Diplomatic History of the American People* (New York, 1969), 267. Arthur Ekirch concludes that "prospects for territorial growth" were dim by the mid-fifties because antislavery opinion in the North refused to support any further expansion to new territories which might be open for the extension of slavery. *Ideas, Ideals, and American Diplomacy: A History of Their Growth and Interaction* (New York, 1966), 57.

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fact of the outbreak of war prevented these plans from being carried out very early in the 1860s.

An examination of the relationship between William Henry Seward and William McKendree Gwin during the 1850s demonstrates this proposition. Both men were active and public advocates of expansionism in the Pacific Northwest during this decade.[4] These were not obscure men. Senator Gwin of California was a native of Mississippi and a resident of that state until 1849. He served as leader of the Democratic forces in the Senate under both President Pierce and President Buchanan. When the Civil War broke, Gwin was incarcerated by the Union government for his alleged Southern sympathies.[5] William Henry Seward, on the other hand, was the acknowledged leader of the Whig party, and later, of the Republican party. Not only was Seward regarded as the man most likely to receive the Republican presidential nomination in 1856 and in 1860, but also he earned the distinction in the Senate as the chief spokesman for abolition. That two such diverse politicians could conspire on important schemes for American expansionism in the 1850s is a significant comment on the nature of American expansionism both before and after the Civil War.

While Gwin and Seward centered their plans on the Pacific Northwest, and particularly upon Russian America, the wider implications of their visions are evident. Gwin, like Seward, envisioned a worldwide commercial empire in which the United States would be the center. To secure such an empire, the United States would have to link the Atlantic with the Pacific across Panama, Nicaragua, and Tehuantepec; build overland mail routes, transcontinental railroads, and telegraphs to cement the

[4] Charles Vevier has pointed out that American continentalism in the 1850s acquired a two-part meaning. First, it signified a "nation-continent created through the interaction of foreign policy and territorial acquisition of contiguous territory in North America." Secondly, and in turn, "it projected the concept of the second American world, the continental domain that was fated to extend its influence over the entire world through the expansion of commerce and the control of international communications." Both parts, argued Vevier, were reciprocal. This, as we shall see, is a good working definition of both Gwin's and Seward's view of expansion in the Pacific Northwest. "American Continentalism, An Idea of Expansion, 1845–1910," *American Historical Review,* LXV (January 1960), 329–30.

[5] Even after moving to California, Gwin retained his plantation in Mississippi. When the war broke out, his son Willie enlisted in the Confederate army. After Gwin was released from federal custody in 1861, he returned to his Mississippi home. See Lately Thomas, *Between Two Empires: The Life Story of California's First Senator* (Boston, 1969), 257–76.

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.42 - Slavery and the Texas Revolution

Paul D. Lack

ARTICLE	Slavery and the Texas Revolution
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Slavery and the Texas Revolution

Paul D. Lack*

If language serves as a useful guide, the matter of slavery occupied an important place in the minds of the leaders of the Texas Revolution. Their rhetoric brimmed with imagery depicting a struggle between freedom and bondage. In their view Mexico sought to enslave the only people in the land who still dared to defend the cause of liberty. A group of volunteers in October, 1835, labeled Mexican rule as "worse than Egyptian bondage"; the following June General Thomas J. Rusk sought to rally the people to the field against an enemy who intended "to make [them] the slaves of petty military commandants." The opposing soldiers thus became "menial slaves" of military despotism. However appealing Texans found this vision of themselves as sufferers "*in the cause of Freedom and the Rights of Man*," in candid moments they acknowledged that the conflict involved the issue of slavery in a manner far different from that portrayed in this propaganda.[1]

Wars for independence had invariably subjected the institution of slavery to profound tensions since the time of the American Revolution. Throughout the new world in the subsequent half-century a variety of forces shook the foundations of bondage and led to its overthrow, by a combination of black revolution and state action, in Haiti, the British West Indies, and the South American republics. In all these slave societies radical ideologies, accompanied by sudden shifts in political, economic, and military power, emerged during times of crisis to undermine the old order. Wars—international, internal, or both—ac-

*Paul D. Lack is a professor of history at McMurry College in Abilene, Texas. He has published on urban slavery in the Southwest and is currently working on a social history of the Texas revolution.

[1] *Texas Republican* (Brazoria), Oct. 10, 1835 (1st quotation); Thomas J. Rusk to the People of Texas, June 27, 1836, John H. Jenkins (ed.), *The Papers of the Texas Revolution, 1835–1836* (10 vols.; Austin, 1973), VII, 287 (2nd quotation); Haden Edwards to James W. Robinson, Nov. 29, 1835, William C. Binkley (ed.), *Official Correspondence of the Texan Revolution, 1835–1836* (2 vols.; New York, 1936), I, 135 (3rd quotation); Council to the People of Texas, Feb. 13, 1836, ibid., I, 419 (4th quotation).

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celerated these challenges to slavery and enabled many blacks to seize their freedom. Emancipation had not triumphed uniformly or without struggle even where the slaveholding classes had been weak, but revolutionary movements had left slavery isolated and threatened from outside and within.[2]

This study of slavery and the Texas Revolution concentrates on the impact of the 1835–36 struggle on both slaves and slaveholders. The conflict with Mexico raised before Anglos the spectre of slave revolt, created for blacks other avenues to freedom besides rebellion, generated forces that weakened the hold of masters over bondsmen, and placed the very survival of the institution in Texas on the success of Texas arms. In order to understand the events of these two years, some attention will also be given to the status of slavery in the earlier period of Mexican rule and to the difficult question of slavery as a factor leading to the Texas movement for independence.

This latter issue attracted attention as soon as war erupted between Mexico and Texas; antislavery zealots quickly attributed the Texas Revolution to a proslavery conspiracy. The most thoroughgoing of these denunciations, *The War in Texas* by Benjamin Lundy, appeared in 1836. Lundy's suspicions regarding the conflict grew out of a decade-old career as an antislavery writer and his visits in Brazoria, Bexar, and other Mexican provinces in 1833. Lundy viewed the origins of the Revolution as exactly opposite to those identified in public pronouncements in Texas, which stressed liberty and human rights. His historical narrative developed the theme that southern-born immigrants had evaded Mexican emancipation measures and had finally sought separate statehood in order to establish the institution on a firm constitutional basis. When foiled in this and other proslavery efforts, a "vast combination" of slaveholders in Texas, supported by land-jobbers, slave-breeders and dealers, and their political lackeys in the United States, implemented a "treasonable" "scheme" to divide Texas from Mexico and reestablish slavery. Like most abolitionists, Lundy placed blame on individual sin: the Texas war derived from "motives of personal aggrandizement, avaricious adventure, and unlimited, enduring oppression."[3]

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[2] David Brion Davis, *The Problem of Slavery in the Age of Revolution, 1770–1823* (Ithaca, N.Y., 1975), 255–342.

[3] Merton L. Dillon, "Benjamin Lundy in Texas," *Southwestern Historical Quarterly*, LXIII (July, 1959), 60 (the *Quarterly* is cited hereafter as *SHQ*); Stephen F. Austin to Thomas F. Leaming, Apr. 30, 1836, Andreas Reichstein (ed.), "The Austin-Leaming Correspondence, 1828–1836," *SHQ*, LXXXVIII (Jan., 1985), 282; [Benjamin Lundy], *The War in Texas: A Review of Facts and Circumstances* . . . (2nd ed., 1837; reprint, Upper Saddle River, N.J., 1970), 3–7, 14 (1st quotation), 20 (2nd quotation), 27 (3rd quotation), 33–34 (4th quotation).

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.43 - Class and Party in the Secession Crisis: Voting Behavior in the Deep South, 1856-1861

Peyton McCrary, Clark Miller, and Dale Baum

ARTICLE	Class and Party in the Secession Crisis: Voting Behavior in the Deep South, 1856-1861
JOURNAL	The Journal of Interdisciplinary History 8, no. 3 (1978)
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Journal of Interdisciplinary History, VIII:3 (Winter 1978), 429–457.

Peyton McCrary, Clark Miller, and Dale Baum

Class and Party in the Secession Crisis: Voting Behavior in the Deep South, 1856–1861

The presidential election of 1860 was in many respects the most crucial in American history, for the victory of Republican candidate Abraham Lincoln triggered the immediate secession of six Southern states and led within months to the outbreak of civil war. Historians of American voting behavior have examined many aspects of the election and the six years of realignment which preceded it, but the bulk of this research focuses on the Northern states, where the realignment process generated an entirely new party, the Republicans. The major concern of scholars such as Formisano, Holt, and Kleppner is the role of religion and ethnicity in shaping individual voter choice. The assumption that the electoral configuration of 1860 remained in effect in most Northern states until the 1890s may have heightened its interest for political scientists and historians investigating long-term trends in the American party system.[1]

For the study of crisis politics, on the other hand, voting behavior below the Mason-Dixon line is of far greater significance. In the lower South, the November balloting for president and the elections for delegates to secession conventions during the next two months provide a unique case study of citizens voting—in what might loosely be termed free elections—for the alternative of political rebellion. In his influential essay, "The Emergence of the

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The authors would like to acknowledge the financial assistance of the University of Minnesota, which provided faculty research grants and computer time. W. Phillips Shively, Michael F. Holt, and William L. Barney read an earlier draft of the manuscript and made helpful suggestions.

1 Ronald P. Formisano, *The Birth of Mass Political Parties: Michigan 1837–1861* (Princeton, 1971); Michael F. Holt, *Forging a Majority: The Formation of the Republican Party in Pittsburgh, 1848–1860* (New Haven, 1969); Paul J. Kleppner, "Lincoln and the Immigrant Vote: A Case of Religious Polarization," *Mid-America,* XLVIII (1966), 176–195. Fredrick C. Luebke, *Ethnic Voters and the Election of Abraham Lincoln* (Lincoln, 1971), collects the most important articles on ethnic and religious influences. James L. Sundquist, *Dynamics of the Party System: Alignment and Realignment of Political Parties in the United States* (Washington, D.C., 1973), 39–91, is the best brief synthesis of the realignment of the 1850s, although it does not deal with the South.

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One-Party South," Lipset has developed a provocative explanation for the victory of immediate secession in 1861: the collapse of traditional party loyalty and the assertion of economic class interest.[2] When voting for president, Lipset argues, the traditionally Whiggish black belt counties of the South supported the Constitutional Union candidate John Bell, a former Whig. The low-slaveholding Democratic areas voted for the proslavery extremist ticket headed by John C. Breckinridge because he was perceived as the "regular" party nominee. In the balloting for delegates to the state secession conventions party lines were no longer present. Black belt counties which had gone predominately for Bell now voted disproportionately for immediate secession in order to protect their slave property from possible Federal interference. Low-slaveholding areas now opposed immediate secession as their economic well-being was not so closely linked with the preservation of slavery.[3]

The core of Lipset's argument has been placed in doubt, however, by the findings of two recent monographs. In an intensive study of voting behavior in antebellum Alabama, Alexander and a group of his students argue that there was strong continuity between the Breckinridge vote and support for immediate secession, and little discernible class difference between the parties at the leadership level.[4] Barney's recent analysis of the secession crisis in Mississippi and Alabama also suggests substantial modification of the Lipset interpretation, which he describes as "a useful but overstated hypothesis." With the exception of the low-slaveholding counties of northern Alabama, Barney finds great continuity between Breckinridge and secessionist support.[5]

2 Seymour Martin Lipset, "The Emergence of the One-Party South: The Election of 1860," in *idem,* (ed.), *Political Man: The Social Bases of Politics* (New York, 1960), 344–354.

3 A recent quantitative study of Louisiana electoral behavior claims to offer additional support for the Lipset thesis. See Perry H. Howard, *Political Tendencies in Louisiana* (Baton Rouge, 1971; rev. ed.), 36–103, especially 101–103. See also the influential quantitative study by Ralph A. Wooster, *The Secession Conventions of the South* (Princeton, 1962), 263–266, which accepts the basic tenets of the Lipset interpretation.

4 Thomas B. Alexander, et al., "The Basis of Alabama's Antebellum Two-Party System, *Alabama Review,* XIX (1966), 243–276, reprinted in Joel H. Silbey and Samuel T. McSeveney (eds.), *Voters, Parties, and Elections* (Lexington, Mass., 1972), 99–120 (the pagination of citations below refers to this copy).

5 William L. Barney, *The Secessionist Impulse: Alabama and Mississippi in 1860* (Princeton, 1974), 271n. Barney argues that the bulk of the Breckinridge and secessionist constituencies lay in newer plantation areas with expanding slave populations, whereas older black belt counties were inclined to be whiggish and oppose secession.

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.44 - The Fugitive Slave Crisis in Cincinnati, 1850-1860: Resistance, Enforcement, and Black Refugees

Stephen Middleton

ARTICLE	The Fugitive Slave Crisis in Cincinnati, 1850-1860: Resistance, Enforcement, and Black Refugees
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THE FUGITIVE SLAVE CRISIS IN CINCINNATI, 1850-1860: RESISTANCE, ENFORCEMENT, AND BLACK REFUGEES

By
Stephen Middleton*

Article IV Section 2 of the U.S. Constitution made fugitive slave legislation possible. The article provided for the capture and removal of fugitives from labor. The federal Fugitive Slave Law of 1793 enacted the clause when it approved the rendition of escaped slaves, and made it a crime to harbor or conceal alleged runaways.[1]

The Fugitive Slave Law (FSL) went almost without notice for four decades. When the antislavery movement accelerated during the 1830s, its leaders condemned the law, claiming that it went beyond the scope intended by the framers. The Founding Fathers, they contended, recognized that this provision could only be implemented by individual states. Yet, Congress seized the opportunity in 1793 to legislate on slavery.[2]

In recent years, historians have also criticized the legislation. They claim its ambiguity influenced free states to implement the law. Northern states cooperated with slaveholders by providing for the employment of public officers to arrest and try runaway slaves. But there was nothing in the article which mandated this action. Thus, it is no wonder that this initiative brought on the wrath of abolitionists by the 1830s, especially those in southern Ohio.[3] Cincinnati abolitionists James Gillespie Birney and Salmon Portland Chase led a cadre of attorneys who launched a legal assault on the FSL.[4]

These abolitionists continued their protest in ensuing years, and after September 18, 1850 when Congress adopted the second FSL, they voiced strong objections. The editors of the Dayton *Evening Empire* wrote: "There seems to be a determination in certain quarters to resist the operation of the law recently passed by Congress, for the apprehension of fugitive slaves and their restoration to their owners."[5]

The framers of the FSL had drafted the legislation to provide a more uniform method for the capture and removal of runaway slaves. Before 1850, antislavery litigation in the North had led to the creation of liberated zones, thereby weakening the first FSL. The second FSL was designed to overcome this deficiency by: 1) the appointment of federal marshals who would capture runaways; and 2) the installation of federal commissioners who would review claims for alleged slaves.

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Cincinnatians vigorously opposed the FSL; and the law did little to discourage blacks who escaped from slavery, seeking refuge in the North. Nevertheless, federal officers strictly enforced the legislation. Hence, opposition to the FSL of 1850, the escape of slaves, and the zealous pursuit of them by slaveholders, created tension in Cincinnati throughout the 1850s.

Cincinnatians considered the new law more obnoxious than its predecessor. Local newspapers reported the mood of the state upon adoption of the second FSL. In Cincinnati, explained the *Enquirer*, the law produced a "good deal of comment [and generated] much excitement in some quarters."[6] The editors of the *Clermont Courier* considered it "a joke" that passage of the law settled the slavery question. Any attempt to enforce its provisions would meet "concerted evasion" or "overt resistance". The law would never succeed in returning even "one-tenth of the fugitive slaves living in free states."[7]

Other quarters of the state also denounced the FSL. Abolitionists in Cleveland adopted resolutions which declared the law unconstitutional and "demanded its immediate and unconditional repeal."[8] Abolitionists also organized in Dayton, Mayesville, and surrounding counties to condemn the law. At these meetings, the *Empire* reported, the sentiments voiced "were of the most violent and inflammatory character, [encouraging] opposition to the law to the death."[9]

The FSL was the catalyst for the protest. Its framers had not appreciated the transformation which had taken place in Ohio since the 1840s. Before, slaveholders had routinely brought slaves into Ohio (while visiting, in transit, or hired-out) who were unaffected by its constitutional prohibition against slavery or proscription in the Northwest Ordinance of 1787. Ohio seldom extended such considerations after 1841 when state courts adopted its law of freedom, which automatically freed slaves when they entered the state. Ohio courts did not originate this rule of law. Judge Mansfield announced the doctrine in England in 1772 when Charles Stuart brought his slave James Sommersett into the commonwealth. A few American courts adopted the rule in 1836.[10]

Before 1841, the authorities in Cincinnati had routinely remanded runaway slaves. In 1827, for example, Frank's Kentucky master had leased his services in Cincinnati. Frank claimed his freedom when he learned of the legal principle of Judge Mansfield who had freed Sommersett in England. Nevertheless, the Common Pleas Court remanded him to slavery after his eight-year residence in Cincinnati.[11] In 1837, Matilda Lawrence suffered the same fate when brought into Cincinnati by a Missouri slaveholder.[12]

During the decades which followed, antislavery lawyers prevailed on the courts and they sensed a metamorphosis. Salmon P. Chase, who directed the legal vanguard, felt misunderstood when "first entrusted with the standard of freedom and reform in Ohio." By 1850, after the transformation of Ohio courts, he felt vindicated claiming "the cause of freedom and reform" of slavery was winning acceptance in the state.[13]

James G. Birney, who originated Ohio's antislavery law, immediately attacked the framers of the FSL. He denounced Henry Clay, who had backed the legislation, as one who compromised the "matter of slavery between the North and South." But, as Birney saw it, "no one can permanently compromise, in this country, a

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Footnote citation

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.45 - Children and Young People on the Overland Trail

Ruth Barnes Moynihan

ARTICLE	Children and Young People on the Overland Trail
JOURNAL	The Western Historical Quarterly 6, no. 3 (1975)
EXCERPT	Original journal pages 279-280
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Children and Young People on the Overland Trail

RUTH BARNES MOYNIHAN

It was a long, long journey; full of grave responsibility to the older members of the family . . . . But for me, a lad of fifteen, it was . . . the most interesting six months' period of my life," said D. B. Ward, sixty years after his overland journey west in 1853. The sentiment was shared by thousands of other children and adolescents who took part in that historic American migration, though the trip was often both grueling and challenging.

Some of those adolescents kept diaries, and some of the children later wrote memoirs, which enable us to recreate their experiences. Among the most interesting are the diaries of eighteen-year-old Helen Marnie Stewart and seventeen-year-old Moses Schallenberger, and the memoirs of Ward, Elisha Brooks, Jesse A. Applegate, Fred Lockley, Sarah J. Cummins, and O. M. Pringle.[1] When they made the trip, Sarah was a newly married sixteen-year-old, Pringle, a boy of fourteen, Brooks was eleven, and Applegate and Lockley were both seven. All of these youths, and many others, were members of large families heading west in wagon trains between 1843 and 1853. The few exclusively male Gold Rush trains often included teenagers like John McWilliams, bubbling with enthusiasm and curiosity as well as with hopes of adventure and gold.[2]

Ruth Barnes Moynihan is a Yale and Danforth graduate fellow in history at Yale University, New Haven.

[1] Helen Marnie Stewart, *Diary – 1853* (Eugene, Oregon, 1961); Moses Schallenberger, *The Opening of the California Trail,* ed. George R. Stewart (Berkeley, 1953); D. B. Ward, *Across the Plains in 1853* (Seattle, 1911); Elisha Brooks, *The Life-Story of a California Pioneer* (San Francisco, 1922); Jesse A. Applegate, *Recollections of my Boyhood,* ed. Joseph Schafer (Chicago, 1934); Fred Lockley, *Across the Plains by Prairie Schooner* (Eugene, Oregon, [192-]); Sarah J. Cummins, *Autobiography and Reminiscences* (La Grande, Oregon, 1908); O. M. Pringle, *Magic River Deschutes* (n.p., 1911). These and other diaries, cited below, are part of an extensive collection in the Beinecke Rare Book Library at Yale University.

[2] John McWilliams, *Recollections of His Youth* (Princeton, [1921]). See Georgia Willis Read, "Women and Children on the Oregon-California Trail in the Gold-Rush Years," *Missouri Historical Review,* 39 (October 1944), 1-23; estimates of the numbers involved in that period and on that trail alone appear on p. 1-6. Read also cites other valuable sources on children's experiences.

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Americans in the 1840s were bent on settling Oregon and California, and for several reasons. Occupation would help refute British and Mexican claims to those areas.[3] Physical possession of the land was the first step to political control. Added incentives were the stories of fertile land, personal opportunities, and healthful climate. Many settlers were only too glad to leave malarial areas of Michigan, Illinois, and Missouri where they suffered from recurrent fevers and high mortality rates.[4] James Reed of the Donner party, among others, expected both "to escape the hard times afflicting the Mississippi Valley in the forties" and to find "that the already famous climate might benefit his invalid wife." [5] Families traveled the overland trail because the little-known hazards did not seem that much graver than the dangers of the lives they were already leading, even for pregnant wives or babes in arms. At the same time, the opportunities seemed much better.

Toddlers and young children could not be easily controlled as the wagons rolled across the prairies. Although they might stay asleep for a few hours after the early morning starts, they were usually out exploring the other wagons or the nearby countryside the rest of the day. As the trains advanced at a speed of only two or three miles an hour, children probably found the trip little more tiring than an average day of play around a settled home. Mothers, older children, fathers, or friends usually walked with them or carried them.

Despite the advantages of this shared child care, there were also hazards. Elisha Brooks described an incident in which a three-year-old boy was missing at suppertime when the train made camp. Everyone searched the dense prairie sagebrush that night and the next morning even though a violent storm and the howling of wolves had them convinced the child must be either dead or devoured. Finally the caravan moved on, leaving behind only the bereaved and the Brooks family. One hour later a man from another wagon train rode up. He had found the boy two

[3] See W. J. Ghent, *The Road to Oregon* (New York, 1929), 66; and Peter H. Burnett, *Recollections and Opinions of an Old Pioneer* (New York, 1880), 97.

[4] Many diarists refer to the fever and ague in the areas they were leaving. T. T. Geer, in *Fifty Years in Oregon* (New York, 1912), 218, told of Daniel Waldo who crossed in the migration of 1843. Having decided with his friends that it was too dangerous to go, he explained the decision to his wife. Her reply was, "Well, Dan Waldo, if you want to stay here another summer and shake your liver out with the fever and ague, you can do it; but in the spring I am going to take the children and go to Oregon, Indians or no Indians. They can't be any worse than the chills and fever!"

[5] George R. Stewart, *Ordeal by Hunger* (Boston, 1960), 16.

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.46 - A Choice of Destiny: Immigration Policy, Slavery, and the Annexation of Texas

David E. Narrett

ARTICLE	A Choice of Destiny: Immigration Policy, Slavery, and the Annexation of Texas
JOURNAL	The Southwestern Historical Quarterly 100, no. 3 (1997)
EXCERPT	Original journal pages 271-272
JSTOR	https://www.jstor.org/stable/30239099

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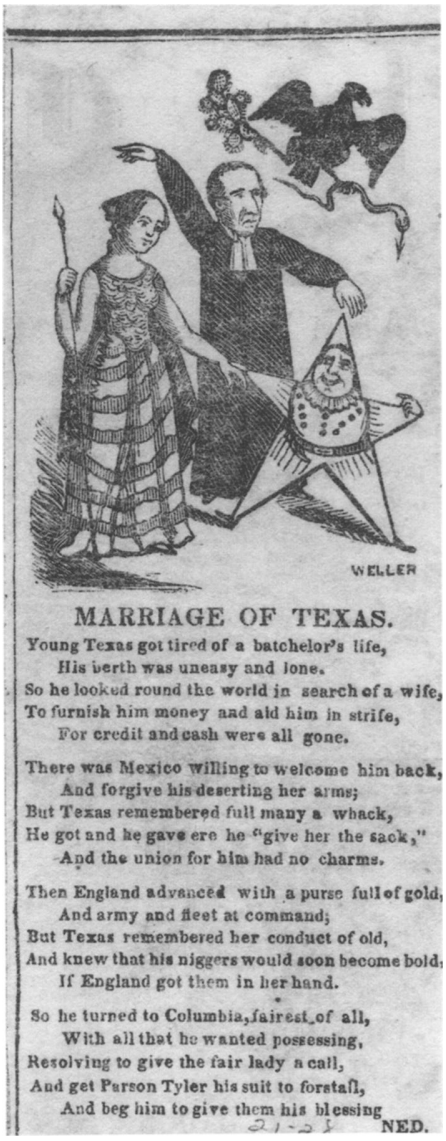

"The Marriage of Texas," New Orleans *Crescent Daily*, ca. 1846. This illustrated poem comments on recent events in Texas. The poem, whose language is avowedly racist, directly mentions British abolitionism as a reason why Texas should join the American Union. The drawing symbolizes the marriage between the youthful star, Texas, and the bride, the United States, presided over by the parson (evidently John Tyler). The Mexican eagle is a mere spectator. *Courtesy A. J. Houston Collection, Archives Division, Texas State Library, Austin.*

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A Choice of Destiny: Immigration Policy, Slavery, and the Annexation of Texas

David E. Narrett*

On March 21, 1845, Memucan Hunt, the former Texas minister to the United States, spoke for a citizens' committee at Galveston which demanded the immediate ratification of annexation to the American Union. "This great measure," he declared, would determine "the destiny of millions yet unborn." To Hunt, the choice before citizens was no less stark than deciding between American and European loyalties. If annexation were rejected, he feared that the Texas Republic would be forced into an alliance with Great Britain that would have devastating social consequences for his nation. Should large numbers of English immigrants be diverted to Texas, Hunt asked rhetorically, would they not "control the destinies of this country" and subject the Republic to "the growing power, the fanaticism, and reckless violence of Abolitionism?" Without labeling all European newcomers as unpatriotic, Hunt cast doubt upon those foreigners in Texas who had settled under colonization contracts in their own communities, "rendering it almost impossible [for them] to mix and amalgamate with our citizens." The growing foreign presence was linked to an even greater danger, namely "that the slave-holders of the South have ceased almost entirely to immigrate to our country." Annexation to the United States was imperative in Hunt's view in order to counteract British influence, to provide a secure political environment for slavery, and thereby to encourage the arrival of

* David E. Narrett is associate professor of history at the University of Texas at Arlington. The author would like to thank all his friends and colleagues at the University of Texas at Arlington who have read and commented on this essay. Special thanks to Dr. José Delgado, who assisted greatly in translating Spanish-language sources, to Fred Hoover for his help in research, and to Gerald Saxon and Kit Goodwin for their suggestions about maps and illustrations. Bret Carroll and Richard Francaviglia offered useful critiques at several points. The author also acknowledges the support of UTA's Center for Greater Southwestern Studies and the History of Cartography which funded travel to archives.

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.47 - John Bell and the Compromise of 1850

Joseph H. Parks

ARTICLE	John Bell and the Compromise of 1850
JOURNAL	The Journal of Southern History 9, no. 3 (1943)
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John Bell and the Compromise of 1850

By Joseph H. Parks

A newcomer to Washington circles sat in the Senate gallery on the opening day of the Thirty-first Congress, December 3, 1849. Looking down from this vantage point, he proceeded to analyze the senators. "On the right of the main aisle were to be seen the massive head and deep-set eyes of Webster, the tall and commanding figure of Clay, the dark but genial face of Corwin, the white head of 'Honest John Davis,' the calm and cautious visage of John Bell, the scholarly looking head of Berrien, the tall forms of Mangum and Dayton, and the merry smile of John P. Hale; on the left, the portly form of General Cass, the towering bulk of General Houston, . . . the classic head and genial face of Colonel Benton, the long, grey locks and sharp attenuated features of Calhoun, the erect, slender figure of Jefferson Davis, the swarthy, foreign-looking face of Pierre Soulé, the energetic, black-clothed 'Little Giant' Douglas, the dark, curling locks of Hunter, and the silver-haired familiar face of Daniel S. Dickinson."[1] These were to be prominent participants in the Senate battle over the Compromise of 1850; and in the development of the spirit of compromise the work of John Bell of Tennessee as a leader of the moderate or middle-of-the-road southerners on the question of slavery in the territories was to play an important part.

John Bell had entered the Senate in 1847.[2] Long a political enemy of James K. Polk, he had arrived in Washington in time to attack

[1] Frederick W. Seward, *Reminiscences of a War-Time Statesman and Diplomat, 1830-1915* (New York, 1916), 70. Seward had just come to Washington to serve as secretary to his father, William H. Seward, a newly-elected senator from New York.

[2] Bell entered national politics in 1827 when he defeated Felix Grundy for a seat in the House of Representatives, a position which he continued to hold until he was ap-

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severely the President's Mexican War policy. Bell had never been an enthusiastic supporter of the war, believing that it "might and should" have been avoided. In his opinion, the evils which resulted from territorial expansion too frequently offset the benefits. This opinion was strengthened by the fight which was already raging over the Wilmot Proviso. Accordingly, when President Polk recommended to Congress that the United States continue to occupy additional Mexican territory, "taking the full measure of indemnity into our own hands," Bell came out in open opposition to further prosecution of the war. While he had no particular desire to annex any Mexican territory, he said, he would not object to taking New Mexico and California if it required such action to satisfy the expansionists; but if Mexico should refuse to surrender these territories, he advocated falling back to the Rio Grande as the boundary. Most of all, he demanded immediate peace, exhorting his fellow senators to "Stop the War! Flee the country as you would a city doomed to destruction by fire from Heaven!"[3] But on February 2, 1848, the day Bell began his two-day denunciation of the administration's war policy, the Mexican government signed the treaty at Guadalupe Hidalgo, ceding New Mexico and California to the United States. When the treaty came before the Senate for ratification Bell voted in the affirmative. He later explained that he did so "under a solemn feeling of responsibility and conviction that if the war went on, we would be compelled to take all Mexico and incorporate it into this con-

pointed Secretary of War by President William Henry Harrison in 1841. During his early years in Congress, Bell was a supporter of Andrew Jackson, but by 1834 he was in the process of joining the opposition. In that year he defeated James K. Polk for the privilege of succeeding Andrew Stevenson as Speaker of the House. By taking the lead in defying Jackson and bringing out Hugh Lawson White against Martin Van Buren in the presidential election of 1836, Bell completed his break with the Democrats. He was the principal figure in the organization of the Whig party in Tennessee, and continued as leader throughout the life of that party. In 1841 he served a few months as Secretary of War, resigning as a result of the split between President Tyler and the forces of Henry Clay. For the next six years Bell remained in private life.

For an excellent summary of Bell's career as a member of the House, see Norman L. Parks, "The Career of John Bell as Congressman from Tennessee, 1827-1841," in *Tennessee Historical Quarterly* (Nashville, 1942-), I (1942), 229-49.

[3] *Congressional Globe,* 30 Congress, 1 Session, Appendix, 189 ff. (February 2-3, 1848).

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.48 - America's Long Eulogy for Compromise: Henry Clay and American Politics, 1854–58

Sarah Bischoff Paulus

ARTICLE	America's Long Eulogy for Compromise: Henry Clay and American Politics, 1854–58
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SARAH BISCHOFF PAULUS

America's Long Eulogy for Compromise

Henry Clay and American Politics, 1854–58

On January 30, 1854, Stephen Douglas rose in the U.S. Senate to defend the Kansas-Nebraska Act against the harsh criticisms voiced by six fellow congressmen in their "Appeal of the Independent Democrats." The bicameral coalition had charged Douglas with violating "a sacred pledge" made in the 1820 Missouri Compromise that slavery would never be allowed to enter any territory lying above 36° 30'. Understanding the national import of these accusations, Douglas chose to justify his proposed bill by claiming that with the Compromise of 1850 Henry Clay had altered the very tradition of compromise he had upheld since 1820. Recognizing that the Missouri Compromise had done little to permanently resolve the contentious slavery issue, Douglas asserted, Clay and his fellow leaders had adopted a more permanent solution. Referring to the land acquired from Mexico, he claimed that the shapers "of the compromise measures of 1850" had not sought "a mere miserable expedient to apply to that territory" but a permanent resolution to the perpetual problem facing the Union. Certainly, a temporary fix had not been the last wish of "the eminent and venerable Senator from Kentucky," who "came here and sacrificed even his last energies upon the altar of the country." Believing Clay's method of compromise had done nothing but prolong the sectional battle, Douglas boldly claimed that the Great Compromiser himself had recognized the need to replace his practice of constantly renegotiating sectional demands with a single, unifying principle. Clay and his fellow leaders had therefore based the Compromise of 1850 upon "certain great principles, which would avoid the slavery agitation in all time to come."[1]

In these statements, Douglas claimed that the Great Compromiser, the first American ever to receive the honor of lying in state at the U.S. Capitol Rotunda, had abandoned the very form of compromise for which he was so beloved and embraced the "great universal principle" of popular sovereignty in its stead. This provocative depiction of the Kentuckian's last great compromise rippled from the Senate chamber across the nation, as

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Douglas Democrats embraced popular sovereignty and Douglas's opponents decried his disturbing disruption of Henry Clay's legacy. From 1854 to 1858, Americans participated in a long eulogy for Clay's compromise tradition, turning away from any attempts at real compromise while drawing on Clay to validate their own principles. By 1858, most Democrats and Republicans believed each of their respective platforms presented a viable moderate substitute to any negotiated compromise, and the door to any effective bipartisan agreement on slavery had closed.[2]

Long before his death on June 29, 1852, Americans had celebrated Henry Clay as an embodiment of the spirit of compromise. When the nation reeled in its first prolonged political battle over slavery in 1820, Clay had utilized his position as Speaker of the House to negotiate an agreement between northerners and southerners. The sudden conflict had disturbingly reignited the turbulent slavery issue, yet Clay's efforts also ushered a particular method of compromise to the forefront of American political culture, enshrining it as an essential tradition in the Union. The final settlement did not force either side to compromise its principles but managed to satisfy both pro- and antislavery forces. Most noticeable was Clay's remarkable ability to act as nonpartisan negotiator. Explicitly setting aside his own highly partisan principles in open displays of unionist devotion, he modeled a form of compromise that compelled his countrymen to the bargaining table. After the passage of the 1820 Missouri Compromise, Americans began to distinguish Clay as the Great Compromiser who, unlike most partisan politicians, proved ever ready to sacrifice his personal principles to salvage the nation from internal strife. This reputation only grew with the 1833 passage of a tariff compromise meant to rid the Union of the distressful nullification debate.[3]

When the slavery question once again threatened to divide the nation in 1850, Americans turned to Clay for assistance in organizing the territories acquired from Mexico. Pulling himself from the restful quiescence of Ashland, his Kentucky estate, the old and withered retiree rose in Congress on February 5 and 6 and delivered a speech that magnificently displayed his—and the nation's—mode of compromise. He began by reaffirming his personal antislavery principle: "I never can, and never will vote, and no earthly power will ever make me vote, to spread slavery over territory where it does not exist" and restating his belief that the power to legislate on the slavery issue rested with Congress. Having admitted openly his own convictions, Clay then laid aside all subjective personal opinions on the issue and engaged in an objective assessment of the courses North and South should each pursue to protect their own interests. He assured Americans that the credit for initiating the 36° 30' line rested with the principles and

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.49 - Confrontation and Abolition in the 1850s

Jane H. Pease and William H. Pease

ARTICLE	Confrontation and Abolition in the 1850s
JOURNAL	The Journal of American History 58, no. 4 (1972)
EXCERPT	Original journal pages 923-924
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Confrontation and Abolition in the 1850s

JANE H. PEASE
AND
WILLIAM H. PEASE

WHEN the reality of events runs counter to the moral imperative of an era, reasonable men join fanatics in rejecting quiet argument and compromise for more vigorous action. The passage of the Fugitive Slave Act in 1850 marked such an occasion.

Long uneasy with the drift and thrust of public action, antislavery men had been alarmed by the threat and then the reality of Texas annexation and war with Mexico. The hopes which the Wilmot Proviso and the Free Soil party had momentarily raised were rudely dashed by the Compromise of 1850. In the decade which followed, both antislavery political moderates and Garrisonian radicals evolved a new style. Openly defying government, deliberately and persistently breaking the law, and explicitly tolerating violence, they desperately searched for a new tactic to embrace and achieve their aims.

Abolition had always been radical. From the adoption of immediate and uncompensated emancipation and the organization of the American Anti-Slavery Society in 1833, subgroups continually emerged going beyond majority opinion within the antislavery societies and demanding ever more extreme programs. By 1840, Garrisonian perfectionism and multi-reform millenialism had driven both orthodox clericals and Liberty party supporters from the American Anti-Slavery Society's ranks. But the rump did not long remain coherent. During the 1840s, it too shattered and divided over the issues of "coming out" and disunion.

By the late 1830s ultra-Garrisonians had developed a strong anticlerical and apolitical position. They had sought to purge churches of fellowship-

Jane H. Pease is assistant professor of history in the University of Maine.
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ping with slaveholders, and they attempted to persuade all political parties to nominate antislavery candidates. By 1842, however, convinced that existing churches and political parties could not be cleansed and must therefore be replaced, the more radical among them turned from purifying engagement in church and politics to disengagement or "coming out" from denominations and parties which compromised with slavery.

Coming out was simple enough. It assumed that Christians, by leaving "nests of unclean birds," would destroy those churches which were the "Bulwark of Slavery"; and that, by withholding their votes from parties which sustained slavery, they would destroy proslavery politics. Nor was it more complex to move from coming out to disunionism. If one accepted the Garrisonian view that the Constitution was a proslavery document, sustaining the peculiar institution in the three fifths ratio for representation and in the provisions for suppressing domestic rebellion and returning fugitives, then the step was easy. To vote or, even worse, to hold office under that Constitution would in itself sustain slavery. Only dissolution of the Union could resolve the dilemma. It was the final step of coming out.

By 1842 both William Lloyd Garrison and Wendell Phillips clearly understood the issue. They then went well beyond the American Anti-Slavery Society's resolution of 1841 that only abolition could achieve "the stability of republicanism, and the triumph of Christianity"; as they also changed the emphasis on individual withdrawals espoused by the come-outers. Rather they contended that sectional division to free the North from slave-power domination in the federal government was the more effective plan of action.[1]

In time, however, disunionism was molded and reshaped. The events of the 1840s cut off effective antislavery action within the existing system. The Garrison-Phillips proposal had been a single response to the *Prigg* decision,[2] which denied states the power to protect their residents from the operation of the 1793 Fugitive Slave Law. The more widespread antislavery reaction, however, was a petition campaign for a constitutional convention to amend the fugitive slave provision. Then, in 1844, the impending annexation of Texas made constitutional amendment seem futile. Consequently, a more defiant disunionism was encouraged. Early that year Stephen Foster, an ultra-Garrisonian from New Hampshire, urged all abolitionists to abjure their personal allegiance to the Constitution and the Union.[3] Although his

[1] William Lloyd Garrison had, in fact, offered the 1841 resolution. *Liberator*, May 28, 1841. For disunion resolutions backed by Garrison and Wendell Phillips at the annual meeting of the American Anti-Slavery Society in May 1842, see *ibid.*, June 3, 1842.

[2] *Prigg* v. *Pennsylvania*, 16 Peters 539 (1842). The decision invalidated an 1826 Pennsylvania personal liberty law, holding that it contravened the federal Fugitive Slave Act of 1793. By extension the court also held that there was no state obligation to enforce the 1793 act.

[3] *Liberator*, Feb. 2, 1844.

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.50 - 'Swelling That Great Tide of Humanity': The Concord, Massachusetts, Female Anti-Slavery Society

Sandra Harbert Petrulionis

ARTICLE	'Swelling That Great Tide of Humanity': The Concord, Massachusetts, Female Anti-Slavery Society
JOURNAL	The New England Quarterly 74, no. 3 (2001)
EXCERPT	Original journal pages 385-386
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"Swelling That Great Tide of Humanity": The Concord, Massachusetts, Female Anti-Slavery Society

SANDRA HARBERT PETRULIONIS

IN 1833, abolitionist leader William Lloyd Garrison predicted that "the destiny of the slaves is in the hands of the American women, and complete emancipation can never take place without their co-operation." Yet it is likely that not even Garrison foresaw the pivotal role women would play in his abolitionist organization. Following the lead of British women a decade earlier, women in the United States began organizing in the 1830s; by 1838, hundreds of women's antislavery societies, with a total membership of over six thousand, were meeting regularly to plan local efforts that would yield tangible political results in the war to end American slavery. From Cincinnati to Boston to Salem to Philadelphia, and numerous small towns in between, women made their voices heard. Only recently, however, have scholars begun to scrutinize the specific accomplishments of these organizations and to identify and credit individual women for their groundbreaking activism.[1]

I would like to thank the following organizations of The Pennsylvania State University for funding that enabled me to conduct research for this article: The Altoona College Dean's Development Fund; the College of Liberal Arts Research and Graduate Studies Office; and the Institute for the Arts and Humanistic Studies. In addition, I am grateful to the National Endowment for the Humanities for providing a Summer Stipend.

[1]Debra Gold Hansen, "The Boston Female Anti-Slavery Society and the Limits of Gender Politics," in *The Abolitionist Sisterhood: Women's Political Culture in Antebellum America*, ed. Jean Fagan Yellin and John C. Van Horne (Ithaca: Cornell University Press, 1994), p. 59. For statistics regarding the number of female antislavery societies in America in the 1830s, see Paul Goodman, *Of One Blood: Abolitionism and the Origins of Racial Equality* (Berkeley: University of California Press, 1998), p. 207.

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In her recent comprehensive study of the female antislavery movement, Julie Roy Jeffrey has shown that despite the fact that large, urban organizations claimed more members, many small women's groups exerted a significant influence.[2] Yet surprisingly, one of the most influential and active of all the female antislavery societies has received virtually no scholarly attention to date, nor does Jeffrey mention it. The Concord, Massachusetts, Female Anti-Slavery Society boasted the wives, sisters, mothers, friends, aunts, and neighbors of men whose public support eventually directed worldwide political and philosophical attention to the antislavery cause. Abolitionist historiography routinely invokes the names of Henry David Thoreau, Ralph Waldo Emerson, Amos Bronson Alcott, and others when recounting Concord's abolitionist past; but adequate recognition of the women who urged them forward is long overdue. Two works that provide the most thorough coverage of the society—Joan Trumbull's 1942 thesis "Concord and the Negro" and Wendell Glick's 1950 dissertation "Thoreau and Radical Abolitionism: A Study of the Native Background of Thoreau's Social Philosophy"—remain unpublished.[3]

[2]Julie Roy Jeffrey, *The Great Silent Army of Abolitionism: Ordinary Women in the Antislavery Movement* (Chapel Hill: University of North Carolina Press, 1998).

[3]In particular, the biographers of Henry D. Thoreau, Lidian (Mrs. Ralph Waldo) Emerson, and Abigail "Abby" (Mrs. Amos Bronson) Alcott mention the organization, as do a handful of works chronicling nineteenth-century Concord. See Walter Harding, *The Days of Henry Thoreau* (1962; reprinted, Princeton: Princeton University Press, 1992); Ellen Tucker Emerson, *The Life of Lidian Jackson Emerson,* ed. Delores Bird Carpenter (Boston: Twayne, 1980; reprinted, East Lansing: Michigan State University Press, 1992); Cynthia Barton, *Transcendental Wife: The Life of Abigail May Alcott* (Lanham, Md.: University Press of America, Inc., 1996); Franklin B. Sanborn, "The Women of Concord IV: Mary Merrick Brooks and the Anti-Slavery Movement" (1906), reprinted in *Transcendental Epilogue: Primary Materials for Research in Emerson, Thoreau, Literary New England, the Influence of German Theology, and Higher Biblical Criticism,* 3 vols., ed. Kenneth Walter Cameron (Hartford: Transcendental Books, 1965–82), 3:44–47; Len Gougeon, *Virtue's Hero: Emerson, Antislavery, and Reform* (Athens: University of Georgia Press, 1990); Gary Collison, *Shadrach Minkins: From Fugitive Slave to Citizen* (Cambridge: Harvard University Press, 1997), pp. 151–58. Gougeon credits the influence on Emerson of Mary Merrick Brooks, the society's most persevering member, while Collison narrates one of the most dramatic episodes in the society's history—its members' overnight vigil with the runaway slave Minkins. The two unpublished works are Joan Trumbull's "Concord and the Negro" (B.A. thesis, Vassar College, 1946), and Wendell Glick's "Thoreau and Radical Abolitionism: A Study of the Native Background of Thoreau's Social Philosophy" (Ph.D. diss., Northwestern University, 1950). See also Barbara K. Elliott and Janet W. Jones, *Concord: Its Black History* (Concord: Concord Public Schools, 1976).

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.51 - 'Religion without Restriction': Anti-Catholicism, All Mexico, and the Treaty of Guadalupe Hidalgo

John C. Pinheiro

ARTICLE	'Religion without Restriction': Anti-Catholicism, All Mexico, and the Treaty of Guadalupe Hidalgo
JOURNAL	Journal of the Early Republic 23, no. 1 (2003)
EXCERPT	Original journal pages 69-70
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"RELIGION WITHOUT RESTRICTION": ANTI-CATHOLICISM, ALL MEXICO, AND THE TREATY OF GUADALUPE HIDALGO

John C. Pinheiro

On May 23, 1847, over 5,000 people gathered in the Kensington district of Philadelphia to lay the cornerstone for the new St. Augustine Church. The new building sat atop the ashy remains of the old one that a nativist mob, incited by leaders of the Native American Party and some local evangelical Protestant clergymen, had burned three years earlier. Bishop Francis Patrick Kenrick, accompanied by a large number of Catholic priests, presided over the celebration. In the middle of a keynote speech dealing mostly with the new church and what it would offer to its parishioners, the Rev. Dr. James Ryder of Holy Cross College took a moment to address the nativist accusation "that no Catholic would bear arms against a Catholic nation" or support a war against a Catholic country. "The contrary," proclaimed Ryder, "was now fully established." He pointed to the many faithful Catholic soldiers "in the field of operations" in the war against Mexico. What Ryder did not know was that, in a few short months, an entire battalion of mostly American Catholic deserters would be captured near Mexico City. The reaction to the capture of these men, known as the San Patricios, would demonstrate that the issue of Catholic loyalty during the U. S.-Mexican War had not in fact died out by the middle of 1847.

John C. Pinheiro received his Ph.D. from the University of Tennessee in 2001 and is assistant editor on the presidential series of *The Papers of George Washington* at the University of Virginia. He thanks Stephen V. Ash, Paul H. Bergeron, John R. Finger, and William Bruce Wheeler, as well as the anonymous referees of this article, for their helpful comments. The author currently is revising his dissertation, "Crusade and Conquest: Anti-Catholicism, Manifest Destiny, and the U. S.-Mexican War of 1846-1848," which aims to provide a comprehensive examination of the interplay between anti-Catholicism and the war.

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Moreover, the same anti-Catholic sentiment that had led to the attack on St. Augustine Church in 1814 and the questioning of Catholic loyalty persisted throughout the war.[1]

The New York *Herald* remarked on alleged Catholic religious affinity with the enemy at the very beginning of the war in May 1846:

> The secret of the desertions from General Taylor we believe is this: A large proportion of the rank and file are Dutch and Irish Catholics. The river opposite Matamoras being only three hundred yards wide, the ringing of the bell for matins, vespers, mass, the elevation of the host, &c., in town, is distinctly heard on the opposite shore. At the signal, these good Christians were in the habit, even if in the midst of the drill, of suspending it for the superior duty of their religious genuflexions [*sic*]. Consequence—some rattaned one fine morning; and the next consequence was desertion.[2]

Some soldiers accused an Irish Catholic priest residing in Mexico of inflaming religious tensions among American troops in order to induce desertion by Catholic soldiers. But an American correspondent in Mexico for the *Journal of Commerce* blamed the desertion of "Romish soldiers" on the influence of Mexican priests. Nativists commonly viewed the Roman Catholic Church as monolithic, and the fact that priests in Mexico encouraged American Catholic soldiers to give up arms led many anti-Catholic Americans to believe that priests in the United States must be doing the same.[3]

Mexican generals and government officials distributed many broadsides throughout the war, offering land and money to American deserters. Oftentimes, Mexican propaganda referred explicitly to religion when addressing German- and Irish-Americans. One broadside in particular caught the attention of the American press, because it appeared soon after the capture of the San Patricios. Addressed by Santa Anna to "Catholic Irishmen," it appealed to them to "Come over to us; you will be received under the laws of that truly Christian hospitality and good faith which Irish guests are entitled to expect and obtain from a Catholic nation." Santa

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[1] Washington (DC) *Daily Union*, June 5, 1847.

[2] New York (NY) *Herald*, May 17, 1846.

[3] Robert Anderson, *An Artillery Officer in the Mexican War, 1846-1847: Letters of Robert Anderson, Captain 3rd Artillery, U.S.A.* (New York, 1911), 315; *Banner of Peace* (Lebanon, TN), June 19, 1846; *Baptist Banner and Western Pioneer* (Louisville, KY), Feb. 11, 1847; *Catholic Telegraph* (Cincinnati, OH), June 11, 1846; *Journal of Commerce* (New York), May 19, June 20, 1846; New York (NY) *Herald*, May 23, 1846; *U.S. Catholic Miscellany* (Charleston, SC), Oct. 2, 1847.

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.52 - John L. O'Sullivan and Manifest Destiny

Julius W. Pratt

ARTICLE	John L. O'Sullivan and Manifest Destiny
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JOHN L. O'SULLIVAN AND MANIFEST DESTINY*

Julius W. Pratt

Of the various rationalizations of the Anglo-Saxon's propensity for taking the lands of other races, undoubtedly the two most appealing and convenient have been those embodied in the phrases "manifest destiny" and "the white man's burden." If expansion has been a blessing—and few Americans, if any, regret the earlier stages of our territorial growth—the coiners of helpful phrases deserve commemoration no less than expansionist statesmen and soldiers. Of our national debt to Rudyard Kipling modern imperialists have never been in doubt. His famous poem, with its "phrase that the world *cannot do without*" as one contemporary put it, was contributed at the opportune moment when a destiny that beckoned across the Pacific had ceased to be "manifest" to the minds of all, and the times called for a new phrase. But for the earlier phrase—"manifest destiny"—Americans have not, until recently,[1] known whom to thank, despite the fact that it helped to remove doubts of the propriety of acquiring Texas, Oregon, California and Alaska; that it justified, in the popular mind, sundry unsuccessful attempts upon Mexico and Cuba in the 1850s; and that it appeared in the platform of the Republican party as recently as 1892. It has been numbered among the many anonymous contributions to our national vocabulary; and yet its author was in his day a man of some note.

Such brief biographical notices of the man as have heretofore appeared record that at the time of his birth his father was United States consul "to the Barbary States," that upon an outbreak of the plague a kind-hearted British admiral took the family on board a man-of-war (though it was the year 1813 and Great Britain and the United States were at war), and that on board this vessel in the

*At the Southampton meeting of the Association, on October 8, 1932, Professor Julius W. Pratt, of the University of Buffalo, read a paper on Peter B. Porter, an Erie County Pioneer. Professor Pratt has suggested the substitution of the present study of John L. O'Sullivan and his famous phrase, as presenting more new material and therefore of more general interest. Editors.

[1]Pratt, J. W., "The Origin of 'Manifest Destiny'," *American Historical Review*, 32: 795–98.

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harbor of Gibraltar in November 1813 was born the child, John Louis O'Sullivan.[2] Time and place, there is reason to believe, are correct, but the State Department has no record of an O'Sullivan in the consular service in 1813, though, as we shall see, the elder O'Sullivan does appear in this role a few years later.

To be born an Irish-American on a British man-of-war during the War of 1812 was sufficiently incongruous and romantic to fit any Irish taste. But incongruity and romance descended upon this sea-tossed cradle through at least three generations and were to be almost as conspicuous in its occupant as in any of his recorded ancestors. A great-grandfather, John O'Sullivan, born in County Kerry about 1700, abandoned thoughts of the priesthood for a military career in the French army, was adjutant general in the army of Bonnie Prince Charlie in 1745, commanded with Cameron of Lochiel the nine hundred Highlanders who captured Edinburgh, drew up the Pretender's army at Culloden, escaped to France after the defeat, and received a somewhat doubtful knighthood from his lord and master.[3] The son of this "Sir" John, Thomas Herbert O'Sullivan, joined the Irish Brigade of the French army and, when John Paul Jones was contemplating a descent upon Liverpool in 1779, was a member of the detachment assigned to that expedition. Unfortunately for the heroic element in this tale, young O'Sullivan quarreled with Jones and fled to America, where he enlisted, not under Lafayette or Washington, but in the British army under Sir Henry Clinton in New York. Thereafter family legend and authentic history diverge. History records that he left the British army about 1783 and died a major in the Dutch service in 1824,[4] while legend relates that he rose to a major-generalship in the British army and bore a title of nobility as Count Bearhaven. But the family narrative has also something to say of his marriage and of his two children, of whom one was the future American consul, the other the teller of the romantic version of her father's story.

Ex-President James Madison must have been startled, one summer evening in 1827, by the apparition at his gate of a dust-covered and foot-weary family of four children and one adult, who sought shelter and permission to tell a tale of misfortune.

[2] *Appleton's Annual Cyclopedia*, 1895, p. 585.
[3] *Dictionary of National Biography*, 42: 318. [4] *Ibid.*, 319.

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.53 - The Austin-Leaming Correspondence, 1828-1836

Andreas Reichstein

ARTICLE	The Austin-Leaming Correspondence, 1828-1836
JOURNAL	The Southwestern Historical Quarterly 88, no. 3 (1985)
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Notes and Documents

The Austin-Leaming Correspondence, 1828–1836

Edited by Andreas Reichstein*

After the conclusion of his *Life of Stephen F. Austin* and of his three-volume edition of Austin papers, Eugene C. Barker received by mail a collection of papers closely related to the history of Stephen F. Austin, his family, and Texas in general.[1] Probably because of lack of time Barker was not able to use this material in an article and so, after they were transcribed in October, 1933, by Earle B. Estill and filed away at the University of Texas, these letters seem to have passed into oblivion. They are, however, able to shed some new light on Stephen F. Austin and his family.

The collection—"Thomas F. Leaming Letters and Papers, 1796–1847, Correspondence with Moses Austin Family"—originally consisted of fifty-nine documents (forty-seven letters and twelve memorandums and other papers) with 160 pages in all. The most important documents are a letter from Moses Austin to Thomas Leaming of Philadelphia; three letters from Mary Austin (wife of Moses Austin) to Rebecca Leaming (wife of Thomas Leaming); eleven letters from James F. Perry (brother-in-law of Stephen F. Austin) to Thomas Fisher Leaming (son of Thomas Leaming); a letter from Thomas F. Leaming to Stephen F. Austin; and fourteen letters from Stephen F. Austin to Thomas F. Leaming. The most significant letters of the last group are presented here. Two additional letters from Stephen F. Austin to Thomas F. Leaming that are not in this collection were known to

*Andreas Reichstein completed the requirements for his doctorate in American history at the University of Freiburg in Breisgau, West Germany, in 1984. He has published several articles and a book, *Der texanische Unabhängigkeitskrieg, 1835/6: Ursachen und Wirkungen* [The Texas war for independence, 1835/6: causes and effects] (Berlin, 1984), which he is currently translating into English.

[1]Eugene C. Barker, *The Life of Stephen F. Austin, Founder of Texas, 1793–1836: A Chapter in the Westward Movement of the Anglo-American People* (Austin, 1969), ix.

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Barker, and he printed them in the *Austin Papers* and used them in his biography of Austin.[2]

The thread running through the letters is a pending lawsuit, in which Thomas F. Leaming had power of attorney for the Austin family, and the family relations of the Austin and Leaming families in general. After ten years and the deaths of both the litigants—Jacob Fox and Stephen F. Austin—this lawsuit against Fox for possession of about four-sevenths of a farm (containing between 210 and 260 acres) in Salem County, New Jersey, was finally lost in 1837. The farm had once belonged to the family of Stephen F. Austin's mother, and the Austin family seems to have had proof that the sale of land to Jacob Fox was void and that the descendants of Abia Brown (the father of Stephen F. Austin's mother) had legal rights to the land.[3] The main correspondence concerning the lawsuit passed directly between James F. Perry and Thomas F. Leaming.[4] The communication between Stephen F. Austin and Leaming regards the settling of Texas and the motives and opinions of Stephen F. Austin.

Although Stephen F. Austin and, to a lesser extent, James F. Perry, his brother-in-law, are familiar to those acquainted with Texas history, the name of Thomas F. Leaming is less well known. Leaming was born in Philadelphia July 14, 1786; married Susan Murgatroyde; had one son, Stevenson M. Leaming; and died in Philadelphia on June 23, 1839. His ancestors can be traced back directly to John Howland of the

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[2]Stephen F. Austin to Thomas F. Leaming, June 14, 1830, Eugene C. Barker (ed.), *The Austin Papers* (3 vols.; Vols. I, II, Washington, D.C., 1924–1928; Vol. III, Austin, 1927), II, 413–419; Austin to Leaming, July 23, 1831, ibid., 677–681. Two copies exist of both of these letters. Of Austin's June 14, 1830, letter to Leaming, both versions of which are given in Barker, the first version is more personal and the second was apparently intended for publication. Neither of these letters is in the Leaming collection. There are also two Austin to Leaming letters dated July 23, 1831. The copy in the Leaming Papers appears to be the final draft of the one in the *Austin Papers*, since the former is much longer, cleaner, and more complete.

The Leaming collection now comprises fifty-seven documents of 147 pages. Two printed documents are no longer part of the collection: a two-page "Announcement of Stephen F. Austin's Death, 1836," is now in the Broadside Collection of the Eugene C. Barker Texas History Center, University of Texas at Austin, and an eleven-page 1832 pamphlet, "Communication Forwarded from San Felipe de Austin Relative to Late Events in Texas," is in the Barker Center's rare book collection. See page 10 of the bound transcripts of the collection, Thomas F. Leaming Papers, Eugene C. Barker Texas History Center (cited hereafter as BTHC).

[3]See Thomas F. Leaming to Samuel Perry, July 18, 1827, and Mar. 18, 1837, Leaming Papers; also "Memorandum of a Conversation with Mrs. Grace Bassett . . . on . . . 13th June 1826 . . . ," ibid.

[4]See Thomas F. Leaming to James F. Perry, Feb. 18, 1828, and Sept. 13, 1837, and James F. Perry to Thomas F. Leaming, Sept. 23, 1827, May 26, June 2, 1828, Mar. 22, Dec. 20, 1829, Feb. 23, 1830, Mar. 9, 1834, Feb. 1, June 4, 1837, and Apr. 21, 1838, ibid.

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.54 - National Identity on a Shifting Border: Texas and New Mexico in the Age of Transition, 1821-1848

Andrés Reséndez

ARTICLE	National Identity on a Shifting Border: Texas and New Mexico in the Age of Transition, 1821-1848
JOURNAL	The Journal of American History 86, no. 2 (1999)
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National Identity on a Shifting Border: Texas and New Mexico in the Age of Transition, 1821–1848

Andrés Reséndez

Introduction

Traditionally, we have told the story of how nations emerged as a triumphant tale of domination exerted by a determined center over reluctant peripheries and by persuasive officials over skeptical masses. The literature depicts state formation and nation building as originating from the core outward and from top to bottom. Sitting at the apex of all political and social organizations, the state has been granted the leading role. After all, it was the state that built the infrastructure linking the center to all corners of the nation, increasing the network of communications within a territory and thus helping integrate a national market. Under the auspices of the state, a nationalist ideology was fashioned and disseminated to all prospective citizens. And it was the state bureaucracy, employing novel means of communication such as mass education, that perpetuated the nation unto subsequent generations. Whether accounts spotlight institutions or identities, the underlying theme is centralization: The national state wins out over lesser political organizations and potential challengers, and the people divest themselves of previous ethnic or local loyalties as the nation becomes their overriding identity.[1]

This core-periphery, top-down model has recently come under criticism. In particular, E. J. Hobsbawm has made a crucial methodological point: Although nations tend to be promoted from above, they nevertheless have to be analyzed and understood from below, "in terms of the assumptions, hopes, needs, longings and interests of ordinary people, which are not necessarily national and still less nationalist." People's perceptions (and not nationalist propaganda) constitute the most critical yardstick against which we can measure the success of attempts at national construction. Historians and theorists have been understandably concerned with state-sponsored nationalist discourse, but they have been less adept at explaining why this discourse

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I thank Robert Johnston, Jaana Remes, and David Thelen for their thoughtful comments and suggestions for this article.

[1] For the most forceful formulation of this view, see John Breuilly, *Nationalism and the State* (Chicago, 1982), 1–2. See also Anthony D. Smith, *National Identity* (Reno, 1991), 59–61.

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was adopted by local communities and non-elite groups. A spate of new monographs shows that, rather than a simple imposition from the center and from above, both state formation and nation building have been two-way processes, involving dialogues and negotiations between nationalist-minded, centralizing officials, on the one hand, and local and regional communities and ethnic groups, on the other.[2]

An approach that pays attention to both state designs and responses from local communities is badly needed to rethink the story of how Mexico's Far North became the American Southwest. This episode has long been explained through a sweeping narrative, that of American expansionism. Undoubtedly, expansionism was a powerful 'mood' that prevailed in the United States throughout the first half of the nineteenth century. But expansionism has been used in the historiography as a catchall, explain-all concept to describe the social psychology of early Americans, to elucidate the relations between American settlers and Native Americans, and to provide a rationale for the policy pursued by the United States toward the Spanish/Mexican possessions.[3] The dramatic territorial exchanges of this era have been presented almost as logical outcomes of that irresistible ideology; they thus require no further explanation. Worse still, by emphasizing how Anglo-Americans expanded their domain, we have left unexamined how other peoples reacted to this offensive, often confining non-Anglo-Americans to the role of passive victims as they watched their homelands being taken away.[4]

Yet when we look closely at this process, we obtain a starkly different image. Expansionism, at least on Mexico's northern frontier, meant first and foremost *economic* penetration that afforded local Hispanic and Native American elites the opportunity to profit. This circumstance led those local elites consciously to shift their allegiances to accommodate their interests, even in the face of opposition from other members of their own ethnic groups. Economic expansion provided the medium in which cross-cultural alliances were forged along Mexico's northern frontier. Rather than idle players, local elites were active agents who made choices of far-reaching consequences.

[2] E. J. Hobsbawm, *Nations and Nationalism since 1780: Programme, Myth, Reality* (Cambridge, Eng., 1990), 10. See Peter Sahlins, *Boundaries: The Making of France and Spain in the Pyrenees* (Berkeley, 1989), 8–9. On Mexico, see David A. Brading, *The Origins of Mexican Nationalism* (Cambridge, Eng., 1985); Peter F. Guardino, *Peasants, Politics, and the Formation of Mexico's National State: Guerrero, 1800–1857* (Stanford, 1996); Florencia E. Mallon, *Peasant and Nation: The Making of Postcolonial Mexico and Peru* (Berkeley, 1995); Florencia E. Mallon, "Peasants and State Formation in Nineteenth-Century Mexico: Morelos, 1848–1858," *Political Power and Social Theory,* 7 (1988), 1–54; Alan Knight, "Peasants into Patriots: Thoughts on the Making of the Mexican Nation," *Mexican Studies/Estudios Mexicanos,* 10 (Winter 1994), 135–61; and Guy Thomson, "Bulwarks of Patriotic Liberalism: The National Guard, Philharmonic Corps, and Patriotic Juntas in Mexico, 1847–88," *Journal of Latin American Studies,* 22 (Feb. 1990), 31–68.

[3] The Manifest Destiny explanation has been popular among both Mexican and American historians. See Albert K. Weinberg, *Manifest Destiny: A Study of Nationalist Expansionism in American History* (Baltimore, 1935); Frederick Merk, *Manifest Destiny and Mission in American History: A Reinterpretation* (New York, 1963); and David M. Pletcher, *The Diplomacy of Annexation: Texas, Oregon, and the Mexican War* (Columbia, Mo., 1973). Pletcher's book constitutes the most authoritative recent study of the war. Among works by Mexican historians, see, for example, Gastón García Cantú, *Las invasiones norteamericanas en México* (The American invasions of Mexico) (Mexico City, 1971). For a critique of Manifest Destiny as a cause of the Texas Revolution, see Andreas V. Reichstein, *Rise of the Lone Star: The Making of Texas* (College Station, 1989), 197–202.

[4] On historiographical one-sidedness, see David J. Weber, *Myth and the History of the Hispanic Southwest* (Albuquerque, 1987), 94–95.

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.55 - The Specter of a Savage: Rumors and Alarmism on the Overland Trail

Glenda Riley

ARTICLE	The Specter of a Savage: Rumors and Alarmism on the Overland Trail
JOURNAL	The Western Historical Quarterly 15, no. 4 (1984)
EXCERPT	Original journal pages 427-428
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The Specter of a Savage: Rumors and Alarmism on the Overland Trail

Glenda Riley

That many violent outbreaks and tragic confrontations occurred between American Indians and the migrants intent upon settling the American West is a widely known fact. But the suggestion that many "uprisings" and "massacres" were in truth little more than the work of overactive imaginations has received far less attention. This study attempts to remedy that lack by examining overlanders' diaries and letters in order to demonstrate that their problems with Indians were frequently derived far more from their own anxieties about what *could* happen to them than from what actually *did* happen.

At the same time, it will explore the ways in which imagination sometimes worked against the best interests of migrants. Fears given voice became ubiquitous rumors, which in turn created a climate marked by anxiety and tension. While such a state kept overland travelers alert to possible danger, it also tended to make them incapable of dealing effectively with the native populations they encountered. With the specter of the savage always before them, trail people were frequently less than calm and rational in their dealings with American Indians, a situation that complicated the process of opening the frontier.

This state of affairs was in part a consequence of a wide dissemination of ideas regarding the contradictory nature of American Indians by the press and popular literature of America and Europe. Such thinking caused most westward-bound people to strike out for the trans-Mississippi West with their heads aswirl with conflicting views. On the one hand, native peoples were seen as bad, hostile, and vicious; on the other hand, they were seen as superior beings, friendly, kind, and courageous. But, because the likeness of the "bad" American Indian was dominant throughout the middle decades of the nineteenth century that coincided with the peak years of the westward movement, the expectations of prospective migrants tended to be negative rather than positive.

Glenda Riley is professor of history and coordinator of the Women's Studies Program, University of Northern Iowa, Cedar Falls.

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Travelers were all the more vulnerable to the alarmism of the trail because the media images of American Indians they had been introduced to were reinforced on a more immediate level by family stories that enveloped them during the months, or sometimes the years, before their departure for the West. This family lore often included an episode or two that featured "murderous savages" and left little to the imagination. As details were repeated and twisted into various shapes for the amusement or edification of listeners, they were sometimes embellished to the point of the macabre. In the face of a dearth of objective critics or purveyors of factual knowledge regarding American Indians, family myth-makers freely embroidered their legends to suit their own and their audiences' fancy.

Thus, many migrants had already served childhood apprenticeships as potential victims before they climbed up to take their place on the wagon seat. Harriet Smith, migrating as a young girl in the 1840s, vividly recalled her grandfather's thrilling and scary tales of the Indians he had encountered while serving in the war of 1812. "Naturally we were somewhat afraid," she commented when they spied their first natives.[1] During that same decade Virginia Reed Murphy similarly carried a terror instilled by her grandmother's frequent recitals regarding the "fearful deeds of the savages" and the trials of an aunt held captive for five years.[2]

Often a primary focus of family lore was upon the imputed Indian custom of scalping their victims. Repeated again and again, scalping narratives eventually produced some extreme reactions upon their hearers. Going west as a child in 1861, Lucy Fosdick not only heard much about scalping but had her hair cropped short by her mother before departure as a protective measure.[3] In 1870 Mabel Beavers manifested a similar response when met at the train by "a couple of full blood Indians." Despite the fact that she had come to teach school in the Oklahoma Indian Territory, Beavers was consumed by prejudice and fear. "I just knew," she recalled, "that if one of those Indians had touched my hair, that my scalp would have come off without any pulling." Although Indians treated her with respect and consideration, she remained a prisoner of her own anxiety. Her explanation was simple and telling: "They were Indians.

[1] Harriet A. L. Smith, "My Trip across the Plains in 1849," California State Library, Sacramento, California.

[2] Virginia Reed Murphy, "Across the Plains in the Donner Party (1846): A Personal Narrative of the Overland Trip to California," *Century Magazine*, XLII (July 1891), 409.

[3] Lucy H. Fosdick, "Across the Plains in '61," Beinecke Collection, Yale University Library, New Haven, Connecticut. See also Emily K. Andrews, "Diary of Emily K. Andrews of a Trip from Austin to Fort Davis, 1874," Barker Texas History Center (BTHC), University of Texas, Austin.

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.56 - Maritime Destiny as Manifest Destiny: American Commercial Expansionism and the Idea of the Indian

Brian Rouleau

ARTICLE	Maritime Destiny as Manifest Destiny: American Commercial Expansionism and the Idea of the Indian
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Maritime Destiny as Manifest Destiny

American Commercial Expansionism and the Idea of the Indian

BRIAN ROULEAU

During the pre-Civil War "Golden Age" of American sail, U.S. merchant and whaling fleets sent hundreds of thousands of young men to sea on voyages both coastal and global. Mariners represented one of the largest occupational groups in the country, and maritime issues preoccupied national political economy and popular discourse. The size and importance of the industry meant that the majority of citizens who traveled abroad at the time were working-class men laboring aboard ships. Americans overseas during the nineteenth century were typically sailors, not tourists, travelers, or missionaries. The descriptions penned by mariners working overseas offer valuable insight that travel narratives and other elite sources do not into the standards by which ordinary Americans were learning to measure the world's inhabitants. Though the dominant story of nineteenth-century development has been a tale of territorial expansion into Indian country, westward settlement was not the only occasion of large-scale encounter between Americans and those of other cultures.[1]

Brian Rouleau is assistant professor of history at Texas A&M University. He would like to thank Jason Opal, Daniel Richter, Daniel Vickers, Michael Zuckerman, and three anonymous reviewers at the *Journal of the Early Republic* for their invaluable comments and criticism. Staff at the Library of Congress, Independence Seaport Museum, Peabody Essex Museum, New Bedford Whaling Museum, New York Historical Society, New York Public Library, and the University of Pennsylvania Rare Book Library were also gracious with their time and expertise.

1. Alex Roland, W. Jeffrey Bolster, and Alexander Keyssar, *The Way of the Ship: America's Maritime History Reenvisioned, 1600–2000* (Hoboken, NJ, 2008) centers the importance of maritime trade and labor in American history. Matthew

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But as they strode out of eastern cities and onto ship decks, mariners struggled to make sense of the world. Demographic studies of seamen have long pointed to their youth, poverty, and lack of education. Not well read in geography, sailors no doubt relied upon the experiences of better-traveled shipmates to anticipate the sorts of societies they might encounter. American seamen carried with them a host of assumptions concerning savagery, civilization, and the boundary between the two. These were understandings about the world shaped by popular culture, by the very act of coming of age as working men in the United States.[2]

The most pervasive evidence of this phenomenon are the references citizen sailors made to American Indians as they traveled across the globe prior to the Civil War. Ideas about North America's native peoples played a major part in helping the nation's seamen comprehend an otherwise baffling array of cultures. Whether as savagery embodied or antimodernism personified, Indians figured prominently in the imaginations of many mariners. Men coming out of cities and towns long bereft of a significant Indian presence still claimed privileged knowledge about primitivism. And in "knowing" natives in North America, they claimed to know all their incarnations in other locales. Diaries, logbooks, and other accounts suggest that the creation and continued expansion of the United States had given American men a belief in their own capacity to understand and interact with the savagery that circled the globe.

The first substantial population of Americans to travel abroad were unprepared to appreciate the very real cultural complexity and demographic variety they would encounter. Sailors advanced across ocean space only to retreat into powerful, longstanding ideas about "Indians" as undifferentiated savages who at best provided novel spectacles but at worst proved implacable foes. Of course, not all men afloat made use of Indian comparisons. Many hailed from maritime towns where

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Raffety discusses the benefits of reconnecting maritime history with the history of nineteenth-century America in Raffety, "Recent Currents in Nineteenth-Century American Maritime History," *History Compass* 6 (Feb. 2008), 607–26. See also Daniel Vickers, "Beyond Jack Tar," *William and Mary Quarterly* 50 (Apr. 1993), 418–24.

2. Daniel Vickers, *Young Men and the Sea: Yankee Seafarers in the Age of Sail* (New Haven, CT, 2005), 4–5.

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.57 - What Was the Compromise of 1850?

Robert R. Russel

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What Was the Compromise of 1850?

By ROBERT R. RUSSEL

THIS PAPER IS CONCERNED ONLY WITH THOSE PROVISIONS of the Compromise of 1850 which related to slavery in the territories, that is, the slavery provisions of the acts organizing the territories of New Mexico and Utah. Nothing is ventured here about the admission of California as a state, the fixing of the Texas-New Mexico boundary, the Fugitive Slave Law, or the law on slave trading in the District of Columbia. The slavery provisions of the territorial acts are the ones most frequently misunderstood. They were the hardest to frame and, with the possible exception of the Texas boundary, the hardest to reach agreement upon in Congress. They are the part most necessary to understand if one is to follow intelligently later phases of the sectional struggle over slavery. They represented, it is believed, the heart of the compromise.

Books treating the compromise do not agree or even approximately agree as to what were the actual provisions of the New Mexico and Utah acts relating to slavery. They agree still less as to wherein those provisions represented compromise, that is, as to who conceded what. They do not even agree in their definition of the much used term "squatter sovereignty." Take a brief look at the college textbooks; we are entitled to expect to find in them the closest approach to accuracy.

Four college textbooks blandly state that New Mexico and Utah territories were organized "without mention" of slavery or "without provisions" regarding slavery.[1] A fifth textbook states

[1] Leland D. Baldwin, *The Stream of American History* (2 vols., New York, 1952), I, 724; Asa E. Martin, *History of the United States* (2 vols., rev. ed., Boston, 1946), I, 715; Avery Craven and Walter Johnson, *The United States: Experiment in Democracy* (Boston, 1947), 358, 360; Robert E. Riegel and David F. Long, *The American Story* (2 vols., New York, 1955), I, 302.

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that the territories were organized "with no provision for slavery during the territorial period" but adds that the states which might be made from the territories were to be admitted with or without slavery as their constitutions might prescribe at the time of their admission.[2] Six other textbooks tell of the organization of the two territories without mentioning any other provision as to slavery than the statehood provision and, so, imply that there was no other.[3] Three of the six say that the territories were organized "without prohibition" of slavery or that they were organized "without the Wilmot Proviso" and then give the statehood provision; they do not explain what the status of slavery would be in a territory organized "without the Wilmot Proviso."[4] Six other college textbooks state that the territorial acts provided for "popular sovereignty" or "squatter sovereignty" as to slavery during the territorial period.[5] They mention no other slavery provision and, so, imply that there was no other. These six give three substantially different definitions of popular sovereignty. Five additional textbooks, in addition to stating one, or the other, or both of the provisions heretofore mentioned, state a third slavery provision of the territorial acts, namely, one for the submission of the question of the status of slavery in the territories to the Supreme Court of the United States.[6] No two of the five in this class agree

[2] Oliver P. Chitwood, Frank L. Owsley, and H. C. Nixon, *A Short History of the American People* (2 vols., New York, 1945-1952), I, 638-39.

[3] Arthur C. Bining and Philip S. Klein, *A History of the United States* (2 vols., New York, 1950-1951), I, 540; Harry J. Carman and Harold C. Syrett, *A History of the American People* (2 vols., New York, 1952), I, 571-73; Samuel E. Morison and Henry S. Commager, *The Growth of the American Republic* (2 vols., 4th ed., New York, 1950), I, 604, 606; James G. Randall, *The Civil War and Reconstruction* (New York, 1937), 124; Merle Curti and others, *An American History* (2 vols., New York, 1950), I, 518; Ralph V. Harlow, *The Growth of the United States* (2 vols., New York, 1943), I, 458-59.

[4] The last three textbooks mentioned in the preceding footnote. But Randall, in a flash back on page 129, says the "principle of popular sovereignty" had been applied.

[5] Clement Eaton, *A History of the Old South* (New York, 1949), 544; John D. Hicks, *The Federal Union* (New York, 1952), 498, 525; Homer C. Hockett, *The Constitutional History of the United States* (2 vols., New York, 1939), II, 226-28; F. L. Paxson, *History of the American Frontier, 1763-1893* (Boston, 1924), 379-80; George M. Stephenson, *American History to 1865* (New York, 1940), 498; Carl B. Swisher, *American Constitutional Development* (Boston, 1943), 239, 240.

[6] Dwight L. Dumond, *A History of the United States* (New York, 1942), 390-94; A. H. Kelly and W. A. Harbison, *The American Constitution: Its Origin and Development* (New York, 1948), 374; A. C. McLaughlin, *A Constitutional History of the United States* (New York, 1935), 531-34; Jeannette P. Nichols and Roy F. Nichols, *The Republic of the United States: A History* (2 vols., New York, 1942), I, 500; Fred W. Wellborn, *The Growth of American Nationality, 1492-1865* (New

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.58 - Thomas Jefferson's Republicanism and Antebellum Southern Thought

Robert E. Shalhope

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Thomas Jefferson's Republicanism and Antebellum Southern Thought

By Robert E. Shalhope

Thomas Jefferson has fascinated scholars for well over one hundred years. Throughout that time, however, he has not been immune to the tendency among historians to create a single and substantial "reality" in the period they are studying and then to judge individuals, groups, or movements by that standard. Those reflecting the fundamental realities of an age merit favorable judgment, while those who depart from full awareness present irrational or moral aberrations. An individual's ideas either contain true or false descriptions of the "real" world; ambiguous statements emanate from confused minds.[1] Thus, measured by one historian's conception Jefferson was a great liberal statesman, whereas by another's he was an opportunistic hypocrite.

In recent years research in a striking variety of disciplines has converged on an area of investigation which casts doubt on the historian's effort to establish *the* reality of an era. This "cognitive" scholarship—intent upon understanding the function of ideas in human experience—views man as a "symboling" creature.[2] That is, man, in his effort to cope with a complex and at times overwhelming universe, constructs schemes of reality which impose form on that universe. By this means humans often break up "reality" and rearrange it in patterns which provide order and

[1] Gene Wise presents a provocative analysis of historians' treatment of "reality" in "Political 'Reality' in Recent American Scholarship: Progressives Versus Symbolists," *American Quarterly,* XIX (Summer Supplement, 1967), 303–28.

[2] Examples from psychology, sociology, philosophy, linguistics, and literature include George A. Kelly, *The Psychology of Personal Constructs* (New York, 1955); Peter L. Berger and Thomas Luckmann, *The Social Construction of Reality: A Treatise in the Sociology of Knowledge* (Garden City, N. Y., 1966); Ernst Cassirer, *An Essay on Man: An Introduction to the Philosophy of Human Culture* (New Haven and London, 1944); Joseph Church, *Language and the Discovery of Reality: A Developmental Psychology of Cognition* (New York, 1961); Kenneth Burke, *The Philosophy of Literary Form: Studies in Symbolic Action* ([Baton Rouge], 1941). Gene Wise employs the term "cognitive scholarship" in an interesting discussion of such work in *American Historical Explanations: A Strategy for Grounded Inquiry* (Homewood, Ill., 1973), 41–53.

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sense to their existence. Individuals rarely encounter objective reality; instead, they confront a reality which is filtered through images in their minds, images which link one experience with another in meaningful ways. Humans see the world only through a "mental set," or a cluster of expectations about what they will see. To employ Thomas S. Kuhn's term, communities create "paradigms" which set the form for their enquiry.[3] In effect, these paradigms establish the mental space within which a community thinks and acts.

In the light of this research historians should become aware of the possibility that separate groups within a particular society might well encounter their environment through distinctive social constructs. Thus, a given historical era could produce a number of different "realities." A fuller knowledge of history may, therefore, come only as a result of a complementarity of views. With this in mind, it is hoped that an analysis of the paradigm which structured his thought will futher an understanding of Thomas Jefferson and perhaps provide access to the mind-set through which a growing number of antebellum southerners experienced the early nineteenth century.[4]

The idea that the American South underwent a conservative reaction in the second quarter of the nineteenth century has enjoyed great popularity among historians for quite some time.[5] Scholars adhering to this perspective delineate "Jeffersonian" and "post-Jeffersonian" phases of antebellum southern history. Assum-

[3] Kuhn, *The Structure of Scientific Revolutions* (Chicago and London, 1962).

[4] Any attempt to understand group attitudes by focusing upon a single individual is fraught with difficulties. However, such a technique gains increased validity in view of the emergent belief among scholars that Jefferson's power as a thinker did not depend upon originality but upon his ability to synthesize prevalent patterns of thought. Thus, he may be regarded as "an intellectual middle-man, whose literary skill made him an ideal popularizer of other people's thoughts." Douglass Adair, "The New Thomas Jefferson," *William and Mary Quarterly*, 3d Ser., III (January 1946), 123–33; quotation on p. 133. In his chapter, "Thomas Jefferson: Self and Society," Winthrop D. Jordan reveals excellent insight into American racial attitudes by focusing on Jefferson. *White over Black: American Attitudes Toward the Negro, 1550–1812* (Chapel Hill, 1968), 429–81. It is hoped that a similar approach to southern attitudes toward government and society may be equally fruitful.

[5] The classic expression of this thesis is found in the work of Clement Eaton: *Freedom of Thought in the Old South* (Durham, 1940); *The Mind of the Old South* ([Baton Rouge], 1964); *The Growth of Southern Civilization, 1790–1860* (New York, 1961); *The Freedom-of-Thought Struggle in the Old South* (New York, Evanston, and London, 1964). It does, however, permeate textbooks on the South from William E. Dodd's, *The Cotton Kingdom: A Chronicle of the Old South* (New Haven and other cities, 1920) through William B. Hesseltine, *A History of the South, 1607–1936* (New York, 1936); Francis B. Simkins, *A History of the South* (New York, 1953); and Monroe Lee Billington, *The American South: A Brief History* (New York, 1971). See also Stanley M. Elkins, *Slavery: A Problem in American Institutional and Intellectual Life* (Chicago, 1959); Charles G. Sellers, Jr, "The Travail of Slavery," in Sellers, ed., *The Southerner as American* (Chapel Hill, 1960), 40–71; and William W. Freehling, *Prelude to Civil War: The Nullification Controversy in South Carolina, 1816–1836* (New York and London, 1966).

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.59 - The Rendition of Anthony Burns

Samuel Shapiro

ARTICLE	The Rendition of Anthony Burns
JOURNAL	The Journal of Negro History 44, no. 1 (1959)
EXCERPT	Original journal pages 34-35
JSTOR	https://www.jstor.org/stable/2716312

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THE RENDITION OF ANTHONY BURNS

As 1854 opened, the political atmosphere in Boston was profoundly, deceptively calm. Agitation over the defeated Constitution of the previous year had subsided. The innocuous Edward Everett sat in the Senate as Charles Sumner's colleague while one lethargic Whig administration replaced another in the State House. Massachusetts momentarily shared the national mood of peace, prosperity, and acquiescence in the Compromise of 1850. After the rendition of Thomas Sims in 1851 no other fugitive had been returned to slavery from the Bay State, and recaptures were seldom even attempted.[1]

Yet the slavery issue was only slumbering. Early in the new year it was roused to more vigorous life than ever by the introduction of a revised version of the Kansas-Nebraska bill in the Senate. Senator Stephen A. Douglas of Illinois, leader of the Democratic party and sponsor of the bill, typified the "don't-care" sentiment of many midwesterners about the South's "peculiar institution." Aggressive and blustering, clearly not "high toned." Douglas saw slavery as an economic rather than a moral problem.[2] The Senator's proposal to repeal the Missouri Compromise arose from the requirements of party politics and railroad building,[3] but to antislavery men it seemed part of a vast conspiracy to transform the United States into "a slaveholding and slavery propagating" nation.[4]

The response to Douglas' bill in Boston was overwhelmingly hostile. Most significantly, the men who had supported

[1] Harold Schwartz, "Fugitive Slave Days in Boston," *New England Quarterly*, XXVII (1954), 197-202; Leonard W. Levy, "Sims' Case: The Fugitive Slave Law in Boston in 1851," *Journal of Negro History*, XXXV (1950), 72-74.

[2] Allan Nevins, *Ordeal of the Union* (New York: Charles Scribner's Sons, 1947), II, 107-109.

[3] Roy F. Nichols, "The Kansas-Nebraska Act: A Century of Historiography," *Mississippi Valley Historical Review*, XLIII (September, 1956), 187-212.

[4] Richard Henry Dana, Jr. to John Jay, February 12, 1854, in C. F. Adams, Jr., *Richard Henry Dana: A Biography* (Boston: Houghton, Mifflin and Co., 1890), I, 254.

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Daniel Webster in 1850 for the sake of national harmony refused to follow Douglas now. Whigs like Samuel Eliot, George Hillard, and Robert C. Winthrop publicly retracted their support of the earlier compromise, and Amos Lawrence warned that, if more territory were opened to slavery, the Fugitive Slave law could no longer be enforced in the North.[5] In many men's minds Kansas and fugitives were intimately connected. If the South chose to violate the compact made in 1820 then the North in turn was released from the obligations assumed in 1850.

Just at this juncture there was an unfortunate revival of the fugitive slave disturbances of previous years. At about the time Douglas introduced the first version of his bill in the Senate a group of Southerners came to Boston in pursuit of three Negroes who had escaped from Portsmouth, Virginia. The fugitives were traced to New Bedford and their owners at first went there alone, hoping to persuade them to return voluntarily. When this foolish venture failed, the claimants turned to District Attorney Benjamin Hallett and U. S. Marshal Watson Freeman for help. Asa Butman, the Deputy who had arrested Sims, was sent to the old whaling city but found that his intended victims had fled. Southern opinion, largely indifferent to the Kansas-Nebraska bill, was infuriated by this new failure to enforce the law. Protest meetings were held, petitions drawn up, and angry letters sent to President Pierce demanding action.[6] In March there was another escape, this time in Milwaukee, where a mob spirited a fugitive out

[5] Richard Henry Dana, Jr. to Charles Sumner, February 26, 1854, Sumner Papers, Harvard University Library; Amos A. Lawrence to William Appleton, March 6, 1854, quoted in Roy F. Nichols, *Franklin Pierce* (Philadelphia: University of Pennsylvania Press, 1931), p. 361; G. T. Anderson, "The Slavery Issue as a Factor in Massachusetts Politics from the Compromise of 1850 to the Outbreak of the Civil War," Unpublished Ph.D. dissertation, Depart. of History, University of Chicago, 1944, pp. 75-79. Samuel Bowles, influential editor of the Springfield *Republican,* was another Webster Whig who now denounced the Fugitive Slave law. George S. Merriam, *The Life and Times of Samuel Bowles* (New York: The Century Co., 1885), I, 112.

[6] Lawrence Badger of Portsmouth, Virginia, to Franklin Pierce, March 18, 1854, Watson Freeman to Caleb Cushing, March 29, 1854, Attorney General's Papers, National Archives; Boston *Daily Commonwealth*, March 21, 1854, p. 2, c. 2.

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.60 - The Caning of Charles Sumner: Slavery, Race, and Ideology in the Age of the Civil War

Manisha Sinha

ARTICLE	The Caning of Charles Sumner: Slavery, Race, and Ideology in the Age of the Civil War
JOURNAL	Journal of the Early Republic 23, no. 2 (2003)
EXCERPT	Original journal pages 233-234
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THE CANING OF CHARLES SUMNER: SLAVERY, RACE, AND IDEOLOGY IN THE AGE OF THE CIVIL WAR

Manisha Sinha

On May 22, 1856, Preston Smith Brooks, a South Carolinian congressman, assaulted a seated Charles Sumner, antislavery senator from Massachusetts, in the Senate chamber. Brooks rained blows on Sumner's head and shoulders with his cane while Representative Laurence M. Keitt, a secessionist colleague from South Carolina, kept others at bay. Brooks later described the caning in a letter to his brother, "I struck him with my cane and gave him about 30 first rate stripes with a gutta perch cane. . . . Every lick went where I intended. For about the first five of six licks he offered to make fight but I plied him so rapidly that he did not touch me. Towards the last he bellowed like a calf." Stunned by the assault, Sumner was unable to slide out of his chair and was pinned under his desk, which was hinged to the floor. He finally managed to extricate himself by tearing the desk off the floor, only to fall down unconscious, covered with blood. Sumner suffered from several bruises and cuts; two serious wounds on the head exposed his skull and had to be stitched. In his frenzy, Brooks had received a minor cut in his head from the backlash of his cane. He continued to hit Sumner until a northern representative physically restrained him. The cane

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Manisha Sinha is an associate professor of Afro-American studies and history at the University of Massachusetts, Amherst. She is currently working on a book on African Americans and antislavery movements from 1775 to 1865. I am grateful to Eric Foner, David Blight, Jim Horton, Deborah Gray White, Bruce Laurie, Michael Morrison, and the anonymous readers for the *Journal of the Early Republic,* and audiences at the University of Muenster, Germany, University of Rome, Italy, the annual meeting of the Organization of American Historians in San Francisco, and the W. E. B. Du Bois Institute for Afro-American Research, Harvard University, for their comments and suggestions.

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had shattered from the attack, and Brooks pocketed its gold head, declining the Senate page's offer to retrieve the fragments from the floor.[1]

According to the oft-repeated story, Brooks had become enraged on learning of Sumner's "The Crime Against Kansas" speech, which, he felt, had insulted South Carolina and his "relative," Senator Andrew Pickens Butler. He decided to "punish" Sumner and after lying in wait for him for a day, came upon him at his Senate desk. Brooks and his defenders claimed that Sumner incited the attack by using unusually offensive language. [2] As some historians have argued, Sumner's famous speech and Brooks's subsequent assault and the reactions to the caning north and south of the Mason Dixon line revealed the fundamental political divide over racial slavery in the country.[3] Instead of looking at the sectionalism the caning

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[1] *Congressional Globe*, 34th Cong., 1st sess., 1353-67; Preston Brooks to J. H. Brooks, May 23, 1856, "Statement of Preston Brooks, 28 May, 1856," Preston Smith Brooks Papers (South Caroliniana Library, University of South Carolina, Columbia); Henry Wilson, *History of the Rise and Fall of the Slave Power in America* (3 vols., Boston, 1872-77), 2:478-95; Elias Nason, *The Life and Times of Charles Sumner: His Boyhood, Education, and Public Career* (Boston, 1874), 222.

[2] This standard interpretation that dominates the historiography of the caning relies on David Donald's highly biased and unsympathetic biography, *Charles Sumner and the Coming of the Civil War* (New York, 1960), 278-347; also see Frederick J. Blue, *Charles Sumner and the Conscience of the North* (Arlington Heights, IL, 1994), 39, 91-93, 215-16; Leonard L. Richards, *The Slave Power: The Free North and Southern Domination, 1780-1860* (Baton Rouge, 2000), 195-96; Michael A. Morrison, *Slavery and the American West: The Eclipse of Manifest Destiny and the Coming of the Civil War* (Chapel Hill, 1997), 166; Gunja SenGupta, *For God and Mammon: Evangelicals and Entrepreneurs, Masters and Slaves in Territorial Kansas, 1845-1860* (Athens, GA, 1996), 111; Tyler Anbinder, *Nativism and Slavery: The Northern Know Nothings and the Politics of the 1850s* (New York, 1992), 214-15; Kenneth M. Stampp, *America in 1857: A Nation on the Brink* (New York, 1990), 11; William E. Gienapp, *The Origins of the Republican Party, 1852-1856* (New York, 1987), 299-303; Lacy K. Ford Jr., *Origins of Southern Radicalism: The South Carolina Upcountry, 1800-1860* (New York, 1988), 348; and Bertram Wyatt-Brown, *Yankee Saints and Southern Sinners* (Baton Rouge, 1985), 198; an exception is David Grimsted, *American Mobbing, 1828-1861: Toward Civil War* (New York, 1998), 99-100.

[3] Michael D. Pierson, "'All Southern Society is Assailed by the Foulest Charges': Charles Sumner's 'The Crime Against Kansas' and the Escalation of Republican Anti-Slavery Rhetoric," *New England Quarterly*, 68 (Dec. 1995), 531-57; Kenneth S. Greenberg, *Masters and Statesmen: The Political Culture of American Slavery* (Baltimore, 1985), 144-46; William E. Gienapp, "The Crime Against Sumner: The Caning of Charles Sumner and the Rise of the Republican Party," *Civil War History*, 25 (Sept. 1979), 218-45; David M. Potter, *The Impending Crisis, 1848-1861*, completed and edited by Don E. Fehrenbacher (New York, 1976), 209-11, 220-21; Charles S. Sydnor, "The Southerner and the Laws," *Journal of Southern History*, 6 (Feb. 1940), 21-23; Allan Nevins, *Ordeal of the Union* (2 vols., New York, 1947), 2:437-50; Avery O. Craven, *The Growth of Southern Nationalism, 1848-1861* (Baton Rouge, 1953), 223-38; for an anachronistic, prosouthern reading of the

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.61 - Indians in American-Mexican Relations before the War of 1846

Ralph A. Smith

ARTICLE	Indians in American-Mexican Relations before the War of 1846
JOURNAL	The Hispanic American Historical Review 43, no. 1 (1963)
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Indians in American-Mexican Relations Before the War of 1846

BY RALPH A. SMITH*

I

Introduction

Indian raids multiplied Mexico's problems, in the generation before her war with the United States, to a degree not generally realized today. They upset her agricultural, commercial, mineral, and ranch life over hundreds of thousands of square miles. Consequently, the country's capacity for defense declined at a time when centralism, clericalism, militarism, and American imperialism were debilitating the nation. The chief offending mountain tribes were Apache, Navajo, and Ute; and the most troublesome plains Indians were Comanche and Kiowa.

Developments on both sides of the Rio Grande in the middle 1830's encouraged these natives to make their incursions. Notable were the trade and amity treaties which United States and Texas commissioners celebrated with Comanches and Kiowas. These agreements raised the market for Mexican livestock, plunder, and captives,—a market already strong in Arkansas, Texas, Oklahoma, and Missouri, and at Bent's Fort, Santa Fe, and Taos. Americans who entered Arizona and New Mexico joined Mexicans in buying similar staples from Apache raiders and in moving them into the same broad channels of western commerce. Mexico's swing to dictatorship in 1835 produced another encouragement for Indian raids,—namely, the government's policy of disarming the people except for bows, arrows, knives, lances, lariats,[1] and a few old guns. Persistent squabbling between civil and military authorities also added to the domestic weakness. A third stimulant, particularly to revenge raids, was the resolve of border states to hire professional scalp hunters to scalp hostile natives.

* The author is professor of history at Abilene Christian College.

[1] *La Luna*, periódico del gobierno de Chihuahua, marzo 2 y 30 de 1841; *El Registro Oficial*, periódico del gobierno del departamento de Durango, octubre 9 de 1845. Most of the information for this article comes from reports of district officers, governors' decrees, and editorials reflecting official policies.

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II

Indian Plunder Trails

These savage invasions of the Mexican settlements had gone on over the same routes for a century or more; the new aspect about them was their intensification. Never before had the Mexican nation faced war with the marauders and with a major foreign power simultaneously. Whenever the wild tribes sensed a crisis between Mexico and the Anglo-American republics, they stepped up their raiding. Comparing the raids of mountain and plains tribes, the editor of the Chihuahuan gazette noted that the Comanche and Kiowa nomads were "much more numerous and more warlike than the Apaches."[2] General Alejo García Conde who had to contend with both groups observed significantly that the plains Indians also came "better armed."[3]

Plains warriors loped their ponies southward "in great masses,"[4] and crossed the present international boundary at three places (compared to eight Apache crossings). The Great Comanche War Trail was one of the longest unilateral commercial lines in North America. Beginning around the Arkansas River, it traversed West Texas and forked several times before reaching the Rio Grande at three fords. Two of the three trunks finally passed over the Tropic of Cancer at widely separated points. The western branch entered Mexico near present Lajitas, Texas, and bore southwestward to the Río Conchos. Following the Conchos and the Río Florido through good farm and ranch country[5] into Durango, this trail passed over the Río del Oro and went up Ramos Valley, where the raiders took hundreds of captives and thousands of head of livestock through the years. Running west of Victoria de Durango,[6] it pushed across the Tropic of Cancer and deep into Zacatecas before branching out among mountain villages and ranches.

The middle trunk crossed the Rio Grande at "the grand pass of the Indians called Chizos,"[7] where the Chihuahua-Coahuilan boundary touches the river, about forty miles downstream from Lajitas. It followed roughly the boundary of these states into the Bolsón de

[2] *El Faro*, periódico del gobierno del estado libre de Chihuahua, abril 3 de 1849.
[3] *El Registro Oficial*, marzo 2 de 1845.
[4] *El Faro*, abril 3 de 1849.
[5] Francisco R. Almada, *Diccionario de historia, geografía y biografía chihuahuense* (Ciudad Chihuahua: Talleres Gráficos del Gobierno del Estado, 1927), p. 103. (Cited hereafter as Almada, *Diccionario . . . chihuahuense*).
[6] *El Registro Oficial*, marzo 14 y septiembre 5 de 1844.
[7] Vicente E. Manero, *Documentos interesantes sobre colonización: los ha reunido, puesto en orden cronológico y los publica* (México, D. F.: Imprenta de la v.é. hijos de Murguia, 1878), p. 30.

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.62 - The Scalp Hunter in the Borderlands, 1835-1850

Ralph A. Smith

ARTICLE	The Scalp Hunter in the Borderlands, 1835-1850
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THE SCALP HUNTER IN THE BORDERLANDS 1835–1850*

by

RALPH A. SMITH

The author, a Professor of History at Abilene Christian College, Abilene, Texas, has researched extensively in this twilight period of Southwestern history, and is preparing a biography of James Kirker.

On April 22, 1837, in the Sierra de las Ánimas of present Hidalgo County, New Mexico, James Johnson, a Kentucky hatter, touched his cigar ash to the fuse of a concealed cannon loaded with scrap iron, and at close range fired into a band of unsuspecting Mimbreño Apaches, killing and maiming a number of men, women, and children. Then, before the chief and his stunned followers could recover, Johnson and his party, using knives and guns, set upon the confused Indians. Two years earlier, on September 7, 1835, the Mexican state of Sonora, suffering from Apache inroads, had enacted a law establishing a scalp bounty system, and it was under this statute that James Johnson, guaranteed one hundred pesos for each scalp from an Apache warrior, had entered into a contract with Governor Escalante y Arvizu, and had gone north in search of "game." Johnson's attack opened an era in Borderlands history characterized by what one Mexican gazette roundly condemned

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*** This is a revised version of a paper read at the Third Annual Arizona Historical Convention, held at Tucson in March of 1962.**

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as "the vile industry of selling scalps"[1] — but what professional scalp hunters themselves regarded as an "era of good feeling."

The effects of Johnson's deed were far-reaching. His success prompted Chihuahua in 1837 to adopt a bounty scale that offered one hundred pesos for the scalp of a warrior, fifty for that of a squaw, and twenty-five for that of a child.[2] With a peso worth approximately the same as an American silver dollar, and with Apache scalps abundant, it is not surprising that some Americans caught in the Panic of 1837 saw opportunities for quick riches at the lower end of the Santa Fe Trail. The bounty system, however, only intensified the bitter conflict between the Apaches and the Mexicans, and in time even converted these nomads from peace to hostility toward Americans. A generation of warfare followed, ending finally in the 1880s, with Chief Victorio losing his scalp (valued at $2,000) to scalp hunter Mauricio Corredor,[3] Chief Taline losing his head to Mexican captors,[4] and Geronimo being sent to pace the floors of Fort Marion in Florida.

The individual who benefited most from the bounty system was a Scotch-Irish soldier of fortune named James "Don Santiago" Kirker. Known as the "King of New Mexico" because of his political weight along the Rio Grande, Kirker first broke into the scalp business in 1838. Raising a party of twenty-three men — Delawares, Shawnees, Mexicans, and Americans — to castigate the Apaches threatening the holdings of his former employers, Robert McKnight and Stephen Cuicier, who

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[1] Francisco R. Almada, *Diccionario de historia, geografía, y biografía sonorenses* (Chihuahua: Ruiz Sandoval, 1952), 74; Narrative of B. D. Wilson, Bancroft Library; and Max L. Moorhead's edition of Josiah Gregg, *Commerce of the Prairies* (U. of Oklahoma Press, 1954), 205–206. Information on Johnson's contract is in Georg Friederici, *Skalpieren und ähnliche Kriegsgebrauche in Amerika* (Braunschweig: Druck und Verlag von Friedrich Vieweg und Sohn, 1906), 56. The Mexico City *La Republica*, quoted in the Chihuahua City (Chihuahua) *El Faro*, September 15, 1849, was outspoken in its condemnation of the bounty system. For other articles on this troubled period in Borderlands history, see Ralph A. Smith, "Indians in American-Mexican Relations Before the War of 1846," *Hispanic American Historical Review*, XLIII (February 1963), 34–64; "Mexican and Anglo-Saxon Traffic in Scalps, Slaves, and Livestock, 1835–1841," *West Texas Historical Association Year Book*, XXXVI (October 1960), 98–115; and " 'Long' Webster and 'The Vile Industry of Selling Scalps,' " *ibid.*, XXXVII (October 1961), 99–120.

[2] Friederici, *Skalpieren*, 56; Alfonso Toro, *Historia de México* (México: Editorial Patria, 1951), 421–22; Gregg, *Commerce of the Prairies*, 207–208; Frederick C. Ober, *Travels in Mexico and Life among the Mexicans* (Boston: Estes and Laurist, 1884), 627.

[3] José Carlos Chávez, "Extinción de los Apaches," *Boletín de la sociedad chihuahuense de estudios históricos* [Chihuahua City], I (April 1939), 365; and his "El indio 'Victorio,' " *ibid.*, V (August 1944), 219. This journal will be cited hereafter as *Boletín*.

[4] José Carlos Chávez, "Indio Ju," *Boletín*, I (April 1939), 377.

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Smith, "Scalp Hunter," 5–6.

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.63 - The Failure of Polk's Mexican War Intrigue of 1845

Richard R. Stenberg

ARTICLE	The Failure of Polk's Mexican War Intrigue of 1845
JOURNAL	Pacific Historical Review 4, no. 1 (1935)
EXCERPT	Original journal pages 39-40
JSTOR	https://www.jstor.org/stable/3633243

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The Failure of Polk's Mexican War Intrigue of 1845

Richard R. Stenberg

History long accepted the contemporary view that Polk made war in 1846 very deliberately to seize the much-coveted Mexican borderlands from Texas to the Pacific, bringing up the private claims against Mexico merely as a justificatory pretext. Many still hold this opinion, dissenting from the recent presentation of "peaceable Polk" by G. L. Rives and J. H. Smith,[1] who, adding no salient facts to those already known, are essentially interpretative. Although the outstanding incidents – *e.g.,* Slidell's mission and Taylor's march to the Rio Grande – are of such uncertain meaning as to give rise to conflicting interpretations, all recent writers have been at one in the manner of approach: in search for causal incidents, motives and maneuvers leading to the war, they have gone no further back than the Slidell mission in the latter half of 1845, neglecting Polk's diplomacy in the earlier half of the year. Perhaps they have been too confident in considering this earlier period (in which Texas was offered and accepted annexation) but one of "watchful waiting" and too hasty in assuming from the later "peaceable" Slidell mission that Polk consistently desired and worked from first to last for peace. This emphasis on the Slidell mission comes partly from the fact that historical sources are more abundant and available for the last part of 1845, Polk beginning his *Diary,* for example, about

[1] George Lockhart Rives, *The United States and Mexico, 1821-1848* (New York, 1913), 2 v.; Justin Harvey Smith, *The War With Mexico* (New York, 1919), 2 v. For dissent see, *e.g.:* Jesse Siddall Reeves, *American Diplomacy under Tyler and Polk* (Baltimore, 1907); Samuel Eliot Morison, *Oxford History of the United States* (London, 1927), II, 76-80; James Truslow Adams, *The Epic of America* (Boston, 1932), 229; James Wilford Garner, *American Foreign Policies* (New York, 1928), 71.

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the first of September, showing the inception of this mission but leaving for the preceding period no comparable purported record of his mind ("purported" is advisable, for the *Diary,* which on first sight and to those unconsciously biased in Polk's favor seems full and candid, appears on inspection of other sources to be incomplete and lacking in some very material respects). This neglect of the early half of 1845 seems an oversight of some moment, without which it would have been impossible to view Polk as scrupulous and peaceable.

According to President Anson Jones, of the Texas Republic, President Polk tried secretly, before the annexation of Texas was consummated, to instigate the "Lone Star Republic" to conquer the "disputed" territory between the Nueces River and the Rio Grande and so precipitate a Mexican war, which war he could then *annex* along with Texas – he, the American President, wishing to escape the invidious, well-nigh insoluble Texas boundary question and to have opened, apparently by some other hand than his own, the forbidden door through which he could lead "manifest destiny," stimulated to new eagerness by the anticipated triumph in Texas. As Jones says, too, such a movement was well calculated to precipitate Texas into the Union by frustrating the efforts then making towards a Texo-Mexican conciliation. But President Jones turned a cold shoulder and defeated the intrigue, leaving Polk the task and responsibility of provoking war. The truth of Jones's statement of this abortive intrigue (which curiously foreshadows the means by which Polk actually brought on the war) there seems no reason to question and every reason to believe, as the present paper will indicate. The few historians who have even so much as noticed Jones's version have rejected it summarily, upon the mere ground that it is "inconsistent" with the "peaceable" Slidell mission – whereas, of course, they might just as logically, on the contrary, have seen in this apparent inconsistency reason for doubting the "peaceableness" of the Slidell mission.

Mexico severed relations with the United States in March,

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.64 - Another Look at Inevitability: The Upper South and the Limits of Compromise in the Secession Crisis

Frank Towers

ARTICLE	Another Look at Inevitability: The Upper South and the Limits of Compromise in the Secession Crisis
JOURNAL	Tennessee Historical Quarterly 70, no. 2 (2011)
EXCERPT	Original journal pages 108-109
JSTOR	https://www.jstor.org/stable/42628747

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THE TENNESSEE HISTORICAL QUARTERLY

ANOTHER LOOK AT INEVITABILITY: The Upper South and the Limits of Compromise in the Secession Crisis

BY FRANK TOWERS

Coming after a decade of heated conflict over slavery, the election of 1860 was a messy four-way contest between the anti-slavery-extension Republican Party, a newly minted Constitutional Union Party, and the southern and northern wings of the Democratic Party, which had divided at its nominating convention that summer. Republican Abraham Lincoln's victory mobilized advocates of southern independence to action. By February 1861 the seven states of the lower South, lining the Gulf of Mexico and the southern Atlantic coast and the most heavily invested in slavery, had formed a new Confederacy headed by former Mississippi Senator Jefferson Davis. Meanwhile the eight northernmost slave states, the upper South for the purposes of this essay, remained loyal to the Union and their leaders tried mightily to reconcile southern radicals and northern Republicans. Talk of compromise ended when Davis ordered an attack on federal troops garrisoning Fort Sumter in South Carolina's Charleston harbor, and, in response, Lincoln called for 75,000 volunteers to suppress secession.

That secession and war were inevitable was never in doubt for Davis and Lincoln. In 1862, Davis claimed that secession was the only possible response to "the aggrandizement of the northern section of the Union" that "threatened to destroy the sovereign rights of the States."[1] According to Lincoln in his second inaugural address, "both parties deprecated war; but one of them would make war rather than let the nation survive; and the other would accept war rather let it perish." Countering wartime leaders' efforts to justify the conflict and their side's cause in it, upper South Unionists argued that the old Union could have survived had it not been for failed leadership. Henry Foote, former Mississippi governor who was active in Tennessee's Union movement during the secession crisis, insisted that the Civil War "could not possibly have arisen but for the most unskillful and blundering management of men in power--the incessant agitation of sectional factionists... and the unwise

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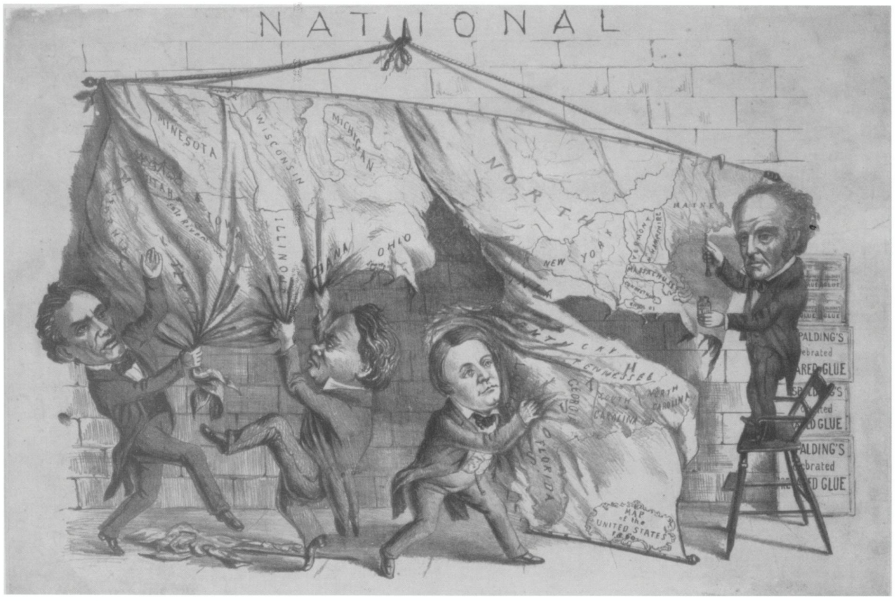
disregard of that august spirit of *conciliation and compromise* in which our complex frame of government is known to have had its origins."[2] Implicit in Foote's attack on incompetent politicians was the viability of plans to diffuse the crisis put forward by upper South unionists.

To resolve the primary issue of contention—slavery's status in federal territory—upper South Unionists promoted an array of compromises that shared in common the principle of sectional balance, an idea dating to the constitutional convention of 1787 when the states where slavery predominated and where it did not co-existed as separate but complimentary entities. By 1861, decades of improvements in transportation, communication, and mass production had tied the sections closer together and made the economies of the North and South more capable of competing head-to-head. In reaction to the new reality of national integration, voters gravitated towards political arguments that aligned federal policy with their section's conception of the good society. These changes tested the viability of upper South Unionists' vision of America as a complementary, confederated nation and increased the likelihood of disunion and civil war.

This essay explores the compromise vision of upper South Unionists for what



Could the Civil War have been avoided? The presidential election campaign of 1860 included candidates who tried to hold the Union together. In this cartoon, Lincoln and Douglas tear at the west, Breckinridge rips at the south, while John Bell attempts to glue the nation together. (Rickey, Mallory & Company, Cincinnati, 1860, Library of Congress)

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.65 - Refuting History Fables: Collective Memories, Mexican Texans, and Texas History

Omar Valerio-Jiménez

ARTICLE	Refuting History Fables: Collective Memories, Mexican Texans, and Texas History
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EXCERPT	Original journal pages 391-392
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Refuting History Fables: Collective Memories, Mexican Texans, and Texas History

By Omar Valerio-Jiménez*

In summer 1935, Carlos E. Castañeda and José T. Canales exchanged letters discussing their goals of correcting the omission of Tejanos from public school history textbooks. Castañeda worked as an archivist, but would become a distinguished professor of history at the University of Texas at Austin, while Canales was a civil rights activist and former state legislator. A lawyer by training, Canales was also an avid lay historian who wrote scholarly essays and engaged in spirited debates with academics. Both believed in preserving Tejano archives, so Canales asked Castañeda to deposit various items in the Genaro García Collection at the University of Texas, which Castañeda supervised. The documents included primary sources and articles about Tejanos' role in the state's independence struggle, a rebellion led by Juan Cortina (a great uncle of Canales), and the legislative report from the Canales-initiated Texas Ranger investigation in 1919.[1] In one letter, Canales stated, "I assure you Doctor, that public opinion will change within five years and a new Texas History will be written wherein acknowledgment will be made for the services rendered by the Mexican Texans in behalf of Texas

* Omar Valerio-Jiménez is an associate professor of history at the University of Texas at San Antonio. His current book project, "Remembering Conquest: Mexican Americans, Memory, and Citizenship," analyzes the ways in which memories of the U.S.–Mexico War have shaped Mexican Americans' civil rights struggles, writing, oral discourse, and public rituals. His next project explores efforts to challenge the omissions and negative characterizations of Mexican Americans in public school textbooks of several states in the U.S. Southwest. For suggestions and corrections, he would like to thank the anonymous reviewers of the *Southwestern Historical Quarterly*, Walter Buenger, Ryan Schumacher, Trinidad Gonzales, and the Trinity-UTSA-Texas A&M University–San Antonio Research Workshop.

[1] Carlos E. Castañeda, "Why I Chose History," *The Americas* 8 (April 1952): 478; Félix Almaráz Jr, "Carlos Eduardo Castañeda, Mexican-American Historian: The Formative Years, 1896–1927," *Pacific Historical Review* 42 (August 1973): 334; Almaráz, "Castaneda, Carlos Eduardo," *The Handbook of Texas Online*, <http://www.tshaonline.org/handbook/online/articles/fca85> [Accessed Oct. 3, 2016].

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Independence."[2] Canales optimistically believed the efforts of likeminded scholars would change the official version of Texas history within a half-decade. He and Castañeda probably could not imagine the role of Tejanos in Texas history would continue to be debated in the twenty-first century.

This essay explores early efforts to challenge the omissions and negative characterizations of Tejanos in the state's history and in public school textbooks. Several intellectuals and organizations engaged in these efforts during the 1930s, when the economic stress of the Great Depression increased xenophobia. Anti-immigrant sentiment was directed at ethnic Mexicans in general as Anglo Americans failed to distinguish between Mexican Americans and Mexican immigrants.[3] These tensions led the League of United Latin American Citizens (LULAC) to distance itself from Mexican immigrants while emphasizing their members' U.S. citizenship and loyalty as it pursued civil rights reforms.[4] One of LULAC's reform campaigns was to revise Texas history textbooks. LULAC blamed the state's history textbooks for distorting Tejano history by mischaracterizing the Texas Revolution as a racial conflict between Anglo Texans and Mexicans without acknowledging Tejano participation in the separatist rebellion. The state's Anglo-centric history textbooks, in LULAC's view, were not only biased, but helped justify contemporary discrimination against Tejanos.[5] The writings and personal correspondence of Castañeda, Canales, Adina Emilia De Zavala, and María Elena Zamora O'Shea illustrate their pursuit of LULAC's goal to revise the state's history of Tejanos. Canales was one of LULAC's founders, Zamora O'Shea and Castañeda were members, and De Zavala was in frequent contact with LULAC members.[6] Tejanos' lack

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[2] José T. Canales to Carlos E. Castañeda, July 17, 1935, Box 9.6, Carlos E. Castañeda Papers, (Nettie Lee Benson Latin American Collection, The University of Texas at Austin); John Morán González, *Border Renaissance: The Texas Centennial and the Emergence of Mexican American Literature* (Austin: University of Texas Press, 2009), 113.

[3] I use the term "Mexican Americans" to refer to U.S. citizens of Mexican ancestry, "Mexican immigrants" to refer to Mexican citizens living in the United States, and "ethnic Mexicans" to refer to people of Mexican ancestry irrespective of citizenship.

[4] Mario T. García, *Mexican Americans: Leadership, Ideology, and Identity, 1930–1960* (New Haven, Conn.: Yale University Press, 1989), 29–33, 35, 46; Benjamin Márquez, *LULAC: The Evolution of a Mexican American Political Organization* (Austin: University of Texas Press, 1993), 19–22, 37–38; Cynthia Orozco, *No Mexicans, Women, or Dogs Allowed: The Rise of the Mexican American Civil Rights Movement* (Austin: University of Texas Press, 2009), 134–136; David G. Gutiérrez, *Walls and Mirrors Mexican Americans, Mexican Immigrants, and the Politics of Ethnicity* (Berkeley and Los Angeles: University of California Press, 2005), 74–78.

[5] Morán González, *Border Renaissance,* 110–111.

[6] On Canales as LULAC founder, see Orozco, *No Mexicans, Women, or Dogs Allowed*, 163–166. While he remained a Mexican citizen, Castañeda was an "honorary member" of LULAC, and he became a regular member after becoming a naturalized U.S. citizen. Félix D. Almaráz Jr., *Knight Without Armor: Carlos Eduardo Castañeda, 1896–1958* (College Station: Texas A&M University Press, 1999), 80; Craig A. Kaplowitz, *LULAC, Mexican Americans, and National Policy* (College Station: Texas A&M University Press, 2005), 44. Zamora O'Shea had joined LULAC by 1937. Morán González, *Border Renaissance,* 5, 94; Andrés Tijerina, "Historical Introduction," in Elena Zamora O'Shea, Andrés Tijerina, and Leticia Garza-Falcón, *El Mesquite: A Story of the Early Spanish Settlements Between the Nueces and the Rio Grande, As Told by 'la Posta Del Palo Alto'* (College Station: Texas A&M University Press, 2000), xviii.

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.66 - Declarations of Independence: Slavery, Secession, and the Confederate Scapegoat

Chad Vanderford

ARTICLE	Declarations of Independence: Slavery, Secession, and the Confederate Scapegoat
JOURNAL	Tennessee Historical Quarterly 70, no. 2 (2011)
EXCERPT	Original journal pages 92-93
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THE TENNESSEE HISTORICAL QUARTERLY

Declarations of Independence: Slavery, Secession, and the Confederate Scapegoat

BY CHAD VANDERFORD

The issue of secession, conceived of either as the reserved right of a state, or as the natural right of a group of people, has no innate connection with slavery. In the history of the United States, however, slavery has intertwined with secession in a way that makes it very difficult to extricate them. That difficulty exists not only for the Civil War but for the American Revolution as well. Historians should suspect the motives of anyone who tries to downplay the role that slavery has played in the history of the United States. They should therefore be very careful that they do not portray the Confederacy in such a way that they might encourage the general public to conceive of it as a scapegoat for slavery in North America. A comparison of the ways in which slavery influenced both the Declaration of Independence and the South Carolina Declaration of the Causes of Secession can help avoid that trap. This essay considers both documents in the context of natural rights philosophy, a philosophy that makes adequate provisions for slavery, secession, and the rights of states.[1]

In confronting these issues, one should begin with the opinions of the many. Opinions about the most important things hold societies together. A college professor can inform opinion, but he or she must first know where the audience stands on a particular issue. Sometimes professors find things that surprise them. For instance, at a 1998 speaking engagement in North Carolina, the prominent sociologist and popular historian James Loewen quizzed an overflow crowd. "Why," he asked, "did South Carolina, followed by ten other southern states, secede?" He gave them four possible answers: "slavery, states' rights, tariffs and taxes, and the election of Lincoln." It surprised Loewen that about one-half of the audience chose "states' rights" as their answer. Only twenty-five percent answered "slavery," the answer he wanted them to choose. Loewen tried to write off the results. "That was North Carolina," he thought afterwards. "The audience was overwhelmingly white. Most were over 50 years old. Many had taken U.S. history before or during the Civil

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Natural rights philosophy makes provision for secession and states' rights. By 1861, the quarrel over rights and slavery between Uncle Sam and "Madame South" threatened to break the union of the states. (Brady's National Photographic Portrait Gallery, 1861, Library of Congress)

Rights movement, when public education in the South was deliberately used as a tool of white supremacy." A visit to a college campus near Minneapolis, however, confirmed Loewen's worst fears. The students there answered in the exact same ratio.[2]

Loewen's quiz inspired me to try one of my own. I teach at a small public university in Texas. Many of the students at this university have graduated from local high schools, one of which is named for Robert E. Lee. The quiz occurred on the first day of a U.S. history survey class, and most of the students had just begun college. Fifty-five students took the quiz. One question read as follows: "The southern states declared their independence from the United States in response to Abraham Lincoln's emancipation proclamation." Seventy-eight percent of the students identified that statement as true. As a simple matter of fact, however, that statement is false. South Carolina left the Union in December of 1860. The Emancipation Proclamation did not go into effect until January of 1863. Emancipation occurred as a northern reaction against secession; secession did

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.67 - The Texas Question in Mexican Politics, 1836-1845

Josefina Zoraida Vázquez

ARTICLE	The Texas Question in Mexican Politics, 1836-1845
JOURNAL	The Southwestern Historical Quarterly 89, no. 3 (1986)
EXCERPT	Original journal pages 309-310
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The Texas Question in Mexican Politics, 1836–1845

Josefina Zoraida Vázquez*

The history of Mexico's tragic decade from the separation of Texas to the time of the North American invasion remains to be written. We Mexicans have avoided confronting the period during which the prosperous and powerful kingdom of New Spain vanished, leaving behind the mutilated republic of 1848. Some incomplete accounts exist in classical Mexican historiography and in North American monographs about the Texas Republic or the War with Mexico, but most are explanations constructed on the basis of biased sources of the time, often employed uncritically. It is difficult, furthermore, to characterize the period, since the social turmoil that ensued after independence, deriving from the dissolution of New Spain's organic society, with the debilitation or ruin of some social groups (for instance, the miners and artisans) and the strengthening or appearance of others (such as the army, the moneylenders, and the foreign merchants), translated into a political struggle that would not end until society achieved a new equilibrium. The exertion of foreign pressures to protect commercial interests has not been sufficiently studied. Sometimes foreign merchants had direct involvement in political *pronunciamientos*, as in 1841.[1] More often they became indirectly involved, providing ad-

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*Josefina Zoraida Vázquez has been associated with the Center for Historical Studies at El Colegio de México since 1960. Her publications include *Historia de la historiografía* (1965); *Nacionalismo y educación en México* (1970); *Mexicanos y norteamericanos ante la guerra del 47* (1972); *Historia moderna y contemporanea de México,* vol. I (1980); and *The United States and Mexico* (1985). Research for this article was conducted under the auspices of a Guggenheim Fellowship, 1983–1984.

This article was translated by Jesús F. de la Teja, a doctoral candidate in history at the University of Texas, Austin. De la Teja's article "Bexar: Profile of a Tejano Community, 1820–1832," coauthored with John Wheat, appeared in the July 1985 *Quarterly.*

[1]Antonio López de Santa Anna and Mariano Paredes y Arrillaga issued the *pronunciamiento* of 1841, which sought to overthrow the government of Anastasio Bustamante and to abolish the 15 percent tax on imports. (A *pronunciamiento* is a declaration of insurrection by a political or military group for a stated set of reasons. Trans.)

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vance payments or loans in return for substantial discounts in import taxes on their goods.

The political panorama of the decade spanning 1836 to 1845 is very complex because true political parties did not exist; centralists and federalists, Scottish Rite and York Rite Masons, radicals, moderates, and monarchists all represented currents of opinion circulating throughout the small groups that participated in politics, unable to join their interests into a major group, and without a definite set of principles. The exercise of ecclesiastical patronage, the confiscation of Church property, the existence of a civic militia, the abolition of ecclesiastical and military privileges were reasons for discord. But starting in 1835, the principal causes of dissension would be the debates over the form the Mexican state should assume and the position to be taken on the Texas problem. At the beginning the two questions were confused, since centralism formed the pretext for the Texas Revolution, and the reconquest or recognition of Texas constituted themes that divided federalists and united opposing groups. It is difficult to identify the various positions taken on the Texas question because such opinions became associated with those held on other national problems. What is evident is that the Texas question figured in all the programs and political attacks of all factions.

The adoption of centralism. The road to centralism was not abrupt. Its antecedents date to the days when a constitution for the new state was debated in 1823. At that time a minority favored centralism, at least as a transitional system. The populist "excesses" of 1829 allowed centralism to gain ground among "well-intentioned men." The Anastasio Bustamante regime (1830–1832) tended toward centralizing fiscal decisions; and when the results proved attractive, the idea that a change in the form of government would benefit all of society gained strength among the privileged groups. Vice-President Valentín Gómez Farías attempted reforms in 1833 that aimed at reducing the power of the Church and the army, and these measures resulted in pronunciamientos that further spread centralist opinion. President Antonio López de Santa Anna, who after his election had relinquished his office to Gómez Farías, remained a spectator. Although he expressed a real interest in completing anticlerical reforms, he did not so willingly accept reforms affecting the army.[2]

[2]Antonio López de Santa Anna to Valentín Gómez Farías, Jan. 4, 1834, Valentín Gómez Farías Papers (VGFP) (Benson Latin American Collection, University of Texas, Austin; cited hereafter as BLAC).

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.68 - The Fire-Eaters and Seward Lincoln

Eric H. Walther

ARTICLE	The Fire-Eaters and Seward Lincoln
JOURNAL	Journal of the Abraham Lincoln Association 32, no. 1 (2011)
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The Fire-Eaters and ~~Seward~~ Lincoln

ERIC H. WALTHER

When Senator William Henry Seward in 1850 invoked a "higher law" than the Constitution of the United States that compelled people of conscience to stop the sin of slavery, the New Yorker became the Yankee that Fire-Eaters most loved to hate. Seward's remarks contributed to a very real and widespread disunion effort from 1850–1852. His prominence in creating the new antislavery Republican Party helped reinvigorate the secessionist movement in the mid-1850s. And in 1858 Seward proclaimed that the rising hostility, conflict, and violent incidents that were occurring with greater frequency and consequence represented "an irrepressible conflict between opposing and enduring forces . . . and it means that the United States must and will, sooner or later, become either entirely a slaveholding nation, or entirely a free-labor nation."[1]

Barely a year after that remark, John Brown's raid on Harpers Ferry confirmed in the minds of many Southerners that Seward had not *summarized* the plight of the country, but rather had called for an invasion of the South and race war. The Fire-Eaters could not have found a better opposition candidate to galvanize the South. But a funny thing happened to Seward's aura of inevitability as his party's candidate for president in 1860: Abraham Lincoln beat all comers at the Republican national convention. So what were over-zealous, Union-hating, slave-loving secessionist leaders to do? This article will focus on the most conspicuous Fire-Eaters of 1860, Edmund Ruffin of Virginia, Robert Barnwell Rhett of South Carolina and his son, Barnwell Rhett, Jr., and William Lowndes Yancey of Alabama, to demonstrate the varied responses to Seward and Lincoln. Although individual Northerners evoked slightly different reactions from secessionists, even before

1. Eric H. Walther, *The Shattering of the Union: America in the 1850s* (Wilmington: Scholarly Resources, 2003), 158; Doris Kearns Goodwin, *Team of Rivals: The Political Genius of Abraham Lincoln* (New York: Simon & Schuster, 2005); Harold Holzer, *Lincoln at Cooper Union: The Speech that Made Abraham Lincoln President* (New York: Simon & Schuster, 2006); Richard Carwardine, *Lincoln: A Life of Purpose and Power* (New York: Vintage, 2007). I thank Dr. John Barr at Lone Star College-Kingwood, for his careful reading of the initial draft of this essay, his critique, and assistance in locating key sources.

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1860 most disunionists found personalities inconsequential: whether the presidential candidates were Republican, or even Democrat Stephen Douglas, to the leaders of secession the great danger to the South had become the North itself.

Only a few months before Lincoln's ascendancy, the venerable and deranged Edmund Ruffin of Virginia showed the way for others to transition from Seward to Lincoln. Early in 1860, Ruffin reached for his quill and began frantically writing a novel called *Anticipations of the Future to Serve as Lessons for the Present Time*.[2] He had just read a novel called *Wild Scenes of the South*, calling it "a very foolish book which I regret having bought, or spent the time in reading," which told the future tale of a separation of the South from the Union.[3] But a few days later, on February 29, 1860, Ruffin wrote the first pages of his own version of this story. It took the form of a London *Times* correspondent residing in the United States who observed and commented upon William Seward's reelection to the presidency in 1864 "& will show how extreme oppression may be inflicted on the southern states, & their virtual bondage to the north." To his friend and once-fiery secessionist, Senator James H. Hammond of South Carolina, Ruffin explained of his novel, "I suppose every incident of danger, damage, or disaster to the South, which is predicted by northerners, or southern submissionists—as war, blockade, invasion, servile insurrection." Recent news that most delegates from slave states, led by Alabama's William Lowndes Yancey, had bolted from the Democrat's national convention in Charleston electrified Ruffin and spurred him to write even faster.[4] His fictional slaughter of Yankee soldiers and destruction of the Union "were alike amusing to my mind, & . . . conducive to immediate pleasure."[5] Before he completed his final draft on April 30, Ruffin had already made arrangements with Robert Barnwell Rhett Sr. and Jr.—the most veteran secessionist, and his son who edited the Charleston *Mercury*—to serialize early chapters under the heading "Glimpses of the Future."[6]

2. *Anticipations of the Future to Serve as Lessons for the Present Time: In the Form of Extracts from an English Resident in the United States, to the London Times, from 1864–1870, with an Appendix, on the Causes and Consequences of Independence of the South* (Richmond, Va.: J.W. Randolph, 1860).

3. William K. Scarborough, ed., *The Diary of Edmund Ruffin*, 3 vols. (Baton Rouge: Louisiana State University Press, 1971–89), 1:407.

4. Ibid., 1:408; Ruffin to Hammond May 4, 1860, Hammond Papers, Library of Congress.

5. *Diary of Edmund Ruffin*, 1:413.

6. Ibid., 1:415.

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.69 - Here Rests Juan Espinosa: Toward a Clearer Look at the Image of the 'Indolent' Californios

David J. Weber and David J. Langum

ARTICLE	Here Rests Juan Espinosa: Toward a Clearer Look at the Image of the 'Indolent' Californios
JOURNAL	The Western Historical Quarterly 10, no. 1 (1979)
EXCERPT	Original journal pages 61-62
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Communications

HERE RESTS JUAN ESPINOSA: TOWARD A CLEARER LOOK AT THE IMAGE OF THE "INDOLENT" CALIFORNIOS

David J. Weber

In a deserted graveyard somewhere in California, it is said that a tombstone bears the inscription:

Aquí reposa Juan Espinosa;
Nunca en su vida hizo otra cosa.
(Here rests Juan Espinosa;
That is all he has ever done.)

In an article which appeared in the April 1978 issue of the *WHQ*, "Californios and the Image of Indolence" (p. 181), David J. Langum raises an important question regarding historical explanation: what caused Californios, such as the apocryphal Espinosa, to have an "image of indolence"? Langum's answer is only partially satisfactory. He correctly notes that Anglo-American visitors to California in the first half of the nineteenth century consistently described Spanish or Mexican males as an indolent people. Some historians, as Langum points out, have sought to explain this image of indolence by arguing that the Anglo-Americans' vision was distorted by their "militant Protestantism, Anglo-Saxon racism and Manifest Destiny."

If these three ideas distorted Anglo vision and contributed to the popular image of indolence, then Langum seems to suppose that observers from other countries would see the Californios differently than did the Anglo-Americans. To test his supposition, Langum subjects the Anglo-American image of indolence to a "comparative analysis." He examined the accounts of pre-1846 visitors to California and found that one Swede, one German, three Russians, six Englishmen, and seven Frenchmen also viewed the Californios as lazy. Thus Langum concludes that "by the persistence of a commonality of viewpoint regarding Californio indolence, it becomes clear that Protestantism, Manifest Destiny, and Anglo-Saxon racism were not the causal agents of American attitudes toward Mexican Californians . . ." (p. 182).

It seems to me that Langum has based his argument on a faulty assumption. The commonality of viewpoints regarding the supposed laziness of Californios does not necessarily indicate that Protestantism, racism, and

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Manifest Destiny "were not causal agents." Instead, it may be they were causal and that a commonality of the broad impulses of "religion, racism, and nationalism" (p. 181), which took the particular American form of Protestantism, Anglo-Saxon racism, and Manifest Destiny, influenced Europeans as well as Americans.

Anglo-American attitudes toward Hispanic Californians seem to derive from a set of assumptions about Spaniards which Americans shared with their European forbears. Europeans and Americans alike have assumed that Spaniards possessed an unusual number of serious character defects such as extreme cruelty, treachery, pride, fanaticism, cowardliness, corruption, decadence, and authoritarianism. Perhaps the least of these was indolence. Some historians know these anti-Hispanic attitudes as the Black Legend.[1]

Although the roots of the Black Legend can be traced into fourteenth and fifteenth century Italy, Hispanophobia seems to have developed most fully in the sixteenth century as propaganda against Spain's highly successful imperialism. Anti-Hispanism seems to have reached its most virulent form among Protestants in northern Europe. In Germany and the Netherlands, anti-Hispanic propaganda represented a nationalistic and religious response to the domination of Spain's first Hapsburg monarch, the Holy Roman Emperor Charles I and V. In the late sixteenth century similar motives brought this anti-Spanish propaganda to England, where it served to arouse patriotic and religious fervor against the Protestant Queen Elizabeth's chief rival in the race for empire. The northern Europeans also gave the Hispanophobia a racist tinge by emphasizing the dark color of "black Spaniards" and using them as a foil against whom their presumed Nordic superiority could be enhanced.

The Black Legend flourished in Catholic as well as Protestant countries, including Italy and France, Spain's rival and neighbor. The religious impulses behind the Black Legend cannot be reduced to a simple Protestant-Catholic dichotomy. Many French, German, and Italian Catholics came to view Spanish Catholicism as an aberrant form that had been tainted by centuries of exposure to Judaism.

By the late eighteenth and early nineteenth centuries, when Europeans began to visit California, anti-Hispanism had become well entrenched in Europe. Even *philosophes,* such as Voltaire and Montesquieu, seem to have accepted and furthered the Black Legend, aiding its spread throughout Europe. It came to America as well. Spanish-American nationalists, who sought to justify and popularize the struggle for independence from Spain,

[1] The causes and manifestations of the Black Legend have been the subject of considerable scholarly inquiry. This discussion is drawn largely from two books in English: Charles Gibson, *The Black Legend: Anti-Spanish Attitudes in the Old World and the New* (New York, 1971), and a useful but somewhat polemical overview: Philip Wayne Powell, *Tree of Hate: Propaganda and Prejudices Affecting United States Relations with the Hispanic World* (New York, 1971).

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.70 - The Compromise of 1850 and the Search for a Usable Past

Michael E. Woods

ARTICLE	The Compromise of 1850 and the Search for a Usable Past
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EXCERPT	Original journal pages 438-439
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REVIEW ESSAY

The Compromise of 1850 and the Search for a Usable Past

MICHAEL E. WOODS

Generations of scholars have searched the Compromise of 1850 for insight into contemporary problems, but history's lessons are never crystal clear. This historiographical essay surveys a century of scholarship and traces the evolution of three distinct schools of thought. Celebratory accounts applaud the preservation of the Union and the triumph of moderate lawmaking over political polarization. Critical accounts, in contrast, condemn the compromise as a cowardly act of appeasement. By emphasizing ironic outcomes and the limits of federal influence, an emerging skeptical interpretation departs from the celebrants and critics alike. Writing in a time of political polarization, pervasive racism, and contests over federal power, modern historians have embraced all three of these interpretations, and debates between their respective proponents will continue. This essay reviews their development in an effort to understand where each interpretation of the Compromise of 1850 might go in the future.

A century after Daniel Webster defied constituent pressure and endorsed the Compromise of 1850, another Massachusetts senator saluted his intrepid statesmanship. Whether or not John F. Kennedy actually wrote *Profiles in Courage*, the Pulitzer Prize–winning book lionized Webster's fight to save the Union.[1] Three decades later, Arizona senator Barry Goldwater drew strikingly similar inspiration from Henry Clay's career, lauding the Kentuckian's eloquent efforts to "fashion a compromise out of the chaos threatening America in 1850."[2] Although separated by a yawning ideological divide, Kennedy and Goldwater agreed that twentieth-century Americans could learn from the architects of antebellum compromise.

Recent reflections on the compromise offer more cautiously qualified insights. Writing for a popular magazine in the polarized political context of 2013, Richard Brookhiser deemed the compromise "a textbook example of how Congress works—and doesn't," noting that it "patched up the

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nation's disputes for a time but did not resolve them."[3] Three years later, Matthew Mason commended the search for a middle ground but warned that compromises must truly satisfy both sides. The Compromise of 1850 remains relevant, but history's lessons now seem less clear.

This essay surveys a century of scholarly engagement with the compromise's complex legacy. Given the abundance of relevant books and articles, it cannot offer a comprehensive literature review; nor does it tackle the larger question of Civil War causation. Rather, it explores three distinct lessons historians have extracted from the compromise. *Celebratory* accounts, like Kennedy and Goldwater's, emphasize the preservation of the Union, extol the compromisers' patriotism and legislative prowess, and use the Compromise of 1850 to demonstrate how statesmanship can prevail over extremism and gridlock. *Critical* accounts, in contrast, condemn the compromise as a cowardly act of appeasement that callously disregarded free and enslaved African Americans. In this view, the compromise exemplifies a racist sacrifice on the altar of national unity. As scholars seek historical insight into contemporary problems of racism and political polarization, the conflict between these interpretations is likely to continue: was the Compromise of 1850 a model of moderation or another case of white reconciliation at the expense of black freedom?

Despite their differences, the celebratory and critical accounts share a fundamental assumption about the impact of national legislation. An emerging *skeptical* interpretation, however, probes the compromise's practical effects and underscores the limits of antebellum federal power. By shifting the focus away from Washington, this work reevaluates the compromise's consequences. It does not gainsay the visceral pain and terror inflicted by the Fugitive Slave Act and should not tempt historians to ignore Congress, but it does highlight the discrepancies between official decrees and actual practice. It may be impossible to reconcile celebratory and critical accounts of the Compromise of 1850, but skeptical accounts offer new insights into antebellum politics and new lessons to ponder in tumultuous times.

■ The Compromise of 1850 was Congress's response to the political crisis that commenced in 1846 with the U.S.-Mexican War and intensified as gold lured thousands of migrants to freshly conquered California after 1848. Discord over slavery expansion destabilized partisan politics: thousands of northerners rallied to the Free Soil Party, while John C. Calhoun attempted to forge a solid southern proslavery phalanx and Whig and Democratic regulars in both sections struggled to defuse the conflict. The issue exploded in the 1849–50 session of Congress, as politicians' threats

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CHAPTER 13 | SCHOLARLY ARTICLE

A13.71 - 'Preserve Us From Such Democracy': Politics, Slavery, and Political Culture in Antebellum Northwest Virginia, 1850–1861

Adam J. Zucconi

ARTICLE	'Preserve Us From Such Democracy': Politics, Slavery, and Political Culture in Antebellum Northwest Virginia, 1850–1861
JOURNAL	The Virginia Magazine of History and Biography 123, no. 4 (2015)
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ADAM J. ZUCCONI

"Preserve Us From Such Democracy"

Politics, Slavery, and Political Culture in Antebellum Northwest Virginia, 1850–1861

In March 1861, approximately one month after delegates had assembled in Richmond to debate Virginia's future in the Union, Monongalia resident and local merchant Henry S. Dering wrote to his representative at the convention, Waitman T. Willey. Dering, frustrated by the incessant editorials from the pro-secession *Richmond Enquirer* that attacked Unionist western delegates, unleashed vitriol toward what he considered Virginia's slaveocracy. "The truth is," he declared, "the slavery oligarchy are impudent[,] boastfull[,] and tyrannical. It is the nature of the institution to make men so." Although numerous slaveholders claimed that Abraham Lincoln's election threatened their conception of self-government, Dering blasted these hypocritical accusations because they conveniently overlooked the antidemocratic government that plagued western Virginia. "Talk about lost rights," he fumed. "[B]etter look at poor Western Va. and her lost rights. Has taxation and representation gone hand in hand[?]" he asked Willey rhetorically. Although Dering declared abolitionism anathema, he asserted that should these slaveholders "persist in their course," residents of northwestern Virginia were prepared to "rise up . . . and throw off the shackles . . . [of] this very *Divine Institution* . . . [that] has been pressing us down."[1]

Dering's warning exemplified the mounting frustration expressed by residents living in northwestern Virginia. Northwesterners, having experienced eastern slaveholders' control of the electoral process since the state's inception, believed that electoral politics were antidemocratic and anti-

Adam J. Zucconi is a doctoral student in history at West Virginia University.

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republican.[2] Rather than based on majority will, equal representation, and universal white male suffrage—the cornerstones of democracy, as many nineteenth-century citizens professed—Virginia's constitution favored those who owned landed and human property. Strict suffrage requirements, in place until 1851, disenfranchised many nonslaveholders. Virginians' laggard pace democratizing the state government crystallized internal and external perceptions of the Old Dominion as an anomaly among slaveholding states that had adopted a broader definition of a political actor. Northwesterners grew alienated toward this electoral system because of slavery's influence in politics and soon "embraced a particular political identity" marked by, among other indices, a visceral resentment of "special rights for slaveholders."[3] This political disenchantment, when filtered through a growing white and multiethnic population, an expanding market economy increasingly tied to northern and western marketplaces, and a cultural emphasis on free white labor, resulted in a manifestation of an ethos that William Link calls "Northwestern exceptionalism."[4]

This ethos, present before 1850, became fully manifest following the 1850–51 Constitutional Convention.[5] Northwestern delegates, encouraged by favorable census returns and an increasingly assertive constituency demanding their political and constitutional rights, seized the opportunity to reform the state constitution and inaugurate a new political era. The convention passed such democratic measures as universal white manhood suffrage, a more equitable allocation of seats in the state legislature, and the popular election of political officials such as governor and lieutenant governor. These changes to Virginia's political framework signaled in many ways a fundamental break from the state's aristocratic past and a move toward a more democratic future.

But the changes wrought by the new constitution failed to signal a clean separation between electoral politics and slavery. As historian Manisha Sinha argues, slaveholding elites in antebellum South Carolina instigated an antidemocratic and antirepublican "counterrevolution of slavery" to solidify slaveholder hegemony and remove the Palmetto State from the Union in 1860.[6] Elements of this conservative revolution were present earlier, albeit to a much lesser extent, in Virginia. Accomac County delegate Henry A. Wise pleaded with his eastern brethren during the 1850–51 Constitutional

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.1 - Neighbor against Neighbor: The Inner Civil War in the Randolph County Area of Confederate North Carolina

William T. Auman

ARTICLE	Neighbor against Neighbor: The Inner Civil War in the Randolph County Area of Confederate North Carolina
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Neighbor against Neighbor: The Inner Civil War in the Randolph County Area of Confederate North Carolina

By William T. Auman*

Historians of the Civil War period in North Carolina have noted that desertion and disloyalty appeared early in Randolph and surrounding counties, but they have had little to say about anti-Confederate strength there.[1] This study takes a detailed look at the wartime events in Randolph and, to a lesser degree, in the adjoining counties of Davidson, Moore, Montgomery, Guilford, and Chatham in an effort to uncover not only what happened but also to understand the basis and extent of the disaffection. It argues that the "Randolph County area"[2] was a hotbed of desertion, disloyalty, and persistent Unionism during the war and that the discontent increased as the war progressed.[3] Further, it contends that three underlying causes accounted for the radical anti-Confederate stance taken by many of the people of the Randolph area: social class antipathies, staunch Unionism, and cultural factors.

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*Mr. Auman is enrolled in the graduate program in history at the University of North Carolina at Chapel Hill. A somewhat longer version of this paper was presented at the meeting of the Southern Historical Association at Memphis, Tennessee, on November 5, 1982.

[1]Samuel A'Court Ashe, *History of North Carolina*, Volume I: *1584-1783*; Volume II: *1783-1925* (Greensboro: Charles L. Van Noppen, 1908; Raleigh: Edwards & Broughton, 1925), II, 775-776; J. G. de Roulhac Hamilton, *North Carolina since 1860* (Chicago and New York: Lewis Publishing Company, 1919), 40; R. D. W. Connor, *North Carolina: Rebuilding an Ancient Commonwealth* (Chicago and New York: American Historical Society, 4 volumes, 1929), II, 186; Hugh T. Lefler, *History of North Carolina* (New York: Lewis Historical Publishing Company, 2 volumes, 1956), II, 527; John G. Barrett, *The Civil War in North Carolina* (Chapel Hill: University of North Carolina Press, 1963), 182, 186, 192-194, hereinafter cited as Barrett, *Civil War in North Carolina*.

[2]This paper focuses on the wartime events that occurred in Randolph County. But a clear exposition of what happened in Civil War Randolph County often is impossible without referring to related events in neighboring counties. Thus, the appellation "Randolph area" is used in the text when referring to events that happened in adjacent portions of neighboring counties that coincided with or influenced events in Randolph County. The term "Randolph area" embraces all of Randolph County and adjoining portions of the adjacent counties, i.e., roughly the southern half of Guilford, the western half of Chatham, the northwestern quadrant of Moore, the northern half of Montgomery, and the eastern half of Davidson.

[3]The pioneering works on desertion, disloyalty, disaffection, and persistent Unionism in the South during the Civil War are Georgia Lee Tatum, *Disloyalty in the Confederacy* (Chapel Hill: University of North Carolina Press, 1934); Ella Lonn, *Desertion during the Civil War* (New York and London: Century Company, 1928); and Albert Burton Moore, *Conscription and Conflict in the Confederacy* (New York: Macmillan Company, 1924), hereinafter cited as Moore, *Conscription and Conflict in the Confederacy*.

More recent accounts are Richard Bardolph, "Inconstant Rebels: Desertion of North Carolina Troops in the Civil War," *North Carolina Historical Review*, XLI (April, 1964), 163-189;

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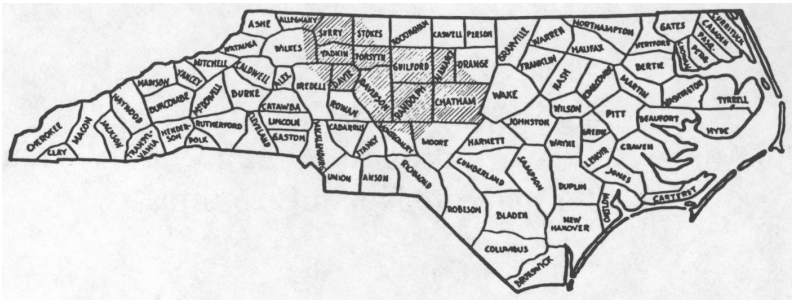

The territory designated the "Randolph County area" in this discussion lay in the heart of the North Carolina "Quaker Belt," shown in the shaded area on the above map. The Quaker Belt was comprised of the counties of Randolph, Alamance, Chatham, Davidson, Davie, Forsyth, Guilford, Surry, and Yadkin as well as southwest Orange, northwest Moore, northern Montgomery, northeast Iredell, eastern Wilkes, eastern Alleghany, and western Stokes counties. This region, a hotbed of Unionism and Confederate desertion and disloyalty, was populated by Quakers, Moravians, Lutherans, German Reformed, Dunkards, and Wesleyans who were pacifists and abolitionists.

The Randolph area formed the eastern half of the so-called "Quaker Belt" of central North Carolina. Pacifist, antislavery Quakers were among the first organized groups to settle the central North Carolina counties of Alamance, Chatham, Guilford, and Randolph, and they were also early settlers in the counties of Davidson, Stokes, Davie, Forsyth, Yadkin, and Surry.[4] These counties and adjacent sections of neighboring

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Frank W. Klingberg, *The Southern Claims Commission* (Berkeley and Los Angeles: University of California Press, 1955); Barrett, *Civil War in North Carolina*, 171-201; Carl N. Degler, *The Other South: Southern Dissenters in the Nineteenth Century* (New York: Harper and Row, 1974), hereinafter cited as Degler, *The Other South*; W. Buck Yearns and John G. Barrett (eds.), *North Carolina Civil War Documentary* (Chapel Hill: University of North Carolina Press, 1980), hereinafter cited as Yearns and Barrett, *North Carolina Civil War Documentary*; Phillip Shaw Paludan, *Victims: A True Story of the Civil War* (Knoxville: University of Tennessee Press, 1981); Henry T. Shanks, "Disloyalty to the Confederacy in Southwestern Virginia, 1861-1865," *North Carolina Historical Review*, XXI (April, 1944), 118-135; and William T. Auman and David D. Scarboro, "The Heroes of America in Civil War North Carolina," *North Carolina Historical Review*, LVIII (October, 1981), 327-363, hereinafter cited as Auman and Scarboro, "The Heroes of America." For a recent bibliography on the interrelated problems of disaffection, desertion, Unionism, and disloyalty in the Confederacy, see Emory M. Thomas, *The Confederate Nation: 1861-1865* (New York: Harper and Row, 1979), 352-353.

[4]Hugh Talmage Lefler and Albert Ray Newsome, *North Carolina: The History of a Southern State* (Chapel Hill: University of North Carolina Press, third edition, 1973), 136-137, hereinafter cited as Lefler and Newsome, *North Carolina*.

Eastern North Carolina had a sizable Quaker presence in the seventeenth and eighteenth centuries, but by the Civil War only small numbers of Quakers remained in the eastern counties of Wayne, Northampton, Hertford, Perquimans, and Sampson because of migration to the piedmont and to the Old Northwest. By 1860 the central North Carolina counties of Alamance, Chatham, Randolph, Guilford, Yadkin, and Surry had the largest concentrations of Quakers, while the counties of Stokes, Iredell, Davie, Forsyth, Davidson, Moore, Montgomery, Orange, and Alleghany had relatively smaller numbers. New Garden in central Guilford County had become the center of Southern Quakerism. The New Garden Boarding School, the antecedent of present-day Guilford College, was chartered there in 1833 by the Quakers. See Lefler and Newsome, *North Carolina*, 136-137, 408-409, and Stephen B. Weeks, *Southern Quakers and Slavery* (Baltimore: Johns Hopkins Press, 1896), 70, 101, 109, 328-344, and map facing p. 400, hereinafter cited as Weeks, *Southern Quakers*.

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.2 - Seeing Emancipation: Scale and Freedom in the American South

Edward L. Ayers and Scott Nesbit

ARTICLE	Seeing Emancipation: Scale and Freedom in the American South
JOURNAL	Journal of the Civil War Era 1, no. 1 (2011)
EXCERPT	Original journal pages 3-4
JSTOR	https://www.jstor.org/stable/26070087

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EDWARD L. AYERS & SCOTT NESBIT

Seeing Emancipation Scale and Freedom in the American South

Emancipation in the United States was vast, distended, and chaotic. Shifting boundaries surrounded the struggle, unfolding unevenly over years and an expanse the size of Continental Europe. Some enslaved people were able to escape to Union lines within months of the beginning of the war, yet millions remained firmly bound by slavery in 1865. The president, legislatures, judges, and generals played crucial roles in ending slavery, as did enslaved people, who seized freedom at every opportunity. Military and political struggle were inextricably interwoven with the struggles of individuals held in slavery; thus Abraham Lincoln kept a map of the distribution of slavery—the first map of its kind in the United States—close at hand.

Trying to make sense of this complexity, historians of emancipation have tended to focus on agency, on the ways actors in different spheres and places strove for freedom. In its simplest form, that inquiry has turned around the question of who freed the slaves. Thanks to innovative work since the 1980s, we now see that freedom came as a result of many struggles—in cataclysmic battles and in protracted debates, on farms and in bureaucracies, in political parties and on lonely roads. Freedom demanded action on many fronts because slavery was entrenched throughout American society. A full understanding of emancipation requires that we put the pieces together. To do that—to comprehend the patterns, proportions, and timing of emancipation, to see multiple forms of power in interaction in space and time—we need an analytical framework that is inclusive, self-aware, and disciplined.[1]

Much of the debate over emancipation has, knowingly or not, turned on the issue of scale. Those who emphasize the role of Abraham Lincoln and the Republicans focus on the national scale; those who emphasize the role of the enslaved people focus on the scale of individual struggle and the cumulative effects of that struggle. Other historians focus on intermediate scales of armies, states, or regions. The debate to this point

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has often focused on agency—who possessed the capacity for action and who used that capacity for what purposes and when. The concept of agency, however, tends toward dichotomies: passive versus active, top versus bottom, middle versus periphery, black versus white, military versus home front. The work of historians of emancipation has shown us that those dichotomies cannot explain the dynamic complexity of emancipation, in part because each side of the dichotomy restricts itself to a single scale.[2]

Since scale makes such a difference in our understanding, it would be good to analyze that concept more explicitly. Scale carries two fundamental meanings. First, it defines the varying spatial and temporal reach of specific practices. People act in networks of different sizes, with different degrees of awareness of those networks. It is also a matter of perception, the frame that observers lay down over evidence of social activity. That perceptual scale reveals and obscures, emphasizing some actions while truncating or ignoring others. Being self-conscious about scale, in both these meanings, is crucial if we are to understand the patterns of the past. Most important, an intentional focus on scale allows us to integrate multiple perspectives and social action of many kinds.

Emancipation certainly unfolded at multiple scales simultaneously. It occurred at the scale of grand strategy and the nation-state, dictated from Washington. Abraham Lincoln understood that the military success of the United States depended on destroying the ability of slave labor to feed the armies of the Confederacy. He also understood that enslaved people could be both aid and hindrance in the success of the Union armies, helping guide those armies through alien territory, yet burdening fast-moving troops with thousands of desperate men, women, and children. Lincoln also understood all too well the race he was running in the political realm, winning the war before his considerable opposition, fed by every move he made against slavery, mobilized to remove him from power.

Emancipation played out, too, at the level of the military district and theater. In 1862, for example, while commanding forces stationed off the South Carolina and Georgia coast, Gen. David Hunter temporarily created a large potential zone of emancipation, assuming the authority to enroll able-bodied former slaves as soldiers, with or without their consent, and declaring all slaves in the district free. This District of the South held authority over nearly one million slaves, according to the 1860 census, and Hunter hoped to leverage these demographics to his military advantage. In announcing emancipation, he cut against the strategies of war that the president had outlined by August 1862. Lincoln quickly revoked Hunter's abolition of slavery, even as he prepared to announce his own.[3]

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.3 - Sherman and Total War in the Carolinas

John G. Barrett

ARTICLE	Sherman and Total War in the Carolinas
JOURNAL	The North Carolina Historical Review 37, no. 3 (1960)
EXCERPT	Original journal pages 367-368
JSTOR	https://www.jstor.org/stable/23517035

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SHERMAN AND TOTAL WAR IN THE CAROLINAS

By John G. Barrett*

Although William Tecumseh Sherman could not recall saying "War is hell," he did state: "You cannot qualify war in harsher terms than I will. War is cruelty and you cannot refine it." [1] It was in the fall of 1862 that he developed his philosophy of total war which he thought would make conflict "so terrible" that the South would exhaust all peaceful remedies before commencing another struggle.[2] Considering all the people of the South as enemies of the Union,[3] Sherman planned to use his military forces against the civilian population as well as the armies of the enemy. He believed this plan of action would not only demoralize the non-combatants but also the men under arms. The Southern armies in the field, he felt certain, could be disheartened by attacks on the civilian population, as easily as by defeats on the battlefield. Sherman's program of total war also called for the destruction of the enemy's economic resources. By paralyzing the Confederate economy he hoped to destroy the South's ability to supply its fighting forces with war materials. Thus in bringing war to the home front he hoped to destroy both the South's capacity to wage war and its will to fight.[4]

"Collective responsibility," the theory upon which total war rests, made possible a new mode of warfare in which the

* Dr. John G. Barrett is an Assistant Professor of History at Virginia Military Institute, Lexington, Virginia.

[1] Mark Antony DeWolfe Howe (ed.), *Home Letters of General Sherman* (New York: Charles Scribner's Sons, 1909), 309, hereinafter cited as Howe, *Home Letters of Sherman;* William Tecumseh Sherman, *Memoirs of General W. T. Sherman* (New York: D. Appleton and Company, 2 volumes, 1875), II, 126, hereinafter cited as Sherman, *Memoirs.*

[2] *The War of the Rebellion: A Compilation of the Official Records of the Union and Confederate Armies* (Washington, D. C.: Government Printing Office, 70 volumes [127 books and index], 1880-1901), Series I, XVII, Part II, 260, hereinafter cited as *Official Records.*

[3] Sherman, *Memoirs,* I, 267. Guerrilla activity and unorganized civilian resistance in the region around Memphis helped to bring Sherman to this conclusion.

[4] An excellent study of Sherman's philosophy of total war is John Bennett Walters, "General William T. Sherman and Total War" (unpublished doctoral dissertation, Vanderbilt University, 1947), hereinafter cited as Walters, "Sherman and Total War."

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accepted rules of the time were transgressed. The effect was a certain disregard for human rights and dignity. But with Sherman "war . . . [was] war and not popularity seeking." [5] He thought the South, for its part in bringing on the conflict, deserved "All the curses and maledictions a people can pour out." [6] Nevertheless, he held out to his enemies the sincere promise of a helping hand if they would lay down their arms and rejoin the Union. It was not a sense of cruelty and barbarism that prompted Sherman to formulate his theory of total war. This conception was the outgrowth of a search for the quickest, surest, and most efficient means to win a war. Victory, he determined, could be won more easily by moving troops than by fighting. Strategy had become to him the master of tactics. The purpose of his strategy was to minimize fighting by striking at the supply lines and morale of the enemy.[7]

The full application of this new philosophy of war was to be applied by Sherman in campaigns through Mississippi, Georgia, and the Carolinas. In Mississippi the Federal army destroyed the State's resources and lines of communication and demonstrated to the inhabitants how cruel a matter war could be. In Georgia Sherman was to repeat the Mississippi performance but on a much larger scale.

When the Georgia operations ended at Savannah on December 21, 1864, all the accepted rules of strategy called for the immediate transfer of Sherman's sixty thousand veterans from the Georgia coast to Richmond where Grant had Lee bottled up behind fortifications.[8] General Grant was desirious of this move,[9] but much to his dismay Sherman voiced strong objections to such a plan. He hoped to march on to Richmond by way of Columbia and Raleigh in the Carolinas.[10] Every

[5] Walters, "Sherman and Total War," 133; *Official Records*, Series I, XXXVIII, Part V, 794.
[6] Sherman, *Memoirs*, II, 126.
[7] Basil Henry Liddell Hart, *Sherman: Soldier, Realist, American* (New York: Dodd, Mead and Company, 1929), 426.
[8] Colin R. Ballard, *The Military Genius of Abraham Lincoln* (New York: The World Publishing Company, 1952), 223. Because of the heavy demands on ocean transportation it probably would have taken two months to have moved Sherman's entire army to Richmond. Sherman, *Memoirs*, II, 224.
[9] Sherman, *Memoirs*, II, 206.
[10] Sherman, *Memoirs*, II, 209.

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.4 - Desertion as Localism: Army Unit Solidarity and Group Norms in the U.S. Civil War

Peter S. Bearman

ARTICLE	Desertion as Localism: Army Unit Solidarity and Group Norms in the U.S. Civil War
JOURNAL	Social Forces 70, no. 2 (1991)
EXCERPT	Original journal pages 321-322
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Desertion As Localism: Army Unit Solidarity and Group Norms in the U.S. Civil War*

PETER S. BEARMAN, *University of North Carolina at Chapel Hill*

Abstract

Drawing from the experiences of 3,126 enlisted men from North Carolina who fought for the Confederacy in the U.S. Civil War, this article focuses on the determinants of desertion. I argue that men deserted because their identity as Southerners was eroded by an emergent localism, sustained and organized within the Confederate army. Desertion rates were highest in companies that evidenced a high degree of local homogeneity — company solidarity thus bred rather than reduced desertion rates. There is no support for any of the historical models of desertion that search for individual-level determinants, such as social class, occupation, status, family structure, age, or time of enlistment. Finally, contextual variables seem to be weak proxies for the central variable accounting for desertion — the emergence of a localist identity.

Mother there is soldiers deserting every day & I hope that they will continue to desert until this war is ended.

Private T.W. Gaither, April 3, 1863 (Hardy n.d.)

In the final months of World War II, German soldiers continued to oppose the Allied forces despite overwhelming odds and knowledge that they faced certain defeat (Shils & Janowitz 1948). In Vietnam and Afghanistan, small and poorly supplied resistance armies ultimately defeated, in struggles that lasted for years, armed forces with vast material and manpower resources at their disposal. In marked contrast, the Confederate South, in control of resources and manpower that, relative to the opposing forces, were greater than those of numerous successful resistance movements, was overwhelmed by Union forces within 18 months of its first major military setbacks. Why did the South lose the Civil War, and why did it lose so quickly?

Tim Long, Kathy Giuffre, and Michael McKenna assisted with the collection of data. Richard Melvin graciously made available his materials on the men of the 39th Regiment. Charles Ragin and John Padgett helped frame the argument at an early stage of the project, and I thank them for their help. This article benefited from the comments of Glenn Deane, Philip O'Connell, and Ronald Rindfuss. Financial assistance from the Institute for Research in Social Science, University of North Carolina at Chapel Hill, is gratefully acknowledged. Direct all correspondence to the author, Department of Sociology, University of North Carolina, Chapel Hill, NC 27599-3210.

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A popular answer is that the agrarian South was overwhelmed by the industrial North's superior capacity to harness and deploy manpower and material resources (Donald 1960). Contemporaries in the South may have found comfort in this argument, but recently many historians have focused on the internal conflicts arising from ideological and structural cleavages in antebellum Southern society as the cause of the collapse of Southern morale (Beringer et al. 1986; Durden 1972; Escott 1978; McPherson 1982; Owsley [1925] 1961; Wiley 1943).

This new focus on internal ruptures has taken numerous forms. Escott (1978) suggests, for example, that Confederate military policies, which exempted planters who owned more than 20 slaves from active service, heightened the nascent class conflict between the large planter aristocracy and the mass of yeomen farmers over the course of the war. As their standard of living declined, yeomen farmers increasingly came to resent the elite and the Confederacy, which earlier had appeared to serve their interests (Watson 1985). The poor did not want to fight a rich man's war while the rich stood by. Historians have also focused on the emergence of conflict over the issue of slavery. Beringer et al. (1986) suggest that as the war continued, many Southerners harbored increasing doubts about the justness of slavery. These doubts led men, especially those from outside the "slavebelt" who did not have a vested economic interest in slavery, to withdraw their support for the Confederacy and the war effort. Both arguments have a similar logic — the Civil War brought to light class antagonisms latent in antebellum Southern society and consequently crippled the sense of Southern identity and nationalism that flourished at secession.

Historians have also suggested that bitter battles among the elite over state rights fragmented Southern nationalism (Donald 1960; Owsley [1925] 1961). Dissonance between the reality of a strongly centralized Confederate state and the ideal of state rights led some elites to withdraw their support for the war and to sabotage the Confederacy from within. Contemporaries did not fail to notice the irony of a state rights movement led by a central authority more powerful than the Union from which the Southern states had seceded.

These arguments have cumulated in a new historical vision of the Civil War that suggests that structural and ideological cleavages undermined Confederate unity (Escott & Crow 1986). In the context of a weak and poorly articulated national identity, these nascent cleavages undermined the bases for collective action and lead inexorably to Northern victory. From this perspective, the South lost the Civil War not because the North was able to deploy more resources and men but because it was unable to sustain a collective identity as a Confederate state in the wake of structural cleavages that crosscut and eroded the bases for national sentiment.

Confederates had little to fight for, so when the going got rough, they quit. As Beringer et al. (1986) write:

> After three years of essentially successful defense against powerful invading forces these prolonged strains proved more than Confederate nationalism could bear and . . . Confederates, by thousands of individual decisions, abandoned the struggle for and allegiance to the Confederate States of America.

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.5 - Protection of Personal Liberty in Republican Emancipation Legislation of 1862

Herman Belz

ARTICLE	Protection of Personal Liberty in Republican Emancipation Legislation of 1862
JOURNAL	The Journal of Southern History 42, no. 3 (1976)
EXCERPT	Original journal pages 385-386
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Protection of Personal Liberty in Republican Emancipation Legislation of 1862

By Herman Belz

The motivation of Republican emancipation policy in 1862 has been a perennial imponderable of Civil War historiography. In 1948 Richard Hofstadter gave pointed expression to what has come to be known as the revisionist view of the matter in stating that Lincoln adopted emancipation only after all other policies failed, that he resorted to it in an unhappy frame of mind, and that the Emancipation Proclamation "had all the moral grandeur of a bill of lading." "It contained no indictment of slavery," Hofstadter wrote, "but simply based emancipation on 'military necessity.' "[1] In 1963, believing that a good point had been carried too far, Mark M. Krug contended that Lincoln undertook emancipation not just for military reasons but also to right a moral wrong. Krug advanced this conclusion as a reasonable inference based on Lincoln's expressions of hatred for slavery and on the judgment of contemporaries that moral conviction sustained the emancipation edict.[2] Similarly, Harry V. Jaffa, viewing Lincoln's career as a consistent whole, the rationale of which was to remove the curse of slavery from the American republic and from both the black and white races, concluded in 1965 that Lincoln deserved to be regarded, as he traditionally had been, as the great emancipator.[3]

Something of a fusion of the revisionist and traditionalist interpretations appeared in the work of V. Jacque Voegeli a few years later. Emphasizing the political and military expediency of Lincoln's emancipation policy, Voegeli noted also that in private Lincoln tended to adopt an abolitionist view of the war. In the Emanci-

[1] Hofstadter, *The American Political Tradition and the Men Who Made It* (Vintage ed., New York, 1954), 132.

[2] Krug, "The Republican Party and the Emancipation Proclamation," *Journal of Negro History*, XLVIII (April 1963), 98–114.

[3] Jaffa, *Equality and Liberty: Theory and Practice in American Politics* (New York, 1965), 140–68.

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pation Proclamation itself, Voegeli pointed out, Lincoln called emancipation an act of justice and thus took "a meaningful step toward higher ground."[4] Most recently, James A. Rawley has described the Emancipation Proclamation in revisionist terms as a weapon of war and instrument of nationality and not as a torch of freedom or a program of social reform, while Don E. Fehrenbacher in a more traditionalist vein has suggested that confusion in understanding the Emancipation Proclamation arises from taking too seriously Lincoln's verbal concessions to conservatives and the fiction that slave liberation was strictly a military measure.[5]

As this brief review of representative writings suggests the problem of motivation in Republican emancipation policy has been conceived of almost entirely as a question of Lincoln's motivation in issuing the Emancipation Proclamation. Looked at in this way, however, the problem is unlikely to be resolved, for there is evidence to support both the revisionist and the traditional points of view. Lincoln based emancipation on thoroughly pragmatic grounds of military and political expediency, and he had compelling ideological and humanitarian reasons for adopting a policy of slave emancipation. It may be possible, however, to advance our understanding of wartime emancipation by studying congressional legislation and by asking whether in formulating emancipation measures Republicans evinced an interest in Negro liberty as distinct from a desire to secure military advantage for the Union by depriving the enemy of its labor supply.

Congressional attitudes and actions have generally been regarded as more aggressively antislavery than those of the Lincoln administration. While recognizing that Republican lawmakers desired to make slave liberation a military asset, historians by concentrating on the problem of military expediency versus antislavery moral principle in Lincoln's Emancipation Proclamation have by implication suggested that Congress, with its contingent of radical Republicans, adopted emancipation quite as much for ideological and humanitarian as for political and military reasons. Congress moved faster and farther than Lincoln on emancipation, James A. Rawley writes in a typical expression of this point of view, and took the initiative in promoting civil rights for blacks.[6]

[4] V. Jacque Voegeli, *Free but Not Equal: The Midwest and the Negro During the Civil War* (Chicago and London, 1967), 41, 47, 75 (quotation).

[5] Rawley, *The Politics of Union: Northern Politics During the Civil War* (Hinsdale, Ill., 1974), 85; Fehrenbacher, "Only His Stepchildren: Lincoln and the Negro," *Civil War History*, XX (December 1974), 306.

[6] Rawley, *The Politics of Union*, 88; see also Hans L. Trefousse, *The Radical Republicans: Lincoln's Vanguard for Racial Justice* (New York, 1969), 4–5, 203–39; David Donald, *Charles Sumner and the Rights of Man* (New York, 1970), 61–63.

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.6 - Beyond the Chessboard of War: Contingency, Command, and Generalship in Civil War Military History

Andrew S. Bledsoe

ARTICLE	Beyond the Chessboard of War: Contingency, Command, and Generalship in Civil War Military History
JOURNAL	Journal of the Civil War Era 9, no. 2 (2019)
EXCERPT	Original journal pages 275-276
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REVIEW ESSAY

Beyond the Chessboard of War

Contingency, Command, and Generalship in Civil War Military History

ANDREW S. BLEDSOE

This essay encourages historians of the Civil War era to reimagine and reintegrate traditional military history into their scholarship by deepening their understanding of the role, importance, and consequences of Civil War command and generalship and their essential connection to historical contingency. It urges historians to adopt a holistic approach, considering the political, cultural, personal, and military contexts of command, generalship, and the decisions that shape contingency in war. This essay also suggests a practical interpretive framework for both specialists and nonspecialists in Civil War military history to help them integrate command and generalship into a broad spectrum of other histories in thoughtful ways.

Traditional military history, while the most venerable approach to understanding the Civil War's martial past, remains somewhat controversial. Earl J. Hess describes the essence of traditional military history as works including "campaign and battle studies, tactical and strategic histories, studies of weapons, and biographies of major commanders."[1] In the last decade, Hess, George C. Rable, Gary W. Gallagher, Katherine Shively Meier, and many other distinguished Civil War historians have called, repeatedly, for an evolution of how we think about all aspects of traditional Civil War military history. Yet despite these warnings to adapt, some historians of the Civil War era remain unconvinced about the centrality, even relevance, of traditional military history to serious inquiry, with some not knowing—or caring—about battles, campaigns, and generals. Many seek to integrate traditional military history matters and concepts into social, cultural, political, gender, religious, and other histories, often with interesting and important results. Even so, others acknowledge the relevance of the war's military history to their own work, but are impatient with its

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nature and application, and are therefore reluctant to explicitly integrate battles and leaders into their pedagogy or scholarship. The occasionally uneasy place of traditional military history subjects like command and generalship within the larger field of Civil War studies can leave some academic historians, otherwise interested in acquiring a deeper understanding of the war's military history, at a loss as to their pertinence beyond the profession of arms or the Civil War Round Table circuit. A common sentiment among many Civil War historians, military or otherwise, is that we should do *something* to reimagine and reintegrate the military history of the conflict across the broader field of Civil War studies; but what, precisely, we *should* do is still a question with multiple evolving answers.[2]

Hess's point that the "general and erroneous impression is that [traditional military history] studies are relatively limited in scope, quite popular among nonacademic audiences, and very old fashioned in their methodology and interpretation" is well-taken. The perception that traditional Civil War military history has calcified, or that it has nothing left to offer beyond popular or nonacademic appeal, is difficult to dispel. Still, military operations touched everything in the Civil War influencing important social transformation, including emancipation, national policy, religion, ideology, the home front, nationalism, gender, identity, and cultural changes. As Gallagher and Meier emphasize, the military history of the Civil War "investigates warfare and the relationship between military institutions and the societies from which they sprang," surely a valid conceptual approach worthy of consideration within a multitude of historical methodologies.[3] Still, Rable, though acknowledging that studies of Civil War campaigns and leaders are "indispensable for understanding the war itself, the meaning of the war for the Civil War generation, and even for broader studies of the era," worries that such traditional approaches threaten to become a "tired, stale, and overdone genre."[4] Hess goes further, warning that the larger field of Civil War studies has become "increasingly insular and one-dimensional and is in real danger of becoming sterile," and this looming "sterility that comes from atrophy" originates in historians' misconceptions about and divisions over the nature and importance of traditional military history, including such subjects as command and generalship.[5]

My purpose in this essay is twofold. First, I suggest a possible avenue for a reimagination and reintegration of traditional military history by urging historians of the Civil War to deepen their understanding of one particular aspect of that history; namely, the role, importance, and consequences of Civil War command and generalship and their essential connection to historical contingency. To accomplish this, historians must move beyond

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.7 - Flag Culture and the Consolidation of Confederate Nationalism

Robert E. Bonner

ARTICLE	Flag Culture and the Consolidation of Confederate Nationalism
JOURNAL	The Journal of Southern History 68, no. 2 (2002)
EXCERPT	Original journal pages 293-294
JSTOR	https://www.jstor.org/stable/3069934

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Flag Culture and the Consolidation of Confederate Nationalism

By Robert E. Bonner

As William Howard Russell's train rumbled through North Carolina on April 15, 1861, the celebrated diarist of the London *Times* spotted his first Confederate flag, waving atop a pine tree stripped of its branches. By the time he witnessed a similar banner floating over Fort Sumter in Charleston, South Carolina, the Englishman had seen countless versions of the new "Stars and Bars" displayed in forests, settlements, towns, and cities along his route. "All was noise, dust, and patriotism" in communities readying themselves for war, he reported, observing that "true revolutionary furor" was "in full sway." The activity that buzzed around the flags caused him to marvel how "[t]hese pieces of coloured bunting seem to twine themselves through heart and brain."[1]

Though Russell was impressed by the initial enthusiasm of such flag waving, he sensed that this Confederate frenzy was fueled by novelty rather than true devotion. He suspected that loyalties to the new republic would face sterner tests in the future, as the excitement of secession gave way to the grimness of war. Soon enough, the new republic's symbols would have to be judged by their ability to sustain morale on the battlefield and to capture the popular imagination, in the same way that the American flag would be judged in the North during the early 1860s. Russell went so far as to suggest that the rebellion might even succeed if southerners could endow their own banners with the same sort of mystical aura that clung to the Star-Spangled Banner. "If ever there is a real *sentiment du drapeau* got up in the South," he noted, "it will be difficult indeed for the North to restore the Union."[2]

Russell's musings about Confederate flag devotion call to mind

[1] William Howard Russell, *My Diary North and South* (Boston, 1863), 91–96 (first, second, and third quotations on p. 92; fourth quotation on p. 91).
[2] *Ibid.*, 91.

Mr. Bonner is an assistant professor of history at Michigan State University.

The Journal of Southern History
Volume LXVIII, No. 2, May 2002

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several recent attempts to reframe the perennial issue of the quality of southern nationalism during the American Civil War. His suggestive comments implied, as Drew Gilpin Faust would state more forcefully in 1988, that Confederate nationalism was not merely a reserve of earlier loyalties, nor could it be quantified during the secession crisis by those who speculated about likely Confederate fortunes.[3] Russell anticipated contemporary scholarship in his understanding of nationalism as an ongoing set of cultural innovations that would be undertaken by white southerners during the war itself. While Confederates would build their *sentiment du drapeau* upon earlier celebrations of flags in American patriotic life, they would also invent a broad range of rituals, literary productions, and musical efforts. Such cultural activities, which Faust's *Creation of Confederate Nationalism* put on the research agenda for Civil War scholars, represented the sort of "large-scale, identity-forming collective discourse" to which modern scholars of nationalism have increasingly turned their attention.[4] In this context, earlier attempts to sketch the "deficiency" of southern loyalties at the time of secession have given way to studies concerned with how southern citizens became attached to the larger Confederate effort through the crucible of their own wartime initiatives.[5]

In focusing attention on how the flag, specifically, might sustain the

[3] Drew Gilpin Faust, *The Creation of Confederate Nationalism: Ideology and Identity in the Civil War South* (Baton Rouge and London, 1988).

[4] Craig Calhoun, "Nationalism and the Public Sphere," in Jeff Weintraub and Krishan Kumar, eds., *Public and Private in Thought and Practice: Perspectives on a Grand Dichotomy* (Chicago and London, 1997), 100 (quotation). For two other overviews of recent scholarship on nationalism that both stress the move from "primordialist" to constructivist perspectives, see Geoff Eley and Ronald Grigor Suny, "Introduction: From the Moment of Social History to the Work of Culture Representation," in Eley and Suny, eds., *Becoming National: A Reader* (New York and Oxford, 1996), 3–37, esp. 6–7; and Rogers Brubaker, "Myths and Misconceptions in the Study of Nationalism," in John A. Hall, ed., *The State of the Nation: Ernest Gellner and the Theory of Nationalism* (Cambridge, Eng., and other cities, 1998), 272–306. The public nature of early American nationalism, and especially its celebratory rites and its manifestation in print, is the theme of David Waldstreicher, *In the Midst of Perpetual Fetes: The Making of American Nationalism, 1776–1820* (Chapel Hill and London, 1997).

[5] Compare Kenneth M. Stampp, "The Southern Road to Appomattox," in Stampp, *The Imperiled Union: Essays on the Background of the Civil War* (New York and Oxford, 1980), 246–69; and Richard E. Beringer, Herman Hattaway, Archer Jones, and William N. Still Jr., *Why the South Lost the Civil War* (Athens, Ga., and London, 1986); to Drew Gilpin Faust, *Mothers of Invention: Women of the Slaveholding South in the American Civil War* (Chapel Hill and London, 1996); Gary W. Gallagher, *The Confederate War* (Cambridge, Mass., and London, 1997); Reid Mitchell, "Nationalism," in Richard N. Current, ed., *Encyclopedia of the Confederacy* (4 vols.; New York and other cities, 1993), III, 1111–16; George C. Rable, *The Confederate Republic: A Revolution Against Politics* (Chapel Hill and London, 1994); and Harry S. Stout, "The Life and Death of the Confederate Jeremiad," James A. Gray lectures at Duke University, 1992 (unpublished manuscript in the possession of the author).

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.8 - Reassessment of the Union Blockade's Effectiveness in the Civil War

M. Brem Bonner and Peter McCord

ARTICLE	Reassessment of the Union Blockade's Effectiveness in the Civil War
JOURNAL	The North Carolina Historical Review 88, no. 4 (2011)
EXCERPT	Original journal pages 375-376
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Reassessment of the Union Blockade's Effectiveness in the Civil War

M. Brem Bonner and Peter McCord

Historians of the American Civil War are practically obligated to select an interpretation of the blockade and discuss whether the cordon of Union ships effectively diminished Southern imports and assisted the final collapse of the Confederacy. The fundamental question of the blockade's effectiveness continues to prompt interpretive disagreements and remains one of the enduring controversies of Civil War scholarship. One might expect this historical debate to wane since eminent scholars have exhaustively researched and analyzed the subject. Another contribution to the debate of the blockade's effectiveness is possible if one asks new questions of old evidence. The most comprehensive collections of blockade research were compiled by historians Marcus Price and Stephen Wise and will be the foundation for this reassessment. After a brief review of the interpretive approaches, this study will attempt to develop an improved statistical definition of the Union blockade's effectiveness by checking capture rates over small time increments. A standard definition of effectiveness often cripples scholarly blockade debates; thus, for the purpose of this article, the authors argue that effectiveness can only be measured by capture/success rates of ships that actually attempted to run the blockade, not based upon phantom ships that might have forfeited their plans. This study's primary goal is to answer the question: did the effectiveness of the blockade increase, decrease, or remain static during the Civil War?

Reorganization of the interpretive models into subcategories can assist students of the blockade to better understand the effectiveness debate. Scholars who support the blockade's effectiveness generally present either psychological, contributory, or cost/benefit arguments.[1]

Astute observers of the South's condition began calculating the blockade's potency during the war and developed an argument for its psychological effectiveness. Numerous wartime diarists analyzed the visible evidence around them and

1. The interpretive models listed are not mutually exclusive, and some historians use aspects of more than one to analyze the blockade. This categorization is not meant to be conclusive but is merely an attempt to compartmentalize a variety of interpretations.

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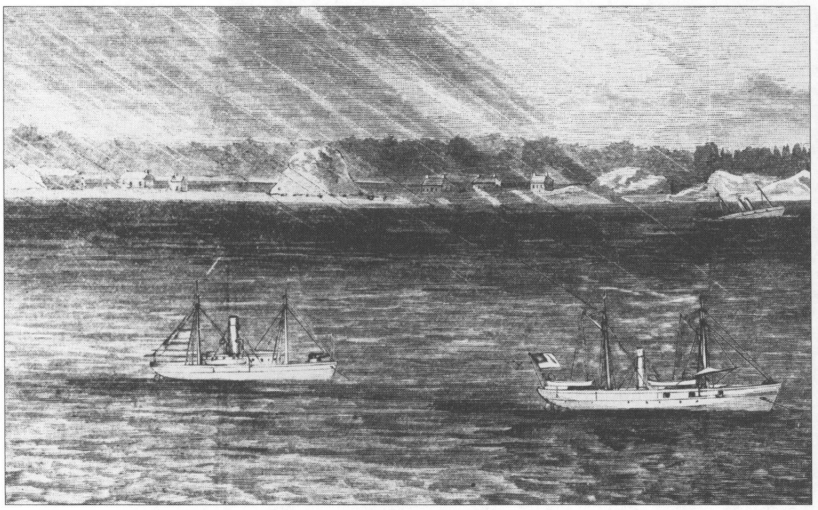

On April 16, 1861, President Lincoln announced the establishment of a blockade off the coasts of South Carolina, Georgia, Alabama, Florida, Mississippi, Louisiana, and Texas. Eight days later the blockade was expanded to include the coasts of North and South Carolina. Engraving of the blockade fleet off the coast of Wilmington,

assumed that the closure of Confederate ports was increasingly effective. The constantly observant and analytical Mary Chesnut declared in July 1861 that "every day we grow weaker and they stronger. . . . Already [Confederate armies] begin to cry out for more ammunition, and already the blockade is beginning to shut it all out." War Department clerk John Beauchamp Jones worried about the potential price inflation of consumer goods after he purchased some clothes. On June 2, 1861, he penned in his diary, "what will be the price of such commodities a year hence if the blockade continues? It is fearful to contemplate!" Affluent journal keeper Ella Gertrude Clanton Thomas remarked on July 21, 1861, that "the Blockade has prevented the importation of new Books," which eventually might "prove a serious inconvenience."[2] These premature early blockade assessments reflected the psychological impact of Lincoln's policy on prescient Southerners concerned about future shortages. If both Chesnut and Jones, relatively well-informed and well-connected members of Confederate society, believed in the early efficacy of the Union blockade, the general public most likely experienced similar psychological effects.

2. C. Vann Woodward, ed., *Mary Chesnut's Civil War* (New Haven, Conn.: Yale University Press, 1981), 101; John Beauchamp Jones, *A Rebel War Clerk's Diary*, 2 vols., ed. Howard Swiggett (New York: Old Hickory Bookshop, 1935), 1:47; Virginia Ingraham Burr, ed., *The Secret Eye: The Journal of Ella Gertrude Clanton Thomas, 1848–1889* (Chapel Hill: University of North Carolina Press, 1990), 188.

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.9 - The Social and Cultural Dynamics of Soldiering in Hood's Texas Brigade

Charles E. Brooks

ARTICLE	The Social and Cultural Dynamics of Soldiering in Hood's Texas Brigade
JOURNAL	The Journal of Southern History 67, no. 3 (2001)
EXCERPT	Original journal pages 535-536
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The Social and Cultural Dynamics of Soldiering in Hood's Texas Brigade

By CHARLES E. BROOKS

JUST BEFORE THE START OF THE BLOODY PENINSULA CAMPAIGN OF JUNE 1862, the soldiers of the Fourth Texas Infantry Regiment purchased a horse for General John Bell Hood, commander of what came to be known as Hood's Texas Brigade. Later, as the regiment assembled at dress parade, First Sergeant J. M. Bookman presented the horse to General Hood. "Sir: In behalf of the non-commissioned officers and privates . . . , I present you this war-horse. He was selected and purchased by us for this purpose, not that we hoped by so doing to court your favor, but simply because we, as freemen and Texans, claim the ability to discern, and the right to reward, merit wherever it may be found. In you, sir, we recognize the soldier and the gentleman. In you we have found a leader whom we are proud to follow—a commander whom it is a pleasure to obey; and this horse we tender as a slight testimonial of our admiration." Moved by this gesture of deference and respect from his men, General Hood sprang into the saddle and promised to act as their "rallying point when the struggle came."[1]

These Texas soldiers—who soon earned a reputation as the toughest combat troops in Robert E. Lee's fabled Army of Northern Virginia—did not always behave so deferentially toward officers. In fact, when the Texas regiments came to Virginia, they clashed frequently with the Confederate government over the authority to select their own regimental and staff officers. The men of the Texas regiments claimed the

[1] Donald E. Everett, ed., *Chaplain Davis and Hood's Texas Brigade; Being an expanded edition of the Reverend Nicholas A. Davis's* "The Campaign from Texas to Maryland, with the Battle of Sharpsburg" (orig. pub., Richmond, 1863; repr. ed., San Antonio, 1962), 57. The author wishes to thank the anonymous reviewers for the *Journal of Southern History* and his colleagues, R. J. Q. Adams, James Bradford, Joseph Dawson, Walter Kamphoefner, and William Page, for their thoughtful comments and suggestions. A shorter version of this article was presented at a meeting of the Southwestern Social Science Association, and the author thanks all of those who participated in that session. Finally, the author is grateful to Peggy Fox and the late Olene Powell for making his many visits to the Harold B. Simpson Confederate Research Center both pleasant and fruitful.

MR. BROOKS is an associate professor of history at Texas A&M University.

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right to veto any appointment that proved unacceptable to them. The Fourth Texas Regiment, for instance, refused to accept the assignment of Colonel R. T. P. Allen to lead their unit. He had been in camp for only a short while when several soldiers hoisted Allen onto his horse, and using switches, drove him "out of the regimental grounds amid the hoots and jeers of the boys"; and he "was never seen again."[2]

This study examines the social and cultural dynamics of leadership, command, and soldiering in Hood's Texas Brigade for clues to unravel the broader enigma of the antebellum southern social structure, particularly with regard to the place and status of plain folk, yeoman farmers, and other non-elite whites. Much of the literature about the antebellum South hinges on the long-standing debate over whether the Old South was an elitist slaveholding aristocracy or an agrarian plain-folk democracy.[3] The drift of many recent studies has been toward synthesis, arguing that antebellum society represented a hybrid of hierarchy and equality.[4] However, even studies that recognize the complexity and paradoxes of this society fall short as social history, because the class dynamic that they advance to link elite and commoner, rich and poor, is too one-sided. The planters' hegemony is a given. "The nonslaveholder," according to one historian, "was in a very passive, dependent position vis-a-vis the planter."[5] Studies based on the so-called republican synthesis also tend to infer yeoman values and ideas from the language and behavior of political elites; consequently, the social relation is seen from the top down, the capacity of plain folk to form their own lives is shortchanged, and thus the truly

[2] Harold B. Simpson, *Hood's Texas Brigade: Lee's Grenadier Guard* (Waco, Tex., 1970), 61–62 n. 14. The original source is Foster B. Womack, *An Account of the Womack Family* (privately printed; Waco, Tex., 1937), 11.

[3] For a succinct introduction to this debate see Randolph B. Campbell and Richard G. Lowe, *Wealth and Power in Antebellum Texas* (College Station and London, 1977), 3–12. See also Elizabeth Fox-Genovese and Eugene D. Genovese, "Yeoman Farmers in a Slaveholders' Democracy," in *Fruits of Merchant Capital: Slavery and Bourgeois Property in the Rise and Expansion of Capitalism* (New York and Oxford, 1983), 249–64; and George M. Fredrickson, "Aristocracy and Democracy in the Southern Tradition: A Perennial Debate among Historians," in *The Arrogance of Race: Historical Perspectives on Slavery, Racism, and Social Inequality* (Middletown, Conn., 1988), 134–41.

[4] See, for example, William W. Freehling, *The Road to Disunion:* Vol. I, *Secessionists at Bay, 1776–1854* (New York and Oxford, 1990), 37.

[5] William L. Barney, *The Secessionist Impulse: Alabama and Mississippi in 1860* (Princeton, 1974), 43. Many historians argue that racism, exploited through the mass appeal of *herrenvolk* democracy, was the principal device used by slaveholders to keep nonslaveholders subordinate. See George M. Fredrickson, *The Black Image in the White Mind: The Debate on Afro-American Character and Destiny, 1817–1914* (New York and other cities, 1971), 61–70; Pierre L. van den Berghe, *Race and Racism: A Comparative Perspective* (New York, 1967), 17–18, 29; James Oakes, *Slavery and Freedom: An Interpretation of the Old South* (New York, 1990), 129–34; and Michael Wayne, "An Old South Morality Play: Reconsidering the Social Underpinnings of the Proslavery Ideology," *Journal of American History,* LXXVII (December 1990), 838–43.

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.10 - The 'Loanly Runagee': Draft Evaders in Confederate South Georgia

David Carlson

ARTICLE	The 'Loanly Runagee': Draft Evaders in Confederate South Georgia
JOURNAL	The Georgia Historical Quarterly 84, no. 4 (2000)
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The "Loanly Runagee": Draft Evaders in Confederate South Georgia

By David Carlson

In early September 1862, forty men in Marion County, Georgia, "secured and provisioned a house and arranged it in the manner of a military castle." Well-armed and well-provisioned, they attempted not only to prevent their own capture but to protect any other south Georgians who sought sanctuary in their makeshift fortress. While Confederate and state military officials attempted to drive them out, their assaults had little impact on men who held a "determination to resist to the last extremity, their capture." Similar activity "of a still worse combination" reportedly occurred in Coffee County that same month.[1] Armed confrontations such as this were not uncommon during the Civil War. What made this one remarkable is the fact that it was a confrontation sparked by men who refused to fight for the Confederate States of America. Throughout the war, reluctant Georgians such as these took up arms to protect themselves from forced enlistment into either state or Confederate military service. Others fled into the swamps of south Georgia knowing that friends and neighbors would turn a blind eye to their activities. Most felt that life as a "loanly runagee," a Confederate on the run, was better than life at the front.[2]

[1] *Macon Telegraph*, September 15, 1862.
[2] The term "loanly runagee" comes from a brief article written by Georgia humorist "Bill Arp" (Charles Henry Smith). *Atlanta Southern Confederacy*, June 21, 1864.

Mr. Carlson is a graduate student at Emory University.

The Georgia Historical Quarterly
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Although numerous works have examined southern disillusionment with Confederate and state recruitment efforts,[3] none of them discusses to any great degree the enlistment conflicts that took place in south Georgia. While most south Georgia counties have their histories, they are mere extensions of the Lost Cause mythology and hold to the premise that all south Georgians were ardent secessionists and patriotic Confederates eager to serve their state. T. Conn Bryan's *Confederate Georgia* describes the Georgia home front during the war, including enlistment violence, but, as a general history, the work paints with broad strokes that tend to blur regional differences. Moreover, Bryan focused most of his attention on north and central Georgia. John E. Johns's *Florida During the War* is similarly written.[4] Even when historians discuss enlistment violence, they concentrate on those areas of greatest concern, namely the mountainous regions of north Georgia, Tennessee, and the Carolinas, and give the impression that such events were extremely localized. They rarely discuss minor occurrences such as those in Marion and Coffee counties. But "deserter countries," remote areas exploited as havens for draft evaders, existed throughout the southern states. One such area, not as well known, was a band of wiregrass lands in south Georgia that extended from the Great Bend of the Ocmulgee River through the Okefenokee Swamp and into Florida.

There were numerous reasons for a man wanting to avoid military service: Union or neutral sentiment, intense individualism, concern for the support of a family in a greatly inflated economy, political rivalries, personal feuds, the presence of northern invaders, and the influence of northern missionaries.[5] Many soldiers had enlisted with romantic notions of upholding their state's honor but failed to appreciate the hardships involved. Some men

[3]Albert Burton Moore, *Conscription and Conflict in the Confederacy*, Southern Classics Series (c1924; rpt. Columbia, S.C., 1996); Ella Lonn, *Desertion During the Civil War* (c1928; rpt. Gloucester, Mass., 1966); David Williams, *Rich Man's War: Class, Caste, and Confederate Defeat in the Lower Chattahoochee Valley* (Athens, Ga., 1998); Georgia Lee Tatum, *Disloyalty in the Confederacy* (Chapel Hill, N.C., 1934); Carl N. Degler, *The Other South: Southern Dissenters in the Nineteenth Century* (New York, 1974).

[4]T. Conn Bryan, *Confederate Georgia* (Athens, Ga., 1953); John E. John, *Florida During the War* (Gainesville, Fla., 1963).

[5]Moore, *Conscription and Conflict*, 148.

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.11 - Did the Civil War Retard Industrialization?

Thomas C. Cochran

ARTICLE	Did the Civil War Retard Industrialization?
JOURNAL	The Mississippi Valley Historical Review 48, no. 2 (1961)
EXCERPT	Original journal pages 197-198
JSTOR	https://www.jstor.org/stable/1902511

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Did the Civil War Retard Industrialization?

By Thomas C. Cochran

In most textbook and interpretative histories of the United States the Civil War has been assigned a major role in bringing about the American Industrial Revolution.[1] Colorful business developments in the North—adoption of new machines, the quick spread of war contracting, the boost given to profits by inflation, and the creation of a group of war millionaires—make the war years seem not only a period of rapid economic change but also one that created important forces for future growth. The superficial qualitative evidence is so persuasive that apparently few writers have examined the available long-run statistical series before adding their endorsement to the conventional interpretation. The following quotations taken from the books of two generations of leading scholars illustrate the popular view.[2]

"The so-called Civil War," wrote Charles A. and Mary R. Beard in 1927, " . . . was a social war . . . making *vast changes* in the arrangement of classes, in the accumulation and distribution of wealth, *in the course of industrial development*." [3] Midway between 1927 and the present, Arthur M. Schlesinger, Sr., wrote: "On these tender industrial growths the Civil War *had the effect of a hothouse*. For reasons already clear . . . nearly every branch of industry grew lustily." [4] Harold U. Faulkner, whose textbook sales

[1] This article is based on a paper presented by the author at the annual meeting of the Mississippi Valley Historical Association in Louisville in April, 1960.

[2] These particular authors are cited merely as examples of historical opinion, not because they are more in error than others. The reader needs only to take down other texts from his own shelf to find similar statements.

[3] *The Rise of American Civilization* (2 vols., New York, 1927), II, 53. In this and the following quotations the italics are mine.

[4] Homer C. Hockett and Arthur M. Schlesinger, *Land of the Free: A Short History of the American People* (New York, 1944), 355. Schlesinger wrote the section beginning with the Civil War.

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have ranked near or at the top, said in 1954: "In the economic history of the United States the Civil War was extremely important. . . . In the North *it speeded the Industrial Revolution* and the development of capitalism by the prosperity which it brought to industry." [5] The leading new text of 1957, by Richard Hofstadter, William Miller, and Daniel Aaron, showed no weakening of this interpretation: "The growing demand for farm machinery as well as for the 'sinews of war' led to American industrial expansion. . . . Of necessity, *iron*, *coal*, *and copper* production boomed during the war years." [6] A sophisticated but still essentially misleading view is presented by Gilbert C. Fite and Jim E. Reese in a text of 1959: "The Civil War proved to be a boon to Northern economic development. . . . Industry, for example, was not created by the war, but wartime demands *greatly stimulated and encouraged industrial development* which already had a good start." [7] In a reappraisal of the Civil War, in *Harper's Magazine* for April, 1960, Denis W. Brogan, a specialist in American institutions, wrote: "It may have been only a catalyst but the War *precipitated the entry* of the United States *into the modern industrial world*, made 'the take-off' (to use Professor W. W. Rostow's brilliant metaphor) come sooner." [8]

In all of these reiterations of the effect of the Civil War on industrialism, statistical series seem to have been largely neglected. None of the authors cited reinforce their interpretations by setting the war period in the context of important long-run indexes of industrial growth. Since 1949, series for the period 1840 to 1890 that would cast doubt on the conventional generalizations have been available in *Historical Statistics of the United States, 1789-1945*.[9] In 1960 a new edition of *Historical Statistics* and the report of the Conference on Research in Income and Wealth on *Trends in the American Economy in the Nineteenth Century* have provided additional material to support the argument that the

[5] *American Economic History* (7th ed., New York, 1954), 345. The same statement appears in a later edition (New York, 1960), 345.

[6] *The United States: The History of a Republic* (Englewood Cliffs, N. J., 1957), 381.

[7] *An Economic History of the United States* (Boston, 1959), 284.

[8] "A Fresh Appraisal of the Civil War," *Harper's Magazine* (New York), CCXX (April, 1960), 140.

[9] U. S. Bureau of the Census, *Historical Statistics of the United States, 1789-1945* (Washington, 1949).

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.12 - A Reassessment of Jefferson Davis as War Leader: The Case from Atlanta to Nashville

William J. Cooper, Jr.

ARTICLE	A Reassessment of Jefferson Davis as War Leader: The Case from Atlanta to Nashville
JOURNAL	The Journal of Southern History 36, no. 2 (1970)
EXCERPT	Original journal pages 189-190
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A Reassessment of Jefferson Davis as War Leader: The Case from Atlanta to Nashville

By William J. Cooper, Jr.

The failure of the southern Confederacy has often been correlated with the failure of Jefferson Davis as war leader. Davis's shortcomings as commander-in-chief of the armed forces, as political head of a new nation, and as chief spokesman to and for the public often lead the list of reasons for southern defeat. For example, Davis pales beside Abraham Lincoln in any comparison of the two Presidents as war leaders. Recently Eric L. McKitrick, summing up the views of many, wrote: "It seems apparent that the leadership of Abraham Lincoln was superior to that of Jefferson Davis . . . ."[1] Lincoln was flexible; Davis was rigid. Lincoln wanted to win; Davis wanted to be right. Lincoln had a broad strategic vision of Union goals; Davis could never enlarge his narrow view. Lincoln searched for the right general, then let him fight the war; Davis continuously played favorites and interfered unduly with his generals, even with Robert E. Lee. Lincoln led his nation; Davis failed to rally the South.[2] Simply, Lincoln contributed mightily to the Union victory; Davis contributed mightily to the Confederate defeat.

The attack on Jefferson Davis began during the war. Davis, according to the acerbic Richmond editor Edward Alfred Pollard, ran an administration from which neither the Confederate States of America nor its citizens could expect "anything wise, or magnanimous, or unselfish . . . ." Editor Pollard scorned "the pitiful personal feelings, of a single man [President Davis]" who wrecked the war effort and the careers of generals "with cold and insolent neglect."[3] Writing in 1863, Pollard viciously in-

[1] McKitrick, "Party Politics and the Union and Confederate War Efforts," in William N. Chambers and W. Dean Burnham, eds., *The American Party Systems: Stages of Development* (New York, 1967), 119.

[2] Many of the works cited below give part of the Lincoln-Davis story.

[3] Richmond *Examiner*, September 5, 1864; Edward A. Pollard, *The Second Year of the War* (Richmond, 1863), 302.

Mr. Cooper is assistant professor of history at Louisiana State University at Baton Rouge.

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dicted Davis for "his intermeddling," which "removed a decisive victory [Antietam] from the grasp of our army, and turned back the war for years."[4]

Final southern defeat failed to temper Pollard's written assaults on the former Confederate President. "Mr. Davis," wrote Pollard in the preface to a biography of Davis he published in 1869, "[was] the prime cause of the failure of the South in the late war . . . ."[5] Three years earlier Pollard had attributed to Davis "a peculiar obstinacy, which, stimulated by an intellectual conceit, spurned the counsels of equal minds, and rejected the advice of the intelligent . . . ."[6]

Modern historians, while not always adopting the bitterness of Pollard's assessments, have echoed his basic interpretation that Jefferson Davis's failure as a war leader was a crucial factor in the ultimate defeat of the Confederacy. Clifford Dowdey, who found Davis after the fall of Atlanta a man dominated by "a wishful thinking that produced no more than fantasies, daydreams . . . ," has published two general studies of the Confederacy which have made major contributions to the preservation of Pollard's estimate of Davis.[7] In a book lauding Lincoln as "a great war president," T. Harry Williams dismissed Davis as a "mediocre one."[8] Perhaps the most damning indictment of Davis's ability by a serious scholar has come from David M. Potter—Davis, in Potter's judgment, was a man "who cared more about proving he was right than about gaining success."[9]

Davis, of course, has had his defenders. The most recent attempt—and the most voluminous—came in Hudson Strode's massive three-volume biography.[10] Strode devotes half of his study to Davis's experiences as President of the Confederate States of America. From Strode's pages Davis emerges as an omniscient hero who failed because of the bitterness, incom-

[4] Pollard, *Second Year of the War,* 302.

[5] Pollard, *Life of Jefferson Davis, with a Secret History of the Southern Confederacy* (Philadelphia, 1869), vi.

[6] Pollard, *The Lost Cause; A New Southern History of the War of the Confederates* (New York, 1866), 91.

[7] Dowdey, *Experiment in Rebellion* (Garden City, N. Y., 1946) and *The Land They Fought For: The Story of the South as the Confederacy, 1832–1865* (Garden City, N. Y., 1955). The quotation comes from *Experiment in Rebellion,* 372.

[8] Williams, *Lincoln and His Generals* (New York, 1952), 7.

[9] Potter, "Jefferson Davis and the Political Factors in Confederate Defeat," in David Donald, ed., *Why the North Won the Civil War* (Baton Rouge, 1960), 106.

[10] Strode, *Jefferson Davis: American Patriot, 1808–1861* (New York, 1955); *Jefferson Davis: Confederate President* (New York, 1959); *Jefferson Davis: Tragic Hero: The Last Twenty-five Years, 1864–1889* (New York, 1964).

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.13 - 'To Make Something Out of the Dying in This War': The Civil War and the Rise of American Medical Science

Shauna Devine

ARTICLE	'To Make Something Out of the Dying in This War': The Civil War and the Rise of American Medical Science
JOURNAL	Journal of the Civil War Era 6, no. 2 (2016)
EXCERPT	Original journal pages 149-150
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TOM WATSON BROWN BOOK AWARD

"To Make Something Out of the Dying in This War" The Civil War and the Rise of American Medical Science

SHAUNA DEVINE

EDITOR'S NOTE: *The following represents the acceptance speech for the Watson Brown Prize for the best book published on the Civil War era in the calendar year 2014. Tad Brown, president of the Watson-Brown Foundation, awarded the prize to Shauna Devine for her book* Learning from the Wounded*, published by the University of North Carolina Press. These remarks were given at the annual banquet of the Society of Civil War Historians (SCWH), held during the Southern Historian Association annual meeting on November 13, 2015, in Little Rock, Arkansas. The SCWH judges and administers the book prize.*

Dr. Devine's address employs a variety of medical terms; these are explained in a glossary at the end of this article.

On July 10, 1863, Pvt. Charles McElroy of Connecticut was transferred from the Eleventh Army Corps Hospital to the Jarvis USA General Hospital in Baltimore, Maryland. He was suffering from a wound to the left leg, received during the Battle of Gettysburg. The case report noted that the whole belly of the gastrocnemius and soleus muscles had been carried away by the fragment of a shell and that the limb presented a "frightful appearance," its vitality having been destroyed far beyond the seat of the injury, "terminating in extensive suppurative inflammation and sloughing."

For the next few weeks, the doctors at the Jarvis General Hospital monitored the patient daily and treated the inflammation in the hope that the wound would granulate. But on September 3, the case file noted that the patient was suddenly seized with violent constitutional disturbance, a high grade of fever; pains in his head, back, and limbs; and frequent chills. The doctors studied the abnormal inflammation, diagnosed gangrene, and quickly got to work. They opened the entire wound, moving the skin back, which revealed a pulpous slough, described as dark ash in color, which

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seemed to liquefy the flesh every hour as it progressed. The discharge worried the doctors; it was described as a thin saneous liquid with an odor so pungent and offensive that the nurses and others in attendance could scarcely remain a moment without experiencing sickness of the stomach. The patient sank rapidly as the disease progressed, and he was monitored every hour, night and day. Hoping to stimulate the patient's tissues and help counter the poisons, the doctor prescribed cold-water dressings, poultices, stimulants, tonics, and a nutritious diet.

In deciding how to proceed, the doctor had some resources to consult. A year earlier, U.S. Surgeon General William Hammond had sponsored a series of investigations in which physicians at field and general hospitals were ordered to study the causes, transmission, pathology and treatment of hospital gangrene.[1] In these investigations, physicians were asked to submit their case histories to the new Army Medical Museum. Some case reports were also submitted for debate and discussion to local medical societies and medical schools, and a number of findings were published in medical journals. The approaches to the study of gangrene were highly individualistic, and the directive to study the diseases produced an epistemological innovation. Some physicians advocated studying bodily fluids and the products of disease with a microscope; others engaged in clinical trials that tested new methods and remedies; still others suggested studying the chemical processes of these diseases; and yet more engaged in new experimental methods trying to prove contagion. Many doctors concentrated on active prevention—using disinfectants to avoid the disease erupting in the first place, which added a new element to the practitioners' clinical responsibility. There was a developing consensus that bromine appeared the most promising prophylactic and therapeutic remedy.[2] The findings of these investigations were widely disseminated during the war. They were not only reported through the medical schools, societies and journals but also to medical inspectors and medical directors who then passed along the findings and recommendations, sometimes in the form of direct orders, to doctors in the general hospitals.

In treating Private McElroy, the physician had a variety of options. Though he had never looked through a microscope before the war, he now employed a new one that the Surgeon General's Office had issued to his hospital. He studied the products of the patient's disease, including the slough, pus, and blood. In trying to understand the status of inflammation, he examined the microscopic appearance of what he called "diseased cells" and "infusorial animalcules." He conducted a clinical trial in the hospital with permanganate of potassa, nitric acid, and bromine and hailed both bromine and permanganate of potassa as the best remedies and

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Devine, "'To Make Something Out," 149–150.

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.14 - Replacement Rebels: Confederate Substitution and the Issue of Citizenship

Patrick J. Doyle

ARTICLE	Replacement Rebels: Confederate Substitution and the Issue of Citizenship
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PATRICK J. DOYLE

Replacement Rebels Confederate Substitution and the Issue of Citizenship

This article sheds new light on the Confederacy's policy of military substitution. This policy, which allowed those eligible for conscription to provide a substitute who was not eligible in their place, has typically been construed through the lens of loyalty. The author seeks to move beyond this paradigm by contemplating the ways in which substitution fit with contemporary southern attitudes surrounding citizenship and its inherent duties. As the article contends, substitution became a discarded policy not simply because it caused class discontent, was subject to abuse, or was an impediment to the Confederacy's pressing military manpower needs; it was discarded because it also grew to be increasingly incompatible with Confederate understandings of manhood and citizenship.

Mere days after the Confederate Congress's passage of its April 1862 conscription act, Franklin Leland Anderson decided to seek a substitute. Anderson was one of thousands of men between the ages of eighteen and thirty-five who had volunteered for twelve months of service in 1861 but now faced serving for an additional two years. A wealthy slave owner from a respected family, Anderson was also well placed to take advantage of the substitution exemption, which enabled draft-liable men to pay an individual outside the bounds of conscription to serve in their place. Within months, a suitable arrangement was made, and on June 14, 1862, Franklin Anderson returned to his home in Spartanburg District, South Carolina. Filling his place in Company K of the Palmetto Sharp Shooters was the thirty-seven-year-old William McFarland, who agreed to swap for the fee of $500. Listed in the 1860 federal census as a propertyless bricklayer with five children under the age of ten, McFarland probably decided to agree to such an arrangement because of both his poverty and familial responsibilities. As the Anderson family rejoiced at the return of "Uncle Frank" and the "trophies . . . letters, papers, photographs, etc.," he brought home with him, his substitute reported for duty in Virginia. Typical of many new recruits,

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though, McFarland quickly became ill and died, in his case from measles on July 8, 1862.[1]

McFarland's unfortunate demise may retrospectively tinge this exchange as one of unfairness, but Anderson had few qualms about hiring a substitute. He stressed that he was "very willing to serve" but reasoned that "the idea of a two years campaign is intolerable especially as we will still have a lot of clever representations in the field." It was "intolerable" not simply because Anderson was growing tired of a soldier's life but he had also, until the Confederate government had forcibly extended his terms of service, been looking forward to returning home. Having served the term he first signed up for, Anderson surely felt justified in finding a replacement. Moreover, as there would still be a considerable number of experienced soldiers in the Confederate ranks, he believed his decision would have little effect on the southern cause, which he remained ideologically committed to. For this principal (the term for men who secured substitutes), the matter of hiring a substitute hinged on his understanding of republican responsibilities and rights. By volunteering and serving his term, Frank Anderson had fulfilled his obligations to the Confederacy. Conversely, he fretted that if he remained in the service he would be subject to the "fickle" Confederate Congress and the "discresionary" secretary of war, who would dictate the terms of his service. What Anderson might have construed as fickleness would ultimately put him back in the army, when in January 1864 the government made men who had furnished substitutes liable for service again, pushing him to join the Holcombe Legion, a unit with which he surrendered at Appomattox Court House on April 9, 1865.[2]

Previous scholarship has typically attempted to make sense of the actions of men like Frank Anderson and the wider policy of substitution by placing them within debates about Confederate loyalty. The orthodox view of the exemption, as outlined in the foundational work of Albert Burton Moore, is that it was driven by selfishness, as those involved placed their interests above those of their nascent nation. Wealthy principals, according to this line of argument, utilized (and sometimes defrauded) the system to return home and advance their own interests while their replacements had reputations for making poor soldiers who were prone to desertion. Moreover, the inequities of the exemption "broadened the hiatus between the rich and the poor," eroding Confederate morale.[3] A number of more recent examinations of the Confederate war effort, especially those that emphasize a lack of will, have reached similar conclusions.[4] The contrarian claims of William Blair and John Sacher have juxtaposed this interpretation, arguing that substitution, when considered as one of a number

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.15 - The Context of Freedom: Georgia's Slaves During the Civil War

Paul D. Escott

ARTICLE	The Context of Freedom: Georgia's Slaves During the Civil War
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The Context of Freedom: Georgia's Slaves During the Civil War

By Paul D. Escott*

WRITING the history of the inarticulate is as necessary as it is difficult. The forgotten men of past generations may have left no manuscripts, but silently they left their mark on history. They were an integral part of the social web and helped create the physical and mental environment of their time. In relations of cooperation or antagonism, their thoughts and actions impinged on other social classes. Historians need to discover both the behavior and the perspective of those who produced no records.

Without sources for those at the bottom of a social system, one risks thinking about them in terms of what those at the top of society have said. This approach can furnish a starting point for investigation. But it may trap the historian in the ideological categories of a past elite without bringing him closer to the perspective of the masses. In regard to American slavery, for example, much historical writing has re-echoed the debates of abolitionists and pro-slavery apologists. Long after the Civil War was over Northerners and Southerners continued a verbal battle about the behavior of slaves during the war. Southerners pitted their image of the contented, loyal slave against Northerners' view of the black soldier fighting for his freedom. Thus, sectional rivalry established two narrow concepts of the wartime slave. Apparently slaves were either devoted to their white folks or eager to do battle against their masters.

These polar types suggest some characteristics of the slaves, but they reveal more about a struggle among white people. This context has limited progress toward grasping the perspective of the slave. The single work which went farthest in breaking out of these limitations was W. E. B. Du Bois' *Black Reconstruction*. At a distance of almost four decades, its chapters on the Civil

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War still provide some of the most sensitive insights available into the slaves' experience. However, Du Bois was dealing with a very complicated phenomenon, and he gave most of his attention to one phase—the movement into Union lines. Although he observed that for every slave who ran off to the Union armies, ten were left on the plantation, Du Bois could not give detailed treatment to the latter group even in his massive book.[1]

Bell Irvin Wiley's *Southern Negroes, 1861-1865*, despite its use of the racist vocabulary of the 1930's, also contributed to advancing the conceptual framework.[2] Wiley showed that the Southern image of the contented, loyal slave was an imaginative creation which even Southerners did not credit in communications among themselves. But he relied upon white people's perceptions of the slaves and had to take his information about the slaves' feelings at second hand.

A contemporary example of the difficulties in gauging the slaves' experience from the outside is James Brewer's *The Confederate Negro*. Studying a challenging and neglected topic—Negroes who worked as laborers in the Confederate army—Brewer unfortunately fell into the traditional categories of analysis. Because these Negroes had aided the Confederacy, Brewer concluded that they were "corroded by degradation and psychologically disabled by oppression."[3] From the perspective of the North-South conflict, such a conclusion might seem obvious. But the slaves may have viewed their situation in an entirely different context.

The irony of this situation is that, especially since the 1930's, historians have not had to reply on the inadequate evidence of white sources alone. The Federal Writers Project gathered interviews with over two thousand ex-slaves, an effort supplementing and surpassing the researches conducted at Southern and Fisk Universities. These slave narratives are not a perfect source; their use involves difficulties as great as those involved with other types of sources. In the first place, the Federal Writers Project probably reached only about two per cent of the ex-slaves then living in the United States. Nor did the project study a random sample.[4] Some scholars have been concerned about the accuracy

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.16 - The Social Order and Violent Disorder: An Analysis of North Carolina in the Revolution and the Civil War

Paul D. Escott and Jeffrey J. Crow

ARTICLE	The Social Order and Violent Disorder: An Analysis of North Carolina in the Revolution and the Civil War
JOURNAL	The Journal of Southern History 52, no. 3 (1986)
EXCERPT	Original journal pages 373-374
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The Social Order and Violent Disorder: An Analysis of North Carolina in the Revolution and the Civil War

By Paul D. Escott and Jeffrey J. Crow

The internal conflicts that characterized the American Revolution and the Civil War have become subjects of increasing importance and interest in recent years.[1] They have been described as rebellions, guerrilla warfare, revolts, mob actions, or insurrections, but they have not received systematic analysis, despite the burgeoning interest in lower-class and agrarian rebelliousness. These con-

[1] A welter of articles and books on the colonial and revolutionary periods has examined various aspects of internal conflict, including Pauline Maier, "Popular Uprisings and Civil Authority in Eighteenth-Century America," *William and Mary Quarterly*, 3d Ser., XXVII (January 1970), 3–35; Richard Maxwell Brown, "Violence and the American Revolution," in Stephen G. Kurtz and James H. Hutson, eds., *Essays on the American Revolution* (Chapel Hill and New York, 1973), 81–120; John Shy, "The American Revolution: The Military Conflict Considered as a Revolutionary War," *ibid.*, 121–56; Marvin L. Michael Kay, "The North Carolina Regulation, 1766–1776: A Class Conflict," in Alfred F. Young, ed., *The American Revolution: Explorations in the History of American Radicalism* (Dekalb, Ill., 1976), 71–123; and Jeffrey J. Crow, "Liberty Men and Loyalists: Disorder and Disaffection in the North Carolina Backcountry," in Ronald Hoffman, Thad W. Tate, and Peter J. Albert, eds., *An Uncivil War: The Southern Backcountry During the American Revolution* (Charlottesville, Va., 1985), 125–78.

For the Civil War period, recent books that treat internal conflict include Phillip Shaw Paludan, *Victims: A True Story of the Civil War* (Knoxville, 1981), and Paul D. Escott, *After Secession: Jefferson Davis and the Failure of Confederate Nationalism* (Baton Rouge and London, 1978). See also William T. Auman and David D. Scarboro, "The Heroes of America in Civil War North Carolina," *North Carolina Historical Review*, LVIII (October 1981), 327–63; David D. Scarboro, "An Honourable Peace: The Peace Movement in Civil War North Carolina" (unpublished Ph.D. dissertation, Cambridge University, 1981); William T. Auman, "Neighbor against Neighbor: The Inner Civil War in the Randolph County Area of Confederate North Carolina," *North Carolina Historical Review*, LXI (January 1984), 59–92; Charles F. Bryan, Jr., "'Sad Divisions Among God's People': The Civil War and the Churches of East Tennessee," paper presented to the Southern Historical Association, Memphis, Tennessee, November 1982.

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flicts deserve closer attention because they indicate a breakdown in society's political order, a challenge to the government's legitimacy, and the collective frustration and aggression of a significant portion of the population.[2]

Serious internal conflict erupted in North Carolina during the American Revolution and the Civil War. In both periods the state earned the reputation of having in its midst a large disaffected population resistant to the demands and discipline of the reigning government. The situation in North Carolina in both eras fits a classic definition of irregular warfare with independent bands of partisans or guerrillas harassing and terrorizing their antagonists, interrupting lines of communication, destroying supplies, and fighting skirmishes. Such violence, sporadic at first, became chronic as the larger conflicts wore on. After the British invaded the Carolinas in 1780–1781, the Tories were able to muster hundreds of effectives who operated largely on an unsupervised basis with only nominal oversight from British officers. During the Civil War Confederate authorities repeatedly had to send regular troops into Piedmont North Carolina to quell, neutralize, and capture hundreds of deserters, draft dodgers, and militant Unionists.[3]

Even more striking than the recurring appearance of opposition in North Carolina were the similarities in the nature of resistance during the two periods. Despite the passage of over eighty years of population growth and economic and political evolution, violent disorder presented the same face to society. Thus this article focuses not on comparing obvious changes over time but on investigating the underlying social arrangements and forces that produced such similar phenomena.

[2] The study of internal conflict is intrinsically related to the long established examination of revolutions and the newer interest in comparative history. See Crane Brinton, *The Anatomy of Revolution* (New York, 1965); Barrington Moore, Jr., *Social Origins of Dictatorship and Democracy: Lord and Peasant in the Making of the Modern World* (Boston, 1966); George M. Fredrickson, "Comparative History," in Michael Kammen, ed., *The Past Before Us: Contemporary Historical Writing in the United States* (Ithaca, N. Y., and London, 1980), 457–73; and Peter Kolchin, "Comparing American History," *Reviews in American History*, X (December 1982), 64–81. To some extent a comparative approach is implicit in this article, although in North Carolina's case the prominence of similarities rather than differences over time diminishes the utility of comparison through contrast. The comparative approach would be even more suited for an analysis of internal conflict in different colonies during the Revolution and different states of the Confederacy.

[3] Crow, "Liberty Men and Loyalists," 125–78; Ronald Hoffman, "The 'Disaffected' in the Revolutionary South," in Young, ed., *The American Revolution*, 273–316; William Thomas Auman, "North Carolina's Inner Civil War: Randolph County" (unpublished M.A. thesis, University of North Carolina at Greensboro, 1978), 196–210; W. Buck Yearns and John G. Barrett, eds., *North Carolina Civil War Documentary* (Chapel Hill, 1980), especially chapters 4, 7, and 18; Paul D. Escott, "The Moral Economy of the Crowd in Confederate North Carolina," *Maryland Historian*, XIII (Spring/Summer 1982), 1–17; Escott, *After Secession*, 132–33, 194, 200–203, 210–12; Auman and Scarboro, "Heroes of America," 327–63.

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.17 - The Feminized Civil War: Gender, Northern Popular Literature, and the Memory of the War, 1861-1900

Alice Fahs

ARTICLE	The Feminized Civil War: Gender, Northern Popular Literature, and the Memory of the War, 1861-1900
JOURNAL	The Journal of American History 85, no. 4 (1999)
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The Feminized Civil War: Gender, Northern Popular Literature, and the Memory of the War, 1861–1900

Alice Fahs

"What do women know about war?" asked Fleta in the popular Northern story paper the *Flag of Our Union* in January 1865. "What do they *not* know," she answered: "What drop in all the bitter cup have they not tasted?—what ball strikes home on the battle-field that strikes not hearts at the hearthstone as well?" Women knew about war, she argued, "who steadily crush back the blinding tears, and whisper through white, brave lips, 'Go,'" or "who wait in vain for the letter that never comes—who search, with sinking hearts, and eyes dark with anguish, the fearful battlelists." Chastising those who would ask such a question, she concluded, "let the desolate homes, the broken hearts, and the low wail of agony that God hears on his throne, make answer!"[1]

For the anonymous author Fleta, the Civil War occurred not just on the battlefront but also on the Northern home front, where a woman's war of sacrifice and suffering complemented a man's war of fighting. Her impassioned claim to women's knowledge of the war was part of a wide-ranging popular wartime literature that explored white women's domestic war experiences, imagining them as a source of self-knowledge, an education in patriotism, an initiation into the values of work, the occasion for romance, and, increasingly, the cause of unbearable anguish. The feminized Civil War of this article's title refers both to literature featuring women heroines on the Northern home front and to the domestic wartime concerns that such literature highlighted. Written by both men and women, and part of a wartime literature that marked the gender of both men and women, feminized literature often appeared side by side with masculinized literature exploring men's experiences of the

Alice Fahs is assistant professor of history at the University of California, Irvine.

I am grateful to David Nord for his expert editorial guidance, to Drew Gilpin Faust and the anonymous reviewers for the *Journal of American History* for their astute and helpful comments, and to Susan Armeny, Scott Stephan, and Peter A. Kraemer for their help with preparation of this article. A version of this essay was presented at the annual meeting of the American Historical Association in January 1998, and I appreciate the helpful comments of Stuart McConnell, Matthew Gallman, and Amy Kinsel. I would also like to thank Bob Moeller, Joan Waugh, and Charles Chubb for their thoughtful assistance on several drafts of this essay. I benefitted from the helpful comments of Lynn Mally, Judith Jackson Fossett, David Blight, Bob Bonner, Jon Wiener, Anne Walthall, and Patrick Kelly, and, on an early version of this essay, from the comments of Nina Silber, Thomas Bender, Susan Ware, Eliza McFeely, Lyde Sizer, Susan Schoelwer, and Michael O'Malley. Finally, I appreciate the generous support of the American Antiquarian Society, the Duke University Library, and the Huntington Library.

Readers may contact Fahs at afahs@uci.edu.

[1] Fleta, "Woman and War," *Flag of Our Union,* Jan. 28, 1865, p. 59.

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war in a popular periodical such as *Harper's Weekly.*[2] Just as battlefield reports, war stories, and personal narratives concentrated on men's experiences of war, an extensive feminized war literature, including stories, essays, poems, articles, novels, broadsides, and cartoons, portrayed women's domestic war experiences as a vital part of the conflict.

Such literature reveals gendered dimensions of wartime culture that have often been invisible to scholars who have concentrated on elites, canonical writers, and Northern intellectuals in writing the cultural history of the war in the North. Not only did feminized war literature insist on the importance of women's contributions to the war effort, but increasingly it argued that women's homefront sufferings were equal to, or even greater than, those of men in battle. White women may have been largely shut out from the combat experience on which men later based their claims to the war's meanings and to national citizenship. Yet in popular literature women's domestic war experiences authorized a claim to participation not only in the war but also in the "imagined community" of the nation.[3]

Inspired by works that identify popular cultural forms as complex expressions of ideology and those that examine women's Civil War experiences, this article argues that popular culture was an important location for representing and exploring the gendered implications of the war. To make this argument, it draws upon nine major popular periodicals that encompass a wide spectrum of Northern wartime publishing. They include two national illustrated weeklies (*Harper's Weekly* and *Frank Leslie's Illustrated Newspaper*); three general-interest family magazines (the *Atlantic Monthly, Harper's New Monthly Magazine,* and the *Continental Monthly*); one of the "cheap" story papers that featured weekly fiction (the *Flag of Our Union*); a religious journal (the *Independent*); and two women's magazines (*Peterson's* and *Arthur's Home Magazine.*) Together, they provide a constellation of cultural positions from high to low in the Northern literary marketplace, emphasizing the wide distribution of the feminized literary war.[4]

[2] The outpouring of popular wartime literature on martial themes also included histories, juveniles, humor, "songsters" (songbooks), poetry, and sensational novels. A few sensational novels, published as pamphlets, also portrayed female heroines. However, these heroines were almost always Unionist Southerners who lived in the border states or in the Confederacy itself, and such novels are beyond the scope of this article.

[3] The foremost cultural history of the war is George M. Fredrickson, *The Inner Civil War: Northern Intellectuals and the Crisis of the Union* (New York, 1965). The standard literary histories of the war remain Daniel Aaron, *The Unwritten War* (New York, 1973); and Edmund Wilson, *Patriotic Gore: Studies in the Literature of the American Civil War* (New York, 1962). Benedict Anderson, *Imagined Communities: Reflections on the Origin and Spread of Nationalism* (London, 1983).

[4] The best recent anthology of Civil War literature is Louis P. Masur, ed., *"The Real War Will Never Get in the Books": Selections from Writers during the Civil War* (New York, 1993). New studies on popular culture include Eric Lott, *Love and Theft: Blackface Minstrelsy and the American Working Class* (New York, 1993); and George Lipsitz, *Time Passages: Collective Memory and American Popular Culture* (Minneapolis, 1990). For the popular culture of the war, see Kathleen Diffley, *Where My Heart Is Turning Ever: Civil War Stories and Constitutional Reform, 1861–1876* (Athens, Ga., 1992); Timothy Sweet, *Traces of War: Poetry, Photography, and the Crisis of the Union* (Baltimore, 1990); Jim Cullen, *The Civil War in Popular Culture: A Reusable Past* (Washington, 1995); and Joyce Appleby, "Reconciliation and the Northern Novelist," *Civil War History,* 10 (June 1964), 117–29. Foremost among new studies discussing women's experiences of the war is Drew Gilpin Faust, *Mothers of Invention: Women of the Slaveholding South in the American Civil War* (Chapel Hill, 1997). See also LeeAnn Whites, *The Civil War as a Crisis in Gender: Augusta, Georgia, 1860–1890* (Athens, Ga., 1995); Elizabeth Young, "A Wound of One's Own: Louisa May Alcott's Civil War Fiction," *American Quarterly,* 48 (Sept. 1996), 439–74; Catherine Clinton and Nina Silber, eds., *Divided Houses: Gender and the Civil War* (New York, 1992); Nina Silber, *The Romance of Reunion: Northerners and the South, 1865–1900* (Chapel Hill, 1993); Lyde Cullen Sizer, "'A Revolution in Woman Herself': Northern Women Writers and the American Civil War, 1850–1872" (Ph.D. diss., Brown Uni-

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.18 - Altars of Sacrifice: Confederate Women and the Narratives of War

Drew Gilpin Faust

ARTICLE	Altars of Sacrifice: Confederate Women and the Narratives of War
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Altars of Sacrifice: Confederate Women and the Narratives of War

Drew Gilpin Faust

It is the men, Hector tells Andromache in the sixth book of the *Iliad*, who "must see to the fighting." From ancient history to our own time, war has centered on men, for they have controlled and populated its battlefields. Even in our era of shifting gender definitions, perhaps the most assertive—and successful—defense of traditional roles has been the effort to bar women from combat. Yet war has often introduced women to unaccustomed responsibilities and unprecedented, even if temporary, enhancements of power. War has been a preeminently "gendering" activity, casting thought about sex differences into sharp relief as it has both underlined and realigned gender boundaries.[1]

Like every war before and since, the American Civil War served as an occasion for both reassertion and reconsideration of gender assumptions. Early in the conflict, Louisianian Julia Le Grand observed that "we are leading the lives which women have led since Troy fell." Yet because the Civil War was fundamentally different from those that had preceded it, the place of women in that conflict stimulated especially significant examination and discussion of women's appropriate relationship to war—and thus to society in general. Often designated the first "modern" or total war because of the involvement of entire populations in its terrible work of death, the Civil War required an extraordinary level of female participation. This was a conflict in which the "home front" had a newly important role in generating mass armies and keeping them in the field. Particularly in the South, where human and material resources were stretched to the utmost, the conflict demanded the mobilization of women, not for battle, but for civilian support services such as nursing, textile and clothing production, munitions and government office work, slave management, and even agriculture. Yet white Southern women, unlike their men,

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[1] Homer, *The Iliad of Homer*, trans. Richmond Lattimore (Chicago, 1951), 166. Margaret Randolph Higonnet et al., eds., *Behind the Lines: Gender and the Two World Wars* (New Haven, 1987), 4. See also Jean Bethke Elshtain, *Women and War* (New York, 1987); and Eric Leed, *No Man's Land: Combat and Identity in World War I* (New York, 1979).

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were not conscripted by law. They had to be enlisted by persuasion. The resulting discourse about woman's place in Confederate society represented the rhetorical attempt to create a hegemonic ideology of female patriotism and sacrifice.[2]

Articulate Southerners, male and female, crafted an exemplary narrative about the Confederate woman's Civil War, a story designed to ensure her loyalty and service. As in the tales of war enshrined in Western literature from Homer to Sir Walter Scott, its plot recounted woman's heroic self-sacrifice, casting it as indispensable to the moral, political, and military triumph of her men and her country. The historian John Keegan has compellingly described the way in which the "battle piece," the highly conventionalized and heroic account of combat, has shaped men's expectations and experiences of war. But women have been no less influenced by a genre of female "war stories," intended to socialize them through accounts of their foremothers' deeds. The conventional designation of all women as noncombatants inevitably enhances the wartime significance of gender as a social category, as well as a structure of self-definition. The focus of Confederate public discourse on a "classless" white woman reinforced the privileging of female identity. Usually cast in the homogeneous singular, the "woman" who shared with her sisters rich and poor the experience of sacrificing men to battle represented a useful rhetorical convention within a Confederate ideology struggling to minimize the class divisions that might threaten national survival. At the same time that Confederate discourse appealed to a new and recognizable commonality widely shared by white Southern women—whose husbands or sons were nearly three times as likely to die as were their Northern counterparts—it promoted the notion of an archetypal "Confederate woman" as a form of false consciousness obscuring social and economic differences among the new nation's female citizens. Ultimately, the focus of Confederate ideology on female self-abnegation and sacrifice as ends in themselves would alienate many women from that rendition of their interests, from the war, and in many cases, from the Confederacy itself. Ideology and its failures played a critical role in shaping the relationship of women to the Southern Cause and in defining Confederate viability. In recent years scholars have answered the historiographical perennial, "why the South lost the Civil War," by emphasizing deficiencies in Southern morale. Almost all such arguments stress the importance of class conflict, especially growing yeoman dissent, in undermining the Southern Cause. Yet with a white civilian population that was overwhelmingly female and that bore an unprecedented

[2] Julia Ellen (Le Grand) Waitz, *The Journal of Julia Le Grand, New Orleans, 1862–1863*, ed. Kate Mason Rowland and Mrs. Morris L. Croxall (Richmond, 1911), 52. The special experience of Confederate women arose both from the newness of the kind of combat the Civil War produced and from the growing scarcity of Southern resources. For comparisons, see Claudia Koonz, *Mothers in the Fatherland: Women, the Family, and Nazi Politics* (New York, 1987); Higonnet et al., eds., *Behind the Lines*; Joan Hoff Wilson, "The Illusion of Change: Women and the American Revolution," in *The American Revolution: Explorations in the History of American Radicalism*, ed. Alfred F. Young (DeKalb, 1976), 383–446; Linda K. Kerber, *Women of the Republic: Intellect and Ideology in Revolutionary America* (Chapel Hill, 1980); Mary Beth Norton, *Liberty's Daughters: The Revolutionary Experience of American Women, 1750–1800* (Boston, 1980); and D'Ann Campbell, *Women at War with America: Private Lives in a Patriotic Era* (Cambridge, Mass., 1984). On Northern women during the Civil War, see Philip Shaw Paludan, *A People's Contest: The Union and the Civil War, 1861–1865* (New York, 1988), 156–60, 182–83, 327–30.

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.19 - Christian Soldiers: The Meaning of Revivalism in the Confederate Army

Drew Gilpin Faust

ARTICLE	Christian Soldiers: The Meaning of Revivalism in the Confederate Army
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Christian Soldiers: The Meaning of Revivalism in the Confederate Army

By Drew Gilpin Faust

From the fall of 1862 until the last days of the Civil War, religious revivalism swept through Confederate forces with an intensity that led one southerner to declare the armies had been "nearly converted into churches."[1] A remarkable phenomenon in the eyes of contemporary observers, these mass conversions have been largely ignored by modern scholars.[2] The attention recent historians have devoted to other manifestations of nineteenth-century Evangelicalism makes this neglect of Civil War religion seem all the more curi-

[1] "Rev. A. E. Dickinson's Annual Report to the General Association of Va.," *Confederate Baptist*, June 24, 1863. I would like to thank the Stanford Humanities Center, the several audiences who made helpful comments on preliminary versions of this paper, and especially Lizabeth Cohen, Steven Hahn, Randall Miller, Reid Mitchell, Charles Rosenberg, and Morton Sosna for their suggestions and criticism.

[2] For example, James M. McPherson's excellent recent overview of the war does not mention the revivals. See *Ordeal by Fire: The Civil War and Reconstruction* (New York, 1982). The best discussion of the revivals is still Bell Irvin Wiley, "Consolations of the Spirit," Chap. 10 in *The Life of Johnny Reb: The Common Soldier of the Confederacy* (1943; rpt. ed., Baton Rouge, 1978), but in my view Wiley underestimates their significance. See also Gorrell Clinton Prim, Jr., "Born Again in the Trenches: Revivalism in the Confederate Army" (unpublished Ph.D. dissertation, Florida State University, 1982), for a recent but largely unanalytical account. Equally unanalytical are G. Clinton Prim, Jr., "Revivals in the Armies of Mississippi During the Civil War," *Journal of Mississippi History*, XLIV (August 1982), 227–34; Herman Norton, "Revivalism in the Confederate Armies," *Civil War History*, VI (December 1960), 410–24; John Shepard, Jr., "Religion in the Army of Northern Virginia," *North Carolina Historical Review*, XXV (July 1948), 341–76; Sidney J. Romero, *Religion in the Rebel Ranks* (Lanham, Md., New York, and London, 1983); and Benjamin Rice Lacy, Jr., *Revivals in the Midst of the Years* (Richmond, 1943). Two accounts published shortly after the war by participants are useful. See J. Wm. Jones, *Christ in the Camp: or Religion in Lee's Army* (Richmond, 1887); and William W. Bennett, *A Narrative of the Great Revival in the Southern Armies . . .* (Philadelphia, 1877). A work that appeared after the completion of this essay deals in some detail with the role of religion during the war, although it does not devote particular attention to its significance in the Confederate army. See Richard E. Beringer, Herman Hattaway, Archer Jones, and William N. Still, Jr., *Why the South Lost the Civil War* (Athens, Ga., and London, 1986). For my reservations about their viewpoint see Drew Gilpin Faust, "Reassessing the Lost Cause of the South," *Books/Leisure*, Philadelphia *Inquirer*, June 29, 1986, pp. 1, 8–9.

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ous, for scholarly findings about the relationship between revivalism and the processes of social and cultural transformation suggest that an exploration of army Evangelicalism should yield important insights into the meaning of the South's experience in an era of profound dislocation and change.[3]

The centrality of religion within antebellum southern culture gave sacred language and perception a prominent place in the region's response to war. The South had not only embraced evangelical Protestantism with a uniformity and enthusiasm unmatched in the rest of the nation but had also used religion as a crucial weapon in the sectional propaganda battle. Defining itself as more godly than the North, the South turned to the Scriptures to justify its peculiar institution and its social order more generally. With its declaration of nationhood and the subsequent outbreak of war, the Confederacy identified its independence and success as God's will. Their cause, southerners insisted until the very last days of the conflict, was God's cause; the South's war of defense against invasion was unquestionably a just war.

The prominence of such sentiments in public discourse—in the Confederate Constitution itself, in Jefferson Davis's proclamations of fast days, in generals' announcements of military victory, not to mention in church sermons and denominational publications—established religion as the fundamental idiom of national and personal identity; southerners' responses to the unanticipated horrors of the first modern, total war were almost necessarily articulated within a religious framework and in religious language. But if religion was central to the Confederacy as a whole, it was perhaps of greatest importance to the common southern soldier, whose life was most dramatically altered—if not actually ended—by war's demands. The widespread army revivals directly reflected the stresses of the soldier's life and death situation: the strains of life in the ranks of a mass army; the pressures of daily confrontation with death—and with a rate of mortality unmatched in any American war before or since.[4]

[3] For a useful overview of this literature see Leonard I. Sweet, "The Evangelical Tradition in America," in Leonard I. Sweet, ed., *The Evangelical Tradition in America* (Macon, Ga., 1984), 1–86.

[4] See Donald G. Mathews, *Religion in the Old South* (Chicago and London, 1977); Samuel S. Hill, Jr., *The South and the North in American Religion* (Athens, Ga., 1980); John B. Boles, *The Great Revival, 1787–1805: The Origins of the Southern Evangelical Mind* (Lexington, Ky., 1972); Anne C. Loveland, *Southern Evangelicals and the Social Order, 1800–1860* (Baton Rouge, 1980); Dickson D. Bruce, Jr., *And They All Sang Hallelujah: Plain-Folk Camp-Meeting Religion, 1800–1845* (Knoxville, 1974); Drew Gilpin Faust, ed., *The Ideology of Slavery: Proslavery Thought in the Antebellum South, 1830–1860* (Baton Rouge and London, 1981); James W. Silver, *Confederate Morale and Church Propaganda* (Tuscaloosa, Ala., 1957); and William A. Clebsch, "Christian Interpretations of the Civil War," *Church History*, XXX (June 1961), 212–22. On the Civil War as total war see T. Harry Williams, *The*

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.20 - Lincoln's Wartime Leadership: The First Hundred Days

Don E. Fehrenbacher and Jacob L. Tudor

ARTICLE	Lincoln's Wartime Leadership: The First Hundred Days
JOURNAL	Journal of the Abraham Lincoln Association 9 (1987)
EXCERPT	Original journal pages 1-2
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Portrait taken by Alexander Gardner at Mathew Brady's gallery, February 24, 1861.

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Lincoln's Wartime Leadership: The First Hundred Days

DON E. FEHRENBACHER

A letter from Indiana, arriving at the White House in late June 1861, must have pleased and amused Abraham Lincoln. For one thing, its spelling was worse than his own:

> To His honor the president of this United States of America Mr Abraham Lincoln. you Will pleas pardon Me for taking the Liberty of Addressing you Apon this ocasion. Honorable Sir, having had the plesur of Casting my Ballot for you the second father of My Country, I hav seen fitt to Name My youngest Son, Abraham Lincoln Tudor. he was Born february the 8th 1861 and Was Duly Crisond on the fourth of March of the same. Sir you May think it strange of Me taking this liberty but sir lett me asure you, that the Love for My Country and the presant choise of its Cheafe Executiv has Induced Me to Take the Corse I have. As a Mechanic and An American I feel that All i can bequeath to him is his good Name and fitt him for his Country to the best of My Ability. I have An other Son George Washington. With those glorious Names Recorded in My Bible I feel Confident of There success in life hoping dear sir you Will Take No Offence of the liberty I have taken or of my remarks hear I have Made And With your Best Wishes for my little Linky, I Remain your humble Servent
>
> Jacob L. Tudor[1]

1. In a postscript, Tudor indicated that he was giving the letter to his congressman, William S. Holman (a Democrat) for delivery by hand. Jacob L. Tudor to Lincoln, June 23, 1861, Robert Todd Lincoln Collection, Manuscript Division, Library of Congress. The letter is published in David C. Mearns, ed., *The Lincoln Papers: The Story of the Collection with Selections to July 4, 1861*, 2 vols. (Garden City, N.Y.: Doubleday, 1948), 2: 638.

This paper was one of several delivered at the symposium Lincoln, the Law and the Constitution in Springfield, Illinois, on February 12, 1987, which was sponsored by the Abraham Lincoln Association and the Illinois State Historical Library. The symposium was made possible by a generous grant from the Horace W. Goldsmith Foundation.

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.21 - Civilization and Savagery in the American Civil War

Lorien Foote

ARTICLE	Civilization and Savagery in the American Civil War
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Civilization and Savagery in the American Civil War

Lorien Foote, Texas A&M University

On June 13, 1864, Maj. Gen. Samuel Jones, Confederate Commander of the Department of South Carolina, Georgia, and Florida, placed fifty Union officers, all of them prisoners of war, in a section of Charleston enduring constant fire from the Union guns besieging the city. He then sent a brief note to his antagonist, Maj. Gen. John G. Foster of the United States Army, which was simultaneously information and subtle accusation. The prisoners of war were "provided with commodious quarters in a part of the city occupied by non-combatants, the majority of whom are women and children," Jones wrote. "It is proper, however, that I should inform you that it is part of the city which has been for many months exposed day and night to the fire of your guns." Union officials were outraged. They had followed the recognized protocols when they began the bombardment of Charleston nine months before, including notifying Confederate officials before the first guns were fired in order to give them opportunity to remove women and children from the city. Charleston was a legitimate military target with a large arsenal, military foundries, and facilities that produced iron clads.

Foster asked his subordinates for advice. One of them believed that Jones had inadvertently revealed how desperate the Confederates defending Charleston were. "In my opinion the endeavor of the enemy to force us to give up the bombardment should be the reason for its continuation. At the same time, as a means to force him to give up his barbarous practices, the simple fact of retaliation can be made effectual, as I have as many places where his shells fall as he has in Charleston where mine fall." Foster agreed. On June 16, he wrote Jones to protest the "indefensible act of cruelty" that "can be designed only to prevent the continuance of our fire on Charleston." Foster accused Jones of violating the standards of "honorable warfare" and informed Jones that he had requested President Lincoln to send him fifty Confederate prisoners of war to place in positions within the Union lines where they would be exposed to the fire of Confederate guns. On June 27 the Confederate prisoners arrived. Foster wrote Jones to ascertain the kind and quantity of food issued to the Union officers so that he could treat the Confederate officers in the "exact manner."[1]

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Foster's act of retaliation was consistent with the code that governed the conduct of Union armies in the field, General Order 100, issued on April 24, 1863. Article 27 proclaimed that "civilized nations acknowledge retaliation as the sternest feature of war. A reckless enemy often leaves to his opponent no other means of securing himself against the repetition of a barbarous outrage." The next article cautioned that retaliation was not revenge but rather a means of "protective retribution." Retaliation was only legitimate if it was done "cautiously and unavoidably" and only after "careful inquiry into the real occurrence." The author of the code, Francis Lieber, an expert on the international laws of war, cautioned that "unjust or inconsiderate retaliation removes the belligerents farther and farther from the mitigating rules of regular war, and by rapid steps leads them nearer to the internecine wars of savages."[2]

The decisions and actions of Federal and Confederate commanders during the siege of Charleston were guided by their conception and application of "civilized warfare." They littered their correspondence with references to its rules and to accusations of barbarity on the part of the other. Similar acts of retaliation and the rhetoric of civilization were ubiquitous during the American Civil War. Lowly privates, the presidents of both the United States and the Confederate States, military commanders issuing official orders, and citizens writing in the pages of their personal diaries, used this language to understand and to describe what was happening around them. Both sides claimed to stand among the civilized nations of the world; both sides accused the other of degenerating to savagery. Northerners and southerners agreed that one mark of a civilized nation was that its people and its government contained and channeled human passion and violence to constructive ends. A civilized nation was recognized in contrast to its opposite. Animal-like anger, uncontrolled passion, and unlimited and indiscriminate violence marked the savage.

Recently Civil War scholars have produced a variety of works that explore how the concepts of civilized and savage warfare shaped policy and strategy during the war. These concepts likewise guided how commanders on the ground deployed violence to achieve their objectives and how ordinary soldiers thought and behaved. The practice of retaliation, exemplified by Jones and Foster, is but one example of the convergence of widely-held cultural notions of civilization with military operations during the Civil War. It is clear that any study of the Civil War requires scholars to understand how the culture of Americans guided their conception and implementation of warfare. Historian Wayne Lee argues that every war is conducted with both violence and restraint; he seeks to understand what factors, including cultural values and beliefs about war,

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.22 - A Tale of Two Armies: The Confederate Army of Northern Virginia and the Union Army of the Potomac and Their Cultures

Joseph T. Glatthaar

ARTICLE	A Tale of Two Armies: The Confederate Army of Northern Virginia and the Union Army of the Potomac and Their Cultures
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EXCERPT	Original journal pages 315-316
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ROBERT FORTENBAUGH MEMORIAL LECTURE

A Tale of Two Armies The Confederate Army of Northern Virginia and the Union Army of the Potomac and Their Cultures

JOSEPH T. GLATTHAAR

Every organization or institution develops a culture, and armies are no different. The culture of an army is important because it determines and influences proper and improper conduct individually and collectively. It imposes standards and expectations that affect how persons and groups react to crises, how they behave on the campaigns and in camp, and how they fight, among other things.[1]

The culture that emerged in the Army of Northern Virginia was distinct from that of the Army of the Potomac. What dictated the development of that culture was the background of the soldiers; the training and regimentation that their officers imposed, particularly early in the war; and their formative experiences in combat and on the march. Once that culture took hold, it was extremely hard to break or alter, and it shaped the course and outcome of the war.

To understand the formulation and impact of those cultures on the war, I am going to utilize quantitative as well as qualitative data. Half a century ago, a shift toward the influences of social science on the discipline of history and the development of the computer sparked historians to dabble in a sophisticated use of statistics. Within two decades, however, the field was largely dismissed. Many historians were completely intimidated by numbers and refused to embrace them, while others found quantitative studies either tedious reading or insensitive to the hardships and brutality of the past.[2]

Over the past couple of decades, many social scientists have recognized the limitations of pure numbers and have added qualitative evidence, the kind most historians use, to their studies. Historians, too, have begun to embrace digital history, which the American Historical Association defines

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as "scholarship that is either produced using computational tools and methods or presented using digital technologies."[3] Most of that work has relied on computers and software to present scholarship with digital technologies, particularly the exploration of geospatial relationships, which provide powerful insights into networks, neighborhoods, and pathways of communications. Yet historians have lagged in the first part of the definition, scholarship that is produced using computational tools and methods.[4]

This study seeks to employ statistics along with some choice traditional historical evidence to compare two of the principal armies of the Civil War, the Union Army of the Potomac and the Confederate Army of Northern Virginia, and the cultures that developed.[5] It will not focus on the generals or the politicians; rather, it will revolve around the background and experiences of the officers and enlisted men of both armies, who are to my mind the most intriguing subjects to investigate. As one man in the Army of Northern Virginia wrote home, "Common soldiers by name, however, are often times very uncommon—like common sense."[6] These statistics will give us insights into the prewar lives of the soldiers and help answer questions such as why they served, what kind of culture developed in each army, and how that culture affected Union victory and Confederate defeat.

The evidence for this talk comes from more traditional sources, published and unpublished official reports and communications, letters, diaries, and even memoirs. But the critical source—the statistics—comes from two stratified cluster samples, one on the Army of Northern Virginia and the other on the Army of the Potomac. The sample for the Army of Northern Virginia consists of 600 soldiers selected randomly: 150 artillerymen, 150 cavalrymen, and 300 infantrymen. Sample units in the Army of Northern Virginia represented all Confederate states plus Maryland and Kentucky. Data from individual soldiers was weighted based on his branch and the branch's percentage within the army. Information for the sample came from Compiled Service Records, Census Records, pension files, obituaries, family histories, and other sources, much of it now available on the internet. There are 54 categories of data. Because the Army of the Potomac was larger and I wanted statistically valid evidence in more categories, the sample has 800 soldiers: 200 artillerymen, 200 cavalrymen, and 400 infantrymen. The sample includes units from all the northern states except Delaware, Iowa, Missouri, California, Oregon, and Kansas. It contains troops from U.S. Regulars and U.S. Colored Troops in the sample. Sixty-one categories of information, most of which came from the National Archives, constitute the sample.[7]

There are no precise totals of those who ever served in the Army of the Potomac or the Army of Northern Virginia. The Union drew upon a much

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.23 - Rose's War and the Gendered Politics of a Slave Insurgency in the Civil War

Thavolia Glymph

ARTICLE	Rose's War and the Gendered Politics of a Slave Insurgency in the Civil War
JOURNAL	Journal of the Civil War Era 3, no. 4 (2013)
EXCERPT	Original journal pages 501-502
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THAVOLIA GLYMPH

Rose's War and the Gendered Politics of a Slave Insurgency in the Civil War

One window . . . was opened Heavenwards . . . for three million slaves, across the blackness of a civil war. —Eliza Woolsey

The conduct of our scouts should be no child's play. —Henry William Ravenel

We have two kinds of enemies to contend with our negro outlaws & the Yankees. —Georgianna DeVeaux Porcher

"I suppose before this you have heard that the scouts had been to P.V. [Pineville] killed 27 of the armed negroes and shot Rose so I need say nothing more about that."[1] Indeed, Anne Gaillard said nothing more about Rose in this letter to her daughter. She wrote at length, however, as she had in a previous letter, about the lingering effects of the slave insurgency that had precipitated the battle between the scouts and the "armed negroes" on March 26, 1865. Rose, she dismissed summarily. She was "shot." Enough said. References to Rose in the historical record tend, like Gaillard's, to be brief, matter-of-fact. From the distance of a historian's sight, it might simply appear that the very idea of a slave-woman rebel was simply too much to bear for the white people who wrote about Rose. But the crisp, economical language slaveholders used to talk about her measured something different entirely. If the rebel Rose was too much to bear, it was not because she was black, female, and enslaved. To lowcountry South Carolina slaveholders, the idea that Rose was connected to and, some thought, the leader of the "armed negroes" appeared neither surprising nor unexpected. To slaveholders and the scouts who executed her, Rose was a rebel, an outlaw who had no more rights than black Union soldiers.[2]

This article explores these apparent paradoxes and their import for understanding the process of emancipation as it unfolded unevenly on the ground in a particular place, at a particular moment. The slave insurgency centered in Pineville articulated familiar and unfamiliar connections. It illuminated the ways gendered practices and customs informed a wartime slave insurgency. Rose's story is both extraordinary and unexceptional as it relates to gender, relevant and irrelevant to it.

To the struggle for freedom, enslaved women brought knowledge and organizational skills and strengths informed by gender and their unique

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access to the planters' world. From slaveholders' perspective, these traits made them ideal candidates to lead a rebellion. If it was ironic that a slave uprising would emerge in a place like Pineville, a citadel of the power and wealth of South Carolina's slaveholding aristocracy, this village was also among the likeliest of places for an insurgency to take hold. Located in a belt of land planter Samuel DuBose called "the garden spot of South Carolina" and boasting sixty homes, it was conceived as a resort for the planter class elite of St. Stephen's and Upper St. John's parishes. The Sinkler, Palmer, Gaillard, Cordes, Porcher, Dubose, Cain, Bonneau, and Ravenel families, among others, built summer homes here close by their rice and sugar plantations.[3] The lives of the enslaved were no less harsh here than elsewhere, but the closely meshed social and economic lives of planters in St. Stephen's Parish opened up spaces for the enslaved—women no less than men—to accumulate valuable knowledge of their owners and the wider world of lowcountry slave society. The Pineville uprising, Rose's War, put that knowledge on vivid display. The response of slaveholders who had no trouble believing Rose was an insurgent, a partisan, and an outlaw confirmed its significance. Rose and the "armed negroes" were by definition insurgents in rebellion against the Confederacy but unrecognized by the government on whose side they fought as belligerents. Yet, Rose's War was part of the larger war that destroyed slavery and preserved the Union. The battle at Pineville was more than a minor incident in the waning days of the Civil War. Rather, it captured some fundamental truths about the Union war against slavery, the slaves' war, and the process of emancipation and the spaces in which it unfolded. It spoke to the long history of slave resistance and encapsulated the ways the gendered work of black women in the plantation economy informed individual, family, and community resistance and the ways Union and Confederate policies made gender a critical touchstone of emancipation. It captured in legible political terms the shape and organizational process of a slave insurgency in the United States during the Civil War and the debt it owed to what had gone before. The story of this particular Lowcountry insurgency and gender's place in it (even when marked as irrelevant) provides one small but critical window into the protracted process of emancipation as it was shaped by war and the history that lay behind it. What follows is the story that slaveholders told about Rose and the Pineville insurgency, but in it the fight of enslaved people in the midst of war emerges clearly and distinctly.

■ On March 26, 1865, General Philip Sheridan's cavalry command moved across the James River as it prepared to link up with General Ulysses S. Grant's Army of the Potomac.[4] Hundreds of miles away on that same spring

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.24 - The Economic Cost of the American Civil War: Estimates and Implications

Claudia D. Goldin and Frank D. Lewis

ARTICLE	The Economic Cost of the American Civil War: Estimates and Implications
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THE JOURNAL OF ECONOMIC HISTORY

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The Economic Cost of the American Civil War: Estimates and Implications

We are right to see power, prestige, and confidence as conditioned by the Civil War. But it is a very easy step to regard the War, therefore, as a jolly piece of luck only slightly disguised, part of our divinely instituted success story, and to think, in some shadowy corner of the mind, of the dead at Gettysburg as a small price to pay for the development of a really satisfactory and cheap compact car with decent pick-up and road-holding capability. It is to our credit that we survived the War and tempered our national fiber in the process, but human decency and the future security of our country demand that we look at the costs. What are some of the costs? Robert Penn Warren, *The Legacy of the Civil War* (New York: Random House, 1961), pp. 49-50.

INTRODUCTION

THE economic impact of the American Civil War has received a prominent place in historical literature. It has been extensively debated since the publication of the controversial works of Louis Hacker and Charles and Mary Beard. The effects of the war on industrialization and income distribution have been discussed in a long series of articles among which those of Cochran, Salsbury, and Engerman are best known.[1] The debate has been comprehensive,

We would like to thank Stanley Engerman, Hugh Rockoff, Richard Sutch, and three referees for their helpful comments.

[1] See Thomas C. Cochran, "Did the Civil War Retard Industrialization?" *Mississippi Valley Historical Review*, XLVIII (September 1961), 197-210; Stanley Engerman, "The Economic Impact of the Civil War," *Explorations in Entrepreneurial History*, Second Series, III (Spring-Summer 1966), 176-199; Stephen Salsbury, "The Effect of the Civil War on American Industrial Development," in Ralph Andreano, editor, *The Economic Impact of the American Civil War* (New York: Schenkman Publishing Co., 1967). The Cochran and Engerman articles are also reprinted in

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but unfortunately one is still unable to draw firm conclusions from the present data concerning crucial issues. Although it is now known that the war's immediate impact was not expansionary, its long range effects are still unclear.

We hope that this article will help to resolve some of the broader issues concerning the economic effects of the war. Although this work does not answer completely the questions raised by the classic studies in this field, it does provide data which should be helpful in unriddling some of them.

The initial sections of this article contain estimates of the cost of the American Civil War to the Union and the Confederacy. These cost estimates are of two types, direct and indirect. The direct measure is computed by adding up the actual war expenditures of both sides. We discuss the limitations of this procedure and introduce an indirect estimate which avoids most of the shortcomings of the previous method. This indirect estimate is computed under the assumption that a particular consumption stream would have existed in the absence of the conflict. The discounted difference between this consumption stream and that actually achieved constitutes the indirect measure of the cost of the war. The final sections of the paper use these estimates to resolve various economic issues involving the total and distributive effects of the war. These sections are meant to be suggestive of future research and are not intended to be exhaustive.

The cost of any war is difficult to measure. As John Maurice Clark wrote in his preface to *The Costs of the World War to the American People*, "[a] study of war costs is either a relatively simple matter of tabulation and fiscal allocation; or else it is an economic problem of insoluble difficulty."[2] When a war involves an economy only to the extent of providing men and machines this accounting procedure, as Clark suggests, is easy and appropriate. But when the war also involves the destruction of productive capital, political instability and changes in the composition of the labor force, complications abound. Further problems can be added if the victor extracts a reparation at the end of the conflict.

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the Andreano volume. See also Harry N. Scheiber, "Economic Change in the Civil War Era: An Analysis of Recent Studies," *Civil War History*, II (December 1965), for a summary of these and other papers.

[2] John Maurice Clark, *The Costs of the World War to the American People* (New Haven: Yale University Press, 1931), p. xi.

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.25 - A Fight for a Principle: The 24th Illinois Volunteer Infantry Regiment

David Graham

ARTICLE	A Fight for a Principle: The 24th Illinois Volunteer Infantry Regiment
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EXCERPT	Original journal pages 38-39
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A Fight for a Principle: The 24th Illinois Volunteer Infantry Regiment

David Graham

The 24th Illinois Volunteer Infantry Regiment was a regiment of the Union Army during the American Civil War made up of mostly German immigrants along with Swiss, Swedish, and Hungarian immigrants. The regiment mustered into service and organized at Chicago, Illinois in the summer of 1861.[1] The soldiers of the 24th Illinois experienced many facets of the Civil War, including death, disease, desertion, and regimental dissension. Throughout the war, the soldiers of the 24th Illinois experienced a unique form of Americanization through their experiences in the American military. Additionally, the story of the 24th Illinois regiment is one of dissatisfaction and discontent. Before one can fully understand the dynamics and culture of the 24th Illinois, one must first examine the community from which the regiment's soldiers came.

According to the decennial census, the population of Chicago in 1860 was 112,172, making it the ninth largest city in the United States at the time.[2] Of the 112,172, 22,230 were German born. The population of Chicago increased dramatically from 1850 to 1860, in part, because of the influx of German immigrants taking place during this time period. Many of the German immigrants were "48ers," participants in the 1848 uprisings and revolts that occurred throughout Europe. As a result of the failures in 1848, many Germans immigrated to the United States and settled in cities such as Minneapolis and Chicago.[3] This influx of immigrants helped create a strong German influence and culture in Chicago at the time of the Civil War.

With the outbreak of the war, several prominent German-Americans in Chicago promoted the creation of an all-German regiment that would become the 24th Illinois Volunteer Infantry Regiment. Figures such as George Schneider, editor of the German Chicago newspaper *Illinois Staats Zeitung*, Anton C. Hesing, the Cook County sheriff, and political activist Lorenz Brentano helped develop the proposal for an all-German regiment. The proponents of the regiment brought the concept to two influential figures in the city capable of organizing and recruiting for a

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potential regiment: Charles Knobelsdorf, a Hungarian veteran of the 1848 uprisings and Julian Kune, also a veteran of the 1848 revolution as well as a prominent politician and banker. Friedrich Hecker, a revolutionary in the 1848 revolutions in Germany, left his farm to enlist as a private in the Union Army. However, some of the key German Americans involved in the regiment's formation urged Hecker to come to Chicago. While Kune was in Washington attempting to secure the regiment's position in the Army, Hecker arrived in Chicago as an elected colonel and commanding officer of the 24th Illinois, the Hecker Regiment.[4] There is some dispute about who was originally called to lead the regiment. Kune made the assertion that he was called on to lead the regiment; conversely, there is record of Hecker making the same claims.[5]

The story of how the "Hecker Regiment" became the "1st Hecker Regiment" helps shed light on the internal and external leadership struggles that characterized the regiment's history and the dissatisfaction exhibited by Hecker with the 24th Illinois. As a sort of consolation, Kune accepted the position as Major of the 24th Illinois.[6] The controversy and dispute over leadership of the 24th Illinois sewed the seeds for the disputes and dissension that followed.

One of the major initial problems within the regiment that Hecker noted early on was that there were "officers in great numbers, but few privates."[7] With an abundance of officers in the regiment, competition and scheming became prevalent among the leaders of the 24th Illinois. As Eric Benjaminson notes, "The summary of the difficulties inside the regiment lay less in ethnic discord between the Germans and the other Europeans, but rather was influenced by the character flaws of certain officers, the wounded pride of many, a frustrated desire for a free hand in decision making by Hecker, and a certain aristocratic snobbery."[8] Hecker frequently faced issues of insubordination and mutinous behavior from his subordinate officers. His frustration is evident in some of the letters he wrote during the early stages of the 24th Illinois's formation and history. In a letter to Secretary of War, Simon Cameron, Hecker expressed his concerns and disappointments with having to serve with a particular officer:

> I must wear the same uniform, serve in the same Regiment with a man who, in open court has been fined for keeping a disorderly

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.26 - How Abe Lincoln Lost the Black Vote: Lincoln and Emancipation in the African American Mind

Allen C. Guelzo

ARTICLE	How Abe Lincoln Lost the Black Vote: Lincoln and Emancipation in the African American Mind
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How Abe Lincoln Lost the Black Vote: Lincoln and Emancipation in the African American Mind

ALLEN C. GUELZO

No other American president has wielded the power of words with greater skill than Abraham Lincoln. "No one can read Mr. Lincoln's state papers without perceiving in them a most remarkable facility of 'putting things' so as to command the attention and assent of the people," wrote Henry J. Raymond, editor of the *New York Times* in 1864, and Raymond had an editor's unerring eye for this sort of thing. Massachusetts congressman George Boutwell, reminiscing for Allen Thorndike Rice twenty years after Lincoln's death, thought that "Lincoln's fame" would "be carried along the ages" by his writings, and especially the "three great papers . . . the proclamation of emancipation, his oration at Gettysburg, and his second inaugural address."

Not too many, even today, would disagree with Raymond and Boutwell about Lincoln's preeminent way with words. But what may jar us about Boutwell's praise is the order in which placed his top three Lincoln picks: the Second Inaugural third, the Gettysburg Address second, and the Emancipation Proclamation first. But putting the proclamation first was not just a slip of Boutwell's pen, since Boutwell was convinced that the proclamation *was* Lincoln's greatest document: "If all that Lincoln said and was should fail to carry his name and character to future ages, the emancipation of four million human beings by his single official act is a passport to all of immortality that earth can give. There is no other individual act performed by any person on this continent that can be compared with it. The Declaration of Independence, the Constitution, were each the work of bodies of men. The Proclamation of Emancipation in this respect stands alone. The responsibility was wholly upon Lincoln; the glory is chiefly his. No one can now say whether the Declaration of Independence, or the Constitution of the United

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States, or the Proclamation of Emancipation was the highest, best gift to the country and to mankind."[1]

Nor was Boutwell alone in the years after the Civil War in giving the Emancipation Proclamation pride of place among Lincoln's achievements. The proclamation, announced the abolitionist Robert Dale Owen, "forms an era in our national history. It severed the past from the future." Isaac Arnold, who sat with Boutwell in the wartime Congress, portrayed Lincoln's "stupendous decree of immediate emancipation" as "the dream of his youth, the aspiration of his life." In debate over the proclamation in Congress, Ohio representative John Hutchins declared that "The president's proclamation, whatever may be the issue of it, makes a new era in our politics, and marks a new epoch in history. Henceforth we are to have a Republic redeemed, regenerated, disenthralled by the genius of universal emancipation." When Lincoln's tomb was dedicated in 1874, the figure of Lincoln standing before the tomb's obelisk held a copy of the Emancipation Proclamation in its left hand. Eight of the eleven outdoor statues of Lincoln installed in public squares and parks before the century's end depicted him in various poses with the proclamation.[2]

But in all of these high praises for the Emancipation Proclamation, a certain note of ambivalence was already present. Unlike the other two of "the three great papers," admirers of the proclamation wavered unsteadily between the document itself and the consequences that flowed from it. One reason for this was certainly stylistic. Unlike the Gettysburg Address or the Second Inaugural, the Emancipation Proclamation had not been written with a view towards speaking, and it lacked the guiding purpose of Lincoln's other rhetorical masterpieces—the desire to persuade. One of the first voices to send up wisps of sarcasm over the proclamation's

1. Raymond, *History of the Administration of President Lincoln* (New York: Derby & Miller, 1864), 479; Boutwell, in *Reminiscences of Abraham Lincoln By Distinguished Men of His Time*, ed. A. T. Rice (New York: North American, 1886), 133–34.

2. Robert Dale Owen, *The Conditions of Reconstruction; In a Letter from Robert Dale Owen to the Secretary of State* (New York: W. C. Bryant, 1863), 19; Arnold, *The History of Abraham Lincoln and the Overthrow of Slavery* (Chicago: Clarke, 1866), 295–96, and *The Life of Abraham Lincoln* (1884; rept. Lincoln: University of Nebraska Press, 1994), 253, 267; Hutchins, "President's Annual Message," Dec. 11, 1862, in *Congressional Globe*, 37th Cong., 3d sess., p. 78; Merrill D. Peterson, *Lincoln in American Memory* (New York: Oxford University Press, 1994), 52–59; Barry Schwartz, *Abraham Lincoln and the Forge of National Memory* (Chicago: University of Chicago Press, 2000), 92.

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.27 - The Effect of the Civil War on Southern Marriage Patterns

J. David Hacker, Libra Hilde, and James Holland Jones

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The Effect of the Civil War on Southern Marriage Patterns

By J. David Hacker, Libra Hilde, and James Holland Jones

In 1864, the editor of the *Southern Literary Messenger* received a letter from H. R., who identified herself as an eighteen-year-old, unmarried woman from Buckingham County, Virginia. Hattie, as the editor called the anonymous letter writer, admitted suffering from a "chill feeling of despair" brought on by the "execrable war." She wrote that

> the reflection has been brought to my mind with *great force* that after this war is closed, how vast a difference there will be in the numbers of males and females.
>
> Having made up my mind not to be an *old maid*, and having only a moderate fortune and less beauty, I fear I shall find it rather difficult to accomplish my wishes.

She asked the editor, "[D]o you think that I will be overlooked 'amidst this wreck of matter and crush of men and horses'[?]"[1]

Social historians of the Civil War have generally agreed that fears like Hattie's were well grounded in demographic realities. Nearly 620,000 men were killed in the war, a number approximately equal to the deaths in all other American wars from the Revolution to the Korean War combined. The deaths of huge numbers of men, Nancy Cott has argued, rendered "the assumption that every woman would be a wife . . . questionable, perhaps untenable."[2] The death rate was especially great in the Confederacy, which lost approximately one in five white men of

[1]"Editor's Table," *Southern Literary Messenger*, 38 (February 1864), 124–25 (first, second, and fourth quotations on 125; third quotation on 124). This work was supported in part by NIHCD grant numbers 1 K01-HD052617-01 and 1 K01-HD051494-01. The authors would like to thank Catherine Fitch, Steven Ruggles, Douglas Bradburn, Diane Sommerville, Orville Vernon Burton, Stephanie McCurry, and participants in the University of Minnesota Early American Workshop for helpful comments on earlier versions of this paper.

[2]Maris A. Vinovskis, "Have Social Historians Lost the Civil War? Some Preliminary Demographic Speculations," *Journal of American History*, 76 (June 1989), 34–58; Nancy F. Cott, *Public Vows: A History of Marriage and the Nation* (Cambridge, Mass., 2000), 78–79.

Mr. Hacker is an associate professor of history at Binghamton University, State University of New York. Ms. Hilde is an assistant professor of history at San José State University. Mr. Jones is an assistant professor of anthropology at Stanford University.

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military age in the conflict.[3] Catherine Clinton has stated that the reduced population of young men "demographically deprived" southern women of husbands.[4] Drew Gilpin Faust, in her study of elite southern white women during the war, has argued that the loss of such a large proportion of the South's male population undermined the region's established pattern of family formation and threatened the identity of white women as wives and mothers. A generation of southern women faced the prospect of becoming spinsters reliant on their families for support.[5] Similarly, in a recent study of white southern womanhood in the late nineteenth century, Jane Turner Censer has expressed the notion that the Civil War "constituted a watershed" in the likelihood of marriage for southern white women.[6]

If it is true that the war condemned a generation of southern women to spinsterhood, then demography, specifically the imbalance in the number of men and women, contributed to what some historians have described as a war-provoked "crisis in gender."[7] Unfortunately, despite repeated calls for more research, the demography of the United States during the Civil War and its aftermath remains a neglected subject.[8] A few scholars have attempted to reconstruct the population history of

[3] Vinovskis, "Have Social Historians Lost the Civil War?" 38–39. Vinovskis considered men of military age to be those listed as 13 through 43 years old in the 1860 census. The estimate of the ratio of southern men killed in the war is based in part on the number of deaths among Union troops.

[4] Catherine Clinton, "Maiden Aunt," in Charles Reagan Wilson and William Ferris, eds., *Encyclopedia of Southern Culture* (Chapel Hill, 1989), 1553–54 (quotation on 1553).

[5] Drew Gilpin Faust, *Mothers of Invention: Women of the Slaveholding South in the American Civil War* (Chapel Hill, 1996), 139–52.

[6] Jane Turner Censer, *The Reconstruction of White Southern Womanhood, 1865–1895* (Baton Rouge, 2003), 32.

[7] Anne Firor Scott has described the war's impact on southern women in *The Southern Lady: From Pedestal to Politics, 1830–1930* (Chicago, 1970). In Scott's interpretation, the war accelerated social change and southern women's transition from the private patriarchal southern household to the public world of political activism. More recent studies, while agreeing that the war challenged traditional gender roles, suggest that southern women did not eagerly embrace change. After the war, many women sought to restore southern men's traditional masculine self-image. See Faust, *Mothers of Invention*; and George C. Rable, *Civil Wars: Women and the Crisis of Southern Nationalism* (Urbana, 1989). LeeAnn Whites has made the most forceful case for interpreting the war as a crisis in gender in *The Civil War as a Crisis in Gender: Augusta, Georgia, 1860–1890* (Athens, Ga., 1995). The notion of a so-called crisis in gender encompasses more than women's ability to marry and fulfill their expected roles as wives and mothers. Excellent studies of the war's impact on gender can be found in Catherine Clinton and Nina Silber, eds., *Divided Houses: Gender and the Civil War* (New York, 1992); and Clinton and Silber, eds., *Battle Scars: Gender and Sexuality in the American Civil War* (New York, 2006).

[8] Vinovskis, "Have Social Historians Lost the Civil War?" Phillip Shaw Paludan has also called attention to the lack of census-based research in "What Did the Winners Win? The Social and Economic History of the North during the Civil War," in James M. McPherson and William J. Cooper Jr., eds., *Writing the Civil War: The Quest to Understand* (Columbia, S.C., 1998), 174–200.

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.28 - Rejuvenating Civil War Military History: A New Take on Infantry Tactics

Earl J. Hess

ARTICLE	Rejuvenating Civil War Military History: A New Take on Infantry Tactics
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TOM WATSON BROWN BOOK AWARD

Rejuvenating Civil War Military History

A New Take on Infantry Tactics

EARL J. HESS

EDITOR'S NOTE: *The following represents the acceptance speech for the Watson Brown Prize for the best book published on the Civil War era in the calendar year 2015. Tad Brown, president of the Watson-Brown Foundation, awarded the prize to Earl Hess for his book Civil War Infantry Tactics, published by the Louisiana State University Press. These remarks were given at the annual banquet of the Society of Civil War Historians (SCWH), held during the Southern Historical Association annual meeting on November 3, 2016, in St. Pete Beach, Florida. The SCWH judges and administers the book prize.*

In the aftermath of the sesquicentennial of the Civil War, it is evident that a significant reevaluation of the war's military history, and the place it holds within Civil War studies, is needed. Even before the 150-year anniversary ran its course, strong voices were raised on this issue. Two landmark articles, published in December 2014, raised questions and suggested answers about the state of military history in the study of America's civil conflict.

Gary W. Gallagher and Kathryn Shively Meier, in "Coming to Terms with Civil War Military History," published in the *Journal of the Civil War Era*, address many important issues. Among the most important is the dearth of graduate students and junior-level scholars who deal in meaningful ways with Civil War military history.[1]

At exactly the same time, my own article, "Where Do We Stand? A Critical Assessment of Civil War Studies in the Sesquicentennial Era," appeared in the pages of *Civil War History*. In it, I argued strenuously that traditional military history remains an important element in academic Civil War studies, despite the comparatively few scholars who work in that subtopic, and that the field cannot afford to marginalize it, ignore it, or let it die a quiet death.[2]

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And yet, in 1996, eighteen years prior to the appearance of Gallagher and Meier's article and my own, Mark Grimsley of The Ohio State University wrote a provocative comment on his blog. Entitled "Why Military History Sucks," it was critical of the old-fashioned nature of Civil War military history. Grimsley characterized it as dated in the face of new trends that emphasized social and cultural aspects of the conflict. The message was clear: military historians need to get up to date or be left out in the cold.[3]

It has become increasingly evident to me over the years that Grimsley was right. In a forthcoming essay, tentatively entitled "Rejuvenating Traditional Military History in the Current Age of Civil War Studies," I acknowledge that the study of Civil War military history has stagnated for several reasons. This essay will appear in an anthology edited by Andrew S. Bledsoe and Andrew F. Lang that is entitled *War is the Remedy*. The anthology is designed to raise awareness of the need for a new dialogue about what Civil War military history is and what it can become in the next few decades.[4]

In "Rejuvenating Traditional Military History," I point out that we cannot afford to let Civil War military history become the sole preserve of amateur historians. Although a handful of nonacademic writers of history produce work of a quality that is as high as that of many academic historians, the overwhelming majority of them are not capable of doing the extensive archival research, the analysis of key points, or the exploration of new topics that are essential if Civil War military history is to grow out of the doldrums it has stagnated into during the past few decades.

There is a pressing need for a new perspective on Civil War military history—how we approach it and its purpose in our field. There are many opportunities for academic scholars to take Civil War military history into a new phase in its development, but this will not happen if they are content to write yet another colorful narrative of a battle or yet another biography of a well-known commander that contains no new insights and is geared toward a general audience. Instead, our work should be aimed at introducing new concepts or reevaluating old ideas or covering important topics underlying our perception of how armies work. But this will not happen if graduate schools do not pay attention to military history or fail to teach students that a varied approach to the Civil War is essential.

We desperately need to think about and write military history differently, in a qualitative sense, if we are to have any hope that it will survive in the academy—and its survival in the academy is the key to its survival as a whole. Civil War military historians need to do more than just chronicle battles; they need to become true military historians. This involves paying serious attention to a wide range of topics that underlie the military

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Hess, "Rejuvenating Civil War Military History," 167–168.

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.29 - Men of Principle: Gender and the German American War for the Union

Mischa Honeck

ARTICLE	Men of Principle: Gender and the German American War for the Union
JOURNAL	Journal of the Civil War Era 5, no. 1 (2015)
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MISCHA HONECK

Men of Principle Gender and the German American War for the Union

Entire families gathered at the federal arsenal in St. Louis on May 4, 1861, to hail the soldiers who were reporting for duty. German songs, toasts, and speeches filled the air, which gave the rally a distinct ethnic flavor. The atmosphere was festive, and an Anglo-American bystander would have marveled at the singing and beer-drinking that accompanied the martial spectacle. After the heavily German 3rd Missouri Infantry had received its weapons, a delegation of women, led by Josephine Weigel, unfurled the regiment flag, which they had sewed, and presented it to Franz Sigel, the commanding officer and popular veteran of the European Revolutions of 1848–49. Addressing the crowd, Weigel praised the men who had donned the uniform in defense of their adopted country. She stated, "In keeping with old German custom, we women do not want to remain mere onlookers when our men have dedicated themselves with joyful courage to the service of the Fatherland." She then wished "shame and disgrace to the German man who does not offer everything to the Fatherland in this hour of peril." Sigel took the colors under rapturous applause and declared that his men would never desert the flag, save through death.[1]

The demonstration of military preparedness and ethnic patriotism that galvanized St. Louis's German Americans was one of hundreds that electrified northern immigrant communities in the Civil War spring of 1861. War fever gripped the country's native and foreign-born citizens alike. Weigel's use of the word "fatherland" indicates that her people did not view their stay in the United States as temporary exile. After the fall of Fort Sumter, German Americans in the North and Midwest turned out in throngs to answer President Lincoln's call for volunteers. Recruitment posters in German script urged able-bodied patriots to join newly organizing ethnic units. Fervent home-front support and the leadership of romantic revolutionaries like Sigel drove hordes of young men into service. When the Civil War ended four years later, about two hundred thousand men born in the German-speaking parts of Europe had fought and bled for the

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Union. According to another estimate, almost a quarter of all soldiers in the northern army had German roots.[2]

This article sets the collective emotional rush with which German Americans marshaled for war in a wider cultural context. It takes its point of departure in questions similar to the ones historian Nina Silber asked about the Civil War not too long ago: What made these men fight? Why did they risk their lives for a country that did not welcome them wholeheartedly? And what made women send their loved ones into battle?[3] Rather than engage with the older filiopietist historiography, this article joins a renewed scholarly conversation about the causes and catalysts of German immigrant mobilization in the Civil War North.[4] While many of the recent studies show how ethnicity, class, and race framed particular German American responses to contentious issues such as nativism, antislavery, and secession, gender remains somewhat of an analytical blind spot. This lack of attention stems in part from a false understanding of gender as a realm of human experience confined to questions of sexual identity, when in fact imagined differences between men and women play a crucial role in politics and war. Like their colleagues working in other areas, historians of German America need to examine not only how masculinity and femininity were constructed in relation to the political but also how gender operated as an instrument for legitimizing power and justifying violence. They need to trace the multiple ways abstract concepts such as citizenship, patriotism, and fatherland, according to the historian Joan W. Scott, "have been made comprehensible (and thus legitimate) in terms of relations between male and female."[5]

Gender is a neglected aspect of ethnic soldering, but the transnational legacy of 1848 and the divisive politics of the 1850s devalued compromise, militarized German American culture, and nurtured an ideal of manhood that flaunted ethnic honor, principle, and sacrifice as its defining characteristics. The following discussion focuses on German-speaking unionists, although gender also guided the few Germans who sided with the Confederacy.[6] This article treats gender as a discursive, performative, and affective force that constituted and reconstituted social power relations. A growing body of Civil War scholarship interested in documenting the experiences of men and women on and beyond the battlefield has already utilized the category of gender in fruitful ways to better understand topics such as political reform, economic activity, domestic life, women's rights, homefront behavior, black self-liberation, and emancipation. Given that these new studies are sensitive to the constructed and historically contingent nature of gender as it intersects with other variables such as class, race, religion, and region, it is surprising that this kind of gender analysis

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.30 - The Civil War in Kentucky: The Slave Claims His Freedom

Victor B. Howard

ARTICLE	The Civil War in Kentucky: The Slave Claims His Freedom
JOURNAL	The Journal of Negro History 67, no. 3 (1982)
EXCERPT	Original journal pages 245-246
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THE CIVIL WAR IN KENTUCKY: THE SLAVE CLAIMS HIS FREEDOM

Victor B. Howard*

When William E. Woodward published his biography, *Meet General Grant,* in 1928, he confidently concluded that ''the American negros [sic] are the only people in the history of the world, that ever became free without any effort of their own.''[1] Although his dogmatic comment went unchallenged, it would not be accepted today, and his statement is certainly not true with reference to the blacks in Kentucky during the Civil War. From the beginning of the Civil War, the Kentucky slaves were active particpants in the drama. From the moment Northern troops entered Kentucky, the objective of the slaves was to secure more self-determinism for themselves and their families.

During the spring and summer of 1861 in Kentucky, the signs of what was to come were clear. Newspaper columns carried more and more notices of runaways. Instances of insubordination increased sharply, and there were reports of work slowdowns, unruliness, and arson. In May 1861, great alarm spread across Kentucky as rumors of slave uprisings and insurrectional plots convulsed the states with fear. Slave plots were said to have been exposed or uprisings undertaken in Fayette, Owen, and Gallatin Counties.[2]

The uneasiness and apprehensions concerning the effects of abolitionist ideas on the slaves led to concerted efforts to isolate the slave communities from information about the issues of the war. After the armies moved into Kentucky, many Kentucky slaveholders tried to frighten the slaves into avoiding conversation with strangers and Northern soldiers. Harry Smith's Kentucky master told him that the Yankees would steal and sell him. ''Do not pass a word with those Yankees,'' his master warned. The slaveholders in the region of Columbus, Kentucky, told their slaves that the Yankees had horns, and that they ate Negro ''babies, and . . . lived in the North in houses built of snow and ice,'' and that the Yankee soliders were fighting to take the blacks back north ''where they would freeze to death.'' When the Northern soliders arrived in a community, the slaves related these stories with much amusement. Despite the master's attempt to insulate the slaves from contact with the outside world, the blacks learned much about the war and spent hours discussing its effects on slavery. The slaves would eavesdrop at the door when whites were discussing the war or holding council, and sometimes the slaves induced literate yeomen to read to them about the war.[3] In Simpsonville, Kentucky, Elijah Marrs was given the task of going to town to pick up the mail for his master. As he could read, Marrs kept the other slaves in the neighborhood informed by reading newspapers mailed to his master.[4]

During his tour through Kentucky in the summer of 1861, Alan Pinkerton, an intel-

*Victor B. Howard is Professor of History at Morehead State University, Morehead, Kentucky. *His book, to which this article relates, Black Liberation and the Death of Slavery in Kentucky* is forthcoming from the University of Kentucky Press.

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ligence officer for the United States War Department, conversed with a Bowling Green slaveholder about the knowledge slaves had acquired concerning the war. ''There has been so much talk about the matter all through the State'' that the blacks ''know as much about it as we do . . . and too much for our safety and peace of minds,'' concluded the slaveholder. A Crittenden County, Kentucky, slaveholder wrote a friend that the blacks were ''so free'' and considered slavery ''such a sin'' that owners would be better off if the slaves were sold to the South.[5]

Since the whites were aware that the slaves had cause to resist continuing in bondage and that the war might furnish the occasion and resources for rebellion, the war years were an uneasy period for the Kentucky slaveholder. A delegation of citizens of Paducah protested to General E. A. Paine against arms carried by the black servants of the officers of the Ninth Illinois Regiment. The citizens were not only uneasy about the use the blacks in the Ninth Illinois Regiment might make of the weapons, but were concerned about the example they might set for the Paducah slaves. Since the servants had been armed to prevent kidnapping, they remained armed despite the protest. Whether the armed servants affected the local slaves is uncertain, but General F. Smith was called on to restore order and quiet a revolt, on a farm in McCracken County, among a dozen or more slaves, who supposed they were free because the soldiers had come.[6]

As the formation of the Kentucky military units was accelerated and the regiments from the Northwest began to move into Kentucky, it was impossible to prevent the slaves from coming in contact with the soliders. When the Union troops began to arrive from the Northwest in great numbers, the action of the slaves revealed that few had been so naive as to accept the exaggerated stories that the whites had told them. Some few gullible slaves continued to fear the Union soliders, but others were of the sentiment of the slave who said to the solider: ''I thought you must be downright heathen, but you are real good-looking people and don't seem to do nobody no harm.''[7]

In many communities, when the Northern soliders arrived the blacks turned out *en masse*. The soldiers described the slaves as friendly and kind, intelligent and ''loyal to the man.''[8] If the blacks lacked refined knowledge of the issues at stake in the war, their common-sense judgment and instincts drew them to the Union cause. As the Fifty-Eighth Indiana Infantry moved across Kentucky in the Autumn of 1861, an old black lady greeted them with enthusiasm and said: ''God bless de soldus. I'se glad to see 'em come.'' Early in November, 1861, when an Ohio regiment marched into Elizabethtown, Kentucky, it was greeted by a massive turnout of the slaves. The attention of the soldiers were drawn toward an old Negro woman as she paraded along the street crying, ''Hurray for de Union. Go on gemmen, I saw de Union once; it was de best Union I eber saw.'' On March 5, 1862, the Twenty-Eighth Illinois Regiment left Camp Heiman and marched along the Tennessee River. When it passed a farm house, several blacks stood by the fence cheering the soldiers. A very ancient woman was the center of attention. With her arms stretched toward Heaven, she shouted over and over: ''God bless Massa Lincoln!'' until her voice died out in the distance as the soliders moved downstream. A large number of slaves believed that God had foreordained a millenial destruction of servitude during their lifetime. The Civil War seemed to many slaves to be the time that was set aside for the Providential deliverance. Early in 1862 the soldiers of the Eighth Kentucky Infantry witnessed a scene which revealed

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.31 - Total War and the American Civil War Reconsidered: The End of an Outdated 'Master Narrative'

Wayne Wei-siang Hsieh

ARTICLE	Total War and the American Civil War Reconsidered: The End of an Outdated 'Master Narrative'
JOURNAL	Journal of the Civil War Era 1, no. 3 (2011)
EXCERPT	Original journal pages 394-395
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REVIEW ESSAY

Total War and the American Civil War Reconsidered The End of an Outdated "Master Narrative"

WAYNE WEI-SIANG HSIEH

Despite the transnational turn in American history, American historians still tend to put our national history at the center of world history, which exaggerates both our virtues and vices.[1] Harsh critiques of Civil War violence as harbingers of twentieth-century brutality share with Whiggish narratives the unproven assumption that the American Civil War forged a fulcrum point not just for American history, but for the modern world.[2] Until recently, most military historians have generally seen the Civil War as the opening chapter of what historian Roger Chickering has called a "master narrative," in which modern weapons, combined with the mass mobilization of society, prolonged the war, encouraged "strategic stalemate," and engulfed civilians politically and military. This narrative places the Civil War at a crucial way station in a new era of industrial violence that inexorably leads to Hiroshima, the Holocaust, and a doomed present. From this perspective, the "total wars" of the twentieth century mark an apex of violence that had its wellsprings in the American Civil War.[3] This grand story has seriously distorted Civil War scholarship. It feeds into a narrative of American exceptionalism that places the Civil War–era United States at a pivot point of world history culminating in the "American Century." It both exaggerates American influence on later events and obscures some of the most important aspects of Civil War violence, especially the war's connection to the demise of chattel slavery and its particular combination of lethality and limitation.[4]

To use one straightforward measure, the butcher's bill of the Napoleonic period calls into question the common assumption among Americanists, recently expressed by Drew Gilpin Faust, that the Civil War "*introduced* a level of carnage that foreshadowed the wars of the century to come."[5] For example, at the climactic "Battle of Nations" at Leipzig in 1813, Napoleon commanded 177,000 men, while the Allied forces mustered over 250,000

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in opposition, excluding 140,000 nearby reinforcements. The French suffered 68,000 casualties, and the Allies lost at least 50,000 men. These totals exceeded the size of some entire Civil War field armies.[6] Even the epic battle of Gettysburg saw 30,100 Federal and 27,125 Confederate casualties during the entire campaign, out of 112,700 deployed personnel in the Army of the Potomac and about 80,000 men in the Army of Northern Virginia.[7] To put this another way, the initial Allied forces at Leipzig outnumbered both Union and Confederate armies combined, while French casualties alone exceeded the sum of both American armies' losses.

Furthermore, if the cultural and political turn toward total war had begun during the French Revolution, as is argued by David Bell, then the Civil War's place in the master narrative only further weakens.[8] This narrative answered a real need to explain the Civil War's increasing levels of violence, but it also obscured the limits placed on Civil War violence by a wide variety of actors and forces, and the historical significance of those limits. It also served as perhaps the most important intersection of military and social history in Civil War studies, because it connected military operations with important social changes, including emancipation, changing gender roles, the mobilization of the home front, and important cultural changes, while still placing the Civil War at a crossroads of world history.[9] The narrative remains influential and resilient, even as some historians such as Chickering have raised serious questions about its premises.

American historians can also find useful models and points of comparison in recent work by European historians to better understand the dynamics of Civil War violence. Bell's analysis of how the Napoleonic experience transformed Enlightenment reform into a romantic glorification of violence may help explain the inseparable connections among emancipation, nationalism, and state violence during the Civil War. Isabel Hull's work on the army of Imperial Germany provides a methodological model for military and nonmilitary historians alike. Hull chronicles how a specific military culture elevated violence into an irrational end in itself and created total war through institutional practice. Drawing on the operational and tactical lessons of the German wars of unification (1864–71), the German army's culture focused on the annihilation of opponents in climactic battles. The constitutional structure of Imperial Germany allowed these impulses to develop toward their final destructive conclusions, which resulted in atrocities against various civilian populations and the final self-immolation of the Germany army during World War I. Her analysis ties together the concrete practices and culture of military organization, including such issues as military doctrine and unstated organizational assumptions, with the material exigencies of military operations

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.32 - Women, Gender, and the Boundaries of Reconstruction

Catherine A. Jones

ARTICLE	Women, Gender, and the Boundaries of Reconstruction
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REVIEW ESSAY

Women, Gender, and the Boundaries of Reconstruction

CATHERINE A. JONES

This essay surveys Reconstruction scholarship centrally concerned with women and gender published since the 1990s. By drawing on gender theory, particularly the insights of intersectional analysis, women's historians advanced a redefinition of politics that has transformed Reconstruction historiography over the past twenty-five years. This essay examines the tension between scholarship that emphasizes the importance of gendered exclusions in grounding Reconstruction's civil rights gains and research that foregrounds women's engagement in the era's radically pluralistic politics. The western turn in Reconstruction scholarship raises new questions about emancipation's impact on women's lives and the connections between women's suffrage and white supremacy. This essay contends that gender remains an essential analytical category for historians seeking to integrate regional strands of Reconstruction scholarship; at the same time, it argues that recognizing women's agency in advancing and curtailing the era's equalitarian potential is essential to developing comprehensive new narratives of the postwar era.

Historians of women were largely absent from the renaissance in Reconstruction scholarship of the 1960s and 1970s. Women's exclusion from the post–Civil War expansion of suffrage was a historic loss with historiographical consequences; it helped make Reconstruction, a period largely defined by electoral politics, appear to be inhospitable terrain for U.S. women's historians. Beyond the important work Ellen Carol DuBois and others did in the 1970s to write the history of the era's suffrage movement, there seemed little else to say.[1] In the 1990s, however, an outpouring of research on women, gender, and Reconstruction began to appear. This new scholarship reflected the urgency contemporary political developments brought to historians' embrace of intersectional analysis.[2] As women's historians turned their attention to the South, they uncovered new dimensions of women's participation in the political ferment of the

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postwar era. They also redefined politics itself, ranking households and schools alongside legislatures and polling places as key sites of political contest. In this new scholarship, Reconstruction often receded as the primary object of investigation as gender historians instead focused on such themes as emancipation and changes in household order. By stretching Reconstruction thematically, the gender scholarship of the 1990s also strained the era's traditional periodization and helped set the stage for current debates about how to frame the history of the postwar era.[3]

This essay surveys Reconstruction scholarship centrally concerned with women and gender that has emerged since the 1990s, both to reflect on its accomplishments and to suggest where historians have more work to do. Three big questions inform much of this literature: To what degree did the abolition of slavery transform women's lives and gender relations? Did the postwar revolution in citizenship curtail or expand women's capacity to shape the postwar world and their own lives? And to what extent did the consolidation of U.S. sovereignty depend on women's subordination and the promotion of white supremacy? While treatments of these questions tend to be anchored in a single region (the South, the North, and the West, respectively), this essay suggests that putting regional narratives into conversation is vital to deepening our understanding of the postwar era and Reconstruction's impact on it.

Gender scholars, particularly those who emphasize continuity in women's subordination across the Civil War era, reveal the limitations of the question that has organized much Reconstruction historiography: why did Reconstruction fail?[4] While the question signals Reconstruction's value as a political resource for the present, it is premised on a declension narrative that focuses historians' attention on moments of collapse and risks overstating Reconstruction's rupture with the past. The question constrains historians' analysis, for example, by foreclosing examination of women's exclusion from many of the era's equalitarian gains. Recent gender scholarship suggests that the tension between Reconstruction's democratic and exclusionary dimensions was an endemic feature of the postwar context rather than one revealed in the moments of reversal that conventionally mark Reconstruction's end. Gender, as a dimension of identity and an analytical category that illuminates relations of power, remains invaluable for historians investigating the postwar era in more geographically and temporally expansive terms.[5] At the same time, however, gender scholars cannot afford to dispense with agency, that now suspect category at the heart of much social history.[6] Gathering evidence of women's agency is not an end in itself, but a fuller understanding of how women cultivated the

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.33 - The Demise of Slavery on the Border: Federal Policy and the Union Army in Henderson, Kentucky

J. Michael Crane Jr.

ARTICLE	The Demise of Slavery on the Border: Federal Policy and the Union Army in Henderson, Kentucky
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The Demise of Slavery on the Border: Federal Policy and the Union Army in Henderson, Kentucky

By J. Michael Crane Jr.

On the night of January 1, 1865, about ten black Union soldiers, with fixed bayonets, entered the Henderson County jail and demanded the keys from the jailor. The soldiers then released all eleven incarcerated blacks, including five women, and headed toward the Ohio River, just a few city blocks from the jail. Once alerted of this usurpation of civilian law, Union military authorities stopped the unauthorized escape attempt at the riverbank and placed the ringleader in jail. By that point, however, it was apparent that civil authorities lacked the power to stop such raw uses of power by uniformed, and well-armed, blacks. This early January jailbreak aided by Federal forces was not an isolated incident. The same night that the jail breakout failed, the *Henderson Weekly Reporter* noted that thirty to forty slaves had already escaped across the Ohio River. A week later the *Weekly Reporter* admitted "that the institution is virtually dead in the state" but went on to argue against the state legislature repealing the slave codes, an act that would have effectively ended the institution. The editor concluded, "If slavery in this state is virtually dead—as many of both its friends and enemies believe—it would be far better to let the institution crumble to ruin by the influence of another power than the sovereign act of the State of Kentucky."[1] Slaves and slave

[1] *Henderson Weekly Reporter*, January 5, 1865, and January 12, 1865 (both quotations); Ira Berlin et al., eds., *Freedom: A Documentary History of Emancipation, 1861–1867*, ser. 1, vol. 1: *The Destruction of Slavery* (New York, 1985), 514–15. On federal policy toward civil-military

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owners alike thus found themselves in a cruel situation as the system collapsed around them. Slaves saw that freedom was close, but the slave regime refused to let the institution die.

How the Civil War led to the destruction of slavery in Kentucky remains a complex story that merits more attention because it informs us about the system of slavery itself and what specific factors led to its destruction. Historians who have examined the dissolution of slavery during the Civil War have generally tried to determine what factors and decisions had the greatest impact in destroying the institution—namely, who freed the slaves? Until recently, this discussion had mostly divided into two camps. James McPherson has argued that the decisions of President Abraham Lincoln and the Republican-controlled Congress had the greatest effect. Conversely, Ira Berlin and fellow authors at the Freedmen and Southern Society Project at the University of Maryland have led the contention that the slaves freed themselves and thus forced the Lincoln administration's hand in the process toward abolishing slavery.[2] Gary Gallagher, however, in his recent book *The Union War*, insisted that the Union army was the critical factor in ending the institution of slavery in the South; without the presence of the Union army moving through the South, neither party in the earlier debate, Lincoln and the Republicans or the slaves, "could have succeeded on a broad scale."[3] This article examines that debate on the ground level. How did federal-level policies, the slaves themselves, and the Union army affect the destruction of slavery in one part of the South, the Henderson area in Kentucky?

The Henderson area in western Kentucky presents a unique set of variables that allow scholars to ask big questions of small places. Located on the Ohio River across from Evansville, Indiana, the Henderson area, consisting of Henderson, Daviess, and Union coun-

relations regarding slavery in Kentucky, see James Oakes, *Freedom National: The Destruction of Slavery in the United States, 1861–1865* (New York, 2014), 174–75, 187.

[2] James M. McPherson, "Who Freed the Slaves?" in McPherson, *Drawn with the Sword: Reflections on the American Civil War* (New York, 1996), 192–207; Ira Berlin et al., *Slaves No More: Three Essays on Emancipation and the Civil War* (New York, 1992), 5–6; Barbara J. Fields, "Who Freed the Slaves?" in *The Civil War*, ed. Geoffrey C. Ward et al. (New York, 1990).

[3] Gary Gallagher, *The Union War* (Cambridge, Mass., 2011), 141–50.

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.34 - The Republican Party and the Emancipation Proclamation

Mark M. Krug

ARTICLE	The Republican Party and the Emancipation Proclamation
JOURNAL	The Journal of Negro History 48, no. 2 (1963)
EXCERPT	Original journal pages 98-99
JSTOR	https://www.jstor.org/stable/2716087

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THE REPUBLICAN PARTY AND THE EMANCIPATION PROCLAMATION*

It might be of interest to contemplate the different ways in which history and historians have dealt with the Gettysburg Address and with the Emancipation Proclamation. The Address received a little more than polite applause from those who heard it, few favorable, and mostly critical or contemptuous newspaper notices, but was later hailed and still continues to be hailed by historians as one of the greatest speeches in the history of men, as a most eloquent expression of moral and ethical fervor and as a clear and resounding call for self-government by a free people.

How different was the fate of the Emancipation Proclamation. When issued it was, as the evidence will show, hailed as an epoch-making revolutionary document, as a clarion call for human freedom, but as the years went by, historians became, in an increasing measure, disenchanted with it. It is now the accepted thing for historians to treat the Proclamation as one of Lincoln's war measures which was dictated only by military necessity. A distinguished historian, in a book published a few years ago did not hesitate to state: "The Emancipation Proclamation of January 1, 1863 had all the moral grandeur of a bill of lading."[1] There is something mystifying and perturbing in this strange fate of the Proclamation. How was it possible for millions of Americans in the North and yes, in the South, for shrewd and knowledgeable newspaper editors, Republicans and Democrats alike, to be so blind and so naive in their evaluation of the motives of Lincoln and of the importance of the Proclamation? How did it happen that the nation, North and South, white and black alike, was convinced that the Proclamation was an important turning point in the history of the war when in fact, as historians so often assert, the Proclamation was nothing of the sort?

It would seem indeed worth-while to examine this paradox.

* This paper was read at the American Historical Association meeting in Chicago, Ill., December 1962.

[1] Richard Hofstadter, *The American Political Tradition.* (New York, 1957) 6. 132.

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It might also be of importance to examine critically some of the commonly held assumptions concerning the Proclamation. I would list among these the following:

1.) That Lincoln issued the Proclamation primarily from military necessity and that he was influenced little, if at all, by considerations of justice, freedom and morality;
2.) That Lincoln issued the Proclamation with a great deal of reluctance and that his decision came mainly in response to the unbearable pressure exerted on him by the Radicals;
3.) That Lincoln neither wished nor realized that the Emanciation Proclamation would make the abolition of slavery a central issue of the Civil War;
4.) That the Republican Party was lukewarm and split in its reaction to the Proclamation;
5.) And finally, that the issuance of the Proclamation was the major cause of the Republican defeats in the Noember, 1862 elections.

The assessment of Lincoln's convictions on slavery is of decisive importance in evaluating his motive in the issuance of the Proclamation. If it is true, as so many historians have asserted, that Lincoln was lukewarm and vacillating on the issue of slavery, that there actually was little difference between his views on slavery and those of Stephen Douglas, then obviously the popular assertion that Lincoln issued the Proclamation reluctantly and as a military necessity seems quite plausible. On the other hand, if it should be possible to prove that Lincoln detested slavery and desired its prompt abolition, his motives in issuing the Proclamation must have been more complex.

One historian, in a letter of comment on the recent article of Fawn Brodie entitled "Who Won the Civil War Anyway"? which appeared in the *New York Times* wrote: "Presumably she [Mrs. Brodie] would not deny that Lincoln in his debates with Douglas . . . was in favor of white supremacy."[2] Mrs. Brodie will undoubtedly reply in due time, but it seems to me, on the basis of evidence, that in 1858 Lincoln did not endorse Douglas' concept of white supremacy.

In fact, Lincoln rejected Douglas' views on the subject. Douglas stated in Jonesboro: "I hold that this government was made on the white basis, by white men, for the benefit

[2] Ludwell H. Johnson in a letter to the Editor, *New York Times*, (September 23, 1962).

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.35 - Draft Evasion in the North during the Civil War, 1863-1865

Peter Levine

ARTICLE	Draft Evasion in the North during the Civil War, 1863-1865
JOURNAL	The Journal of American History 67, no. 4 (1981)
EXCERPT	Original journal pages 816-817
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Draft Evasion in the North during the Civil War, 1863–1865

Peter Levine

''We're coming, ancient Abraham, several hundred strong
We hadn't no 300 dollars and so we come along
We hadn't no rich parents to pony up the tin
So we went unto the provost and there were mustered in.''[1]

This parody of a popular song of Civil War America dramatizes the massive intrusion of the federal government into the personal lives of virtually all Northern families between 1863 and 1865. Between July 1863 and April 1865, four national drafts resulting in a call of 776,829 men took place. Of these men, only 46,347 actually were held to service in the Union army. A conbination of volunteers and substitutes, many of whom were paid large bounties to enlist, comprised the bulk of the one million soldiers who actually fought for the North. No other single action undertaken by the federal government from its inception so personally and immediately affected the lives of so many of its citizens.

The bureaucracy and authority for this venture was embodied in the Enrollment Act approved by Congress in March 1863. Under its provisions all fit male citizens and aliens intent on becoming citizens between the ages of twenty and forty-five were liable for military service upon the request of the president. All men called to service could legally avoid it by obtaining one of a number of offered exemptions, the most common involving physical disability. Whether able to secure an exemption or not, all drafted men were guaranteed two other means of legally avoiding military service—substitution and commutation. By providing another person to take his place or by paying a $300 commutation fee, an individual who had been called to military service could stay at home.[2]

Peter Levine is associate professor of history at Michigan State University. He wishes to acknowledge assistance from the American Philosophical Society and the New Jersey Historical Commission.

[1] Quoted in Nuria Sales de Bohigas, ''Some Opinions on Exemption from Military Service in Nineteenth-Century Europe,'' *Comparative Studies in Society and History*, X (April 1968), 268.

[2] ''An Act for enrolling and calling out the national Forces, and for other Purposes,'' ch. 75, 12

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With some modifications, including the repeal of commutation in March 1864, this act remained in effect until the close of the Civil War. Most men who were drafted avoided military service by legal means. Over 160,000 individuals who did not avail themselves of such outlets also escaped the call to arms by refusing to report to their draft boards for examination. These men were illegal draft evaders by choice and deserters by law.[3]

The American war in Vietnam not only engendered a massive draft resistance movement but also new scholarly interest in this first attempt at national conscription.[4] A central concern of this scholarship involves the policy-making process itself—specifically whether or not conscription legislation represented the conscious design of policy makers to protect the interest of propertied classes at the expense of the unpropertied poor. In this context particular attention to the commutation clause usually is treated as the cutting edge for theories of class discrimination.

Developing a theme first announced in Frederick Shannon's 1928 study of *The Organization and Administration of the Union Army*, Robert Sterling, for instance, condemns commutation as the keystone of a discriminatory policy and argues that the Enrollment Act "represents one of the worst pieces of class legislation ever passed by the United States Congress."[5] Preoccupation with commutation as the measure of the class impact of conscription also characterizes the work of Eugene Murdock and others who argue the opposite case. For Murdock, the Enrollment Act was an impartial law sensitively conceived to meet military requirements without alienating Northern citizens. Commutation, by informally keeping substitution prices under $300, represented "a concession to low-income groups" who presumably could

Stat. 731 (1863). Administration of conscription was centered in the Office of the Provost Marshal General. Its responsibilities included the division of the Union states into draft districts and subdistricts, supervision of all enrollment and drafting procedures, decisions regarding district draft quotas, responsibility for the apprehension of deserters, and appointment of all officials on the state and local level. For statistics, by congressional (draft) district, of the number of men drafted and the choice they made when drafted, see *Final Report Made to the Secretary of War, by the Provost Marshal General*, House Exec. Docs., 39 Cong., 1 sess. (16 vols., Washington, 1866), IV, 165–213. For a discussion of the draft as a spur to volunteer enlistments, see Eugene C. Murdock, *One Million Men: The Civil War Draft in the North* (Madison, 1971), 3–177.

[3] Men who failed to report are classified as deserters in *Final Report*, 30.

[4] For prominent examples of recent work, see Richard H. Abbott, "Massachusetts and the Recruitment of Southern Negroes, 1863–1865," *Civil War History*, XIV (Sept. 1968), 197–210; Adrian Cook, *The Armies of the Streets: The New York Draft Riots of 1863* (Lexington, Ky., 1974); Hugh G. Earnhart, "Commutation: Democratic or Undemocratic?" *Civil War History*, XII (June 1966), 132–42; James W. Geary, "A Lesson in Trial and Error: The United States Congress and the Civil War Draft, 1862–1865" (Ph.D. diss., Kent State University, 1976); James McCague, *The Second Rebellion: The Story of the New York City Draft Riots of 1863* (New York, 1968); Murdock, *One Million Men*; Eugene C. Murdock, *Patriotism Limited, 1862–1865: The Civil War Draft and the Bounty System* (Kent, Ohio, 1967); Arnold Shankman, "Conflict in the Old Keystone: Anti-War Sentiment in Pennsylvania, 1860–1865" (Ph.D. diss,. Emory University, 1972); Robert E. Sterling, "Civil War Draft Resistance in Illinois," *Journal of the Illinois State Historical Society*, LXIV (Autumn 1971), 244–66; and Robert E. Sterling, "Civil War Draft Resistance in the Middle West" (Ph.D. diss,. Northern Illinois University, 1974).

[5] Sterling, "Civil War Draft Resistance in the Middle West," 150. Frederick Albert Shannon, *The Organization and Administration of the Union Army, 1861–1865* (2 vols., Cleveland, 1928), II, 11–42.

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.36 - Who Joined the Confederate Army? Soldiers, Civilians, and Communities in Mississippi

Larry M. Logue

ARTICLE	Who Joined the Confederate Army? Soldiers, Civilians, and Communities in Mississippi
JOURNAL	Journal of Social History 26, no. 3 (1993)
EXCERPT	Original journal pages 611-612
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WHO JOINED THE CONFEDERATE ARMY? SOLDIERS, CIVILIANS, AND COMMUNITIES IN MISSISSIPPI

By Larry M. Logue Millsaps College

There is no shortage of testimony explaining southerners' decision to join the Confederate army. Civil War soldiers were as voluble about their reasons for enlisting as they were about their wartime experiences, and historians have found central themes in soldiers' reasons for going to war. Soldiers on both sides often simply echoed their leaders' justifications for the war, but beneath Confederate soldiers' political rhetoric lay a deeper, more personal concern for their society's racial equilibrium: the fear of life with the bottom rail on top echoes through southerners' explanations of why they were in the army.[1]

This motivation for southerners' enlistment is a considerable aid in understanding their later experiences. The fear of racial chaos turned against the Confederacy as it became clear that the government could not preserve white supremacy; massive desertion was one tangible result.[2] The double-edged nature of racist fears also helps us to understand what some historians see as the South's failure of will during the war: southern whites' commitment to some form of white supremacy may have remained unshaken even as they withdrew support from the government they had trusted with the preservation of slavery.[3]

Soldiers' stated reasons for going to war are therefore instructive, but there is still more that we can learn from the act of joining the Confederate army. It is impossible to ignore, for example, the importance of sheer numbers as a measure of the Confederacy's commitment to the war. To be sure, there is disagreement about the total number of men who joined the Confederate army and about the number of casualties, but even the low estimates demonstrate an impressive initial devotion to the cause. The majority of southern military-age males joined the army, a much larger proportion than served in the North, and more than a quarter-million died, or one in five of the South's entire military-age population.[4] These figures say nothing about why southerners fought, but the enlistment rates clearly show broad early support, and the casualty figures suggest a considerable willingness to sacrifice for the Confederacy.

Data on enlistments can answer other questions as well. Since the war began less than a year after the federal census of 1860, it is possible to identify the characteristics of many Confederate soldiers by linking the census to military records. Perhaps more important, it is also possible to find the characteristics of those who did not serve, and to compare soldiers with noncombatants. Historians have already made a few of these comparisons: one sample of military records shows a higher percentage of farmers in Confederate units than in the census; a study of three Georgia counties indicates that wealthy planters avoided service, whereas an examination of a North Carolina county shows equal enlistments among planters and others; a comparison of Union and Confederate soldiers in a Virginia county finds class differences in enlistments, as poor farmers joined planters' sons to fight against middle-class Union soldiers; and a study of an-

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other North Carolina county reveals considerable variation in enlistments from community to community.[5]

These studies suggest the complexity of the enlistment decision and the importance of local circumstances in making the decision, but their comparisons of individual soldiers and non-soldiers do not extend beyond localities. This essay focuses on enlistments throughout a southern state, using enlistees' testimony as well as the characteristics of potential soldiers to shed more light on the nature of local circumstance and on the reasons some individuals fought and others did not. Mississippi's characteristics and wartime experience make it an especially promising subject, since it embodied many of the forces that generated both support for and disaffection from the South's cause.

Support for secession was overwhelming in Mississippi, and it was the second state to leave the Union. Yet there was also a substantial undercurrent of anti-Confederate sentiment, visible in the northeastern "disloyal country" early in the war and later among bands of deserters in some of the state's south-central counties.[6] Mississippi also underwent nearly the full variety of wartime experience: some areas sustained lengthy Union occupation, others saw major battles, and still others encountered few Union soldiers before 1865.

Moreover, when they referred to their reasons for enlisting, Mississippi soldiers voiced fears similar to those described above. Few soldiers were as forthright about their racial motivations as was Will Crutcher, a planter's son in his early twenties who joined the army with one of his father's slaves as a servant. Crutcher warned that "the time for action on the part of our entire race is *swiftly passing*, and unless they all awake and get up on their feet like men, they may be compelled to forever crawl upon the ground like worms."[7] But even soldiers who were less explicit about their motivations usually shared Crutcher's conviction that society is necessarily ordered; they also shared his certainty that Union invaders meant to reverse the southern order, with former masters forced to exist somewhere beneath northerners and one-time slaves. The usual reference to this threatened topsy-turvy society was "subjugation." Newspapers warned of "subjugation, confiscation, and emancipation"; sendoff ceremonies for Confederate troops pointed to the "fanatical mercenaries who are now attempting to subjugate us to a worse than Russian despotism"; and the enlistees themselves were convinced that the Union's "cry is still for blood-conquest: Subjugation," even if it "cost[s] the Federal government more to subjugate us than it has cost up to this time."[8] Insofar as the tides of political support, the fortunes of war, and the perceived threat of racial chaos influenced enlistment, Mississippi is an ideal place for investigating the decision to join the Confederate army.

The obvious problems of scale involved in investigating enlistments in an entire state have been addressed here by sampling. The individuals studied here are 1,010 Mississippi males who were between thirteen and forty-five in 1860 (in the war's later years seventeen to forty-nine would be considered eligible military age). The men were chosen at random from the schedules of the 1860 census; they are obviously a tiny fraction of the roughly ninety thousand eligible males in Mississippi, but they are enough to be reasonably representative of the state's military-age population.[9] The principles of sampling indicate that if a hundred more samples of this size were taken, ninety-five would have characteristics that would closely approximate those of the sample used here.

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.37 - The Negro's Civil War in Tennessee, 1861-1865

Bobby L. Lovett

ARTICLE	The Negro's Civil War in Tennessee, 1861-1865
JOURNAL	The Journal of Negro History 61, no. 1 (1976)
EXCERPT	Original journal pages 36-37
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THE NEGRO'S CIVIL WAR IN TENNESSEE, 1861-1865

Bobby L. Lovett

The State of Tennessee approved the Ordinance of Secession on June 8, 1861, and the Confederate States of America's flag was raised over the capitol at Nashville on June 16, 1861.[1] Little did these white Tennesseans[2] know that their action would be reversed by the Union Army some eight months later. And little did they know that the despised and socially unwanted slave was destined to aid in the realization of the destruction of the peculiar institution of slavery. These slaves made their contributions under the most adverse conditions of racism and physical punishment that most human beings can endure. This article is intended to demonstrate the firm and postive contributions of black Tennesseans in obtaining freedom, their own dignity as men and women, and military victory for the United States of America. Such a demonstration is fitting and proper in light of our bicentennial celebrations for 1976.

Confederate Tennessee tried to exploit black labor to a great extent in its efforts to defend against approaching Yankee armies in late 1861. The state of Tennessee did impress some blacks into building forts and other fortifications, but by the winter of 1862 Tennessee had fallen into Union hands and the state government fled to Memphis.[3] As early as the spring of 1861, Memphis newspapers were publishing suggestions that free blacks be organized to help defend against the Union Army. On June 28, 1861, the Tennessee State General Assembly passed the first act in the country to draft blacks for military service. The act had the following provisions: (1) All free black males between the ages of fifteen and fifty were eligible for the draft into military labor units; (2) each laborer was to receive eighteen dollars, clothing and rations each month; and (3) sheriffs were to arrest those who refused to serve, and charge these persons with a punishable misdemeanor.[4] The quasifree blacks of Tennessee found themselves legislated into the Civil War whether they liked it or not.

The Tennessee White's paternalistic illusions (see Eugene Genovese, *Roll Jordan Roll,* 1974, on paternalism) led him to believe falsely that all slaves would remain loyal to their masters during the American Civil War. Tennesseans believed that blacks were "lazy, stupid, and unfortunate beings" who would perish without their masters and mistresses to look after them. Apparently, some blacks believed as ole "marsa" believed; however,

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Bobby L. Lovett is a member of the faculty of the History Department of Tennessee State University.

[1]Stanley F. Horn, "Nashville During the Civil War", *Tennessee Historical Quarterly,* vol. IV (March, 1945), p. 3.

[2]Free Blacks had been disfranchised by the Tennessee constitution of 1834; and, East Tennessee voted two to one against secession, according to R.L. Patton, *The Secession Movement in East Tennessee* (Nashville: George Peabody College, 1935).

[3]"The Governor's Message to the General Assembly, March 11, 1862", *Tennessee House Journal,* 34th General Assembly (Nashville, 1862).

[4]George Washington Williams, *A History of the Negro Troops in the War of the Rebellion, 1861-65* (New York: Bergman Publishers, 1888, 1968), p. 83.

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some free blacks of the City of Nashville offered their services to the Confederate cause in April of 1861.[5] Nathan Bedford Forrest[6] and other Confederate officers used their own slaves and also captured blacks for use as teamsters and servants in the Confederate Army. Generals did not trust blacks as teamsters with their supplies and arms because blacks were known to be Union spies, and to run straight for the Yankee lines if they got half the chance. The Confederacy, including Tennessee, began too late to realize that if it could prevent desertion of whites, secure enough mules, stop the planting of cotton, and secure all Negroes between the ages of eighteen and forty that the Mississippi Valley could be secured against the Yankees. But blacks flocked to the Union lines and the culminating fact was that the United States Army and its volunteer units had a better organization for utilizing black resources.[7] Such efficient utilization of that valuable source of manpower made the difference between victory and defeat for the United States.

The slaves of Tennessee, in spite of the notorious slave patrols (paddyrollers) and the threat of starvation, flocked to the Union Army encampments by the hundreds. The only welcome General Ulysses Grant and the Union Army received when they marched into Clarksville was from the crowds of ragged but jubilant blacks.[8] Union officers tried to send most of the fugitive slaves back to their masters because the army had not yet developed an official policy concerning slavery. Slave masters tried to scare the slaves by telling them that Yankees "kill all niggers".[9] However, these obstacles were not enough to stem the human tide that began to overflow from Tennessee's plantations and elsewhere. The increasing numbers of fugitive slaves forced the Union Army to make some use of them. In a letter to General Grant, some citizens of Clarksville complained that on Sunday, September 7, 1862, a detachment of 200 men from Fort Donelson took over the town and permitted stolen goods to be distributed to Negroes. They also claimed that some 200 of their slaves were sworn into the federal service (laborers) without their permission.[10] General Ulysses S. Grant and the Union Army were forced by the need of labor and the ever-present sea of black faces to develop a contraband policy, despite the fact that he and General H.W. Halleck, the commander in the West, felt that the black problem was no concern of the military.

With the approval of the Secretary of War, General Grant ordered John Eaton, a former Chaplain of the 27th Ohio Infantry Regiment, to set up a camp for contrabands. Eaton set the first camp at Grand Junction, Tennessee,[11] and later shifted it to the safety of Memphis

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[5]Williams, p. 81.

[6]The Nashville *American* (June 8, 1903) reported that Mingo Jones, former servant to General Nathan B. Forrest during the Civil War, was serving 25 years for murder and grand larceny; and certain southern citizens were determined to get parole for this faithful former slave. This, you must understand, was not neo-paternalism, but the attempt to degrade the significance of Black participation in defeating the South; one can still see statues and parks in Tennessee in honor of Forrest, but none to black soldiers.

[7]The War of the Rebellion: *A Compilation of Official Records of the Union and Confederate Armies*, vol. XXXI, pt. 1 (Washington: GPO, 1890), pp. 200-201.

[8]"Letter from Colonel W.H. Wallace to His Wife" appears in R.D. Bridges, edited, *The Papers of Ulysses S. Grant* (Carbondale: Southern Illinois University Press, 1972), 252-3.

[9]Clifton H. Johnson, *God Struck Me Dead* (Philadelphia: United Church Press, 1969), 117.

[10]"Letter from Citizens of Clarksville, Tennessee to General Grant, September 15, 1862", (Nashville: Tennessee State Archives and Library).

[11]John Hope Franklin, *From Slavery to Freedom* (New York: Alfred A. Knopf, 1974), p. 215.

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.38 - 'Equal to Any Minstrel Concert I Ever Attended at Home': Union Soldiers and Blackface Performance in the Civil War South

Peter C. Luebke

ARTICLE	'Equal to Any Minstrel Concert I Ever Attended at Home': Union Soldiers and Blackface Performance in the Civil War South
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PETER C. LUEBKE

"Equal to Any Minstrel Concert I Ever Attended at Home" Union Soldiers and Blackface Performance in the Civil War South

On July 18, 1863, pensive Union troops gathered in the gloaming outside of Charleston, South Carolina. Union general Quincy A. Gillmore had decided to assault Fort Wagner, an imposing Confederate fortification. Built of sand and palmetto logs, Wagner would serve as the proving ground for the 54th Massachusetts Infantry Regiment, a unit composed largely of African Americans and commanded by Robert Gould Shaw, the privileged son of abolitionists. As the evening deepened and fog rolled in off of the sea, the storming column formed. At around 7:45 P.M., the attack began as the Union troops moved up the narrow ribbon of sand toward Wagner at a quick-time march. All remained quiet until the men came within two hundred yards of the fort's walls. Then, as a veteran of the 54th described it years later, "Wagner became a mound of fire. . . . A sheet of flame, followed by a running fire, like electric sparks, swept along the parapet." Shaw ordered his men to charge at the double-quick, and his troops "with set jaws, panting breath, and bowed heads, charged on." In the face of the shot and shell that tore into them, followed by close-range fighting, the black troops could gain little ground during their assault. Union soldiers failed to make any lasting headway against the Confederate works. In the wake of the assault, Confederates dumped the bodies of the fallen black troops into the ditch at the front of the parapet. To express their hatred of Shaw, who had been killed during the attack, the Confederates unceremoniously dumped his corpse into the ditch to lie with his men, denying him any of the customary honors of burial befitting an officer.[1]

For many scholars, and in popular culture, the immolation of the 54th Massachusetts stands as the entire story of the assault on Wagner. Indeed, the martyrdom of Robert Gould Shaw and his men appears as an example that stands in for the Civil War as a whole among modern scholars and in popular culture. Shaw, though the child of Boston Brahmin abolitionists, had only come during the course of the war to embrace the cause of freedom. Amid the death and destruction, the 54th Massachusetts and other

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United States Colored Troops proved to the nation that they were men and belonged. Through their combat service they demonstrated courage, independence, and strength.[2]

A week later, soldiers in St. Augustine, Florida commemorated the Union assault on Wagner by enacting a far different drama. On July 22 and 25, members of the 7th Connecticut Infantry Regiment held a benefit for their comrades who had been wounded in South Carolina. Privates Henry Lardner and William H. Clark played their violins, accompanied by Sgt. Oscar W. Cornish on the guitar, Pvt. William H. Wheelock on the banjo, and Cpl. Henry H. Taylor on the bones. Sgt. John J. Cochrane and Pvt. William H. House both played tambourines, while Pvt. Henry Longden and Cpl. John H. Bario sang. One soldier even wore a dress and wig in his role as a female dancer. Rather than putting on a simple musical concert, however, the soldiers all wore blackface, made from a mixture of burnt cork and greasepaint. They mimicked the blackface minstrel shows they had seen back home in New Haven and Boston, including in their show what they considered comic songs, laughable dialogues, ribald jokes, and slapstick humor.[3] In doing so, they reassured themselves that African Americans differed little from the grotesqueries of the minstrel stage and therefore posed little threat to the social and economic status of the white troops even as emancipation and service of black men in the Union army threatened to disrupt antebellum racial hierarchies.

The role of blackface minstrelsy within the camps of northeastern white Union soldiers from urban areas—the soldiers most familiar with minstrel culture—shows how some soldiers used antebellum popular culture to render an alien land and people familiar.[4] As historian Edward L. Ayers has noted, "public and private, economic and political, religious and secular, and military and civilian are deeply connected." He advised that historians should study the Civil War from a perspective that examines the "intricate interplay of the structural and the ephemeral, the enduring and the emergent."[5] A close look at minstrel shows within the camps of Union soldiers connects the structural and the ephemeral, to show how for some troops, the Civil War deepened antebellum racism rather than mitigating or ameliorating it.

The phenomenon of minstrel shows within Union camps has been on the margins of the literature on "common soldiers" during the Civil War and scholarship on the blackface minstrel show. For the most part, those who have investigated blackface minstrelsy have stayed away from Union camps.[6] However, scholars who have studied Union soldiers during the Civil War era have said precious little about minstrel shows.[7] The exception remains David A. Cecere, who examined the racial attitudes of New

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.39 - The Shifting Terrain of Attitudes Toward Abraham Lincoln and Emancipation

Chandra Manning

ARTICLE	The Shifting Terrain of Attitudes Toward Abraham Lincoln and Emancipation
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EXCERPT	Original journal pages 18-19
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The Shifting Terrain of Attitudes Toward Abraham Lincoln and Emancipation

CHANDRA MANNING

The Mount Rushmore profile of a steadfast Abraham Lincoln gazes stoically, while the Lincoln Memorial in Washington, D.C., exudes cool, impervious steadiness. In some ways, these rock-solid memorials contrast with the instability of Americans' attitudes toward Lincoln. He was personally wary of excessive emotion yet capable of eliciting intensely emotional reactions, and attitudes toward him have changed volatilely, both during and since the Civil War. Yet rocks themselves are constantly melting down, crystallizing, combining with new elements, deteriorating a grain at a time, shattering, and transforming under pressure. Attitudes toward Abraham Lincoln, the leader who oversaw a democratic society through a convulsive war that ended slavery, have changed dramatically and along a clear time line. Views of Lincoln roiled like magma during the crisis of Civil War, proving to be volatile and unstable among even his own allies. In the wake of the president's assassination, views crystallized suddenly and divisively along regional and racial lines like erupted lava solidifying instantly when it meets cold air or water, and then fracturing sharply along clear and definite fault lines. But time did not stop in 1865. Since then the very clear positions articulated by Union soldiers, white northern civilians, black Americans, and white Confederates in the spring of 1865 have fragmented, diverged, and shifted, much as the very surface of the earth breaks down and blows about when buffeted by wind, rain, and time.

Although a clear time line with key turning points that can help us think systematically about the evolution of Americans' opinions about the sixteenth president offers a modestly novel way of thinking about a perennial subject, the fundamental insight that Americans have changed their minds about Lincoln will hardly strike readers of this journal as breaking news. The real question worth pondering is, Why have views changed so dramatically, at particular times, and

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in particular ways? Undoubtedly, numerous elements contribute to the emotional intensity and change over time, but chief among them is the realization that views of Lincoln are inextricably bound up with views of his relationship to emancipation, and both emancipation and Lincoln's role in it are inherently volatile topics. The shifts are therefore all but inevitable, and they have meaning worth pondering. To put the point another way, squabbling over whose views of Lincoln are right and wrong is a bit like assigning blame for the Grand Canyon or the Rocky Mountains. If we all focus our attention on whose fault those pesky rocks are, then we would miss the beauty of course, but we would also lose chances to consider what the layers and outcroppings tell us about how the earth forms and changes. Similarly, changes in the landscape of attitudes toward Lincoln do not result merely from personal quirks in the eye of the beholder but are themselves historically instructive and inherent to the metamorphic process of emancipation.

Because Lincoln now so regularly makes the list of top three presidents, it is easy to lose sight of how controversial and at times downright *un*popular he was while in office. Even among members of his own Republican Party, let alone non-Republican northerners, Lincoln would be hard pressed to name steadfast supporters at various points during the Civil War. In the first half of 1864, his own party seriously considered ousting him from the presidential ticket for the upcoming election. It goes without saying that he was not exactly beloved by white southerners in the years 1861 to 1865.

But one group did embrace the president in astonishingly high numbers throughout the war—Union soldiers. In fact, Union troops' affections for the president ran so deep that many referred to him in explicitly familial language such as "Uncle Abraham," "Uncle Abe," and "Father Abraham."[1] As early as 1862, when General George

1. "Uncle Abraham," Pvt. Constant Hanks, 20th New York Militia, to mother, September 13, 1863, Constant Hanks Papers, Special Collections, Perkins Library, Duke University, Durham, N.C.; "Uncle Abe," Pvt. Charles Tubbs, 10th Veterans Reserve Corps, to wife, September 17, 1864, C. H. Tubbs Letters, North Carolina Department of Archives and History, Raleigh; "Father Abraham," Pvt. George Shingle, 53rd Pennsylvania to Seth Evans, April 2, 1864, Evans Family Papers, Civil War Miscellany Collection, United States Army Military History Institute, Carlisle Barracks, Pa. For just a few of the many additional examples of soldiers referring to the president as "Uncle" or "Father," see Pvt. John Brobst, 25th Wisconsin, to Mary, September 27, 1864, in *Well, Mary: Civil War Letters of a Wisconsin Volunteer*, ed. Margaret Brobst Roth (Madison: University of Wisconsin Press, 1960), 92; Pvt. Wilbur Fisk, 2nd Vermont, to *Green Mountain Freeman*, April 9, 1865, in *Hard Marching Every Day: The Civil War Letters of Private Wilbur Fisk*, ed. Emil and Ruth Rosenblatt (Lawrence: University of Kansas Press, 1992), 322—33;

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.40 - Working for Citizenship in Civil War Contraband Camps

Chandra Manning

ARTICLE	Working for Citizenship in Civil War Contraband Camps
JOURNAL	Journal of the Civil War Era 4, no. 2 (2014)
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CHANDRA MANNING

Working for Citizenship in Civil War Contraband Camps

On a bright spring afternoon in 1863 in Corinth, Mississippi, nearly twenty-four hundred black men, women, and children marched, sang, and carried festive banners while Col. John Eaton, Chaplain James Alexander, and Gen. Lorenzo Thomas watched. At the parade's conclusion, Thomas assured the former slaves that the time had come for all of them, "men and women," to become "citizens."[1] Thomas, a former slaveholder acting as agent of the very United States government that had denied the possibility of black citizenship in the *Dred Scott* decision six years earlier, stood in the middle of a contraband camp full of refugees from slavery and extolled their U.S. citizenship. He did so partly in response to black men's Union army service, as historians have long recognized, but at that moment, he was not talking only–or even mainly—to black soldiers. He was also talking to black civilians, primarily women and children, and he called them "citizens" because the tens of thousands of black men, women, and children who placed themselves in direct contact with the U.S. government by fleeing to Civil War contraband camps throughout the occupied South altered the relationship between the central state and the individual in the United States.

Not just black soldiers but also black women, children, and noncombatant men laundered, nursed, labored, and spied for the Union, and in the process they forged a new definition of citizenship, constructed by and applicable to both men and women. Whereas before the war, claims white property-owners made on the U.S. government would have taken unquestioned precedence over claims black people made, now all the ordinary white northern farmers and clerks serving as provost marshals or picket sentries had good reason to question why the U.S. government should help a master who wanted his slaves back, if the Union could benefit by extending protection to black nurses, laborers, and laundresses instead. The bargain struck between Union soldiers and black men and women widened access to citizenship, made the federal rather than state government the

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arbiter of inclusion, and folded rights protection into what had formerly been a relationship chiefly of membership and obligation.

Looking closely at the process of redefinition that occurred in contraband camps, places where many of the hazards and tragic elements of emancipation emphasized by much recent scholarship were acute, clarifies what emancipation achieved, how citizenship happened, and at what costs both were procured. The alliances between former slaves and the Union army were uneasy, contraband camps provided improbable and usually miserable settings for reinventing citizenship, and the reinvented citizenship that emerged from the camps was full of shortcomings, but the process of reinvention still mattered. It consisted of interactions between the men of the Union army and refugees from slavery, both male and female, and those interactions merged discrete sets of ideas about membership, obligation, reciprocity, and rights into an incomplete but nonetheless new definition of U.S. citizenship as the exchange of service to the Union for positive government protection of basic rights.[2]

■ Collectively, a rich body of work on the unraveling of slavery has uncovered the political strategies of the enslaved while cautioning against exaggerating the agency black people could exercise.[3] Lately, scholars have begun to turn to the Union military as a key instrument in slavery's destruction, while bearing in mind that military forces are "unreliable vehicles for emancipation, bringing heartbreak as well as liberation."[4] Just as the institution of slavery was shot through with violence and tragedy, so too was its destruction, in the United States no less than the rest of the world, and several scholars have recently worked with great seriousness of purpose to counter excessive focus on liberation with unflinching depiction of the heartbreak.[5] Their attention to the jaggedness of wartime emancipation makes it even more surprising that the destruction of U.S. slavery in the midst of the Civil War actually did achieve the irreversible abolition of legal slavery, in contrast to the many other times and places in North American and world history in which wartime emancipation was anything but permanent.[6] So, why did permanent wartime abolition happen in the U.S. Civil War, despite some whites' determined efforts to resist it during the war and reverse it afterward? Many factors contributed, but one is that in the wake of civil war, emancipated slaves became citizens.

The origins of black citizenship go back much earlier than the Civil War to black abolitionists and their white allies who imagined a fully realized national union of hearts and minds, but no matter how fully and creatively black Americans conceptualized their own citizenship, and no matter how strongly they desired to bring it to fruition, the power to deny

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.41 - The Effect of Shortages on the Confederate Homefront

Mary Elizabeth Massey

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THE EFFECT OF SHORTAGES ON THE CONFEDERATE HOMEFRONT

By
Mary Elizabeth Massey*

The people of the Confederacy, who remained noncombatants during the Civil War, were constantly harassed by the problem of commodity shortages. Food, coffee, tea, clothing, housing, building materials, medicine, transportation facilities, paper, and hundreds of miscellaneous items were either not available or were to be had in insufficient quantities to satisfy civilian demands. The situation resulting from this deficiency became more acute and the problem less likely to be solved as the war went into its third and fourth years. Since these shortages were so numerous scarcely anyone escaped them. A North Carolina farmer, living in the Piedmont area, might have plenty to eat and a comfortable house in which to live, but he might have to do without shoes or to cut his farm acreage because an impressment officer had taken his last horse. A Richmond lady, heiress of great fortune, name, and prestige, might be able to purchase high-priced imported clothing or even stretch her extravagant pre-war wardrobe over four years, but she might be unable to purchase quinine when she contracted malaria or to have brilliant illumination for her home. A Texas business man might have meat aplenty straight from the nearby range or he might obtain costly imported merchandise by way of Mexico, but at the same time he might have no salt for his meat and no newspaper to tell him the events of the day. Everyone in some way suffered from the shortages. Some effects were far-reaching, others were trifling, but all played a part in the drama of the war.

Of all the effects of the shortages, none were so outstanding as the increased industrialization of the South during the war. In each of the eleven Confederate States, the trend toward increased industrialization was evident. The movement was largely motivated by the desire to make the Confederacy a self-sufficient nation. Some steps had

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been taken in this direction prior to the war, and the need for greater industrialization had long been recognized by such leaders as William Gregg, Daniel Pratt, and James Dunwoody Brownson DeBow. Yet when war came, the South was unprepared for so great an endeavor. Newspapers, journals, civilian and military leaders—all joined in one mighty chorus, urging the people to manufacture their needs. Thus stimulated, the people established all kinds of industrial enterprises from the banks of the James to those of the Rio Grande. The new industries varied in size. None of the new factories were as large as the older, established Tredegar Iron Works and Graniteville Mills. Many were one-man-back-room-shops or one-woman-one-loom homespun "factories." Most of the new industries were small and their output scant, and some were reminiscent of the days before the "Industrial Revolution." But, the most important point of all was the fact that the South experienced a greatly accelerated industrialization.

When the war started there were already some industrial plants in the South, and in nearly every village and city there were artisans and craftsmen who had long plied their trade. Upon these the war industrialization was based. Agencies were established in the larger towns and cities to organize and utilize this scattered force of skilled and unskilled labor. In New Orleans, in the fall of 1861, an association was formed, its object being

> to promote mechanical interests; to provide manufacturers, planters, and merchants with good mechanics and workmen; to establish an office where a register will be kept of all the members out of employment, so that employers will know where to find such as they want; and to establish a branch or branches of the association in every state of the Confederacy.[1]

Realizing the value of those who could manufacture scarce articles, newspapers undertook the task of educating an agrarian people to appreciate and accept those who worked in such pursuits. The *Southern Cultivator,* a major spokesman of agrarian interests, began the campaign in

[1]Charleston Mercury, October 24, 1861.

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.42 - 'A Rare Phenomenon of Philological Vegetation': The Word 'Contraband' and the Meanings of Emancipation in the United States

Kate Masur

ARTICLE	'A Rare Phenomenon of Philological Vegetation': The Word 'Contraband' and the Meanings of Emancipation in the United States
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"A Rare Phenomenon of Philological Vegetation": The Word "Contraband" and the Meanings of Emancipation in the United States

Kate Masur

In his 1888 history of black military service during the Civil War, the African American historian George Washington Williams reminded readers that early in the war, the Union general Benjamin F. Butler had made the "startling and revolutionary" decision to label slaves fleeing to Union army lines "contraband of war." Williams narrated a story of policy making on the ground that was already legendary and remains a staple of histories of the Civil War. In late May 1861, just weeks after the war began, three enslaved men escaped to Union-occupied Fortress Monroe, on the central coast of Virginia. Their owner, a Confederate colonel, had planned to send them south to labor for the Confederacy and soon ordered an aide to collect them. Butler, commander at the fort, was reluctant to return such valuable resources to the Rebels and recognized that the men's labor might serve the Union cause. But it was difficult to justify retaining the men against their owner's will. At this early stage in the war, the United States government was wary of confiscating Confederate property and opposed to emancipating slaves. Butler improvised. He declared the men "contraband of war," a move that provided a legal veneer for holding the men and avoided challenging their status as property. "There was considerable comment in the press, in the pulpit, and in political as well as military circles," Williams wrote. And yet, he concluded, Butler's policy of holding human beings as contraband—a policy that left unchallenged the "false idea" of human property—"died almost before the country was certain it ever had official countenance."[1]

The federal government never nationalized Butler's "contraband" policy; laws and executive orders quickly superseded his declaration. Yet as a name for fleeing slaves, "contraband" had significance beyond Williams's estimate and beyond anything Butler could have predicted. Such slaves became critical to the Union war effort, weakening the Confederacy by their flight and offering the Union valuable information and labor power. On battlefields and navy ships and in all manner of correspondence, those fugitives became "contrabands" in the parlance of military officials. Even more intriguing, the term jumped immediately into popular culture. Refugees from slavery were portrayed as con-

Kate Masur is an assistant professor of history at Northwestern University.

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[1] George Washington Williams, *A History of the Negro Troops in the War of the Rebellion, 1861–1865* (1888; New York, 1969), 70–72.

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trabands by minstrel performers, on collectible postcards, in cartoons, drawings, and oil paintings, and in publications ranging from the Democratic humor weekly *Vanity Fair* to the abolitionist *National Anti-Slavery Standard.* "Never was a word so speedily adopted by so many people in so short a time," wrote the New York lawyer and army officer Charles Cooper Nott in late 1862. The word "leaped instantaneously to its new place, jostling aside the circumlocution 'colored people,' the extrajudicial 'persons of African descent,' the scientific 'negro,' the slang 'nigger,' and the debasing 'slave.'" As Nott recognized, "contraband" was a new and noteworthy addition to the already extensive vocabulary of race and servitude in the United States. He predicted that "those who love to ponder over the changes of language and watch its new uses and unconscious growth, must find in it a rare phenomenon of philological vegetation."[2]

The "rare phenomenon" observed by Nott—the sudden explosion of "contraband" into popular culture—reflected Northern preoccupation with the meanings of emancipation and the future status of African Americans in the United States. As Nott and his contemporaries realized, people could choose among a range of words to refer to people of African descent, and different terms implied different views about black citizenship, dignity, and identity. The choice of the term "contraband" and the myriad ways people imagined the "contrabands" tell much about how Northerners, black and white, sought to make sense of the prospect of emancipation. Most fundamentally, the new usage of "contraband" signaled that the nation was at a crossroads. In the absence of other appropriate designations for fleeing slaves, the term was a placeholder whose appeal would fade once it became clear that the war would secure permanent emancipation. Because "contraband" had long been used to describe property, the term also implied the transitional status of the people to whom it referred. They were neither property with a clear owner (as in slavery) nor free people, but something in between. Some contemporaries debated and discussed the term itself: what it signified, whether and how to use it, and for how long. More often, however, people adopted it unselfconsciously and used it to express their own views on emancipation or on the character, needs, and desires of the nascent freedpeople.

Following both Nott and the cultural historian Raymond Williams, one might say that contraband is a "keyword" in the history of emancipation, race, and citizenship in the United States. Williams argued that the multiple meanings of a keyword are "inextricably bound up with the problems it [is] being used to discuss."[3] Similarly, the meanings and connotations ascribed to the term "contraband" were inseparable from the questions prospective emancipation forced Northerners to address, and they thus shed light on those questions. "Contraband" became a crucial term in the Northern debate over whether escapees from slavery were citizens in embryo or a threat to the Republic, whether they deserved respect, pity, or proscription. For Northern African Americans, the term also provided a new way of talking about difference, of defining their relationship to those just liberated from bondage.

[2] [Charles Cooper Nott], *The Coming Contraband: A Reason against the Emancipation Proclamation, not given by Mr. Justice Curtis, to whom it is addressed, by an Officer in the Field* (New York, 1862), 2–3.

[3] *Ibid.*, 2; Raymond Williams, *Keywords: A Vocabulary of Culture and Society* (London, 1976), 13. On the importance of cultural forms in the history of race and racism, see Thomas C. Holt, "Marking: Race, Race-Making, and the Writing of History," *American Historical Review,* 100 (Feb. 1995), 1–20.

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.43 - From Preliminary to Final Emancipation Proclamation: The First Hundred Days

Roland C. McConnell

ARTICLE	From Preliminary to Final Emancipation Proclamation: The First Hundred Days
JOURNAL	The Journal of Negro History 48, no. 4 (1963)
EXCERPT	Original journal pages 260-261
JSTOR	https://www.jstor.org/stable/2716329

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FROM PRELIMINARY TO FINAL EMANICIPATION PROCLAMATION THE FIRST HUNDRED DAYS*

On September 22, 1862, President Lincoln issued the Preliminary Emancipation. On January 1, 1863, approximately one hundred days later he issued the final Emancipation Proclamation. It is the purpose of this paper to identify, explain, and evaluate the reactions to the Emancipation Proclamation both at home, mainly by non-Republicans, and abroad, with special reference to the former.

First a word concerning the proclamation of the 22nd. It was a package document containing both something old and new. Lincoln, as President and Commander-in-Chief of the Army and Navy, reiterated the restoration of the union as his object of the war, promised to urge Congress again to provide for compensated emancipation, the voluntary colonization of the Negro, and promised compensation to loyal citizens for war losses incurred by acts of the United States. In addition, two acts by Congress which prohibited the return of fugitive slaves by members of the armed services and which protected them in their freedom were included. The part of the Proclamation that was new and actually revolutionary was that which read:

> "That on the first day of January in the year of our Lord, one thousand eight hundred and sixty-three, all persons held as slaves within any states, or designated part of a state, the people whereof shall then be in rebellion against the United States shall be then, thenceforward, and forever free; and the executive government of the United States, including the military and naval authority thereof, will recognize and maintain the freedom of such persons, and will do no act or acts to repress such persons or any of them, in any efforts they may take for their actual freedom."

This was followed by a statement that representation of a state in Congress on January 1, would make inoperative the proclamation in that state.

Actually, the act had already spoken for itself, even before publication for the Cabinet members, although not together

* This paper was read at the American Historical Association meeting in Chicago, Ill., December, 1962.

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on every detail of the document, agreed with it in principle.[1] Too, Governors Curtin of Pennsylvania and Andrews of Massachusetts committed the Loyal Governors' Conference to it before the conference convened and sight unseen, when the President inquired of them should he defer issuance until they requested his action.[2]

Now that it was published *The New York Times* of September 23, hailing the issuance of the proclamation as "Highly Important," referred to it as the "great event of the day" and stated "this act so long expected, so long delayed bids fair to simplify at once the issues of the war, and immediately array against each other the unconditionally loyal and the rebellious of all shades and grades. If the cause of the Union and free institutions is strongest, this test will show it, and the only question of its triumph will then be the power of the government to execute its policy with courage and vigor."[3]

The cold war soon broke out. Sides were declared, banners were raised by the traditional parties who besides fortifying their position sought to attract the uncommitted. The result was a most penetrating investigation by the press and others of the meaning and involvement of the President's proclamation.

The *National Daily Intelligencer of Washington* rendered a special service by collecting and presenting extracts from leading journals of the day on the subject. On October 7, 1862, reactions of the Republican press were given, while on October 8, reactions of the opposition, independent, and foreign press were printed.

Almost invariably, the Republican press was joyous over the issuance of the proclamation, looked upon it as an event of the ages, and regarded Lincoln, at times, with little less than divinity. The *New York Times* called it "a sublime act" by which Lincoln recreated a nation; the *New York Christian Inquirer* stated that it was the state paper of the century

[1] David Donald (Ed.) *Inside Lincoln's Cabinet, The Civil War Diaries of Salmon P. Chase* (New York, 1954) pp. 149-152.

[2] Allan Nevins, *The War For the Union*, 2 Vols. (New York, 1960) Vol. II, War Becomes Revolution, pp. 239-40.
Benjamin Quarles, *Lincoln and the Negro* (New York, 1962), p. 136.

[3] *The New York Times*, September 23, 1862.

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.44 - Enemy Women and the Laws of War in the American Civil War

Stephanie McCurry

ARTICLE	Enemy Women and the Laws of War in the American Civil War
JOURNAL	Law and History Review 35, no. 3 (2017)
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Enemy Women and the Laws of War in the American Civil War

STEPHANIE McCURRY

"We do not make war on women and children"
Illinois Private, 1862 [1]

I

One of the most important legacies of the American Civil War, not just in the re-united States of America but also in the nineteenth and twentieth century world, were the new laws of war that the conflict introduced. "Lieber's Code," named after the man who authored it for the Lincoln administration, was a set of instructions written and issued in April 1863 to govern the conduct of "the armies of the United States in the field." It became a template for all subsequent codes, including the Hague and Geneva conventions.[2] Widely understood as a radical revision of the

1. Quoted in Michael Fellman, *Inside War: The Guerilla Conflict in Missouri During the American Civil War* (New York: Oxford University Press, 1989), 203.

2. General Orders No. 100, "Instructions for the Government of Armies of the United States in the Field," prepared by Francis Lieber, LL.D., War Department, Adj. General's Office, Washington, April 24, 1863, in United States War Department, *The War of the*

Stephanie McCurry is the R. Gordon Hoxie Professor of American History in Honor of Dwight D. Eisenhower at Columbia University < sm4041@columbia.edu >. She thanks Rande Kostal of the University of Western Ontario Law School, the three anonymous manuscript reviewers for the journal, and colleagues at the University of Pennsylvania and Columbia University legal history workshops for critical feedback on the article. She also thanks her honors student, Serena Covkin, for research assistance in the early stages of the project.

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laws of war and a complete break with the Enlightenment tradition, the code, like the war that gave rise to it, reflected the new post-Napoleonic age of "people's wars." As such, it pointed forward, if not as the expression of the first total war, then at least as an expression of the first modern one, with all the blurring of boundaries that involved.[3]

In no area was Lieber's code more significant than in its meaning for the distinction between combatants and civilians, "the distinction" (as it is referred to in international law) that has constituted the foundational concept in the laws of war since at least the sixteenth century. "Upon the distinction between the civilian and combatant. . .the whole idea of the law of war depends," Geoffrey Best wrote in his classic study *Humanity in Warfare*.[4] Lieber fundamentally rewrote the distinction, breaking down the wall between soldiers and noncombatants including the assumption of women's innocence on which the identity of the civilian was (and is) premised.[5] Among other things, Lieber's code—and the laws of war—thus responded to the challenge posed by enemy women in the American Civil War.

This is an argument not yet appreciated in the literature on the American Civil War, Lieber's Code, or the laws of war as historically understood. It is in the convergence of gender and the laws of war on the terrain of history, and the particularity of Civil War developments, that the promise of new knowledge lies. One entirely unexpected element of that war was the way in which the Union military's experience with women in the path of their armies unsettled longstanding assumptions about women's political

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Rebellion: A Compilation of the Official Records of the Union and Confederate Armies (Washington, DC, 1880–1901) (hereafter cited as *O.R.*), ser. 3, vol. 3, 148–164, eHistory at The Ohio State University http://ehistory.osu.edu/books/official-records/124/0148 (June 15, 2015); and Geoffrey Best, *Humanity in* Warfare (New York: Columbia University Press, 1980), 171; see also Frank Freidel, *Francis Lieber: Nineteenth Century Liberal* (1947; reprint, Gloucester, MA: P. Smith, 1968), 387–417.

3. On Lieber's Code in the history of the laws of war, see Best, *Humanity in Warfare*, 206–11; Helen M. Kinsella, *The Image Before the Weapon: A Critical History of the Distinction between Combatant and Civilian* (Ithaca: Cornell University Press, 2011); and John Fabian Witt, *Lincoln's Code: The Laws of War in American History* (New York: Free Press, 2012). The Germans called it "*Volkskrieg,*" war of peoples. On Napoleonic War as inaugurating the age of "total war," see David Bell, *The First Total War: Napoleon's Europe and the Birth of Warfare as We Know It* (Boston: Houghton Mifflin Co., 2007). On debate about the American Civil War, see Mark Grimsley, *The Hard Hand of War: Union Military Policy Toward Southern Civilians, 1861–1865* (New York: Cambridge University Press, 1995); and Mark E. Neely, Jr., *The Civil War and the Limits of Destruction* (Cambridge, MA: Harvard University Press, 2007).

4. Best, *Humanity in Warfare*, 265; and Kinsella, *The Image Before the Weapon*, 2, 3.

5. Witt, *Lincoln's Code*, 233. Witt deals with the distinction, but not with its embedded assumptions about gender.

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.45 - Women's Role in Civil War Western North Carolina

Gordon B. McKinney

ARTICLE	Women's Role in Civil War Western North Carolina
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EXCERPT	Original journal pages 37-38
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Women's Role in Civil War Western North Carolina

GORDON B. MCKINNEY

Historians of the Confederacy have turned their attention increasingly to the home front to find an explanation for the collapse of the southern army and government in 1865. Both works of broad synthesis and narrow specialization have concluded that the destruction of civilian morale was the crucial factor that led to the massive number of desertions that left the Confederate armies unable to resist Federal advances. Moreover, several scholars have argued that women played a central role in the decline of the southern willingness to sacrifice for the cause. Drew Gilpin Faust has stated: "Southern women undermined both objective and ideological foundations for the Confederate effort; they directly subverted the South's military and economic effectiveness as well as civilian morale."[1] Faust, Paul D. Escott, Michael Fellman, Phillip Shaw Paludan, and George C. Rable have described in detail how southern women were brutalized by events of the war.[2] They have carefully documented the growing disenchantment and overt actions that compromised the Confederate drive for independence.

A study of women in western North Carolina during the Civil War confirms the broad outlines of that assessment and challenges the contention that geographical isolation created a unique society in the southern mountains.[3] Western North Carolina

Dr. McKinney is a program officer with the National Endowment for the Humanities, Washington, D.C. *A version of this article was presented at the Southern Historical Association meeting at Norfolk, Virginia, in November, 1988. The author wishes to acknowledge the financial support extended to him for this project by Western Carolina University and the National Historical Publications and Records Commission.*

1. Drew Gilpin Faust, "Altars of Sacrifice: Confederate Women and the Narratives of War," *Journal of American History*, 76 (March, 1990), 1228.

2. Paul D. Escott, *Many Excellent People: Power and Privilege in North Carolina, 1858-1900* (Chapel Hill: University of North Carolina Press, 1985); Michael Fellman, *Inside War: The Guerrilla Conflict in Missouri during the American Civil War* (New York: Oxford University Press, 1989); Phillip Shaw Paludan, *Victims: A True Story of the Civil War* (Knoxville: University of Tennessee Press, 1981); George C. Rable, *Civil Wars: Women and the Crisis of Southern Nationalism* (Urbana: University of Illinois Press, 1989).

3. See the following studies for the debate on Appalachian uniqueness: Horace Kephart, *Our Southern Highlanders* (New York: Macmillan Company, 1922; Knoxville: University of Tennessee Press, 1979); Harry M. Caudell, *Night Comes to the Cumberlands: A Biography of a Depressed Region* (Boston: Little, Brown and Company, 1963); Ronald D Eller, *Miners, Millhands, and Mountaineers: Industrialization of the Appalachian South, 1880-1930* (Knoxville: University of Tennessee Press, 1982); Henry D. Shapiro, *Appalachia on Our Mind: The Southern Mountains and Mountaineers in the American Consciousness, 1870-1920* (Chapel Hill: University of North Carolina Press, 1978); Gordon B. McKinney, *Southern Mountain Republicans, 1865-1900: Politics and the Appalachian Community* (Chapel Hill: University of North Carolina Press, 1978); Durwood Dunn, *Cades Cove: The Life and Death of a Southern Appalachian Community, 1818-1937* (Knoxville: University of Tennessee Press, 1988); Altina L. Waller, *Feud: Hatfields, McCoys, and Social Change in Appalachia, 1860-1900* (Chapel Hill: University of North Carolina Press, 1988); and John C. Inscoe, *Mountain Masters, Slavery, and the Sectional Crisis in Western North Carolina* (Knoxville: University of Tennessee Press, 1989).

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was one of the several areas in the Confederacy where no major battles were fought, large standing armies were not stationed, and few of the inhabitants were forced to leave their homes and become refugees. Despite all of those seeming advantages, women in the region were physically threatened and attacked; social, political, and economic divisions abounded; deprivation and scarcity became the normal pattern of life; and the mountain counties were a center for deserters and Unionist sympathizers. By 1864 and 1865, women in western North Carolina, with a few exceptions, had stopped supporting the war and worked actively or passively for peace.

All of that took place in a part of the South where some scholars have assumed that a more closely knit traditional society had great inherent strength to resist outside pressure. The evidence in this study suggests that for women in western North Carolina during the Civil War such insularity was not the case. In fact the events of 1861-1865 seemed predestined to force mountain women to undermine the Confederate war effort. As Jeffrey J. Crow and Paul D. Escott have observed, North Carolina civil society disintegrated under the constant pressure applied by the four years of war. That consistent battering progressively weakened social institutions and exposed many of the animosities buried beneath the state's closed social system. As the structure collapsed from the accumulated blows, the nonelite challenged the position and the assumptions of the entrenched leadership.[4] That interpretive framework explains much about the lives of women in the state's western counties during the war. The demands of the war itself were sufficient to destroy the infrastructure of mountain society. The destruction of the community economy, local institutions, and the family ensured that mountain women could not support the Confederacy. In their attempts to preserve their traditional life-style, the women of western North Carolina weakened the fight for southern independence. Opposition to the Confederacy was usually not a conscious decision—although in the case of some Unionists it was—but simply a reaction to the growing demands of the war itself. The failure of mountain society to deflect the pressures placed upon women provides an opportunity not only to assess the impact of the war but also to use the comments made by the participants to construct a more accurate picture of life in the mountain counties of North Carolina.

The traditional life of most mountain women was part of the much broader world of rural southern and American women. Western North Carolina was one of the most isolated farming regions in the United States. The 1860 census revealed an almost total absence of commercial agriculture.[5] While slavery was of greater consequence in the highland counties than previous scholars thought, there were few large commercial farms specializing in staple crops in western North Carolina. The economy was both more diversified and less advanced than in other parts of the South. Because the slave-owning elite depended upon using its bonded labor in a variety of commercial ventures to sustain its position, no single economic interest group—like cotton or rice planters—could suppress the growing influence of merchants. In fact, merchants and

4. Paul D. Escott and Jeffrey J. Crow, "The Social Order and Violent Disorder: An Analysis of North Carolina in the Revolution and the Civil War," *Journal of Southern History*, LII (August, 1986), 386-396.
5. *Eighth Census of the United States, 1860: Population* (Washington: Government Printing Office, 1864), 350-364.

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.46 - Who Freed the Slaves?

James M. McPherson

ARTICLE	Who Freed the Slaves?
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Who Freed the Slaves?

JAMES M. MCPHERSON

George Henry Davis 1886 Professor of American History
Princeton University

The traditional answer to the question posed by the title of this paper is: Abraham Lincoln freed the slaves. In recent years, though, this answer has been challenged as another example of elitist history, of focusing only on the actions of great white males and ignoring the actions of the overwhelming majority of the people, who also make history. If we were to ask our question of professional historians today, the reply would, I think, be quite different. As Robert Engs put it: "THE SLAVES FREED THEMSELVES."[1] They saw the Civil War as a potential war for abolition well before Lincoln did. By voting with their feet for freedom—by escaping from their masters to Union military camps in the South—they forced the issue of emancipation on the Lincoln administration. By creating a situation in which northern officials would either have to return them to slavery or acknowledge their freedom, these "contrabands," as they came to be called, "acted resolutely to place their freedom—and that of their posterity—on the wartime agenda."[2] Union officers, then Congress, and finally Lincoln decided to confiscate this human property belonging to the enemy and put it to work for the Union in the form of servants, teamsters, laborers, and eventually soldiers in northern armies. Weighed in the scale of Civil War, these 190,000 black soldiers and sailors and a larger number of black army laborers tipped the balance in favor of Union victory.

The foremost exponent of the black self-emancipation thesis is the historian and theologian Vincent Harding whose book *There is a River: The Black Struggle for Freedom in America*, published in 1981, has become almost a Bible for the argument. "While Lincoln continued to hesitate about the legal, constitutional, moral, and military aspects of the matter," wrote Harding, "the relentless movement of the self-liberated fugitives into the Union lines . . . took their freedom into their own hands." The

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[1] Robert F. Engs, "The Great American Slave Rebellion," paper delivered to the Civil War Institute at Gettysburg College, 27 June 1991, p. 3.

[2] Ira Berlin, Barbara J. Fields, Thavolia Glymph, Joseph P. Reidy, and Leslie S. Rowland, eds., *Freedom: A Documentary History of Emancipation 1861–1867*, ser. 1, vol. 1, *The Destruction of Slavery* (Cambridge, 1985), 2.

PROCEEDINGS OF THE AMERICAN PHILOSOPHICAL SOCIETY, VOL. 139, NO. 1, 1995

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Emancipation Proclamation, when it finally came, merely "confirmed and gave ambiguous legal standing to the freedom which black people had already claimed through their own surging, living proclamations."[3]

This thesis has received the stamp of authority from the Freedmen and Southern Society project at the University of Maryland. The slaves, write the editors of this project, were "the prime movers in securing their own liberty."[4] Barbara J. Fields has given wide publicity to this theme. On camera in the PBS television documentary "The Civil War" and in an essay in the volume accompanying the series, she insisted that "freedom did not come to the slaves from words on paper, either the words of Congress or those of the President," but "from the initiative of the slaves."[5]

There are two corollaries of the self-emancipation thesis: first, that Lincoln hindered more than he helped the cause; and second, that the image of him as the Great Emancipator is a myth created by whites to deprive blacks of credit for achieving their own freedom. This "reluctant ally of black freedom," wrote Harding, "placed the preservation of the white Union above the death of black slavery." Even as late as August 1862, when he wrote his famous letter to Horace Greeley stating that "if I could save the Union without freeing *any* slave, I would do it," he was "still trapped in his own obsession with saving the white Union at all costs, even the cost of continued black slavery."[6] By exempting one-third of the South from the Emancipation Proclamation, writes Barbara Fields, "Lincoln was more determined to retain the goodwill of the slaveowners than to secure the liberty of the slaves." Despite Lincoln, though, "no human being alive could have held back the tide that swept toward freedom."[7] But the white myth that Lincoln freed the slaves denied African-Americans credit for this great revolution; it was, writes Robert Engs, a sort of tacit conspiracy among whites to convince blacks that "white America, personified by Abraham Lincoln, had *given* them their freedom [rather] than allow them to realize the *empowerment* that their taking of it implied. The poor, uneducated freedman fell for that masterful propaganda stroke. But so have most of the rest of us, black and white, for over a century!"[8]

The self-emancipation thesis embodies an important truth. By coming into Union lines, by withdrawing their labor from Confederate owners, by working for the Union army and fighting as soldiers in it, slaves did play an active part in achieving their own freedom and, for that matter,

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[3] Vincent Harding, *There Is a River: The Black Struggle for Freedom in America* (New York, 1981), 231, 230, 228, 235.

[4] Berlin et al., eds., *The Destruction of Slavery*, 3.

[5] Barbara J. Fields, "Who Freed the Slaves?" in Geoffrey C. Ward, *The Civil War: An Illustrated History* (New York, 1990), 181.

[6] Harding, *There Is a River*, 254, 216, 223. For a similar argument, see Nathan Irvin Huggins, *Slave and Citizen: The Life of Frederick Douglass* (Boston, 1980), 77, 102–03.

[7] Fields, "Who Freed the Slaves?" in Ward, *The Civil War*, 179, 181.

[8] Engs, "The Great American Slave Rebellion," 13.

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.47 - Disloyalty and Class Consciousness in Southwestern Arkansas, 1862-1865

Carl H. Moneyhon

ARTICLE	Disloyalty and Class Consciousness in Southwestern Arkansas, 1862-1865
JOURNAL	The Arkansas Historical Quarterly 52, no. 3 (1993)
EXCERPT	Original journal pages 223-224
JSTOR	https://www.jstor.org/stable/40030849

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Disloyalty and Class Consciousness in Southwestern Arkansas, 1862–1865

CARL H. MONEYHON

IN writing about the southern Confederacy, historians sometimes assume the existence of significant dissension within the South and have attributed the ultimate Confederate loss to internal friction. Personal rivalries, regional jealousies, ideological conflict, and struggles between the states and central government all existed and have been considered important factors in the southern defeat. Recently scholars have emphasized the existence of widespread popular antagonism to the war as at least one of the major factors hampering the Confederacy's war effort. This opposition appeared in almost every southern state and was demonstrated by a variety of actions, including desertion, draft-dodging, and outright rebellion against Confederate authority. Determining the bases for these displays of hostility has been one of the more important problems faced by historians. A major outbreak against the Confederate government took place in Arkansas in the spring of 1863, and an examination of that event expands our understanding of the nature of the domestic discord in the Confederacy.[1]

Carl H. Moneyhon is a professor of history at the University of Arkansas at Little Rock.

[1]For discussion of the varieties of centripetal forces at work in the Confederacy see E. Merton Coulter, *The Confederate States of America, 1861-1865* (Baton Rouge: Louisiana State University Press, 1950), 374-404; Clement Eaton *A History of the Southern Confederacy* (New York: McMillian Company, 1954); David Donald, "Died of Democracy," and David M. Potter, "Jefferson Davis and the Political Factors in Confederate Defeat," in David Donald, ed., *Why the North Won the Civil War* (Baton Rouge: Louisiana State University Press, 1960), 79-90; Richard E. Beringer, et al., *Why the South Lost the Civil War* (Athens, Ga.: University of Georgia Press, 1986). Carl Degler, *The Other South: Southern Dissenters in the Nineteenth Century* (New York: Harper & Row, 1974), offers an overview of sources of internal opposition to the

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The most common explanation for internal conflict within the South has characterized it as an expression of individual discontent. Ella Lonn, for example, explained desertion as the result of personal suffering and the undermining of civilian morale in particular sections of the Confederacy. Albert Moore linked resistance to conscription with the hearty individualism of southerners and the failure of this policy to harmonize with the "individual instincts of southerners and with their conception of manhood."[2]

Historians have also emphasized regional conflict as another source of the broadly-based popular dissent which plagued the Confederacy. Carl Degler stressed that the hostility of mountain and non-plantation residents toward planters and planter-interests fed the strong Unionism of inhabitants in parts of Alabama, Arkansas, Georgia, North Carolina and Tennessee. Residents of these areas joined the Union Army, groups such as the Arkansas Peace Society, and partisan bands who fought Confederate troops in these areas.[3]

More recently, historians have seen growing antagonism between social classes as another factor promoting internal opposition to the Confederacy. Studies that have focused particularly on southern towns have found that at least by 1863 poor whites particularly were disillusioned with the war, and as a result they participated in food riots, evaded the draft, and resisted the collection of taxes. The discovery of class conflict as a source of wartime political dissension emerged from urban studies, but some recent work such as Wayne K. Durrill's *War of Another Kind*, a study of Washington County, North Carolina, have

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Confederate government. Ideas concerning class conflict are presented in Emory Thomas, *The Confederate Nation, 1861-1865* (New York: Harper & Row, 1979), especially see pp. 233-236.

[2]Albert B. Moore, *Conscription and Conflict in the Confederacy* (New York: The McMillan Co., 1924), 17; Ala Lonn, *Desertion During the Civil War* (New York: The McMillan Co., 1928), 3–20.

[3]Degler, *The Other South*, 184; for Arkansas see Ted R. Worley, "The Arkansas Peace Society of 1861: A Study of Mountain Unionism," *Journal of Southern History* 24 (November 1958): 445-456.

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.48 - Reluctant to Emancipate?: Another Look at the First Confiscation Act

James Oakes

ARTICLE	Reluctant to Emancipate?: Another Look at the First Confiscation Act
JOURNAL	Journal of the Civil War Era 3, no. 4 (2013)
EXCERPT	Original journal pages 458-459
JSTOR	https://www.jstor.org/stable/26062096

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JAMES OAKES

Reluctant to Emancipate?

Another Look at the First Confiscation Act

On August 30, 1861, Gen. John C. Frémont issued an order that would, among other things, emancipate the slaves of all rebels in Missouri.[1] On September 2, President Abraham Lincoln sent a friendly telegram urging the general to "modify" his order "so as to conform to the *first* and *fourth* sections" of the First Confiscation Act recently passed by Congress and signed by Lincoln on August 6.[2] Lincoln's letter to Frémont, like his later order revoking Gen. David Hunter's proclamation abolishing slavery in three states, are among the most familiar items in a very familiar narrative of events that historians cobble together to demonstrate that in the first year of the Civil War Lincoln and the Republicans were "reluctant" emancipators. Not until January 1, 1863—some twenty months after the war began—did Lincoln finally accept emancipation as a legitimate goal of the war.

Strictly speaking, of course, Lincoln did not tell Frémont he could not free slaves; he told him to "modify" his order to conform to the first and fourth sections of the First Confiscation Act. But this is a mere technicality, because in standard accounts of the Civil War, the First Confiscation Act did not free slaves either. Indeed, by passing a law that effectively did nothing, the Republican majority in Congress demonstrated it was just as reluctant to emancipate slaves as was President Lincoln. The most important source for this claim is J. G. Randall's classic account of the constitutional history of the Civil War, published almost ninety years ago. Randall dismissed the First Confiscation Act as a legal mess, so incoherent that the attorney general never even bothered issuing the instructions for implementing it.[3]

Randall's name ought to have been enough to raise cautionary flags among historians who came later. A founding father of Civil War revisionism, Randall coined the phrase "The Blundering Generation" to describe the policymakers who in 1861 irresponsibly hurled the nation into a brutal war for which there was no substantial cause. It would not have suited

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Randall's purposes to have Congress rushing back to Washington in the first summer of the war, for a special session five months ahead of schedule, and swiftly commencing to emancipate slaves. That would have suggested the war might have had something to do with slavery after all. Instead, Randall went out of his way to suppress all evidence that antislavery sentiment was strong among Republicans at the very outset of the war. Yet Randall's revisionism did not stop later historians—even those with very different inclinations—from accepting his account of the First Confiscation Act. It didn't free any slaves. How could it? The statute was a mess, so legally incoherent that the attorney general didn't even bother to issue the instructions for implementing it. Randall's account has had a remarkable shelf-life. Recent historians who would firmly dispute Randall's larger interpretation of the Civil War have continued to accept his reading of the First Confiscation Act.

What, then, was Abraham Lincoln saying when he instructed General Frémont to modify his emancipation edict to conform to the first and fourth sections of the First Confiscation Act? Section one concerned the confiscation of rebel property, and I leave it to others to explain its significance. My concern is with the fourth section, which has its own distinctive history within the larger legislative history of the bill. Sections one through three were designed to confiscate property, but section four was designed to free slaves. It was added to the bill as an amendment *after* it was reported out of the Senate Judiciary Committee. It was endorsed by overwhelming Republican majorities in both houses. But its wording was changed at the last minute. What was going on?

Lincoln had called Congress into a special session to convene on July 4 to meet the national emergency caused by the outbreak of Civil War. Several confiscation bills were quickly introduced, prompting a contentious debate over emancipation and the war, pitting antislavery Republicans against Democrats and Border State congressmen. On July 20, Republican senator Lyman Trumbull reported a confiscation bill out of the Judiciary Committee and immediately proposed the emancipation amendment that became the fourth section of the bill. It declared that any "person"—the master—"claiming to be entitled to the labor of any other person"—the slave—and who allowed the slave's labor to be used in support of the rebellion " shall forfeit all right to such service or labor, and the person whose labor or service is thus claimed shall be henceforth discharged therefrom; any law to the contrary notwithstanding."[4]

Trumbull was widely respected for his legal acumen, and in this case he had phrased his amendment carefully. Recall that the word "slave" appears nowhere in the Constitution. The fugitive slave clause, for example,

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.49 - Local Defense and the Overthrow of the Confederacy: A Study in State Rights

Frank Lawrence Owsley

ARTICLE	Local Defense and the Overthrow of the Confederacy: A Study in State Rights
JOURNAL	The Mississippi Valley Historical Review 11, no. 4 (1925)
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LOCAL DEFENSE AND THE OVERTHROW OF THE CONFEDERACY: A STUDY IN STATE RIGHTS

By Frank Lawrence Owsley

In recent years it is becoming more apparent to students of Confederate history that the Confederacy collapsed more from internal than from external causes and the most disastrous of these internal ailments was the attempt of the southern people to practice their theory of state rights during the war. This destroyed the possibility of coöperation, embittered and demoralized the people, and pitted the state governments against the Confederate government like hostile powers. This struggle between the states and the Confederate government extended into many fields, mostly related to the conduct of the war. One of the most important of these fields was the matter of local defense. It is the object of this paper to present a careful study of the policy of local defense in the Confederacy, and show how it contributed to the downfall of that government.

The military frontiers of the Confederacy stretched over many thousands of miles. Every state save Tennessee and Arkansas had long reaches of undefended sea coast, Florida alone having practically as much as the Union. Then there was the upper tier of Confederate states whose borders lay alongside the hostile frontiers of the Union, penetrated by navigable rivers radiating into the heart of the country. As if this were not enough exposure for the new-born republic, Texas and Arkansas were frontier states: to the north of them in the territories of New Mexico, Arizona, and Indian Territory lived many wild tribes of aborigines, while to the west of Texas lived the half-breed Mexicans, whose depredations under the leadership of the chieftain, Cortinas,[1] were keeping the Rio Grande country in constant turmoil. Last, but, to the southern people apprehensive

[1] Montgomery *Weekly Advertiser*, March 30, 1861; *The War of the Rebellion: a Compilation of the Official Records of the Union and Confederate Armies* (Washington, 1880-1901), Series IV, Vol. I, 74. To be cited henceforth as *Rebellion Records*.

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of servile insurrection, not least in importance, was the "home front," liable at any moment to become the most horrible and bloody battle-ground of the war. If one can visualize this situation and keep in mind the fact that the people were thoroughly steeped in the doctrines of state rights and local patriotism, he will be prepared for the inevitable military policy that undertook the defense of all these far-flung lines. The "sovereign states" built up small armies of their own, inefficient and undisciplined, withdrawing at times a hundred thousand or more men, together with arms and equipment to fit them out, all of which was sorely needed on the battle front.

However, the Confederate government did not accept this individualistic policy with meekness. Its leaders, being in a position to see the whole situation, made a stupendous effort to gather in their hands the reins of power necessary for success and to obtain possession of the men and material retained in the state forces. The constant pull of the states to retain as large forces as possible and the counter pull of the Confederate government, with the general staff point of view, to force the states to disgorge, resulted in a veritable tug of war between the central and the local governments.[2]

The study of the problem of local defense falls naturally into two periods: (I) from secession to the passage of the first conscript law in 1862; and (II) from the adoption of the conscript law until the war ended.

I. January 1861 to April 1862

The period that ends with the first conscript law may be characterized by two distinct phases: (1) the withholding by the states from Confederate service of arms and munitions of war; and (2) the witholding of men.

1. *Arms*

There were on hand two available supplies of arms and munitions of war in the South when the Confederacy was organized, and both of these were held by the states. There were the arms

[2] See *Century Magazine*, Nov., 1896 and Feb., 1897 for opinions of Duncan Rose, Gen. Stephen D. Lee, Brigadier Gen. E. P. Alexander, Maj. Gen. O. O. Howard, and Gen. Buell, as to the effects of "dispersion" caused by local defense.

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.50 - Lincoln and Colonization: Policy or Propaganda?

Phillip Shaw Paludan

ARTICLE	Lincoln and Colonization: Policy or Propaganda?
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Lincoln and Colonization: Policy or Propaganda?

PHILLIP SHAW PALUDAN

Either/or propositions are almost always misleading, at best, in describing historical events. Historical explanations ought to be more subtle and complex than *or*, especially in dealing with the nuances of political rhetoric where multiple meanings are inescapable. Every politician-statesperson knows that what he says in public—and even in private—will be seen as having a propaganda motive. Voters know that political leaders don't just speak to tell voters what's on their minds. They speak to persuade as well as to explain. When and where does the message change from being what it seems—a report on some policy that the leader obviously wants support for—to an effort to shape the public mind? Historians have had considerable trouble in drawing that line with Abraham Lincoln, and they have usually done so by taking either/or positions. One of the most significant examples of that problem arises in his December 1, 1862, Second Annual Message to Congress, discussing colonization.

One school of thought—actually one school with two faces—sees Lincoln's advocacy of colonization as direct and honest: He wanted blacks to leave the country and tried to talk them into doing so. The view was especially popular when Lincoln's love of the Union was the focus while his emancipation instincts were minimized. Writing in 1945, James G. Randall saw colonization as Lincoln's solution to many problems of race relations. That solution, Randall implied, was a good idea.[1]

Recent writers have agreed that Lincoln was straightforward in his advocacy. But this time it is certainly not a good thing. Mark E. Neely Jr. calls colonization "a profoundly racist movement" that offered "an all white country in the future." Neely notes that Lin-

1. See J. G. Randall, *Lincoln the President: Springfield to Gettysburg*, 2 vols. (New York: Dodd, Mead, 1945), 2:137 ff.

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coln abandoned the idea in 1863. Lerone Bennett in *Forced Into Glory* takes that idea and escalates it to emphasize and excoriate "racist" Lincoln and his plan. Eric Foner has been afflicted by Bennett's view. In a *New York Times* review of William Miller's *Lincoln's Virtues*, Foner says, "Lincoln's support of a policy that might be called the *ethnic cleansing* of America was no transitory fancy." Thus a modern view adopted by one of the most respected Lincoln scholars and shared by two strange bedfellows (a widely respected prize-winning historian and an editor of a popular magazine with next to no training in history) condemns the president for his racism as manifested in his colonizing plans.[2]

The other school on colonization agrees that it was not a good thing, but clears Lincoln of racial bias by seeing the idea as a propaganda tool. When racist Democrats yelled "miscegenation," Lincoln and the Republicans used colonization as political cover. In debates with Douglas, Lincoln had to respond to the Little Giant's racism (calling blacks "crocodiles," for example) with some option that would defuse it. As president, Lincoln used colonization as a smokescreen for advancing equality. "Every time [Lincoln] contemplated some new antislavery move," says Stephen Oates, "he made a great fuss about colonization." But he and his party knew that colonization was a logistical impossibility. As one Republican politician wrote privately, "Colonization is a damned humbug but it will take with the people."[3]

Recent historiography continues the debate. Articles by George Frederickson and Don Fehrenbacher show the division well. Frederickson argues that colonization was Lincoln's policy even though the president believed in the humanity of African Americans. Fehrenbacher sees colonization as "part of the process of conditioning the public mind for the day of jubilee." Most recently Michael

2. Neely, *The Abraham Lincoln Encyclopedia* (New York: DeCapo, 1982), 63; Bennett, *Forced Into Glory: Abraham Lincoln's White Dream* (Chicago: Johnson Publishing, 2000); Foner, "The Education of Abraham Lincoln," *New York Times*, Book Review Section, February 10, 2002. Foner is not quoting Bennett or even paraphrasing him.

3. Douglas quoted in V. Jacques Voegeli, *Free But Not Equal: The Midwest and the Negro during the Civil War* (Chicago, 1967), 45; Peter J. Parish, *The American Civil War* (New York: Holmes & Meier), 240–42. Oates's comment is in *Abraham Lincoln: The Man behind the Myths* (New York: Harper & Row, 1984), 101. Oates does argue that Lincoln retained a belief in colonization as part of a "salubrious" emancipation process.

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.51 - Lincoln's Grasp of War: Hard War and the Politics of Neutrality and Slavery in the Western Border States, 1861–1862

Christopher Phillips

ARTICLE	Lincoln's Grasp of War: Hard War and the Politics of Neutrality and Slavery in the Western Border States, 1861–1862
JOURNAL	Journal of the Civil War Era 3, no. 2 (2013)
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CHRISTOPHER PHILLIPS

Lincoln's Grasp of War Hard War and the Politics of Neutrality and Slavery in the Western Border States, 1861–1862

For nearly two decades, historians of the American Civil War have ascribed an evolution of Federal war policy toward civilians in the slave states. According to this interpretation, both Abraham Lincoln and his commanders initially believed the war required a limited Federal military incursion into the slaveholding states to restore order, and with it the Union. For the first year of the conflict, the Lincoln administration and military commanders stayed the "hard hand of war," implementing a benign Federal strategy that historian Mark Grimsley has termed conciliation.

Less a coherent military policy than a general sentiment, conciliation (or as historian Stephen V. Ash has termed it, the "rosewater policy") derived ostensibly from Federal war makers' collective determination to assist the perceived loyalist southern majority, believing that the mass of white slave state residents were loyal yet cowed by an aggressive secessionist minority. Military and political goals and strategies entwined as the vagaries of the ground war forced the commander in chief and leading war makers to broaden their once limited definitions of military necessity, none more written about than emancipation. Only when battlefield reverses failed to end the war did Federal authorities expand the conflict against disloyal civilians in the Confederate states, first by interfering with their "domestic institutions"—the most important being slavery—and later by initiating a "hard war" that included the destruction of civilian property and the universal emancipation of slaves.[1]

The wartime experience of the Border States, the first slave states that Federal troops reached, both assists and complicates this interpretation. The historian William Gienapp has attributed the long-held "hands-off" theory of the Lincoln administration's delicate handling of these states—as well as historians' general inattention to the actual wartime conditions in them—to the president's careful approach to two critical events: secession and emancipation. Lincoln's apparent restraint on the vexing political issue of slavery, however, belies the reality of an early hard war on the

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ground, especially in the western Border States, where Grimsley himself concedes that the framework for evolving Federal military policies toward slave state civilians works less well than elsewhere. "Indeed, in the western states generally," Grimsley writes, "in many respects, the Union army treated the region as if it were enemy country, and indeed enemy country of a particularly virulent kind."[2]

If the advent of directed destruction and confiscation of civilian property and, however infrequent, the killing of civilians judged disloyal by military personnel is the point at which conciliatory warfare gave way to hard war, it was reached not in the seceded states in the war's last years but rather in the Border States early in the conflict. Nowhere was this more evident than in the westernmost of these states, Kentucky and especially Missouri. Early on June 15, 1861, a detachment of the 2nd Iowa Volunteers debarked from a commandeered train at Stewartsville, Missouri, a sleepy northwest Missouri rail town. The unit was nearing the end of a two-day rail expedition ordered by Samuel R. Curtis to secure the Hannibal & St. Joseph line against reputed saboteurs. At several prior points, Curtis reported encountering those he called rebels, confiscating powder and secession flags, suppressing a disloyal newspaper, arresting disloyalists, and firing on others who fled. Within minutes of arriving at Stewartsville, one of the Iowans shot to death an alleged disloyalist, nineteen-year-old Donald M. McDonald. Later reports alleged that a displayed secession flag had triggered the shooting. The incident mirrored the previous month's much-publicized shooting of Illinoisan Elmer Ellsworth, a Federal officer and a former law student of the president, by a secessionist in Alexandria, Virginia. Yet this latest killing occurred in an ostensibly loyal state. In his official report, Curtis declared that the "homicide" resulted from the man attempting to fire a revolver at his troops, a charge disputed by onlookers, but the detachment's commander, Lt. Col. James M. Tuttle, averred that his soldiers were informed of the flag while still in Hannibal and they determined then to kill this disloyalist. Charges of premeditation in the young Missourian's death appeared to have little troubled Tuttle. "Perhaps I am responsible," the Iowan defiantly asserted years later when confronted publicly about the incident. "If so, I have nothing to take back. Our business down there was to put down the rebel colors and of course we commenced as soon as we saw where the work commenced. . . . His flag came down and so did he."[3]

The hard warfare early and widely evident in these slave states derived from more than Federal military personnel's collective belief in the coercive authority of a democratically elected government to discipline and punish disloyal citizens alongside enemy combatants. Some of the interference

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.52 - Military Morality Transformed: Weapons and Soldiers on the Nineteenth-Century Battlefield

Gervase Phillips

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Journal of Interdisciplinary History, XLI:4 (Spring, 2011), 565–590.

Gervase Phillips

Military Morality Transformed: Weapons and Soldiers on the Nineteenth-Century Battlefield

In the dying days of America's Civil War, Theodore Upson, a veteran Federal soldier, had almost come to the end of his long march under the command of General William Sherman. Spring 1865 found him in North Carolina with the desperate shards of the Confederate army fracturing before him and his comrades. As one more ragged, "butternut" clad regiment broke, Upson spotted a rider on a mule in a rebel artillery crew: "Just as I was going to fire something seemed to say to me: 'don't kill the man; kill the mule.' So I . . . shot the off mule just behind the front leg. He went down and that delayed them so much that we got the gun. . . . I am glad I shot the mule instead of the man."[1]

Upson's choice is testimony to the humanity of the individual soldier. He is neither the automaton of traditional military history—retreating, standing, or advancing by company, regiment, or brigade at the behest of some famous "great captain"—nor is he simply an obedient, uniformed killer to be ignored by those who might otherwise describe themselves as "social historians," interested in the lives of ordinary people. The nineteenth-century battlefield posed unique ethical challenges and demanded choices of those individuals wreathed in the acrid, thick, black smoke of gunpowder volleys. The moral and physical autonomy of the soldier, however, was frequently constrained by the tactical formation in which he was deployed (involving both the close proximity of his comrades and, crucially, his unit leaders) and by the technological characteristics of his weapons.

FORMATIONS, WEAPONS, AND MORALE

During the early years of the century, most line infantry had fought shoulder-to-shoulder in

Gervase Phillips is Principal Lecturer in History, Manchester Metropolitan University. He is the author of *The Anglo-Scots Wars, 1513–1550: A Military History* (Woodbridge, Suffolk, 1999); "Scapegoat Arm: Twentieth-Century Cavalry in Anglophone Historiography," *Journal of Military History,* LXXI (2007), 37–74.

The author thanks anonymous reviewers for advice and encouragement.

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1 Theodore Upson (ed. Oscar Winther), *With Sherman to the Sea: Civil War Reminiscences of Theodore F. Upson* (Bloomington, 1943), 159–160.

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close ranks, armed with smoothbore muskets that were inaccurate beyond 150 meters. Hence, most fire on the battlefield was delivered in mass unaimed volleys from clumsy muzzle loaders leveled in the direction of enemy formations. Good troops were those who fired fast, three or four rounds a minute. Later in the century, veteran officers and military theorists would look back upon the soldiers of Frederick the Great and the Napoleonic Wars almost as machines, when "men were drilled not trained," under a system of frequently brutal physical discipline that taught them to repeat the actions of loading and firing as if by reflex, even when gripped by the acute anxiety of battle. Under the eyes of their comrades, fear of shame fixed them to their ground; if terror overcame honor, the close proximity of officers, sergeants, and corporals ensured that they could physically be forced back into their place, by half-pike or the flat of a sword.[2]

The mass of line infantrymen (as opposed to specialist "sharpshooters" or riflemen fighting in open formations and deliberately choosing their targets) would rarely be confronted directly by the ethical reality that their own shots were killing and mutilating other human beings. Not only did they deliver these shots *en masse,* thereby diluting any sense of individual responsibility, but, in a major engagement, they also were unlikely to see the effects of their fire clearly. On a still, windless day in the black-powder era, soldiers in the line of battle were soon almost blind. After a sharp engagement outside Charleston, South Carolina, in late 1864, Colonel George Harrison, 32d Georgia Infantry, recalled "the dense smoke from the enemy's fire, which from the peculiar state of the atmosphere did not rise, but hid us from the sight of the foe. It was so thick that in places a man could not be seen [at] five paces." Similarly, his compatriot Joseph Shelby wrote tellingly of battle's "wild powder gloom" that grew darker and darker until pierced by nothing but the flashes of musket fire.[3]

Throughout the course of the nineteenth century, a nexus of factors—social, cultural, and technological—would gradually

2 A. F. Becke, *An Introduction to the History of Tactics 1740–1905* (London, 1909), 37; Rory Muir, *Tactics and the Experience of Battle in the Age of Napoleon* (New Haven, 1998), 68–104.

3 *The War of the Rebellion: A Compilation of the Official Records of the Union and Confederate Armies* (Washington, D.C., 1880–1901) (hereinafter OR), Series 1, Vol.35, Pt. 1, Report of Colonel George P. Harrison, of action at Burden's Causeway, John's Island, 255; Series 1, Vol.22, Pt. 1, Report of Col. Joseph O. Shelby, commanding Fourth Missouri Cavalry Brigade, December 7, 1862, 151.

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.53 - The Common Soldier of the Civil War: His Rise and Fall

Gerald Prokopowicz

ARTICLE	The Common Soldier of the Civil War: His Rise and Fall
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REVIEW ESSAY

The Common Soldier of the Civil War

His Rise and Fall

GERALD PROKOPOWICZ

This historiographical essay looks at the concept of the so-called common soldier of the Civil War, as it has evolved in the writing of scholarly and popular historians since the Second World War. It organizes the historiography into three eras, the first defined by Bell Wiley's books about "Johnny Reb" (1943) and "Billy Yank" (1952). The second era, commencing after the Vietnam war, saw challenges to Wiley's interpretation of Civil War soldiers as essentially nonideological and began to incorporate statistical analysis to supplement traditional interpretive techniques. In the twenty-first century, historians of the dark turn era have made increasing use of digital tools while continuing to examine aspects of soldiers' aggregated experiences. The essay concludes that the next direction for the field may be to abandon the "common soldier" construct and to focus on the political, regional, generational, ethnic, religious, racial, and other differences among Civil War soldiers, rather than their assumed commonalities.

For the first seventy-five years after the end of the Civil War, the scholarly world paid remarkably little attention to the experiences of the individual who fought in the ranks, the so-called common soldier. This would change shortly after the Second World War, with the publication of works by Bell I. Wiley, but it would be another forty years before academic historians began to address the topic in earnest. At the end of the 1980s, professional historians finally took part in feeding the long-standing public appetite for writing about soldier life, producing a wide range of studies of the common soldier that moved beyond the details of what the soldiers ate and wore to focus on what they thought and felt. As with many historiographical trends, individual examples of common soldier studies grew increasingly specialized, while the conceptual tools used to produce them became more sophisticated. In the first decade of the twenty-first century, historians sought to explore aspects of the lives of Civil War soldiers that

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previous generations had avoided, or not even imagined. Today, thirty-five years since the first modern publications on the topic, historians are rethinking its central premise. The very existence of a "common soldier" who can be credibly and usefully described has been called into question, while contemporary events have created an imperative to expose and explain more forcefully the full range of political and ideological stances that motivated individuals to fight in the Civil War.

■ The first wave of memoirs written by men in the ranks appeared in print in the 1880s, just as the professionalization of historical study was taking hold in the United States, but their topic failed to attract the attention of professional historians. Readers curious about the vicissitudes of the life of the common soldier had to extrapolate from individual veterans' works, such as *Detailed Minutiae of Soldier Life in the Army of Northern Virginia 1861–1865* (1882) by Carlton McCarthy, *Co. Aytch, First Tennessee Regiment, or a Side Show of the Big Show* (1882) by Sam R. Watkins, and *Hardtack and Coffee: The Unwritten Story of Army Life* (1887), by John D. Billings.[1] These classics of Civil War literature, along with numerous regimental histories written by veterans in the last decades of the nineteenth century, provided readers with glimpses into the otherwise unwritten story of army life, but they were neither comprehensive nor entirely trustworthy. Providing historically accurate accounts of what they experienced was only one among many motives that impelled veterans to write; they also sought to entertain, to normalize and justify their participation in the rebellion, to make money, or to leave a record for the future. Their writing was necessarily shaped and sometimes distorted by the processes that affect memory with the passage of time. These authors were neither interested in producing systematic analyses of their topic nor trained to do so.

For their part, nineteenth- and early-twentieth-century professional historians were equally uninterested in the experiences of ordinary Civil War soldiers. The editors of *Century* magazine solicited written accounts from generals and political leaders, to be published as the four-volume set *Battles and Leaders of the Civil War,* but no systematic effort was made to collect oral reminiscences from surviving rank-and-file veterans. Stories told by garrulous GAR or UCV members of their wartime exploits must have seemed as common as passenger pigeons, and thus as little in need of preservation. Even as the Civil War generation approached its extinction in the 1930s, no projects appeared on the scale of the federal WPA slave narratives or the privately organized Lincoln Inquiry of Indiana, to interview and record the memories of the last of the war's 2 million combatants.[2] By

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.54 - Conflict, Chaos, and Confidence: Abraham Lincoln's Struggle as Commander in Chief

Elizabeth Brown Pryor

ARTICLE	Conflict, Chaos, and Confidence: Abraham Lincoln's Struggle as Commander in Chief
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ELIZABETH BROWN PRYOR

Conflict, Chaos, and Confidence

Abraham Lincoln's Struggle as Commander in Chief

The Grand old Duke of York,
He had ten thousand men.
He marched them up to the top of the hill
And he marched them down again.
When they were up, they were up.
And when they were down, they were down.
And when they were only halfway up
They were neither up nor down.

Variations of "The Grand Old Duke of York" had been a popular children's verse for 200 years when Abraham Lincoln became president. He may have known the song, for he liked such ditties, and liked to commit them to memory. However, in 1861 under threat of fratricidal war, he certainly had no desire to follow the old duke's example.[1]

Yet, Lincoln's term as commander in chief did come to mirror the awkward to-and-fro of the nursery rhyme. The war-era public was haunted for nearly four years by the specter of a colossal Union army that often moved to uncertain purpose. This was particularly true for the armies in Virginia, but was evident across the entire landscape of strife. Historical observers, contemporary and modern, have grappled with the sixteenth president's part in this unsettling spectacle. Some have seen him as a glorious beacon, lighting the North's path to victory, despite the missteps of his generals. Latter-day historians have credited him with being "a better natural strategist than most trained soldiers," with making sagacious appointments or pioneering

Elizabeth Brown Pryor was an independent historian and the author of Six Encounters with Lincoln: A President Confronts Democracy and Its Demons*, published posthumously in 2017.*

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new organizational structures.[2] Recently, some writers have admitted Lincoln made mistakes, but have muted them, maintaining he was "overburdened" and improved during the contest, or that his choices were the best available at the time.[3] The more effusive have claimed his military direction was wise, flexible, and nonpartisan, and some have credited him with singlehandedly winning the war. Herbert Mitgang sang the refrain in a chorus of praise: "Lincoln proved to have the instincts of a brilliant Commander in Chief."[4]

During the Civil War this was not the generally accepted opinion. Military officers and government men saw Lincoln's "flexibility" as waffling. "The Prest. is an excellent man, and, in the main wise; but he lacks *will* and *purpose*, and, I greatly fear he, has not the *power to command*," worried his loyal attorney general, Edward Bates. Learning on the job meant there were disconcerting swings between *laissez-faire* and micro-management that undermined presidential authority and bewildered the troops. Nathaniel Banks, an inept political general whom Lincoln stubbornly protected, complained of this, echoing the old rhyme. Washington was "a panic city," he said; there "they go up & down without much reason." At war's end, Lincoln's standing with his command had actually deteriorated. John Codman Ropes, who was heavily involved in the Union effort, concluded, "Few men at the head of affairs during a great war have ever given such evidence of unfitness to have any general direction over military men as Mr. Lincoln."[5]

Lincoln's presidency was undoubtedly the central spindle of the war, around which every major event was spun. However, the majority of officers under his command agreed with Ropes's somber assessment. This examination, based on hundreds of archival collections, reflects the observations of some 2,000 high-ranking participants in the war. Memoirs have been used sparingly: their limitations are well known, and the rich primary material renders them largely unnecessary. The range of voices is striking. The words are those of raw infantry captains and seasoned naval commanders; skeptical Democrats and Republican insiders; western mavericks and West Point regulars; pampered politicos like Banks; and a vast number of men whose goal was saving the Union, regardless of party leanings. Even more impressive than the diversity of personalities is the near unanimity of their belief that

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.55 - The Confederate Belle: The Belle Ideal, Patriotic Womanhood, and Wartime Reality in Louisiana and Mississippi, 1861-1865

Giselle Roberts

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The Confederate Belle: The Belle Ideal, Patriotic Womanhood, and Wartime Reality in Louisiana and Mississippi, 1861-1865

By GISELLE ROBERTS*

Eliza Lucy Irion was born on March 3, 1843, in Tishomingo County, Tennessee. The eighth child of McKinney and Lucinda Gray Irion, Eliza grew up knowing both the challenges of life on the frontier and the leisure that wealth and slaves afforded. Her childhood was filled with grief and hardship, for Eliza's mother died in 1846, and her father's bad investments required the sale of their home and property to satisfy his debtors. By her adolescence, Eliza and her family had moved to Lowndes County, Mississippi, where McKinney sought from his affluent sisters financial help to re-establish himself and provide his daughters with the education and social training they required. In 1855, Eliza attended Columbus Female Institute, and by 1858, she settled into the school routine at Corona Female College in Corinth, Mississippi.[1] Amidst days of studying the classics, geography, rheto-

*The author is a research associate in History at La Trobe University, Melbourne, Australia. The author wishes to thank William J. Breen, Warren Ellem, and John A. Salmond for their suggestions and encouragement.

[1]For a biographical account of Eliza Lucy Irion, see Mary Edna Lohrenz and Anita Miller Stamper, *Mississippi Homespun: Nineteenth-Century Textiles and the Women Who Made Them* (Jackson, Miss., 1989), 28-33.

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ric, philosophy and Latin, she recorded the daily pattern of her life. "System was in everything," she recalled later. "No hurry. No fuss. There was a bell for rising; a bell for breakfast; a bell for prayers; a bell for study hour; a bell for recreation; a bell for supper; a bell for prayers (evening); a bell for retiring."[2]

Eliza may have hated the monotony of school life, but she was aware of its importance. Indeed, Corona Female College furnished her with the educational and social skills that prepared her for her life as belle, and later, as a wife, mother, and mistress. As she graduated on the eve of the American Civil War, Eliza anticipated the visits, parties, and balls that would characterize her formal induction into elite society. Throughout 1861 she was not disappointed. Receiving visitors and partaking in the pleasures of society, Eliza still found time to maintain her study of Latin and "took notes on the history of England."[3] When she became tired of crochet work, or indeed "work of any kind," she "took up Burn's poetical works and amused [herself]."[4]

Unlike young ladies in other parts of the Deep South, Eliza enjoyed frequent male company well into 1862. "Columbus has been so gay for the last two months," she wrote her brother in August of that year. "We girls have enjoyed ourselves greatly." While she acknowledged that the removal of soldiers from the region would "put a stop to our fine times," she was thankful that she and her friends had "gathered our rosebuds of pleasure whilst we might," for the future looked uncertain and "gloomy."[5]

Eliza Lucy Irion's existence typified that of young Southern ladies. The myth of the belle, however, has become synonymous with the fictional character of Scarlett O'Hara. Such lavishly dressed, self-assured, charismatic young ladies so commonly found in motion pictures rarely appear in antebellum letters and diaries. The myth pervades and distorts popular historical per-

[2]Eliza Lucy Irion-Neilson diary, Irion-Neilson Papers, Mississippi Department of Archives and History, book 2, 3. For an analysis of Corona Female College see Ricky Harold Gray, "Corona Female College (1857-1864)," *Journal of Mississippi History*, 42 (1980): 129-34. For an account of daily school life see, for example, Steven M. Stowe, *Intimacy and Power in the Old South: Ritual in the Lives of the Planters* (Baltimore, 1987), 137-38.

[3]Eliza Lucy Irion-Neilson, *Lucy's Journal* (Greenwood, Miss., 1967), 18.

[4]Eliza Lucy Irion-Neilson diary, January 1, 1861.

[5]Eliza Lucy Irion to Jim Irion, August 26, 1862, Irion-Neilson Papers. See also John Q. Anderson, ed., *Brokenburn: The Journal of Kate Stone, 1861-1868* (Baton Rouge, 1995), 67.

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.56 - Re-Enlistment Patterns of Civil War Soldiers

John Robertson

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Journal of Interdisciplinary History, XXXII:1 (Summer, 2001), 15–35.

John Robertson

Re-enlistment Patterns of Civil War Soldiers

The volunteers of 1861 hold a special place in the hearts of Civil War historians. Early Union volunteers are usually described as an eclectic citizen army created by a fusion of farmers, white-collar workers, and skilled workers. Conversely, men enlisted or conscripted after 1862 were the "dregs" of society. This consensus leads to a belief that the re-enlistment of these occupational groups was crucial to the Union's ultimate victory. One problem with crediting victory to the re-enlistment of certain occupational groups is the lack of information about the social characteristics of the soldiers who re-enlisted.[1]

This study examines descriptive data about Union soldiers from companies raised in western Pennsylvania to determine the effect of their re-enlistment on the social profile of the army. It presents the age, prewar residence, and prewar occupations of the soldiers at three points in time—at enlistment, or the spring and summer of 1861; during the re-enlistment campaign, or December 1863; and after re-enlistment, or the spring of 1864. Each point reveals identifiable patterns in the soldiers' persistence or exit from service.[2]

John Robertson is a graduate student in social history, Carnegie Mellon University. The author would like to thank Glen Asner, Gerry Fitzgerald, and Darrell Meadows for suggestions; Ed Constant, David Hounshell, David Miller, Judith Modell, Peter Stearns, and Joe Trotter for comments; Joel Greenhouse and Mario Trottini for help with the numbers; Anqi Qian for help with the figures; Scott Sandage for direction in the final version; and, especially, Kate Lynch for guidance throughout. The author also thanks the staffs at the Soldiers and Sailors' Memorial in Pittsburgh, The United States Army Military History Institute, and the Heinz History Museum in Pittsburgh for their knowledge and patience.

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1 On the importance of the 1861 volunteers, see Gerald R. Linderman, *Embattled Courage: The Experience of Combat in the American Civil War* (New York, 1987), 2; Emily J. Harris, "Sons and Soldiers: Deerfield, Massachusetts and the Civil War," *Civil War History: A Journal of The Middle Period,* XXX (1984), 157–171; Bruce Catton, *The Army of the Potomac: A Stillness at Appomattox* (Garden City, 1953), 33–34; Reid Mitchell, *The Vacant Chair: The Northern Soldier Leaves Home* (New York, 1993), 153; Bell Irvin Wiley, *The Life of Billy Yank* (Baton Rouge, 1971), 343; Earl J. Hess, *The Union Soldier in Battle: Enduring the Ordeal of Combat* (Lawrence, 1997), 91.

2 The Confederacy unilaterally extended the enlistment terms of its soldiers to the duration of the war. James W. Geary, *We Need Men: The Union Draft in the Civil War* (DeKalb, 1991), 6.

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The results indicate that although farmers, skilled workers, and white-collar workers were strongly represented in the volunteer class of 1861, and three years of service did not change the social profile of the army, these classes of soldiers were underrepresented among the soldiers who re-enlisted in 1864. Therefore, re-enlistment appears to have created an over-representation of laborers and men with "no occupation" in the "veterans" of 1864. Correlating the results with the social history of western Pennsylvania and its mid-nineteenth-century trend of out-migration suggests that the re-enlistment decisions of Civil War soldiers were positively influenced by a rural origin.[3]

ONE SOLDIER'S STORY In December 1863, Corporal William T. Shimp of Company A of the 46th Pennsylvania Volunteers claimed that he was ready to leave the Union army at the first legal opportunity. He had enlisted in October 1861 with the first three-year volunteers. Even after serving in the battles of Antietem, Chancellorsville, and Gettysburg, he had still maintained, "If we are not victorious in this war our hopes for free speech, free press, and constitutional rights are gone. Therefore I am willing to serve the government until rebellion is crushed, and the south subjugated and brought to terms, and every southern traitor made know his place." He changed his mind sometime during the next few months.[4]

Shimp wrote a series of letters to his fiancée about the government's attempt, from November 1863 to January 1864, to persuade three-year volunteers to re-enlist for another term of service. He doubted that many men would re-enlist for the government's offer of a $402 bounty and month-long furlough but was astonished to discover that his brother, who served in the same company, was willing to do so. The letters make it clear that the government did not give up on Shimp, and those like him, easily. It resorted to the free flow of alcohol, propaganda promis-

3 The term "veteran" as used herein refers to those men who re-enlisted in the Union army. Soldiers who served for three years but mustered out were not designated by this official term. Rural soldiers were those who came from communities with populations numbering less than 2,500. Phillip Shaw Paludan, *"A People's Contest": The Union and Civil War 1861–1865* (New York, 1988), 151, notes that more than 70% of the North's population was rural.

4 William T. Shimp, Company A, 46th Regiment, ASL (autograph letter signed) (photocopy), August 13, 1863, Shimp Collection, United States Army Military History Institute.

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.57 - Hoosier Women and the Civil War Home Front

Thomas E. Rodgers

ARTICLE	Hoosier Women and the Civil War Home Front
JOURNAL	Indiana Magazine of History 97, no. 2 (2001)
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Hoosier Women and the Civil War Home Front

*Thomas E. Rodgers**

In recent years there has been a growing interest among historians in the experiences of women during the American Civil War. A number of works on southern women have examined the impact of the war upon the daily lives of planter- and yeoman-class women and the roles played by them in both supporting and undermining the Confederate war effort. Most of the studies of northern women have focused on those who served in hospitals or in various relief agencies.[1]

This article seeks to add to this growing branch of Civil War and women's history by analyzing the experiences of Hoosier women who remained at home. Through a study of the fifteen west-central Indiana counties that constituted the Seventh and Eighth congressional districts, this article addresses two key questions: to what degree did the war force married women into traditionally male roles; and why did women venture so far into the public sphere during the war and then retreat from it after Appomattox.[2]

The vast majority of women in antebellum west-central Indiana lived rural lives. In 1860, the region contained only two cities, Lafayette (population 9,387) and Terre Haute (population 8,594), and two towns, Greencastle and Crawfordsville, that were large enough to be defined as cities during the war. These places combined contained only 9.1 percent of the region's population in 1860. Even

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*Thomas E. Rodgers received his Ph.D. in American history from Indiana University and is the author of "Dupes and Demagogues: Caroline Kraut's Narrative of Civil War Disloyalty," *Historian* (Spring 1999). The author wishes to thank the Indiana Historical Society for helping to fund the research on which this article is based with a Clio Grant.

[1]Drew Gilpin Faust, *Mothers of Invention: Women of the Slaveholding South in the American Civil War* (Chapel Hill, N.C., 1996); George C. Rable, *Civil Wars: Women and the Crisis of Southern Nationalism* (Urbana, Ill., 1989); Catherine Clinton and Nina Silber, eds., *Divided Houses: Gender and the Civil War* (New York, 1992); Elizabeth D. Leonard, *Yankee Women: Gender Battles in the Civil War* (New York, 1994); Mary Elizabeth Massey, *Women in the Civil War* (1966; Lincoln, Neb., 1994); Peggy Brase Seigel, "She Went to War: Indiana Women Nurses in the Civil War," *Indiana Magazine of History,* LXXXVI (March 1990), 1-27; and Jeanie Attie, *Patriotic Toil: Northern Women and the American Civil War* (Ithaca, N.Y., 1998).

[2]In 1860, the eight counties of the Seventh Congressional District were Clay, Greene, Owen, Parke, Putnam, Sullivan, Vermillion, and Vigo, while the seven counties of the Eighth Congressional District were Boone, Carroll, Clinton, Fountain, Montgomery, Tippecanoe, and Warren.

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adding the region's eleven towns of 500 or more, the combined population still only represented about 13.4 percent of the population. Even in the two counties containing Lafayette and Terre Haute most people lived in a rural or small-town setting.[3]

Typical of most of the region, Parke County was predominantly rural with a few large towns and contained both Democratic and Republican townships.[4] Most of the women were young; about half of them were between 18 and 30. Most were married, and most lived in a household headed either by their husbands or their fathers. Most female-headed households either contained an adult male or were located near adult male relatives. Men also rarely lived in a household without women. Even most young, single males lived either at home, with an employer, or with a married brother.[5]

Very few women were involved in any kind of occupation outside the home. Most of the women who were employed worked in domestic fields such as sewing or as house servants. In the townships surveyed, only thirteen women worked at occupations not closely associated with housework; one worked in a factory and twelve in teaching. All but one of the women listing an occupation were single or widowed. The women who were occupied outside their homes made up 2.5 percent of adult females.[6]

Female literacy rates suggest that most women in west-central Indiana had some education. Although most of the women surveyed were listed as being literate, female literacy varied widely from township to township and appears to be associated with political affiliations. In Penn Township (Parke County), in which more than nine of ten voters were Republicans, all of the adult women were literate. In Jackson, the county's banner Democratic township, 44.3 percent of the women were illiterate, the highest rate in the county. While Jackson's figure is unusually high, some other heavily Democratic townships in the region also exhibited high female illiteracy. In Sullivan

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[3]U.S. *Eighth Census, 1860*: Vol. I, *Population*; U.S., *Ninth Census, 1870*: Vol. I, *Population*. See Thomas E. Rodgers, "Northern Political Ideologies in the Civil War Era: West-Central Indiana, 1860–1866" (Ph.D. dissertation, Indiana University, 1991), 1-66, 91-124; Gregory S. Rose, "Hoosier Origins: The Nativity of Indiana's United States-Born Population in 1850," *Indiana Magazine of History,* LXXXI (September 1985), 201-32; and Robert M. Taylor, Jr., and Connie A. McBirney, eds., *Peopling Indiana: The Ethnic Experience* (Indianapolis, 1996).

[4]On nineteenth-century rural midwestern women see John Mack Faragher, "History from the Inside-Out: Writing the History of Women in Rural America," *American Quarterly,* XXXIII (Winter 1981), 537-57; Faragher, *Sugar Creek: Life on the Illinois Prairie* (New Haven, Conn., 1986); Susan E. Gray, *Yankee West: Community Life in the Michigan Frontier* (Chapel Hill, N.C., 1996); and Logan Esarey, *The Indiana Home* (1943; Bloomington, Ind., 1992).

[5]Rodgers, "Northern Political Ideologies," 66-67.

[6]On rural women see Gray, *Yankee West*, 109-10; Joan M. Jensen, *Loosening the Bonds: Mid-Atlantic Farm Women, 1750–1850* (New Haven, Conn., 1986); and Nancy Grey Osterud, *Bonds of Community: The Lives of Farm Women in Nineteenth-Century New York* (Ithaca, N.Y., 1991).

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.58 - 'Twenty-Negro,' or Overseer Law: A Reconsideration

John M. Sacher

ARTICLE	'Twenty-Negro,' or Overseer Law: A Reconsideration
JOURNAL	Journal of the Civil War Era 7, no. 2 (2017)
EXCERPT	Original journal pages 269-270
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JOHN M. SACHER

"Twenty-Negro," or Overseer Law

A Reconsideration

On October 11, 1862, the Confederate Congress revised its conscription policy. The original act, passed in April 1862, had provided a list of exemptions for essential home-front occupations, including Confederate and state officers; mail carriers; teachers; nurses; printers; apothecaries; ministers; employees in mines, furnaces, and foundries; and men working on the railroads. In thinking about the requirements of the home front, legislators had forgotten several fundamental needs, among them the need to supervise the nation's slave population. In the antebellum South, the control of slaves, particularly on plantations, often rested in the hands of white overseers. In addition to performing their police role, overseers also contributed to crop yield, as white southerners presumed slaves worked more efficiently and produced larger crops under direct white supervision. The modified conscription law recognized the Confederacy's need for overseers: it stipulated that in order "to secure the proper police of the country" on each plantation with twenty or more slaves on "which there is no white male adult not liable to military service," one person shall be exempted from conscription while engaged as an overseer.[1]

This exemption, more commonly known as the "twenty-negro" or "twenty-slave" law, merits a close reexamination in its historical context focusing on the demand for it, its multiple iterations, and its enforcement. Such investigation leads to the conclusion that the legislation should properly be termed the "overseer" law, not the "twenty-negro" law. The measure should not be considered solely in terms of its effect on class relationships in the Confederacy. Instead, it represented an attempt to balance the competing needs of the Confederate army (an insatiable demand for soldiers) and the home front (food production and slave control). Additionally, sensitive to its potential to undermine class harmony, Confederate legislators, in response to criticisms, twice altered the law to mitigate social conflict. When one examines these factors, one is struck not by politicians' callousness toward common folk but instead by their sincere efforts to achieve

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the competing goals of maintaining an army in the field, supervising the Confederacy's slave workforce, and keeping the support of non-slaveholders. Also, the government closely regulated who could take advantage of the overseer law's provisions. In fact, the best evidence available indicates that less than 10 percent of southern planters received exemptions, and they often received exemptions for experienced overseers, not for themselves or their sons.

Nevertheless, the law, particularly when considered in conjunction with both the ability of prospective conscripts to provide substitutes in their place and perceived abuses of the exemption system, fueled allegations during and after the war that the conflict had become a "rich man's war and a poor man's fight." In an often-cited letter, Mississippi senator James Phelan admonished Jefferson Davis, "Never did a law meet with more universal odium than the exemption of slave owners." Writing two months after the measure's passage, Phelan, who had voted against the exemption and planned to propose a new law rescinding it, contended that even planters recognized its "gross injustice" and that "its influence on the poor is most calamitous." Specifically, Phelan warned that recusant conscripts had banded together to resist the measure and that it had planted seeds of revolt within the army.[2]

Many scholars have adopted Phelan's opinion of the overseer exemption; they posit the twenty-negro law as a key plank in their argument that the Confederacy collapsed from internal class fissures. The traditional view of Confederate conscription starts with Albert Burton Moore's 1924 *Conscription and Conflict in the Confederacy*, which remains the standard text on the subject. Moore proclaimed that the twenty-negro law "caused much dissatisfaction among the masses and in the ranks. It was regarded as pure class legislation." Other historians agree. In *Masters without Slaves*, James Roark contends that "the law allowed planters and their sons to avoid conscription." Paul Escott, in *After Secession*, blames the twenty-negro law for "open[ing] a breach between the planter class and the small farmers and non-slaveholders."[3]

Some scholars who emphasize a Confederacy imploding from class conflict have been even more polemical in their attacks on the law and the planter class. Carlton Beals condemns the measure as keeping "plantation owners and all of their male relatives who were cowards out of the fighting." In several books, David Williams assails Confederate politicians as destroying the nation by favoring planters over plain folk. In arguing in favor of class division, he excoriates the twenty-slave law as "perhaps the most widely hated act ever imposed by the Confederacy," and he claims that it "defined the nature of the war for an entire class of southerners."

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.59 - The Inhospitable Hospital: Gender and Professionalism in Civil War Medicine

Jane E. Schultz

ARTICLE	The Inhospitable Hospital: Gender and Professionalism in Civil War Medicine
JOURNAL	Signs 17, no. 2 (1992)
EXCERPT	Original journal pages 363-364
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The Inhospitable Hospital: Gender and Professionalism in Civil War Medicine

Jane E. Schultz

AMERICAN WOMEN were enthusiastic in their support of medical efforts during the Civil War. They used their homes, schools, and churches as manufactories for medical and sanitary supplies distributed by benevolent organizations. Although the majority of women stayed at home to farm or look after business interests, a sizable number went to work outside of the home in order to support families left indigent by the absence of male breadwinners who had become soldiers.[1] Of those who left home to earn a living, over twenty thousand sought work in the military hospitals of the Confederacy and the Union.[2] They were women of the Eastern Seaboard, the Deep South, and the Middle West. They were adolescent slaves, Catholic

I wish gratefully to acknowledge Linda K. Kerber and Martin Pernick, who read earlier versions of this article and provided sound advice.

[1] Alice Kessler-Harris discusses the increase of women working outside the home during the Civil War in *Out to Work: A History of Wage-earning Women in the United States* (New York: Oxford University Press, 1982), 75–78; see also James McPherson, *Battle Cry of Freedom: The Civil War Era* (New York: Oxford University Press, 1988), 449–50; Peggy Brase Seigel, "She Went to War: Indiana Women Nurses in the Civil War," *Indiana Magazine of History* 86, no. 1 (March 1990): 1–27; and George Rable's discussion of Southern women's work in George Rable, *Civil Wars: Women and the Crisis of Southern Nationalism* (Urbana: University of Illinois Press, 1989), 112–35. John Beauchamp Jones, a Confederate war clerk, noted in 1864 that four thousand Richmond women were employed in a government warehouse sewing soldiers' uniforms. See Earl Schenck Miers, ed., *A Rebel War Clerk's Diary* (New York: Sagamore Press, 1958), 461.

[2] The number twenty thousand is an estimate drawn from the carded service files of Union female hospital workers during the Civil War. The files consist of twenty-two boxes, each containing between eight hundred and one thousand cards. Each card lists the hospital worker's name, her race (if she is African-American), her position, the hospital in which she worked and its location, and usually muster or payroll information. The raw data is in the process of being gathered and subjected to a statistical analysis, which will ultimately provide percentages for race, marital status, job category, and region. It is not known when the carded service files were compiled, but judging from the handwritten script and the style of cards, this series of documents was assembled from Union hospital records just after the war. See *Carded Service Records of Hospital Attendants, Matrons, and Nurses,* 1861–65, Record Group 94, National Archives, Washington, D.C. Note that these statistics apply only to Union hospital workers. Because reli-

[*Signs: Journal of Women in Culture and Society* 1992, vol. 17, no. 2]
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sisters, free black women, upper-class white widows, and farm women. Some were mothers and grandmothers; others were childless or unmarried. Most served of their own inclination; a few served under chattel obligation. Of the twenty thousand who served as nurses, matrons, cooks, and laundresses in military hospitals, several hundred chronicled their experiences. Their diaries, memoirs, letters, and commemorative narratives allow us to observe the evolution of contested models of medical professionalism.[3]

At the beginning of the war, the American press celebrated instances of spartan devotion and selfless sacrifice by women. Newspapers from Boston to Montgomery recited a litany of supplies donated by prominent female citizens and ran the advertisements of aid societies in search of women to help care for the soldiers.[4] Middle- and upper-class women, financially comfortable and awash in the rhetoric of sectional conflict, invoked patriotism when explaining to friends and relatives why they had decided to work in military hospitals.[5] If they could not fight, then they

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able statistics for Confederate hospital workers are unavailable, the total number of female hospital workers in both sections is likely to be much greater than twenty thousand.

[3] I have arrived at the estimate of several hundred by including every published and archival narrative of Civil War nursing that I have found during the past eight years. In addition to diaries, memoirs, and letter collections, I include brief nursing accounts, such as those collected in contemporary commemorative volumes by Frank Moore (*Women of the War: Their Heroism and Self-sacrifice* [Hartford, Conn.: S. S. Scranton, 1866]) and Linus P. Brockett and Mary Vaughan (*Women's Work in the Civil War* [Philadelphia: Zeigler, McCurdy, 1867]), as well as accounts of service in pension depositions. I exclude from this number narratives in which the Civil War was not the central issue of discussion and similarly texts in which Civil War nursing did not figure prominently. For example, Mary Boykin Chesnut's diary of the war is not included because it does not focus on nursing experience. By contrast, Charlotte Forten's diary is included: even though she discusses aspects of her life other than the war, her appointment to the Freedmen's Bureau was a central component of the diary. "Laundress" was the sex-specific term used by the United States government and military officials during the Civil War to refer to women who did washing. I have never seen a masculine variant of this term; nor have I found any evidence that men were hired to do laundry.

[4] On September 6, 1862, *Harper's Weekly* ran a two-page illustrated spread on women's contributions to the war effort. The accompanying caption read, "In the Crimean War glory and fame awaited the charitable efforts of Florence Nightingale and her noble band of lady nurses. This war of ours has developed scores of Florence Nightingales, whose names no one knows, but whose reward . . . is the highest guerdon woman can win" (568–70). In 1860 Florence Nightingale's *Notes on Nursing,* written in the wake of Crimea, was becoming known. By 1862 Americans would think of the name "Nightingale" as synonymous with "nurse." See also the Juliet Opie Hopkins Collection, Alabama Department of Archives and History, Montgomery, for evidence of newspapers advertising for female volunteers to work in the hospitals in Richmond; the Charleston *Courier* (July 16, 1863); and the Charleston *Mercury* (July 30, 1863).

[5] Mississippi teenager Cordelia Scales declared her patriotism by writing that she was going to the front "in the capacity of Florence Nightingale"; see Percy L. Rainwater, ed., "The Civil War Letters of Cordelia Scales," *Journal of Mississippi History* 1, no. 1 (1939): 169. Ada Bacot, a widow from South Carolina, wrote in the language of sacri-

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.60 - A Body of 'Truly Scientific Work': The U.S. Sanitary Commission and the Elaboration of Race in the Civil War Era

Leslie A. Schwalm

ARTICLE	A Body of 'Truly Scientific Work': The U.S. Sanitary Commission and the Elaboration of Race in the Civil War Era
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LESLIE A. SCHWALM

A Body of "Truly Scientific Work"

The U.S. Sanitary Commission and the Elaboration of Race in the Civil War Era

During the Civil War, the U.S. Sanitary Commission was much more than a philanthropic soldier-relief organization. It also engaged in what commission president Henry Bellows called "truly scientific work," work that Bellows believed was the commission's main chance at "being valued as men of mark in time to come." A significant portion of that scientific work consisted of a large-scale endeavor to identify and catalog anatomical and physiological evidence of racial inferiority in the bodies of African American soldiers. Using the tools of anthropometry and social surveys, the northern white members of the commission expressed their commitment to an increasingly intransigent racial essentialism that endured long after the wartime destruction of slavery.

Was American medicine transformed by the Civil War? If so, did the changes result in an improvement in medical knowledge and practice, and in the role of medicine in American society? Most historians of medicine answer these questions with a conditional yes. While acknowledging the war's fearsome rates of morbidity and mortality, the impact of a poorly organized and understaffed Army Medical Department plagued by incompetency, and the lack of new insight into disease processes, many historians—including the authors of the two most recent surveys of Civil War medicine—conclude that American medical knowledge and practice took a significant step forward. The war led to substantial improvements in the organization and delivery of emergency and chronic medical care; greatly extended surgical knowledge; popularized the use of disinfectants, vaccines, and quarantine to limit the spread of disease; gave physicians valuable experience with unprecedentedly abundant clinical material (sick and injured bodies and cadavers); secured the victory of Regular practitioners in the sectarian competition; and elevated the quality and circulation of the nation's medical print culture. Public health especially benefitted from the increased acceptance of ideas about hygiene and sanitation.[1]

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Yet this widely accepted checklist of wartime and postwar advancements suggests that our assessment of wartime medicine can or should be isolated from the impact of the well-studied disdain many civilian and military health providers held toward soldiers and civilians of African descent, or from an accounting of the institutional failures that produced markedly inferior or absent health care for black southerners in need. The resulting wartime health crisis that black soldiers and southern black refugees from slavery encountered has been well-documented, most recently in the work of historians Gretchen Long, Margaret Humphreys, Chandra Manning, and Jim Downs; we know from their scholarship that the chaos shaping the wartime path to freedom forced former slaves through a gauntlet of epidemic disease, exposure, starvation, and brutal exploitation.[2] Furthermore, in the postwar nation, health disparities between whites and people of African descent continued to grow, despite the dismantling of slavery. White medical practitioners and public health professionals increasingly concentrated on black bodies as perceived risks to white populations and communities.[3] Racial exclusion and segregation continued to shape the infrastructures of medical education, practice, and research, and medical print culture increasingly espoused the inferiority of black bodies and the threat they posed to white public health. Among southern blacks especially, the war failed to transform either their access to health care or the ill health perpetrated by racist beliefs and practices of most white medical practitioners.[4]

The story of missing treatment and mistreatment of black soldiers, refugees from slavery, and freedpeople should erode our confidence in assuming a forward march of medical progress after the war. But so, too, should the abundant evidence that an increasingly intransigent racial essentialism was among the accomplishments of wartime and postwar medical sciences. Despite the Civil War's erosion and then destruction of racial slavery in the United States, northern whites continued during and after the war to hold African American bodies captive to the exercise of white dominance. Whether in passing through public spaces or in striving to gain entrance to jury boxes, schools, or first-class train cars, African Americans encountered rhetorical and physical resistance from northern whites in their efforts to connect freedom with citizenship. Neither did emancipation and Confederate defeat liberate the black body from the efforts of northern white scientists, researchers, and other self-regarded "learned men" to reveal, catalog, analyze, and address the implications of the "physical character of the negro race."[5]

Of course, the elaboration of racial ideology using medical science was not new to the Civil War era; historians have closely documented how

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.61 - She Went to War: Indiana Women Nurses in the Civil War

Peggy Brase Seigel

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She Went to War: Indiana Women Nurses in the Civil War

*Peggy Brase Seigel**

The four years of the Civil War provided unprecedented opportunities for Indiana women to expand their traditional domestic roles. As men rushed to volunteer as soldiers following the surrender of Fort Sumter, South Carolina, in April, 1861, women devised ways both to help the war cause and to survive financially. Carrying their domestic skills into the public forum, they organized soldiers' aid societies to make clothing and collect supplies that they then shipped to state supply offices or took to soldiers in southern camps. They conducted bazaars and organized benefits to raise funds. They helped needy families of soldiers by supplying them with food and winter fuel. Often, out of financial necessity, they carried on family businesses, or they took jobs that had previously been largely reserved for men.[1]

Confronted with reports of widespread disease in military hospitals and camps and of neglect and chaos following battles, Indiana women also looked for ways to help the stricken soldiers. Many were inspired by Florence Nightingale, the British woman who

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* Peggy Brase Seigel is an English instructor, Lutheran College of Health Professions, Fort Wayne, Indiana. She wishes to express her gratitude to the Indiana Humanities Council for a 1988 summer fellowship that enabled her to complete her research. She also thanks Marybelle Burch and the staff of the Indiana State Library and staff members of the Indiana Historical Society, Indianapolis; the Fort Wayne–Allen County Historical Society; the Fort Wayne–Allen County Public Library; and the Louis A. Warren Lincoln Library, Fort Wayne.

[1] For contemporary accounts of Indiana soldiers' aid societies see Fort Wayne *Dawson's Daily Times and Union*, January 15, 23, 25, February 4, 23, March 1, 29, 1862, June 10, July 15, September 7, 19, 22, October 3, 31, November 30, 1864; Indianapolis *Daily Journal*, January 15, February 4, 31, 1862. Women's employment in the Indianapolis arsenal and as teachers is described in Emma Lou Thornbrough, *Indiana in the Civil War Era, 1850–1880* (Indianapolis, 1965), 166, 502. While Samuel Merrill was with the 70th Regiment, the family-owned bookstore and printing business was managed by his two sisters, Catharine and Julia, and Julia's husband, Charles Moores. Following Moores's enlistment and then death, the two sisters continued to run the business. Gisela S. Terrell, Rare Books and Special Collections librarian, Butler University (Lecture to the Catharine Merrill Club of Indianapolis, April, 1988).

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had led a corps of women nurses on the battlefields of the Crimean War only six years earlier. Some women, especially those who had worked for women's rights during the previous decades, saw the Civil War as a moral crusade, at once the climax of a long struggle to end slavery and a chance for women to prove themselves capable and equal in a man's world. Others saw nursing opportunities as a badly needed source of income. For a mixture of reasons, then, Hoosier women left their homes to try to serve in hospitals and camps.[2]

As hope for a quick solution to the war disappeared and as Governor Oliver P. Morton's role in helping Indiana soldiers became more sharply defined, Indiana women found themselves in a unique position. The Indiana governor's determination to care for his state's soldiers outside the national bureaucracies of the army and the United States Sanitary Commission resulted in the creation of a separate Indiana Sanitary Commission in March, 1862. In January, 1863, Morton and his sanitary commission began to appeal to women to work as nurses in military hospitals and on hospital ships sent south to care for Indiana soldiers. More than any other state agency the Indiana Sanitary Commission encouraged women to take on the risks and adventure of war.[3]

Paradoxically, in spite of Indiana women nurses' experiences on the battlefield, their endorsement by state authorities, and their increased public visibility, historians largely excluded them from published accounts of the conflict. In the nineteenth century Catharine Merrill's ambitious two-volume study, *Soldier of Indiana in the War for the Union*, recognized only a small number of women nurses, and William H. H. Terrell's official eight-volume report of

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[2] By 1860 there was widespread familiarity with Florence Nightingale's books, *Notes on Nursing* and *Notes on Hospitals*, and with Henry Wadsworth Longfellow's poem in Nightingale's honor, "The Lady with the Lamp." Bessie Z. Jones, ed., "Introduction," in Louisa May Alcott, *Hospital Sketches* (1863; reprint, Cambridge, Mass., 1960), xxvi. Mary Frame Myers Thomas of Richmond, Indiana, a physician and leader of the Indiana Woman's Rights Association, wrote to Susan B. Anthony on the occasion of the meeting of the Woman's Loyal League in New York on May 14, 1863, "As the war is working out for woman a higher and nobler life while it is destined in the providence of God to free the slave, it will also bring about in a great measure the enfranchisement of women." Elizabeth Cady Stanton, Susan B. Anthony, and Matilda Joslyn Gage, eds., *History of Woman Suffrage* (6 vols., Rochester, N. Y., 1881), II, 882. A widow with two sons in the army wrote Indiana Governor Oliver P. Morton that she was "in great need" and not able to get enough sewing to support herself. Another nursing applicant wrote that she was a thirty-seven-year-old widow made a poor woman by "adverse circumstances." Mrs. R. J. Ryman to Governor Oliver P. Morton, February 19, 1862, Oliver P. Morton Collection (Archives Division, Indiana Commission on Public Records, Indiana State Library and Historical Building, Indianapolis); Mrs. Sarah Tavenner to Morton, September 24, 1862, *ibid.*

[3] See William H. H. Terrell, *Indiana in the War of the Rebellion*: Vol. I, *Report of the Adjutant General of the State of Indiana* (1869; reprint, Indianapolis, 1960), 394-449.

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.62 - The Confederate Conscription and Exemption Acts

William L. Shaw

ARTICLE	The Confederate Conscription and Exemption Acts
JOURNAL	The American Journal of Legal History 6, no. 4 (1962)
EXCERPT	Original journal pages 368-369
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The Confederate Conscription and Exemption Acts

by William L. Shaw*

"The Confederate infantry and the Yankee artillery, side by side on the same field, need fear no foe on earth." [1]

I. Introduction

THE ABOVE TERSE CONCLUSION by Lieut. General D. H. Hill, CSA, is timely in a survey of the American military heritage in this period of the Civil War Centennial. The valor of each of the Confederate Army and the Union Army is unchallenged. Indeed, the rival armies need no contemporary praise which would be akin to gilding the lily. It remains for us, however, to determine the basic factor or the combination of factors which created and continued the Confederate Army. Significantly, each rival army began upon a volunteer basis, but before the end of the war was dependent in great degree upon a conscription of men. The purpose of this study is to review the compulsory military drafts and to trace the development of the Confederate Army from early 1861 through April 1865. Judicial review will be considered, insofar as certain cases tested the constitutionality of the Confederate Conscription Act of 1862 and related legislation. In the instance of the Confederacy, there will also be discussion of the governmental regulation and conscription of *property*.

II. The Confederate Conscription Act of 1862, as Amended

A. *General Background*

The Census of 1860 showed a white military population in the South of 1,064,193 men between the ages of eighteen and and forty-five. This compared with 4,559,872 in the North.[2]

* Lt. Col., ARNG; Executive Secretary, California Civil War Centennial Commission; Deputy California State Attorney General.

[1] NAISAWALD, *Grape and Canister* 135 (1960).

[2] Eighth Census of 1860; FOX, *Regimental Losses in the American Civil War* 552 (1889).

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Forty-five percent of her military population was furnished by the North, while the South delivered not less than ninety percent of the same group.[3]

Essentially, the contest was that of comparative equals on the field of battle. In 1863, the Southern states had 690,000 men in the field and which amount was not far short of the Northern total.[4] This comparative equality of military forces for the first two years of the war is significant in view of the disparity of population wherein the South had 9,000,000 people contrasting to 23,000,000 in the North.[5] "The two armies became as nearly equal in fighting capacity, man for man as any two in history; and they took an unprecedented amount of punishment."[6]

B. *Constitutional Provisions*

The following provisions of the permanent Constitution of the Confederate States of America, adopted by delegates at Montgomery on March 11, 1861, apply to the enactments of the Congress and to any general orders or other regulations promulgated by way of interpretation of statutes. A considerable portion of the Constitution is exactly similar to corresponding passages in the Constitution of the United States, 1787, to which appropriate references are indicated in some instances.[7] Congress shall have power—

> To declare war . . . (Art. I, Sec. VIII).
>
> To raise and support armies; but no appropriation of money to that use shall be for a longer term than two years.
>
> To make rules for the government and regulation of the land and naval forces.

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[3] COULTON, *The Case for Compulsory Military Service* 135 (1917) citing "American Civil War" in 1 *Encyc. Brit.*, 11th ed., 818.

[4] COULTON, *op. cit.*, note 3 at 137 citing 1 *Encyc. Brit.*, 11th ed., 818.

[5] COULTON, *op. cit.*, note 3 at 135.

[6] 1 MORISON & COMMAGER, *The Growth of the American Republic* 661 (1950).

[7] NEWTON, *Federal & Unified Constitutions* 156-164 (1923); CURRY, *Civil History of the Government of the Confederate States* 274-302 (1901) setting forth the Constitution. The *Provisional Government Constitution* appears in 1 DAVIS, *Rise and Fall of the Confederate Government* 640-648 (1881).

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.63 - Justice Has Something to Do with It: Class Relations and the Confederate Army

Aaron Sheehan-Dean

ARTICLE	Justice Has Something to Do with It: Class Relations and the Confederate Army
JOURNAL	The Virginia Magazine of History and Biography 113, no. 4 (2005)
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AARON SHEEHAN-DEAN

Justice Has Something To Do With It

Class Relations and the Confederate Army

Karl Marx covered the American Civil War as a correspondent for the *New York Daily Tribune* and the *Presse* of Vienna. In his view, the secession crisis revealed the hidden dynamics of class relations in the antebellum South. Slaveholding "oligarchs" fought to protect slavery in the territories because their social and political dominance of the "poor whites," as Marx referred to other southerners, depended on making land and slave owning available to future generations. If new slave territory could be acquired, the slaveholding elite could "give their [poor whites'] turbulent longings for deeds a harmless direction and . . . tame them with the prospect of one day becoming slaveholders themselves."[1]

Most current scholars concur in Marx's analysis that slaveholding elites exploited their wealth and social position for advantage during the war, but few adopt his uncharitable assessment of the capacity of southern yeomen for independent thought. Instead, many historians identify middle- and lower-class whites as the central actors in this period and argue that class conflict hindered the Confederate ability to resist the Union in war.[2] According to this interpretation, southern yeomen expressed discontent on the battle front and the home front. Confederate soldiers are presented as having aggressively defended their status as independent men—their tempers easily riled by purported slights from aristocratic officers—and they resisted the discipline and hierarchy imposed upon them by the military.[3] Desertion is interpreted as soldiers' response to perceived injustice. The civilian equivalent of this behavior ranged from non-payment of taxes to active support of Union troops and southern peace parties to encouraging soldiers to abandon

Aaron Sheehan-Dean is assistant professor of history at the University of North Florida.

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.64 - A Medical Perspective on the Civil War

Richard H. Shryock

ARTICLE	A Medical Perspective on the Civil War
JOURNAL	American Quarterly 14, no. 2 (1962)
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RICHARD H. SHRYOCK
University of Pennsylvania

A Medical Perspective on the Civil War*

AMONG THE VARIOUS THEMES PERTINENT TO CIVIL WAR HISTORY, MEDICINE seems least apt to lend itself to centennial celebrations. Do we really wish to recall, a century later, the incredible suffering which occurred on battlefields and in hospitals during that conflict? One would judge, from much recent writing on the War itself, that there is no such desire. Yet, if medical aspects are omitted, the story is not only incomplete but is unrealistic as a total picture. It can provide analyses of military strategy or may portray the day to day life of troops in the field. But often it becomes a dramatic narrative which, though containing vivid accounts of battle scenes, fails to make real the tragedy inherent in the entire experience.

What actually happened was that a struggle which began almost lightheartedly at Bull Run, soon became one of the bloodiest wars of all time. A number of circumstances converged to make it so. First, this was a peoples' war and large numbers of troops were involved: perhaps three million all told. Second, although morale was not always high, armies sought out opponents with much determination. Third, in combat, most wounds were caused by musket or rifle fire, and the leaden bullets then employed did more damage than do modern, steel counterparts. Fourth, surgical practice was such that nearly all penetrating wounds were fatal except those of the extremities, and even the latter had a high mortality rate.

Most appalling, however, was the fact that many wounded who might have been saved were abandoned on battlefields. No adequate ambulance services and field hospitals were available as late as 1862. At Second Bull Run, for example, the Union army was supposed to have 170 ambulances

* An address given before the Summer School of the University of Michigan, June 27, 1961.

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but actually went into battle with 45—most of which broke down. Several days after the battle, in consequence, 3,000 wounded still lay where they had fallen. In this situation, many men bled to death or died from exposure and were then reported as "killed in action." Worse still, in certain instances—as at Chancellorsville in '63 and again at the Wilderness in '64—hundreds of the wounded actually burned to death when shells set the woods on fire!

After ambulance facilities were provided, field hospitals were sometimes overwhelmed by major-battle casualties. At Gettysburg, for example, the Union medical corps was well equipped with 1,000 ambulances, 650 officers, and about 3,000 drivers and stretchermen. But within three days, 21,000 wounded were brought in just when most of the medical officers were moving on with the army. Each remaining surgeon was thus left with an average of 900 cases on his hands.[1] Haste and neglect were unavoidable under such circumstances.

Those among the wounded who *were* properly tended in field and base hospitals had still to run the risks of surgery. As is well known, anesthetics were usually available but there was no notion of aseptic procedures. Looking back in 1918, the Philadelphia surgeon W. W. Keen recalled that:[2]

> We operated in old blood-stained and often pus-stained coats . . . with undisinfected hands. . . . We used undisinfected instruments . . . and marine sponges which had been used in prior pus cases and only washed in tap water.

No wonder that nearly all wounds became infected and that there was still some talk of "laudable pus" in the medieval manner. In the case of chest or abdominal wounds, surgeons probed with their fingers, prescribed morphine and tried to stop external bleeding. Otherwise, there was little they could do. The victims usually died within three days from hemorrhage and/or infection. The average Union mortality from gunshot wounds of the chest was 62 per cent of cases; and from such wounds of the abdomen, no less than 87 per cent.[3] By way of contrast, only about 3 per cent of all American wounded failed to survive in World War II.[4]

1 George W. Adams, *Doctors in Blue* (New York: Henry Schuman, 1952), pp. 91 f. See also T. M. Hunter, "Medical Service for the Yankee Soldier (thesis, University of Maryland, 1952), *passim*. Both of these studies are thorough and indicate the wide ranges of sources relating to the present subject.

2 W. W. Keen, "Military Surgery in 1861 and in 1918," *Annals American Academy of Political and Social Science,* LXXX (1918), 11 ff.

3 Adams, *Doctors in Blue,* p. 135.

4 R. H. Shryock, *American Medical Research: Past and Present* (New York: Commonwealth Fund, 1947), p. 294.

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.65 - 'Our Women Played Well Their Parts': Confederate Women in Civil War East Tennessee

William A. Strasser, Jr.

ARTICLE	'Our Women Played Well Their Parts': Confederate Women in Civil War East Tennessee
JOURNAL	Tennessee Historical Quarterly 59, no. 2 (2000)
EXCERPT	Original journal pages 89-90
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"Our Women Played Well Their Parts": Confederate Women in Civil War East Tennessee

By William A. Strasser, Jr.

Near the beginning of the Civil War, a Confederate cavalry company from Monroe County stopped at the Knoxville household of Ellen Wilson White, a nineteen-year old Confederate sympathizer. The men, called the "McGhee Invincibles," were dressed very handsomely, White recorded in her diary, and one of them shouted, "'Hurrah for Jeff Davis!' I said 'Hurrah for the McGhee Invincibles!' and then one of them said, 'Hurrah for the ladies!' and they took off their hats and got ready to hurrah when the captain said, 'Let's move, boys.'"[1] As this episode shows, Confederate women of East Tennessee cheered the men on to battle as the men left their homes in the spring and summer of 1861. Confederate women in East Tennessee took on many new roles during the Civil War to support their men: cooking and cleaning for the soldiers, holding fundraisers for the sick, visiting the wounded in hospitals, working as nurses and laundresses, making textiles, and bringing supplies to soldiers in the field. More importantly, Confederate women in the region supported their cause in the face of a deeply divided society. East Tennessee's prevailing Unionism provided unique challenges for Confederate women who wished to support their cause, but these women responded to the challenge and created many problems for their Union foes, both when the region was under Confederate occupation and Union occupation. When the war ended, however, Confederate women had to hide their support of the cause in order to achieve economic and social harmony with their Union neighbors.

With the approach of the Civil War, East Tennessee men and women had to decide which side they would support. This was a difficult decision for many women to make. East Tennesseans had a long tradition of Unionism, stemming from their sense of geographical and political isolation from the rest of the state. Of those who chose to sympathize with the South, there was a strong correlation between wealth and Rebel sympathies. Of the six East Tennessee counties that voted for separation from the Union, all but one was wealthier than the average county in the region. East Tennessee Confederates owned more slaves than their Union counterparts and owned significantly more land as well. Men from East Tennessee slaveholding families overwhelmingly became Confederates; 100 percent of East Tennessee planter families joined the Confederacy. Thus, the higher a man or woman's economic standing, the more likely he or she was to support the Confederacy. Affluent slave-owning women often chose the Confederate cause to continue their way of life, which was characterized by a leisure ethic. A Rhea County slave-owning woman "worked only as she wanted to . . . knitting, sewing, and [making] fancy quilt work." To continue this way of life, wealthy white slaveowning women would have to support the Confederate cause.[2] But whatever side they chose, it was a difficult decision to make. A Knoxville Confederate-sympathizing housewife whose husband was a Unionist wrote her sister in Alabama: "This is a time when all true hearted souls must be willing to sacrifice themselves on the altar of Freedom. I am between two fires. If I escape one, I am sure to be consumed by the other in the widening of the struggle." Many were caught between these two fires, but for the most part, women sided with their husbands or families.[3]

Some women spoke out for their cause. A "Tennessee Woman" wrote the *Knoxville Daily Register* before the state's June 1861 vote on secession

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encouraging the men of East Tennessee to "gird on your armor, husbands and brothers, fathers and sons. 'Separation and Representation' your watchword, not that you love the Union less but that you love your country more" and the women to "place your hands on their shoulders or your arms about their necks and plead with them to go on the 8th of June and cast their suffrage for SEPARATION AND REPRESENTATION, and rescue your liberties from the hands of the enemy."[4] Most women, however, were not so outspoken. They kept their sentiments to themselves and their immediate family. But, however outspoken and whatever their political stance, they were in for a long war that would change their lives, at least for the duration of the war.

In 1861, women organized the Soldiers' Relief Society in Knoxville. This organization was intended to support Rebel men through such activities as sewing circles and visiting the sick.[5] Little else is known about this relief society; perhaps it did not last long. But Confederate women supported the cause on their own, thereby contributing to the factiousness of the region. Mrs. A.M. Van Dyke recalled, "I have carded and spun wool and cotton to make cloth and with my own hands have helped to fashion it into garments for the soldier boys. I have spun flax on the little wheel for towels and table cloths, have knit socks by the dozens, have sent to the front boxes of bandages and lint." East Tennessee Confederate women often cooked for the soldiers passing near their homes. When Confederate general Nathan Bedford Forrest's men were near her home in Cleveland, Myra Inman reported "cooking and washing hard all day for soldiers, a great many have eaten here today." Knoxvillian Ellen Wilson White reported in August 1861 that "five or six soldiers came here for supper – said they had had nothing to eat since yesterday morning." East Tennessee women also fed Confederate prison escapees; Sallie Florence McEwen housed and fed a soldier who had escaped from the enemy at Murfreesboro.[6]

Other women worked in Confederate hospitals, tending to the sick as nurses and laundresses. The role of caring for the sick and wounded was within the female sphere as defined by society in that time period. Chattanooga native and nurse Josephine Hooke wrote that "to be able to relieve in some degree the suffering of any soldier who bleeds in defense of our homes should be esteemed an honor and a privilege by Southern women." The most famous of these nurses was Mobile native Kate Cumming, chief matron of Chattanooga's Newsom Hospital. While Cumming was stationed at Newsom Hospital, the local women of the town held a benefit "Soiree Dansante," which raised eighty-five dollars for the benefit of the wounded there.[7]

Other women took a more visible role in supporting the cause. In Rhea County, twenty-seven young women organized themselves into a "cavalry troop" in the summer of 1862; "their chief activity was to visit Confederate companies stationed in the vicinity and supply them with articles of clothing, food, and nicknacks." They were eventually arrested by Union forces and taken to Chattanooga, where they were forced to take the oath of allegiance. While spying activities were unnecessary during Confederate occupation, famous Rebel spy Belle Boyd was serenaded by a brass band when she stayed at Blount Mansion in Knoxville in February 1863.[8]

For wealthy East Tennessee Confederate women, the first two years of war under Confederate occupation resembled antebellum life in many respects. For example, in Knox County in November 1863, there was an advertisement for the theater. Due to martial law, however, social events such as dances and the theater had to end by the 10 p.m. curfew. Sallie Florence McEwen was taking music lessons in May 1862, and remained in school until Federal occupation threatened.[9] Many of the female institutes in East Tennessee, which catered to children of wealthy Confederate families, attempted to remain open during the war. In an advertisement, the recently established Cleveland Female Institute encouraged making sacrifices in wartime to send one's children to school: "Dress your children in homespun, in cotton gowns and wooden shoes if need be, but don't deny them teachers, books and studies. Notwithstanding 'hard times,' the school should be kept up." In 1862, the Masonic Female Institute in Cleveland, Aldehoff's Institute for Male and Female in Chattanooga, and the Athens Female College all ran advertisements in

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.66 - Northern Naval Superiority and the Economics of the American Civil War

David G. Surdam

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recent work on institutional change, help explain under which conditions the Davis-North model is likely to have predictive power.

EDWARD P. MCDEVITT, *University of California, Los Angeles*

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Northern Naval Superiority and the Economics of the American Civil War

Many people believe that the outcome of the Civil War was inevitable: the North had more manpower and industrial resources.[1] However, when Lincoln called for volunteers to suppress the Southern states, most foreign observers thought that he was undertaking an insuperable task. By the summer of 1864, even Lincoln despaired of victory. How did the North transform an insuperable task into an inevitable success?

Clearly the skeptical contemporaries were wrong: subduing the Confederacy was not impossible. However, the ex post belief in the outcome's inevitability is equally wrong. Such a belief implies a gross and terrible miscalculation on the part of the Confederates; that is, that they embarked upon a hopeless war. Moreover, the postwar aura of inevitability diminishes the magnitude of the Union triumph: defeating the Confederacy was a stunning achievement. The Union armies had to conquer a rugged area that would rival the conquests of Napoleon and his Grand Army. Most Europeans and Southerners doubted that the Union had either Napoleon's genius or a grand army. In addition to these difficulties confronting the Union, the Confederate states held one important economic advantage: their price-setting power in the world market for raw cotton. The antebellum South faced an inelastic and growing demand for its raw cotton; by reducing the crop by one-third, the South could have increased revenue by enough to have financed a strong navy. Concurrently, the South could have freed up 170,000 man-years of labor. These benefits comprised King Cotton's sovereignty. The outcome of the Civil War, therefore, appears to have been contingent upon the astute allocation of war-making resources and, perhaps, a stochastic element.

My dissertation focuses on one element of the North's triumph: its naval superiority. The Union's naval superiority was a decisive weapon in determining the war's outcome. The

[1] This dissertation was completed in 1994 in the Department of Economics at the University of Chicago under the direction of Robert Fogel, David Galenson, and D. Gale Johnson.

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Union navy's contributions have, however, been misunderstood and undervalued. Historians assessing the role of the Union navy have typically focused on the blockade's effects upon Southern imports. But the focus upon imports misses what may have been the blockade's most important achievement: the neutralization of the South's price-setting power in the world market for cotton. Some historians have documented the reduction in the exports of raw cotton, but they did not estimate the revenue shortfall. Considering that raw cotton was an important part of the calculus leading to the war, this omission is surprising.

What happened to King Cotton during the war? Although there were initial deleterious effects from the misguided Confederate embargo on raw cotton exports, the Union navy's blockade was the main culprit in stymieing King Cotton. Although Europeans and Southerners scoffed at the North's attempt to implement an effective blockade of the lengthy Southern coastline, its effects were not hard to see. Real prices at Liverpool and New York tripled and quadrupled during the war, but the South received scant benefit from these higher prices. The blockade drove the difference in prices between Southern and receiving ports from 1 or 2 cents to almost 50 cents per pound. The South was able to export only one-ninth of the antebellum volume of raw cotton, and the prices at Southern ports were, at most, equal to antebellum prices. The Union navy not only prevented the South from using its price-setting power and earning $1 billion during the war from raw cotton exports, but the blockade created a revenue shortfall of at least $700 million. This shortfall crippled the Confederacy's ability to finance the war.

The magnitude of the revenue shortfall depends to a modest degree upon the state of world demand for American-grown raw cotton. Would the world demand for cotton textiles and, by extension, raw cotton have remained strong enough during 1861 to 1865 to sustain the South's price-setting power? Some have argued that overproduction of cotton textiles in 1860 and 1861 had brought the cotton textiles and raw cotton markets to the brink of a sharp, perhaps prolonged, downturn. These arguments rest upon incomplete models of the world market for cotton textiles and raw cotton. More complete models and additional evidence suggest instead that the blockade-induced reduction in the supply of American-grown raw cotton and wartime upheavals (such as the Morrill Tariff and the loss of the Southern states' market), created the 1861 to 1862 downturn in the demand for finished cotton goods and raw cotton. In the absence of the war-induced upheavals, the demand for these commodities probably would have remained robust and growing.

In addition to shackling King Cotton, the Union navy's blockade disrupted Southern intraregional trade. The growing antebellum shipments of cattle across the Gulf of Mexico were interdicted by the blockade, depriving the South of easy access to the bountiful Texas cattle herds. The South had to smuggle meat through the blockade, trade between the lines with Yankees, and rustle cattle from the Union army. The lack of meat helped force Lee to move his army from Petersburg towards Appomattox and surrender. Future work will examine other disruptions of the Southern intraregional trade.

There is a third aspect of the North's naval superiority. As we have seen, the Union navy disrupted the Southern economy and the Confederacy's war-making ability. It is important to turn the question around: what would have been the potential effects of Confederate naval superiority upon the Northern war effort? The Northern war-making coalition was fragile. Latent discontent with the Republicans existed throughout the Northwest. The market dislocations of late 1861 and early 1862 had hurt the northwestern farmers. Confederate naval attacks against New York City and other Northern ports might have denied these farmers the relief offered by Great Britain's increased demand for grain. Confederate control of the Mississippi from St. Louis to the mouth of the river might have delayed or prevented crucial early Northern victories in Tennessee. Confederate control of the Chesapeake would have significantly hampered Union operations in Virginia. The Lincoln administration's early war efforts would have been marked by increased economic

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.67 - The Hard Hand of War Comes to Western Kentucky: What the Union Provost Marshals Saw in 1864

Adam L. Tate

ARTICLE	The Hard Hand of War Comes to Western Kentucky: What the Union Provost Marshals Saw in 1864
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EXCERPT	Original journal pages 349-350
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The Hard Hand of War Comes to Western Kentucky: What the Union Provost Marshals Saw in 1864

By Adam L. Tate

In September 1861, President Abraham Lincoln, in a letter to O. H. Browning, quipped, "I think to lose Kentucky is nearly the same as to lose the whole game."[1] This widely quoted line came in a letter in which Lincoln grappled with the issues that consumed his thoughts during the Civil War: slavery and constitutional government. In the letter, Lincoln addressed General John Frémont's efforts to emancipate slaves in Missouri, noting the tremendous opposition these actions produced in the Border States, particularly Kentucky. The president opposed Frémont's actions because he believed they confused law and military necessity. But Lincoln understood the conflict and tried to balance the two issues as long as he could. By 1864, however, this seemed impossible to maintain in Kentucky.

In 1864 much of western Kentucky, to paraphrase one historian, descended into anarchy.[2] Though initially well-defended by the United

ADAM L. TATE is professor of history and chair of the department of humanities at Clayton State University in Morrow, Georgia, where he has taught since 2004. His latest book is *Catholics' Lost Cause: South Carolina Catholics and the American South, 1820–1861* (2018). He is a native of New Orleans, Louisiana.

[1] Abraham Lincoln to O. H. Browning, September 22, 1861, in *The Collected Works of Abraham Lincoln*, ed. Roy P. Basler (New Brunswick, N.J., 1953), IV: 532.

[2] Scott A. Tarnowieckyi, "Descent into Anarchy: The Evolution of Irregular Warfare in the Lower Green River Country of Kentucky," in *Border Wars: The Civil War in Tennessee and Kentucky*, eds. Kent T. Dollar, Larry H. Whiteaker, and W. Calvin Dickinson (Kent, Ohio, 2015), 39–62.

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States Army, parts of Kentucky seemed by the end of 1864 to resemble those areas of the occupied Confederacy visited by what Mark Grimsley termed "the hard hand of war." In Grimsley's view, the primary purpose of the Union Army's hard war strategy, which involved "actions against southern civilians and property made expressly in order to demoralize Southern civilians and ruin the Confederate economy," was to end the war more quickly.[3] Other scholars, however, stress the political character of the hard war. They note that hard war tactics such as surveillance of the civilian population, the destruction of property of southern sympathizers, and a disregard of basic civil liberties primarily met political goals of securing Republican victories and intimidating all dissenters into silence and inaction. Scholars have found that the army used these tactics both in the occupied South as well as on the Union home front.[4]

The disagreement over whether the hard war was militarily necessary or simply politically motivated has a rich legacy in Kentucky politics and historiography. In January 1865, for example, Governor Thomas Bramlette presented the state senate with numerous affidavits concerning the political interference and personal malfeasance of Union officers in the state. He specifically condemned the Lincoln administration's hard war policies in western Kentucky for purposely destroying civil society in the region.[5] Modern Kentucky historians have been less interested in fighting the political battles of the 1860s and more attentive to discerning the cause of popular resistance to the Union cause. Historians have long debated whether civil liberties violations or blows against slavery were the primary causes of white resistance in the state, but recent scholarship has tipped the balance

[3] Mark Grimsley, *The Hard Hand of War: Union Military Policy toward Southern Civilians, 1861–1865* (New York, 1995), 3.

[4] Stephen V. Ash, *When the Yankees Came: Conflict & Chaos in the Occupied South, 1861–1865* (Chapel Hill, N.C., 1995); and Stephen E. Towne, *Surveillance and Spies in the Civil War: Exposing Confederate Conspiracies in America's Heartland* (Athens, Ohio, 2015).

[5] *Journal of the Senate of Kentucky*, 1865 (Frankfort, Ky., 1865), 7–48. See page 33 for the charge that officers in western Kentucky had been particularly offensive.

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.68 - Jefferson Davis--Leader Without Legend

Frank E. Vandiver

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Jefferson Davis—Leader Without Legend

By Frank E. Vandiver

No saintly aura buffers Jefferson Davis from the barbs of judgment. Precious little that he did as President of the Confederate States of America is sanctified. So he stands from the past as the most curious of chieftains—a man without legend in the *Oxford English Dictionary* sense of legend as the life of a saint.[1] He is not, to be sure, a man without account. More cold dissection, carping, rebuke, harsh study, critical interpretation, has been aimed at him than at perhaps any other leader of the modern era. He is worn by analysis beyond reality. Minute scrutiny has denied legend and has wrought a Davis of myth and mystery. Something of his mythic future might have been glimpsed forming during the war, especially in the first of the "histories" of the Confederacy.

Edward Alfred Pollard, curmudgeon extraordinary, Richmonder, editor of the *Examiner*, early rejected hope for Davis and prophesied doom for a cause trusted to him. Dislike and suspicion poisoned Pollard's eye and cost some of the impact of his occasionally valid criticism. But things he saw wrong with the President had the power of popularity and the ring of repetition. Davis clearly aimed at despotism; his judgment erred everywhere; as a diplomat he lacked suavity; as an administrator, reality; as a war leader, sense; as a man, charity. Pollard's convictions grew as the war progressed, and he advanced them beyond his newspaper. In 1862 his *First Year of the War* appeared, followed by annual volumes, each more anti-Davis than the last. In 1866 Pollard culled his multivolume diatribe into one, *The Lost Cause*. Now the world could read of a cause elevated by the sacrifices of southern women, by the heroism of all gray-clad soldiers and lost by the perfidy of Jefferson Davis.

Pollard carried his indictment further in 1869 with his *Life of Jefferson Davis, with a Secret History of the Southern Confederacy,*

[1] "*Legend.* . . . 1. The story of the life of a Saint." *The Compact Edition of the Oxford English Dictionary* (2 vols., [Oxford, Eng.], 1971), I, 1599.

Mr. Vandiver is Harris Masterson, Jr., Professor of History, provost, and vice-president at Rice University. This paper was delivered as the presidential address at the annual meeting of the Southern Historical Association in Atlanta, Georgia, November 11, 1976.

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Gathered "Behind the Scenes in Richmond."[2] "Jefferson Davis should have a truthful and acute biographer . . . ," Pollard allows in his preface, and then boasts of his impartiality. Once accused of "hostility" to Davis, he now "is able and willing to do exact justice" to his subject. In addressing the main question of "*Who were responsible for the failure of the Southern Confederacy*?" Pollard argues that "Responsibility must rest somewhere in history . . ." and sees it rising naturally to higher officials. Consequently, "in regarding Mr. Davis as the prime cause of the failure of the South in the late war, the author has but simply recognized and submitted to the great law of logic in historical composition:—that, in political affairs, where a certain result is clearly not an accident or misadventure, but must have come from a well defined cause, that cause ultimately and inevitably rests in the head of the government."[3] Never had logic been so convenient. Davis led the Confederacy and lost; ergo, he engineered defeat. The interpretation stuck.

Later students who approached Davis favorably were finally engulfed by Pollard's lingering prejudice. Elisabeth Brown Cutting's *Jefferson Davis, Political Soldier*[4] is an example. Cutting writes almost sentimentally about much of Davis's life, maintains a casual detachment amid some of the thornier Confederate problems, waxes almost maudlin at the end of her story. Davis's courage, his willed triumph over pain, his constancy under stress all find echo in her pages. And yet, at the end, there is an eight-page "Epilogue" which rejects sympathy and calls up once more all the faults and flaws, the lapses and misdeeds, in the manner of Pollard redivivus. "Loyalty" and "devotion" were allowed Davis. "Affairs of state were his occupation," Cutting asserts, "but only in a restricted sense was he a statesman. . . ."

> He was not a great executive. He could not delegate power, but he could heed the representations of the man who best understood that his vanity must be fed. . . . Davis was neither resourceful nor foresighted in his capacity of Commander-in-Chief of his army. He was unequal to dealing in large figures for the needs that the magnitude of the task demanded. . . . He had always the recourse of the egoist, an immovable faith in his own decisions. . . . His vanity admitted of no rebuke, and he recognized a mental equal only when their ideas coincided. . . . He was a leader of a cause but not of men.[5]

Cutting suffered divided sentiments throughout her book. Good things somehow had to be balanced against "objective" things lest

[2] Pollard, *Life of Jefferson Davis, with a Secret History of the Southern Confederacy, Gathered "Behind the Scenes in Richmond"* (Philadelphia and other cities, 1869).
[3] *Ibid.*, v, vi. Italics are Pollard's.
[4] Cutting, *Jefferson Davis, Political Soldier* (New York, 1930).
[5] *Ibid.*, 322–27; quotations on pp. 323–24, 326, 327.

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.69 - Rich Man's War, Rich Man's Fight: Civil War and the Transformation of Public Finance in Georgia

Peter Wallenstein

ARTICLE	Rich Man's War, Rich Man's Fight: Civil War and the Transformation of Public Finance in Georgia
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Rich Man's War, Rich Man's Fight: Civil War and the Transformation of Public Finance in Georgia

By Peter Wallenstein

Civil war came to America soon after eleven states left the Union and formed the Confederacy. In November 1863 the war was in its third year as Governor Joseph Emerson Brown addressed the General Assembly in Milledgeville, Georgia. "I have heard it remarked," Brown observed, "that this is the rich man's quarrel and the poor man's fight, and that the abolition of slavery would not injure the poor, who are not slaveholders."[1]

One "poor man" from north Georgia spoke for thousands when he wrote Governor Brown as supplicant to patron in the spring of 1864. Not quite fifty years old and thus subject under the recently extended military ages to be called away to action, Harlan Fuller wrote, "I am liable at any time to be taken away from my little crops leaving my family almost without provisions & no hope of making any crop atal. I have sent six sons to the war & now the 7th enrolled he being the last I have no help left atal." Though Fuller described his poor health, he concluded, "I dont mind the battle field but how can any man be there & hear both at the same time." In an attempt to demonstrate that he was no shirker in the cause, he showed how his dilemma applied to state and Confederate taxes as well as the draft. "I have paid all Tythe & Tax held against me with the acception of 25 lb of bacon which is out of my power to pay til I can make another crop for I have not got that amount in the world."[2]

[1] Allen D. Candler, comp., *The Confederate Records of the State of Georgia* (6 vols., Atlanta, 1909–1911 [vol. V never published]), II, 483; cited hereinafter as Candler, comp., *Confederate Records*. The governor's wartime messages to the Georgia legislature are quoted generously and placed in context in Joseph H. Parks, *Joseph E. Brown of Georgia* (Baton Rouge, 1977). The author wishes to thank Paul D. Escott, Eric Foner, J. William Harris, Sook Han Ho, and David Osher for comments on an earlier version of this essay.

[2] Harlan Fuller to Joseph E. Brown, May 1, 1864, in Incoming Correspondence of Governor Joseph E. Brown (Georgia Department of Archives and History, Atlanta, Ga.).

Mr. Wallenstein is an assistant professor of history at Virginia Polytechnic Institute and State University.

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Yeoman discontent in Georgia and throughout the Confederacy led to cries of "rich man's war, poor man's fight." Like Harlan Fuller, a majority of white families owned no slaves and thus had no direct economic interest in protecting slave property.[3] In a "rich man's war" fought to safeguard slavery through political independence planters had most to gain from victory, yet nonslaveholders often felt that they carried the burden of battle. The cry of "poor man's fight" resulted primarily from a provision in Confederate draft legislation exempting one white male for each twenty slaves on a plantation. The legislative objective had been to maintain control of slaves so as to prevent slave uprisings and to maintain production, but many people perceived the draft exemption as an escape hatch for the wealthy, who also had the option of hiring substitutes to fight in their stead.[4]

On the war's characterization as "the rich man's quarrel," Governor Brown declared, "A greater error has never been conceived." Brown explained why, in his view, all white Georgians shared a compelling interest in a Confederate victory. He stressed the loss in station that all whites, especially the nonslaveholding majority, would suffer in the event the Union won. Returning to the prewar situation, he warned, was not among the options the future held. A northern triumph would bring "despotism" and "bondage" to Georgia whites.[5]

Union victory would effect, as Governor Brown put it, not simple restoration of the *status quo ante bellum* but "abolition, subjugation, and confiscation." Blacks would no longer be slaves and, as the equals of whites, would enjoy equal access to schoolroom and ballot box. Georgians' nonslave property would be confiscated to pay the Union war debt, and whites would likely lose political rights while the Union army and former slaves ruled Georgia. Worst of all, Brown told his fellow citizens, propertyless whites would have to compete

[3] A division of Georgia's free families (109,919 in 1860) into quintiles according to slaveholdings will demonstrate the concentration of slaveownership in Georgia on the eve of the Civil War. The lowest three quintiles (in fact, 62.6 percent) owned no slaves at all; the next quintile owned 9.9 percent of the slaves in Georgia (none of these families owned more than five slaves); and the top quintile owned the remaining 90.1 percent. Measured in quartiles, the percentages are 0, 0, 5.0, and 95. U.S. Census Office, *Population of the United States in 1860* . . . (Washington, 1864), 73; U.S. Census Office, *Agriculture of the United States in 1860* . . . (Washington, 1864), 227; U.S. Census Office, *Ninth Census*, Vol. I: *The Statistics of the Population of the United States* . . . (Washington, 1872), 595.

[4] Charles W. Ramsdell, *Behind the Lines in the Southern Confederacy*, edited by Wendell H. Stephenson (Baton Rouge, 1944), 51–52; Stephen E. Ambrose, "Yeoman Discontent in the Confederacy," *Civil War History*, VIII (September 1962), 259–68; Paul D. Escott, "Southern Yeomen and the Confederacy," *South Atlantic Quarterly*, LXXVII (Spring 1978), 146–58; Ella Lonn, *Desertion During the Civil War* (New York, 1928), 14; Bell I. Wiley, *The Life of Johnny Reb: The Common Soldier of the Confederacy* (Indianapolis and New York, 1943), 337; Wiley, *The Plain People of the Confederacy* (Baton Rouge, 1944), 65; Candler, comp., *Confederate Records*, II, 488–92.

[5] Candler, comp., *Confederate Records*, II, 483 (first two quotations), 484, 487, 130 (last two quotations).

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.70 - General William T. Sherman and Total War

John Bennett Walters

ARTICLE	General William T. Sherman and Total War
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General William T. Sherman and Total War

By John Bennett Walters

Within recent years the term "total war" has been so definitely accepted as a part of the everyday vocabulary that there is danger of losing sight of the fact that the concept has not always prevailed in its twentieth-century form. In a measure, of course, all wars have involved more than the clash between armed forces, but with the development of the modern state war became an instrument of national policy waged by specially organized units, either recruits or mercenaries, according to more or less generally recognized rules. By the nineteenth century the laws of land warfare, established by long usage, had begun to take form as a definite body of international jurisprudence, violations of which were subject to diplomatic protest and to reprisal. Prominent among the problems which received cognizance in the course of this development were those dealing with the status and the rights of that part of the population of a belligerent state who did not participate in the hostilities. Although effective sanction was not always present, it was generally understood that the noncombatant or civilian population should be free from all violence or constraint other than that required by military necessity. In the case of the American Civil War, for example, the Federal government officially recognized the distinction between combatants and noncombatants in the Confederacy by incorporating in its famous "Instructions for the Government of Armies of the United States in the Field" (General Orders No. 100) specific provisions concerning the treatment of the civilian population in the zones of military operations. "As civilization has advanced during the last centuries," stated Article 22 of those instructions, "so has likewise steadily advanced, especially in war on land, the distinction between the private individual belonging to a

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hostile country and the hostile country itself, with its men in arms. The principle has been more and more acknowledged that the unarmed citizen is to be spared in person, property, and honor as much as the exigencies of war will admit." Succeeding articles proceeded to explain that in contrast with the practice of barbarous armies, where "the private individual of the hostile country is destined to suffer every privation of liberty and protection, and every disruption of family ties," in modern civilized warfare "protection of the inoffensive citizen of the hostile country is the rule; privation and disturbance of private relations are the exceptions." Article 44 then specified that "All wanton violence committed against persons in the invaded country, all destruction of property not commanded by the authorized officer, all robbery, all pillage or sacking, even after taking a place by main force, all rape, wounding, maiming, or killing of such inhabitants, are prohibited under the penalty of death, or such other severe punishment as may seem adequate for the gravity of the offense."[1]

Paradoxically, it was in that same conflict that a Union general, William Tecumseh Sherman, gradually evolved his own personal philosophy of war along lines which were clearly at variance with the official pronouncements, and in his practical application of that philosophy became one of the first of the modern generals to revert to the idea of the use of military force against the civilian population of the enemy. While this represents only a part of the present concept of total war, its significance lies in Sherman's demonstration of the effectiveness of a plan of action which would destroy the enemy's economic system and terrify and demoralize the civilian population. By paralyzing the enemy's economy he destroyed its ability to supply its armies; and by despoiling and scattering the families of the soldiers in the opposing army, he undermined the morale of the military forces of the Confederacy. Because the lessons which it taught were not likely to be ignored in the conduct of future wars, the process by which his

[1] These instructions, issued as General Orders No. 100, April 24, 1863, are in *The War of the Rebellion: A Compilation of the Official Records of the Union and Confederate Armies* (129 vols. and index, Washington, 1880-1901), Ser. III, Vol. III, pp. 148-64. This collection is cited hereinafter as *Official Records*.

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.71 - Battle Time: Gender, Modernity, and Confederate Hospitals

Cheryl A. Wells

ARTICLE	Battle Time: Gender, Modernity, and Confederate Hospitals
JOURNAL	Journal of Social History 35, no. 2 (2001)
EXCERPT	Original journal pages 409-410
JSTOR	https://www.jstor.org/stable/3790195

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BATTLE TIME: GENDER, MODERNITY, AND CONFEDERATE HOSPITALS

By Cheryl A. Wells University of South Carolina

While Confederate men took to the battlefields to ensure their independence, southern women challenged societal norms and took to the hospitals to care for the wounded. Archetypal southern womanhood mandated modesty, domesticity, purity, delicacy, refinement, gentility, and subordination; being a nurse meant none or few of these things.[1] It meant working outside the home, making vital decisions, challenging male doctors, and "intimacy with male bodies."[2] As several historians have recently demonstrated, this dissonance between the professed ideal of southern womanhood and the graphic realities of nursing caused male surgeons and hospital staff to ostracize Confederate nurses.[3] The presence and perseverance of female nurses in Confederate hospitals signified a new independence which freed women from the patriarchal control of Old South gender relations and accelerated social change. As Mary Elizabeth Massey puts it: "the Civil War provided a springboard from which . . . [women] leaped beyond the circumscribed 'woman's sphere' into the heretofore reserved for men."[4] More recent scholarship, however, has complicated these findings. While women certainly made gains during the Civil War, these gains were, according to Margaret Ripley Wolfe, Jean Friedman, Drew Gilpin Faust and George Rable, temporary.[5]

This article builds on and refines these recent findings by applying the historical study of time consciousness and multiple temporalities to the experiences of Confederate nurses. The article's principal points are these: first, it argues that some Civil War temporalities effectively degendered Civil War hospitals by making both Confederate nurses and male surgeons increasingly hostage to a new, entirely capricious temporality: battle time. Military time, generally, battle time specifically, complicated antebellum gendered temporalities and reconfigured them with a more antiseptic and ruthless time of large scale battle. Such temporal de-gendering, though, proved ephemeral. With southern defeat at Appomatox, southern white women's time, characterized by male-scheduled tasks largely prescribed by nature, religion, and the clock, returned.[6] Although nineteenth century Americans were attempting to build a modern, orderly society based in part on the clock, Civil War hospitals retarded such progress as clock time failed to impose order.[7] Instead a temporary resurgence of the task system emerged and, in many ways, proved to be more efficient and modern than clock time.

Secondly, this article argues that in Civil War hospitals, the link between gendered worlds broke and a new ruling time emerged. The exigencies of battle time eroded men's time and their customary authority over its allocation and replaced it with a standard temporality determined not so much by men or women but by the war machine. A single, ruling, and relatively egalitarian time which degendered hospitals by making men and women subject to the same temporal master temporarily superseded clock time. Although male surgeons and southern

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nurses continued to work within multiple times both became increasingly aware of and controlled by a new, entirely capricious time—battle time—a temporality independent of considerations of gender.

Finally, recent work on time consciousness is used to illustrate the nature of Confederate nurses' work and further our understanding of how the Civil War itself encouraged women to embrace an antebellum masculine time consciousness. In this reconfiguration, we see a temporary degendering of how men and women were supposed to use and apply time as well as an illustration of the emergence of a hegemonic or ruling time—the time of battle—in the context of a war that has recently been described as premodern.[8]

Southern nurses certainly carried out traditionally male prescribed female tasks during the War. They cleaned, tended, comforted, fed, and nurtured the wounded much as they had their own families and slaves in the antebellum era. Nursing "sick, wounded, and dying soldiers" has been seen as an affirmation and continuation of traditional sex roles.[9] Nursing, according to Jean Berlin, was not a "way to assert [feminine] power in the face of male supremacy; rather, it was an appropriate way for an obedient daughter of the patriarchy to serve her country" while still functioning within a domestic sphere controlled by men.[10] Other historians have suggested that the gendered relations of the plantation continued in the hospital's ward.[11] By examining social and labor relations within Civil War hospitals, Jane E. Schultz argues that the work of Civil War nurses was contingent on male authority.[12] Schultz suggests that men, doctors especially, regulated women's time and dictated nurses' actions by controlling the clock and using it to schedule the work day.[13] Contrary to Schultz, this essay, detailing the working of multiple temporalities, argues that time was degendered in Confederate hospitals. While the Confederacy gave doctors legal authority to control nurses' actions, male surgeons failed to consistently regulate, coordinate, or dictate the rhythms and patterns of work. Father Time failed to materialize in Civil War hospitals largely because male time was continually usurped by other times. Instead, a workplace emerged regulated by a hierarchy of multiple times which permeated and ultimately controlled work, in the process degendering the workplace by conflating gender roles as defined by male surgeons and the clock.[14]

From Medieval Europe to industrializing Britain to the antebellum American north, people operated within multiple times.[15] Antebellum southerners also operated within a temporal web fashioned by religious times, seasonal rhythms, and, increasingly, clock time.[16] While nature dictated seasonal planting, religious times and the clock regulated the labor and some of the processes that undergirded the plantation system. Although slaves may have worked from sunrise to sunset, it was not only the sun's movements which governed their work. God's time mandated the Sabbath as a day of rest.[17] For the remaining six work days, both clock-regulated horns and bells supplemented natural time and indicated the passage of time.[18] Southern masters and overseers used timepieces to ensure that tasks were completed in a timely fashion and that slaves were not malingering.[19]

The multiple times of the plantation penetrated the household and left southern mistresses with little leisure. For many mistresses, time was tyrannical because masters principally governed it. Women were expected "to provide food,

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.72 - 'The Women Rising': Cotton, Class, and Confederate Georgia's Rioting Women

Teresa Crisp Williams and David Williams

ARTICLE	'The Women Rising': Cotton, Class, and Confederate Georgia's Rioting Women
JOURNAL	The Georgia Historical Quarterly 86, no. 1 (2002)
EXCERPT	Original journal pages 49-50
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"The Women Rising": Cotton, Class, and Confederate Georgia's Rioting Women

By Teresa Crisp Williams and David Williams

In the spring of 1863, Georgia newspapers circulated a heart-wrenching verse. It was a reminder of the sacrifices made by soldiers' families and a general cry for help.

The Widow's Appeal

Stranger, have you corn?
Can you my wants supply?
My infant, early born,
Needs succor, else 'twill die.

At Crampton,[1] *where the skies*
With bullets were o'ercast—
There my loved Charlie lies,
And sadly breathed his last.

[1]Refers to the Battle of Crampton's Gap near Burkittsville, Maryland, September 14, 1862. It was part of a larger engagement known as South Mountain during the Maryland campaign of 1862. That campaign reached its climax three days later at the Battle of Sharpsburg (Antietam).

Ms. Williams is administrative coordinator of the Graduate School and instructor of history at Valdosta State University. Mr. Williams is professor of history and acting chair of the Department of History at Valdosta State University.

The Georgia Historical Quarterly
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I cannot, will not steal,
Me loved one to supply.
Will you my sorrows heal?
Refuse me and I die.

The days are sad and drear,
Since Charlie left me alone,
I'm a stranger, pilgrim here,
To Heaven I make my moan.[2]

What many had hoped would be a short conflict turned into a four-year war with consequences on the home front as well as the battlefield. Women on all sides felt the sting of battle, the loss of loved ones, and frequently the bite of hunger and other privations. In Georgia, thousands of indigent wives, mothers, and daughters wrote to Gov. Joseph E. Brown begging for assistance, but to little avail. As one writer so poignantly expressed in "The Widow's Appeal," all they wanted was food to keep themselves and their children alive. But, unlike the widow in the poem, most women would steal before they would starve. Because their cries of desperation so often fell on indifferent or ineffective ears, they took up knives and pistols, raided stores, warehouses and depots across the state, and stole flour, corn, bacon, yarn, and any other precious materials they needed to survive. Many took produce and livestock from Georgia plantations. How could conditions have deteriorated to the extent that women were forced to such actions? Were they not "southern belles" to be protected and provisioned by southern men? Perhaps that was true to some extent for women of the planter class, but not so for women of the plain folk. Though planters vowed to keep soldiers' families well fed during the war, they planted too much cotton and too little corn, which led to speculation and hoarding, hunger and rioting.

[2] *Americus Sumter Republican* in *Athens Southern Watchman*, April 3, 1863.

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.73 - Give Them Their Due: A Reassessment of African Americans and Union Military Service in Florida during the Civil War

Irvin D. S. Winsboro

ARTICLE	Give Them Their Due: A Reassessment of African Americans and Union Military Service in Florida during the Civil War
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GIVE THEM THEIR DUE: A REASSESSMENT OF AFRICAN AMERICANS AND UNION MILITARY SERVICE IN FLORIDA DURING THE CIVIL WAR

Irvin D. S. Winsboro*

During the Civil War in Florida, African American troops played a significant role in the Union victory. In sheer numbers alone, the African American units comprised a major Union presence within the state. Not allowed to enlist in regional regiments until 1862, the newly mustered black troops had to quickly prove their ability as soldiers. In the numerous skirmishes, raids, and larger conflicts that extended to every corner of Florida, African Americans often fought with bravery and distinction, despite the risk of slavery or execution if captured. Nevertheless, their aggregate roles in Union land and sea campaigns, their impact in driving home the magnitude of the war, and their own "special cause" of destroying slavery through force of arms in the southernmost Confederate state have often been ignored or underrepresented by early chroniclers and revisionist historical studies.

Most wartime accounts of Confederate Florida seldom refer to the black units, except in tangential references to "Colored troops" appearing in the area. In 1865 Union General and Provisional Governor of Florida, William Marvin, set the premise for this inaccurate assessment by declaring that African Americans in his state had "fought in no battles; or if engaged at all in such, they were trifling affairs."[1] His comments served to obfuscate African Americans' contribution to the war for generations to come. William Watson Davis in *The Civil War and Reconstruction in Florida*, a seminal work on the conflict in Florida, observed that African Americans' "most valuable services to the Union were as guide, spy, and plunderers, [who] usually gave way under determined attack." Charlton Tebeau's standard work, *A History of Florida*, devotes but one sentence to African Americans' contributions to the Union effort. Tebeau limited his observations to the following: "General Rufus Saxton, the Union commander of the Department of the South, toward the end of the war used refugee Negroes as guides and received permission to enroll them as soldiers . . . mostly at the end of the conflict."[2] Indeed, a common thread running through Civil War literature is that African American

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servicemen, with the sometimes exception of their duty at the noteworthy Battle of Olustee, served only briefly and peripherally in Florida and that they and their actions lacked both individuality and agency.

Consequently, the depth and breadth of the African Americans' military service in Florida during the Civil War has been missing in the literature for almost a century and a half. Indeed for much of this period, the rhetorical makeover of these events relegated African Americans to such minor and perhaps ignoble roles as "guide, spy, and plunderer."[3] However, military records in the National Archives and elsewhere document clearly that African American fighting men added a deep and meaningful dimension to the Union efforts in the southernmost theater of Civil War military operations. This needs scrutinizing by those interested in an accurate synthesis of the Civil War because African Americans made a major contribution to the Union strategy and impact in remote southern states such as Florida, both on land and at sea.

EAGER FOR THE FIGHT

The black troops that served in Florida arrived from units created during the first wave of African American enlistment in Union military service. Although African Americans had flooded the War Department with petitions to serve from the fall of Fort Sumter in 1861, the federal government and War Department refused to allow mass African American enlistment until 1863. Some commanders, among them Adjutant General Lorenzo Thomas, supported emancipation and recruited free African Americans in the South. In the spring of 1862, Department of the South commander, Major General David ("Black David") Hunter, had proclaimed that martial law liberated all slaves in South Carolina, Georgia, and Florida (an order Lincoln later revoked), and sanctioned raising the initial black regiment, the First South Carolina Volunteer Infantry, which completed early action in Florida. Lincoln remained dilatory on the issue until Congress, faced with declining enlistments and an unpopular military draft, passed a new Militia Act in the summer of 1862 which authorized the President to employ persons of African descent.[4] The War Department later responded by creating the Bureau for Colored Troops under General Order No. 143 on 22 May 1863, an act that changed both the Union Army and the war.[5]

The first regiment of the U.S. Colored Troops (USCT) mustered into Union service on 30 June 1863 at Washington, DC. Some of the enlistees numbered free African Americans from the North, but most of them had once been enslaved and joined the military as "freedmen," "contraband," or "farmers." The zeal of these fresh troops often won the respect of skeptical commanders. As early as 31 October 1863, one of the Bureau's commanders wrote to Secretary of War Edwin Stanton that the "colored troops have already established for themselves a commendable reputation . . . [for] their discipline, their endurance, and their valor."[6] About 165

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CHAPTER 14 | SCHOLARLY ARTICLE

A14.74 - From Home Front to Battlefront: Brothers in the Civil War

Jeremy Youngs

ARTICLE	From Home Front to Battlefront: Brothers in the Civil War
JOURNAL	New York History 97, no. 2 (2016)
EXCERPT	Original journal pages 166-167
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From Home Front to Battlefront:
Brothers In The Civil War

Jeremy Youngs, Independent Scholar

The prominent Civil War historian James M. McPherson writes that "One of the phrases often used to describe the American Civil War is 'The Brothers' War.'"[1] McPherson was referring to a divided nation and government, but he went on to assert "most of the men in a volunteer company had enlisted from the same community or county. Many of them had known each other from childhood."[2] In her study on death and the Civil War, Drew Gilpin Faust notes "most Civil War combatants were very like one another-metaphorically if not literally, brothers."[3] Both of these award winning historians of the American Civil War and its aftermath discuss the idea of the war being fought by individuals who, through the perils of war, became brothers in arms.

In New York State, many biological brothers enlisted in the same regiment. These men camped, marched, and fought side by side, but this critical aspect of the war has not received adequate attention from historians. This study has its origins in Isaac Hall's *The History of the Ninety-Seventh Regiment New York Volunteers,* which describes the experience of two German brothers George (forty-three-years-old) and Gottfired Gleasman (forty-four-years-old). According to Hall the two "brothers were standing in line together, when one of them was killed by the unerring aim of a Confederate marksman who had steadied his piece against a tree. The other, aware of the position of the man who had fired the fatal shot, said 'There is the man who killed my brother, and he is takin aim now against that tree.' An elbow was seen to protrude from a solitary oak in

1. James M. McPherson, *For Cause and Comrades Why Men Fought In The Civil War*. (NewYork: Oxford University Press, 1997), 14.
2. McPherson, *For Cause and Comrades*, 80.
3. Drew Gilpin Faust, *This Republic of Suffering Death and the American Civil War.* (New York: Alfred A. Knopf, 2008), 32.

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the enemy's line, and the next moment he lay dead beside his brother."[4] After reading Hall's account of the Gleasman brother's final moments at the Battle of Antietam, a major question emerged: What was the impact of biological brothers fighting side by side during the Civil War? This study seeks to answer this question first by exploring how biological brothers influenced one another while serving in the Union Army during the Civil War and second, by examining the war's impact on brothers who fought side-by-side.

The presence of a brother, serving in the same regiment, offered strength and stability to his sibling. As a result, these mentally and emotionally fortified soldiers contributed to the integrity of the regiment and the Union war effort. Men who had their brothers with them handled the harsh reality of combat and military life better than those who faced the war alone. The men's letters illustrate that when a soldier had his brother with him, he was less likely to feel homesick, afraid and anxious. Brothers provided the resilience men needed to confront the battlefield.

To compare the soldiers who served with their brothers with those who did not, the study is divided into two groups of soldiers: "brothers" and "loners," each of whom served in regiments from Upstate New York, primarily the 97 New York Volunteer Infantry from Boonville, but also the 126 New York Volunteer Infantry from Geneva, the 114 New York Volunteer Infantry from Norwich and the 117 New York Volunteer Infantry from Rome.[5] The context of each letter was critical in interpreting a soldier's frame of mind. It was necessary to be aware of which battles the soldier had experienced near the time each letter was written.[6] The dates of battles and the separation of brothers due to furlough, injury, or sickness proved vital in understanding the letters. The documents reveal a change that occurred in brothers who were without their siblings. When soldiers

4. Isaac Hall, *History of the Ninety-Seventh Regiment New York Volunteers* (New York: L.C. Childs and Son, 1890), 92–93.

5. James M. McPherson states that "It is worth noting that the 97 New York was one of the best regiments in the Army of the Potomac." See McPherson, *For Cause and Comrades,* 55. The term "loners" denotes men who served in a regiment or participated in a battle without the presence of a brother.

6. The analysis relies on 303 letters that range chronologically from early 1862 to mid-1865. The Snow Brothers collection, found in the Erwin Library in Boonville, was the initial collection of letters used. After discovering the importance of having a brother in service, I found it necessary to expand the study to other regiments. This allowed me to determine if there were other examples that mirrored the experience of the Snow brothers.

To preserve the soldier's voice in the letters used in this study, the author has not altered the spelling or the punctuation found in the original document.

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.1 - Laissez Faire vs. Equal Rights: Liberal Republicans and Limits to Reconstruction

Wilbert H. Ahern

ARTICLE	Laissez Faire vs. Equal Rights: Liberal Republicans and Limits to Reconstruction
JOURNAL	Phylon 40, no. 1 (1979)
EXCERPT	Original journal pages 52-53
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By WILBERT H. AHERN

Laissez Faire vs. Equal Rights: Liberal Republicans and Limits to Reconstruction

THE FAILURE of the Second Reconstruction to dissipate racial discrimination or prejudice has made historians more aware of the tenacity of these American characteristics. This awareness has led to some valuable correctives and some potential distortions. Reacting to a vision of the mid-nineteenth century "as an interlude of redeeming virtue . . . when white Americans . . . put aside their racism," such scholars as Eugene Berwanger, Leon Litwack, Loren Ratner, V. Jacques Voegeli, and Forrest G. Wood have underscored the presence of prejudice. While racial antipathy was incontestably present, historians must not let this new emphasis obscure the real contrasts between the Reconstruction period and either the antebellum slave society or the height of jim crow and "respectable" racism of the early twentieth century. To do so is to miss the complexity of the dynamics of racism. The danger lies in equating race prejudice with racism and neglecting other variables than prejudice that contribute to patterns of discrimination along racial lines.[1]

An emphasis on race prejudice makes less surprising the failure of Reconstruction to secure freedom for the freedmen, but it does little to explain why a policy of equal rights went as far as it did. An examination of the Liberal Republican movement of 1872 offers more insight into why Reconstruction went so far but no farther. Despite their failure in the presidential election, the Liberals proposed solutions for the future of the freedmen and for the relationship of the federal government with the South which received increasing support in the following years and bore a striking resemblance to the policy which President Rutherford B. Hayes instituted in 1877. Was their action an abandonment born of racial antipathy? The evidence suggests that their role was more paradoxical and reveals how a nonracist ideology assisted racism.[2]

The stalwart Republicans of 1872 first articulated the theme that the Liberals abandoned the Freedmen. The intensity of Southern resistance in the preceding year, highlighted by the thorough and well publicized

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[1] C. Vann Woodward, "The Northern Crusade Against Slavery," *American Counterpoint: Slavery and Racism in the North-South Dialogue* (Boston, 1971), p. 140. This essay discusses this trend and also gives too primary a role to race prejudice. For insights into the factors shaping the degree of oppression in ethnic contacts see Pierre van den Berghe, *Race and Racism: A Comparative Perspective* (New York, 1967) and R.A. Schermerhorn, *Comparative Ethnic Relations: A Framework for Theory and Research* (New York, 1970).

[2] This article concentrates on the ideologues, the articulate reform leadership, of the Liberal Republican movement. It does not analyze all of the factions of this complex and temporary coalition nor the issues that explain many of the splits in the local level of the Republican party. For a study in the interaction between social values and action, this focus is sufficient and suggestive. For the Liberal Republican movement see Matthew T. Downey, "The Liberal Reform Movement, 1865-1872" (Unpublished Ph.D. dissertation, Princeton University, 1963); Earle D. Ross, *The Liberal Republican Movement* (New York, 1919); John G. Sproat, *"The Best Men": Liberal Reformers in the Gilded Age* (New York, 1968), chapters 1-4.

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congressional investigation of the Ku Klux Klan, published in February, 1872, made the "Southern question" an important issue in 1872. The Grant administration's vulnerability to charges of corruption and excessive partisanship and a public interest in national reconciliation led the Republicans to make the fate of the freedmen the foremost issue. Republicans charged that their Liberal opponents' policy of "reconciliation" and "local self-government" would return the freedmen to slavery in fact if not in name. Thomas Nast's mordant caricatures of Liberals and ex-Confederates joining hands over the corpses of the freedmen captured the thrust of Republican rhetoric.[3]

This charge, strengthened by the decline of the position of Southern blacks following Reconstruction, has led many historians to question the commitment of the Liberal Republican movement to equal rights. Recent historiography adopts the Stalwart charge that the Liberals "abandoned" the freedmen. They reversed themselves on Reconstruction, some scholars have argued, because of a growing disillusionment with the racial capacities of Freedmen, a fear of a social revolution, and/or despair with Southern governments. In fact, however, the 1872 action reflected no reversal. While evidence exists of some racist-tinged disillusionment or concern for social stability, these attitudes only reflected and confirmed Liberal assumptions that existed at the first stages of Reconstruction.[4]

Those whom the Stalwarts accused of "abandoning the freedmen" had been prominent figures in the founding of the Republican Party. Samuel Bowles, William Cullen Bryant, Horace Greeley, Whitelaw Reid, Theodore Tilton and Horace White were much younger and different men in the 1850s but from their varied locales and newspapers they worked for the emergence of the Republican party. More obviously behind a party for "free soil, free labor, free men" were such politicians as Francis W. Bird, Roeliff Brinkerhoff, Jacob D. Cox, B. Gratz Brown, Austin Blair, Jacob M. Howard, George W. Julian, Gustave Koerner, John M. Palmer, Carl Schurz, Charles Sumner and Lyman Trumball, all of whose rise to national prominence came through the Grand Old Party.

Moreover, men who would join the Liberal movement in 1872 could point to a record of opposition to discrimination against black Americans that contrasted favorably to the overall record of the Republican party.

[3] Allen W. Trelease, *White Terror: The Ku Klux Klan Conspiracy and Southern Reconstruction* (New York, 1971) provides a complete analysis of such terrorism and the congressional investigation. For Nast's cartoons see Morton Keller, *The Art and Politics of Thomas H. Nast* (New York, 1971).

[4] Suggesting that the Liberals weakened or reversed their previous positions are Patrick W. Riddleberger, "The Break in the Radical Ranks: Liberal vs. Stalwarts in the Election of 1872," *Journal of Negro History*, XLIV (April, 1959), 136-57; Riddleberger, "The Radicals' Abandonment of the Negro during Reconstruction," *ibid.*, XLV (April, 1960), 88-102; Sproat, *op. cit.*, chapter 2, esp. pp. 29-44, 79-85; Hans L. Trefousse, *The Radical Republicans: Lincoln's Vanguard for Racial Justice* (New York, 1969), pp. 454-63; Kenneth M. Stampp, *The Era of Reconstruction, 1865-1877* (New York, 1966), p. 191. Seeming to accept the reversal thesis but providing support for the continuity of Liberal action are James M. McPherson, "Grant or Greeley? The Abolitionist Dilemma in the Election of 1872," *American Historical Review*, LXXI (October, 1965), 43-62; Montgomery, *Beyond Equality: Labor and the Radical Republicans, 1862-1872* (New York, 1967), pp. 379-86.

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.2 - Black Urban Churches on the Southern Frontier, 1865-1900

Alwyn Barr

ARTICLE	Black Urban Churches on the Southern Frontier, 1865-1900
JOURNAL	The Journal of Negro History 82, no. 4 (1997)
EXCERPT	Original journal pages 368-369
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BLACK URBAN CHURCHES ON THE SOUTHERN FRONTIER, 1865-1900

By
Alwyn Barr*

Religion became an even more important source of strength in the lives of former slaves as they made the transition to free people after the Civil War and exercised greater control over their worship experiences. Furthermore, churches related to a variety of other activities pursued by African-Americans after emancipation. Religion in the cities of the South differed from that of rural areas because of the greater concentration of potential church members, the increased opportunities for education of clergy, and the more diverse activities that competed with religion for the time and interests of individuals. Existing studies focus primarily on black churches in the Southeast, from the Atlantic coast to the Mississippi River. Thus it becomes important to explore African-American religious activity in the smaller but more rapidly growing urban areas on the southern frontier, west of the Mississippi, in the period after emancipation. Those churches in Arkansas, Louisiana, and Texas might vary from the patterns of congregations in larger towns east of the Mississippi, especially since fewer free blacks or urban slaves lived west of the Mississippi before the Civil War. Four communities have been selected for the purpose of exploring church development in that region: Little Rock, the largest town in Arkansas; Shreveport, the major urban area in western Louisiana; and Houston and San Antonio, two of the three largest towns in Texas.[1]

Some patterns of Post-Civil War black religious activity had antebellum origins. Occasional African influences still appeared in the late nineteenth century. In Little Rock an African-American woodcutter, Jerry Vaughn, explained that he murdered a black carpenter named John Francis in 1872 "because he poisoned my hand; it is always cold, and . . . he was often throwing Lucy Scott into spasms." As late as 1884 a voodoo healer in Houston employed "a concoction out of herbs and the entrails of various reptiles gathered in the dark of the moon" which he placed on the skin of another man to repell the effects of a curse. Probably other instances went unreported. Yet African ideas did not dominate black religion in the postwar towns.[2]

Denominations led locally by white southerners often tried to keep their former slave members as a means of control or influence. Efforts to retain black members persisted the longest in Congregational, Episcopal and Presbyterian churches. In Houston, Congregationalists offered Sunday School classes for African Americans as late as 1870, although the Presbyterian efforts lasted only into 1866. Whites and blacks conducted services at different times on Sunday in one Presbyterian church at Shreveport. The Episcopal church in San Antonio still maintained a "colored Sunday school"

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which met during the afternoon in 1872. White goals in these efforts reflected diverse views. Some acted out of evangelical commitment. The Houston *Telegraph* spoke for others who hoped to encourage "mutual dependence" and limit the impact of northern ideas. Although these practices disappeared in the 1870s, Anglo evangelists held special services for blacks or allowed segregated participation in their revivals even in the 1890s. In Little Rock during the summer of 1891, black church leaders helped conduct a revival in which 1,500 African Americans filled the back seats in a huge tent.[3]

Despite those efforts, most freed people moved quickly after emancipation to form their own evangelical Protestant congregations. In Houston and Little Rock the first groups evolved from separate slave churches that existed before the Civil War. William Wallace Andrews, whose master allowed him to live with his family in a house at the edge of town, gathered other slaves there for religious services beginning about 1848. On land provided by his owners, the Ashleys, Andrews and his slave congregation constructed their first Methodist church building during 1853-1854. Other bondsmen met occasionally as Baptists and apparently formed a congregation in 1858 under the leadership of Wilson Brown. When the Union army captured Little Rock in 1863, both congregations became churches for freed people. The Methodists joined the Methodist Episcopal Church and adopted the name Wesley Chapel, "amid shouts of thanksgiving and songs of praise to the Father in Heaven."[4]

Before the war Houston slaves had been allowed to construct a small church in the rear of the Methodist Episcopal Church, South. Upon emancipation, the members, led by former slave preacher Elias Dibble, transferred to the Methodist Episcopal Church and in 1866 erected on their own land Trinity M.E. Church. Blacks also met with the help of white missionaries at Anglo and German Baptist Churches as well as an arbor in 1865 to plan for the creation of Antioch Baptist Church in January 1866, under the direction of ex-slave preacher Sandy Parker. A newspaper reported "a deadly feud exists between several members of the African Methodist and Baptist churches," which may have reflected early competition for members as well as theological differences.[5]

Whether slave congregations existed in Shreveport and San Antonio is unclear, but freedmen's churches formed quickly in both towns. In Shreveport, a Freedmen's Bureau officer spoke before black congregations in August 1865. Early buildings reflected hurried construction, for the floor in the Methodist church gave way under a large gathering. This congregation probably became St. James Methodist Church. By early 1866 the Baptists sought funds to construct a new building that would house Antioch Baptist Church.[6]

Religious organizations in San Antonio moved more slowly, probably because of a smaller black population. Local African-American ministers, led by Nace Duval, a former slave preacher, established the first Methodist congregation by the fall of 1867. When ministers Richard Haywood of the African Methodist Episcopal Church and Joseph Welch of the Methodist Episcopal Church arrived in 1868 intense competition followed for support of the black Methodists and control of the existing church house. St. Paul Methodist Church held the original building, while the African Methodist congregation moved to the "old soap factory," a stone structure that became St. James A.M.E. Church. Four years later the African Methodists won a court suit over the initial building. A few blacks sought to attend a white Baptist revival in San Antonio during 1868. Yet the actual organization of a congregation did not occur until

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.3 - The Politics of Economic Crises: The Panic of 1873, the End of Reconstruction, and the Realignment of American Politics

Nicolas Barreyre

ARTICLE	The Politics of Economic Crises: The Panic of 1873, the End of Reconstruction, and the Realignment of American Politics
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The Politics of Economic Crises: The Panic of 1873, the End of Reconstruction, and the Realignment of American Politics[1]

Nicolas Barreyre, Université Paris Ouest Nanterre

On September 18, 1873, the announcement of Jay Cooke and Company's bankruptcy sent Wall Street to a panic, and the country to a long, harsh depression. Americans interpreted this economic crisis in the light of the acrimonious financial debates born of the Civil War—the money question chief among them. The consequences transformed American politics. Ideologically ill-equipped to devise cohesive economic policies, political parties split dangerously along sectional lines (between the Northeast and the Midwest). Particularly divided over President U.S. Grant's veto of the 1874 Inflation Bill, the Republican Party decisively lost the 1874 congressional elections. As a Democratic majority in the House spelled the doom of Reconstruction, the ongoing divisions of both parties on economic issues triggered a political realignment. The dramatic 1876 elections epitomized a new political landscape that would last for twenty years: high instability in power at the national level and what has been described as the "politics of inertia." Therefore, by closely following the ramifications of the 1873 panic, this article proposes an explanation of how an economic crisis transformed into a pivotal *political* event.

Before the crisis of 1929 claimed the name, the "Great Depression" commonly referred to the tough economic times ushered in by the Panic of 1873. Starting with a double financial crash (in Vienna, Austria, in the spring, and in New York in the fall), it evolved into a full-blown economic depression that spread through Europe and North America, with an initial recession that severely affected production, prices, and wages. Social costs

[1]This article greatly benefited from the comments of many fine scholars who have either read or heard it at different stages. I particularly wish to thank Margo Anderson, Richard Bensel, Pierre Gervais, Jean Heffer, Richard John, and Scott Nelson for their very helpful input.

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were heavy; widespread unemployment bred labor unrest and strikes, often met with harsh repression.

Nevertheless, we know surprisingly little about this major event of the postbellum United States. Although its historical impact was large—and, as two scholars have recently argued, it might be particularly relevant to understand today's economic crisis[2]—few studies have tried to explain its manifold consequences, economic, social, and political.[3] Reconstruction is a case in point. Arguably the most salient political issue of the day, it could not but be affected by a crisis of such magnitude, yet many classic studies simply overlook it.[4] Others mention it, but rarely give it real explanatory power in their arguments.[5] It might be that the historiography of Reconstruction, focusing on race and politics in the South, has evolved very separately from other historiographies dealing with developments within the North.[6] Still, even studies with a more national scope, while they give more importance to the 1873 economic crisis, generally approach its political consequences in the broadest terms (often in striking contrast with the detailed analyses they otherwise offer).[7] The specific causal links between the economic crisis and the fate of Reconstruction remain nebulous.

To many historians, however, it seems obvious that the 1870s were a turning point in American history. Textbooks also tell us so, generally using 1877 as

[2]Scott Nelson, "The Real Great Depression," *Chronicle of Higher Education*, Oct. 17, 2008; Paul Krugman, "The Third Depression," *New York Times*, June 27, 2010. The current crisis has renewed scholarly interest in historical precedents: see Carmen M. Reinhart and Kenneth S. Rogoff, *This Time Is Different: Eight Centuries of Financial Folly* (Princeton, 2009).

[3]There is no equivalent to the study of the Panic of 1857 by James L. Huston, *The Panic of 1857 and the Coming of the Civil War* (Baton Rouge, 1987).

[4]See for instance such standard works as William Gillette, *Retreat from Reconstruction, 1869–1879* (Baton Rouge, 1979); and Michael Perman, *The Road to Redemption: Southern Politics, 1869–1879* (Chapel Hill, 1984); or, more recently, Brooks D. Simpson, *The Reconstruction Presidents* (Lawrence, KS, 1998).

[5]A typical example might be James Keith Hogue, *Uncivil War: Five New Orleans Street Battles and the Rise and Fall of Radical Reconstruction* (Baton Rouge, 2006). The author mentions the economic recession only to explain that unemployment swelled the ranks of the White Leagues in Louisiana.

[6]Heather Cox Richardson underlines this in "North and West of Reconstruction: Studies in Political Economy" in *Reconstructions: New Perspectives on the Postbellum United States*, ed. Thomas J. Brown (Oxford, 2006), 66–90.

[7]For instance, Eric Foner views it as a large shift in the history of political thought and culture; the end of free-labor ideology put the fear of class warfare into the elites and pushed the Republican Party to economic conservatism. Foner, *Reconstruction: America's Unfinished Revolution, 1863–1877* (New York, 1988), 512–24. More recently, Michael Holt argued that voters generally voted the party out of power when such a hardship hit: David Herbert Donald, Jean Harvey Baker, and Michael F. Holt, *The Civil War and Reconstruction* (New York, 2001); Michael F. Holt, *By One Vote: The Disputed Presidential Election of 1876* (Lawrence, KS, 2008).

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.4 - Abraham Lincoln and Federalism

Michael Les Benedict

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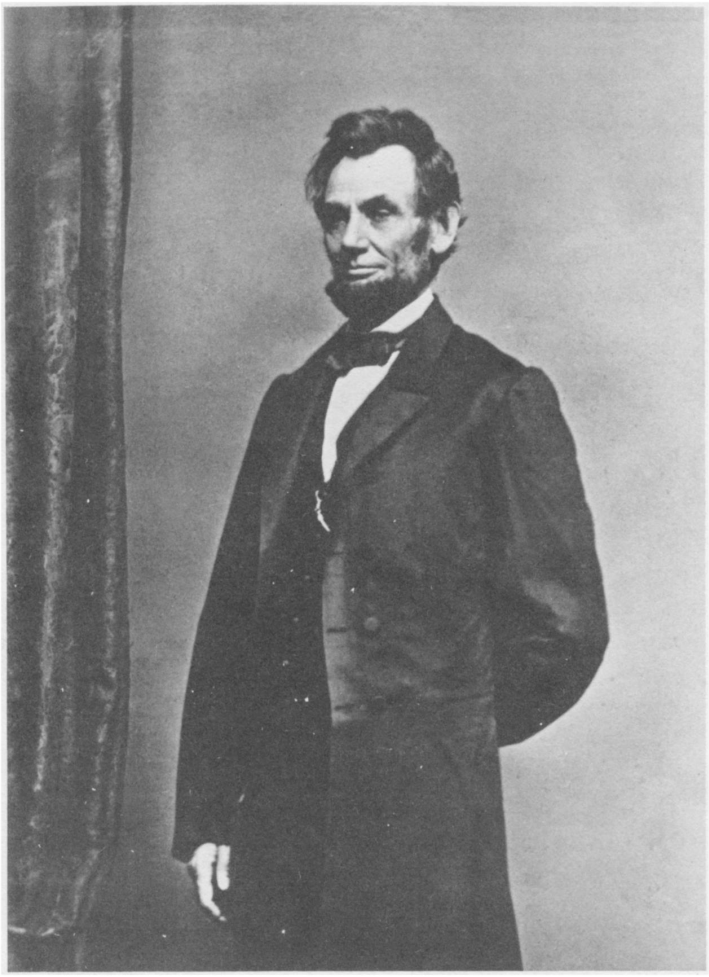

Mathew Brady print of Lincoln, January 8, 1864, Washington, D.C.

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Abraham Lincoln and Federalism

MICHAEL LES BENEDICT

The Civil War often is seen as a turning point in the history of American federalism. In one sense the truth of this perception is beyond dispute. Had the South secured secession by force of arms, the Union would have been broken, the federal system disrupted. There is no telling what the consequences for attitudes toward federalism the world over would have been or what sort of federal system would have survived, North or South.

But scholars—especially constitutional scholars—see the Civil War as a turning point in a narrower doctrinal sense. They perceive the doctrine of state sovereignty, by which southerners justified secession, to have embodied a profound challenge to the federal system created by the Founders. Yet constitutional historians have not attended very well to antebellum theories of federalism. There has been a tendency to overidentify with antebellum constitutional nationalism as the "correct" understanding of federalism endorsed by the Supreme Court and to view state sovereignty as a kind of heresy.[1] Analysts also assume that modern-day constitutional nationalism corresponds to Marshallian nationalism and that acknowledgments

1. For traditional constitutional histories that explicitly or implicitly indicate that constitutional nationalism has been the "correct" doctrine of American federalism, see Hermann von Holst, *The Constitutional and Political History of the United States*, 8 vols. (Chicago: Callaghan, 1877–92); James Ford Rhodes, *History of the United States from the Compromise of 1850 to the Final Restoration of Home Rule at the South*, 7 vols. (New York: Harper & Bros., 1893–1906); Francis Newton Thorpe, *The Constitutional History of the United States, 1765–1895*, 3 vols. (Chicago: Callaghan, 1901); Charles Warren, *The Supreme Court in American History*, 3 vols. (Boston: Little, Brown, 1922); Andrew C. McLaughlin, *A Constitutional History of the United States* (New York: D. Appleton-Century, 1935); Benjamin F. Wright, *The Growth of American Constitutional Law* (New York: Houghton Mifflin, 1942); Carl Brent Swisher, *American Constitutional Development* (Boston: Houghton Mifflin, 1943); Carl Brent Swisher, *The Growth of Federal Power in American History* (Chicago: University of Chicago Press, 1946); Robert G. McCloskey, *The American Supreme Court* (Chicago: University of

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.5 - Preserving the Constitution: The Conservative Basis of Radical Reconstruction

Michael Les Benedict

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Preserving the Constitution: The Conservative Basis of Radical Reconstruction

MICHAEL LES BENEDICT

IN the 1950s and especially the 1960s, Reconstruction history underwent its own reconstruction. As twentieth-century Americans became more and more aware of their own racial crisis, historians reassessed the racial crisis which faced their ancestors, bringing to the profession and to the public a new appreciation of the problems Americans faced in restoring national and state governments in which the personal and civil rights of black Americans would be protected for the first time.[1] Historians have reevaluated the motives of the so-called Radical Republicans, the character of President Andrew Johnson, and the very nature of the issues which confronted Americans after the Civil War. But they have not yet reevaluated the constitutional framework within which Reconstruction proceeded, despite the fact that, in Eric L. McKitrick's words, constitutional limitations formed "an indispensable part of the framework within which men thought in the nineteenth century."[2] Most recent scholars have abandoned the prejudicial

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[1] See Fawn M. Brodie, *Thaddeus Stevens: Scourge of the South* (New York, 1959); LaWanda Cox and John H. Cox, *Politics, Principle, and Prejudice 1865-1866: Dilemma of Reconstruction America* (New York, 1963); David Donald, *The Politics of Reconstruction 1863-1867* (Baton Rouge, 1965); John Hope Franklin, *Reconstruction: After the Civil War* (Chicago, 1961); Harold M. Hyman, ed., *The Radical Republicans and Reconstruction 1861-1870* (Indianapolis, 1967); Eric L. McKitrick, *Andrew Johnson and Reconstruction* (Chicago, 1960); James M. McPherson, *The Struggle for Equality: Abolitionists and the Negro in the Civil War and Reconstruction* (Princeton, 1964); Willie Lee Rose, *Rehearsal for Reconstruction: The Port Royal Experiment* (Indianapolis, 1964); Kenneth M. Stampp, *The Era of Reconstruction, 1865-1877* (New York, 1965); Benjamin P. Thomas and Harold M. Hyman, *Stanton: The Life and Times of Lincoln's Secretary of War* (New York, 1962); Hans L. Trefousse, *Ben Butler: The South Called Him BEAST!* (New York, 1957); H. L. Trefousse, *Benjamin Franklin Wade: Radical Republican from Ohio* (New York, 1963); Hans L. Trefousse, *The Radical Republicans: Lincoln's Vanguard for Racial Justice* (New York, 1969). The work of English historian W. R. Brock, *An American Crisis: Congress and Reconstruction, 1865-1867* (London, 1963), also has had great influence.

[2] McKitrick, *Johnson and Reconstruction*, 95.

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conclusion of historians writing from the 1930s through 1950s—that "For the Constitution itself . . . [Republicans] had little respect."[3] But except for a few tantalizing hints at deeper understandings, historians writing in the 1960s either continued to give constitutional aspects of Reconstruction slight attention or resurrected the less biased analyses first forwarded at the turn of the century by William A. Dunning and John W. Burgess.[4]

The exceptions—brief dicta by McKitrick and William R. Brock and a longer comment by constitutional historian Alfred H. Kelly—suggest a fundamental revision of our understanding of the constitutional basis for Reconstruction. These three scholars, especially Kelly, suggest that Republicans were fundamentally conservative in their attitudes toward the United States Constitution and the federal system it delineated. Kelly argues that the Reconstruction program, so long believed by historians to have been a radical departure from traditional constitutional forms, violative of the principles of American federalism, actually was framed by constitutional conservatives who envisioned little real alteration in national-state relations.[5]

McKitrick, Brock, and Kelly present insights of fundamental importance into the constitutional nature of Reconstruction legislation, but they have not offered detailed analysis of the theoretical framework within which Republicans developed their program. Such an analysis reveals the true con-

[3] Howard K. Beale, *The Critical Year: A Study of Andrew Johnson and Reconstruction* (New York, 1930), 214-15. See also Robert Selph Henry, *The Story of Reconstruction* (New York, 1938), 184; and J. G. Randall and David Donald, *The Civil War and Reconstruction* (Boston, 1961), 633. Milton Lomask entitled one of his chapters "The Subversion of the Federal System." Milton Lomask, *Andrew Johnson: President on Trial* (New York, 1960). Most of the work on Reconstruction that appeared between the late 1920s and the 1950s barely mentioned the constitutional aspects of the struggle. As Eric L. McKitrick points out, most historians simply presumed Andrew Johnson's position to be the constitutional one. McKitrick, *Johnson and Reconstruction*, 93.

[4] McKitrick and Rembert Patrick rehash the well accepted but somewhat superficial outlines of the various theories of Reconstruction presented by William A. Dunning and John W. Burgess. See William Archibald Dunning, *Essays on the Civil War and Reconstruction and Related Topics* (New York, 1904), 63-135; John W. Burgess, *Reconstruction and the Constitution, 1866-1876* (New York, 1902); McKitrick, *Johnson and Reconstruction*, 93-119; and Rembert W. Patrick, *The Reconstruction of the Nation* (New York, 1967), 55-59. W. R. Brock's discussion of constitutional issues during Reconstruction is fresher and thought provoking but not fully developed. Brock, *An American Crisis*, 250-73.

[5] Alfred H. Kelly, "Comment on Harold M. Hyman's Paper," Harold M. Hyman, ed., *New Frontiers of the American Reconstruction* (Chicago, 1966), 40-58; McKitrick, *Johnson and Reconstruction*, 117-19; Brock, *An American Crisis*, 271-73. Phillip S. Paludan has arrived at the parallel conclusion that the great nationalist constitutional commentator, John Norton Pomeroy, was thoroughly committed to preserving the traditional functions of the states after the war. Phillip S. Paludan, "John Norton Pomeroy, State Rights Nationalist," *American Journal of Legal History*, 12 (Oct. 1968), 275-93.

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.6 - Southern Democrats in the Crisis of 1876-1877: A Reconsideration of Reunion and Reaction

Michael Les Benedict

ARTICLE	Southern Democrats in the Crisis of 1876-1877: A Reconsideration of Reunion and Reaction
JOURNAL	The Journal of Southern History 46, no. 4 (1980)
EXCERPT	Original journal pages 489-490
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Southern Democrats in the Crisis of 1876–1877: A Reconsideration of *Reunion and Reaction*

By Michael Les Benedict

In 1951 C. Vann Woodward published two books that established him as one of the premier historians of the American South, a position confirmed by his continued accomplishments. In one of these, *Origins of the New South,* Woodward exploded the myth of southern Bourbonism after Reconstruction. The so-called Redeemers, he demonstrated, were not the diehard planter reactionaries depicted by Populist and Progressive enemies at the turn of the century and by historians since that time. Rather, they were entrepreneurs who shared the values and interests of their northern counterparts and who opposed the anticapitalist reforms championed by such radical dissidents as Thomas Edward ("Tom") Watson, the Georgia agrarian whose life Woodward had chronicled earlier.[1] Looking backward from the 1880s and 1890s when these conservative capitalists were ascendant, Woodward discerned a new meaning in the end of Reconstruction, one that confirmed the predominant historical understanding of the 1940s that Reconstruction embodied an effort by northern capitalists to secure their interests against renascent western and southern agrarianism.

These earlier historians had suggested that Republicans had abandoned their pretense of concern for ex-slaves' well-being when it became apparent that southerners no longer threatened the economic supremacy of the industrial interests they represented.[2] In *Origins of the New South* and more fully in his second 1951 volume, *Reunion and Reaction: The Compromise of 1877 and the End of*

[1] Woodward, *Origins of the New South, 1877–1913* ([Baton Rouge], 1951); Woodward, *Tom Watson: Agrarian Rebel* (New York, 1938).

[2] Howard K. Beale, *The Critical Year: A Study of Andrew Johnson and Reconstruction* (New York, 1930); Charles A. and Mary R. Beard, *The Rise of American Civilization* (2 vols., New York, 1927), II, 98–213; James G. Randall, *The Civil War and Reconstruction* (Boston, 1937); William B. Hesseltine, "Economic Factors in the Abandonment of Reconstruction," *Mississippi Valley Historical Review,* XXII (September 1935), 191–210.

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Reconstruction, Woodward bolstered the thesis by presenting evidence that Rutherford Birchard Hayes's emergence as President in the crisis following the disputed election of 1876 resulted from a definite bargain between northern Republicans and Whiggish southern Democrats over primarily economic issues. In return for southern Democratic support for his inauguration, Hayes agreed to end the interference in southern states that was now irrelevant to northern Republican industrial interests. More important, he promised to support economic legislation beneficial to the South—especially national help in building the Texas and Pacific Railroad, which would link the South to the Pacific Coast, and in repairing the war-wrecked Mississippi River levees. With such an economic alliance cemented, the southerners would desert the Democratic party and join the Republican, the vehicle of triumphant American capitalism.[3] Thus, *Reunion and Reaction* was one of the last, most important, and most sophisticated works of the Progressive school of history. Informed by the assumptions of economic determinism, Woodward took for granted "a class, or at least an economic, basis for our major parties," as David Herbert Donald observed in 1970. Appropriately, Woodward specially acknowledged his debt to Charles Augustus Beard in the preface to his book.[4] But Woodward went beyond the simple assertion, so common to the genre, that key historical events were determined by economic factors; he offered compelling evidence from the papers of the actors themselves. Thus, he fashioned a work that could survive the demise of economic determinism as an interpretive framework for American history.

Although some reviewers were dubious, the force of Woodward's prose, his ability to marshal evidence from eclectic sources, and perhaps the existence of the *de facto* southern Democratic–northern Republican congressional alliance that scut-

[3] Woodward, *Origins of the New South,* 23–50; Woodward, *Reunion and Reaction: The Compromise of 1877 and the End of Reconstruction* (Boston, 1951). Woodward carefully clothed his conclusion with caveats, on occasion conceding he was building his case on suppositions (see for example pp. 117–18 of *Reunion and Reaction* on Hayes's attitude toward the Texas and Pacific Railroad; p. 121 on Watterson's acceptance of the Electoral Commission bill) or acknowledging that purely political understandings may have been equal in importance to economic ones (see pp. 117–18, 183), but the total effort clearly left the impression that that Compromise of 1877 was supposed to establish an alliance between sectional representatives of the new business elite.

[4] Donald, "Reconstruction," in John A. Garraty, ed., *Interpreting American History: Conversations with Historians* (New York, 1970), 363. Woodward, *Reunion and Reaction,* [ix]. Paul M. Gaston noted the Beardian origins of *Reunion and Reaction* in "The 'New South'," in Arthur S. Link and Rembert W. Patrick, eds., *Writing Southern History: Essays in Historiography in Honor of Fletcher M. Green* ([Baton Rouge], 1965), 330, as did Sheldon Hackney, "*Origins of the New South* in Retrospect," *Journal of Southern History,* XXXVIII (May 1972), 196–97.

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.7 - Radical Republican Motivation: A Case History

George M. Blackburn

ARTICLE	Radical Republican Motivation: A Case History
JOURNAL	The Journal of Negro History 54, no. 2 (1969)
EXCERPT	Original journal pages 109-110
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RADICAL REPUBLICAN MOTIVATION: A CASE HISTORY

A professor of history at Central Michigan University, Mount Pleasant, Michigan Mr. Blackburn earned the Ph.D. in history at Indiana University 1956.

After[1] open war erupted between the Republican party and President Andrew Johnson over Reconstruction policies, a party leader reported to Senator Zachariah Chandler that Michigan Republicans unanimously supported their delegation in Congress. "Since I have been acquainted at all with the politics of Michigan," he related, "I have never known greater unanimity in the Republican ranks than today." Not a single federal officeholder, he added, supported the President's policy.[2]

Seldom in American political history does unanimity occur; never has a political party enacted a major program over the strenuous opposition of a President—except during the Reconstruction period.[3] A political party declares war on its own presidential administration only under the greatest provocation and because of the most compelling reasons.

Republicans believed that such a situation prevailed after the Civil War. Since Michigan was a stronghold of Radical Republicanism, a detailed examination of Michigan opinion might be helpful in understanding why Radicals so violently opposed Johnson's Reconstruction program. In this paper references to public opinion or partisan views refer to Michigan; references to national opinion are specifically labeled.

Opposition to Johnson's program was not mere obstructionism, for the Radicals developed a program of their own. Its salient elements included Congressional control of Reconstruction, delay in admission of Southern states to full rights under the Constitution, punishment of Confederate leaders, repudiation of the related doctrines of state sovereignty and secession, the destruction of slavery, protection of "loyal" men in the South, and establishment of Southern state governments conditional upon the support of a substantial number of voters.

This program evolved from the Republican view of the causes of the Civil War and, indeed, from the very reason for

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the formation of the Republican party. The party had sprung into existence in 1854 for the stated purpose of fighting the extension of slavery. Republicans believed that they were actually fighting "slave power" and "aristocracy," but because of constitutional limitations could legally attack slavery only in the territories. Successful in mobilizing freedom-loving and democratic Northerners against these reactionary forces, Republicans in 1860 elected Abraham Lincoln as President of the United States. Unwilling to accept this decision of the electorate, the "slave power" brought about Southern secession and thus precipitated the Civil War. Although the South lost the war, the "slave power" did not give up but continued the struggle in a different form.[4]

Recognizing the continuing and persistent menace, Michigan's Governor, Henry Crapo, warned in 1866:

> It is not *slavery*, but the *spirit* which seeks to make slavery the corner stone of empire, that we have now to guard against—that element of hatred to freedom and equality that instituted the conflict. . . . That spirit is neither dead nor sleeping. . . . Having failed so utterly in the resort to force, it will but recuperate its energies for a more insidious attack in a different method of warfare.[5]

However incomplete or inaccurate they might be, such views were to constitute the bases of the Radical Republican program for a decade after the Civil War. Not only did these beliefs furnish the context within which political actions occurred, but they gave a peculiar cast to Reconstruction controversies, a doctrinaire flavor unusual in American politics. The identification of the Republican party with the promotion of freedom and democracy against "slave power" and "aristocracy" gave the Republicans a messianic sense of destiny. Republican identification of the Democratic party with slavery and treason made Republican control of the national government a patriotic necessity. Further, Republicans viewed the struggle as occurring between ageless, eternal principles—"slave power" and "aristocracy" were resilent, crafty, and powerful. Far reaching and drastic measures were necessary to extirpate their roots.

Thus Republicans willingly accepted the appellation of "Radical." In American political life party leaders usually

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.8 - Historians and Radical Republicans: A Meaning for Today

Allan G. Bogue

ARTICLE	Historians and Radical Republicans: A Meaning for Today
JOURNAL	The Journal of American History 70, no. 1 (1983)
EXCERPT	Original journal pages 7-8
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Historians and Radical Republicans: A Meaning for Today

Allan G. Bogue

In December of 1861, Timothy Howe, the junior Republican senator from Wisconsin, analyzed the situation in Washington for his niece in the Badger State. ''Everything about us portends the coming of a rupture in the ranks of the war party and if so, a fierce struggle between the two factions. The organization of a party designing either to rule the administration or to supplant it has I think already commenced. Emancipation—the utter extinction of slavery will be the watchword and the effort of one faction. Where the other faction will plant itself is not so certain.'' In the most literal sense, Howe's prophecy was never fulfilled during the course of the Civil War: complete rupture of the Republican party did not occur. But there is much evidence that shows persistent differences within the administration party at Washington. The roll calls and speeches in the Congress reveal continuing contention beween particular Republican senators, and sometimes the lawmakers noted such disagreement. James H. Lane proclaimed on the floor of the Senate that he was a radical; Sen. Edgar Cowan referred to ''the ultra school of the Republican party.'' Although once characterizing Cowan as a dog, Benjamin F. Wade spoke of ''earnest, up and down, through thick and thin Republicans'' while others were ''weak brethren.'' William P. Fessenden characterized Wade and his friends as gentlemen who ''seem to think that they are the representatives of all righteousness.'' This catalogue could be considerably extended.[1]

In his diary Attorney General Edward Bates referred to ''extreme men in Congress,'' and during the legislative session of 1864 references to Jacobins and radicals dot his entries. Gideon Welles and Salmon P. Chase distinguished between radicals and others in their journals, as did a minor functionary, the

This essay is the presidential address delivered to the Organization of American Historians in Cincinnati, April 7, 1983. Allan G. Bogue is Frederick Jackson Turner Professor of History at the University of Wisconsin, Madison.

[1] Timothy O. Howe to Grace Howe, Dec. 13, 1861, folder 1, box 1, Timothy O. Howe Papers (State Historical Society of Wisconsin, Madison); *Congressional Globe*, 37 Cong., 2 sess., July 7, 1862, p. 3151; *ibid.*, June 28, 1862, pp. 2993, 3002; *ibid.*, June 6, 1862, p. 2603; *ibid.*, May 19, 1862, p. 2203.

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explosive Count Adam Gurowski. John Hay applied the epithet ''Jacobin'' to party extremists. Radicals and ultras stalked through the columns of the *New York Herald*, the personification of all that was wrong, evil, or unfortunate in the war. Important Republican newspapers distinguished between radicals and conservatives in the party.[2] We might assume, therefore, that the different policy preferences and political strategies of the radical and moderate Republicans played a major part in most subsequent descriptions of the Civil War. But that is hardly the truth.

In this paper I wish to examine the ways in which some historians have treated the Republican radicals and nonradicals in the Congress during the Civil War. Then I shall consider briefly some of the broader implications that our treatment of the radicals in the past may have for the members of our profession today.

The historian who tries to follow the radicals and their conservative counterparts through the early historiography of the Civil War soon recognizes the occasions that particularly inspired authors to identify radical or conservative activity. These include Abraham Lincoln's revocation of John C. Fremont's proclamation, the debates on the Confiscation Act of 1862, Lincoln's refusal to approve that law without further clarification, the Republican losses in the fall elections of 1862, the attempt of the Republican senators to purge Lincoln's cabinet, congressional consideration of measures to assist the border states in emancipating their slaves, differences during the Thirty-eighth Congress on Reconstruction policy, and the efforts to replace Lincoln during the 1864 presidential campaign. Although the authors of reminiscent accounts of the civilian war sometimes used the terms *radical* and *conservative* in the process of presenting thumbnail biographies, most historians who mentioned them in discussing the Civil War prior to the 1930s referred to them either in the course of discussing one or more of these flashpoints or in connection with efforts to influence the selection of military leaders or the development of military strategy. Despite such convergence successive generations of Civil War historians have differed considerably in their understanding and treatment of the radical Republicans.

Sooner or later men who had served the embattled union in government tried their hands at history, reminiscence, or biography and created a body of ''participant history.'' Only a relatively small number of lawmakers accepted

[2] Howard K. Beale, ed., *The Diary of Edward Bates, 1859–1866* (Washington, 1933), 241, 327, 329, 331, 333; Howard K. Beale and Alan W. Brownsword, eds., *Diary of Gideon Welles: Secretary of the Navy under Lincoln and Johnson* (3 vols., New York, 1960), I, 525, 533, II, 43, 64, 198, 237, 239, 241–42, 246; David Donald, ed., *Inside Lincoln's Cabinet: The Civil War Diaries of Salmon P. Chase* (New York, 1954), 186, 207, 224; Adam Gurowski, *Diary* (3 vols., Boston, 1862–1866), I, 179, II, 31, 132–33, 160, III, 50–51, 59, 60, 67, 92–93, 112, 136–37, 167–68, 171, 177, 190; Tyler Dennett, ed., *Lincoln and the Civil War in the Diaries and Letters of John Hay* (New York, 1939), 31–32; *New York Herald*, March 7, May 21, July 10, July 16, Dec. 27, 1862, March 6, March 15, 1863, Feb. 11, April 21, 1864, Feb. 23, Feb. 27, 1865; *Chicago Tribune*, May 15, July 17, 1862, Feb. 10, Nov. 17, Nov. 18, 1863, Feb. 9, 1865; *Springfield* (Mass.) *Weekly Republican*, Dec. 7, 1861, Feb. 22, June 21, July 5, July 7, July 19, 1862; *New York Times*, Dec. 4, Dec. 5, 1861, April 1, July 7, 1862, Jan. 23, 1863, March 29, 1864; *Cincinnati Commercial*, July 8, Dec. 1, 1862; *Boston Morning Journal*, Jan. 15, 1863; *Boston Evening Transcript*, March 6, 1863.

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.9 - 'Outthinking and Outflanking the Owners of the World': A Historiography of the African American Struggle for Education

Ronald E. Butchart

ARTICLE	'Outthinking and Outflanking the Owners of the World': A Historiography of the African American Struggle for Education
JOURNAL	History of Education Quarterly 28, no. 3 (1988)
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"Outthinking and Outflanking the Owners of the World": A Historiography of the African American Struggle for Education

Ronald E. Butchart

W. E. B. DuBois once argued that the proper education for oppressed groups such as African Americans had a special, critical purpose. He knew, as have all serious educators since Socrates accepted his cup, that education was always and everywhere political. For the oppressed, the political role of schooling had to be aimed precisely at finding the means to end the oppression. In 1930, speaking before the graduating students at Howard University, he put the issue this way: "Let there be no misunderstanding about this, no easy going optimism. We are not going to share modern civilization just by deserving recognition. We are going to force ourselves in by organized far-seeing effort—by outthinking and outflanking the owners of the world today who are too drunk with their own arrogance and power successfully to oppose us, if we think and learn and do."[1] It is clear from his own life's work that to "think and learn and do"—the "outthinking and outflanking"—required schooling.

If history is to have value beyond a literary form of collecting antiques, it must provide a guide to action. For those struggling against oppression and for justice, history must appraise the past to suggest political, social, and economic strategies for the present and future. Like schooling, history, too, is inescapably political. Our purpose here is to

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Ronald E. Butchart is a member of the faculty of the College of Education, State University College at Cortland, New York.

[1] W. E. B. DuBois, *The Education of Black People: Ten Critiques, 1906–1960*, ed. Herbert Aptheker (New York, 1973), 77. The history of education is intimately related to all other areas of history and cannot be understood in isolation from political, social, economic, and institutional history. Nowhere is this clearer than in African American history, in which the social embeddedness of education is sharply illustrated. However, in order to keep this discussion within reasonable bounds, this essay and accompanying notes are limited to the scholarship specifically related to the history of black education, with a handful of exceptions.

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assess the historiography of African American education in terms of its appraisal of the black struggle for learning and its ability to contribute to action for the emancipation of black America. We shall do so by examining the historiography in distinct periods, evaluating the topical and thematic content and the dominant interpretive stances of each period.

For nearly a century, historians have traced the relationships between education and the struggles of the Afro-American community. The resulting historiography breaks rather naturally into three distinct eras, each with its own subject matter, themes, and interpretations. The first era dates from before the turn of the twentieth century into the depression. Two tendencies dominated the period: a triumphalist history arising from the Dunningite tradition and a corrective, vindicationist history written as a defense against the fabrications of the former. That era was replaced by a second period that lasted from the early 1930s into the late 1960s, with echoes still being heard into the 1980s. Embracing neither the white supremacist pretensions of the triumphalist historians nor the defensive posture of the vindicationists, writers in the second era spoke from liberal progressivist assumptions. Finally, emerging from the political crisis of liberal progressivism, a third era has blossomed in the last two decades. Marked by iconoclastic revisionism, this period has produced the broadest range of studies, the least unity of interpretation, but perhaps the greatest commitment to a liberatory political agenda.[2]

* * * * *

The earliest scholarly writing on black education's history dates from the 1890s. It ushered in a tradition that extended well into the depression decade. During that time two mutually exclusive traditions vied for attention. Black historians dominated one tradition, writing corrective histories; white southern historians dominated the other, producing white supremacist accounts.

The black scholars' interests were eclectic. Antebellum black schooling for slaves and free blacks received classic treatment in Carter G. Woodson's *The Education of the Negro Prior to 1861*. Others supple-

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[2] For alternative periodization, see Vincent P. Franklin, "Introductory Essay: Changing Historical Perspectives on Afro-American Life and Education," in *New Perspectives on Black Educational History*, ed. Vincent P. Franklin and James D. Anderson (Boston, 1978), 1–18; and August Meier and Elliott Rudwick, *Black History and the Historical Profession, 1915–1980* (Urbana, Ill., 1986). Franklin relies on a traditional historiographic periodization; Meier and Rudwick are less concerned with changing interpretation than with the growth of black history. Both add important dimensions to the dialogue, much of which I have not sought to repeat in this essay.

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.10 - Racial Violence and Reconstruction Politics in Texas, 1867-1868

Gregg Cantrell

ARTICLE	Racial Violence and Reconstruction Politics in Texas, 1867-1868
JOURNAL	The Southwestern Historical Quarterly 93, no. 3 (1990)
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Racial Violence and Reconstruction Politics in Texas, 1867–1868

Gregg Cantrell*

When the armies of the Confederacy surrendered after four years of bloody conflict, Northern leaders were eager for accurate information on the state of affairs in the defeated South. Before a policy of Reconstruction could be implemented, key questions had to be answered. Would the Confederates accept the reality of defeat and the end of slavery? Did the South desire rapid reconciliation and, if so, on what basis? Although much of the South had been occupied by Union armies during the war, the answers to these questions were only partially known when Robert E. Lee surrendered. Especially in Texas, reliable information was extremely scarce. The Lone Star State never had been successfully invaded, and Texas had been almost completely isolated from Northern observers. Therefore, in the fall and winter of 1865 a number of Union officers were sent to the state on fact-finding missions. Their reports told a story that was far from encouraging to those whose task would be to "reconstruct" Texas.[1]

One of the officers who toured Texas in late 1865 was Insp. Gen. William E. Strong. Sent by the commissioner of the Freedmen's Bureau, Gen. O. O. Howard, to observe the condition of the freedmen and the manner in which they were being treated by their former masters, Strong penetrated beyond the coastal areas controlled by federal troops and found "a fearful state of things." Wherever the military was absent, he reported, the ex-Confederates "seem to take every opportunity to vent their rage and hatred upon the blacks. They are fre-

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[1] Michael Perman has examined the Northern obsession with the state of Southern affairs and attitudes immediately following the war. He argues that observers lacked objectivity, tending to find what they wanted to find. The evidence on Texas, however, indicates that it would have been difficult to exaggerate the degree of lawlessness existing in the Lone Star State in 1865. See Michael Perman, *Reunion without Compromise: The South and Reconstruction, 1865–1868* (New York: Cambridge University Press, 1973), 13–21.

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quently beaten unmercifully, and shot down like wild beasts, without any provocation, followed with hounds, and maltreated in every way." In the area of East Texas between the Neches and Sabine rivers, Strong found that the freedmen were still being held in slavery. Former Confederate soldiers, clad in their old uniforms, roamed about the countryside, armed to the teeth and ready to resume the fight against the Yankees. Strong had traveled in other Southern states, but nowhere had he witnessed the bitterness and open resistance to federal authority that he observed in Texas. In his report to General Howard, Strong concluded that without the U.S. Army "the condition of the freed people would be worse beyond comparison than it was before the war and when they were held in bondage."[2]

Strong was not alone in his analysis of the postwar state of affairs in Texas. Gen. Philip Sheridan gained the most notoriety of any contemporary observer when he remarked that if he owned both hell and Texas, he "would rent Texas out and live in hell!"[3] General Howard paid a high compliment to Edgar Gregory, his appointee as commissioner of the Texas Freedmen's Bureau, saying that Gregory "was so fearless that I sent him to Texas."[4] If any Northerner had believed that reconstructing Southern states could be accomplished with ease, that assessment would not have applied to Texas.

Conservative Southerners naturally denied that blacks were the victims of widespread violence, but virtually all modern scholars have accepted the reports of Strong, Sheridan, Howard, and others as essentially accurate. Early students of Reconstruction, following the lead of William Dunning, attempted to downplay the violence and place the blame for it with Republican policymakers or Union troops. But even Dunning-school scholars such as Charles W. Ramsdell could not deny that Texas was a very bloody place at certain times during Reconstruction.[5]

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[2] W. E. Strong to O. O. Howard, Jan. 1, 1866, in *Message from the President of the United States . . . together with the Reports of the Assistant Commissioner of the Freedmen's Bureau, made since December 1, 1865*, S. Exec. Doc. 27, 39th Cong., 1st Sess. (Serial 1238), 81–82, 83 (1st and 2nd quotations), 84–85, 86 (3rd quotation). See also Claude Elliott, "The Freedmen's Bureau in Texas," *Southwestern Historical Quarterly*, LVI (July, 1952), 1–24.

[3] Quoted in Paul Andrew Hutton, *Phil Sheridan and His Army* (Lincoln: University of Nebraska Press, 1985), 22.

[4] Quoted in William S. McFeely, *Yankee Stepfather: General O. O. Howard and the Freedmen* (New Haven, Conn.: Yale University Press, 1968), 68 (quotation), 69.

[5] Charles W. Ramsdell, *Reconstruction in Texas* (New York: Columbia University, 1910), 127–133; Claude Elliott, *Leathercoat: The Life History of a Texas Patriot* (San Antonio: Standard Printing Co., 1938), 147–160; W. C. Nunn, *Texas Under the Carpetbaggers* (Austin: University of Texas Press, 1962), 8; Ernest Wallace, *Texas in Turmoil: The Saga of Texas, 1849–1875* (Austin: Steck-Vaughan Co., 1965), 150–159.

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Footnote citation

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.11 - On the Front Line of Freedom: Freedmen's Bureau Officers and Agents in Reconstruction Georgia, 1865-1868

Paul A. Cimbala

ARTICLE	On the Front Line of Freedom: Freedmen's Bureau Officers and Agents in Reconstruction Georgia, 1865-1868
JOURNAL	The Georgia Historical Quarterly 76, no. 3 (1992)
EXCERPT	Original journal pages 577-578
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On the Front Line of Freedom: Freedmen's Bureau Officers and Agents in Reconstruction Georgia, 1865-1868

By Paul A. Cimbala

The Bureau of Refugees, Freedmen, and Abandoned Lands, established on March 3, 1865, was an extraordinary War Department agency born of the expansion of federal power during the Civil War and the Union's desire to do something for the South's emancipated slaves. There was no precedent for such a government agency potentially capable of influencing a wide range of affairs previously left outside of Washington's sphere. The Freedmen's Bureau's charge to oversee all subjects relating to the ex-slaves presented its officers and agents with the opportunity to challenge old notions of labor, civil rights, and other aspects of the South's racial status quo. Consequently the Bureau was in a position to play a crucial role in the implementation of Reconstruction policy, translating directives, laws, and constitutional guarantees into the reality promised by emancipation.[1]

To understand such a role, one must comprehend the motives and actions of the agents and officers who served in the agency, in this case at the state and local level in Georgia. One

[1] *The Statutes-at-Large . . . of the United States*, XIII (Washington, D.C., 1863-1865), 507. For the background of the establishment of the Freedmen's Bureau, see George R. Bentley, *A History of the Freedmen's Bureau* (Philadelphia, 1955), chapters 1-3. Several newer works on particular aspects of the Bureau's South-wide mission supplement Bentley's volume, but see especially William S. McFeely, *Yankee Stepfather: General O. O. Howard and the Freedmen* (New Haven, 1968), and Donald G. Neiman, *To Set the Law in Motion: The Freedmen's Bureau and the Legal Rights of Blacks, 1865-1868* (Millwood, N.Y., 1979). For a complete study of the Georgia Bureau see Paul A. Cimbala, "The Terms of Freedom: The Freedmen's Bureau and Reconstruction in Georgia, 1865-1870" (Ph.D. dissertation, Emory University, 1983). For another view of the Bureau in Georgia, see Sara Rapport, "The Freedmen's Bureau as a Legal Agent for Black Men and Women in Georgia: 1865-1868," *Georgia Historical Quarterly* 73 (Spring 1989): 26-53.

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The Georgia Historical Quarterly
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must examine the lives of those individuals who were on the front line of change—the reformers, the white Georgia civilians, the Yankee officers and veterans and why they chose to serve with the Bureau, how they felt about the freedmen and Reconstruction, and how effectively they carried out their orders. Equally significant is an understanding of how the service influenced their own lives. Certainly, many Georgia civilian agents served the interests of their white neighbors and both Yankee agents and officers fell prey to corruption, racism, or the desire to establish their own competence as planters. Regardless, many had a desire to see justice done; some even had a strong sense of mission. Those who worked for the Bureau's goals found themselves living a lonely, often dangerous existence. And enough expressed regret when they left their work unfinished to suggest that they believed the Bureau's job was one worth doing.

In Georgia, according to some scholars, changes in the Freedmen's Bureau's assistant commissioners—the officers in charge of the agency at the state level—signaled shifts in the agency's approach to carrying out its charge. General Rufus Saxton supervised Bureau affairs in Georgia from May 20, 1865 until his successor General Davis Tillson assumed command of most of the state on September 22, 1865. Critics of Tillson have judged this change as a transition from an administration committed to the freedpeople's best interest to one that favored planters' labor needs over the ex-slaves' rights. Another change in administration on January 14, 1867 retrieved the promise. Colonel Caleb C. Sibley, Tillson's successor, and Major John Randolph Lewis, Sibley's most important officer (and as of October 16, 1868, his successor), were the freedpeople's friends.[2]

[2]Edmund L. Drago in *Black Politicians and Reconstruction in Georgia: A Splendid Failure* (Baton Rouge, 1982), 113-16, 131, makes this distinction. For other examples of historians who emphasize Tillson's "conservatism" and lack of sympathy, see John A. Carpenter, *Sword and Olive Branch: Oliver Otis Howard* (Pittsburgh, 1964), 127-28; Jacqueline Jones, *Soldiers of Light and Love: Northern Teachers and Georgia Blacks, 1865-1873* (Chapel Hill, 1980), 29, 55; Ruth Currie-McDaniel, *Carpetbagger of Conscience: A Biography of John Emory Bryant* (Athens, Ga., 1987), 55; Russell Duncan, *Freedom's Shore: Tunis Campbell and the Georgia Freedmen* (Athens, Ga., 1986), 29, 34-35; and especially McFeely, *Yankee Stepfather*, 121-22, 202, 248-49. Neiman's *To Set the Law in Motion*, 163, 165, and 189, presents a more balanced view of Tillson and consequently of the Bureau in general. While the agency usually receives bad press for its work in the South, it is

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.12 - The Freedmen's Bureau, the Freedmen, and Sherman's Grant in Reconstruction Georgia, 1865-1867

Paul A. Cimbala

ARTICLE	The Freedmen's Bureau, the Freedmen, and Sherman's Grant in Reconstruction Georgia, 1865-1867
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The Freedmen's Bureau, the Freedmen, and Sherman's Grant in Reconstruction Georgia, 1865–1867

By Paul A. Cimbala

For a brief period during 1865 and 1866 a small portion of Georgia's black population held on to parcels of land along the Savannah River, in the Ogeechee district of Chatham County, and on the barrier islands along the coast. Encouraged by General William T. Sherman's Special Field Orders, No. 15, which in January 1865 had set aside the land for their exclusive use, these blacks organized communities and planted rice and cotton free from the commands of old masters or new white bosses.[1] For an even briefer moment a handful of federal agents, first under the authority of Sherman's orders and then under the Bureau of Refugees, Freedmen, and Abandoned Lands, seemed to confirm the former slaves' claims to their Civil War inheritance.[2] The promise appeared bright, but the freedmen abruptly learned that neither a special field order nor bureau agents could provide anything but tenuous authority for land redistribution in the face of planter protest and capital politics. The land was restored to its white claimants before the ex-slaves had even one full

[1] Special Field Orders, No. 15, January 16, 1865, in *The War of the Rebellion: A Compilation of the Official Records of the Union and Confederate Armies* (70 vols. in 128; Washington, 1880–1901), Series I, Vol. XLVII, Pt. II, 60–62 (hereinafter cited as *Official Records*). For the circumstances surrounding the promulgation of the order see Oliver O. Howard, *Autobiography of Oliver Otis Howard, Major General United States Army* (2 vols.; New York, 1907), II, 189–91; and [William T. Sherman], *Memoirs of General William T. Sherman . . .* (2 vols.; New York, 1875; rpt. ed., Bloomington, Ind., 1957), II, 244–52.

The author wishes to thank Clarence L. Mohr and Dan T. Carter for commenting on earlier versions of this article and the National Endowment for the Humanities for a 1986 summer stipend (FT-26977-85) that supported research for this article.

[2] For the establishment of the Freedmen's Bureau see the standard modern work by George R. Bentley, *A History of the Freedmen's Bureau* (Philadelphia, 1955; rpt ed., New York, 1974). For a detailed history of the bureau's work in Georgia see Paul A. Cimbala, "The Terms of Freedom: The Freedmen's Bureau and Reconstruction in Georgia, 1865–1870" (Ph.D. dissertation, Emory University, 1983). For another view of the bureau in Georgia see Sara Rapport, "The Freedmen's Bureau as a Legal Agent for Black Men and Women in Georgia: 1865–1868," *Georgia Historical Quarterly*, LXXIII (Spring 1989), 26–53.

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season to test their new status, and the Freedmen's Bureau served as the agent of their dispossession.

The Freedmen's Bureau mediated the restoration process and thereby played a central role in the resolution of the land question on the Georgia coast. Consequently, the agency provides a clear focus for understanding both the process by which the government rescinded the promise of land and the coastal freedmen's increasing estrangement from their northern emancipators. The bureau, as the government's enforcer of an unpopular policy, does not fare well in most assessments of its performance in the coastal drama, whether contemporary or modern, history or fiction.[3] A reading of the events that transpired within the Georgia reservation, the area of land set aside for the freedmen, suggests that criticism of the bureau was not unwarranted. Needs defined by strangers were inadequate substitutes for black aspirations; the bureau's officers and agents clearly believed that they knew what was best for the freedmen and what was possible. Nevertheless, the bureau, like the freedmen it claimed to help, deserves more than a one-dimensional caricature. A broader, more detailed picture does more than polish the agency's reputation; it illustrates the tension that was inherent in the Reconstruction process.

The Georgia coast was an avenue to freedom even before Sherman completed his famous march from Atlanta to the sea emerging from the Georgia interior in late 1864. From the spring of 1862 on, Union naval guns kept the abandoned plantations on the sea islands open to black refugees.[4] Yet Sherman's special field order of January 16, 1865, was important because it held out to the ex-slaves a formal promise that their Yankee allies would recognize their desire for land of their own.

[3] For examples of modern critical views of the Georgia bureau and particularly of Davis Tillson, the agency's first full-time assistant commissioner for Georgia who served from September 1865 into January 1867 and initiated the restoration process, see Russell Duncan, *Freedom's Shore*: *Tunis Campbell and the Georgia Freedmen* (Athens, Ga., and London, 1986), and William S. McFeely, *Yankee Stepfather*: *General O. O. Howard and the Freedmen* (New Haven, Conn., and London, 1968). For the best select survey of recent literature on the bureau both critical and sympathetic see LaWanda Cox, "From Emancipation to Segregation: National Policy and Southern Blacks," in John B. Boles and Evelyn Thomas Nolen, eds., *Interpreting Southern History*: *Historiographical Essays in Honor of Sanford W. Higginbotham* (Baton Rouge and London, 1987), 225–28. A particularly interesting and emotionally moving fictional account of the Georgia sea island experience, which is also critical of the bureau, is Theodore Ward's play *Our Lan'*, in Darwin T. Turner, ed., *Black Drama in America*: *An Anthology* (Greenwich, Conn., 1971). Contemporary Georgia critics are noted below in the text.

[4] Clarence L. Mohr, "Before Sherman: Georgia Blacks and the Union War Effort, 1861–1864," *Journal of Southern History*, XLV (August 1979), 331–52; and George A. Heard, "St. Simons Island During the War Between the States," *Georgia Historical Quarterly*, XXII (September 1938), 249–72.

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.13 - Negro Involuntary Servitude in the South, 1865-1940: A Preliminary Analysis

William Cohen

ARTICLE	Negro Involuntary Servitude in the South, 1865-1940: A Preliminary Analysis
JOURNAL	The Journal of Southern History 42, no. 1 (1976)
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Negro Involuntary Servitude in the South, 1865–1940: A Preliminary Analysis

By William Cohen

The Thirteenth Amendment formally ended slavery, but the legacy of bondage proved stubbornly persistent. Seventy-five years after emancipation black forced labor remained common in many areas of the South. While historians of the South have devoted much attention to the oppressive effects of sharecropping, tenantry, the crop-lien system, and peonage, few have addressed themselves to the larger system of involuntary servitude within which these factors operated. From a legal standpoint this system comprised a variety of state laws aimed at making it possible for both individuals and local governments to acquire and hold black labor virtually at will. Beyond this, involuntary servitude was a creature of custom dependent upon community attitudes which sanctioned the use of forced labor. Occasionally such attitudes even allowed whites to compel labor from Negroes without the pretense of a legal justification.[1]

Contained in embryo in the Black Codes and gaining increasing strength in the years immediately after Reconstruction, the system of involuntary servitude remained largely hidden until 1907, when the Department of Justice published Assistant Attorney General Charles W. Russell's "Report . . . Relative to Peonage Matters." The title is misleading. The central argument of this work was that

[1] This article is a preliminary description of the system of involuntary servitude. As such, its consideration of the legal aspects of the system will be limited exclusively to the state laws which created the framework for the system. It should be noted, however, that there is extensive evidence to suggest that similar and complementary laws also existed at the local level. These will be dealt with in a future work in which the author will explore involuntary servitude in greater detail. This investigation was supported in part by a grant from the Welfare Administration and the Social Security Administration, U. S. Department of Health, Education, and Welfare, Washington, D. C. An earlier version was submitted to these agencies in October 1971 under the title, "Negro Involuntary Servitude in the Twentieth Century."

Mr. Cohen is associate professor of history at Hope College.

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peonage constituted only one dimension of a more comprehensive system of involuntary servitude having its roots in laws "considered to have been passed to force negro laborers to work . . . ." Peonage had a precise and narrow meaning. For this condition to exist an individual had to be held to labor against his will in order to satisfy a debt. According to Russell many southern statutes were being used to compel laborers to work against their will even without a claim of debt. In such cases the federal government was virtually powerless, for the Peonage Act of 1867 seemed to be the only tool that could be used to stop forced labor, and this law applied only in situations where a debt was alleged. Seeking to change this situation, Russell suggested that "It might even be well to abandon the use of the word 'peonage' and pass a law forbidding involuntary servitude . . . ." His plea went unheeded.[2]

In 1933 Walter Wilson called attention to some of the laws and customs which perpetuated southern involuntary servitude. Unfortunately, his general argument was so polemical that few took it seriously. Far more useful is Howard Devon Hamilton's 1950 doctoral dissertation, which includes an excellent discussion of the state laws and court decisions pertaining to peonage and other forms of involuntary servitude. Similar ground is covered in an earlier book by Charles S. Mangum, Jr. Both Mangum and Hamilton focus almost exclusively upon legal issues, and neither seeks to depict the social ethos in which involuntary servitude existed.[3]

Recently, Pete Daniel has thoroughly explored the peonage files of the Department of Justice, and the resulting work is a significant addition to the literature of involuntary servitude. Still, his narrow conceptual framework presents serious problems. Daniel limits himself to studying peonage, but some of the most significant cases he presents do not involve debt servitude. Sometimes he recognizes this, and at one point he notes that "The distinction between peonage and slavery was often blurred." Elsewhere he describes as peonage, cases where debt was, at best, a peripheral factor. By limiting himself to the study of peonage and then transgressing this boundary, Daniel leaves the reader confused as to the full scope of

[2] "Report of Hon. Charles W. Russell, Assistant Attorney General, Relative to Peonage Matters," in U. S. Attorney General, *Annual Report, 1907* (2 vols., Washington, 1907), I, 211, 208.

[3] Wilson, *Forced Labor in the United States* (London, [1933]), 84–114; Hamilton, "The Legislative and Judicial History of the Thirteenth Amendment" (unpublished Ph.D. dissertation, University of Illinois, 1950; cited hereinafter as Hamilton, "History of the Thirteenth Amendment"), 169–252; Mangum, *The Legal Status of the Negro* (Chapel Hill, 1940), 163–72. Although he deals with an earlier period, Richard B. Morris also indicates an awareness of the post–Civil War system in "The Measure of Bondage in the Slave States," *Mississippi Valley Historical Review*, XLI (September 1954), 219–40.

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.14 - The Metamorphosis of Slavery, 1865-1900

Pete Daniel

ARTICLE	The Metamorphosis of Slavery, 1865-1900
JOURNAL	The Journal of American History 66, no. 1 (1979)
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The Metamorphosis of Slavery, 1865–1900

Pete Daniel

The shock of emancipation, coming as it did during an unsuccessful war, hardened the hearts of southern whites; defeated, they were unvanquished. From nearly every street corner and manor house, wrote observers, southern whites threatened to reenslave blacks as soon as northern occupation ended. Meanwhile, landlord and tenant entered into contracts sharing land and labor, and blacks discovered that emancipation did not signal equal rights—or even in some cases freedom. Like a patchwork quilt, the new labor system in the South was varied and complex, an unpatterned blend of illiteracy, law, contracts, and violence, confusing, if not incomprehensible, even to those closest to it. The complexity of economic adjustment was eclipsed by the violence and corruption associated with politics, and the era of Reconstruction became, for those who lived through it and for historians who wrote of it, too emotionally charged to explain rationally. Perhaps agreeing with Albion Tourgée that Reconstruction was "a fool's errand," northerners gradually lost interest in policing the South and allowed white southerners, within bounds, to handle the race problem. Spokesmen as varied, at least in color, as Booker T. Washington and Henry Grady gave their benedictions to the New South; in an age that glorified progress, they accepted it warts and all.[1]

Pete Daniel is professor of history at the University of Tennessee, Knoxville.

[1] For an excellent account of planters' reactions to emancipation, see James L. Roark, *Masters without Slaves: Southern Planters in the Civil War and Reconstruction* (New York, 1977), 68–108. The classic description is the report of Carl Schurz, Senate Exec. Docs., 39 Cong., 1 Sess. (2 vols., Washington, 1866), I, No. 2. Whitelaw Reid also noted planter antipathy toward blacks who actively demonstrated their freedom. Whitelaw Reid, *A Tour of the Southern States, 1865–1866* (New York, 1965), 417. As late as 1868, *De Bow's Review* argued that slavery would and should continue. "We do not mean by slavery such as that which has been recently abolished, but some form of subordination of the inferior race that shall compel them to labor, whilst it protects their rights and provides for their wants." "Negro Agrarians," *De Bow's Review*, V (Feb. 1868), 136. See also "Department of the Freedmen," *De Bow's Review*, II (July 1866), 92; Albion W. Tourgée, *A Fool's Errand: A Novel of the South during Reconstruction* (New York, 1961), 322.

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It came as a shock, then, in 1901, when a new kind of slavery was discovered. It was called peonage after the labor practice in Mexico and through an unlikely set of circumstances violated an 1867 federal statute in the United States. The law lay dormant for thirty-four years, but peonage was widespread in the South by the turn of the century, and it was especially virulent in the cotton belt, the Mississippi Delta, and the turpentine belt. A. J. Hoyt, a federal investigator, estimated in 1907 that one-third of the larger plantations in the cotton belt had peons working the crops, and other estimates corroborate his figures. Those threats of 1865, then, had been partially fulfilled; slavery had indeed ended for some blacks, but for others it had endured, metamorphosed.[2]

Definition of involuntary servitude is both crucial and difficult. First of all, chattel slavery, that peculiar institution, ended in 1865. It was replaced by sharecropping, a labor system that seemed, under the circumstances, well suited for landlords and tenants. Yet sharecropping arrangements varied—from state to state, crop to crop, county to county, and farm to farm—and changed subject to the passage of time and the passage, enforcement, and understanding of laws. Three general divisions of agricultural labor emerged in the South after the war. Most agricultural laborers were free, moving about and selling their labor as best they could; but at the other extreme, at the bottom of the agricultural ladder, were peons, laborers who were bound in debt from year to year and who were coerced to work out what they owed. The third category was simply the twilight zone between freedom and involuntary servitude. It was in this middle ground between slavery and freedom that the post-Civil War labor system metamorphosed. For example, a worker who ended the year in debt and who voluntarily remained with a landlord and worked off his debt was free, but when any element of coercion entered, he became a peon. The line was that thin. No doubt many workers drifted from freedom to peonage often in their lifetimes, never realizing that they had crossed the line.

This third category raises the question of how viable traditional terms such as freedom and slavery are when discussing post-Civil War agricultural labor. Coercion, the crucial element in involuntary servitude, came from sources other than the words of the landlords and merchants. It came from the law, which increasingly tightened its grip on workers; from the contract, which became a year sentence on a few acres; from violence, which gave object lessons to those who objected to the system; and from illiteracy, which placed the worker at the mercy of the literate elite and kept him from seeking jobs that required more skill than plowing, hoeing, and picking. All of these tentacles reached out toward those laborers who were technically free and embraced them in a system that was certainly, as Roger Ransom and Richard Sutch have suggested, only "one kind of freedom."[3] In the moiling confusion

[2] 14 Stat. 546 (1867); Pete Daniel, *The Shadow of Slavery: Peonage in the South, 1901–1969* (Urbana, 1972), 22. The Peonage Complaint File in the General Records of the Department of Justice, RG 60 (National Archives), shows that most peonage and involuntary servitude complaints came from these three areas of the South. See also John Dittmer, *Black Georgia in the Progressive Era, 1900–1920* (Urbana, 1977), 77.

[3] The definition of peonage evolved through numerous federal cases. See especially *Clyatt* v. *United States*, 197 U.S. 207 (1905); *U.S.* v. *Reynolds*, 235 U.S. 133 (1914); *Peonage Cases*, 123 Fed.

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.15 - The U. S. Army and the Origins of Sharecropping in the Natchez District: A Case Study

Ronald L. F. Davis

ARTICLE	The U. S. Army and the Origins of Sharecropping in the Natchez District: A Case Study
JOURNAL	The Journal of Negro History 62, no. 1 (1977)
EXCERPT	Original journal pages 60-61
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THE U. S. ARMY AND THE ORIGINS OF SHARECROPPING IN THE NATCHEZ DISTRICT—A CASE STUDY

Ronald L. F. Davis*

The outbreak of the Civil War and the subsequent presence of Union troops as an army of occupation in the Mississippi Valley meant a new relationship between whites and blacks in the area. As a vanquished foe, former slave masters found themselves bankrupt in some instances, the owners of devastated property in others, and slaveless in all cases, while their former chattel became refugees first and then, with the Emancipation Proclamation, free men with labor to sell or else employ on their own account. Although potentially a revolutionary situation, the outcome of it all was a system of land tenure for southern blacks characterized by abject poverty, dependency upon planters and merchants, and a class rigidity that bordered on peonage. By 1889, sharecropping (which was both a system of wage labor and a form of tenancy) had emerged as the dominant institution affecting blacks in the South. The typical black farmer lived on rented lands in cabins owned by landlords who were often merchants; grew only cotton of which he either received a snare in payment for his wages or else paid out a share as rent. In either case he was usually in debt to the store, which was often owned by his landlord. His children worked on the cotton patch and possibly supplemented the family income by hiring out for cash wages at cotton picking time. Regardless of their status (either as share wages or as share renters), few of them had much say in the crucial decisions of farming and few of them managed to escape the economic box in which they found themselves. Although the system was far better than slavery in the sense that basic personal freedoms such as the integrity of the family and church were free from immediate control, there is no question that the system was an intolerable burden upon southern blacks.

This study is concerned with the apparent contradiction between the war to end slavery and the origins of sharecropping. More specifically, what role did the U.S. Army play in the transition from slavery to sharecropping.[1]? In some areas, such as

*Ronald L. F. Davis is Associate Professor of History, California State University, Northridge, California.

[1]C. G. Dahlgren, Commandant, Confederate Post Washington, Mississippi, to Brig. Gen. Thomas Jordan, May 17, 1862, in *The War of the Rebellion: A Compilation of the Official Records of the Union and Confederate Armies* (Washington, D.C.: Government Printing Office, 1880-1901), Ser. I, Vol. XV, pp. 737-738 (hereinafter cited as *Official Records*); Brig. Gen. Thomas E. G. Ransom, U.S. Army, to Lt. Col. W. T. Clark, Assistant to the Adjutant-General, July 16, 1863, *Official Records,* Ser. I, Vol. XXIV, 680-681.

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the Mississippi Valley, the U. S. Army supervised the economic treatment of blacks as refugees and free men for six years or more. How did this experience relate to the emergence of sharecropping? By concentrating on the Natchez district of the Mississippi Valley, (a rich delta area including Adams County, Mississippi, and Concordia Parish, Louisiana) we are able to have a case study for a close analysis of the problem.

In the Natchez district, the ravages of war were less felt than in other parts of the South. The early and relatively easy taking of Natchez and its surrounding countryside by Union forces in the autumn of 1862 kept wartime destruction in the area to a minimum. When General T. E. C. Benson steamed up-river from New Orleans to cut off the flow of Texas cattle into Mississippi at Natchez he found only a small resistance force in the town, and a few well-placed shots sent the enemy fleeing into the countryside. The fact that Natchez fell with little difficulty is partly explained by the Confederate decision to concentrate their strength at Vicksburg, and partly by the pro-Union sentiments held by numerous planters in the district. Adams County, a Whig stronghold before the war, had delivered one of the largest pro-Union votes in the state's secession referendum in 1860.[2] Although few planters in the district enjoyed the thought of having their neighborhood occupied by Union soldiers, it was not complete hypocrisy on their part to welcome Union forces with waving handkerchiefs and unfurled American flags. For some Natchez planters, this was not a war of their making.[3]

But the war did bring economic and social upheaval to the area. Few planters managed to carry on their plantation enterprise during the war years. On the one hand, Confederate marauders, using the Louisiana swamps as refuge, terrorized, abducted, and even killed the work force of loyalists and northern speculator-planters while, on the other hand, the federal government's policy of confiscating baled and standing cotton until certain of its owner's loyalty complicated the situation. In addition, General Grant's daring sweep through the Louisiana swamps to lay siege to Vicksburg from below, destroying levees and dikes in the process, threatened with ruin the rich cotton lands in Concordia Parish and the lower parts of Adams County. Although left vulnerable to the Mississippi River's devastating spring overflows, the area escaped flood damages during the war itself.[4] But the threat was real enough. Indeed, massive flooding ravaged the area

[2]D. Clayton James, *Antebellum Natchez* (Baton Rouge, Louisiana: Louisiana State University Press, 1968), pp. 101-135, 385-392; Brig. Gen. Lorenzo Thomas, Adjutant-General, U.S. Army, to Edwin M. Stanton, Secretary of War, October 24, 1863, *Official Records,* Ser. III, Vol. III, 916-917.

[3]U.S. Congress, House, Testimony of Maj. Gen Lorenzo Thomas, April 17, 1866, Joint Committee on Reconstruction, 39th Cong., 1st Sess., 1866, *H. Rept.* 30, Pt. 4, pp. 140-144; *New York Times,* August 10, 1863, pp. 1-3.

[4]1st Lt. W. H. McGrew, Asst. Provost Marshal, Concordia, Louisiana, to Brig. Gen. Lorenzo Thomas, June 14, 1864, Records of the Bureau of Refugees, Freedman, and Abandoned Lands, Record Group 105, National Archives (herinafter cited as BRFAL); Maj. Gen. S. A. Hurbut to Lt. Col. C. T. Christensen, January 3, 1865, *Official Records,* Ser. I, VOl. XLVIII, 401; circular published in

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.16 - President Hayes's Southern Policy

Vincent P. De Santis

ARTICLE	President Hayes's Southern Policy
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EXCERPT	Original journal pages 476-477
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President Hayes's Southern Policy

By VINCENT P. DE SANTIS

The real significance of President Hayes's Southern policy has been obscured since 1877 by the attention given to his removal of the federal troops from the South. Hayes had greater ambitions than to end military reconstruction and to restore "home rule" to Southern whites. He planned to build a Republican party in the South that would not depend upon the Negro for its main strength and that could command the respect and support of Southern conservative whites. This meant splitting the white vote in a section where men had come to divide almost solely on the race question. Yet Hayes believed he could do this and that the Republican party could regain the ascendancy in the South it had enjoyed during the early years of Reconstruction, for he predicted to a friend in Ohio that his endeavors would win "North Carolina, with a fair chance in Maryland, Virginia, Tennessee and Arkansas," and he hoped for success in Louisiana, South Carolina, and Florida.[1]

Historians have pictured Hayes as a respectable mediocrity with an impeccable public and private life. True, he lacked brilliance, but he had a determination and steadfastness of purpose about his plans for the South that eventually frustrated even his most vigorous opponents. In the face of violent attacks upon his program by Stalwarts and carpetbaggers, Hayes pushed it to the end, always certain of its righteousness and believing throughout that a large majority of the "best people" backed him.

When Hayes entered the White House in 1877 he held the opinion that the policy of military interference had only served to thwart Republican hopes of gaining permanent success in the South. Even those surviving Republicans who had launched such a program in 1867 would have agreed with him, however reluctantly. Hayes decided to reduce Negro and carpetbagger

[1] Rutherford B. Hayes to William D. Bickham, May 3, 1877, in Hayes Papers (Hayes Memorial Library, Fremont, Ohio).

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leadership in the Republican party in the South and to conciliate Southern conservative whites in the hope of converting them to Republicanism. But the presence of troops blocked all efforts to ingratiate the Republican party with the white South. Hayes moved quickly to eliminate this barrier. He brought David M. Key, a Southern Democrat and an ex-Confederate officer, into his cabinet. He recalled the federal troops from their last garrisons in the South and restored "home rule" to Southern whites. With these two spectacular moves, and courageous ones, too, in view of the attitude of the Stalwarts toward the South in 1877, Hayes inaugurated his efforts to rejuvenate Southern Republicanism. But they did not constitute the sole feature of his policy in the South, a fact that historians have either ignored or overlooked.

All who knew Hayes well spoke of his dissatisfaction with Grant's policy in the South. Hayes believed enough good sense existed among the intelligent people of the region that he could exploit it to the point of developing a real two-party system there. Thus he turned to the most responsible and influential classes in the South for support, never imagining he could do this in a few weeks by passing around the sugar plums of office, but satisfied he could accomplish the task by pursuing a steady policy of friendship and nonintervention. In short, Hayes keyed his attack to the objective of breaking up the Democratic South by enhancing the character and strength of Southern Republicanism.

Giving Key a cabinet post and withdrawing the troops turned out to be the first steps in the attempt to bring about a political revolution in the South. While the decision to take Key into the cabinet has been explained,[2] that of recalling the troops has not. Hayes seldom received credit for any sincere motive for taking the troops out of the South, for the public in 1877, and for many years to come, associated the recall with the Wormley House agreements that permitted Hayes to become President. Historical scholarship lent credence to this story[3] which came to be the accepted version until C. Vann Woodward exploded it in 1951.[4]

[2] C. Vann Woodward, *Reunion and Reaction: The Compromise of 1877 and the End of Reconstruction* (Boston, 1951), 169-71.

[3] Paul L. Haworth, *The Hayes-Tilden Disputed Presidential Election of 1876* (Cleveland, 1906); Hamilton J. Eckenrode, *Rutherford B. Hayes, Statesman of Reunion* (New York, 1930).

[4] Woodward, *Reunion and Reaction.*

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.17 - The Republican Party and the Southern Negro, 1877-1897

Vincent P. De Santis

ARTICLE	The Republican Party and the Southern Negro, 1877-1897
JOURNAL	The Journal of Negro History 45, no. 2 (1960)
EXCERPT	Original journal pages 71-72
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THE JOURNAL
OF
NEGRO HISTORY

Vol. XLV—April, 1960—No. 2

THE REPUBLICAN PARTY AND THE SOUTHERN NEGRO, 1877-1897

The Republican party emerged from the Civil War as the champion and protector of the Southern Negro. It had emancipated and enfranchised him and had provided him with the same political and civil rights as the white man. And by joining hands with the Negro, the Republicans were able to gain a temporary dominant political position in the South in the early years of Reconstruction. While this Republican-Negro alliance produced fruitful political results in the beginning, it also created a vexatious problem that still remains largely unresolved. In order to understand the nature of the problem it is necessary to remember what each side wanted from the other. The Republicans wanted the votes of the Negro, and the freedman wanted protection of his newly acquired rights and asked for the enforcement of the Fourteenth and Fifteenth Amendments. He also sought greater political recognition and a larger share of the patronage for delivering his vote to the party of liberation.

Now this seemed to be a simple enough *quid pro quo,* but complications arose from the beginning to bedevil and to weaken the Republican-Negro alliance in the South. The freedman soon discovered that he was providing the bulk of the Republican vote in the South without receiving the benefits commensurate with such support. He became jealous of the rewards of the Carpetbaggers and Scalawags, and the planter class played upon this jealousy and sometimes used the blacks against the Radicals. This was a fatal flaw in the

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Republican-Negro coalition in the South, and the failure to secure the measure of protection and recognition that he had sought and which he had been promised led the Negro to suspect and criticize the Republican party, a development that, instead of abating, widened and deepened in the post-Reconstruction years, and which brought on a number of public and bitter Negro outbursts against Republican policy in the South. All this had the effect of placing a severe strain upon the traditional loyalty of the freedman toward the party of emancipation, and it should put to rest the erroneous notion that it was not until the New Deal came along that the colored man became dissatisfied with the Republican party.

At the end of Reconstruction there were certain omnious developments for the Negro that seemed to hold out little hope and encouragement for him. President Rutherford B. Hayes had removed the troops, restored "home rule" to Southern whites, and abandoned the idea that the freedman was the ward of the nation, and had left him as the ward of the dominant race in the South. Then in his tour of the South, in an address to Negroes at Atlanta, Hayes told them, that after much reflection, he thought "their rights and interests would be safer if the great mass of intelligent white men were let alone by the general Government." He pointed out that he had been trying this experiment for six months, "and in his opinion for no six months since the war had there been so few outrages and invasions of their rights, persons, and homes as in the last six months."[1] While this statement provoked "immense applause," it also produced an uneasiness among Negroes over either the President's naiveness or his ignorance. Perhaps even greater disillusionment came to the freedman when the *Nation,* one of his staunch Northern champions, following the decision to take the troops out of the South, declared that "the negro will disappear from the field of northern politics. Henceforth the nation, as a nation, will have nothing more to do with him."[2]

In the last quarter of the nineteenth century the Republican Party, through its official statements, appeared to be the

[1]The *Nation,* XXV (September 27, 1877), 187.
[2]*Ibid.,* XIV (April 5, 1877), 202.

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.18 - Mountaineer Reconstruction: Blacks in the Political Reconstruction of West Virginia

Stephen D. Engle

ARTICLE	Mountaineer Reconstruction: Blacks in the Political Reconstruction of West Virginia
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EXCERPT	Original journal pages 137-138
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MOUNTAINEER RECONSTRUCTION: BLACKS IN THE POLITICAL RECONSTRUCTION OF WEST VIRGINIA

By
Stephen D. Engle*

West Virginia was a child, if not a stepchild, of the Civil War and Reconstruction. Although the war had little affected the region, it created the conditions which enabled residents west of the Appalachians to form the new state. That portion of Virginia now known as West Virginia had initially been part of the Confederacy, and when residents became the first formally to secede from the Confederacy, it also became the first Southern state to abolish slavery, at least partially of its own resolve.

For mountaineers who resided west of the Appalachians, Reconstruction commenced in April 1861, when an assembly of spirited Unionists gathered in Wheeling annulled Virginia's ordinance of secession, formed the Reorganized Government of Virginia, and chose Francis H. Pierpont, a railroad attorney, as the state's lawful Union War governor. By June 1863, Arthur I. Boreman succeeded Pierpont as governor and West Virginia was recognized as a separate Union state, under the federal legislative condition that it abolish slavery. West Virginians then ratified a legislative referendum that accepted a measure whereby all blacks born after July 4, 1863, would be free. In January 1864, Frederick Douglass, delivering an address entitled "The Mission of the War," stated emphatically that "slavery . . . [had been] stunned nearly to death in Western Virginia."[1] At the close of the Civil War, complete emancipation had been established.

The founding of West Virginia reflected the fruition of more than fifty years of sectional strife in Virginia by crystallizing deep-rooted sectional tensions within the Old Dominion and by overthrowing the western region's own antebellum elite, which had generally supported secession. Secretary of Treasury Salmon P. Chase commented at the time that it was "well known that for many years the people of West Virginia have desired separation on good and substantial grounds." To relieve, among some politicians, the apprehension regarding the constitutionality of dividing a state Chase added, "The case of West Virginia will form no evil precedent." He concluded by saying that the formation of West Virginia would not inspire the national government "to break up or impair the integrity of the States."[2]

Statehood brought leaders of competing local elites to the fore, who guided the creation of West Virginia and directed its government through the Civil War and

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Reconstruction era. With the exception of William E. Stevenson, Republicans were few in western Virginia during statehood. The political leadership was composed primarily of former Whigs, such as Waitman T. Willey of Monongalia County and Democrats William G. Brown of Preston County, Jacob Blair of Parkersburg, and Kellian V. Whaley of Mason County, who were loyal to the federal government. These leaders enacted long-demanded democratic reforms including "free public education, the secret ballot, annual elections, changes in the structure of local government," and tied the accountability of public office to the people by making state and county offices elective. A coalition of groups who had opposed tidewater domination and who for decades aversely tolerated the domination of conservative, slaveholding, aristocratic Virginians created the Mountain state. An occasional Parkersburg correspondent to the New York *Times* perhaps best explained the position of West Virginians:

> the Western section of the Old Dominion had minifested a chronic hankering after separate State Existence, which was generally credited to a legitimate horror of slavery, in which Western Virginia possessed but a nominal interest while it bore a full share of the odium attaching to that barbarous institution sufficient to shut out progress and development by keeping out foreign enterprise and immigration . . . . Thirty years ago there were not over 20,000 slaves within the boundary of the present new State, and these were freely conceded to be a source of more expense and trouble than profit . . . . Although nineteen-twentieth's of West Virginians owned no slaves, they obsequiously sped the other twentieth in their prejudice against the poor black and the hard labor he performed. The truth is that it was not against slavery that the complaints of West Virginians were directed, but against taxation for which they . . . cherished an innate aversion, and of which they felt the were being made to pay more than a legitimate share.[3]

Mountaineers who deeply valued their communities' seclusion and self-sufficiency embodied one faction advocating separation and capitalist Whigs adhering to the free labor convictions and modern ideas of progress, who accused Virginia planters of inhibiting the region's growth and preventing its integration into the expanding capitalist economy of the North represented the other faction. These groups were loyal to the Union and resentful of the antebellum elite. Neither group was much concerned in assisting the state's black minority, but they were apparently very much concerned with excluding blacks, who comprised only 5 percent of the population. Indeed, only a federal congressional directive forced the omission from the new constitution of a clause prohibiting blacks from entering the state.[4]

President Abraham Lincoln won West Virginia in the election of 1864. Although Lincoln received over 23,000 votes, Democratic candidate George B. McClellan received an alarming 10,000 votes. The Democratic vote indicated that many Unionists who reluctantly supported necessary conditions for statehood had become disillusioned with President Lincoln's war measures. The number of votes for McClellan gave some credence to the Republicans' fear that after the war returning Confederates would help swell the Democratic party and favor a return to the old order. West Virginia's new state boundaries included not only the loyal Unionist mountain area, but twenty-six counties farther south that had, in accordance with Virginia, voted for secession from the federal government. These counties comprised one-half the total number of counties in West Virginia, almost two-thirds of the states' land, and 40 percent of its population.

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.19 - Sharecropping Contracts in the Late-Nineteenth-Century South

Louis Ferleger

ARTICLE	Sharecropping Contracts in the Late-Nineteenth-Century South
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Sharecropping Contracts in the Late-Nineteenth-Century South

LOUIS FERLEGER

You may plow here
Just much as you please.
You may plow here
Just as deep as your knees.
But I will tell you
Right before your face,
You ain't goin make nothin here.[1]

Mechanization was the principal source of agricultural productivity growth in the United States in the nineteenth century. More specifically, mechanization increased labor productivity by raising the ratio of acres per worker. In this regard, however, southern agriculture lagged behind other regions in the United States in the latter half of the nineteenth century.[2] As a result, southern agricultural produc-

LOUIS FERLEGER is Professor of Economics, University of Massachusetts–Boston. He thanks Bernard Bailyn, Lee Craig, Stanley Engerman, Elizabeth Fox-Genovese, Eugene Genovese, Alex Keyssar, William Lazonick, Peter Mancall, Jay Mandle, Morton Rothstein, David F. Weiman, Harold Woodman, and Gavin Wright for helpful comments on earlier drafts.

1. From Thordis Simonsen, ed., *You May Plow Here: The Narrative of Sara Brooks* (New York, 1986).

2. William N. Parker and Judith L.V. Klein, "Productivity Growth in Grain Production in the United States, 1840–60 and 1900–10" in *Output, Employment, and Productivity in the United States after 1800,* National Bureau of Economic Research, Studies in Income and Wealth, n. 30, (New York, 1966), 525; James H. Street, *The New Revolution in the Cotton Economy* (Chapel Hill, 1957), 3–40. There were two sources of mechanization in the nineteenth century that could have reduced labor requirements and increased the ratio of acres per worker: (1) improved implements and equipment that lowered worker-hours per acre before harvest; and (2) machinery that reduced labor requirements at harvest. Full mechanization of the cotton harvest did not occur until after World War II. The trend in worker-hours per acre before harvest for wheat, corn, and cotton, was downward between about 1880 and 1920. However, it differed significantly by crop. The drop in worker-hours in wheat and corn was 12.5 percent and 21.4 percent compared to 7.5 percent for cotton between 1880 and 1900, 21.4 percent and 13.6 percent

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tivity growth was slower. There is substantial disagreement over what were the most important factors contributing to this slow rate of growth. To a greater or lesser extent the role of merchants, tenancy, plantation agriculture, planter–merchant–tenant conflicts, the legal system, and political factors, among others, have all been examined in conjunction with explaining the poor performance of the southern economy.[3]

The argument of this paper is that the sharecropping system contributed to the low level of productivity advance in the South because of its influence on implement use. This hypothesis calls into question those theorists who assume that all tenants were independent farmers, motivated by higher yields, and controlled their farming practices. Historical documents from the late nineteenth century show that sharecroppers, especially black sharecroppers, were very closely supervised and had very little decision-making power over farming practices. It is especially important to note that they had almost no choice over the farm implements they would use to carry out production.

Landlords exercised a high degree of supervision and influence over their sharecroppers; this included a bias toward the use of only the most rudimentary tools. This practice resulted in low crop yields, a slow rate of mechanization, and an overall slow rate of productivity growth in the late nineteenth century. The region trailed other areas nationwide in the use of modern implements. Unlike the South, other regions were shifting to less labor-intensive methods of production.

Most studies of tenancy in the nineteenth century note that there were three different types of tenant–landlord agreements. Typically landlords contracted with tenants as sharecroppers, share renters, or cash renters.

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compared to 11.3 percent between 1900 and 1920, and 31.3 percent and 32.1 percent compared to 17.9 percent over the period from 1880 to 1920. Thus the drop in worker-hours per acre before harvest was considerably less in cotton compared with wheat and corn. For a full description of these changes, see Martin R. Cooper, Glen T. Barton and Albert P. Brodell, *Progress of Farm Mechanization,* USDA, Miscellaneous Publications No. 630, Table 1, p. 3.

3. Harold D. Woodman, "Post-Civil War Southern Agriculture and the Law," *Agricultural History* 53 (January 1979): 319–37; Gavin Wright, *Old South, New South: Revolutions in the Southern Economy Since the Civil War* (New York, 1986); Joseph D. Reid, Jr., "Sharecropping As An Understandable Market Response: The Post-Bellum South," *Journal of Economic History* 33 (March 1973), 106–30; Robert Tracy McKenzie, "Postbellum Tenancy in Fayette County, Tennessee: Its Implications for Economic Development and Persistent Black Poverty," *Agricultural History* 61 (Spring 1987): 16–33; Jay R. Mandle, *The Roots of Black Poverty: The Southern Plantation After the Civil War* (Durham, 1978); Mandle, *Not Slave, Not Free* (Durham, 1992); William N. Parker, "The South in the National Economy, 1865–1970," *Southern Economic Journal* 46 (1980), 1019–48; Gerald David Jaynes, *Branches Without Roots* (New York, 1986); Roger L. Ransom and Richard Sutch, *One Kind of Freedom* (New York, 1977). There is also a voluminous literature on resource allocation under share contracts. See, for example, Joseph D. Reid, Jr., "Sharecropping and Agricultural Uncertainty," *Economic Development and Cultural Change* 24 (April 1976): 549–76.

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.20 - The Ku Klux Klan: Property Crime and the Plantation System in Reconstruction Alabama

Michael W. Fitzgerald

ARTICLE	The Ku Klux Klan: Property Crime and the Plantation System in Reconstruction Alabama
JOURNAL	Agricultural History 71, no. 2 (1997)
EXCERPT	Original journal pages 186-187
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The Ku Klux Klan:

Property Crime and the Plantation System in Reconstruction Alabama

MICHAEL W. FITZGERALD

The Ku Klux Klan of the Reconstruction era stands as the nation's most notorious terrorist movement, but its nature defies easy explanation. Basic issues such as the identities and objectives of the Klansmen remain unresolved. As Michael Perman observed, there is "still, at this late date, considerable uncertainty about the genesis and function of the Klan." The standard scholarly account of the Klan, Allen Trelease's *White Terror,* stresses partisan motivation. Most scholars concede the centrality of political goals, broadly defined; the victims were predominantly black and white Republicans assailed by opponents of Reconstruction. Nonetheless, there is widespread conviction that the sometimes virulent bloodshed must have had wider social origins, especially those developing from the postwar changes in the plantation system.[1]

One commonly held view ties the emergence of terrorism to the unprecedented labor turmoil following emancipation. In *Social Origins of the New South: Alabama, 1860–1885,* Jonathan M. Wiener described the Klan in the Alabama Black Belt as "an instrument of the planter class, rather than the poor whites." He holds that in the cotton belt the Klan "worked in pursuit of the goals of the planters," helping perpetuate the plantation system rather than narrow political objectives. Eric Foner's

MICHAEL W. FITZGERALD is associate professor of history at St. Olaf College. He is currently working on a full-scale study of Reconstruction in Alabama.

1. Michael Perman, "Counter Reconstruction: The Role of Violence in Southern Redemption," in *The Facts of Reconstruction: Essays in Honor of John Hope Franklin,* ed. Eric Anderson and Alfred A. Moss Jr. (Baton Rouge: Louisiana State University Press, 1991), 129; Allen Trelease, *White Terror: The Ku Klux Klan Conspiracy and Southern Reconstruction* (New York: Harper & Row, 1971), xlvii.

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magisterial study *Reconstruction* concurs with this view. Foner stresses the centrality of the struggle over the plantation labor system and states that the restoration of labor discipline was "equally important" as political and other motivations for Klan terror. While he acknowledges that the Klan crossed class lines, he emphasizes that in wealthy areas "planters seem to have controlled the organization." Foner discerns a pattern of elite control even in the upcountry. The concept of labor repression is used with some elasticity as it presumably includes the punishment of theft, but Foner emphasizes other forms of worker intimidation.[2]

Labor coercion and the agency of the plantation elite thus receive substantial emphasis in contemporary writing, but the generalizations of these works leave indistinct the changes in the Klan's composition over time. Critics of these studies have reasserted the role of poorer whites in the Klan and often stress caste sentiments rather than the agricultural evolution of the region. While such racist sentiments were pervasive, I would suggest an additional dimension: the impact of emancipation and its aftermath on small-scale farmers. In Alabama yeoman farmers and young landless laborers dominated the identified activists. It is misleading to depict those who actually undertook nightriding as passive followers of the planters; they possessed goals of their own, and their agency deserves scrutiny. Emancipation spawned personal insecurity about property, which exacerbated political grievances and united a broad white constituency for terror. Labor unrest troubled the planters, but small-scale theft touched a broader cross section of the population.[3]

The crisis in agriculture and the ways planters responded to it set the stage for the Klan's emergence throughout northern and western Alabama.

2. Jonathan M. Wiener, *Social Origins of the New South: Alabama, 1860–1885* (Baton Rouge: Louisiana State University Press, 1978), 61. See also J. A. C. Stagg, "The Problem of Klan Violence: The South Carolina Up-Country, 1868–1871," *Journal of American Studies* 8 (December 1974): 303–18; Eric Foner, *Reconstruction: America's Unfinished Revolution, 1863–1877* (New York: Harper & Row, 1988), 425, 428–30, 433. See the discussion of the Klan and labor discipline here, which does not mention theft as a motive at all.

3. Charles L. Flynn Jr., *White Land, Black Labor: Caste and Class in Late Nineteenth Century Georgia* (Baton Rouge: Louisiana State University Press, 1983), 29–56; and Flynn, "The Ancient Pedigree of Violent Repression: Georgia's Klan as a Folk Movement," in *The Southern Enigma: Essays on Race, Class and Folk Culture*, ed. Walter J. Fraser Jr. and Winifred B. Moore Jr. (Westport, Conn.: Greenwood Press, 1983), 189–98.

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.21 - Rights and the Constitution in Black Life during the Civil War and Reconstruction

Eric Foner

ARTICLE	Rights and the Constitution in Black Life during the Civil War and Reconstruction
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EXCERPT	Original journal pages 863-864
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Rights and the Constitution in Black Life during the Civil War and Reconstruction

Eric Foner

Early in 1873 a northern correspondent in Mississippi commented on the remarkable changes the previous decade had wrought in the behavior and self-image of southern blacks. "One hardly realizes the fact," he wrote, "that the many negroes one sees here . . . have been slaves a few short years ago, at least as far as their demeanor goes as individuals newly invested with all the rights and privileges of an American citizen. They appreciate their new condition thoroughly, and flaunt their independence." As the writer intimated, the conception of themselves as equal citizens of the American republic galvanized blacks' political and social activity during Reconstruction. Recent studies have made clear how the persistent agitation of Radical Republicans and abolitionists, and the political crisis created by the impasse between Andrew Johnson and Congress over Reconstruction policy, produced the Civil Rights Act of 1866 and the Fourteenth and Fifteenth amendments—measures that embodied a new national commitment to the principle of equality before the law.[1] But the conception of citizens' rights enshrined in national law and the federal Constitution during Reconstruction also came, as it were, from below. In seeking to invest emancipation with a broad definition of equal rights, blacks challenged the nation to live up to the full implications of its democratic creed and helped set in motion events that fundamentally altered the definition of citizenship for all Americans.

The transformation of blacks' role within American society began during the Civil War. For the nearly four million slaves, for the tiny, despised black population of the free states, and for the free blacks of the South, the war held out the hope of a radical change in American race relations. Each of those groups took actions

Eric Foner is professor of history at Columbia University. This essay derives in large measure from the author's book *Reconstruction: America's Unfinished Revolution, 1863–1877*, a general history of the post–Civil War years to be published in 1988. The author wishes to thank, for criticisms and suggestions, David Thelen and other participants in the Conference on Rights and Constitutionalism in American Life held at the University of Massachusetts, Amherst, in 1986. He is also deeply grateful to Ira Berlin, Leslie Rowland, and their colleagues at the Freedmen and Southern Society Project at the University of Maryland for generously making material available to him and in other ways assisting his research.

[1] *Jewish Times* (New York), Feb. 7, 1873; Robert J. Kaczorowski, "To Begin the Nation Anew: Congress, Citizenship, and Civil Rights after the Civil War," *American Historical Review*, 92 (Feb. 1987), 45–68.

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that helped propel a reluctant white America down the road not simply to abolition but also to a constitutional recognition of the principle of civil and political equality regardless of race—a concept utterly unprecedented in the preceding two and a half centuries of American history.

It is now widely accepted that the actions of thousands of slaves who in the first years of the war abandoned their masters and headed for the Union lines helped undermine the South's peculiar institution and accelerated the Lincoln administration's progress toward emancipation. More directly pertinent to the question of the former slaves' rights as free men and women, however, was the massive enrollment of blacks in military service, which began in earnest in 1863. By the war's end some 180,000 blacks had served in the Union army—over one-fifth of the adult male black population of the United States below the age of forty-five. The "logical result" of black military service, one senator observed in 1864, was that "the black man is henceforth to assume a new *status* among us." Although treated with anything but equality in access to promotion and, initially, in pay, black soldiers played a crucial role not simply in winning the Civil War but also in defining the war's consequences. Their service helped transform both the nation's treatment of blacks and blacks' conception of themselves. For the first time in American history, large numbers of blacks were treated as equals before the law—if only before military law. In army courts blacks could testify against whites (something unheard of throughout the South and in much of the North as well). It was in the army that those former slaves first learned to read and write, either from teachers employed by the military or in classrooms and literary societies established and funded by the soldiers themselves. "A large portion of the regiment have been going to school during the winter months," wrote a black sergeant from Virginia in March 1865. "Surely this is a mighty and progressive age in which we live."[2]

From Oliver Cromwell's New Model Army to the militias raised during the American Revolution to guerrilla armies of our own day, military service has often been a politicizing and radicalizing experience. For black troops, especially the vast majority who had known bondage, the army's impact was particularly profound. "No negro who has ever been a soldier," wrote one northern official in 1865, "can again be imposed upon; they have learnt what it is to be free and they will infuse their feelings into others." Black troops flaunted their contempt for symbols of slavery and relished the opportunity to exert authority over southern whites. One soldier celebrated his ability to walk "fearlessly and boldly through the streets [of New Orleans] . . . without being required to take off his cap at every step." For men of talent and ambition, the army flung open a door to position and respectability.

[2] Ira Berlin, Joseph P. Reidy, and Leslie S. Rowland, eds., *Freedom: A Documentary History of Emancipation, 1861–1867*, Series 2: *The Black Military Experience* (New York, 1982), *passim*; Mary Berry, *Military Necessity and Civil Rights Policy: Black Citizenship and the Constitution, 1861–1868* (Port Washington, 1977), 41–57, 62–74; Herman Belz, *A New Birth of Freedom: The Republican Party and Freedmen's Rights, 1861–1866* (Westport, 1976), 24; John Blassingame, "The Union Army as an Educational Institution for Negroes," *Journal of Negro Education*, 34 (Summer 1965), 152–59; Cam Walker, "Corinth: The Story of a Contraband Camp," *Civil War History*, 20 (March 1974), 15; *Christian Recorder*, March 18, 1865.

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.22 - The Origins of African-American Politics in Southwest Georgia: A Case Study of Black Political Organization During Presidential Reconstruction, 1865-1867

Lee W. Formwalt

ARTICLE	The Origins of African-American Politics in Southwest Georgia: A Case Study of Black Political Organization During Presidential Reconstruction, 1865-1867
JOURNAL	The Journal of Negro History 77, no. 4 (1992)
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THE ORIGINS OF AFRICAN-AMERICAN POLITICS IN SOUTHWEST GEORGIA: A CASE STUDY OF BLACK POLITICAL ORGANIZATION DURING PRESIDENTIAL RECONSTRUCTION, 1865-1867

by
Lee W. Formwalt*

Recent scholarship on the post-Civil War period indicates that African-Americans did not wait for Radical Republicans to implement legislation in 1867 to claim the rights and privileges that went along with freedom. Rather, from the moment of emancipation, freedmen played an active role in shaping their future. It is difficult, however, to discern the nature of black activities during Presidential Reconstruction because the oppression of unreconstructed Southern whites dominates the immediate postwar period and the records that have survived. The violence and abuse so characteristic of the period leaves very bold images of white vigilantes and black victims that are hard to erase. In Georgia, Presidential or Self-Reconstruction allowed no political role for freedmen or white Republicans (whether transplanted Yankees or native Southerners). Pardoned Confederates qualified for elections, dominated the 1865 constitutional convention, and filled the legislature chosen under the new constitution. Begrudgingly, ex-Confederates passed new laws recognizing the end of slavery, but as one historian has concluded, the new legislation consigned Afro-Georgians to "political oblivion, social inferiority, and superficial legal equality."[1]

The Freedmen's Bureau, established to help ease the difficult transition from slavery to freedom, did not provide the kind of assistance many Georgia blacks desired during Presidential Reconstruction. The assistant commissioner for Georgia, Davis Tillson, an exponent of Republican free labor ideology, had fought to end slavery. Yet Tillson was determined not to give handouts to ex-slaves fearing the creation of a state of dependency. Freedmen must work for their livelihood and when they saved enough from their wages, they could purchase their own land to farm, but land should not be given to the ex-slaves. In the meantime, Afro-Georgians were to sign written contracts with former slaveholders and work and live under the continued supervision of white landowners.[2]

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* Lee W. Formwalt is professor of history, Albany State College and editor of *The Journal of Southwest Georgia History*. He wishes to acknowledge assistance from the National Endowment for the Humanities and the Penrose Fund of the American Philosophical Society.

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A careful examination of the evidence, however, reveals that African-Americans did not willingly submit to a continuation of control by whites as it had been exercised under slavery. Instead, they took charge of their own lives from the first days of freedom. In the heart of the southwest Georgia black belt, Dougherty County freedmen exercised their liberty in numerous ways. Some abandoned the plantations for the freer urban environment of Albany, the county seat. Others negotiated with their former owners the terms of their agricultural labor contracts. Within months of emancipation, African-Americans began establishing independent churches and schools in Dougherty County staffed by black clergy and educators. Black political organization was not far behind.[3]

The earliest center of black political activity in postwar Dougherty County was a 500-acre plantation about six miles southeast of Albany. Today as one drives by the hundreds of acres of pecan trees along Antioch Road in east Dougherty, it is hard to imagine that, 125 years earlier, these were cotton and corn fields and that this was the southwest Georgia headquarters of the state's first black political action group.

The story of the Georgia Equal Rights Association (GERA) in Dougherty County began in the fall of 1865 with the efforts of a group of Wilkes County freedmen to buy or rent a plantation in southwest Georgia. Organized and led by Lawrence Speed and Wallace Sherman, the Wilkes County blacks turned to Freedmen's Bureau Assistant Commissioner Davis Tillson who was willing to assist blacks who wished to buy land and had the means to do so. Speed and Sherman had collected $7,000 from the Wilkes County blacks they represented to purchase their farm. After exhausting several possibilities in Wilkes and Thomas counties, bureau officials finally arranged for the Wilkes colony to rent the 500-acre Whitlock Place in east Dougherty County.[4]

Shortly before the 150 Wilkes County freedmen set out for southwest Georgia, a black state convention was held in Augusta where the delegates established the Georgia Equal Rights Association. Among those attending was a freedman from Wilkes County, a Mr. Sherman (perhaps Wallace or a relative). The organization selected as its president carpetbagger John Emory Bryant who enunciated the association's primary goal: "to aid in securing for all, without regard to race or color, equal political rights." Education for freedmen was an ancillary objective. Aware that the Freedmen's Bureau was not capable of meeting all the freedmen's needs, the convention advocated that blacks themselves establish local care committees across the state to relieve suffering and see that their children were educated.[5]

The Augusta convention passed resolutions calling for equal civil and political rights and that the African-American's "full dignity of manhood" be recognized. In addition, the delegates requested fair pay for black labor and that the government sell land to African-Americans at affordable prices. The GERA addressed all the great issues of Reconstruction—land, labor, education, and civil and political rights—and took the initiative to solve these problems without waiting for the Freedmen's Bureau or the Radical Republicans in Congress to come to their assistance. The GERA rapidly developed a grass-roots organization as delegates returned to their home counties and established local chapters.[6]

None of Georgia's southwestern counties were represented at the organizing meeting of the GERA. Within weeks of the Augusta meeting, however, GERA or-

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.23 - Potter Committee Investigation of the Disputed Election of 1876

Karen Guenther

ARTICLE	Potter Committee Investigation of the Disputed Election of 1876
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POTTER COMMITTEE INVESTIGATION OF THE DISPUTED ELECTION OF 1876

by KAREN GUENTHER

ON Saturday, March 3, 1877, Chief Justice Morrison B. Waite, in a private ceremony at the White House, swore into office Rutherford Birchard Hayes of Ohio as the nineteenth president of the United States. This event, culminating four months of controversy, resulted from the decision of a special electoral commission and a subsequent agreement known historically as the Compromise of 1877. Nevertheless, many Democrats still refused to concede the legitimacy of the Republican victory. When Congress reconvened shortly after the inauguration, several prominent House Democrats demanded a thorough investigation of the election. Consequently, in May 1878, the House established the Potter Committee for that purpose. For the next ten months this committee examined evidence relating to possible corruption in the determination of electoral votes for Hayes's triumph. The investigation, however, only served to discredit several state election officials and to uncover conflicting and inconclusive evidence of electoral fraud.[1]

The election of 1876 belonged to a period in American politics in which voters provided few solid mandates either to parties or to individuals. During this era, no president won reelection after his four years in office nor did any presidential candidate receive a majority of the popular vote. Further, congressional control was continually exchanged between the two main parties. Factional conflicts, often based on personal rivalries rather than on differences of opinion, were common within the parties.[2] In this climate occurred one of the closest and most dis-

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Karen Guenther is a candidate for a master of arts degree in American history at Pennsylvania State University.

1. Sidney I. Pomerantz, "Election of 1876," in *History of American Presidential Elections, 1789-1968,* 4 vols., Arthur M. Schlesinger, Jr., ed. (New York, 1971), II, 1428.
2. John A. Garraty, *The New Commonwealth, 1877-1890* (New York, 1968), 222-23, 239.

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orderly elections in American history. Prior to the election of 1876, both candidates, Rutherford B. Hayes of the Republican party and Samuel J. Tilden of the Democratic party, had achieved fame as reformers. Tilden, formerly governor of New York, emerged with a clear plurality of the popular vote, receiving approximately 250,000 more votes than his opponent. In the early returns, he seemed assured of a clear majority in the electoral college vote as well. However, the discovery of twenty disputed electoral votes made the outcome uncertain. One of these came from Oregon, where officials had declared one elector ineligible. Nineteen were from the three southern states which still had "carpetbag" governments: Florida, four; Louisiana, eight; and South Carolina, seven. To win the election Hayes needed all twenty disputed votes.[3]

The Constitution provided that the official counting of the electoral votes be conducted in the presence of both houses of Congress, but the Republican-controlled Senate and the Democratic-controlled House could not readily agree on the procedure for authenticating the returns. Finally, two bi-partisan committees, one from each house, jointly proposed an electoral commission bill on January 18, 1877, to solve the dispute. As authorized, the commission consisted of fifteen members—five from each house and five from the Supreme Court. The purpose of the electoral commission was to determine how the disputed votes should be counted. Its decisions on the election returns of the four disputed states were to be final unless a separate vote in both the Senate and the House sustained an objection.[4]

During February and March 1877, it became clear that the special commission, consisting of eight Republicans and seven Democrats, would decide the dispute strictly along partisan lines. The decision of the electoral votes of the first state, Florida, resulted in an eight-to-seven victory for the Republicans. This pattern continued throughout the rest of the decisions. Congress

3. George Dangerfield, "The Historical Warning of the Hotel Wormley," *New Republic*, CXXV (December 31, 1951), 18; Pomerantz, "Election of 1876," 1404-10.
4. C. Vann Woodward, *Reunion and Reaction* (Boston, 1951), 150-52; Pomerantz, "Election of 1876," 1415. For a list of the members of the Electoral Commission see *Congressional Record*, 44 Cong., 2 Sess., "The Proceedings of the Electoral Commission." The activities of the commission are also related here.

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.24 - Origins of the New South in Retrospect

Sheldon Hackney

ARTICLE	Origins of the New South in Retrospect
JOURNAL	The Journal of Southern History 38, no. 2 (1972)
EXCERPT	Original journal pages 191-192
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Origins of the New South in Retrospect

By Sheldon Hackney

One of the facts of intellectual life that makes publishers happy and students sad is that every generation writes its own history. The elapse of more than the traditional span of two decades since the publication of *Origins of the New South* by C. Vann Woodward[1] makes it an appropriate time to wonder whether a new generation has begun to alter Woodward's masterful portrait of the South between 1877 and 1913. Of the three general sources of revisionist impulses—new information, new questions, new world views—all have had ample time and sufficient cause to wash away Woodward's version of the origins of the New South. Yet, given the amazing frequency with which the generational waves are now rolling over our cultural breakwaters, the remarkable thing is that there has been so little fundamental challenge to the outlines of the story established by Woodward twenty years ago.

Of one thing we may be certain at the outset. The durability of *Origins of the New South* is not a result of its ennobling and uplifting message. It is the story of the decay and decline of the aristocracy, the suffering and betrayal of the poor whites, and the rise and transformation of a middle class. It is not a happy story. The Redeemers are revealed to be as venal as the carpetbaggers. The declining aristocracy are ineffectual and money hungry, and in the last analysis they subordinated the values of their political and social heritage in order to maintain control over the black population. The poor whites suffered from strange malignancies of racism and conspiracy-mindedness, and the rising middle class was timid and self-interested even in its reform movement. The most sympathetic characters in the whole sordid affair are simply those who are too powerless to be blamed for their actions.

[1] Woodward, *Origins of the New South, 1877–1913* ([Baton Rouge], 1951).

Mr. Hackney is associate professor of history at Princeton University. This paper was presented in a slightly different form at the New Orleans meeting of the Organization of American Historians on April 16, 1971.

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Such a somber view differs sharply from the confident optimism exuded by the New South school of historians such as Philip Alexander Bruce, Broadus Mitchell, Paul H. Buck, and Holland Thompson.[2] Embellished by various degrees of hyperbole, their principal theme was that of sectional reconciliation and the casting off of the dead hand of the past. "Most of the real Southern colonels are dead," Holland Thompson wrote in 1919, "and the others are too busy running plantations or cotton mills to spend much time discussing genealogy, making pretty speeches, or talking about their honor. Not so many colonels are made as formerly, and one may travel far before he meets an individual who fits the popular idea of the type. He is likely to meet more men who are cold, hard, and astute, for the New South has developed some perfect specimens of the type whose natural habitat had been supposed to be Ulster or the British Midlands—religious, narrow, stubborn, and very shrewd."[3] "New South" for Thompson meant not only this new spirit of enterprise but a desire to accept the results of the Civil War as the best thing that could have happened, to face the future without rejecting the past, and the determination to play a part in national life. "Economically," Thompson maintained, "the South has prospered in proportion as the new spirit has ruled."[4]

Thompson himself was very cautious about his claims as regards the real economic changes in the South, but he was typical of the New South historians in many other things. In accord with the interpretation of Reconstruction then dominant, that associated with the name and work of William Archibald Dunning, Thompson viewed Reconstruction as a fiasco of disorder and dishonesty. Consequently, the men who returned the South to (conservative white) home rule, the Redeemers, appeared in a favorable light. Even though Thompson indulged in no cult of the Redeemers, he presented them as honest men justifiably concerned about white supremacy. Their only fault, according to Thompson, was perhaps an unhealthy fixation upon maintaining low taxes to the detriment of progressive services such as good schools and good roads. Toward the irrational and ill-informed

[2] For an intelligent brief discussion of the New South school, see Paul M. Gaston, "The 'New South,'" in Arthur S. Link and Rembert W. Patrick, eds., *Writing Southern History: Essays in Historiography in Honor of Fletcher M. Green* ([Baton Rouge], 1965), 321–26.

[3] Thompson, *The New South: A Chronicle of Social and Industrial Evolution* (New Haven, 1919), 203–204.

[4] *Ibid.*, 192.

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.25 - 'Yonder Come Day': Religious Dimensions of the Transition from Slavery to Freedom in Florida

Robert L. Hall

ARTICLE	'Yonder Come Day': Religious Dimensions of the Transition from Slavery to Freedom in Florida
JOURNAL	The Florida Historical Quarterly 65, no. 4 (1987)
EXCERPT	Original journal pages 411-412
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"YONDER COME DAY": RELIGIOUS DIMENSIONS OF THE TRANSITION FROM SLAVERY TO FREEDOM IN FLORIDA[1]

by ROBERT L. HALL

THE Confederate firing on Fort Sumter in 1861 was a watershed not only in the political and military history of the United States, but also a turning point in its social history. The heady wine of secessionism and the rupturing of lines of communication and calm moral discourse were experienced in some religious polities for more than a decade before the fateful military event. Southern Methodists and Baptists had parted company with their non-southern counterparts by 1845, when, as John Hope Franklin has written, "slavery had become as much a part of the religious orthodoxy of the South as the Creation in the Book of Genesis or Armageddon in the Book of Revelations. The work of promoting and defending slavery, when entrusted to the southern clergy, could not have been in safer hands."[2] On the eve of secession, bishops of the Episcopal and Catholic churches in Florida were urging secession and preaching fiery pro-slavery sermons. Bishop Frances Huger Rutledge of the Episcopal Church was so enthusiastic in his exhortations on behalf of southern independence that Edmund Ruffin, an eyewitness observer of the Florida secession convention, was impressed with Rutledge's "ardent and active patriotic sentiments."[3] Not only did he refuse to attend church services

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1. See the jacket liner notes, "In The Old Fashioned Way," *Yonder Come Day: Note Singing and Spirituals From South Georgia*, Front Porch Records 79-001, GA 179, produced and directed by Dennis Coelho.
2. John Hope Franklin, "The Great Confrontation: The South and the Problem of Change," *Journal of Southern History* 38 (February 1972), 10. For details on the Baptist schism, see William Greer Todd, "The Slavery Issue and the Organization of a Southern Baptist Convention," (Ph.D. dissertation, University of North Carolina at Chapel Hill, 1964).
3. Edmund Ruffin, quoted in Dorothy Dodd, "Edmund Ruffin's Account of the Florida Secession Convention, 1861," *Florida Historical Quarterly* 12 (October 1933), 69-70. Rutledge was the Episcopal bishop of Florida from

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on the national day of humiliation and prayer proclaimed by President Buchanan, but Rutledge also pledged $500 to help defray the new government's expenses if the ordinance of secession passed.[4]

There were nearly 400 black Catholics living and worshipping in St. Augustine on the eve of the Civil War. Three months before the firing on Fort Sumter, many of them were undoubtedly present when Augustin Verot, vicar apostolic of Florida, preached a sermon advancing the traditional Catholic theological position that slavery was not in itself evil and vigorously defending the property rights of those who owned slaves. Bishop Verot's sermon, "Slavery and Abolitionism," delivered in the parish church at St. Augustine on January 4, 1861, was soon printed and disseminated widely throughout the South, and it became a popular Confederate pro-slavery tract.[5] In other regards, however, Verot's biographer believed "he had a compassionate regard for the Negro slave."[6] Unquestionably, Bishop Verot did demonstrate a profound concern for the religious instruction of black Floridians during the years immediately after the Civil War.

During the Civil War, rumblings of black religious assertions began to be heard even more loudly than during the antebellum period. Shortages of both human power and financial resources rendered these black assertions nearly irresistible, and converted the war years into a period of incubation for local and

1851-1866. See also, Joseph D. Cushman, Jr., *A Goodly Heritage: The Episcopal Church in Florida, 1821-1892* (Gainesville, 1965), 27, 42-43, 76.

4. Dorothy Dodd, "The Secession Movement in Florida, 1850-1861, Part II," *Florida Historical Quarterly* 12 (October 1933), 60.
5. A treatment of the anti-Union sentiments of both of the Florida churchmen mentioned in this paragraph is found in H. Shelton Smith, *In His Image, But..Racism in Southern Religion, 1780-1910* (Durham, 1972), 175-77. The title of Bishop Verot's sermon was *A Tract for the Times. Slavery and Abolitionism, Being the Substance of a Sermon Preached in the Church of St. Augustine, Florida, on the 4th Day of January, 1861, Day of Public Humiliation, Fasting and Prayer* (New Orleans, 1861). In 1864, J. W. Brinckerhoff, who had come to St. Augustine in February 1863 as a United States government superintendent of the colored people, observed that "a large portion of the colored people here are regular attendants and devoted adherents of the Roman Catholic Church," J. W. Brinckerhoff to George Whipple, November 23, 1864, American Missionary Association Papers, microfilm ed., reel 28, Robert Manning Strozier Library, Florida State University, Tallahassee, Florida.
6. Michael V. Gannon, *Rebel Bishop: The Life and Era of Augustin Verot* (Milwaukee, 1964), 33.

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.26 - Reconstructing Andrew Johnson: The Influence of Laissez-Faire Constitutionalism on President Johnson's Restoration Policy

William E. Hardy

ARTICLE	Reconstructing Andrew Johnson: The Influence of Laissez-Faire Constitutionalism on President Johnson's Restoration Policy
JOURNAL	Tennessee Historical Quarterly 65, no. 1 (2006)
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Reconstructing Andrew Johnson: The Influence of Laissez-Faire Constitutionalism on President Johnson's Restoration Policy

By William E. Hardy

Andrew Johnson rarely shied from testifying to his Jacksonian political principles. In a February 1867 interview published in the *Augusta Constitutionalist*, President Johnson admitted that "my convictions in politics are things that I cannot change to suit the expediencies of this or any other moment. They have grown with my growth, they have strengthened with my strength, and they are to me only less sacred, and as much to be preserved, as my religious faith." The president's statement is reflective of the rigidity and obstinacy he exhibited in the course of his political career.[1]

Throughout his political career, Johnson adhered consistently, as he deemed it, to a Jacksonian philosophy that embraced strict construction of federal and state constitutions, states' rights, and limited government. Jacksonianism served Johnson well in his rise to political power in Tennessee. As Arthur Schlesinger, Jr., argued in his classic *The Age of Jackson*, Johnson was the last of the true Jacksonians. Yet in the White House, his inability to grow and adapt to the recent radical changes in American constitutionalism complicated his relations with Congress. Johnson's fidelity to laissez-faire constitutionalism, and his opposition to class legislation, significantly contributed to the breach between the president and the Republican Congress.[2]

Historian William Barney in 1980 asserted that "the pivotal role of Andrew Johnson in Reconstruction is indisputable." Recent scholarship has focused on Johnson's own racial attitudes for their possible influence on his administration's policy. In 1989, David W. Bowen in *Andrew Johnson and the Negro* explored the president's racist bias in the context of his political and social philosophy. Seizing on Johnson's vision of "Jacob's ladder," Bowen examines the rise of the tailor from Greeneville, Tennessee, to the nation's highest political office. As the epitome of the self-made man, Johnson sought to extend privileges of an open society to those who sought upward mobility. However, his racial attitudes, Bowen argues, precluded blacks from scaling the ladder toward social mobility and equal rights, and Johnson's racism was "one of those 'great forces'" that affected not only the president but the society he presided over. Bowen's conclusion—that the president's lifelong racial bias permeated his

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administration's policies and therefore "racism is the 'key' to understanding Johnson's actions," remains a scholarly consensus today.[3]

In his 1940 essay, "On Rewriting Reconstruction History," Howard K. Beale asserted, "we need to stop passing judgment on persons and to begin studying forces." It is time again to apply that dictum to the presidential years of Andrew Johnson. Attitudes about race, class, region, and Jacksonianism all combined to make Johnson a complex, multi-dimensional politician who insisted that there were "things that I cannot change." Both Johnson's political and social philosophies played a significant role in the president's decision-making.[4]

The phrase laissez-faire is synonymous with the adage "leave it alone." At the core of classical economic doctrine is the notion of laissez-faire, meaning that government should play a limited role in the economy. To permit government involvement in the free market would create the possibility for an economic benefit to be granted to one part of society rather than the rest. Advocates of laissez-faire constitutionalism opposed class-based governance and legislation, that is, the use of the federal government to advance one class of persons or interests at the expense of the general welfare. As constitutional law historian Michael Les Benedict put it:

> Class legislation was the great evil that was potential in all government. . . . Laissez-faire constitutionalism received wide support in late nineteenth-century America not because it was based on widely adhered-to economic principles, and certainly not because it protected entrenched economic privilege, but rather because it was congruent with a well-established and accepted principle of American liberty.[5]

Although laissez-faire constitutionalism is often attributed to late nineteenth-century legal doctrine, its origins can be traced back to the republican ideology that governed the nation's founders.

A majority of the founding fathers opposed the use of government for class-based legislation. Among the founders, no one articulated the notion of laissez-faire constitutionalism better than James Madison in the famous *Federalist* letter no. 10. Madison insisted, "If it be asked what is to restrain the [government] from making legal discriminations in favor of themselves, and a particular class of the society? I answer, the genius of the whole system [and] the nature of just and constitutional laws." The nation's constitutional framework set up a political structure that was hostile to class-based legislation and forbade government on both the federal and state level from interfering in disputes among competing classes.[6]

In the early nineteenth century, the federal government began to promote nation-building policies. During the administrations of Thomas Jefferson, James Madison, and James Monroe, economic protection and privileges granted by the federal government assisted the growth of a national market economy. Congress aided the development of a nascent market economy with the passage of the Embargo Act of 1807, the adoption of a high protective tariff in the wake of the War of 1812 that favored American manufacturers, and the 1816 charter for the Second Bank of the United States. In the United States Supreme Court, Chief Justice John Marshall supported the creation of monopolies and upheld special privilege legislation in his majority opinions on three important cases: *Dartmouth College* v. *Woodward* (1819), *McCulloch* v. *Maryland* (1819), and *Gibbons* v. *Ogden* (1824). These decisions not only broadened the powers of the federal government, but also encouraged the growth of a national market economy and monopolies.[7]

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.27 - Black Politicians in Reconstruction Charleston, South Carolina: A Collective Study

William C. Hine

ARTICLE	Black Politicians in Reconstruction Charleston, South Carolina: A Collective Study
JOURNAL	The Journal of Southern History 49, no. 4 (1983)
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Black Politicians in Reconstruction Charleston, South Carolina: A Collective Study

By William C. Hine

Few groups in United States history have provoked greater controversy and inflamed passions more than the black men who rose to political prominence during Reconstruction. Reviled and vilified as ignorant and incompetent by more than one generation of historians,[1] their reputation in recent years has markedly improved as the racial attitudes of contemporary historians have moderated and as those scholars have intensified their study of black political leadership during that era.[2]

Yet, aside from David C. Rankin's pathbreaking inquiry into the backgrounds of black leaders in New Orleans, virtually nothing is known of the hundreds of men who participated in the lower echelons

[1] Serving as benchmarks among traditional accounts of Reconstruction are John W. Burgess, *Reconstruction and the Constitution, 1866–1876* (New York, 1902); William A. Dunning, *Reconstruction, Political and Economic, 1865–1877* (New York, 1907); Claude G. Bowers, *The Tragic Era: The Revolution After Lincoln* (Cambridge, Mass., 1929); and E. Merton Coulter, *The South During Reconstruction, 1876–1877* ([Baton Rouge], 1947). Though more moderate on race, Francis B. Simkins and Robert H. Woody's *South Carolina During Reconstruction* (Chapel Hill, 1932) still belongs among the traditional studies.

[2] The revisionist accounts begin with two black historians in the 1920s and 1930s. See Alrutheus A. Taylor, *The Negro in South Carolina During the Reconstruction* (Washington, 1924); and William E. B. Du Bois, *Black Reconstruction . . . in America, 1860–1880* (New York, 1935). For more recent studies see Kenneth M. Stampp, *The Era of Reconstruction, 1865–1877* (New York, 1965); John Hope Franklin, *Reconstruction: After the Civil War* (Chicago and London, 1961); Allen W. Trelease, *Reconstruction: The Great Experiment* (New York, 1971); and Joel Williamson, *After Slavery: The Negro in South Carolina During Reconstruction, 1861–1877* (Chapel Hill, 1965). Furthermore, the historiographical pendulum has not swung back to the point that black leaders are now merely viewed sympathetically as heroes and/or tragic victims caught up in a confusing and stormy era. For critical revisionist accounts see Thomas Holt, *Black over White: Negro Political Leadership in South Carolina During Reconstruction* (Urbana, Chicago, and London, 1977); Euline W. Brock, "Thomas W. Cardozo: Fallible Black Reconstruction Leader," *Journal of Southern History*, XLVII (May 1981), 183–206; Armstead L. Robinson, "Beyond the Realm of Social Consensus: New Meanings of Reconstruction for American History," *Journal of American History*, LXVIII (September 1981), 276–97; and Howard N. Rabinowitz, ed., *Southern Black Leaders of the Reconstruction Era* (Urbana, Chicago, and London, 1982).

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of politics in the urban South during Reconstruction.[3] This study represents an effort to rectify that situation by examining the origins and the patterns of life of the black men who were politically active in Charleston, South Carolina, from 1865 to 1877.

In the century prior to the secession crisis of 1860–1861 Charleston had achieved fame and notoriety as a bustling port and lively center of antebellum culture. The city was dominated by wealthy planter-aristocrats, who reigned magisterially over it and South Carolina's low country.[4] But the inception of Congressional Reconstruction in 1867 dramatically altered the political picture as dozens of black men both from within Charleston's sizable black community as well as from other localities surged forward and grasped for the political reins of power in the decade after the Civil War.[5]

In order to identify these grass-roots black politicians and probe their backgrounds the names of more than five hundred political activists were culled from Charleston newspapers published between 1865 and 1875.[6] By methodically combing a variety of records,

[3] Rankin, "The Origins of Black Leadership in New Orleans During Reconstruction," *Journal of Southern History*, XL (August 1974), 417–40. There also have been several full-length biographies of black men who held office during Reconstruction. See Okon Edet Uya, *From Slavery to Public Service: Robert Smalls, 1839–1915* (New York, London, and Toronto, 1972); James Haskins, *Pinckney Benton Stewart Pinchback* (New York, 1973); Peggy Lamson, *The Glorious Failure: Black Congressman Robert Brown Elliott and the Reconstruction in South Carolina* (New York, 1973); Peter D. Klingman, *Josiah Walls: Florida's Black Congressman of Reconstruction* (Gainesville, 1976); and Loren Schweninger, *James T. Rapier and Reconstruction* (Chicago and London, 1978).

[4] Charleston's economic role in the nation declined fairly rapidly after the panic of 1819 as cotton prices fluctuated and competition from the Southwest increased. Exports from Charleston failed to keep pace with those of other southern ports, so that even Mobile exceeded Charleston in exports by 1840. Charleston's rank in population fell from sixth in the nation in 1820 to twelfth in 1850. Yet, in the minds of many northerners and southerners Charleston remained thoroughly identified with the southern way of life. By 1860 more than one-fifth of South Carolina's wealthiest planters maintained residence in the city. Julian J. Petty, *The Growth and Distribution of Population in South Carolina* (Columbia, S. C., 1943), 65, Table Six, 85–86; Charles S. Sydnor, *The Development of Southern Sectionalism, 1819–1848* ([Baton Rouge], 1948), 23, 251–52; Chalmers G. Davidson, *The Last Foray: The South Carolina Planters of 1860: A Sociological Study* (Columbia, S. C., 1971), 3, 170–267; John Radford, "The Charleston Planters in 1860," *South Carolina Historical Magazine*, LXXVII (October 1976), 228–29; George C. Rogers, Jr., *Charleston in the Age of the Pinckneys* (Norman, 1969), 52–53.

[5] For more on antebellum black life in Charleston see Marina Wikramanayake, *A World in Shadow: The Free Negro in Antebellum South Carolina* (Columbia, S. C., 1973), 21–22, 52, 73–74, 77–92, 110–12, 116–17, 120, 124–31, 133–53, 175–81; Ira Berlin, *Slaves Without Masters: The Free Negro in the Antebellum South* (New York, 1974), 36, 54, 65, 73–74, 214, 221, 230, 234, 236–38, 254–56, 344; Richard C. Wade, *Slavery in the Cities: The South, 1820–1860* (New York, 1964), *passim*; E. Horace Fitchett, "The Traditions of the Free Negro in Charleston, South Carolina," *Journal of Negro History*, XXV (April 1940), 139–52; and Fitchett, "The Origins and Growth of the Free Negro Population of Charleston, South Carolina," *ibid.*, XXVI (October 1941), 421–37.

[6] The most useful newspapers were the Charleston *Mercury*, 1865–1868; the Charleston *Daily Courier*, 1865–1873; the Charleston *Daily News*, 1865–1873; the *News* and *Courier* merged in 1873 and formed the Charleston *News and Courier*, 1873–1875; the Charleston

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.28 - Making Freedom Pay: Freedpeople Working for Themselves, North Carolina, 1865-1900

Sharon Ann Holt

ARTICLE	Making Freedom Pay: Freedpeople Working for Themselves, North Carolina, 1865-1900
JOURNAL	The Journal of Southern History 60, no. 2 (1994)
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Making Freedom Pay: Freedpeople Working for Themselves, North Carolina, 1865–1900

By Sharon Ann Holt

In early June of 1880, Mr. E. G. Butler stopped at the home of Thomas Sanford in Oxford, North Carolina. A thriving town of almost 1,400 people, Oxford was the seat of Granville County and the marketing center of a bustling trade in bright leaf tobacco.[1] Butler's call was on business, his business as the county's federal census enumerator. In addition to his wife and children, Thomas Sanford included in the record of his household two servants, Ottawa Lee, a black man, and Nancy Lee, a mulatto woman. He guessed their ages to be about fifty and forty years respectively.

Several days later Butler unknowingly entered the home of those very same Lees and counted them a second time in his census tally. Speaking for themselves, Nancy and Ottawa Lee revealed rather different lives than Thomas Sanford had described. They noted that they were husband and wife, a connection not recorded in the first enumeration. Mr. Lee was thirty-six, not fifty, and Mrs. Lee was twenty-six, not forty. The couple shared their home with Mrs. Lee's widowed sister, Ann Norman, who worked as a washerwoman. And, while acknowledging that they were

[1] Bright leaf tobacco, also called flue-cured tobacco, is a golden-leafed, aromatic strain of tobacco that is highly desirable for cigars. Growing and curing bright leaf replaced an older process of growing a darker strain and drying rather than fire-curing the harvested leaf. See Pete Daniel, *Breaking the Land: The Transformation of Cotton, Tobacco, and Rice Cultures since 1880* (Urbana and Chicago, 1985), esp. Chap. 2. See also Nannie May Tilley, *The Bright-Tobacco Industry, 1860–1929* (Chapel Hill, 1948). I wish to thank the staffs of the Special Collections Library of the William R. Perkins Library at Duke University, the North Carolina Department of Archives and History, and the office of the Granville County Register of Deeds for their invaluable assistance to my research. Research for this article was funded in part by an Archie K. Davis grant from the North Caroliniana Society at the University of North Carolina at Chapel Hill and a Summer Research Grant in Women's Studies from the Woodrow Wilson Foundation.

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both domestic servants by trade, the Lees informed Butler that they also owned two acres of land, worth about $150.[2]

The bureaucratic accident of double-counting has preserved two versions of the lives of Ottawa and Nancy Lee, and the differences between the two accounts are eloquent. The first enumeration includes only the portion of their lives that fell within Thomas Sanford's domain. The 1880 census was designed to represent households as having only one pivotal member, in this case Thomas Sanford, with all property and human relations devolving from him. By counting Nancy and Ottawa Lee as dependents in the Sanford household, Butler obscured several central elements of their lives. The Lees were residents of Sanford's home only part of the time; they also kept a household of their own, which they shared with a wage-earning sister. When the Lees were counted as dependents of Thomas Sanford, the structure of the enumeration highlighted a difference in their skin color and made their marriage invisible. The enumeration taken under their own roof recorded their marriage and failed to distinguish their color.[3] Most important, in Sanford's household the Lees are listed only as servants, while in their own they appear both as servants and as landowners.

While Butler's mistake may have slightly distorted his population count, it actually brings economic reality sharply into focus. Butler's record reveals that the Lees lived two lives within one; while they worked as wage-earning servants in the Sanford household, they led another life as a family of small proprietors. Their economic livelihood encompassed not only wages from Thomas Sanford but also Ann Norman's earnings and the produce of a small family farm.

Freedpeople like the Lees generated resources for themselves from manifold activities within their households in arrangements that whites like Sanford scarcely knew existed. Major historical studies of the postbellum period have tended to reproduce the priorities of the census, bypassing evidence of small-scale household production and building their analyses of freedpeople's lives around the economic dependency associated with wage labor and various forms of tenancy.[4] Roger L.

[2] For the Sanford household see U. S. Census Bureau, Tenth Census of Population, 1880, Granville County, North Carolina, Enumeration district 107, Superintendent's district 2, page 3 (hereinafter Population Census, 1880, 107/2/3); for the Lee household see Population Census, 1880, 107/2/76 and Tenth Census, Schedule of Agriculture, 1880, Enumeration district 107, Superintendent's district 2, page 32 (hereinafter Agricultural Census, 1880, 107/2/32).

[3] The marriage seems to have been long and devoted. Nancy Lee survived her husband by many years, but when she died she stipulated in her will that her burial expenses should not exceed $35, as "my beloved husband Ottawa Lee's funeral expenses was thirty-five Dollars ($35.00) and I do not wish for mine to exceed his." Wills, probated October 12, 1920 (Office of Public Records, Granville County Courthouse, Oxford, N. C.).

[4] The terms *household economy, household production, family economy,* and *home-based economy* are used interchangeably in this essay.

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.29 - Law, Rules, and Presidential Selection

Samuel Issacharoff

ARTICLE	Law, Rules, and Presidential Selection
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Law, Rules, and Presidential Selection

SAMUEL ISSACHAROFF

It is a paradox of democratic decision making that for the people to decide, there must be accepted rules of decision. The rules that govern how majorities may exercise their dominion and over what subjects they may do so generally stand apart from the immediate process of majoritarian selection. Ideally, the rules should reflect a conventional understanding of fair processes of decision making. But, unfortunately, political theory well teaches that the processes of decision making constrain and inform substantive outcomes, no matter how innocuous their design. By way of introduction to the rules governing presidential selection, let me turn to the other American fall classic—the game of baseball—and to its most famous World Series.

The 1960 World Series between the New York Yankees and the Pittsburgh Pirates is best known for Bill Mazeroski's dramatic ninth-inning home run in the decisive seventh game. That home run was the first time that a World Series ended upon the last batter reaching home plate—a feat that has been repeated only once by Joe Carter of the Toronto Blue Jays, and even then only in the sixth game. But the 1960 World Series may also serve as a curious introduction to the topic at hand: the Constitution and presidential selection. For it turns out that Pittsburgh's triumph in 1960 was simply an artifact of the rules in force. By every conceivable measure, the Yankees had prevailed and the wrong team went home besplendored with Series rings. The Yankees outscored the Pirates 55-27; outhit them .338 to .256; and outpitched them, with a team ERA of 3.54, compared to the Pirates's 7.11.[1] In short, the 1960 World Series was a rout, except for the troubling fact that the losing team emerged victorious.

[1] I am indebted to Professor Michael Herz, both for the statistics and for the direct analogy to the law of presidential selection. See Michael Herz, "How the Electoral College Imitates the World Series," *Cardozo Law Review* 23 (March 2002): 1191.

SAMUEL ISSACHAROFF is the Harold R. Medina Professor in Procedural Jurisprudence at Columbia Law School. He is an author of *The Law of Democracy: Legal Structure of the Political Process* as well as of dozens of articles on the intersection of law and politics.

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As best I can tell, not much popular outrage followed the World Series of 1960. I suspect most baseball fans understood the rules of a seven-game series before the fall classic. And I suspect they understood that running up the score on weak middle relievers was simply irrelevant to the outcome of anything but one particular game. Indeed, more outrage seems to have been directed at Commissioner Bud Selig's decision to suspend play after eleven innings in the 2002 All Star game, an exhibition game of no consequence in the quest for the championship. A comparison of the baseball events of 1960 to 2002 leads to the conclusion that as long as the rules of the game are known *ex ante*, and are not subject to on-the-spot manipulation, baseball fans accept and even appreciate the anomalous possibilities that might ensue.

Not so, it seems, for presidential selection. Three times in the 200-plus years of the American republic, as a result of votes being channeled through the electoral college, the most preferred presidential candidate has not been the victor.[2] Once, in 1876, that candidate even won an outright majority of the popular vote. Although in terms of sheer frequency, such anomalous results appear about as often as Halley's comet, they nonetheless move political scientists, constitutional scholars, and pundits to start searching the skies for electoral asteroids. Or, to return to a baseball metaphor, the interval of such anomalous presidential results is about on the order of successful World Series appearances by the Boston Red Sox. Indeed, in retrospect, we are more likely to rethink the outcome of the 1960 presidential election than that of the World Series of the same year, with data much less reliable on the former than on the latter.

It would, of course, be possible to challenge the stability of electoral results if the presidential election were simply a matter of direct popular selection. The 2000 election, to take the most recent example of an election notoriously decided by the rules of decision making, could not possibly have unfolded in the same fashion under an alternative voting system. Would both parties have foregone serious advertising in Texas or New York under a system of direct selection? Could they possibly have conceded two of the most populous states if, instead of being a safe electoral bloc, they were a mass of potential individual votes? Or would the issues of the election have been the same? How did prescription drug coverage for elder citizens come to dominate the national agenda? Perhaps this is the cutting issue of our time. But perhaps the pre-election analyses that predicted that Florida and Pennsylvania would be the decisive electoral battlegrounds had something to do with defining the terms of debate. Perhaps, just perhaps, the fact that Florida and Pennsylvania are first and second, respectively, in their proportions of senior citizens had something to do with the terms of electoral engagement in 2000.

[2] The electoral college failed to award the presidency to the winner of the popular vote in 1876, when Rutherford B. Hayes defeated Samuel Tilden; in 1888, when Benjamin Harrison defeated Grover Cleveland; and, of course, in 2000. In addition, in 1824, Andrew Jackson won a plurality of the popular vote and the electoral college, but ultimately lost the presidency to John Quincy Adams after the election was decided by the House of Representatives.

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.30 - To Begin the Nation Anew: Congress, Citizenship, and Civil Rights after the Civil War

Robert J. Kaczorowski

ARTICLE	To Begin the Nation Anew: Congress, Citizenship, and Civil Rights after the Civil War
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To Begin the Nation Anew: Congress, Citizenship, and Civil Rights after the Civil War

ROBERT J. KACZOROWSKI

In 1857, the highest court in the United States held that blacks in America possessed no rights, could never become citizens of the United States, and that Congress was powerless to abolish slavery.[1] In the aftermath of these pronouncements, this country fought one of the bloodiest wars in its history. Fewer than ten years after the *Dred Scott* decision, however, Congress and the Northern states accomplished precisely what the Supreme Court declared could not be done, through constitutional amendments and a civil rights statute. The Thirteenth Amendment abolished slavery everywhere in the United States. The Civil Rights Act of 1866 and the Fourteenth Amendment conferred citizenship on and secured the civil rights of all qualified, natural-born, and naturalized Americans, including former slaves and free blacks. The statute declared illegal infringements of certain civil rights made under the prextext of law or custom and authorized the removal of civil and criminal cases from the state to the federal courts whenever Americans were unable to enforce their rights in the state systems of justice. The Fourteenth Amendment also expressly prohibited the states from infringing the rights that Americans enjoyed as citizens of the United States and their rights to due process and equal protection of the law.

The meaning and scope of the Thirteenth and Fourteenth Amendments and the Civil Rights Act of 1866 have been almost as controversial among twentieth-century scholars as they were among the participants in Reconstruction. In 1947, Supreme Court Justice Hugo Black sparked a debate over the scope of a national authority to enforce civil rights when he held that the Fourteenth Amendment conferred on the national government the power to protect the Bill of Rights against state infringements.[2] Charles Fairman quickly wrote a rebuttal, in which he insisted that the congressional framers intended to secure only an equality in state law among the few rights enumerated in Section 1 of the Civil Rights Act, a view he continued to maintain. William Crosskey published a rejoinder to Fairman,

I wish to acknowledge the helpful comments of Eric Foner, Kermit Hall, Paul Murphy, William Nelson, George Rappaport, David Reiser, and the participants of the New York University School of Law Colloquium in Legal History.

[1] *Dred Scott v. Sanford*, 19 How. (60 U.S.) 393, 404 (1857).

[2] *Adamson v. California*, 322 U.S. 46, 68 (1947) (Black, J., dissenting).

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in which Crosskey asserted his view of a nation-centered federalism that delegated to Congress the authority to enforce the Bill of Rights, a view he later elaborated in his three-volume history of the U.S. Constitution.[3] The specific question whether or not the Fourteenth Amendment incorporates the Bill of Rights has been vigorously debated, most recently by Raoul Berger and Michael Curtis.[4]

Other legal scholars and historians have focused on additional aspects of a national civil rights enforcement authority. Jacobus tenBroek and Howard Jay Graham argued that the theory of the Reconstruction amendments derived from the natural rights ideology of the abolitionists, and that the amendments delegated to Congress an expansive authority to enforce fundamental rights.[5] They assumed that it was the Radicals who controlled Congress during Reconstruction and incorporated their expansive view into the Reconstruction amendments. Revisionist historians in the 1960s argued that the moderate Republicans, not the Radicals, controlled Congress and formulated Reconstruction policy.[6]

Although revisionist political historians of the 1960s agreed that even moderate Republicans were committed to securing civil rights after the Civil War, revisionist legal historians in the 1970s argued that the Reconstruction amendments did not significantly alter American federal constitutionalism. Insisting that the moderates were legal conservatives who consciously intended to avoid a revolutionary restructuring of constitutional law and to retain a federalism based on states' rights, the revisionists concluded that the Civil Rights Act and the Fourteenth Amendment preserved in the states primary authority over citizenship and civil rights. The states therefore continued to enjoy the authority to determine the status of Americans, define their rights, and provide for their protection. The framers of the legislation intended that citizens redress violations of civil rights and enforce their rights through state courts and law enforcement agencies. Conscious of the revolutionary implications for American federalism, the framers conferred on the national government merely the authority to prohibit the states from discrimi-

[3] Charles Fairman, "Does the Fourteenth Amendment Incorporate the Bill of Rights? The Original Understanding," *Stanford Law Review*, 2 (1949): 5; Charles Fairman, *Reconstruction and Reunion, 1864–88* (Part One), vol. 6 of *History of the Supreme Court of the United States*, P. Freund, ed. (New York, 1971), see especially chaps. 19 and 21; William Crosskey, "Charles Fairman, 'Legislative History' and the Constitutional Limitations on State Authority," *University of Chicago Law Review*, 22 (1954): 1; see also Charles Fairman, "A Reply to Professor Crosskey," p. 144; William Crosskey, *Politics and the Constitution in the History of the United States*, 3 vols. (1953, 1980), especially chaps. 30–32.

[4] For the recent debate, see Raoul Berger, *Government by Judiciary: The Transformation of the Fourteenth Amendment* (Cambridge, Mass., 1977); Michael Curtis, "The Bill of Rights as a Limitation on State Authority: A Reply to Professor Berger," *Wake Forest Law Review*, 16 (1980): 45; Michael Curtis, "The Fourteenth Amendment and the Bill of Rights," *Connecticut Law Review*, 44 (1982): 237; Michael Curtis, *No State Shall Abridge: The Fourteenth Amendment and the Bill of Rights* (Durham, N.C., 1986); Raoul Berger, "Incorporation of the Bill of Rights in the Fourteenth Amendment: A Nine-Lived Cat," *Ohio State Law Journal*, 42 (1981): 435; and Raoul Berger, "Incorporation of the Bill of Rights: A Reply to Michael Curtis' Response," *Ohio State Law Journal*, 44 (1983): 1.

[5] Jacobus tenBroek, *Equal under Law* (New York, 1965); Howard Jay Graham, "The Early Antislavery Backgrounds of the Fourteenth Amendment," *Wisconsin Law Review* (1950): 479; and Howard Jay Graham, "Our Declaratory Fourteenth Amendment," *Stanford Law Review*, 7 (1954): 3.

[6] See Eric McKitrick, *Andrew Johnson and Reconstruction* (Chicago, 1960); William Brock, *An American Crisis: Congress and Reconstruction, 1864–1867* (New York, 1963); and La Wanda Cox and John Cox, *Politics, Principle, and Prejudice, 1865–1866* (New York, 1963).

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.31 - White Supremacy, Settler Colonialism, and the Two Citizenships of the Fourteenth Amendment

Stephen Kantrowitz

ARTICLE	White Supremacy, Settler Colonialism, and the Two Citizenships of the Fourteenth Amendment
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STEPHEN KANTROWITZ

White Supremacy, Settler Colonialism, and the Two Citizenships of the Fourteenth Amendment

The Civil War era's debates over citizenship are conventionally understood as having revolved around the status of emancipated African Americans. But they were also rooted in decades of US policy with regard to Native Americans. In Indian Country, citizenship's intended purpose was to dissolve Native political sovereignty and to make Indian lands available for sale to white settlers. These two histories of citizenship existed in dynamic tension and were occasionally forced together, as in the Civil Rights Act of 1866 and the Fourteenth Amendment. This essay traces Civil War–era policymakers' parallel debates over African American and Native American citizenship. Exploring those debates in particular through the thinking of conservative Democrat Allen Thurman suggests that while white supremacy came under sustained attack during this era, settler-colonialism—the ideology and practice of replacing Native with settler populations—did not.

From the moment Ohio sent him to the Senate in 1869, Allen Thurman railed against the Fourteenth Amendment in the name of the white man's republic. The amendment elevated "seven or eight hundred thousand semi-barbarians" to the status of citizen, he complained, and would result in "the concentration of all power in the hands of the Federal Government."[1] Nevertheless, in 1873 Thurman rose from his Senate chair to defend a small Native band, a few hundred Ho-Chunk people who refused to live where treaties placed them, from the fate Wisconsin's lawmakers and many of its white citizens planned for them: military removal from state. He reminded midwestern Republicans that their own misbegotten lawmaking forbade such a "compulsory emigration." In foisting millions of unwelcome non-white citizens on white Southerners, Republicans had also extended their constitutional dispensation of citizenship, suffrage, and federal enforcement over their own "semi-barbarians." The Fourteenth Amendment cut both ways.

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Thurman argued that these Native people, who had successfully evaded previous removals and lived far from their assigned tribal lands, were no longer under tribal government. They were instead, in the terms of the first section of the Fourteenth Amendment, "subject to the jurisdiction" of the United States. They should therefore be as secure in their right of residence (and their freedom from military removal) as any other group of citizens. Indeed, Northern Republicans should grant these citizens all the rights promised by their Reconstruction, or face the consequences. "If there are Ku Klux in Wisconsin who will not allow these people to vote," Thurman sneered, "I pray my friend to be after them with the enforcement act, and punish them, and vindicate the right of suffrage, which belongs to all the people without distinction of race, color, or previous condition of servitude."[2] Thurman's colleagues laughed to hear him recite policies he despised, but some were undoubtedly brought up short. In asserting that Fourteenth Amendment citizenship had implications for Native Americans, Thurman was bringing to the surface a history that had been unfolding throughout the Civil War era, alongside but in complicated relation to the heated and ongoing debates over the status of African Americans.

The Civil War era's debates over citizenship sprang from two distinct sources and involved two different sets of actors. One strand of those debates revolved around the African American quest for equality. This was universally understood to be central to the national politics of the era, and it remains central to our scholarship today. That history of citizenship began as an aspirational struggle for equal rights and a shared, nonracial national belonging; it became a national political struggle during the late-antebellum era as black and white activists built coalitions and recruited voters; and it took formal shape in the Fourteenth Amendment, which overturned the principle that the United States was a white republic.[3] The other strand of the history of citizenship was composed of quite different material. At its core lay the federal government's efforts to make citizens of Native Americans in order to acquire their land. This history has rarely featured in the historiography of the Civil War era, yet it absorbed the attention of antebellum officials and politicians and surfaced repeatedly during Reconstruction-era debates. These two histories existed in dynamic tension, in the same nation and under the same government, and were occasionally forced together, as in the Civil Rights Act of 1866 and the Fourteenth Amendment.

It is thanks to the nineteenth-century history of emancipation and equal rights, and its rhyming sequel in the civil rights era, that many Americans hear the word *citizenship* as an affirmative statement of equality, as a goal

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.32 - Black Republicans in the Virginia Tobacco Fields, 1867-70

Jeff R. Kerr-Ritchie

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BLACK REPUBLICANS IN THE VIRGINIA TOBACCO FIELDS, 1867-70

By
Jeff R. Kerr-Ritchie*

105,832 freedmen registered to vote for 1867 Virginia election. 93,145 freedmen (88%) voted in the 1867 Virginia election.

Historian Richard Lowe

Of all [the] ridiculous and mischievous legislating, that of giving an ignorant, uninformed class of people the right to vote and the chance of being set over the whites of the land, takes the lead.

Former Mistress Sarah P. Miller

I'd rather pay a high tax upon land and work it myself than to work for other people for nothing.

Representative Frank Moss

During the first two agricultural seasons after Appomattox, the struggle over emancipation between former masters and former slaves was largely confined to the socio-economic terrain. Former masters and new employers attempted to impose traditional forms of labor management and Negro control. The freedmen resisted these older forms in their search for autonomy and its safeguards through access to land, control over work time, judicious compensation, and the reconstruction of family life away from coerced agricultural production. Meanwhile, the federal government, represented by the Bureau of Refugees, Freedmen and Abandoned Lands (Freedmen's Bureau), attempted to implement a new system of republican free labor relations with property in men replaced by property in labor based upon legal contractual obligations between employers and employees. Both the 1865 and 1866 agricultural seasons had reaped a harvest of struggle over the dispensation of the fruits of free labor exacerbated by bumper crops of tobacco and cereal grains. The seeds of class struggle over emancipation between past masters and dispossessed freedmen were scattered far and wide. In the spring of 1867, these seeds, watered by the Freedmen's Bureau, were to prematurely burst forth into political bud.[1]

Between the founding of Jamestown and victory at Yorktown, Virginia was an important English colony. The three generations following independence saw the flowering of a political culture inbued with a Jeffersonian republicanism of sturdy independent yeomen, slaveholding legislators and Presidents, all of whom played an influential role in regional and national politics. The Civil War was to change all this. During the conflict itself, the Old Dominion was torn between secessionist western counties which gained independent statehood as West Virginia in 1863, a unionist northern section around the government of Francis N. Pierpont in Alexandria, and the proto-national tendencies of the Confederate States of America headquartered in Rich-

* Jeff R. Kerr-Ritchie is an Assistant Professor of History and African American Studies at Wesleyan Univerisity.

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mond. With the Confederacy's defeat at Appomattox, the state's independence was further undermined by the presence of an occupying federal power. Although Virginia never actually experienced radical reconstruction, its politics were far from independent for the remainder of the decade. Its executive leadership, whether antithetical to reconstruction like Governors Francis H. Pierpont (1865-68) and Gilbert C. Walker (1869), or sympathetic such as Governor Henry H. Wells (1868-69), remained accountable to federal authorities. President Johnson, for instance, recognized the Whig unionist government of Pierpont, while Virginia's military commander Major General John M. Schofield temporarily replaced Pierpont with the Michigan lawyer and unionist soldier Wells.[2]

The postbellum state legislature was similarly influenced by the federal authorities. Although conservative control remained intact throughout the period, the General Assembly was repeatedly forced to deal with federal power especially the military. In January, 1866, the General Assembly's passage of a Vagrancy Act designed to control freedmen's mobility was almost immediately terminated by the state military commander for being too draconian. The legislature's new contract laws between employers and former slaves for topdown control of labor relations was subsequently revised and appropriated by the Freedmen's Bureau for implementing a more equitable free labor system. During 1867-68, the new state legislature, popularly known as the Underwood Convention, was convened under the order of General Schofield, while many former officials and supporters of the Confederacy were temporarily disfranchised.[3]

The state judiciary was the least influenced by federal powers as Virginia's judicial code continued to operate throughout the reconstruction period. The federal authorities, however, did influence local law. Colonel Orlando Brown, the state commissioner for the Freedmen's Bureau headquartered in Richmond, established freedmen's courts for each county consisting of the assistant superintendent of the Freedmen's Bureau, one elected white representative, and an elected freedman. This local legal apparatus continued until May, 1866, when it was terminated having been superseded by the Civil Rights Act of March, 1866, which legalized freedmen's testimony in court.[4] With the advent of military districting the following year, the nature of this legal hierarchy was left in no doubt. As General Schofield reminded his military commissioners in an August 8, 1867, directive, they were to be "governed in the discharge of their duties by the laws of Virginia, so far as the same are not in conflict with the laws of the United States, or orders issued from these headquarters, and they are not to supersede the civil authorities, except in cases of necessity."[5] It was to be on the local level that adjudication of the law operated under the watchful eye of federal representatives.

It was in response to the incongruities between the military defeat of the Confederacy and political rehabilitation under Presidential Reconstruction that Congress assumed control of Reconstruction, passing two major Reconstruction Acts in March, 1867. This legislation provided for the following: military districting of the eleven former Confederate States; disfranchisement of the Confederacy's major officials; ratification of the Fourteenth Amendment guaranteeing federal protection of civil liberties to all citizens through the rule of law; and the drafting of new state constitutions through convening representative state conventions. The political objectives behind this legislation ranged from broadening democracy by radical Republicans to the establishment of

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.33 - Counting the Votes: South Carolina's Stolen Election of 1876

Ronald F. King

ARTICLE	Counting the Votes: South Carolina's Stolen Election of 1876
JOURNAL	The Journal of Interdisciplinary History 32, no. 2 (2001)
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Journal of Interdisciplinary History, XXXII:2 (Autumn, 2001), 169–191.

Ronald F. King

Counting the Votes: South Carolina's Stolen Election of 1876

Electoral democracy is not always a smoothly functioning system for the aggregation of citizen preferences. American democracy, moreover, has not always been remarkable for fair procedures and the objective administration of franchise rules.

The presidential election of 2000 has revived interest in the controversies of South Carolina's gubernatorial election of 1876. In both elections, the winner of the popular vote lost the electoral college vote; the electoral college vote depended upon contested returns in a southern state; charges of ballot mismanagement and possible fraud were rampant; the decision ultimately depended upon the discretionary powers of the officials responsible for counting the votes allegedly cast; and those officials were often criticized for acting with partisan bias.

The goal of this article is to use modern social science methods to examine the election in South Carolina, and, ultimately, to decide which individual legitimately should have been declared the winner—Wade Hampton (Democrat) or Daniel Chamberlain (Republican)—and which party should have been allowed to organize the state government. On one side is the claim that the Republican party sought to maintain control by means of a blatant manipulation of the election count. On the other side is the claim that the Democratic party sought to impose control by means of extraordinary fraud and intimidation of voters on election day. The final result of the election, in Hampton's favor, shifted power to the white Redeemers and led in the direction toward segregation.

Ronald F. King is Professor of Political Science, Tulane University. He is the author of *Budgeting Entitlements* (Washington, D.C., 2000); *Money, Time, and Politics* (New Haven, 1993).

The author would like to thank Dale Baum, Susan Ellis, Donald Greco, J. Morgan Kousser, Peyton McCrary, James Morone, Lawrence Powell, Douglas Rose, Paul Sum, Eric Uslaner, and Richard Valelly for their advice and encouragement. The American Philosophical Society and the Murphy Institute of Political Economy provided generous support.

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The debate over Reconstruction remains salient, more than a century later, because, at its core, it concerns the inequalities pervasive to race relations in America and the apparently limited achievement of public policy to rectify them. It affixes blame for failures at that critical juncture when slavery ended, and it offers the possibility of alternative paths not taken. The long-prevalent view, generally favorable to white southerners, remains surprisingly popular, despite recognition of the ideological agenda of its initial proponents. Revisionist accounts increasingly have emphasized the role of militant white intransigence and a weakness of will from Washington. Nevertheless, there has been little systematic testing of the key hypotheses.

By 1876, politics in South Carolina had become polarized by race and by partisanship. The revitalized Democratic party, rejecting fusion with moderate Reconstructionists, united behind Hampton and launched a crusade to return the state to its "natural ruling element." The dominant Republican party, in response, put aside internal divisions concerning reform to endorse the reelection of Chamberlain, the incumbent governor. The campaign of 1876 was vehement, vicious, and often violent. The Democrats, needing to overcome a considerable black voting majority in the state, organized with military-style efficiency in order to produce partisan solidarity among whites and defections among blacks. Rifle clubs, for example, with members identified by their red shirts, escorted Hampton throughout his speaking tour and disrupted Republican political rallies. The Republicans, desperate to maintain supremacy, called upon federal troops for protection and distributed guns to the loyal militia. Political tensions and racial animosities sometimes exploded in riots and massacres, despite repeated calls for peace; the pro-Democratic forces earned a disproportionate share of the responsibility.[1]

The outcome of the gubernatorial contest was close, and each side immediately accused the other of fraud. The state Board of Canvassers, comprised of five Republican officials, tabulated the result and found that Hampton received 92,261 votes compared to 91,127 for Chamberlain. Yet the Board, acting on questionable authority, also declared that the elections in Edgefield and Laurens

1 Francis Butler Simkins and Robert Hilliard Woody, *South Carolina During Reconstruction* (Chapel Hill, 1932); Joel Williamson, *After Slavery: The Negro in South Carolina During Reconstruction, 1861–1877* (Chapel Hill, 1965); Richard Zuczek, *State of Rebellion: Reconstruction in South Carolina* (Columbia, 1996).

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.34 - Was the Emancipated Slave a Proletarian?

Alex Lichtenstein

ARTICLE	Was the Emancipated Slave a Proletarian?
JOURNAL	Reviews in American History 26, no. 1 (1998)
EXCERPT	Original journal pages 124-125
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WAS THE EMANCIPATED SLAVE A PROLETARIAN?

Alex Lichtenstein

Over three decades ago, James McPherson wrote in *The Negro's Civil War* (1965) that "The Negro was *not* merely a passive recipient of the benefits conferred upon him by the war. Negro orators and writers provided leadership in the struggle for emancipation and equal rights. Blacks were active in the movements to bring education, suffrage, and land to southern freedmen. And perhaps most important of all, the contribution of Negro soldiers helped the North win the war." Conspicuously absent from this list of African-American contributors to freedom, however, were the slaves themselves.[1] Following the lead of historians of slavery, who during the 1960s and 1970s returned those in bondage to center stage in accounts of the peculiar institution, American historians over the past two decades have begun to take a fresh look at the role of slaves in the Civil War and the process of emancipation. This reevaluation of the transition from slavery to freedom has been closely allied with the ongoing effort to rewrite the social history of Reconstruction.

Two scholarly projects in particular have set the tone for the new work in emancipation studies. The benchmark for nearly all recent practitioners in the field remains Eric Foner's magisterial study of the social and political transformations wrought by black freedom, *Reconstruction: America's Unfinished Revolution, 1863–1877* (1988). Based on nine years of research, this work laid to rest once and for all the unquiet ghost of the Dunning school and a once deeply influential Reconstruction historiography that portrayed emancipated African Americans as manipulated dupes of vindictive Northerners, utterly unprepared for the tasks and responsibilities of freedom. Indeed, this work placed black agency—especially that of the former slaves—at the very center of the momentous social upheaval that accompanied African-American freedom at its birth.[2] Foner's Walter Fleming lectures, published as *Nothing But Freedom: Emancipation and Its Legacy* (1983), brought a comparative perspective to bear on the study of emancipation as a social process for the first time. Radical Reconstruction in the American South stood out from all other emancipations in an era that saw many, for only there did former slaves "enjoy universal manhood suffrage and a real measure of political power."[3]

Reviews in American History 26 (1998) 124–145 © 1998 by The Johns Hopkins University Press

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At the same time, however, Foner's work has demonstrated how "Reconstruction emerges as a decisive moment in fixing the dominant understanding of freedom as self-ownership and the right to compete in the labor market, rather than propertied independence." Few historians have done more than Foner to use the drama of slave emancipation to illuminate the narrowing conception of freedom in a society increasingly devoted to the market as its arbiter, or to portray the freedpeople themselves as full and worthy human participants in this drama. "In being forced to deal with freedom as a matter of concrete policy," Foner proclaimed in his 1994 Presidential address to the Organization of American Historians, "Americans were compelled to recognize how thoroughly their own society had changed" during the course of the nineteenth century's market revolution.[4]

Complementing Foner's *oeuvre* is the collective endeavor of the Freedmen and Southern Society Project (FSSP), begun in 1976 and published so far in four volumes as *Freedom: A Documentary History of Emancipation* (1982–1993).[5] Housed at the University of Maryland and overseen by historians Ira Berlin and Leslie Rowland, this genuinely collaborative project has drawn on the talents of a diverse array of scholars who have helped shape the field with a small library of their own articles and monographs.[6] Together they have produced a multi-volume work that lends enormous documentary weight to the emerging interpretation of emancipation as a process generated by the actions of slaves as much as by Abraham Lincoln, the Union Army, or black and white abolitionists.

Both Foner and the FSSP, in turn, trace their legacy back to W.E.B. Du Bois's *Black Reconstruction in America, 1860–1880* (1935). In that work, ignored by the historical profession at least until the 1960s, Du Bois began his chapter on the Civil War, entitled "The General Strike," with this provocation: "When Edmund Ruffin . . . fired the first gun at Fort Sumter he freed the slaves."[7] Remarkably, *Black Reconstruction* rested almost entirely on published sources, many of them less than sympathetic to Du Bois's radical interpretation. The work of the FSSP has now assured for posterity that anyone with access to a library will find at hand ample documentation of Du Bois's prophetic account of slaves as contributors to their own liberation and the Civil War as the opening salvo in a noble but stunted struggle for interracial democracy. By fleeing to union lines the slaves "acted resolutely to place their freedom . . . on the wartime agenda," the editors of *Freedom* write. By their wartime actions, both petty and grand, slaves "rendered untenable every union policy short of emancipation" and weakened the hold of slavery in the Confederacy as well.[8] Based on documents culled from twenty-five collections in the holdings of the National Archives, one of this project's many striking achievements is to create a documentary social record of emancipation from the bottom up, with

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.35 - The Freedmen's Bureau and the Politics of Institutional Structure

Robert C. Lieberman

ARTICLE	The Freedmen's Bureau and the Politics of Institutional Structure
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Robert C. Lieberman

The Freedmen's Bureau and the Politics of Institutional Structure

On New Year's Day in 1863, President Abraham Lincoln issued the Emancipation Proclamation, freeing the slaves in much of the South. Lincoln's act transformed the Civil War from a sectional rebellion to a war of liberation. Although the proclamation's immediate legal effect was minimal, since it touched only those areas still resisting Union authority, its political effect was far reaching and dramatic. With a single stroke of his pen, Lincoln ensured that the Union victory would create a new class of citizens, the

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freedmen, numbering well over 3 million. Almost all of these new citizens were landless and destitute. Despite their new legal status, they were faced at the war's end with a social structure that regarded them as inferior, treating them with contempt at best and with violent fury at worst. In emancipating the slaves and overturning the economic and social basis of southern society, the federal government shouldered the responsibility of finishing what it had begun, making the freedmen citizens.

To fulfill this responsibility, the government created the Bureau of Refugees, Freedmen, and Abandoned Lands, better known as the Freedmen's Bureau. The bureau constituted an experiment in social policy as well as in institutional development. It was, in essence, the first federal antipoverty program, the first attempt to impose broad federal authority over individual citizens through bureaucratic means. The bureau was intended to perform a comprehensive array of tasks aimed at providing sustenance in the short run and promoting economic independence in the long run. It was to pursue these goals not by relying on local governments or private institutions but by creating a federal bureaucracy with new powers to provide benefits to a disadvantaged minority.

The Freedmen's Bureau ultimately failed to achieve the long-term aims of its proponents and of the freedmen themselves; it was unable to protect the freedmen's political and economic independence. After 1877, while southern blacks retained their legal freedom, they were gradually disenfranchised and remained tied to the land in a repressive system of tenancy and crop liens that differed little from slavery except in name. Yet the federal government, from a position of apparently unassailable strength, had taken unprecedented measures to alter the South's political landscape. This grand historical view of failure, however, does not consider what the bureau actually accomplished. When judged by standards of bureaucratic effectiveness, the bureau's failure does not appear so complete. Bureaucratic success is defined here as the effective performance of the specific tasks that an organization is mandated to perform, such as delivering relief to prevent starvation, providing education, or protecting civil rights. These tasks may be in the service of a larger goal that motivates both politicians and administrators, but it is the tasks and not the goal that define what an organization does from day to day. Success and failure in the performance of specific tasks are relative; no organization will do everything right all the time.

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.36 - Local Black Leaders during Reconstruction in Virginia

Richard Lowe

ARTICLE	Local Black Leaders during Reconstruction in Virginia
JOURNAL	The Virginia Magazine of History and Biography 103, no. 2 (1995)
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LOCAL BLACK LEADERS DURING RECONSTRUCTION IN VIRGINIA

by RICHARD LOWE*

THE men who provided leadership for the southern black community after the Civil War assumed an enormous burden. In order to secure full participation in the political process for themselves and their followers, they were required to perform herculean labors. They had to join white Unionists and Republicans (whose interests were not always congruent with their own) in creating the machinery for a new political party, a formidable job in itself. They also had to define black Americans' place in the nation's political life, mold opinion among inexperienced black voters (most of whom were illiterate), hold offices never before held by black men, overcome white hostility, and accomplish all these objectives under the scrutiny of the national white majority, some of whom anticipated their humiliating failure and some of whom expected their instant success.

Partly because of the difficulties they faced and partly because they were the leaders of a completely new class of American citizens, black leaders of the Reconstruction era have interested historians for more than a century. Most early treatments dismissed these men as the "dregs of the population," uneducated, propertyless, and generally worthless to society. This negative estimation of black Reconstructionists was first countered by black scholars beginning in the 1910s and 1920s. The Rehabilitation School sought to provide a more balanced, and positive, picture of black leaders by pointing out that many of these men were educated and intelligent property holders who "gave a good account of themselves" in Reconstruction politics. In the 1930s and 1940s a few white scholars joined the movement, and three decades later the "revisionist" school of Reconstruction historiography, appearing during the height of the civil rights movement, swept all before it and included many

* Richard Lowe is Regents Professor of History at the University of North Texas. Research for this article was supported by an Andrew W. Mellon Fellowship awarded by the Virginia Historical Society, by a travel grant from the National Endowment for the Humanities, and by the Faculty Research Office at the University of North Texas. The author wishes to thank John T. Kneebone and Brent Tarter of the Library of Virginia for their comments and suggestions and the outside readers at the *Virginia Magazine* for their helpful criticisms.

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studies that contributed to the rehabilitation of black leadership during Reconstruction.[1]

More recent scholars have hailed the destruction of the negative stereotypes of black Reconstruction leaders, but they have also called for historians to move on to new approaches, especially collective biographies, in order to develop a deeper understanding of political leadership in the emergent black community of Reconstruction. Since the 1970s increasing numbers of collective biographies have appeared in print. Most of these, however, have examined black leaders on the state and national levels rather than on the local level.[2] The very few collective studies of local black leaders have virtually all concentrated on cities—New Orleans, Memphis, Petersburg, Richmond, Lynchburg, and a few others.[3]

This pattern of collective biographies is not surprising because the sources necessary to study state and national leaders and urban black leadership are much richer and more numerous than those for county and local leaders outside cities. Newspapers followed the activities of state and national officials very closely, and the records of federal, state, and city governments provide valuable information not usually available for black leaders outside urban areas. In fact, scholars are not even certain which black men provided leadership at the local level in most southern states.[4]

[1] Howard N. Rabinowitz, "Introduction: The Changing Image of Black Reconstructionists," in Howard N. Rabinowitz, ed., *Southern Black Leaders of the Reconstruction Era*, Blacks in the New World Series (Urbana, Chicago, and London, 1982), pp. xi–xxviii; Alrutheus Ambush Taylor, *The Negro in the Reconstruction of Virginia* (Washington, D.C., 1926), p. 285 (quotations).

[2] A recent study by Eric Foner, *Freedom's Lawmakers: A Directory of Black Officeholders during Reconstruction* (New York and Oxford, 1993), is an encyclopedic survey of 1,465 black officials at all levels of officeholding, from local to national. A twenty-two-page introduction outlines some of the main characteristics of southern black officeholders in general.

[3] August Meier, "Afterword: New Perspectives on the Nature of Black Political Leadership during Reconstruction," in Rabinowitz, ed., *Southern Black Leaders of the Reconstruction Era*, p. 402. Of the sixteen essays in this book, four are collective biographies, but two of these are state-level studies and the other two deal with urban centers, New Orleans and Richmond. Other works that examine black leadership in southern cities during Reconstruction include David C. Rankin, "The Origins of Black Leadership in New Orleans during Reconstruction," *Journal of Southern History* 40 (1974): 417–40; Walter J. Fraser, Jr., "Black Reconstructionists in Tennessee," *Tennessee Historical Quarterly* 34 (1975): 362–82 (on Memphis and west Tennessee); Steve Elliott Tripp, "Restive Days: Race and Class Relations in Lynchburg, Virginia, 1858–1872" (Ph.D. diss., Carnegie Mellon University, 1990).

[4] Only two other collective biographies of local, non-urban black leaders have been published, and both deal with very small numbers. Martin Abbott, "County Officers in South Carolina in 1868," *South Carolina Historical Magazine* 60 (1959): 30–40, studied eighteen county leaders; Edward Magdol, "Local Black Leaders in the South, 1867–75: An Essay toward the Reconstruction of Reconstruction History," *Societas* 4 (Spring 1974): 81–110, examined forty-six men in five southern states. Magdol briefly sketched the outlines of the Freedmen's Bureau documents examined in this article, but because his focus was on the forty-six local leaders identified in the congressional hearings of 1871 on the Ku Klux Klan, he did not devote his full

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.37 - The Freedmen's Bureau and Local Black Leadership

Richard Lowe

ARTICLE	The Freedmen's Bureau and Local Black Leadership
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The Freedmen's Bureau and Local Black Leadership

Richard Lowe

The Bureau of Refugees, Freedmen, and Abandoned Lands, a branch of the United States War Department commonly known as the Freedmen's Bureau, was designed to help former slaves make the transition from slavery to freedom after the Civil War. It was the federal agency most directly involved with the black folk of the old Confederacy; as such it has received close scrutiny from scholars, and it has been the object of considerable pulling and tugging by various historical schools of thought in the last several decades. Since the mid-1950s, the agency has been interpreted by many revisionist scholars as a kind-hearted and generally successful attempt to provide needed assistance to black Americans and to introduce them to the American political process; in the 1970s, postrevisionist writers began to reassess the bureau as reactionary, paternalistic, and too concerned with establishing and maintaining close ties to the white southern establishment to make a substantial difference in the lives of the freedmen.[1]

Many facets of the bureau's operations have been studied in the last four decades. Its dealings with the emerging class of black political leaders in the countryside and towns of the South, however, have not been examined as fully as some other aspects of its history, primarily because relatively little scholarly research has been devoted to group studies of African-American leaders on the local and county levels.[2] Among the mountains of Freedmen's Bureau records, one set of documents does provide a glimpse of the bureau's relationship with local- and county-level black leadership

Richard Lowe is professor of history at the University of North Texas.

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[1] The first general, sympathetic account of the bureau was George R. Bentley, *A History of the Freedmen's Bureau* (Philadelphia, 1955). For postrevisionist critiques of that agency, see Louis S. Gerteis, *From Contraband to Freedman: Federal Policy toward Southern Blacks, 1861–1865* (Westport, 1973); Leon F. Litwack, *Been in the Storm So Long: The Aftermath of Slavery* (New York, 1979); and William S. McFeely, *Yankee Stepfather: General O. O. Howard and the Freedmen* (New Haven, 1968).

[2] The best treatment of the general subject is Howard N. Rabinowitz, ed., *Southern Black Leaders of the Reconstruction Era* (Urbana, 1982). Only two of the sixteen essays in the book (those by David C. Rankin and Michael B. Chesson) provide collective portraits of local leaders, and both deal with large cities (New Orleans and Richmond) rather than with the towns and counties of the hinterlands. Moreover, the scores of books and articles cited in the notes to the various essays in the book deal primarily with black leadership on the national and state levels.

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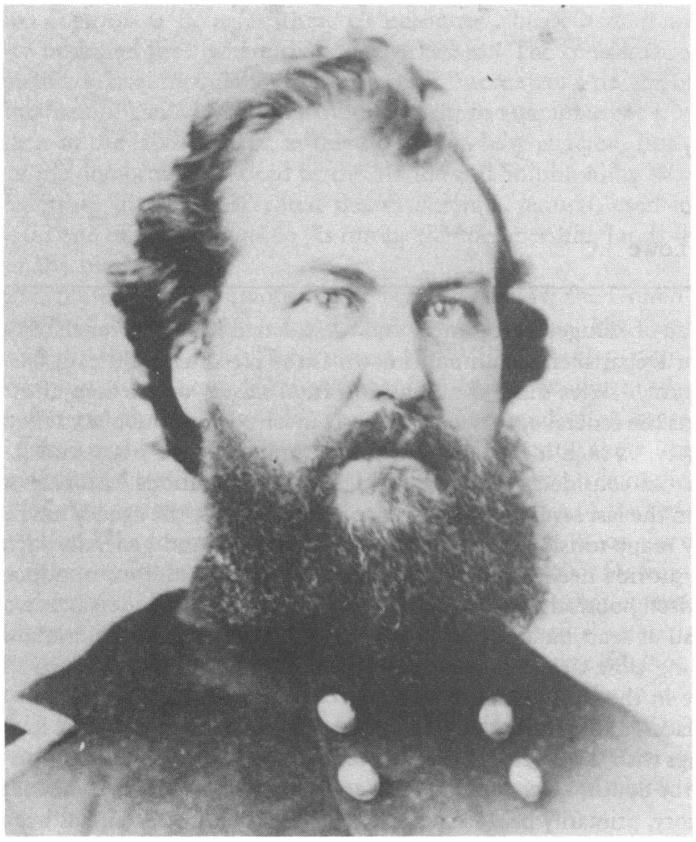

Orlando Brown, assistant commissioner of the Virginia Freedmen's Bureau, ordered bureau officers to prepare lists of local black leaders capable of holding office during Reconstruction.
Courtesy U.S. Army Military History Institute.

and shed further light on the Bureau's attitude toward the rise of an entirely new political class.[3]

Early in the spring of 1867 the bureau's assistant commissioner for the former Confederate state of Virginia, Brevet Brig. Gen. Orlando Brown, ordered bureau officers in the forty-one subdistricts of the state to provide headquarters with "the names of six of the most intelligent of the freedmen belonging to each county, in

[3] Reports on Prominent Whites and Freedmen, March–May 1867, Miscellaneous Records, Records of the Assistant Commissioner for the State of Virginia, Bureau of Refugees, Freedmen, and Abandoned Lands, 1865–1869, RG 105 (National Archives, Washington, D.C.).

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.38 - Freedom, Economic Autonomy, and Ecological Change in the Cotton South, 1865–1880

Erin Stewart Mauldin

ARTICLE	Freedom, Economic Autonomy, and Ecological Change in the Cotton South, 1865–1880
JOURNAL	Journal of the Civil War Era 7, no. 3 (2017)
EXCERPT	Original journal pages 401-402
JSTOR	https://www.jstor.org/stable/26381451

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ERIN STEWART MAULDIN

Freedom, Economic Autonomy, and Ecological Change in the Cotton South, 1865–1880

Within the vast scholarship on post–Civil War southern agriculture, there is a common narrative. The region emerged from the conflict defeated, physically scarred, and economically handicapped. Its 4 million slaves were free but faced significant obstacles to acquiring capital, land, or agricultural resources. A series of constraints—such as a lack of capital, the war's alterations to credit and debt structures, reduced access to livestock and farm machinery, changing labor arrangements in the wake of emancipation, and a series of droughts—complicated farmers' efforts to resurrect crop production. Still, cotton prices were high, and many planters hoped for a quick return to prosperity. Between 1865 and 1875, the economic allure of King Cotton enticed landowners, yeoman farmers, and recently freed slaves in all areas of the South to eschew a "safety first" approach in favor of heavy investments in staple production.[1] Within fifteen years of the Confederate surrender, the region's cotton output surpassed prewar benchmarks. Yet, rates of bankruptcy and levels of indebtedness soared, and postwar forms of agricultural tenure, such as sharecropping and tenancy, proved exploitative of landless whites and blacks alike. As Reconstruction ended and the "New South" dawned, the ever-expanding Cotton Kingdom and the coercive crop arrangements it engendered formed the basis of a stagnating regional agricultural system that existed well into the twentieth century.

While historians generally agree on these broad contours of postwar southern agricultural history, considerable controversy exists over the reasons for its trajectory. Summarizing a decades-long debate, economic historian Gavin Wright famously asked, "Where did this New South come from, and what became of the Old?"[2] In seeking to explain the origins and outcomes of postbellum agriculture, scholars have looked to a variety of factors: the war's physical destruction, changing market structures, tumultuous labor relations following emancipation, and the persistence (or escalation) of class and racial conflict. Roger Ransom, Richard Sutch, Joseph

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Reid Jr., Gavin Wright, and other economic historians show how predatory lending practices, reduced labor inputs, falling cotton prices, and the inaccessibility of credit help to explain both the attractiveness of cotton farming in the postbellum period and the poverty associated with it.[3] Social and cultural scholars such as Jonathan Weiner and Michael Wayne emphasize the persistence of the antebellum planter elite and their continued monopoly of land and resources as shapers of the postwar period, while Mark Wetherington and Steven Hahn show that cotton capitalism's liquidation of the yeoman class was a hallmark of the transformation from Old to New South.[4] More recently, scholars have followed the example of Eric Foner and turned to the experiences of ex-slaves. This rich and dynamic literature illuminates freedpeople's role in shaping postwar events: their efforts to navigate legal and political changes, their transformation of plantation operations, and the collective black struggle for land ownership and autonomy under the constant threat of violence.[5]

All of these works treat the relationship of land and labor during Reconstruction in either social or economic terms. But what happens if we start the analysis of southern agriculture with the land itself? After all, the widely recognized themes of the postbellum South—expanded cotton production, the rise of sharecropping, and evolving labor relations—took place within an environmental context that shaped individual actions as well as broader structural forces. Environmental historians have largely ignored the natural dynamics of land use during Reconstruction, despite considerable scholarly interest in both the Civil War and the 1890s and beyond.[6] However, applying an environmental lens to the crucial decades between 1860 and 1880 reveals that war and emancipation changed how farmers thought about, manipulated, and organized their land in ways that fundamentally altered the southern economic landscape. Gradual revolutions in land use practices initiated a series of ecological shifts such as increased erosion, soil nutrient loss, and animal diseases that went hand in hand with the economic dislocation of sharecroppers and tenants, poor whites and poor blacks. While shortages of capital, racial prejudice, legislative changes, and other elements are essential to historians' understanding of Reconstruction-era developments and, ultimately, the outlines of the "New South," restoring the "land" to the study of land and labor recovers an important piece of a large and complicated narrative.

To illustrate this rather broad idea, this article reinterprets a small but significant moment in the interaction of land, labor, and economy: the introduction of labor contracts on post-emancipation cotton plantations. Agricultural contracts frequently appear as sources in the scholarship on the process of emancipation. Historians agree that contract arrangements

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.39 - Coercion or Conciliation? Abolitionists Debate President Hayes's Southern Policy

James M. McPherson

ARTICLE	Coercion or Conciliation? Abolitionists Debate President Hayes's Southern Policy
JOURNAL	The New England Quarterly 39, no. 4 (1966)
EXCERPT	Original journal pages 474-475
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COERCION OR CONCILIATION? ABOLITIONISTS DEBATE PRESIDENT HAYES'S SOUTHERN POLICY

JAMES M. MCPHERSON

"WENDELL Phillips and William Lloyd Garrison are not exactly extinct forces in American politics," declared the New York *Times* on June 1, 1876, "but they represent ideas in regard to the South which the great majority of the Republican Party have outgrown." The *Times* thus epitomized both the attitude of the northern public toward Reconstruction and the resulting dilemma of those old-line abolitionists still alive in 1876. Following the destruction of slavery during the Civil War, most abolitionists had actively supported a program of education, economic assistance, and equal civil and political rights for the freedmen.[1] The constitutional amendments and Reconstruction legislation pushed through Congress by the Republican party had accomplished, on paper at least, a large part of this program. But by 1876 public opinion in the North had become tired of Reconstruction, with its seemingly constant refrain of violence, disorder, and corruption in the South. When President Rutherford B. Hayes withdrew the last federal troops from South Carolina and Louisiana in April 1877, thus ending national efforts to enforce Reconstruction, a majority of the old abolitionists denounced his action as an abandonment of the Negro. But most of the northern people (including even a sizable minority of former abolitionists) approved of the President's efforts to "pacify" the South. The abolitionists who protested that the withdrawal of federal power from the South foreshadowed the reduction of the Negro to second-class citizenship were proved right by the subsequent course of history, but in 1877 they were voices crying in the wilderness. The country wanted no more Reconstruction.[2]

[1] James M. McPherson, *The Struggle for Equality: Abolitionists and the Negro in the Civil War and Reconstruction* (Princeton, 1964).

[2] The best studies of the background and development of Hayes's southern policy are C. Vann Woodward, *Reunion and Reaction: The Compromise of*

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Northern disillusionment with Reconstruction had begun in the late 1860's. By 1870, according to the New York *Tribune,* it was time to "have done with Reconstruction. The country is tired and sick of it." In 1872 the editor, Horace Greeley, was the presidential candidate of a Liberal Republican-Democratic coalition that called for an end to federal "interference" in the South.[3] Greeley lost the election, but in the next four years a great many people became convinced that the Republican Reconstruction program, especially Negro participation in southern politics, was a failure. The *Nation,* an early supporter of Negro suffrage, declared in 1873 that the mass of Negro voters were "extremely ignorant, and who as regards the right performance of a voter's duty are as ignorant as a horse or a sheep." A year later E. L. Godkin, editor of the *Nation,* asserted that the Republican governments of South Carolina and Louisiana were "a gang of robbers making war on civilization and morality."[4] Northern journalists such as James Shepherd Pike (*The Prostrate State*) and Edward King (*The Great South*) painted vivid portraits of a South that had been ruled and nearly ruined by greedy carpetbaggers and incompetent Negroes. In 1877 the New York *Tribune* concluded that "our Southern policy is neither humane, wise, nor patriotic. . . . [It] costs the negroes everything, robs the country of prosperity, and brings no good to anybody."[5] Most Republican leaders agreed, and this disillusionment provided the basis for Hayes's abandonment of the experiment.

Many radicals were alarmed by the growing northern disenchantment with Reconstruction. Vice President Henry Wil-

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1877 and the End of Reconstruction (New York, 1956); Vincent P. De Santis, *Republicans Face the Southern Question: The New Departure Years, 1877-1897* (Baltimore, 1959), 9-103; and Stanley P. Hirshson, *Farewell to the Bloody Shirt: Northern Republicans and the Southern Negro, 1877-93* (Bloomington, Indiana, 1962), 21-62.

[3] New York *Tribune,* April 18, 1870; Earle Dudley Ross, *The Liberal Republican Movement* (New York, 1919).

[4] *Nation,* XVI, 50 (Jan. 23, 1873); XVIII, 326 (May 21, 1874).

[5] New York *Tribune,* April 5, 1877.

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.40 - The Education of the Alabama Freedmen During Presidential Reconstruction, 1865-1867

John B. Myers

ARTICLE	The Education of the Alabama Freedmen During Presidential Reconstruction, 1865-1867
JOURNAL	The Journal of Negro Education 40, no. 2 (1971)
EXCERPT	Original journal pages 163-164
JSTOR	https://www.jstor.org/stable/2966728

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The Education of the Alabama Freedmen During Presidential Reconstruction, 1865-1867

JOHN B. MYERS

Department of History, Columbus College

The laws in ante-bellum Alabama prohibited the education of slaves and free Negroes. Following emancipation the Negro freedmen were generally illiterate and without education. Obviously they required at least the rudiments of education if they hoped to meet the demands of freedom and white society.[1]

Fortunately education was one of the freedmen's greatest desires. Black Alabamians intensely yearned to learn to read and write. Many sought education as a safeguard against a return to slavery. From experience they recognized that educated men were rarely slaves. Some former slaves looked upon education as an almost mystical experience. Negroes instinctively realized that the great difference between themselves and the white man was not color but knowledge. By acquiring education freedmen hoped to emulate their former masters.[2] Others sought education to aid them in the practical business of life.

The zeal for education pervaded all ranks and ages of freedmen. Many of the older blacks wanted to learn to read the Bible before they died. In 1865 Richard Dennett, a northern correspondent, saw an old white-haired man among the children in a freedmen's school in Mobile, Alabama. When asked why he was there, the old man responded, "I will not trouble the teacher much, but I must learn to read the Bible and the Testament."[3] Tottering old men and women sat side by side with their children and grandchildren endeavoring to learn their letters. Adult freedmen used every spare moment to learn. It was not uncommon to see them studying the alphabet during rest periods and after work. In 1865 a northerner traveling in Alabama wrote, "There is something very touching about seeing the extreme eagerness of the old freedmen to learn when it can be of little use to them now."[4]

Black parents who had been deprived

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1 Horace Mann Bond, *The Education of the Negro in the American Social Order*, rev. ed., (New York: Octagon Books, 1966), p. 21.

2 Jay S. Stowell, *Methodist Adventures in Negro Education* (New York: The Methodist Book Concern, 1922), p. 17; Sir George Campbell, *White and Black* (New York: Washington Co., 1879), p. 30; U.S. Congress, *Senate Executive Documents*, 39th Congress, 1st Session, No. 27, p. 119; William R. Hooper, "Shall He Be Educated?" *Lippincott's Magazine*, IV (December, 1869), 672; J. Silsby to George Whipple, November 2, 1865, in American Missionary Association Archives, Fisk University Library, Nashville, Tennessee.

3 Edward Chamber Betts, *Early History of Huntsville, Alabama*, 1804-1870 (Montgomery, Alabama: The Brown Printing Company, 1916), p. 108; *Methodist Adventures in Negro Education*, p. 17; Richard Dennett, *The South As It Is* (New York: Viking Press, 1965), p. 304.

4 Bond, *Education of the Negro in American Social Order*, pp. 22-23; Hooper, "Shall He Be Educated?" *Lippincott's Magazine*, IV (December, 1869), 672.

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of education under slavery made every effort to secure education for their children. Some mothers walked scores of miles to towns to place their children in schools. Parents who could not attend school anxiously watched their children progress.[5] Negro children who had access to educational facilities tried desperately to take advantage of them. In 1865 an Alabama teacher described Negro pupils who lived in miserable shacks without adequate food and clothing. On one occasion, she said, "they had eaten no food for twenty-four hours but they would come to school."[6]

The freedmen did not patiently wait for schools to be brought to them. In December, 1865, Negro leaders of Selma published an appeal in the newspaper asking friends and even former masters to supply schools and teachers. The freedmen warned that "if you stand back, strangers will take the money from under your hands. They are not ashamed to take money from any class of men."[7]

The social circumstances created by emancipation caused white Alabamians to oppose the elevation of former slaves. To rationalize their attitude they claimed the freedmen were incapable of being educated in a formal sense. Obviously chattel slavery left an imprint on the attitude of white Alabamians toward Negro education. From Decatur, Alabama, a gentlemen stated that "the disposition of whites throughout Alabama is not to educate the Negro."[8] Many whites feared that education would ruin the freedmen as laborers. A commander of Federal troops in northern Alabama said, "They want only his labor and they want it their own way."[9]

Regardless of white opposition, the emancipation of the slaves implied a certain obligation to educate and prepare them for citizenship. Since there were few educated Negroes in Alabama, the mass of former slaves required assistance from northern states.[10] One of the earliest sources of Negro instruction was the Union army. After the Federal forces gained a foothold in Alabama, freedmen flocked to the camps seeking refuge and education. As early as May, 1864, chaplains and soldiers led by Chaplain T. Merill operated a day and Sabbath school for freedmen near Huntsville.[11]

The major task of educating the freedmen fell chiefly upon the missionary and benevolent associations which initially worked in conjunction with the Federal troops. At first the associations opened temporary schools in military barracks and warehouses or in confiscated buildings. The teaching was elementary and

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5 Stowell, *Methodist Adventures in Negro Education*, p. 17.

6 Hooper, "Shall He Be Educated?" *Lippincott's Magazine*, IV (December, 1869), 672.

7 Henry Allen Bullock, *A History of Negro Education in the South: from 1619 to the Present* (Cambridge, Massachusetts: Harvard University Press, 1967), p. 25; Selma *Morning Times*, December 30, 1865.

8 Horace Mann Bond, *Social and Economic Influences on Public Education* (Washington: Associated Publishers, 1939), p. 21; U.S. Congress, *House Reports*, 39th Congress, 1st Session, No. 30, p. 9.

9 U.S. Congress, *House Reports*, 39th Congress, 1st Session, No. 30, p. 9.

10 Edgar W. Knight, "Some Fallacies Concerning the History of Public Education in the South," *South Atlantic Quarterly*, XIII (October, 1914), 380; Walter L. Fleming, *Sequel of Appomattox* (New Haven: Yale University Press, 1921).

11 Walter L. Fleming, *Civil War and Reconstruction in Alabama* (New York: Peter Smith, 1905), p. 458; W.G. Kephart to L. Tappan, May 4, 1864 in American Missionary Archives; U.S. Congress, *Senate Executive Documents*, 39th Congress, 1st Session, No. 27, p. 120.

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.41 - Andrew Johnson, the Freedmen's Bureau, and the Problem of Equal Rights, 1865-1866

Donald G. Nieman

ARTICLE	Andrew Johnson, the Freedmen's Bureau, and the Problem of Equal Rights, 1865-1866
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Andrew Johnson, the Freedmen's Bureau, and the Problem of Equal Rights, 1865–1866

By Donald G. Nieman

During the summer and fall of 1865, as the newly created Freedmen's Bureau commenced its operations, one of the chief concerns of its officials was providing freedmen with legal protection. Antebellum southern state law had discriminated harshly against free blacks, and in the Civil War's aftermath functionaries of the provisional governments created in the rebel states by Presidents Abraham Lincoln and Andrew Johnson stood ready to apply this law to the freedmen. State officials' willingness to enforce discriminatory law, however, was not the only reason they posed a threat to blacks. Since southern law-enforcement and judicial officials shared the racial phobias of their white neighbors, it was likely that they would deal summarily with blacks accused of crime but prove reluctant to bring to justice whites accused of crime against blacks. This combination of discriminatory law and discriminatory administration of justice threatened blacks. Not only would it lend the imprimatur of law to white claims of black inferiority, but it would deny blacks the legal protection necessary to support freedom.

The attempts of bureau officials to shield freedmen from discriminatory law and prejudiced officials ran afoul of presidential Reconstruction policy. In the eight months between his accession to the Presidency in April 1865 and the convening of the Thirty-ninth Congress in December, Andrew Johnson sought to revive state governments in the rebel states and to convince northerners that these governments were worthy of restoration. In doing so, Johnson used his immense authority to mold bureau judicial policy in such a way that it would complement and further his plan of Reconstruction. Rather than give bureau officials free rein to try cases involving blacks, he encouraged them to surrender such cases to state courts if state officials agreed to ease legal discrimination against blacks. Although General Oliver Otis Howard, the commissioner of

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the bureau, initially cooperated with Johnson, he quickly learned that, regardless of southerners' willingness to expand blacks' civil rights, law-enforcement and judicial officials continued to deny justice to freedmen. Consequently, by late autumn the commissioner sought congressional legislation that would guarantee freedmen both equal rights and unbiased legal forums in which to vindicate those rights.[1]

Because Johnsonian Reconstruction policy involved rapid restoration of civil government in the South, bureau officials never had the luxury of acting without reference to state officials. When the war ended Unionist civil governments created by Lincoln existed in Louisiana, Arkansas, and Tennessee. Upon assuming the Presidency in mid-April Johnson permitted these governments to stand and within the next month began to restore civil government in the eight remaining rebel states. On May 9 he announced that Francis Harrison Pierpont, who had headed an Alexandria-based Unionist regime throughout the war, was the legitimate governor of Virginia. Less than three weeks later, on May 29, he named William Woods Holden provisional governor of North Carolina and in the following month and a half appointed provisional governors for South Carolina, Georgia, Florida, Alabama, Mississippi, and Texas. Moreover, Johnson's revival of civil government reached down to the grass roots. In Louisiana, Arkansas, and Tennessee law-enforcement and judicial officials either functioned at the end of the war or were elected or appointed by provisional governors during early summer. In the other eight rebel states Johnson permitted his gubernatorial appointees to provide their states with provisional

[1] Although a number of scholarly treatments of the Freedmen's Bureau have appeared in recent years, none have attempted thorough analysis of bureau judicial policy. See John H. Cox and LaWanda Cox, "General O. O. Howard and the 'Misrepresented Bureau'," *Journal of Southern History*, XIX (November 1953), 427–56, especially 452–53; George R. Bentley, *A History of the Freedmen's Bureau* (Philadelphia, 1955), 152–68; John A. Carpenter, *Sword and Olive Branch: Oliver Otis Howard* (Pittsburgh, 1964), *passim*; William S. McFeely, *Yankee Stepfather: General O. O. Howard and the Freedmen* (New Haven and London, 1968), *passim*. Similarly, students of early Reconstruction policy and politics have neglected this area despite its relevance to the civil rights question. See Eric L. McKitrick, *Andrew Johnson and Reconstruction* (Chicago, 1960), *passim*; LaWanda Cox and John H. Cox, *Politics, Principle, and Prejudice, 1865–1866: Dilemma of Reconstruction America* (Glencoe, Ill., and London, 1963), *passim*; William R. Brock, *An American Crisis: Congress and Reconstruction, 1865–1867* (New York and London, 1963), *passim*; Michael L. Benedict, *A Compromise of Principle: Congressional Republicans and Reconstruction, 1863–1869* (New York, 1974), *passim*. One exception is Michael Perman, *Reunion Without Compromise: The South and Reconstruction: 1865–1868* (Cambridge, Eng., 1963), 140–42. However, Perman, whose main concern was southern response to presidential and congressional Reconstruction policy, merely noted that the bureau did transfer jurisdiction to state courts in several states. He did not explore the relationship between Johnson and bureau officials that led to the transfer. Moreover, he did not examine the distinction that bureau officials came to make between legal rights and fair administration of justice and the role that this played in shaping Reconstruction legislation.

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.42 - 'A Just and Self-Respecting System'?: Black Independence, Sharecropping, and Paternalistic Relations in the American South and South Africa

Ian D. Ochiltree

ARTICLE	'A Just and Self-Respecting System'?: Black Independence, Sharecropping, and Paternalistic Relations in the American South and South Africa
JOURNAL	Agricultural History 72, no. 2 (1998)
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"A Just and Self-Respecting System"?:

Black Independence, Sharecropping, and Paternalistic Relations in the American South and South Africa

IAN D. OCHILTREE

In the maize fields of the South African Highveld in the early years of the twentieth century and in the cotton fields of the American South in the same period, black sharecroppers routinely plowed and harvested their crops on white-owned farms and plantations. The two countries may have existed on opposite sides of the Atlantic world, but the sharecropping system practiced by blacks and whites in both countries bore many similarities, both as a familiar form of rural tenancy, but also in the way sharecropping reflected the social and economic roots of discrimination and segregation in these racially divided countries. In America, sharecropping relationships proliferated to such an extent after the Civil War that sharecropping can be seen as a defining feature of the postbellum cotton South. The relationship flourished in South Africa too and was a fundamental ingredient in the capitalist transformation of the maize-growing Highveld in the early twentieth century. Sharecropping in both these countries was born amidst a reluctant recognition of shared interest between laborless white landowners and landless black farmers who together found some mutual advantage in harnessing their land, labor power, and resources. Neither party saw sharecropping as their preferred option, but neither was strong enough to impose its desires on the other in the critical early years

IAN D. OCHILTREE is completing his Ph.D. at Linacre College, Oxford University. His thesis is a comparative history of the sharecropping countrysides of the American South and South Africa in the early years of the twentieth century. An earlier version of this paper was read at the Agricultural History Symposium, and I am grateful to participants for their comments and suggestions. I am particularly indebted to Rick Halpern, Duncan Macleod, Colin Newbury, Howard Temperley, and Stanley Trapido for their criticisms and helpful suggestions.

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when sharecropping relationships emerged out of dislocation, depression, and insecurity.[1]

Over the years reactions to the institution of interracial sharecropping evolved among the white communities, placing it in a social and economic context that reflects, in part at least, on the different approaches that each country took towards ensuring the establishment and maintenance of white supremacy in the countryside.

Interracial sharecropping in these two racially divided worlds led to concerns about the independence and freedom from control that many black sharecroppers were able to achieve. White southerners responded by reshaping sharecropping and the world in which it existed to better suit their interests, a story familiar to historians of the Jim Crow South. In South Africa, on the other hand, similar concerns about the autonomy and self-sufficiency of the sharecropping peasantry led to an unprecedented campaign against the institution of sharecropping and the white farmers who practiced it. The 1913 Natives Land Act, the legislative precursor of modern apartheid, attempted to prohibit sharecropping between white landowners and African farming families, but sharecropping continued in the margins and shadows where it met the specific needs of undercapitalized white farmers and African families increasingly in search of a place on the land. The relationship between landowner and sharecropper there can best be described as paternalistic, which is a conceptual tool familiar to historians of the slave South, but not one that has been applied very critically to the post–Civil War South. American historians seem to have implied that sharecropping and paternalism were somehow incompatible in the South, without specifically explaining why.

Comparative studies of these two countries are certainly nothing new. Viscount James Bryce, British author of *The American Commonwealth,* of-

1. The Highveld can be defined as "the highland savannah plain, bisected by the Vaal River, which forms the arable heartland of the South African interior plateau." It ranges from an altitude of 1,800 meters (6,000 feet) in the east where it is bordered by the Drakensberg and Maluti mountain ranges, to 1,200 meters (4,000 feet) in the west. See Timothy J. Keegan, *Rural Transformations in Industrializing South Africa: The Southern Highveld to 1914* (Johannesburg: Ravan Press, 1986), xii. In the context of the discussion which follows, South African sharecropping was most typically found on the Highveld districts of the Transvaal and Orange Free State, but increasingly on the more isolated areas of the southwestern Transvaal as the twentieth century progressed.

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.43 - 'Forty Acres and a Mule': Louisiana and the Southern Homestead Act

Claude F. Oubre

ARTICLE	'Forty Acres and a Mule': Louisiana and the Southern Homestead Act
JOURNAL	Louisiana History 17, no. 2 (1976)
EXCERPT	Original journal pages 143-144
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"Forty Acres and a Mule": Louisiana and the Southern Homestead Act

By CLAUDE F. OUBRE

Eunice, Louisiana

Historians have generally agreed that one of the great tragedies of emancipation and Reconstruction was the failure to provide economic security for the ex-slaves, principally by failing to provide them with land, which their brawn and blood had helped clear and make productive. Perhaps this accounts for the belief that the benevolent government which emancipated the slaves should also have provided them with "forty acres and a mule."

In March 1865, Congress created the Bureau of Refugees, Freedmen and Abandoned Lands to assist freedmen in making the difficult transition from slavery to freedom. Congress instructed the Bureau to rent forty acres of confiscated or abandoned land to each freedman family.[1] By April 1866, however, most of the confiscated and abandoned lands had been restored to former owners or sold to northern businessmen. Therefore, in order to make land available to the freedmen, Congress enacted the Southern Homestead Act in June 1866, restricting all remaining public lands in five southern states (approximately forty-six million acres) to entry for homestead only. To assure that freedmen and loyal whites would have first choice of the public lands the act restricted entry to these classes exclusively until January 1, 1867, and until June 1868, no entry could be made for more than forty acres of double minimum land, that is, land within six miles of a railroad or navigable stream, or eighty acres of minimum land. Moreover, the act provided that until June 1868 the homesteader would only pay a two dollar filing fee at the time of entry, and would not have to pay the five dollar registration fee until his patent was issued five years later.[2]

[1] U. S., *Statutes at Large,* XIII, 507.
[2] U. S., *Statutes at Large,* XIII, 66–67.

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With this action Congress assumed that it had provided land for the freedmen as well as special provisions to assist them in homesteading. Oliver Otis Howard, Commissioner of the Freedmen's Bureau, instructed the assistant commissioners of the various states to take all steps necessary to make the Bureau an efficient agent for homesteading freedmen on the public lands.[3] Despite all these special provisions relatively few freedmen actually succeeded in acquiring their "forty acres and a mule" on government land in Louisiana. Many factors contributed to this failure since none of the provisions took into account the ravages of war and nature, the depressed economic condition of the freedmen, the quality of the public land, the condition of the land offices in the Southern states, and the slow working of the government bureaucracy. Furthermore, any provisions intended for the exclusive benefit of blacks and loyal whites aggravated the existing racial and political tensions.

Possibly one of the major deterrents to homesteading was the actual physical condition of the land. Throughout the Civil War neglect of the levee system resulted in flooded fields which prevented the state from recovering economically. Flooding in 1865 was so extensive that General E.R.S. Canby, the military commander of the district, provided seed corn for replanting to those whose lands were affected by the flooding. General Thomas Conway, Bureau Assistant Commissioner, provided 4,028 rations to refugees and 225,735½ rations to freedmen in Louisiana in 1865. While Congress debated the Southern Homestead Act in late winter and early spring of 1866, the raging Mississippi again overflowed its banks, broke through the levee above Baton Rouge, and rushed towards the Gulf of Mexico, flooding an area fifty miles wide by one hundred miles long. Everything east of the Teche near Barre's Landing and west of the Mississippi was inundated. The Red River, swollen by winter and spring rains, also overflowed and flooded much of its valley. Approximately

[3] O. O. Howard to Assistant Commissioners for Alabama, Mississippi, Arkansas, Louisiana, and Florida, July 9, 1866, National Archives, Microcopy 742; Selected Series of Records Issued by the Commissioner of the Bureau of Refugees, Freedmen and Abandoned Lands, 1865–1872, Roll 2, p. 170; July 19, 1866, p. 176. This microcopy which contains part of Records Group 105 will hereafter be referred to as Microcopy 742.

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.44 - Klan Skepticism and Denial in Reconstruction-Era Public Discourse

Elaine Frantz Parsons

ARTICLE	Klan Skepticism and Denial in Reconstruction-Era Public Discourse
JOURNAL	The Journal of Southern History 77, no. 1 (2011)
EXCERPT	Original journal pages 53-54
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Klan Skepticism and Denial in Reconstruction-Era Public Discourse

By Elaine Frantz Parsons

> The appearance and acts of the Ku-Klux . . . cannot be disposed of by the opinions that they did not exist.
>
> *Report of the Joint Select Committee to Inquire into the Condition of Affairs in the Late Insurrectionary States*

> Mrs. [Harriet Beecher] Stowe thinks because she and a lady friend have been able to make the trip to Florida and return without being eaten up by the Ku-klux, that such clans do not exist in the South at all, and all that we read about them is bosh.
>
> Milwaukee *Sentinel*, June 10, 1871

One of the strangest aspects of the Reconstruction-era Ku Klux Klan was the inability of Americans to come to even the most basic consensus about its nature.[1] Despite the fact that both the United States government and major newspapers poured unprecedented resources into investigating it, and despite the extraordinary measures that the government took to suppress it, the most fundamental question about the Klan—whether it existed at all—never was entirely settled even in mainstream public discourse.[2] The heartiest and most consistent Klan

The first epigraph is from *Senate Reports*, 42 Cong., 2 Sess., No. 41: *Report of the Joint Select Committee to Inquire into the Condition of Affairs in the Late Insurrectionary States* (13 vols., Serials 1484–96; Washington, D.C., 1872), I, 56 (hereinafter cited as *Report of the Joint Select Committee*); the second is from untitled article, Milwaukee *Sentinel*, June 10, 1871, p. 2.

[1] I have been unable to verify precisely the surprising assertion in the Milwaukee *Sentinel* that Stowe was, in 1871, a Klan skeptic. The best evidence I have found, beyond this complaint in a Republican newspaper, is a published letter written by Eunice Beecher while she was wintering in Florida with Stowe that approvingly passes along statements of Klan skepticism made by southern gentlemen visiting the two women. Mrs. H. W. Beecher, "What We Heard at the South," *Christian Union*, 3 (May 24, 1871), 330. I would like to thank several people for their comments on this article-in-progress, including Greg Borchard, Tsekani Browne, Michael Fitzgerald, Carl Frantz, Carolyn Frantz, Janet Frantz, Tom Kinnahan, Caleb McDaniel, Jotham Parsons, K. Stephen Prince, Dorothy Ross, Ron Walters, and the anonymous readers for the *Journal of Southern History*.

[2] Mark Wahlgren Summers, *A Dangerous Stir: Fear, Paranoia, and the Making of Reconstruction* (Chapel Hill, 2009), 252–55, includes a brief discussion of Klan skepticism and a wonderful image to accompany it. Other historians have also noticed the existence of Klan denial. For instance, in an article on the Enforcement Acts in Mississippi, Stephen Cresswell notes, "[M]any southerners

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denial came from those who had clear political motivations for it, like Democrats and, by 1872, Liberal Republicans backing Horace Greeley's presidential bid, but pre-1872 Republicans also expressed basic doubts about the information they received about the Klan. While Klansmen and their Democratic political allies deliberately spread doubt about Klan reports, they could not have succeeded as thoroughly as they did without the substantial, if intermittent, collaboration of their Republican opponents.

Klan violence occurred at a time of profound transition in the mechanisms and institutions through which Americans received political information. In the decade following the war, Americans faced a substantial increase in the volume of published news. Moreover, news reached readers more quickly, with national news appearing in print generally within twenty-four hours. Editors continued to maintain partisan affiliations, but they began to make claims of neutrality in choosing which stories to publish from the vast tide available. These innovations radically changed the experience of reading the news. Individual readers had to determine how much confidence to put in newspaper editors' selection and presentation of news (was it really as neutral as some claimed?) and how to deal with the phenomenon of stories that continued to unfold rapidly as new information arrived from one edition to the next. At the same time, Americans collectively encountered an incipient national popular culture. The exchange system had long enabled some pieces of news to circulate nationally, but national trends of interest now emerged in a much more coordinated way. As the rapidity of communication created the possibility of feedback loops in which the reception of the story shaped the unfolding of the story itself, certain particularly interesting events and ideas began to take on a life of their own. In struggling to determine the nature of Klan violence, then, Americans were simultaneously struggling to evaluate the new ways in which news was circulating.

Klan violence began in late 1867 and remained at a substantial level through late 1871 or early 1872.[3] The federal government, particularly

claimed that the Ku Klux was a figment of the northern imagination." Cresswell, "Enforcing the Enforcement Acts: The Department of Justice in Northern Mississippi, 1870–1890," *Journal of Southern History*, 53 (August 1987), 421–40 (quotation on 428).

[3] The most comprehensive history of the Reconstruction-era Ku Klux Klan remains Allen W. Trelease, *White Terror: The Ku Klux Klan Conspiracy and Southern Reconstruction* (New York, 1971). Important recent discussions of Klan activity include Steven Hahn, *A Nation under Our Feet: Black Political Struggles in the Rural South From Slavery to the Great Migration* (Cambridge, Mass., 2003), 265–88; and Michael W. Fitzgerald, "The Ku Klux Klan: Property Crime and the Plantation System in Reconstruction Alabama," *Agricultural History*, 71 (Spring 1997), 186–206.

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.45 - Midnight Rangers: Costume and Performance in the Reconstruction-Era Ku Klux Klan

Elaine Frantz Parsons

ARTICLE	Midnight Rangers: Costume and Performance in the Reconstruction-Era Ku Klux Klan
JOURNAL	The Journal of American History 92, no. 3 (2005)
EXCERPT	Original journal pages 811-812
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Midnight Rangers: Costume and Performance in the Reconstruction-Era Ku Klux Klan

Elaine Frantz Parsons

The Reconstruction-era Ku Klux Klan movement was intimately intertwined with, and completely dependent on, contemporary popular cultural forms and institutions. The degree and significance of this entanglement is most immediately obvious in the Klan's origins in Pulaski, Tennessee. According to the founding member James R. Crowe, his fellow founder Frank McCord played the violin and Calvin Jones the guitar. The group would "go serenading and amuse ourselves as best we could." In an unpublished 1911 historical novel about the Klan, Frank McCord's younger brother Lapsley (himself an early member) remembered that in its early days "there were parties of them out nearly every evening calling upon their sweethearts." Though that description does not mention musical performance, his account is consistent with serenading. It would, of course, be a mistake to accept early members' self-interested explanations of their origins at face value. Fortunately, ample additional evidence supports their accounts. The future founders of the Klan first appeared in the post–Civil War public record working together in May 1866, about a month before the Klan was most likely founded. Three of the six founders, Richard Reed, J. C. Lester, and James Crowe, appeared in the *Pulaski Citizen* (edited by Frank McCord's brother Luther) on a list of organizers of tableaux staged to raise funds to provide artificial limbs for maimed Confederate veterans. Crowe appeared in one scene as the emperor Aurelian, and Lester appeared in "Queen Elizabeth Discovering her Favorite's [Sir Walter Raleigh's] marriage." Most of the scenes expressed domestic sentiment or provided opportunities for the belles and beaux of Pulaski to display themselves, though Crowe's Zenobia and Aurelian tableau, for instance, had an obvious political message. McCord's newspaper reflected that in the scene showing Zenobia, the conquered warrior princess, "raising her deprecating, but manacled hands," "the fetters degraded not [her] but the haughty Roman [Aurelian] who had imposed them." Just as these future Klan founders' first public appearance was performative, so were two of the earliest Klan activities noticed by outsiders: a

Elaine Frantz Parsons is an assistant professor of history at Duquesne University. She wishes to thank the many people who have commented on earlier drafts of this article, including Fitzhugh Brundage, Mark Cosdon, Michael Fitzgerald, Carolyn Frantz, Rene Hayden, Mara Keire, Stephen Kantrowitz, Stephen Kercher, David Miller, Scott Reynolds Nelson, Jotham Parsons, Dorothy Ross, Frank Uekoetter, Ronald Walters, anonymous readers, members of the Duquesne University History Department, and participants in the Allegheny College humanities lecture series and the Johns Hopkins University History Department Seminar. Bob Wamble was generously willing to share his valuable personal collection of research materials related to the Ku Klux Klan and to inform her about other important primary sources despite the deep differences in their interpretation of the Pulaski Klan. This article was made possible by the financial support of the University of Wisconsin, Oshkosh, Faculty Development Fund, the University of North Carolina, Chapel Hill, Southern Studies Summer Stipend, and Duquesne University.

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Figure 1. This *carte de visite,* labeled "Midnight Rangers, Pulaski, Sept. 3rd 1866," may represent an early incarnation of the Ku Klux Klan in Pulaski, Tennessee, the organization's birthplace. *Courtesy Giles County Historical Society, Pulaski, Tennessee.*

moonlight dance at which the Klan made a costumed appearance and a parade replete with costumes and musical entertainment.[1]

There is also material evidence of the Klan's theatrical roots. Frank McCord's fiddle still exists, in the custody of the Tennessee State Museum. More intriguing, a contemporary image supports such an account of the Klan's origins. (See figure 1.) Recently discovered by the independent historian Bob Wamble, the *carte de visite* likely represents an early incarnation of the Ku Klux Klan. The image, labeled "Midnight Rangers, Pulaski, Sept. 3, 1866," depicts seven young men with musical instruments, including fiddles, a guitar, and a banjo. Their informal dress, jaunty poses, hats askew, and choice of instruments indicate that they are performing in either the minstrel style or a closely related folk tradition. If the Klan founders were not the men depicted in this image, they were down the street doing the same thing; if the men in the picture were not the Klan, their name associated them with nocturnal violence. (To Civil War–era Americans, "rangers" were roaming groups of armed men of dubious legality.) While origins as an entertainment troupe may seem incidental to, or even inconsistent with, the violent group the Klan soon became, the Reconstruction-era Klan movement remained closely intertwined with popular cultural forms throughout its existence. Klansmen's mobilization of popular cultural traditions and popular cultural institutions' simultaneous appropriation of the image of the Klansman profoundly affected not only the spread of the Klan movement, but the nature and meaning of Klan actions. By attaching themselves to discourses about race, gender, civilization, and violence that had been built up through many years in such popular cultural forms as minstrelsy and carnival, Klansmen would develop and find ready audi-

[1] James R. Crowe, "Origin of the Ku Klux Klan," *Banner* [1895–1908] (Giles County Historical Society Archives, Pulaski, Tenn.); *Pulaski Citizen,* May 1868, p. 4; Lapsley David McCord, "Red Gown," manuscript, [c. 1911], Ku-Klux Klan Papers (Missouri Historical Society, St. Louis); *Pulaski Citizen,* May 4, 1866, pp. 3, 2; *ibid.*, Aug. 2, 1867, p. 3; *ibid.*, June 7, 1867, p. 3.

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.46 - Election of 1870 and the End of Reconstruction in Florida

Ralph L. Peek

ARTICLE	Election of 1870 and the End of Reconstruction in Florida
JOURNAL	The Florida Historical Quarterly 45, no. 4 (1967)
EXCERPT	Original journal pages 352-353
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ELECTION OF 1870 AND THE END OF RECONSTRUCTION IN FLORIDA

by Ralph L. Peek

William Dunnington Bloxham was the first Democrat to win a high elective office in Florida following Congressional Reconstruction. Just twenty-eight months after the end of military rule in the state this native Florida conservative was elected lieutenant governor. However, he was denied the fruits of victory for more than eighteen months. After tedious litigation he was finally awarded the office by the Florida Supreme Court and was inaugurated June 3, 1872.

It is remarkable that some of the most prominent historians of Reconstruction in Florida, including William Watson Davis and John Wallace, fail to mention Bloxham's victory. An even more remarkable omission is the fact that the case is not even mentioned in the reports of cases before the supreme court.

What did Bloxham's victory mean? It is necessary to view the context of the supreme court's decision and the subsequent events in any attempt to assess its true significance to Florida history. By the time that military reconstruction ended in Florida in July 1868, the Republican Party had enlisted almost all the newly enfranchised freedmen into its ranks and had engrossed most state and local offices. But there was deep division in the party. Radicals accused moderate Republicans of fomenting a split in the constitutional convention of 1868 aimed at eliminating radical control so that a constitution could be written that was favorable to the former rebels and harmful to Negroes and radicals.[1] It does seem that there was something of a tacit alliance between moderate Republicans and Conservatives, or Democrats,

1. Daniel Richards to Thaddeus Stevens, May 25, 1868, Thaddeus Stevens Papers, XII (1868-1869), 54862, Library of Congress, Washington; C. L. Robinson to Thaddeus Stevens, May 29, 1868, *ibid.*, 54872; Liberty Billings to Elihu Washburne, June 7, 1868, Elihu Washburne Papers, LX (1868), 12156, Library of Congress; *House Miscellaneous Documents*, 40th Cong., 2nd Sess., No. 109, Serial No. 1350 (Washington, 1868), 1.

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during the convention.[2] Leading radicals claimed that the moderate Republicans, led by Harrison Reed, a federal postal agent and a strong supporter of President Andrew Johnson, had promised the Democrats a share of the patronage in exchange for their political support. It seems that the moderate minority wing was able to prevail because it had both the support of Democrats and the military commanders in the state and in the Third Military District. Apparently, promises were made by the Reed faction to the Democrats concerning jobs. These promises were not kept, however, at least not to the satisfaction of the Democrats, and in the end they opposed both Reed and the constitution.[3]

Republican power in Florida in 1868 was tenuous, resting almost entirely upon Negro ballots. From the Republican standpoint an ominous factor was the realization that the conservative vote had every prospect of increasing. A special census in 1867 and the regular census of 1870 revealed that white conservatives outnumbered both white and Negro Republicans.[4] With the Republican structure resting almost entirely upon the Negro vote, it was both shaky and vulnerable.

Against this background came the election of 1870, the turning point of the post-Civil War history of Florida. The Democrats were determined to win the offices at stake—the lieutenant governorship, all legislative seats, and one congressional seat. Republican tenure depended upon Negro votes in about twelve North Florida counties which had overwhelming

2. William Gleason to G. W. Holmes, October 30, 1890, William Gleason Papers, Box 15, P. K. Yonge Library of Florida History, Gainesville, Florida. The moderate Republicans who effected the split in the convention were the so-called "Johnson men," or federal appointees, who were for the most part members of the conservative Union Republican Club of Jacksonville. The goals of this club did not include white disfranchisement. Those active against the radicals in the convention included Harrison Reed, Ossian B. Hart, Thomas W. Osborn, Sherman Conant, Lemuel Wilson, A. A. Knight, Marcellus L. Stearns, William Purman, Charles M. Hamilton, and Democrats David S. Walker and Charles E. Dyke, editor of the Tallahassee *Floridian*. (*House Miscellaneous Documents,* 40th Cong., 2nd Sess., No. 109, Serial No. 1350, p. 1). The military commander favored the conservative Republicans.
3. Daniel Richards to Elihu Washburne, May 6, 1868, LIX, Washburne Papers.
4. Tallahassee *Semi-Weekly Floridian,* October 8, 1867, estimated a majority of white males amounting to 8,642. A special census in 1867 (published in the Tallahassee *Weekly Floridian,* June 30, 1868) showed a potential majority of white voters.

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.47 - Was There a Compromise of 1877

Allan Peskin

ARTICLE	Was There a Compromise of 1877
JOURNAL	The Journal of American History 60, no. 1 (1973)
EXCERPT	Original journal pages 63-64
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Was There a Compromise of 1877?

ALLAN PESKIN

THERE was a time, not too long ago, when the disputed election of 1876 could be treated as a relatively uncomplicated story. The Democratic candidate, Samuel J. Tilden, had won the popular vote and undisputed title to 184 electoral votes, only one short of victory. The campaign managers of Rutherford B. Hayes claimed victory for their side on the basis of disputed returns from the three southern states still under Republican control—Louisiana, Florida, and South Carolina. The ensuing deadlock proved unresolvable by traditional means, and, in "one of the wisest pieces of statecraft ever evolved by an American Congress,"[1] an extraordinary electoral commission was created, composed of members of the Senate, House, and Supreme Court. The decision of this commission in favor of Hayes, by a strictly partisan eight to seven vote, so angered Democrats that many of them openly threatened revolution, while others in the House of Representatives began a filibuster to prevent Hayes' inauguration. Fortunately for the nation, reasonable men in both parties struck a bargain at Wormley's Hotel. There, in the traditional smoke-filled room, emissaries of Hayes agreed to abandon the Republican state governments in Louisiana and South Carolina while southern Democrats agreed to abandon the filibuster and thus trade off the presidency in exchange for the end of Reconstruction.

This familiar account was challenged in 1951 with the publication of C. Vann Woodward's *Reunion and Reaction: The Compromise of 1877 and the End of Reconstruction*.[2] Generally well received by reviewers in the major historical journals,[3] Woodward's new interpretation soon won "almost universal accep-

Allan Peskin is associate professor of history in Cleveland State University.

[1] Paul Leland Haworth, *The Hayes-Tilden Disputed Presidential Election of 1876* (Cleveland, 1906), 333.

[2] The C. Vann Woodward thesis can be found in at least three different forms. The first and most extensive version is C. Vann Woodward, *Reunion and Reaction: The Compromise of 1877 and the End of Reconstruction* (Boston, 1951). In 1956 a revised edition was issued which omitted the footnotes, but added an introduction and a concluding chapter. A condensed version of the thesis appears in C. Vann Woodward, *Origins of the New South, 1877-1913* (Baton Rouge, 1951), 23-50. This chapter is anthologized under the title, "The Forked Road to Reunion." Simplified and abridged for textbook purposes, the thesis appears as part of Woodward's contribution to John Blum, Bruce Catton, and others, *The National Experience: A History of the United States* (New York, 1968).

[3] See Jeter A. Isely's review, *American Historical Review*, LVII (Oct. 1951), 178-79, and Arthur R. Kooker's review, *Mississippi Valley Historical Review*, XXXVIII (March 1952), 717-19. Dan M. Robison's review, *Journal of Southern History*, XVIII (Feb. 1952), 93-95, expresses some reservations.

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tance."[4] The thesis was widely reprinted and was incorporated, virtually unchanged, in almost every major textbook of American history,[5] achieving the status of the most influential monograph in its field.

Ignoring the electoral commission and dismissing the Wormley's House bargain as inconsequential, Woodward probed beneath the surface to discover the tangled bargain of 1877, finding in a semi-secret set of negotiations between Republicans and southern Democrats the long-hidden key to the resolution of the crisis. These southerners, many of them former Whigs, represented the emerging business and industry of the New South. Many Republicans, including Hayes—himself a former Whig—had more in common with these respectable conservative southerners than they had with the Radicals, carpetbaggers, and Negroes who constituted the Republican party in the South. Drawn together by common economic interest, they hammered out a compromise which allowed Hayes to enter the White House and which, not incidentally, marked the end of an era.

Southern cooperation was not bought cheaply. The bulk of Woodward's book is devoted to computing the price tag of the agreement. It is a sophisticated, complex analysis, difficult to summarize. Subsequent historians, however, lacking Woodward's caution, have simplified his thesis to read like this: "the South settled the issue by trading the Presidency for: (1) final withdrawal of Federal troops from the three disputed states; (2) a promise of financial aid in the construction of the Texas and Pacific Railroad; (3) the appointment of a Southerner as Postmaster General; (4) the assurance of Federal subsidies to aid Southern rehabilitation; and (5) a tacit admission that the South alone should resolve its racial problem."[6] In addition, some southerners promised to help the Republicans organize the next House of Representatives; and Hayes, in turn, hoped to build up a respectable, white Republican party in the South.

The result of all this bargaining, Woodward argued, was more than a political deal: "When political agreements involve the destinies of millions of

[4] J. G. Randall and David Donald, *The Civil War and Reconstruction* (Lexington, Mass., 1969), 834. But see Rembert W. Patrick, *The Reconstruction of the Nation* (New York, 1967), 265-66; John A. Garraty, *Interpreting American History* (2 vols., New York, 1970), I, 363-65.

[5] A cursory survey of leading college textbooks showed the following to be influenced by Woodward's work: Harry J. Carman, Harold C. Syrett, and Bernard W. Wishy, *A History of the American People* (2 vols., New York, 1967), II, 50-53; John W. Caughey and Ernest R. May, *A History of the United States* (Chicago, 1964), 274-75; Avery Craven and Walter Johnson, *The United States: Experiment in Democracy* (Boston, 1962), 343; John A. Garraty, *The American Nation: A History of the United States* (New York, 1966), 446-47; Norman A. Graebner, Gilbert C. Fite, and Philip L. White, *A History of the American People* (New York, 1970), 634-36; Richard Hofstadter, William Miller, and Daniel Aaron, *The United States: The History of a Republic* (Englewood Cliffs, 1967), 478-79; Dexter Perkins and Glyndon G. Van Deusen, *The American Democracy: Its Rise to Power* (New York, 1964), 318-19; T. Harry Williams, Richard N. Current, and Frank Friedel, *A History of the United States {Since 1865}* (New York, 1964), 58-59.

[6] James P. Shenton, ed., *The Reconstruction: A Documentary History of the South after the War: 1865-1877* (New York, 1963), 7.

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.48 - Legitimacy and Interventionism: Northern Republicans, the 'Terrible Carpetbagger,' and the Retreat from Reconstruction

K. Stephen Prince

ARTICLE	Legitimacy and Interventionism: Northern Republicans, the 'Terrible Carpetbagger,' and the Retreat from Reconstruction
JOURNAL	Journal of the Civil War Era 2, no. 4 (2012)
EXCERPT	Original journal pages 538-539
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K. STEPHEN PRINCE

Legitimacy and Interventionism

Northern Republicans, the "Terrible Carpetbagger," and the Retreat from Reconstruction

After the Civil War, an Ohio native and Union army veteran named Albion Tourgée headed South, intending to do his part in the region's political and social rebirth. Settling with his family in Greensboro, North Carolina, he bought a home, started a law practice, and involved himself in Republican Party politics. His fondest hope, he told his wife, was to "do good" in his adopted region. Events soon robbed Tourgée of much of his optimism. He watched a tide of white supremacist conservatism overtake North Carolina. The Ku Klux Klan killed two of his political associates and repeatedly threatened his family. The North Carolina Democratic press unmercifully pilloried him as a dangerous outsider, a corrupt interloper, and an incorrigible nuisance. Sitting in his Greensboro home at the close of Reconstruction, Albion Tourgée was left to survey the wreckage, capturing the failed promise and tragic betrayal of the period in a novel whose very title—*A Fool's Errand*—spoke volumes as to its tone and its contents.[1]

Though copious in its criticism of murderous and anti-democratic white southerners, *A Fool's Errand* reserved some of its most stinging rebukes for the North. Tourgée had little trouble understanding white southern distrust of the northern strangers that came into their midst after the war—known then, and ever since, as "carpetbaggers."[2] What he failed to comprehend was the maddening ease with which the northern public had sold out its own. "Perhaps there is no other instance in history," Tourgée fumed, "in which the conquering power has discredited its own agents, denounced those of its own blood and faith, espoused the prejudices of its conquered foes, and poured the vials of its wrath and contempt upon the only class in the conquered territory who defended its acts, supported its policy, promoted its aim, or desired its preservation and continuance."[3] The North, Tourgée insisted, had betrayed the carpetbaggers.

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The carpetbagger remains one of the most enduring symbols of the Reconstruction era. Technically, a carpetbagger was simply a northerner who went South in the wake of the Civil War and took part in Republican Party politics.[4] For most of its lifespan, however, the term has been an epithet, denoting a lowly, immoral northern opportunist, a demagogue who preyed on the defeated South, perverted sectional peace, and rose to power by deceiving African American voters. As late as 1988, historian Richard N. Current's classic *Those Terrible Carpetbaggers* could be labeled "a reinterpretation" precisely because it insisted upon the humanity of these historical villains. Current concluded that the carpetbaggers were, in reality, no better and no worse than most other Americans. The average carpetbagger was an educated, moneyed Union veteran who hoped to make his home in the South and entered politics largely as an afterthought. Some were undoubtedly corrupt, but many others were honest and deeply committed to the ideals of Reconstruction, to African American civil rights, and to the rebuilding of the South.[5] If Current successfully debunked the terrible carpetbagger stereotype, the more recent work of historian Ted Tunnell has shed important light on its provenance. "Carpetbagger" was never a value-neutral term, Tunnell argues. From the first, it was an ingenious piece of political propaganda, a highly self-conscious "rhetorical weapon" that white southerners coined to discredit Radical Reconstruction and African American suffrage.[6] The carpetbagger's less-than-sterling historical reputation, Tunnell concludes, had less to do with graft and corruption than it did with the politics of white supremacy.

If we accept, with Current and Tunnell, that the carpetbaggers were not actually that terrible, we are still left to account for the phenomenon that Tourgée described—the widespread, nearly universal, northern acceptance of the "terrible carpetbagger" stereotype during the latter years of Reconstruction. A study of the northern Republican repudiation of the carpetbagger promises to shed new light on the manner in which Americans conceptualized and experienced the nation's retreat from Reconstruction. As it traces the fate of the carpetbagger in the northern Republican print media from 1868 to 1877, this article argues that discussions of the northerner in the South served as a proxy for a larger debate over the course, conduct, and meaning of Reconstruction. When northern Republicans talked about the carpetbagger, in other words, they were rarely *just* talking about the carpetbagger.

Though never the only symbol or stereotype to play a prominent role in northern discussions of the postwar South, the figure of the terrible carpetbagger proved a particularly rich terrain on which to debate the meaning and merits of Reconstruction.[7] In large part, the political and cultural

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.49 - Republican Albatross: The Louisiana Question, National Politics, and the Failure of Reconstruction

George Rable

ARTICLE	Republican Albatross: The Louisiana Question, National Politics, and the Failure of Reconstruction
JOURNAL	Louisiana History 23, no. 2 (1982)
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Republican Albatross: The Louisiana Question, National Politics, and The Failure of Reconstruction

By GEORGE RABLE

Director of American Studies
Anderson College
Anderson, Ind.

In the past two decades, Reconstruction historians, and particularly the so-called "neo-revisionists," have given much attention to the limitations and, what many have termed, the essential conservatism of Republican Reconstruction policies by stressing the weakness of the party's commitment to reform and racial justice in the South and the constitutional and political restraints on government action.[1] Since this literature deals primarily with the 1860s, the recent publication of William Gillette's impressively researched and well-argued *Retreat from Reconstruction*, which for the first time examines in detail Republican Southern policy during the 1870s, is a welcome addition to the historiography of the period.

Offering a series of thoughtful explanations for the failure of Reconstruction, Gillette concludes not only that Republican policy was unsuccessful because of constitutional limitations, inadequate government resources, and racism, but he also assesses the im-

[1] For representative examples, see Kenneth M. Stampp, *The Era of Reconstruction, 1865–1877* (New York, 1965), pp. 204–13; William R. Brock, *An American Crisis: Congress and Reconstruction, 1865–1867* (New York, 1963), pp. 285–301; Forrest G. Wood, *Black Scare: The Racist Response to Emancipation and Reconstruction* (Berkeley, 1968), pp. 102–69; Hans L. Trefousse, *The Radical Republicans: Lincoln's Vanguard for Racial Justice* (New York, 1968), pp. 418–20, 443–47; Paul Kleppner, *The Cross of Culture: A Social Analysis of Midwestern Politics, 1850–1900* (New York, 1970), pp. 104–108; George M. Frederickson, *The Black Image in the White Mind: The Debate on Afro-American Character and Destiny, 1817–1914* (New York, 1971), pp. 165–97; Michael Les Benedict, *A Compromise of Principle: Congressional Republicans and Reconstruction, 1863–1869* (New York, 1974), pp. 221–22; and Michael Les Benedict, "Preserving the Constitution: The Conservative Basis of Radical Reconstruction," *Journal of American History*, LXI (1974), 65–90.

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portance of Reconstruction questions in Northern politics and the complex of interests and tensions within the Republican party.[2] By demonstrating that Grant unevenly applied an often inconsistent policy, he convincingly shows that in most Southern states Republican policy was not adequately tested.[3]

These historians then have offered reasonably plausible interpretations of the Republican party's often ambiguous approach to Reconstruction and of the eventual collapse of the government's efforts. Yet by concentrating their attention on the attitudes and actions of politicians in Washington, these scholars have missed the point that perhaps the Republicans failed not so much because of inherent defects in their ideology or policies but because of the unsuitability of the testing ground for "radical" Reconstruction. As Professor Gillette notes, Grant gave his most consistent and sustained attention to the Republican party in Louisiana, thus making it the only state in which Republican Southern policy received an adequate trial. The disastrous results of Grant's actions in Louisiana proved so politically costly to Northern Republicans that it became a virtual certainty that forceful measures would not be taken elsewhere.

Of all the Southern states, Louisiana was the least appropriate for attempting a thorough reformation of political, social, and economic institutions. The state had long been divided along economic, cultural, and racial lines, and its politics had been faction-ridden, corrupt, and occasionally violent. In addition, long simmering racial tensions whose fury had erupted in a major riot in New Orleans in 1866 and in a series of bloody clashes during the 1868 presidential election campaign indicated that any attempt to maintain the Republican party in power would be met with strong resistance. Ironically, nowhere did Grant adopt so firm a posture as in the bubbling cauldron that was Louisiana.

Grant's interest in the welfare of Louisiana's Republican party was not solely a principled or partisan one because his wife's brother-in-law, James F. Casey, was collector of customs in New Orleans and a powerful figure in state politics. Though the presi-

[2] William Gillette, *Retreat from Reconstruction, 1869–1879* (Baton Rouge, 1979), pp. 363–80.

[3] *Ibid.*, pp. 76–81, 103, 166–79.

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.50 - Debt Peonage in the Cotton South After the Civil War

Roger L. Ransom and Richard Sutch

ARTICLE	Debt Peonage in the Cotton South After the Civil War
JOURNAL	The Journal of Economic History 32, no. 3 (1972)
EXCERPT	Original journal pages 641-642
JSTOR	https://www.jstor.org/stable/2116653

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Debt Peonage in the Cotton South After the Civil War

This condition of affairs in the South introduced a vast credit system whose tremendous evils and exorbitant exactions have brought poverty and bankruptcy to thousands of families. As a policy, it is vindictive in its subtle sophistry; as a system, it has crushed out all independence and reduced its victims to a coarse species of servile slavery. . . .

Charles Otken.

CHARLES Otken was writing in 1894.[1] By this time, it had already become apparent to many Southerners that the South had failed to construct the vigorous, diversified economy envisioned by those who had seen a new hope for the region in the abolition of slavery and the displacement of the plantation aristocracy. Otken, among other contemporaries, placed the blame for this failure on the system of rural credit and merchandising which forced the small farmer into a form of "debt peonage." Such a view has also been accepted by modern historians as an important element in the story of Southern economic development after the Civil War.

The usual historical narrative[2] begins with the defeat of the Con-

The authors wish to thank their research assistants Arden Hall and Charles Wolin for their help in preparing this paper. The data employed were collected and collated by Wendy Barnes, Sue Boutin, Deborah Doyle, Sheila Moffett, Barbara Robins, and Lynnae Wolin. Financial support was provided by the National Science Foundation, The Institute of Business and Economic Research, and the Computer Center of the University of California, Berkeley. An earlier draft of this paper appeared as Working Paper Number 9 of The Southern Economic History Project. We wish to thank the numerous people who responded with comments and suggestions. Particularly helpful were those of Peter Temin and Robert Gallman.

[1] Charles H. Otken, *The Ills of the South or Related Causes Hostile to the General Prosperity of the Southern People* (New York: G. P. Putnam's Sons, 1894), pp. 10-11.

[2] The following brief caricature of historical treatments of Southern growth is intended neither as a thorough summary of the literature, nor as a straw man to be torn apart. Although the analysis has gone through various revisions, the emphasis has remained virtually unchanged from the early works, such as: Henry W. Grady, "Cotton and its Kingdom," *Harper's New Monthly Magazine*, Volume LXIII, Number CCCLXXVII (Oct. 1881) pp. 719-34; M. B. Hammond, *The Cotton Industry: An Essay in American Economic History; Part I, The Cotton Culture and the Cotton Trade* (New York: American Economic Association and the Macmillan Company, 1897); and Otken, *The Ills of The South;* down to the more recent discussions by: Fred A. Shannon, *The Farmer's Last Frontier: Agriculture, 1860-1897* Volume V of *The Economic History of The United States* (New York: Holt, Rinehart and Winston, 1945); Harold Woodman, *King Cotton and His Retainers* (Lexington: University of Kentucky Press, 1967); Kenneth M. Stampp, *The Era of Reconstruction, 1865-1877* (New York: Alfred A. Knopf, 1965); and Theodore Salutos, *Farmer Movements in the South, 1865-1933* (Berkeley: University of California Press, 1960).

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federacy and a discussion of the fragmentation of Southern plantations into small farms operated by freedmen and poor whites. A form of tenancy—sharecropping—arose in this period as a means of employing the Negro. Sharecropping allowed the exploitation of the small farmer by the monopolistic financial structure dominated by the local merchant. Unable to obtain alternative sources of credit for supplies he needed, the small farmer was forced to pledge his future crop as a lien against credit advanced for the growing season. The crop lien bound the farmer to the merchant and restricted his options to buy elsewhere or dispose of his crop in the most advantageous manner. Through use of his monopoly power, the merchant was able to insist that the farmer concentrate on the production of cotton at the sacrifice of food for home consumption, thereby forcing the farmer to buy his provisions from the merchant. The credit prices charged for these supplies were exorbitant, reflecting not only the local merchant's inefficiency, but his exploitative powers as the sole source of rural credit.

Fifty years after Charles Otken's emotional description of the farmers' debt peonage, Fred Shannon summarized the effects of this combination of tenancy and credit monopoly in an equally vivid indictment of the entire structure of Southern agriculture:

> The abuses to which this system could lead were plentiful and sometimes ingenious. It grew worse as landlord and merchant ultimately and almost universally became the same individual. The weighting of prices, coupled with intricate bookkeeping, could show a debt to the store at the close of each year, if the laborer were industrious enough that a continuation of his services was desired. Again, the books could be made to balance exactly for the more shiftless cropper who was to be asked to move on. The workers were often perplexed at this magic, but were generally not sufficiently quick at ciphering to keep pace with the nimble-tongued bookkeeper. Besides this, the person who persisted in demanding too close a check could easily be branded a troublemaker and neighborhood nuisance, and run out of the county by an obliging deputy sheriff.[3]

The hypothesis which this article explores can be summarized in three broad statements:

1) That because of the readjustments in agriculture and the difficulties in forming new banks under the banking laws, the South was unable to reestablish a viable network of commercial banks to serve her agricultural economy.

[3] Shannon, *The Farmer's Last Frontier,* pp. 92-93.

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.51 - The Freedmen's Bureau as a Legal Agent for Black Men and Women in Georgia: 1865-1868

Sara Rapport

ARTICLE	The Freedmen's Bureau as a Legal Agent for Black Men and Women in Georgia: 1865-1868
JOURNAL	The Georgia Historical Quarterly 73, no. 1 (1989)
EXCERPT	Original journal pages 26-27
JSTOR	https://www.jstor.org/stable/40581929

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The Freedmen's Bureau as a Legal Agent for Black Men and Women in Georgia: 1865-1868

By Sara Rapport

In May 1868, a number of "unruly" field hands in Cuthbert, Georgia, were brought by their employer before an agent of the Freedmen's Bureau because they refused to work.[1] All promised to labor diligently in the future, with the exception of a woman named Mary, who announced that "all the Bureaus out can't make her work." Eventually the agent had Mary and her husband Isaac arrested and brought before the bureau again, where, after a lengthy investigation, he determined that Mary had worked a mere seven days in exchange for two months' rations. "Mary," the agent concluded, "is an impudent vulgar woman." He then annulled the contract between Mary and her employer, and ordered Isaac to keep his wife "in subjection."[2]

Mary's story is interesting, not only for what it reveals about the agent's conception of Mary and Isaac's relationship, but also for what it reveals about Mary herself. This freedwoman did more than merely refuse to abide by a bureau edict; she

[1]The Freedmen's Bureau was an administrative agency established by Congress on March 3, 1865 to control "all subjects relating to refugees and freemen from rebel states." 13 Stat. 507 (1865). The head of the bureau, Commissioner Howard, interpreted this statutory mandate to include the power to adjudicate conflicts among blacks and between blacks and whites in "all places where local courts . . . disregard[ed] the negro's right to justice before the laws. . . ." H. R. Exec. Doc. 11, 39th Cong., 1st sess., 1865, 45 (Serial 1255; reprint Circular no. 5, May 30, 1865). For a general discussion of the bureau, see Donald G. Nieman, *To Set the Law in Motion, The Freedmen's Bureau and the Legal Rights of Blacks, 1865-1868* (New York, 1979); William S. McFeely, *Yankee Stepfather: General O. O. Howard and the Freedmen* (New Haven, 1968); George R. Bentley, *A History of the Freedmen's Bureau* (Philadelphia, 1955).

[2]The Bureau of Refugees, Freedmen and Abandoned Lands, National Archives, Record Group 105 [hereinafter cited as BRF&AL], Entry 859, Cuthbert, Ga., May 30, 1868.

Ms. Rapport graduated from Harvard Law School in 1987 and is currently a Ph.D. candidate in American History at Rutgers University. She would like to acknowledge the assistance of Professor William Fisher.

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talked back to the agent in an open display of disdain for "all the Bureaus out." Yet because she was not in a strong position for seeking affirmative relief (she was, after all, the defendant), she could only "act" by reacting through resistance. On other occasions, when freedpeople shifted their posture from that of defendant to that of complainant, they made specific demands upon the bureau, and, in the process, worked more affirmatively than could Mary to make the institution their own.

Freedpeople made their demands by speaking directly to bureau agents. These agents had two types of legal responsibilities. First, they adjudicated disputes among blacks and between blacks and whites in "all places [including Georgia] where local courts disregard[ed] the negro's right to justice before the laws. . . ."[3] Second, they acted as the freedpeople's advocate in the local judicial system. Many became "watchdogs," observing how police officials responded to reports of outrages committed against freedpeople and how courts handled their authority over freedpeople's complaints.[4]

In Georgia, as in many states, the number of agents varied dramatically from 1865 through 1868. Davis Tillson, the second assistant commissioner of the Georgia bureau, attended the state's convention in late 1865 to seek from among the delegates men who would serve as agents. He reported to the head of the bureau, Commissioner Oliver O. Howard, that after assuring the delegates that the only qualifications for office were "competency" and "a willingness to dispense simple justice without regard to color," he brought on 195 magistrates

[3]H. R. Exec. Doc. 11, 39th Cong., 1st sess., 1865, 45 (Serial 1255; reprint Circular no. 5, May 30, 1865).

[4]By March 1866, Georgia had passed enough nondiscriminatory legislation to convince Tillson to order all but petty cases turned over to the civil authorities. Nieman, *To Set the Law in Motion*, 96. See Act of March 17, 1866, No. 250, Acts of the General Assembly of the State of Georgia 239 (1865-1866); Act of December 15, 1865, No. 251, Acts of the General Assembly of the State of Georgia 239-40 (1865-1866). In April 1866, Congress passed the Civil Rights Act, and in June 1866, the Fourteenth Amendment, both of which afforded freedpeople civil rights under the law. In July 1866, however, Howard issued a new circular that provided for the reconvening of bureau courts. As three-man tribunals, the courts would handle all cases involving freedpeople if in civil cases the amount in dispute did not exceed three hundred dollars, and in criminal cases, the punishment did not exceed a one hundred dollar fine and thirty days in jail. Nieman, *To set the Law in Motion*, 144.

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.52 - Sharecropping As An Understandable Market Response: The Post-Bellum South

Joseph D. Reid, Jr.

ARTICLE	Sharecropping As An Understandable Market Response: The Post-Bellum South
JOURNAL	The Journal of Economic History 33, no. 1 (1973)
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Sharecropping As An Understandable Market Response: The Post-Bellum South

ON the eve of the Civil War southern per capita real income was eighty percent of northern. Treating slaves as property, real income per free southerner was four percent greater and growing at the same rate as its northern counterpart. Southern per capita income was but fifty-one percent of the national average in 1880, and only slowly began to relatively advance after 1900.

Hypotheses advanced to explain the post-bellum South's poor relative per capita income performance typically fall into two classes: (1) explanations which identify the post-bellum stagnation as a continuation of the South's alleged antebellum stagnation, or (2) explanations which attribute the post-bellum stagnation to agricultural inefficiencies stemming from the fall in average farm size, the rise of sharecropping, or the monopolistic exploitation of southern agriculture by ubiquitious country stores. The South's antebellum relative income record casts immediate doubt on type (1) explanations. One may debate whether the slave-inclusive or slave-exclusive antebellum income relative is more relevant, but each is high and growing relative to its post-bellum counterpart. Non-existent antebellum stagnation seems a poor direct precedent for post-bellum stagnation. Indirectly, however, racism may have been an antebellum heritage. Racism clearly was a characteristic of antebellum southern society which remained a virulent force in the Post-bellum; but racism must have market ramifications to affect the rate and direction of economic development.[1] Hence, these potentially

Encouragement, assistance or valuable criticism were generously given by Richard Easterlin, Stanley Engerman, Robert Fogel, Gerald Gunderson, Claudia Goldin, H. Gregg Lewis, Donald McCloskey, Yakir Plessner, and Joel Williamson. Valuable help from the librarians of the North Carolina Department of Archives and History, the Archives of Perkins Library at Duke University, and the Southern Historical Collection at the University of North Carolina Library and National Science Foundation Grant GS 3262 enabled me to collect the tenancy contracts cited herein.

[1] Cf. Vernon L. Wharton, *The Negro in Mississippi, 1865-1890* (New York: Harper and Row, 1965); Kenneth M. Stampp, *The Era of Reconstruction, 1865-1877* (New York: Alfred A. Knopf, 1966); and Joel Williamson, *After Slavery: The Negro in South Carolina During Reconstruction, 1865-1877* (Chapel Hill: University of North Carolina Press, 1965). C. Vann Woodward deemphasizes racism's virulence in the immediate postbellum. In his view Bourbon and mercantile factions were naturally competing for post-redemption control. Both were neutral toward the Negro until the

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competing explanations are often merged, with racism cited as the underlying motivation behind *inefficient* post-bellum developments in southern agriculture: the fall in average farm size, the rise of sharecropping, and the transfer of crop liens to country stores.

The remainder of this paper cites post-bellum agricultural contracts supporting the applicability of a new theory of agricultural tenancy choice. Evidence and theory combined imply that the rise of tenancy should have *increased* southern agricultural productivity, *cet. par.* Thus the post-bellum fall in southern agricultural productivity cannot be directly attributed to the rise of tenancy. Space limitations prevent consideration of the efficiency implications of country stores within this paper, but the extensive competition among stores for the southern rural trade makes an appeal to their alleged monopolistic depredations of questionable fruitfulness.[2] By elimination, the fall in available supplies of agricultural capital (occasioned by the Civil War) and labor (occasioned by emancipation) emerges as the likely explanation of the precipitous fall in southern relative income between 1860 and 1880.[3]

THE IMMEDIATE POSTBELLUM

Effective emancipation in the cotton South forced a hasty reorganization of the black labor force to secure the harvest. Planters generally reinstituted antebellum financing arrangements with surviving factors and offered money wages or crop shares plus specified rations and garden rights to freedmen for resumption of slave-style work gang employment in the cotton fields. Alonzo T. Mial's 1866 contract with twenty-seven blacks to work his Wake County, North Carolina plantation is typical in its specification of the length of the

rise of serious agrarian protest in the 1880's made Negro disfranchisement mutually desirable to forestall future third party movements. See his *Reunion and Reaction* (Boston: Little, Brown, 1966).

[2] The major historical treatments of southern country stores are united in finding an absence of evidence of monopoly profits or of monopolistic control in the stores' records. See Jacqueline P. Bull, "The General Merchant in the Economic History of the New South," *Journal of Southern History,* XXVIII (February 1952), pp. 37-59; Thomas D. Clark, *Pills, Petticoats, and Plows: The Southern Country Store* (Norman: University of Oklahoma Press, 1964); Harold Woodman, *King Cotton and His Retainers* (Lexington: University of Kentucky Press, 1968).

[3] Employing a Cobb-Douglas agricultural production function, however, Stanley Engerman concluded that increased inefficiency in southern farming contributed at least as much to the relative income decline as war-time destruction. "Some Economic Factors in Southern Backwardness in the Nineteenth Century" (unpublished, University of Rochester).

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Reid, "Sharecropping As An Understandable," 106–107.

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.53 - Sharecropping in History and Theory

Joseph D. Reid, Jr.

ARTICLE	Sharecropping in History and Theory
JOURNAL	Agricultural History 49, no. 2 (1975)
EXCERPT	Original journal pages 426-427
JSTOR	https://www.jstor.org/stable/3741281

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JOSEPH D. REID, JR.

SHARECROPPING IN HISTORY AND THEORY

Sharecropping, in which a tenant applies his labor to another's land in return for a share of the crop, has persisted as a major organizational form in agriculture. But why it has persisted and what its persistence implies for agricultural efficiency is yet undecided. Adam Smith believed that share tenants would work hard, but would slight "improvement of the land . . . because the [land] lord, who laid out nothing, was to get one-half of whatever it produced."[1] Alfred Marshall went beyond Smith and reasoned that the share-tenant would stint his daily labor as well: "For, when the cultivator has to give his landlord half of the returns to each dose of capital and labor that he applies to the land, it will not be to his interest to apply any doses the total return to which is less than twice enough to reward him."[2] Marshall's geometric proof of his conclusion carried the day, and most subsequent writers concurred in his condemnation of sharecropping as wasteful.[3] In particular, historians of the postbellum South concurred: because of its inherent inefficiencies or because of its entwinement with an insidious crop lien system, "the result of this tenant system is poor agriculture, exhausted soils, small crops, poor roads, decaying bridges, unpainted homes, and unkept

JOSEPH D. REID, JR., is Assistant Professor of Economics at the University of Pennsylvania. Previous versions of this paper have benefited from comments by members of the Economic History workshops at Yale University, Indiana University, the University of Maryland, and the University of Pennsylvania, and by Robert Fogel, H. Gregg Lewis, Donald McCloskey, T. W. Schultz, and many others.

1 *The Wealth of Nations* (New York: Modern Library, 1937), 367.

2 *Principles of Economics*, 8th ed. (London: Macmillan, 1964), 535–36.

3 Ibid., 536, note 1. See Dale W. Adams and Norman Rask, "Economics of Cost-Share Leases in Less Developed Countries," *American Journal of Agricultural Economics* 50 (November 1968): 935–42; P. K. Bardhan and T. N. Srinivasan, "Cropsharing Tenancy in Agriculture: A Theoretical and Empirical Analysis," *American Economic Review* 61 (March 1971): 48–64; J. Bhagwati, *The Economics of Underdeveloped Countries* (New York: McGraw-Hill, 1966), 152–57; T. W. Schultz, *Transforming Traditional Agriculture* (New Haven: Yale University Press, 1965), 167–68; and references cited in Steven N. S. Cheung, *The Theory of Share Tenancy* (Chicago and London: University of Chicago Press, 1969), chap. 3.

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yards."[4] The facts of sharecropping, however, did not support Marshall's conclusion: landowners' returns from sharecropped land were somewhat higher, not lower, than their returns from rented land; the ratio of labor to land and the average yield were at least as high on sharecropped land; and the ratio of labor to land fell, rather than rose, as the tenants' share rate increased.[5]

Not only are the consequences of sharecropping now clearer, but so are the conditions of sharecropped production. Share contracts from China, for example, reveal that share-tenants and landlords agreed upon the intensity of labor's input and the crops to be grown, as well as the amount of land to be sharecropped and the share rate (or rates on different crops).[6] Share contracts in the postbellum South and in Iowa likewise stipulated: (1) the amount of land to be sharecropped, (2) the share for each crop, (3) the land for allowed crops, including the requirements that the tenant plant all of the land and appropriately cultivate and harvest the crops, (4) tenant and landlord payment shares for and maintenance duties with respect to cooperating inputs (such as implements, work animals, and fertilizers), (5) responsibilities for land improvements (primarily duties relating to the maintenance and improvement of fences, hedges, irrigation ditches, fertility, and barns), and (6) penalties for noncompliance.[7] The specific terms of Southern and Chinese contracts (share rates, landlord and tenant obligations, and so forth) varied with time, location, and tenant. Contracts usually ran for a year, but they were generally renewed.[8]

[4] John L. Coulter, "The Rural Life Problem of the South," *South Atlantic Quarterly* 12 (1913): 63, quoted in C. Vann Woodward, *Origins of the New South: 1877–1913* (Baton Rouge: Louisiana State University Press, 1970), 408.

[5] See Cheung, *Theory of Share Tenancy*, 55–61; D. Gale Johnson, "Resource Allocation Under Share Contracts," *Journal of Political Economy* 58 (April 1950): 111–23; C. H. H. Rao, "Uncertainty, Entrepreneurship, and Sharecropping in India," ibid. 79 (May/June 1971): 578–95; Roger L. Ransom and Richard Sutch, "The Ex-Slave in the Post-Bellum South: A Study of the Economic Impact of Racism in a Market Environment," *Journal of Economic History* 33 (March 1973): 131–48; and Donald L. Winters, "Tenant Farming in Iowa, 1860–1900: A Study of the Terms of Rental Leases," *Agricultural History* 48 (January 1974): 130–50.

[6] Cheung, *Theory of Share Tenancy*, 75–79.

[7] Joseph D. Reid, Jr., "Sharecropping as an Understandable Market Response: The Post-Bellum South," *Journal of Economic History* 33 (March 1973): 106–30; Winters, "Tenant Farming in Iowa," 134–45. See my "Ante-Bellum Southern Rental Leases," *Explorations in Economic History* (forthcoming) for evidence that antebellum share contracts were similarly detailed.

[8] Cheung, *Theory of Share Tenancy*, 77–83; Reid, "Sharecropping as an Understandable Market Response"; Winters, "Tenant Farming in Iowa," 135, says Iowa share terms "did not, however, reveal regional variations or temporal changes." Winters is silent on the renewal rate of Iowa share leases. Although Marshall analyzed sharecropping under fixed, immutable tenure, he recognized that his assumption was

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.54 - An Evaluation of the Freedmen's Bureau in Florida

Joe M. Richardson

ARTICLE	An Evaluation of the Freedmen's Bureau in Florida
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EXCERPT	Original journal pages 223-224
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AN EVALUATION OF THE FREEDMEN'S BUREAU IN FLORIDA

by Joe M. Richardson

Like any controversial subject, the Freedmen's Bureau is difficult to evaluate. Nearly any generalization applied to that federal agency requires qualification. It possessed some undesirable features, but it had many redeeming traits and much of its work is deserving of commendation. Furthermore, the organization of the Bureau was flexible enough to enable it to adapt to and meet local needs. Therefore, its value in any locale depended to a large extent on the character and competency of the Assistant Commissioner and local agents. The Bureau officials in Florida were, in general, a creditable group and their accomplishments are worthy of praise. A *New York Times* correspondent wrote in June, 1866, that both whites and Negroes spoke highly of Florida Assistant Commissioner Thomas W. Osborn. Not only was he an "upright and efficient officer," they said, but as a general thing his subordinates were "men of honor and respectability."[1] The Steedman-Fullerton investigation of early 1866, which was obviously intended to discredit the Bureau, gave Florida a favorable report.[2] Even conservative newspapers frequently expressed approval of the Bureau. The editor of the conservative Tallahassee *Floridian* wrote in May, 1866, "we doubt whether the duties of the Bureau could have been administered by anyone more acceptably, alike to the blacks and whites, than they have been by Col. Osborn. . . . Few could have done better —many might have done worse."[3]

One of the earliest and most laudable of the Bureau activities was feeding the destitute freedmen and refugees. From June,

1. Florida had five assistant commissioners, but one of them, Rufus Saxon, never served in the state. The other four, Thomas W. Osborn, John G. Foster, John T. Sprague, and George W. Gile, were all respected by Florida whites. *New York Times*, June 25, 1866.
2. On April 11, 1866, at a time when Congress was attempting to strengthen the Bureau, President Johnson sent two carefully selected men, Generals J. B. Steedman and J. S. Fullerton, to investigate Bureau activities. The investigators found abuses and some corruption, but Florida received a favorable report. George R. Bentley, *A History of the Freedman's Bureau* (Philadelphia, 1955), 125-30.
3. Tallahassee *Semi-Weekly Floridian*, May 25, 1866.

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1865, to December, 1868, over 760,000 rations were issued in Florida at a cost of $102,699.45; this in a state which, in 1867, had a Negro population of only 72,666. This was a substantial amount of food. For example, in June, 1868, the agent for Leon and Wakulla counties issued 146,362 pounds of pork and 159,983 pounds of meal.[4] Undoubtedly the distribution of food prevented starvation and extreme deprivation not only among the Negroes but among some whites. As late as 1867 it was reported that 500 whites were dependent on the Bureau at least six months out of the year.[5]

Contrary to popular opinion the Bureau in Florida did not support the Negro in idleness. Of course, some of the freedmen as well as whites sought to take advantage of government provisions to avoid work. Assistant Commissioner Osborn reported in November, 1865, that in some towns the drawing of rations was becoming schemingly professional. This was remedied by an order to Florida agents to inform the freedmen that rations would not be distributed after December, 1865, even though such action would necessarily cause some suffering.[6] By 1867, the issue of provisions was limited almost wholly to the poor in hospitals and asylums.[7] However, 1868 witnessed an inferior cotton crop and many supplies were issued to prevent starvation. There is little evidence that the Bureau agents profited personally from the rations.

Another phase of the Bureau's relief activities was the operation of hospitals. The Florida medical department was never large but it did render important service. In 1865 the pest-stricken Negroes were assisted by the establishment of pest houses in towns and villages, and by a systematic campaign of vaccination the Bureau helped control a small-pox scourge that was

4. Junius E. Dovell, *Florida: Historic, Dramatic, Contemporary,* 4 Vols. (New York, 1952), II, 544; William Watson Davis, *Civil War and Reconstruction in Florida* (New York, 1913), 451; *House Executive Documents,* 39th Cong., 1st Sess., No. 70, 276, 2nd Sess., No. 1, 640; Monthly Reports of Assistant Commissioner, July, 1866-December, 1868; Records of Tallahassee, 1866-1868, in Records of Bureau Refugees, Freedmen and Abandoned Lands, Florida, National Archives. Cited hereafter as Bureau Records, Florida, National Archives.
5. Dovell, II, 544.
6. Asst. Comm. T. W. Osborn to Comm. O. O. Howard, November 30, 1865, Bureau Records, Florida, National Archives.
7. *House Executive Documents,* 40th Cong., 2nd Sess., No. 1, 677.

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.55 - Labor Militancy and Black Grassroots Political Mobilization in the Louisiana Sugar Region, 1865-1868

John C. Rodrigue

ARTICLE	Labor Militancy and Black Grassroots Political Mobilization in the Louisiana Sugar Region, 1865-1868
JOURNAL	The Journal of Southern History 67, no. 1 (2001)
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Labor Militancy and Black Grassroots Political Mobilization in the Louisiana Sugar Region, 1865–1868

By JOHN C. RODRIGUE

IN EARLY AUGUST 1868 THE FREEDMEN'S BUREAU AGENT FOR IBERVILLE Parish, Louisiana, Charles E. Merrill, was called upon to mediate one of the countless labor disputes that occupied much of his and other bureau agents' time. In this instance, Merrill investigated the complaint of John Williams, a freedman and the "head laborer" on Belle Grove plantation, who claimed that his employer, Henry Ware, had dismissed him "on account of his political opinion." Merrill ultimately concluded that Williams's dismissal did not involve his political views. Nonetheless, because political and labor conflicts had become inseparable in the highly charged atmosphere surrounding the 1868 presidential campaign, Merrill found it necessary to remind the local justice of the peace, James C. Adamson (whom Williams had at first evidently petitioned without success), that planters must not be allowed to use their authority as employers to interfere with their workers' political rights. "Mr. Ware has no right to discharge any of his laborers on account of their political opinion," Merrill lectured Adamson, adding that "[i]f the planters carry politics into the fields they will find it bad business." Planters who could not convince freedmen "to join their party by fair and honorable means" were to leave them alone. "If Mr. Ware does not want republican laborers on his plantation, let him pay them in full for the time contracted for, and they will leave his plantation at once," Merrill insisted. "If he wants their labor, let them go to work, without regard to politics."[1]

[1] Charles E. Merrill to James C. Adamson, August 3, 1868 (quotations), and Charles E. Merrill to Henry Ware, August 9, 1868, both in vol. 428, pp. 21–23, Letters Sent, ser. 1842, Agent & Assistant Subassistant Commissioner (hereinafter Agt. & ASAC), Plaquemine, La., Records of the Bureau of Refugees, Freedmen, and Abandoned Lands, Record Group 105 (National Archives, Washington, D.C.) (hereinafter cited as RG 105; unless otherwise noted, all references to RG 105 in this article are to documents generated by the bureau's field offices in Louisiana).

MR. RODRIGUE is an assistant professor of history at Louisiana State University.

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Merrill's sentiments notwithstanding, planters in the Louisiana sugar region and throughout the South would have found it impossible—even had they been so inclined—to let freedmen go to work "without regard to politics."[2] As Eric Foner, Michael W. Fitzgerald, and Julie Saville have convincingly shown, black grassroots political mobilization profoundly shaped labor arrangements on southern plantations in the years after emancipation.[3] Instances of black political mobilization in the South had appeared before the war's end but tended to be dominated at first by the antebellum free black elite and confined largely to urban areas. With the onset of Radical Reconstruction in 1867, by contrast, this mobilization expanded to include the mass of former plantation slaves, who formed political organizations, held rallies and engaged in debate, registered and voted en masse, and banded together for self-defense and to preserve internal unity. These activities injected politics into questions concerning the freedmen's working lives, as conflict over seemingly mundane aspects of plantation routine underscored the larger contest over decision-making authority between former slaveholders and freedmen. Black politics transformed the social landscape by shifting the balance of power on the plantations. In the fluid labor markets of early Reconstruction, it even tilted that balance—albeit briefly—in the freedmen's favor.

While it is true that black grassroots political mobilization altered southern labor arrangements, most scholarly attention has focused on how this development unfolded in the cotton South, where the freedmen's success in rejecting gang labor and in gaining access to land had unintended consequences. The various forms of sharecropping and tenancy that came to dominate in cotton production, whatever their much-debated origins, eventually undermined the very solidarity that

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The author thanks Michael W. Fitzgerald, Gaines M. Foster, Sylvia D. Frank, and four anonymous reviewers for the *Journal of Southern History* for helpful comments on earlier versions of this article.

[2] The Louisiana sugar region included the parishes (counties) of Ascension, Assumption, Iberville, Jefferson, Lafourche, Plaquemines, St. Bernard, St. Charles, St. James, St. John the Baptist, St. Mary, Terrebonne, and West Baton Rouge.

[3] Eric Foner, *Nothing but Freedom: Emancipation and Its Legacy* (Baton Rouge and London, 1983), esp. Chap. 3, and *Reconstruction: America's Unfinished Revolution, 1863–1877* (New York and other cities, 1988); Michael W. Fitzgerald, *The Union League Movement in the Deep South: Politics and Agricultural Change During Reconstruction* (Baton Rouge and London, 1989); and Julie Saville, "Grassroots Reconstruction: Agricultural Labour and Collective Action in South Carolina, 1860–1868," *Slavery and Abolition*, XII (December 1991), 173–82; Saville, *The Work of Reconstruction: From Slave to Wage Laborer in South Carolina, 1860–1870* (Cambridge, Eng., New York, and Melbourne, 1994); and Saville, "Rites and Power: Reflections on Slavery, Freedom and Political Ritual," in Sylvia R. Frey and Betty Wood, eds., *From Slavery to Emancipation in the Atlantic World* (London and Portland, Ore., 1999), 81–102.

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.56 - Justice Miller's Reconstruction: The Slaughter-House Cases, Health Codes, and Civil Rights in New Orleans, 1861-1873

Michael A. Ross

ARTICLE	Justice Miller's Reconstruction: The Slaughter-House Cases, Health Codes, and Civil Rights in New Orleans, 1861-1873
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Justice Miller's Reconstruction: The *Slaughter-House Cases*, Health Codes, and Civil Rights in New Orleans, 1861–1873

By MICHAEL A. ROSS

"All persons born or naturalized
in the United States, and subject
to the jurisdiction thereof, are citizens
of the United States and of the
State wherein they reside. No State shall
make or enforce any law which
shall abridge the privileges or immunities of citizens
of the United States; nor shall any State deprive
any person of life, liberty, or property, without
due process of law; nor deny to any person within its
jurisdiction the equal protection of the laws."
—The Fourteenth Amendment, Section One

FEW DECISIONS BY THE UNITED STATES SUPREME COURT HAVE BEEN more criticized than the *Slaughter-House Cases*. Of the Court's nineteenth-century opinions, only *Dred Scott* v. *Sandford* and *Plessy* v. *Ferguson* have been more vigorously attacked by historians and legal scholars. For over a century, both conservative and liberal historians have taken issue with the 1873 *Slaughter-House* decision. The majority opinion and its author, Justice Samuel Freeman Miller, have become lightning rods for censure in the tragic unraveling of Radical Reconstruction. In the *Slaughter-House Cases* the Supreme Court began to limit the positive effects that the Fourteenth Amendment might have had upon the lives of African Americans. Specifically, the Court narrowly interpreted the Fourteenth Amendment's privileges or immunities clause. Defined broadly, that clause might have given the federal government greater powers to protect the civil and natural rights of African Americans from discriminatory and violent acts.

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THE JOURNAL OF SOUTHERN HISTORY
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In the *Slaughter-House Cases* the Supreme Court could have ruled that the Fourteenth Amendment's privileges or immunities clause meant that the federal government had the power to protect, from infringement by state governments, citizens' basic rights—both those enumerated in the Bill of Rights and other fundamental rights such as the right to pursue an occupation. By declining to do so, the Court left to southern state governments the responsibility of protecting the rights of African Americans. "By strangling the privileges or immunities clause in its crib," one scholar remarked, the Court either purposefully or negligently left the freed men and women at the mercy of their former masters.[1] A historian of the Supreme Court lamented in the 1960s that "the only thing slaughtered in the Slaughterhouse cases was the right of the Negro to equality." [2]

In debates over *Slaughter-House*, historians, jurists, and law professors have repeatedly raised two key questions. First, they have debated whether or not Justice Samuel Miller's interpretation of the Fourteenth Amendment's privileges or immunities clause is correct. The growing consensus on that issue is that Miller's opinion ignored the intention of many of the framers of the Fourteenth Amendment that the privileges or immunities clause should protect, against the actions and laws of the states, the guarantees contained in the Bill of Rights.[3]

[1] Akhil Reed Amar, "The Bill of Rights and the Fourteenth Amendment," *Yale Law Journal*, CI (April 1992), 1259.

The author would like to thank William Barney, Peter Coclanis, Paul Kens, William Leuchtenburg, Roger Lotchin, and John Semonche for their comments on this essay.

[2] Leo Pfeffer, *This Honorable Court: A History of the United States Supreme Court* (Boston, 1965), 200.

[3] For critics of Miller's position on the privileges or immunities clause see Michael Kent Curtis, "Resurrecting the Privileges or Immunities Clause and Revising the *Slaughter-House Cases* Without Exhuming *Lochner*: Individual Rights and the Fourteenth Amendment," *Boston College Law Review*, XXXVIII (December 1996),1–106; Michael Kent Curtis, *No State Shall Abridge: The Fourteenth Amendment and the Bill of Rights* (Durham, N.C., 1986); Michael Conant, "Antimonopoly Tradition Under the Ninth and Fourteenth Amendments: *Slaughter-House Cases* Re-examined," *Emory Law Journal*, XXXI (Fall 1982), 785–832; Amar, "Bill of Rights and the Fourteenth Amendment," 1193–1284; Richard L. Aynes, "On Misreading John Bingham and the Fourteenth Amendment," *Yale Law Journal*, CIII (October 1993), 57–104; Bernard Schwartz, *A History of the Supreme Court* (New York and Oxford, 1993), 159; William E. Nelson, *The Fourteenth Amendment: From Political Principle to Judicial Doctrine* (Cambridge, Mass., and London, 1988), 155–68; and Harold M. Hyman, "Slaughter-house Cases," in Leonard W. Levy, Kenneth L. Karst, and Dennis J. Mahoney, eds., *Encyclopedia of the American Constitution* (New York and London, 1986), 1687–88. For the view that the Fourteenth Amendment did not incorporate the Bill of Rights see Charles Fairman, "Does the Fourteenth Amendment Incorporate the Bill of Rights? The Original Understanding," *Stanford Law Review,* II (December 1949), 5–139; Felix Frankfurter's concurring opinion in *Adamson* v. *California*, 332 U.S. 46 (1947), at 59–68; Raoul Berger, *Government by Judiciary: The Transformation of the Fourteenth Amendment* (Cambridge, Mass., and London, 1977), Chap. 8; and Berger, "Incorporation of the Bill of Rights in the Fourteenth Amendment: A Nine-Lived Cat," *Ohio State*

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.57 - The Fourteenth Amendment and the Transformation of Civil Rights

Christopher W. Schmidt

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CHRISTOPHER W. SCHMIDT

The Fourteenth Amendment and the Transformation of Civil Rights

This article traces two genealogies of civil rights*, one of a concept, the other a term. At the time of the drafting and ratification of the Fourteenth Amendment, the term civil rights became associated with a concept of rights that had featured in antebellum struggles over the place of free people of color in American society. Republican lawmakers turned to this newly essential term of racial governance to make the case that freedom required government protect certain fundamental rights—such as the right to make contracts, hold property, and testify in court— but that beyond these rights racial discrimination might be permissible. After Reconstruction,* civil rights *took on different connotations, and by the mid-twentieth century the term became synonymous with racial antidiscrimination policy generally. Yet the Reconstruction concept of civil rights retained a vestigial presence in Fourteenth Amendment doctrine. Twentieth-century jurists revived this partially forgotten concept for the same reasons it had resonated during Reconstruction: because it justified expanded legal protections against racial discrimination while simultaneously justifying limits on those protections. Tracing the history of the two genealogies of civil rights offers a new perspective on the legacy of Reconstruction on modern American law.*

Early in Reconstruction, *civil rights,* a term with a long if rather amorphous lineage in American and English history, became the focal point for a national debate about the nature of interracial democracy in the United States. This debate produced landmark federal legislation and the Fourteenth Amendment, both of which reflected a functional consensus that civil rights designated a discrete collection of rights that constituted the essential conditions of freedom; that they included, at minimum, the right to make contracts, to buy and sell property, to testify in court, and to protection of physical security; and that in a nation without slavery, these rights could not be denied because of an individual's race. African American activists and their white allies went further, arguing for a broader

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understanding of civil rights, one that included other rights that were also fundamental to human freedom, such as the right to vote and access public accommodations.

This concept of civil rights was not new. The idea that certain rights were more fundamental than others and that racial discrimination should be prohibited when these fundamental rights were at stake, even if it might be permissible elsewhere, was integral to the lives of free African Americans before Emancipation. They experienced a patchwork of rights protections in which the success of their claims to equal treatment varied across time and place. This resulted in frustrations and humiliations but also, as recent historical scholarship has shown, opportunities for free blacks to successfully demand and exercise their rights.[1] When antebellum lawmakers debated the legal rights of free people of color, some also drew on the idea of differentiated categories of rights and argued that racial discrimination should be prohibited for the most fundamental of rights but not necessarily for other categories of rights.[2]

Reconstruction brought two new developments to the history of civil rights: the emergence of a single term—civil rights—for this category of fundamental rights; and the elevation of the contest over these rights into a national crisis. In the crucible of a national debate over federal protection of the newly emancipated, lawmakers and activists settled on a label for the concept, a development that clarified, focused, and strengthened legal reform efforts, while also narrowing their scope. In 1866, Congress passed its first Civil Rights Act and then the Fourteenth Amendment, which was widely understood to prohibit states from racial discrimination in the distribution of civil rights. In 1875, Congress passed another Civil Rights Act, this one premised on the idea that access to public accommodations was also a fundamental right and a basic condition of freedom, and therefore the federal government should banish racial discrimination in this realm of society. When the Supreme Court struck down this law, one of the reasons it gave was that access to public accommodations was not a "civil right" and therefore Congress lacked authority to regulate in this area.[3] Americans debated what exactly went into this category, but that there was a category of civil rights and that it included only the most fundamental of rights was a point of broad agreement. The primary role that the category civil rights played during the Reconstruction era was as a language of limitation.

By the late nineteenth century, however, the term became detached from the concept. When political actors, jurists, and racial justice activists referenced "civil rights," they rarely did so to delineate the fundamental

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.58 - The Ku Klux Klan During Reconstruction: The South Carolina Episode

Herbert Shapiro

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THE KU KLUX KLAN DURING RECONSTRUCTION: THE SOUTH CAROLINA EPISODE

A focal point of historical controversy about Reconstruction has been the role of the Ku Klux Klan. Racists have pointed to the Klan as an example of the courage with which white Southerners resisted the supposed horrors of Reconstruction while those who resist the racist position, despite differences in their appraisals of Reconstruction, have joined in condemning the Klan for its violence and disregard of lawful government. For both the racist and the supporter of civil rights the Ku Klux Klan stands as a symbol, "either a glamorous or sinister symbol" as Francis Simkins wrote, "for the arousal of issues of race, religion and patriotism in which all Americans . . . are vitally and perennially concerned."[1]

This paper attempts to advance the work of separating the actuality of the Ku Klux Klan from the aura of myth that has surrounded it. Attention is focused on the Klan in South Carolina, a major center of Klan activity and the scene of the Federal Government's most serious effort to curb the organization.

The most thorough study of the Ku Klux Klan in South Carolina has been made by Francis B. Simkins. Simkins sought to dispel some of the romanticism that has enveloped the organization. He wrote that study proved the Klan "was hardly so important, or so definite, or so attractive an organization as popular tradition would have us believe." He set out to "prove how truly indefinite and undramatic, and even unimportant the South Carolina Klan was." He asserted that the Klan was political in purpose, that the Klan's activities were aimed "against the Negro as a citizen—one attempting to be a voter and at times, the social equal of other men—rather than against the Negro as a violator of law or the infringer upon the rights of other men." Simkins dealt extensively with the violence that was engaged in by the Klan. He believed that on the whole the Klan was a movement of the

[1] Francis B. Simkins, "New Viewpoints of Southern Reconstruction", *Journal of Southern History*, V (February, 1939), 50.

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poorer classes, that although some respectable South Carolinians belonged, the organization was a result of the urge of poor whites to eliminate economic competition. Simkins declared that "one must lose complete faith in Southern chivalry to believe that South Carolinians of standing could have committed the horrible crimes of which the Klan was actually guilty."[2]

How valid are the conclusions reached by Simkins in his study of the South Carolina Klan? What does a re-examination of the evidence with regard to South Carolina indicate about the Klan's general significance? In the present writer's judgment serious modification of some of the conclusions reached in previous studies is called for.

I

The Klan took its first step toward organization in South Carolina during 1868 when General George Gordon, Grand Dragon of the Tennessee Klan, sent an emissary, R. J. Brunson, to Rock Hill, South Carolina to form an organization in that area. The Klan appeared in the midst of the Grant-Seymour Presidential election campaign, in which control of the national administration, as well as local offices, was at stake. The Klan attempted to create an atmosphere of terror in which Negro voters would be eliminated and victory in a crucial contest thereby assured for the Democrats. The Klan resorted to murder. At least eight Negroes were killed in incidents ranging across three counties. Of particular importance were the slayings by the Klan of James Martin and B. F. Randolph. Martin, who had been a school teacher, was a member of the State House of Representatives from Abbeville County. Randolph, a Presbyterian minister who had previously served as an assistant superintendent of education under the Freedman's Bureau, was a member of the State Senate from Orangeburg County. According to witnesses, Randolph's assassination had been called for by D. Wyatt Aiken, Democratic leader in Abbeville County. Testimony was given that Aiken urged the Democrats of Anderson County "never to suffer this man Randolph to come in your midst;

[2] Francis B. Simkins, "The Ku Klux Klan in South Carolina, 1868-1871", *Journal of Negro History*, XII (October, 1927), 618.

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.59 - The Origins of Southern Sharecropping

Ralph Shlomowitz

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RALPH SHLOMOWITZ

THE ORIGINS OF SOUTHERN SHARECROPPING

During the past few years there has been an outpouring of literature on the economic history of the postbellum American South and important contributions have been made to our understanding of the institutional structure of the postbellum rural economy and to the nexus between this institutional structure and the performance of the postbellum rural economy.[1] One of the main focuses of this recent work has been the study of labor arrangements between planters and the emancipated black workers, usually called freedmen, and, more explicitly, the investigation of the causes and consequences of the labor arrangement called sharecropping.[2] However, despite this not inconsiderable research effort, the mechanism of the transition to the system of sharecropping remains obscure. That such an important gap in our knowledge about the postbellum South exists has been recognized by a number of prominent scholars. For example, in a review article on recent contributions to the literature of the postbellum South, Harold D. Woodman has stated: "We know . . . that various forms of tenancy grew up in the South, but the details concerning how and precisely when this took place remain

RALPH SHLOMOWITZ is Senior Lecturer in Economic History at Flinders University of South Australia. He would like to thank Stanley Engerman, Robert Fogel, Donald McCloskey, Joseph Reid, and T. W. Schultz for their comments on earlier drafts of this paper. Financial support was provided by National Science Foundation grants GS-3262 and GS-27262.

1 See Stephen J. DeCanio, *Agriculture in the Postbellum South: The Economy of Production and Supply* (Cambridge, Mass,: The MIT Press, 1975); Robert Higgs, *Competition and Coercion: Blacks in the American Economy, 1865–1914* (New York and London: Cambridge University Press, 1977); Roger L. Ransom and Richard Sutch, *One Kind of Freedom: The Economic Consequences of Emancipation* (New York and London: Cambridge University Press, 1977).

2 The term "labor arrangement" will be used in this paper to refer to the whole set of stipulations about pay and conditions of work that were included in the employment package. In particular, the term will cover the type of payment scheme under which labor is rewarded (a stipulated wage, a share of the crop, etc.) and the way in which labor is organized (in gangs, individual family units, etc.). Thus, the term "sharecropping" will refer to a labor arrangement by which individual family units, in payment for their labor on a separate parcel of land, receive a share of the output produced on that parcel of land.

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shrouded and obscure" and he has suggested that the "transition from slavery to freedom deserves far more attention than it has been given by any of the new historians."[3]

The objective of this paper is to investigate the mechanism of transition to the sharecropping system. The paper extends the evidential base on which to study this subject by using an important, but largely untapped, unpublished primary source, namely, the monthly and annual reports and the labor contracts of the Bureau of Refugees, Freedmen, and Abandoned Lands, usually referred to as the Freedmen's Bureau.[4] The Freedmen's Bureau was created by Congress in 1865 to supervise the disposition of abandoned or confiscated lands and property, to issue rations, clothes, and medicine to destitute refugees and freedmen, and to approve and to enforce labor contracts. The task of supervising labor contracts lasted from 1865 to 1868 and during this period the Bureau assisted in the negotiation of several hundred thousand labor contracts.

The structure of the paper will be as follows. In the second section, use is made of the monthly and annual reports of the officials of the Bureau to discuss the working of the contract labor system. In the third section, the sample of labor contracts is analyzed. In the fourth section, the mechanism of transition to the sharecropping system is analyzed. Finally, in the fifth section of this paper, the broader significance of this issue will be discussed. Combining theory and evidence from a number of historical case studies diverse with respect to the difference in technologies among crops and in cultures among peoples, some general conclusions are suggested about how institutions, such as the way field labor is organized on plantations, adjust in response to changes in the ownership of property rights in man, such as the abolition of slavery and indentured labor.[5]

In giving the Freedmen's Bureau the power to supervise labor contracts, Congress envisaged that the Bureau would undertake the role of umpire in ensuring that the contracts reflected the free interplay of

[3] "Sequel to Slavery: The New History Views the Postbellum South," *Journal of Southern History* 43 (November 1977): 523, 550.

[4] See Reports of Conditions and Operations, and Labor Contracts, Bureau of Refugees, Freedmen, and Abandoned Lands, Record Group 105, National Archives, Washington. The records of the Assistant Commissioner for the State of South Carolina contain 294 monthly reports and 23 annual reports, and over 10,000 labor contracts. For the purpose of this study, a five-percent sample of the labor contracts for South Carolina was taken. This amounted to 640 contracts covering over 6,000 freedmen (the excess of the number of freedmen over the number of contracts is explained by the fact that planters usually contracted with their labor force as a group).

[5] For a summary of the dissertation on which this paper is based, see Ralph Shlomowitz, "The Transition from Slave to Freedman Labor Arrangements in Southern Agriculture, 1865–1870," *Journal of Economic History* 39 (March 1979).

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.60 - The Transition from Slave to Freedman Labor Arrangements in Southern Agriculture, 1865-1870

Ralph Shlomowitz

ARTICLE	The Transition from Slave to Freedman Labor Arrangements in Southern Agriculture, 1865-1870
JOURNAL	The Journal of Economic History 39, no. 1 (1979)
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This increase in demand was associated with a rising demand for products that used clerical labor as an input, with institutional changes that increased the demand for record keeping, and with the decline in the cost of clerical output that resulted from technological innovation in office production. The most notable of the technological advances in the office was the typewriter, but there were myriad other innovations (mechanical and organizational) which reduced the unit cost of clerical output.

These technological advances did not merely expand the demand for clerical labor. They transformed work processes in such a way as to increase the demand for a different kind of labor than had previously been hired in offices. The new techniques of office production caused a change in the nature of the skills required of clerical labor. Prior to the development of the modern, mechanized office, the skills required of clerical workers had been specific to the individual firm and many clerical jobs were entry points to job ladders with managerial functions attached. When skills are firm–specific, it is expected that the firm would be very concerned with worker turnover and would seek to hire clerical workers expected to have a long work life with the firm. With increased mechanization and routinization of clerical tasks, the skills required of clerical workers became much more firm–general. This allowed employers to hire for such jobs the young, educated women who had high expected turnover and who desired clean, high-status employment. The rapid development of commercial education (both public and private) greatly aided this change in the sex composition of the growing clerical work force.

The dramatic increase in women's share of clerical employment was due to both supply and demand shifts. We observe an expansion in both the demand for female clerical labor and the supply of educated young women during the period when there were rapid increases in the employment of young women in clerical jobs. Did demand or supply shifts dominate? The timing of the growth of the relevant magnitudes suggests an answer. The secular growth in women's labor force participation and in women's educational attainment was relatively smooth throughout the period. Women's participation in clerical employment grew more rapidly and shows a more volatile pattern. The evidence on timing leads to the conclusion that whereas long–term growth in female clerical employment was undoubtedly related to the secular growth in female labor supply, short-term fluctuations were more clearly related to demand factors, especially to technological advances.

ELYCE J. ROTELLA, *San Diego State University*

The Transition from Slave to Freedman Labor Arrangements in Southern Agriculture, 1865–1870

This thesis is concerned with the reorganization of work on cotton plantations that was associated with the emancipation of the slaves. Immediately after the Civil War, most planters attempted to revive the centralized plantation using gang labor. The most popular modes of contracting were either for individual members of the plantation labor force to receive a stipulated wage or for the plantation labor force to receive collectively a share of the crop produced on the plantation. The centralized plantation, however, did not prove to be viable with free labor. Beginning in the late 1860s and continuing during successive decades, the plantation system was completely restructured. The vast majority of plantations eventually were subdivided into parcels of land that were operated separately by individual families either for a stipulated rent or, more often, for a share of the crop. The latter arrangement became known as sharecropping.

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The focus of the thesis is on the mechanism of transition by which the centralized plantation using gang labor became the decentralized plantation where separate tenant families operated their own parcels of land. It is argued that this change very often was not made directly—in many cases, the transition was effected by an intermediate stage which was called by contemporaries "the squad system." Under this system, a number of subgroups of the plantation labor force, called squads, worked for a share of the crop on the separate parcel of land allotted each squad. Thus, three types of the share agreement are distinguished: the collective share arrangement for the whole plantation labor force; the collective share arrangement for subgroups, or squads, of the whole plantation labor force; and the share arrangement for individual family units. It is suggested that the transformation of the plantation system and the associated change in the way field labor was organized is closely related to the process of scaling down the size of the collective share arrangement.

More generally, the thesis is concerned with the economic and social causes and consequences of these new work arrangements. The evidence used in interpreting these issues was expanded by using the unpublished records of the Freedmen's Bureau. As part of their many duties, Bureau officials supervised the negotiation of labor contracts between 1865 and 1868. Thousands of these labor contracts have been preserved at the National Archives. For the purposes of this thesis, a 5 percent random sample was taken of the labor contracts for South Carolina. This amounted to 640 contracts, covering over 6,000 freedmen. The number of freedmen covered by these contracts exceeds the number of contracts because employers usually contracted with their labor force as a group.

The structure of the thesis is as follows: Chapter 1 focuses on the issues addressed by the thesis; the data base on which this set of issues can be interpreted; a conceptual framework on "team work and incentives"; an analysis of the essential and special features of the slave system of work organization; and an exploratory analysis of the nexus between the way slave labor was organized and the social structure and culture of the slave community. In Chapters 2 and 3, the institutional structure of the Bureau-supervised labor market is investigated. Unpublished reports of the sub-assistant commissioners of the Bureau in South Carolina are used to evaluate the degree of competition in the labor market; the extent of the enforcement of these labor contracts by Bureau officials; the demand by employers and freedmen for the services of the Bureau in approving labor contracts; and the labor turnover of the freedmen. The sample of Bureau-approved labor contracts is used to analyze the incidence of various payment schemes that were tried both for field labor and for artisans and foremen. The contracts also provide other information, for example, information on the value of field labor during the year.

The main conclusions of these two chapters is that these contracts were enforced. The extraordinary diversity of contracts within each district and between districts, and the often detailed and subtle arrangements made between planters and freedmen, make it unlikely that these were merely *pro forma* contracts having little or no relationship to actual behavior. The evidence suggests that the contracts were largely determined by the free interplay of market forces. The most popular mode of contracting for field labor was the collective share arrangement for the whole plantation labor force. The considerable variation in the fraction of the crop received by freedmen for their labor is explained by considering the share as a variable that was negotiated by employers and freedmen. For example, evidence is presented showing that the share was inversely related to the quality of land and to the number of work animals per laborer. It is argued that the collective share agreement was not simply imposed by planters on the freedmen. Rather, it was widely adopted as it proved satisfactory to both planters and freedmen. From the point of view of planters, it was considered to be a group incentive scheme. Supervision costs could be reduced since freedmen would have incentives to engage in self–policing and reciprocal monitoring of each other's performance. From the point of view of freedmen, the share agreement was considered a way of obtaining a measure of independence from planter control not possible under the wage system.

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.61 - Florida Courts and the Disputed Election of 1876

Jerrell H. Shofner

ARTICLE	Florida Courts and the Disputed Election of 1876
JOURNAL	The Florida Historical Quarterly 48, no. 1 (1969)
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FLORIDA COURTS AND THE DISPUTED ELECTION OF 1876

by JERRELL H. SHOFNER*

WHEN THE ELECTION of November 7, 1876 failed to resolve the presidential contest between Republican Rutherford B. Hayes and Democrat Samuel J. Tilden because of uncertain results in Florida, Louisiana, and South Carolina, both national parties sent prominent representatives to the three southern capitals to observe and work for their partys' interests. With Tilden only one electoral vote short of victory, the Republicans needed every one of the nineteen disputed votes. Because there had been less violence and corruption in Florida and because only a few votes separated the parties, many politicians believed it to be the crucial state. Under Florida law, a state canvassing board was empowered to exercise quasi-judicial authority in its examination of returns from the thirty-nine county canvassing boards. It could rule on the validity of those returns and decide whether or not to exclude them from the count. On the board there were two Republicans—Secretary of State Samuel B. McLin, a Southerner and long-time resident of Florida, and Comptroller Clayton A. Cowgill, an ex-Union army surgeon from Delaware—and one Democrat, Attorney General William Archer Cocke, a Virginian who came to Florida in 1863.

Under influence of the many "visiting statesmen" who crowded into Tallahassee on behalf of the national parties, the canvassing board decided to count the votes for presidential electors first and take up the state elections afterward. The Republican majority of the board, over the protests of the Democratic member, threw out about 2,000 votes and declared a majority of about 924 for the Republican presidential electors. This majority was large enough to assure a victory for the Republican gubernatorial candidate, Marcellus Stearns, who had run several hundred votes behind Hayes. In achieving this result the Republican majority on the canvassing board had acted so unfairly

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that the Democrats sought court action to correct what they believed to be a demonstrable injustice.[1]

The ensuing litigation pertained only to the gubernatorial election, but the Republican presidential victory had been achieved by the same canvassing board methods which the Democrats were attacking. As a result the nation continued to watch Florida developments for several weeks after the canvassing board adjourned and the electoral college met on December 6.

Before the canvassing board convened on November 27, the Democrats had insisted that it should use quasi-judicial powers and rule on the validity of returns. After losing the presidential count by this procedure they found it necessary to change their argument over the state count. George W. Biddle and David W. Sellers, Democratic visiting statesmen from Philadelphia, called on the board to hear evidence. Although the Northerners' view was consistent with precedent, R. B. Hilton, a Democratic elector, and George P. Raney, a Florida Democratic executive committeeman, suggested that the Democrats offer no evidence and refuse to participate in a quasi-judicial count before the state canvassing board. They preferred to insist on a simple ministerial count and seek redress in the courts if the board decided against them.[2] The Northerners were afraid the courts might not act once the board decided and they would have lost the election without a fight.

Samuel Pasco, Democratic state chairman, and other Florida Democrats deferred to the northern attorneys, and the Democrats demanded a full hearing before a quasi-judicial canvassing board. Then, in his last argument before the board on December 5, Sellers denied the board's authority to accept or reject county returns. At that time, his position was contradictory to everything the Democrats had done concerning the electoral count.

When the board decided against the Tilden electors, most of the Northern Democrats left Tallahassee, believing that Florida was lost and the case closed.[3] Former United States Senator

1. Jerrell H. Shofner, "Florida in the Balance: The Electoral Count of 1876," *Florida Historical Quarterly*, XLVII (October 1968), *passim*.
2. Robert B. Hilton to Manton Marble, January 7, 1877, Samuel Tilden Papers, Box 13, New York Public Library.
3. S. G. Thompson to Marble, December 12, 1876, George W. Biddle to

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.62 - Fraud and Intimidation in the Florida Election of 1876

Jerrell H. Shofner

ARTICLE	Fraud and Intimidation in the Florida Election of 1876
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FRAUD AND INTIMIDATION IN THE FLORIDA ELECTION OF 1876

by JERRELL H. SHOFNER

THE PRESIDENTIAL ELECTION of 1876 was the most controversial election in American history. It is remembered because of the extended dispute over its outcome and because it has since been regarded as the end of Reconstruction in the South. The uncertain outcome was due to duplicate electoral certificates from Florida, South Carolina, and Louisiana. These were the only Southern states which still had Republican governors. By various combinations of fraud and violence, both Democratic and Republican parties in these three states had managed to secure electoral certificates for their respective presidential candidates. Samuel J. Tilden, the Democratic candidate, received 184 undisputed electoral votes, and needed only one more for election. Rutherford B. Hayes, the Republican candidate, had only 166. There were nineteen disputed votes in the three southern states and Hayes would have to win all of them if he were to be seated.[1]

The three states suddenly became nationally important and both parties sent prominent men, or "visiting statesmen," to see that their respective party interests were protected. Tempers had been raised to high pitch before the election and with both national parties intriguing to secure the disputed votes, the three Southern capitals were tense with excitement for several weeks. Activities surrounding the election were closely examined and alleged irregularities were reported extensively by partisan speakers and newspapers. Finally, a national electoral commission was established with authority to rule on the validity of the disputed electoral certificates. Since this commission had a majority of Republicans, it decided every case for the Republican candidate. There was considerable Democratic opposition to the decision, but it was finally agreed that Hayes might be seated as President in return for a promise to remove the remaining federal troops from the South. Also, as historians have recently shown, the Southern

1. Paul L. Haworth, *The Hayes-Tilden Election* (Cleveland, 1906), 51-56.

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states yielded in the expectation that the Republican-dominated Congress would appropriate substantial funds for internal improvements.[2]

In Florida, the gubernatorial election was held at the same time as the presidential election. The state elected a Democratic governor, ending Republican control of that office through the political process. George F. Drew of Ellaville in Madison County was peacefully inaugurated on January 2, 1877.[3] Although Drew was elected by the Democratic party, many economically influential Republicans were satisfied with him.[4] The effect of this Democratic victory was summed up by an elderly Negro observer of the inauguration who remarked prophetically, "Well, we niggers [*sic*] is done."[5]

For a time during the election campaign it had seemed that violence might break out in Florida. The people were aroused over this election as never before. Scarcely an honest election had been held in the state during the past ten years. Both parties were experienced in assaulting ballot boxes and each was alarmed that the other might "steal" the election. The parties were nearly equal in voting strength and only a few votes could determine the election's outcome. The Republicans were mostly Negroes with a small number of Northern whites and a few Southerners. Many of the white Republicans were federal or state office holders, but others were engaged in various economic activities. The Democrats, with few exceptions, were white natives or property-holding whites recently arrived from the North.

Bitter press attacks and violent, incendiary speeches were delivered by both sides and added to the tense situation created by mutual suspicions of fraud. William Watkins Hicks, state superintendent of public instruction and editor of the Republican Fernandina *Observer*, and William U. Saunders, a Negro ex-barber from Baltimore, stumped the state for the Republicans, urging the Negroes to get out and vote "early and often." Other-

2. C. Vann Woodward, *Reunion and Reaction: The Compromise of 1877 and the End of Reconstruction* (Boston, 1951), *passim.*
3. *New York Times,* January 4, 1877; Jacksonville *Florida Sun,* December 31, 1876.
4. Frank B. Sherwin to William E. Chandler, January 3, 1877, Chandler Papers, Library of Congress; Jacksonville *Florida Union,* January 5, 15, 1877.
5. Jacksonville *Florida Sun,* January 4, 1877; *Savannah Morning News,* January 5, 1877.

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.63 - Mission Impossible: Reconstruction Policy Reconsidered

Brooks D. Simpson

ARTICLE	Mission Impossible: Reconstruction Policy Reconsidered
JOURNAL	Journal of the Civil War Era 6, no. 1 (2016)
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REVIEW ESSAY

Mission Impossible

Reconstruction Policy Reconsidered

BROOKS D. SIMPSON

A central theme of Reconstruction historiography is the consideration of Reconstruction policy as debated, adopted, and implemented at the federal level. Inherent in that exercise is the contemplation of whether policymakers, working within the limits of what was possible politically, could have pursued a different course that would have met the twin objectives of sectional reconciliation and the promotion of a new birth of freedom and opportunity for African Americans liberated during the course of the American Civil War. To do that, scholars have to wrestle with counterfactual scenarios, an exercise with which not all of them are comfortable. Yet historians are also ill at ease with the alternative conclusion that, given the circumstances, the end result was not only likely but also inevitable. Thus speculation about alternatives goes hand-in-hand with a critique of what happened, for how can one offer criticism of what was done unless one outlines an alternative that would have improved upon the historical result?

A simple glance at Reconstruction historiography reveals that historians have always evaluated Reconstruction policy and policymakers according to what was possible, what was preferable, and what actually happened—at least according to the scholar in question. By now that tale has been told so often that one risks boring the reader in the retelling of the familiar trinity of Dunningites, revisionists, and post-revisionists, an exercise that blurs differences within each grouping to sharpen the contrast between them. To practitioners of the Dunning school, who prized sectional reconciliation, policies founded on the federal protection of black rights were doomed because they were built upon the shaky foundation of black capability and equality. Reconstruction was a misguided experiment that imperiled sectional reconciliation among American whites by engaging in irresponsible social engineering to elevate incapable former slaves to an ill-fated equal inclusion in the body politic. Republican efforts in the

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1860s to create state regimes where blacks voted and held office were exercises in futility and never should have been undertaken.

Revisionists, who embraced the goal of black equality and opportunity, passionately disagreed. They deplored the failure of Reconstruction policy to achieve those laudable ends: they were far less concerned about sectional reconciliation. While few revisionist scholars questioned the objective of restoring civil governments, some believed it would have been far better for Congress to have confiscated planter land and redistributed it among the freedpeople to provide them with the economic foundations of freedom and opportunity. To such scholars, Reconstruction was an opportunity lost. And then there are the post-revisionists, a term very much associated with understandings of Reconstruction politics and policy. Post-revisionists tend to stress the inherent conservative tendencies in policymakers and political institutions and express skepticism that the goals of Reconstruction embraced by the revisionists were likely to be achieved under the circumstances. Nevertheless, as their name implies, post-revisionists are rarely understood apart from the revisionists they evaluate, who in turn continue to war against the pernicious impact of the Dunning school on public understandings of Reconstruction.

Such a thumbnail description risks distorting the various ways scholars have addressed Reconstruction policy both as it was and as it might have been, rendering the whole exercise problematic. After all, one of the unfortunate consequences of any exercise in historiography is that it leads some scholars to forego reading the works of the people under discussion in favor of a brief characterization of their work. This is especially true when it comes to Reconstruction, for any exploration of Reconstruction history almost inevitably includes a treatment of Reconstruction historiography and memory, with various scholars announcing their intention to overturn long-held assumptions about the period that have shown an amazing durability in the minds of many Americans. It is also true that all too often studies of Reconstruction policy are as much about what could have happened as what did happen, with the road not taken weighing heavily on the minds of some scholars, while others ponder exactly what was possible alongside what happened.

Over the last fifteen years historians have had cause to reflect anew on the possibilities and pitfalls of Reconstruction policy—under the shadow of 9/11, the wars in Afghanistan and Iraq, the arduous effort to build new self-sustaining regimes, and the resurgence of terrorism that threatens to seize control of nation states. Recent events have reminded scholars interested in the ebbing of northern support for Reconstruction of just how difficult it can be to sustain a broad-based public commitment to a policy that

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.64 - From the Barrel of a Gun: The Politics of Murder in Grant Parish

Joel M. Sipress

ARTICLE	From the Barrel of a Gun: The Politics of Murder in Grant Parish
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From the Barrel of a Gun: The Politics of Murder in Grant Parish

By JOEL M. SIPRESS*

Easter Sunday, 1873, found about 150 black men, many armed with shotguns and rifles, encamped at a former plantation stable in Colfax, Louisiana. The stable served as the Grant Parish Courthouse, and the men had come to defend it. They found themselves besieged that Sunday morning, outnumbered and outgunned. For over a week, white conservatives intent upon smashing black political and military power in Grant had been pouring into Colfax. For more than two years, conservatives had been locked in a bitter struggle with radical Republicans for control of the parish. On April 13, 1873, that struggle was settled by force.

The battle began shortly after noon. For two hours, conservatives exchanged shots with black radicals entrenched behind crude breastworks. The conservatives opened fire with a small cannon that they had commandeered from a Red River steamboat, but to no avail. Searching for an avenue from which to attack, a scouting party discovered that the radical line could be outflanked by crawling along the riverbank. They also found a gap in the levee through which they could fire the cannon.

Around mid-afternoon, the cannon opened fire through the gap in the levee while thirty men, led by a former plantation overseer, charged up from the riverbank. The freedmen's line broke in a panic. Routed, some tried to escape to the river or the nearby woods. A portion of the conservative forces set out in pursuit and slaughtered all they caught. About sixty other freedmen re-

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treated into the courthouse itself. For about an hour, the assailants fired upon the former plantation stable. The freedmen shot back through the building's window cracks. Finally, the conservatives forced a black man taken prisoner earlier to set fire to the courthouse roof. The building ablaze, men poured out to surrender, only to be met by a deadly volley.

About forty black men were taken prisoner during the Colfax battle. As nightfall approached, the conservative forces' commander visited and promised to free the captives in the morning if they would stop their "damned foolishness" and return home to tend their crops.[1] After dark, however, a group of younger men marched the freedmen off in pairs for execution. Only a handful of the prisoners lived to tell the tale.

That same evening, a Red River steamer pulled up to Colfax. A young man, "armed to the teeth," came aboard and informed the passengers that if they "wanted to see dead niggers, here was a chance, for there were a hundred or so scattered over the village and the adjacent fields." He graciously offered to give the passengers a guided tour.[2]

The Colfax Massacre of 1873 was, in the words of Eric Foner, "the bloodiest single instance of racial carnage in the Reconstruction era." For many historians, the Easter Sunday battle has come to symbolize the extremism of post-Civil War Southern racism. Joe Gray Taylor's *Louisiana Reconstructed,* the standard account of Reconstruction Louisiana, ascribes violence of the type perpetrated at Colfax to "the race hatred which had long existed among most white Louisianians" and suggests that "Negro-hating white yeoman farmers" were to blame for the savagery of the

[1]Testimony of Andrew Graham, *New Orleans Republican*, May 24, 1874; testimony of Benjamin Brim, ibid, March 3, 1874; testimony of Alabama Mitchell, ibid, February 28, 1874.

[2]*New Orleans Times*, April 16, 1873. Between seventy and one hundred black men are estimated to have died at the Colfax Massacre. Three of the white assailants died. About a dozen were wounded. The Supreme Court's infamous *United States v. Cruikshank*, 92 U.S. 542, arose from the Colfax Massacre case. In *Cruikshank*, the court limited the constitutional protection of civil and political rights by ruling that the federal government had no power to punish private individuals who violated the rights of other citizens. Robert J. Kaczorowski, *The Politics of Judicial Interpretation: The Federal Courts, Department of Justice and Civil Rights, 1866-1876* (New York, 1985), 205-16. The only in-depth published study of the Colfax Massacre is a 1930 white supremacist account. Manie White Johnson, "The Colfax Riot of April, 1873," *Louisiana Historical Quarterly,* 13 (1930): 391-427. A brief account is found in Ted Tunnell, *The Crucible of Reconstruction: War, Radicalism, and Race in Louisiana, 1862-1877* (Baton Rouge, 1984), 189-93.

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.65 - 'I Must Learn Now or Not at All': Social and Cultural Capital in the Educational Initiatives of Formerly Enslaved African Americans in Mississippi, 1862-1869

Christopher M. Span

ARTICLE	'I Must Learn Now or Not at All': Social and Cultural Capital in the Educational Initiatives of Formerly Enslaved African Americans in Mississippi, 1862-1869
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"I MUST LEARN NOW OR NOT AT ALL": SOCIAL AND CULTURAL CAPITAL IN THE EDUCATIONAL INITIATIVES OF FORMERLY ENSLAVED AFRICAN AMERICANS IN MISSISSIPPI, 1862–1869

by
Christopher M. Span*

> Before the Civil War there wasn't a free school in the state, but under the Reconstruction government, we built them in every county. . . . We paid to have every child, Negro and white, schooled equally. Today, they've cut down on the educational program, and discriminated against the Negro children, so that out of every educational dollar, the Negro child gets only 30 cents.
>
> George Washington Albright, *The Daily Worker*, 1937

In June 1937, and at the age of ninety-one, an ex-slave from Holly Spring, Mississippi by the name of George Washington Albright was interviewed by the *Daily Worker* regarding his legislative and educational activities during and after the Civil War.[1] Albright proffered the above statement and his intentions seemed unmistakable. Cognizant of Mississippi blacks' existing educational opportunities and their extremely vulnerable and denigrated status, he wanted to inform the public of the important contributions African Americans—in particular former slaves—played in the establishment of the state's first comprehensive public school system. Albright knew firsthand that the status of African Americans in the years immediately after slavery and in contemporary Jim Crow Mississippi was markedly different. Prior to the end of the Reconstruction era and the rise of state-sanctioned segregation, Mississippi blacks—despite the overwhelming majority being former slaves—viewed freedom optimistically and had rights that extended beyond second-class citizenship. For nearly a decade after the war they voted, became landowners, determined and negotiated their working conditions, and were leaders and contributors in their local communities, counties, and the entire state.

As an active agent in the processes promoting education in postwar Mississippi, Albright recalled the principal public school initiatives he and the other black delegates elected to the state's 1868 constitutional convention wanted for Mississippi. The state's public schools were to be free, all-inclusive, and most importantly equitable, irrespective of

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the child's gender, race, class, or previous condition of servitude.[2] In attempting to achieve this aim, Albright was convinced that his generation—through their determination, appreciation of the value of education, and limited resources—collectively laid the groundwork for the rise of universal public schooling in postwar Mississippi. They provided the financial and "sweat equity" for the establishment and continuation of the first schools, served as teachers, solicited northern-born teachers to migrate to Mississippi, and pressured state legislators to consider their educational ambitions and needs as newly freed citizens. During the war Albright, himself barely literate, served as one of the first teachers for formerly enslaved African Americans in Mississippi. As the war commenced, his first class was taught under a shade tree, then in an abandoned barn, and thereafter in a church. "The state had no teachers," contended Albright, "until we brought in teachers from the North, men and women, white and Negro."[3] To Albright, this generation of formerly enslaved African Americans was not a powerless citizenry forced to accept the status quo as did their descendants in Jim Crow Mississippi. On the contrary, they were an empowered and contributing force not just in their own educational pursuits, but in the advancement of universal education for all children in postbellum Mississippi.

The editors of the *Daily Worker* virtually dismissed Albright's recollections of his and his entire generation's pro-active stance in the first decade after slavery. While the communist editors thought his commentary to be quite animated, they questioned the accuracy of Albright's memories; especially regarding the legislative and educational impact former slaves had on the state's postbellum political economy.[4] However, Albright's retrospection concerning public education in Mississippi—despite his occasional misnomers—was sharply accurate and epitomized W. E. B. Du Bois' assertion that "public education for all at public expense was, in the South, a Negro idea."[5]

Contemporary scholarship indicates that both during and after the Civil War, opportunities for schooling African Americans throughout the South arose primarily from the initial efforts and enthusiasm of African Americans themselves.[6] This was especially true in Mississippi. Prior to the end of the war, before the concerted arrival of northern religious or freedmen aid organizations, such as the American Missionary Association (AMA) or the Freedmen's Bureau, African Americans in Mississippi initiated the process of organizing schools wherever possible, and educating themselves. On abandoned property throughout the state, free, freed, fugitive, and enslaved African Americans, as early as 1862, established churches and schoolhouses for individual and collective improvement. Imperfectly literate former slaves and the state's few literate or semiliterate free blacks served as these schools' first teachers, and previously enslaved African Americans—young, old, male and female—were their initial pupils. Fortuitously, these combined grassroots initiatives served as the catalyst for Mississippi's first tax-supported comprehensive public school system.

For the historian of African American education, particular questions arise pertaining to the collective educational goals of formerly enslaved African Americans in general, and in Mississippi in particular. For example, from where did this motivation stem, and was it in fact a collective sentiment? What practical or tangible goals did this oppressed people envision for their acquired learning? What purposes would it serve in their new lives as free people? Despite being the majority in the state's population, how did an impoverished, overwhelmingly illiterate, and extremely vulnerable group of former slaves establish a

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.66 - Blueprint for Radical Reconstruction

John G. Sproat

ARTICLE	Blueprint for Radical Reconstruction
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Blueprint for Radical Reconstruction

By JOHN G. SPROAT

CRUSADES, LIKE POLITICS, SOMETIMES MAKE STRANGE bedfellows. Few antislavery Radicals in 1860 would have guessed that a member of Buchanan's cabinet, an outspoken critic of Lincoln and the Republican party, would become, by 1862, a valuable and enthusiastic ally. But then, few men ever were ingenious enough to predict the course Edwin M. Stanton might follow from one day to the next. Even today it is difficult to assess the degree of Stanton's Radical Republicanism. Although he had been a Democrat since his college days and had served in a Democratic cabinet, it must be assumed that he considered himself a Republican during his tenure as Secretary of War under Lincoln and Johnson. He was in complete sympathy with the Radicals' demands for a vigorous prosecution of the war and for the emancipation and military employment of Negro slaves. Yet, he never committed himself clearly to the economic program of the Republican party: the high tariff, the Homestead Act, national banking, and a sound currency. Though he used the considerable power of the War Department to aid Republican candidates in wartime elections, he used it also to benefit War Democrats, many of whom could never quite believe that he had really deserted his old party.

Stanton, then, was a true Union man, a partisan of any politician who believed, as he did, that the Southern Confederacy was a conspiracy of traitors and that total war was necessary to destroy it. In his hands, emancipation and the military use of Negroes became weapons of war. Seldom did he consider the long-term implications of the war; his concern centered on the immediate task of defeating the Confederacy with every means

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at hand. But he had prescience enough to realize that emancipation, though it would eliminate the problem of slavery, would at the same moment create the problem of the freed Negroes. This new problem would not lie dormant until war's end; it would rise to confront the Union armies and the government from the moment the first refugee sought sanctuary within the Northern lines. Impetuous and forceful, Stanton could not sympathize with Lincoln's cautious approach to the problem. It was natural that he should turn to the Radical leaders in Congress for support in waging total war against the South and in dealing with the refugees. An alliance thus was formed which lasted throughout the war and reconstruction years, and in 1869, shortly before Stanton's death, the grateful Radical politicians persuaded President Grant to appoint him to the Supreme Court.

In December 1861 Charles Sumner learned that Stanton considered slavery an evil to which he was unalterably opposed.[1] Prior to that critical month, however, Stanton had said and done little to indicate any strong antislavery views on his part. In his youth, it is true, he had come in contact with Benjamin Lundy and several Western abolitionists, and no doubt they made an impression on his young mind. Moreover, he had been a somewhat inconsistent, though occasionally outspoken, opponent of slavery expansion during the two decades before the war. Once launched upon a highly successful career in law, however, Stanton found little time or inclination to express his opinions on the subject. As with his interest in politics in general, his concern with abolitionism was distinctly perfunctory until the sectional conflict flared into the turbulence of Buchanan's last months in office. Appointed Attorney General by Buchanan during the cabinet crisis of December 1860, he appeared publicly to support the President's policies, to be a loyal Democrat whose aims were the preservation of the Union and the avoidance of bloodshed. But even as he was advising a Democratic president, he was hobnobbing with Sumner and other influential Republican politicians. Seemingly, this intimacy with the leaders of the incoming administration paid off, for Stanton was appointed to replace Simon Cameron as Secretary of War just a year later.

[1] Edward L. Pierce, *Memoir and Letters of Charles Sumner* (4 vols., Boston, 1877-1893), IV, 63.

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.67 - Eric Foner's 'Reconstruction' at Twenty-Five

Luke Staszak, Kate Masur, Heather Andrea Williams, Gregory P. Downs, Thavolia Glymph, Steven Hahn, and Eric Foner

ARTICLE	Eric Foner's 'Reconstruction' at Twenty-Five
JOURNAL	The Journal of the Gilded Age and Progressive Era 14, no. 1 (2015)
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ERIC FONER'S "RECONSTRUCTION" AT TWENTY-FIVE

What follows is a written reproduction of a forum held at the annual meeting of the Organization of American Historians in San Francisco in April 2013. The forum commemorated the twenty-fifth anniversary of the publication of Eric Foner's *Reconstruction: America's Unfinished Revolution, 1863–1877*. Kate Masur (Northwestern University) organized and introduced the discussion, and the commentators in order of speaking were the following:

- Heather Andrea Williams, The University of Pennsylvania
- Gregory P. Downs, City College of New York and the Graduate Center of the City University of New York
- Thavolia Glymph, Duke University
- Steven Hahn, The University of Pennsylvania
- Eric Foner, Columbia University

The written version on the following pages largely preserves the feel and tone of the original oral presentations by the contributors. However, given the opportunity for reflection inherent in the published word, the authors and editors have made some small changes to enhance readability.

INTRODUCTION BY LUKE STASZAK

It is likely obvious to most of this journal's readership why it is worthwhile to publish a retrospective on Eric Foner's *Reconstruction: America's Unfinished Revolution, 1863–1877*. As Kate Masur outlines in the following pages, *Reconstruction* has proven a critical addition to the historical record and to the historiographical canon of this seminal era of American history. The participants in this forum describe the impact of Foner's book on scholarship on Reconstruction. But first, the editors have invited me to write an introduction to this forum and explain my own relationship to Foner's work and this journal.

I have served as an editorial assistant for this journal while in the Masters in the Teaching of History program at the University of Illinois at Chicago and transcribed, edited, and compiled the following piece for publication. While working on this piece, I completed student teaching, obtained my master's degree, and was hired as a high school social studies teacher in the Chicago Public Schools system. I am committed to making history relevant and interesting to all levels of students—a sentiment I know the editors of this journal also hold.

I would like to take the opportunity to share an anecdote about a personal connection of mine to Foner's *Reconstruction*. In a serendipitous moment, upon arrival for my first day of student teaching in the spring of 2014, I found that the students had just finished their study of the Civil War and had begun a unit on Reconstruction. One of the major texts already assigned included an excerpt from *Reconstruction*. I would like to think that I gained some major historical "street-cred" with my new students that first day when

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I told them that I had recently exchanged e-mails with the author whom they were reading. While this was entirely coincidental, and "street-cred" is almost certainly an amusing exaggeration, I will fondly remember that the first connection I helped high schoolers make to history was largely due to my intimate familiarity with Foner's *Reconstruction*.

As I took over this class and began leading my students from Reconstruction deeper into the Gilded Age and Progressive Era, I frequently thought of a statement made by Foner in the forum that follows. He said that Reconstruction should be seen as a "historical process, which goes well beyond that time period—a process by which the United States tries to come to terms with the destruction of slavery." This is a message that resonated with me personally, because through my own course of study I have certainly found the following to be true: late nineteenth- and early twentieth-century American history (or all American history) is inseparable from the legacies of slavery and abolition. So, I made a deep effort to make this message part of my curriculum, and I found that my students not only understood this outlook, but that it helped make Reconstruction and the GAPE more interesting and relevant to their interests and lives.

Beyond my classroom and the scope of the pages that follow, it is my hope that this journal continues to be a platform for debating what, exactly, the legacies of slavery and abolition are. I think the forum that follows is essential reading on this topic. Finally, it is also my hope that this journal remains committed to producing content that is readily relevant to teaching and classrooms of all levels. I appreciate the journal's openness to a teacher's voice such as mine.

KATE MASUR

Welcome to this session on the twenty-fifth anniversary of Eric Foner's *Reconstruction: America's Unfinished Revolution*. This book has been crucially important both for historians of the post-Civil War period and for the field of United States history writ large.

Reconstruction as a historical period is humbling in its complexity, its rawness, its possibilities, and its tragedy. Eric Foner's *Reconstruction*, the book we are here to recognize and celebrate, is humbling, also, for its capacity to bring some order out of the chaos; its comprehensiveness and variegation; its subtle treatment of local, state, and national affairs; and, despite all this diversity, for its narrative, which provides momentum and coherence without lapsing into oversimplification.

Published in 1988, the book enjoyed great acclaim at the time and won many of the profession's most prestigious prizes, including the OAH's Avery O. Craven Prize, the Francis Parkman Prize, and the Bancroft. Another mark of the book's importance, however, is its extraordinary longevity. Together with the abridged version, the three wonderful essays in *Nothing but Freedom*, and other published work, Foner's *Reconstruction* has fundamentally shaped our collective understanding of the United States after slavery.[1] The existence of this panel, which was commissioned by the OAH's program committee, is itself a testament to the book's ongoing importance in the field of U.S. history.

Before we hear from the panelists, I will mention several aspects of the book that stand out for me. Eric Foner wrote *Reconstruction* in an era of burgeoning interest in the history of labor and social life. As the book's organizational structure makes

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.68 - Enforcing the Fifteenth Amendment, 1870-1877

Everette Swinney

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Enforcing the Fifteenth Amendment, 1870-1877

By EVERETTE SWINNEY

SINCE 1940 WHEN HOWARD K. BEALE CALLED FOR A RE-EVALUATION of the Reconstruction period in American history, revisionist monographs and articles have been appearing in ever-increasing numbers.[1] Much work, however, remains to be done. For instance, no one has attempted any fundamental research on the federal Enforcement Acts since the days of William A. Dunning and James Ford Rhodes. These Acts, which lay at the heart of the Grant administration's Southern policy, were its response to the South's challenge to the Reconstruction program of the radicals.

Begun in March 1867 and completed by the summer of 1870, the Reconstruction settlement showed signs of crumbling at its foundation even before the edifice was completed. The election of 1868 amply demonstrated the tenuous nature of Republican supremacy upon which the success of the radical program rested. President Andrew Johnson's amnesty proclamations of September 7 and December 25, 1868, restoring the suffrage to most former Confederates did not help matters, and the victory of the Democratic party in 1869 and 1870 at the polls in Virginia, North Carolina, and Georgia was discouraging. But most alarming of all was the way in which the Ku Klux Klan and other similar extralegal bodies were, by violence and intimidation, preventing Negroes from voting.[2]

In the face of these cumulative threats to Republican ascendancy, Congress moved expeditiously, passing within a twelve-month period in 1870-1871 three laws designed to protect the Negro in the enjoyment of his newly-won political and civil rights. The First Enforcement Act, which became law on May 30, 1870, was long and complex. It forbade state officials to discriminate

[1] See Howard K. Beale, "On Rewriting Reconstruction History," *American Historical Review*, XLV (July 1940), 807-27, and Bernard A. Weisberger, "The Dark and Bloody Ground of Reconstruction Historiography," *Journal of Southern History*, XXV (November 1959), 427-47.

[2] See Charles H. Coleman, *The Election of 1868; the Democratic Effort to Regain Control* (New York, 1933); Jonathan Truman Dorris, *Pardon and Amnesty Under Lincoln and Johnson: The Restoration of the Confederates in Their Rights and Privileges, 1861-1898* (Chapel Hill, 1953), 339-61; and James A. Rawley, "The General Amnesty Act of 1872: A Note," *Mississippi Valley Historical Review*, XLVII (December 1960), 480-84.

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among voters on the basis of race or color in the application of local election laws, outlawed "force, bribery, threats, and intimidation" of voters, and made it a misdemeanor to deprive a citizen of "employment or occupation" in order to control his vote. Most important, the law prohibited disguised groups from going "upon the public highways, or upon the premises of another" with intent to interfere with constitutional liberties.[3] The Second Enforcement Act, passed following the disheartening mid-term elections of 1870, extended further the federal control of the voting process. Supervisors of election, to be stationed in cities where election irregularities were considered likely, were to stand guard over and scrutinize registration and voting procedures and to certify returns.[4] The third law, popularly known as the Ku Klux Act, made it a federal offense to conspire to "overthrow . . . or destroy by force the government of the United States" or to conspire to prevent persons from holding offices, serving on juries, enjoying equal protection of the laws, or voting.[5] The three laws provided for extensive enforcement machinery. The President was given authority to call out the army and navy and to suspend the writ of habeas corpus; United States marshals were authorized to use the *posse comitatus*; and federal troops were empowered to implement court orders. In the hope of reducing the effect of local pressures against enforcement, exclusive original jurisdiction in all suffrage cases was reserved to the federal courts.

Historians have been far from favorable in their evaluation of this legislation. William W. Davis, whose study published in 1914 has been somewhat of a standard account of the enforcement program, wrote, "The enactment of the law and its enforcement meant the desertion, for the time being, by the national government of certain principles in political procedure which make working democracy in America a practical possibility." He found "considerable similarity between the arbitrary order and mailed fist in the South during the seventies and the past oppression of Ireland by England, of Bohemia and Italy by Austria, of Finland and Poland by Russia, of Alsace and Lorraine by Germany."[6] His interpretation has been perpetuated in textbooks

[3] *Statutes at Large of the United States,* XVI (1871), 140-46.
[4] *Ibid.,* 433-40.
[5] *Ibid.,* XVII (1873), 13-15.
[6] William W. Davis, "The Federal Enforcement Acts," *Studies in Southern History and Politics; Inscribed to William A. Dunning* (New York, 1914), 205.

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.69 - The Fourteenth Amendment, the Negro, and the Spirit of the Times

Joseph H. Taylor

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THE FOURTEENTH AMENDMENT, THE NEGRO, AND THE SPIRIT OF THE TIMES

Introduction

The Fourteenth Amendment, which was submitted to the states for ratification by the 39th Congress, has been the most debated of all the additions to the Constitution. There has been more debate as to what the framers of the Amendment intended to do than of the original intent of the drafters of the new document at Philadelphia in 1787.

Was the Fourteenth Amendment a great conspiracy?[1] To what extent were its architects under the direct influence of pre-war abolitionism?[2] What was the intent of the majority of the Joint Committee with respect to the civil and political rights of the freedmen?[3] Did this majority intend that racial segregation in schools be outlawed? When faced head-on with this issue 85 years after the ratification of the Amendment, the Supreme Court, after hearing arguments in several cases attacking the then prevailing separate but equal doctrine, propounded a number of questions which would serve as guides to attorneys on both sides of the controversy, and set the cases up for reargument during its next term.[4]

Two of the questions suggested by the court were:

"1 What evidence is there that the Congress which submitted and the State legislatures and conventions which ratified the Fourteenth Amendment contemplated or did not contemplate, understood or did not understand, that it would abolish segregation in the public schools?

"2 If neither the Congress in submitting nor the States in ratifying the Fourteenth Amendment understood that compliance with it would require the immediate abolition of segregation in public schools, was it nevertheless the understanding of the framers of the Amendment

(a) that future Congresses might, in the exercise of their power under section 5 of the Amendment, abolish such segregation, or

[1]Howard Graham, "The Conspiracy Theory of the Fourteenth Amendment," 47 *Yale Law Journal.* (1937), 371.

[2]Jacobus tenBroek. *The Anti-Slavery Origins of the Fourteenth Amendment.* (Berkeley, 1951).

[3]Herbert E. Flack. *The Adoption of the Fourteenth Amendment.* (Baltimore, 1908).

[4]*Brown v. Board of Education,* 345 U. S. 972, (1953).

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(b) that it would be within the judicial power, in the light of future conditions, to construe the Amendment as abolishing such segregation of its own force?''

The attempts to provide satisfactory answers to the questions submitted by the Supreme Court led to extensive research into the history of the adoption and ratification of the Fourteenth Amendment. The Legal Defense and Educational Fund of the National Association for the Advancement of Colored People secured the services of lawyers, historians, psychologists, and sociologists. The research efforts of this highly talented group blanketed the country from coast to coast. The efforts were on an interracial and largely voluntary basis.

The results of the investigations of some of the nation's most outstanding leaders in the legal profession and in the social sciences and the humanities have been published in *Brief for Appellants* in three cases; for *Appellees* in two cases; and for *Petitioners and Respondents* in two other cases.[5] The document is most illuminating and represents one of the most thorough studies ever made of the intent of the framers of the Constitution and the drafters of subsequent amendments.

The three Civil War Amendments were the first to make specific provisions for their enforcement. ''Congress shall have the power to enforce, by appropriate legislation, the provisions of this article.'' Neither the Executive nor the Supreme Judiciary stood very high in the estimation of the Congress in the years immediately following Appomattox. There, of course, were the violent conflicts with Presidents Lincoln and Johnson over the reconstruction of the lately seceded States—conflicts that were first echoed in the famous Wade-Davis Manifesto of 1864 (a slap at Lincoln),[6] and culminating in the impeachment of President Johnson in 1868.

The Dred Scott decision; the continued presence of Chief Justice Taney on the Supreme Court bench; the belief that the High Court was not in sympathy with the reconstruction programs of the congressional majority; and an awareness of the Court's power to do ''mischief'' precluded the assign-

[5]Distributed by the NAACP Legal Defense and Educational Fund.
[6]*The American Annual Cyclopedia.* (1864), 310.

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.70 - Rutherford B. Hayes and the Politics of Discord

Frank P. Vazzano

ARTICLE	Rutherford B. Hayes and the Politics of Discord
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Rutherford B. Hayes and the Politics of Discord

Frank P. Vazzano

Keen students of the Gilded Age recognize that the bitter partisanship surrounding the presidency of George W. Bush presents nothing new in American politics. Unfortunately, comparatively few others do. This article examines the question of the presidency of Rutherford B. Hayes of Ohio, who won office in 1876 in much the same fashion as did Bush in 2000, that is, with fewer popular votes than his Democratic opponent. Hayes' opponent was Samuel Jones Tilden, the governor of New York and, like Hayes, a reformer. A deceptively dull campaign preceded the most controversial election in American history when three Southern states, Florida, Louisiana, and South Carolina, submitted dual sets of votes, one for each candidate. Questions also arose about Oregon's vote because a Republican office holder there served as an elector—in violation of the U.S. Constitution.

Hayes won the disputed votes of all four states after a congressionally appointed Electoral Commission of fifteen men—eight of them Republicans—declared for the Republican candidate. However, the controversy over the partisan decision generated four years of enmity on the part of the Democrats and even some Republicans who questioned Hayes' legitimacy when he failed to do their bidding. Even so, the new president carried through on significant pieces of his campaign platform and bequeathed to Republicans a party sufficiently united to win the next presidential election. Surprisingly, the quiet Ohioan became a more forceful president than had been assumed.

Hayes, however, had no easy time of it. The blatantly partisan voting of the Electoral Commission (eight to seven on each contested state) led the Democrats to cry foul.[1] Threats of Hayes' assassination and the possibility of a congressional filibuster to prevent an official counting of the returns swept the capital.[2]

Frank P. Vazzano is a professor of history at Walsh University.

1. Lawyers for each candidate argued their case before the commissioners in February 1877. After deliberating on each state, the Electoral Commission ruled Florida for Hayes on 9 February, Louisiana on 16 February, Oregon on 23 February, and South Carolina on 27 February. Ari Hoogenboom, *Rutherford B. Hayes: Warrior and President* (Lawrence, Kans.: University Press of Kansas, 1995), 287–88, 291, 293.

2. Charles Richard Williams, *The Life of Rutherford B. Hayes: Nineteenth President of the United States*, 2 vols. (Boston, Mass., and New York: Houghton Mifflin and Company, 1914), 2: 1–3.

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Against the potentially disastrous backdrop of a presidential interregnum, worried politicos on both sides, in a series of negotiations ending at Washington, D.C.'s Wormley House Hotel, frantically sought a compromise. With Hayes' sanction, some supporters, notably fellow Ohioans James A. Garfield, John Sherman, and Stanley Matthews, met in February 1877 with moderate Southern leaders, including Kentucky's John Young Brown and Georgia's John B. Gordon. Hayes' men asked what concessions they would have to make to ensure his inauguration. The Southerners' frank reply: Withdraw federal troops from the last two "reconstructed" states, Louisiana and South Carolina, appoint a Southerner to Hayes' cabinet, and ensure internal improvements for the war-torn South. With the bargain struck, on 5 March 1877 (4 March fell on a Sunday) Rutherford B. Hayes became the nineteenth president of the United States.[3]

With no overarching peril to divert the public's attention, Hayes' disputed election led to a presidency under constant siege. Confronted from the beginning by a Democratic majority in the House of Representatives and by several U.S. senators who refused to accept his leadership, Hayes found little support for nearly every issue during his single term. Although a loyal Republican, political jealousies, coupled with considerable Northern antipathy toward his plan for post-Civil War reconciliation with the South, frequently left Hayes without a party. Many Republicans agreed with South Carolina's ousted carpetbag governor, Daniel H. Chamberlain, who complained in 1877 that Hayes had betrayed his party and ought to be "driven over, neck, heels and boots, to the Democracy . . ."[4] In addition, patronage-loving Republicans known as Stalwarts, many of them Northerners who had earlier supported the harsh reconstruction of the South, hated the president for trying to reform a scandal-ridden civil service. They considered Hayes' tenure as an unfortunate interlude and assiduously plotted the 1880 re-election of the more tractable Ulysses S. Grant.[5]

Hayes, however, could not claim innocence in all of this. While not as bombastic as some of his more vocal foes, he was nonetheless an ambitious and astute politician in his own right. For instance, when the Ohio Republican Caucus unanimously nominated him for a third gubernatorial term in 1875, he proudly

3. C. Vann Woodward, *Reunion and Reaction: The Compromise of 1877 and the End of Reconstruction* (Boston, Mass.: Little, Brown, 1966), 166–203.

4. Daniel H. Chamberlain to William E. Chandler, 27 December 1877, William E. Chandler Papers, Manuscript Division, Library of Congress, Washington, D.C.

5. Allan Peskin, "Stalwarts and Half-Breeds," in *Historical Dictionary of the Gilded Age*, ed. Leonard Schlup and James G. Ryan (Armonk, N.Y.: M. E. Sharpe, 2003), 466.

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.71 - Federal Enforcement of African American Voting Rights in the Post-Redemption South: Louisiana and the Election of 1878

Lou Falkner Williams

ARTICLE	Federal Enforcement of African American Voting Rights in the Post-Redemption South: Louisiana and the Election of 1878
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Federal Enforcement of African American Voting Rights in the Post-Redemption South: Louisiana and the Election of 1878

By LOU FALKNER WILLIAMS*

A longstanding myth of Reconstruction history is that Pres. Rutherford Hayes's decision to remove U. S. troops from Louisiana and South Carolina shortly after his inauguration in 1877 marked the formal end of federal efforts to enforce the voting rights of African Americans. Weary of the interminable southern problem, the Republican Party abandoned its black constituency throughout the South to the tender mercies of the Democratic "redeemer governments."[1] Although this interpretation has proved "remarkably enduring,"[2] as Justin Nystrom noted in his recent political analysis of postbellum New Orleans, historians have begun to think of Redemption and disfran-

*The author is an associate professor of history at Kansas State University. She teaches courses on southern history, American constitutional history, and the nineteenth-century United States and also chairs the graduate admissions and awards committee.

[1]See for example, William Gillette, *Retreat from Reconstruction, 1869-1879* (Baton Rouge, 1979), 363-80; George C. Rable, *But There Was No Peace: The Role of Violence in the Politics of Reconstruction* (Athens, Ga., 1984).

[2]As recently as 2008, for example, LeeAnna Keith noted that Chief Justice Morrison Waite's opinion in *U. S.* v. *Cruikshank* marked the "end of federal intervention in southern civil rights and voting rights abuses." LeeAnna Keith, *The Colfax Massacre: The Untold Story of Black Power, White Terror, and the Death of Reconstruction* (New York, 2008), 157-58.

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chisement as a process rather than a discrete era that began in 1865 and ended with Hayes's removal of the troops in 1877. The 1879 Louisiana state constitution did not disfranchise the freedmen. Hence there was the ongoing possibility that the federal government would intervene to protect the black franchise. Whites also considered the possibility that they could manipulate the black vote as they believed the Republican Party had done during Reconstruction. Continuing access to federal patronage, moreover, demonstrated that the Republican Party in Louisiana was not entirely defunct.[3] The "elimination" of the black vote, as Michael Perman labels it, was a gradual process that evolved over a twenty-year period. Ballot box stuffing, a voter registration process rife with fraud, and a secret ballot that served as a literacy test all served to discourage African American voters as their numbers diminished.[4] By the time the southern states rewrote their constitutions around the turn of the century—1898 for Louisiana—the U. S. Supreme Court had cleared the way for constitutional disfranchisement with its pro-segregation decisions in *Plessy* v. *Ferguson* and *Williams* v. *Mississippi*.[5]

This paper analyzes the federal judiciary's response to electoral violence in Louisiana during the immediate post-Reconstruction period and confirms that the Republican national government's commitment to African American voting rights did not end with the Compromise of 1877. Nor had the Supreme Court's pinched interpretation of the Fourteenth and Fifteenth Amendments in *U. S.* v. *Cruikshank* and *U. S.* v. *Reese* foreclosed the possibility of successful prosecution in voting rights cases. President Hayes, Attorney General Charles Devens, the Justice Department, federal district attorneys, and federal judges worked together to prosecute electoral offenses and maintain a "free ballot and a fair

[3]On this point see Justin Nystrom, *New Orleans after the Civil War: Race, Politics, and a New Birth of Freedom* (Baltimore, Md., 2010), 187-90; Michael Perman, *Struggle for Mastery: Disfranchisement in the South, 1888-1908* (Chapel Hill, 2001), 9-22.

[4]Perman, *Struggle for Mastery*, 9-22. On the various statutory means of limiting the black vote see J. Morgan Kousser, *The Shaping of Southern Politics: Suffrage Restriction and the Establishment of the One-Party South, 1880-1910* (New Haven, 1974), 49-50, 54-6.

[5]Nystrom, *New Orleans after the War*, 190.

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.72 - Postbellum Reorganization of Southern Agriculture: The Economics of Sharecropping in Tennessee

Donald L. Winters

ARTICLE	Postbellum Reorganization of Southern Agriculture: The Economics of Sharecropping in Tennessee
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Postbellum Reorganization of Southern Agriculture: The Economics of Sharecropping in Tennessee

DONALD L. WINTERS

The abolition of slavery created a situation that demanded a radical restructuring of plantation agriculture in the postbellum South. On small farms before the Civil War the family, sometimes supplemented by one or a few slaves, provided the principal source of labor. Consequently, resumption of production on these units after emancipation necessitated at most only minor adjustments in the organization of labor. Conditions on large units, however, were much different. Plantations had relied almost exclusively on slaves, and emancipation called for a complete reorganization of labor. After a period of postwar instability and experimentation, sharecropping emerged as an acceptable compromise between landowners seeking a system of labor organization and landless farmers seeking a system of land tenure.

Sharecropping offered certain advantages to both landowners and landless farmers.[1] Perhaps the most important feature of a sharecropping arrangement from the landowner's perspective was the inherent incentive for the tiller to remain on the farm until the crop was brought in. Since the produce was divided according to agreed upon proportions, the farmer could obtain his share only if he continued to work on the unit through the

DONALD L. WINTERS is Professor History, Vanderbilt University. This paper was given as the Presidential Address at the Agricultural History Society annual meeting in conjunction with the Organization of American Historians in Reno, Nevada, April 1988. The author wishes to thank James W. Ely, Robert Tracy McKenzie, Leland L. Sage, and Jacque Voegeli for their valuable suggestions on an earlier draft of this paper.

1. Roger L. Ransom and Richard Sutch, *One Kind of Freedom: The Economic Consequences of Emancipation* (Cambridge: Cambridge University Press, 1977), 94–97; Joseph D. Reid, Jr., "Sharecropping as an Understandable Market Response—The Postbellum South," *Journal of Economic History* 33 (March 1973): 106–30.

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entire growing season. The problem of tillers leaving before the harvest, a situation sometimes encountered under cash wages, was thereby largely avoided. The sharecropping system also permitted the landowner, who was sometimes wary of the croppers' ability to operate completely on their own, to oversee the management of the farm. He could reserve for himself control over what was to be produced and how it was to be marketed, while assigning to the cropper the planting, cultivation, and harvesting tasks. Moreover, this arrangement enabled the owner to shift part of the risk of commercial agriculture to the tiller, not an unimportant consideration in the economically volatile postwar period. In these ways, sharecropping provided the planter with a system for securing and retaining labor to work his land, for ensuring proper business practices, and for protecting himself from financial uncertainty.

Landless farmers—newly freed slaves and poor whites alike— also found that sharecropping met several of their needs.[2] Most important, it furnished them with the use of land. Many freedmen thought that upon emancipation the federal government had promised them forty acres and a mule. When this largesse failed to materialize and they were forced to work someone else's land, many elected sharecropping over alternative arrangements.[3] Because sharecropping gave the tiller a small plot of land for which he alone was responsible, freedmen preferred it to the gang-labor system that many planters attempted to install immediately after the Civil War. Under existing circumstances, a share arrangement was more feasible than cash rent because currency was scarce and, in any case, freedmen and poor whites were chronically short of funds. Former slaves and landless whites rarely possessed equipment or workstock, and sharecropping afforded a convenient way for the landowner to supply these essential inputs. The cropper, inexperienced as he often was in commercial matters, also derived benefits proportionate to his share of the proceeds from the owner's business decisions. Sharecropping, therefore, gave freedmen and poor whites access to land under conditions they found acceptable and allowed them, at the same time, to tap the owners' supply of capital and managerial expertise.

Although sharecropping satisfied several of the landowners' and the croppers' needs, the system required a period of adjustment before its

2. Ransom and Sutch, *One Kind of Freedom,* 67, 87–88, 104; Robert Higgs, *Competition and Coercion: Blacks in the American Economy, 1865–1914* (Cambridge: Cambridge University Press, 1977), 45; Gavin Wright, *Old South, New South: The Revolutions in the Southern Economy Since the Civil War* (New York: Basic Books, Inc., 1986), 84–115.

3. According to the estimates of Roger L. Ransom and Richard Sutch for 1880, 80 percent of black farmers were tenants and 68 percent of the black tenants were sharecroppers. See *One Kind of Freedom,* 84.

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.73 - Post-Civil War Southern Agriculture and the Law

Harold D. Woodman

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HAROLD D. WOODMAN

POST–CIVIL WAR SOUTHERN AGRICULTURE AND THE LAW

Economic reconstruction in the South after the Civil War required far more than repairing damaged equipment, restoring neglected fields, and overcoming wartime shortages. It required a complete reordering of a slave society, the adjustment to, or, more precisely, the creation of a free-labor social system, with which neither blacks nor whites had had much experience. This social revolution centered on agriculture which had been and remained the South's leading economic sector, providing most of the region's wealth and employing the largest proportion of its labor force. Although the war brought some social reshuffling as a few gained and others lost fortunes, the distribution of landed wealth in the South remained nearly unchanged at the war's end.[1] Emancipation, of course, destroyed much of the wealth of the planter class, but, as the economists put it, emancipation brought not a loss of wealth to the South but a transfer of wealth from the slaveowners to the former slaves. Or, in more ordinary, and for our purposes, more useful language, the labor force remained, but the social organization that mobilized that labor force disappeared. Economic reconstruction may be seen as the building of a new social organization to replace the one destroyed by war.

Economic reconstruction had to begin immediately; its problems were far more pressing than those of political reconstruction. If people were to eat, they had to work. At the same time the process was long-

HAROLD D. WOODMAN is Professor of History, Purdue University. Research for this article was supported by a Fellowship from the Woodrow Wilson International Center for Scholars.

[1] See Jonathan M. Wiener, "Planter Persistence and Social Change, 1850–1870," *Journal of Interdisciplinary History* 7 (Autumn 1976): 235–60; Kenneth S. Greenberg, "The Civil War and the Redistribution of Land: Adams County, Mississippi, 1860–1870," *Agricultural History* 52 (April 1978): 292–307.

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term, lasting long after political reconstruction officially ended. The transformation of a slave society into one based on free labor took decades, requiring changes in political, social, and economic institutions as well as changes in the perceptions, outlook, expectations, and ideology of the population. This essay is concerned with one important aspect of that transformation—the evolution of the law relating to agriculture.

For the historian, law is a social phenomenon reflecting both the norms and the goals of a society as enunciated by the legislatures and the courts. Although the ideal is that law is always impartial and never arbitrary—it is said that we are a nation of laws, not men—it does not follow, even when reality approaches that ideal, that the law is somehow above the fray, unrelated to social and economic change. If some legal theorists and constitutional historians continue to stress abstract principles and the autonomy of the law and the legal process and if legal education often continues to emphasize fundamental ideas and basic legal skills while ignoring the relationship between law and political economy, most legal historians today seek to trace the connections between social and economic change and the development of the law.[2]

This point of view, which sees law as a form of social control, is especially useful in dealing with the agricultural South after the Civil War. Emancipation made the law of master and slave irrelevant; existing law concerning tenancy and free labor proved incomplete and inadequate to meet the needs of the new social relations. The new body of law altered the antebellum forms of social control and in the process both reflected and molded the new social relationships on the land.

The emphasis in this essay is on what is called the formal law, the enactments of legislatures and the rulings of courts. There are obvious dangers in relying exclusively on formal law when attempting to describe the workings of institutions and the relationships among classes. Some laws are openly flouted because penalties are slight, rarely assessed, or nonexistent. Unenforced laws or laws that are enforced in ways that do violence to the letter and spirit of the laws have far different effects from those that are vigorously and rigorously enforced,

[2] There is a growing literature on the matter. I have found the following to be especially useful: Lawrence M. Friedman, *A History of American Law* (New York: Simon and Schuster, 1973); Friedman, *Contract Law in America* (Madison: University of Wisconsin Press, 1965); James Willard Hurst, *Law and Social Order in the United States* (Ithaca, N.Y.: Cornell University Press, 1977); Mark Tushnet, "A Marxist Analysis of American Law," *Marxist Perspectives* 1 (Spring 1978): 96–116; *Law in American History,* vol. 5 (1971) of *Perspectives in American History,* ed. Donald Fleming and Bernard Bailyn (Cambridge, Mass.: Charles Warren Center, Harvard University), a volume of original essays.

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.74 - Sequel to Slavery: The New History Views the Postbellum South

Harold D. Woodman

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Sequel to Slavery: The New History Views the Postbellum South

By Harold D. Woodman

We know a great deal about political Reconstruction after the Civil War and about the politics of the New South. If the hundreds of studies of the political settlement and its aftermath and of the actors involved have not produced a definitive interpretation of the New South, at least the main outlines of the story are clear. The same cannot be said of the economic history of Reconstruction and the New South. The relatively few studies in this area have not resolved many of the most basic questions of what happened—to say nothing of how and why they occurred. We know that land was not confiscated and distributed to the freedmen (with a few notable exceptions) and that various forms of tenancy grew up in the South, but the details concerning how and precisely when this took place remain shrouded and obscure. Similarly, we know something of the credit system—the stores, the furnishing merchants, the crop liens—but our knowledge of how the system arose, how it changed over time, and how it affected those involved is murky and imprecise. In a word, as Charles B. Dew has noted, "The economic history of the New South remains an underdeveloped area of scholarship."[1] The same might be said of the social history of the postbellum South.

[1] Charles B. Dew, "Critical Essay on Recent Works," in new edition of C. Vann Woodward, *Origins of the New South, 1877–1913* ([Baton Rouge, 1971]), 596–97. Dew also notes that "Despite the obvious importance of this topic, no single work deals comprehensively with Southern agriculture in the postbellum era" (p. 591), a point that had been made twenty years earlier by Woodward (p. 507). Dew's comprehensive 112-page bibliographical essay reveals clearly the overwhelming emphasis that scholars have given to political problems in the post-Reconstruction period. See also Gerald D. Nash, "Research Opportunities in

Mr. Woodman is professor of history at Purdue University. He presented a somewhat different version of this paper to the annual meeting of the Southern Historical Association in Atlanta on November 10, 1976. He acknowledges that he has benefited from the comments of the discussants at that meeting, Eric Foner, Gavin Wright, and Stanley L. Engerman, and those of LaWanda Cox and Eugene D. Genovese, although he doubts that any of them will be completely satisfied with the final version.

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The sad state of scholarship in the social and economic history of the New South stands in marked contrast to that of the prewar period. Few historians are unaware of the enormous contributions to the social and economic history of the antebellum South by scholars such as Kenneth M. Stampp, Stanley M. Elkins, Robert William Fogel, Stanley L. Engerman, Eugene D. Genovese, John W. Blassingame, Herbert G. Gutman, and George P. Rawick—to name but a few. Their work has not simply added to our storehouse of information; it has also provided us with new methods and new perspectives from which to view familiar information. To be sure, these studies do not provide definitive answers. They often contradict one another, and all have elicited sharp critiques; indeed, the criticisms themselves have added immeasurably to our understanding.

During the past decade a growing number of scholars have begun to apply new methods and approaches to the history of the postbellum South. Although much of this work has just begun to appear, it is already clear that we can expect a welcome renewal of interest in the social and economic history of the New South. In this essay I propose to outline the main directions this work is taking, to assess its contributions—and limitations—and to suggest possibilities for further research.

In the two decades since its work has begun to appear the new economic history—or cliometrics—has firmly established itself in the profession. The astounding publicity that accompanied the publication of Robert Fogel and Stanley Engerman's *Time on the Cross*, the startling revisionism of their conclusions, and the vigorous debate that followed have awakened even the most somnolent historians to the existence of a new approach to economic history. The debate over *Time on the Cross* need not detain us except to note that some of the sharpest critics were themselves cliometricians who accepted and advocated the new method even as they criticized its application by Fogel and Engerman.[2] Indeed, the

the Economic History of the South After 1860," *Journal of Southern History*, XXXII (August 1966), 308–24. The scholarship on Reconstruction has a similar emphasis on politics. In a 1965 University of Illinois conference on Reconstruction August Meier outlined some of the key questions concerning the "freedman's economic history." He provided two pages of questions but gave little evidence that work on these matters was being done. August Meier, "Comment on John Hope Franklin's Paper," in Harold M. Hyman, ed., *New Frontiers of the American Reconstruction* (Urbana, 1966), 80–81. Forty years earlier, W. E. B. Du Bois made much the same point: "The whole development of Reconstruction was primarily an economic development, but no economic history or proper material for it has been written. It has been regarded as a purely political matter, and of politics most naturally divorced from industry." *Black Reconstruction in America* (New York, 1971), 721–22.

[2] See Paul A. David *et al.*, *Reckoning With Slavery: A Critical Study in the Quantitative History of American Negro Slavery* (New York, 1976).

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.75 - Tumultuous Times: Tennessee's Passage of the Reconstruction Amendments to the U.S. Constitution

Lucy Dunaway Zeier and Charles D. Zeier

ARTICLE	Tumultuous Times: Tennessee's Passage of the Reconstruction Amendments to the U.S. Constitution
JOURNAL	Tennessee Historical Quarterly 73, no. 2 (2014)
EXCERPT	Original journal pages 90-91
JSTOR	https://www.jstor.org/stable/43746589

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THE TENNESSEE HISTORICAL QUARTERLY

Tumultuous Times: Tennessee's Passage of the Reconstruction Amendments to the U.S. Constitution

BY LUCY DUNAWAY ZEIER AND CHARLES D. ZEIER

They were tumultuous times. The end of the Civil War was in sight but civil unrest was pronounced throughout occupied portions of the south. To many, it seemed anarchy was the rule of the land. Caught in this vortex of economic, political, and social upheaval were the freed men and women of color. Fearing that Southern whites would not adhere to the emancipation proclamation in the post-war period, President Abraham Lincoln actively pursued an amendment to the United States Constitution addressing slavery. Proposed amendments abolishing slavery were introduced in Congress in 1863. These proposals were eventually consolidated into the 13th Amendment, which was ratified in 1865.

After Lincoln's assassination President Andrew Johnson, the former military governor of Tennessee, directed each Southern state to frame a new constitution. By the time Congress went into session in December 1865, every ex-Confederate state had formed constitutions, elected new governments, and sent senators and representatives to Congress in Washington, D.C. Johnson contended that Southern states should reestablish their civil affairs without undo interference from the federal government. Encouraged by Johnson's restoration policies, Southern legislatures passed what came to be known as Black Codes. Their purpose was to reduce the freedman population to a new form of legal servitude. They defined the term "person of color;" prevented African Americans from voting, holding office, and serving on juries; called for the establishment of labor contracts between whites and freedmen; and prohibited inter-racial marriages. Of note, Black Codes were proposed in the Tennessee legislature, but were voted down due largely to vocal Union interests.

Black Codes did not sit well with the largely Republican Congress. It felt

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In 1866, President Andrew Johnson faced the task of "mending the family kettle" of the nation; one key to the mending was passage of the 14th Amendment. Tennessee escaped Reconstruction by ratifying it in July 1866. (*Frank Leslie's Illustrated Newspaper*, June 16, 1866)

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CHAPTER 15 | SCHOLARLY ARTICLE

A15.76 - The Federal Government's Attack on the Ku Klux Klan: A Reassessment

Richard Zuczek

ARTICLE	The Federal Government's Attack on the Ku Klux Klan: A Reassessment
JOURNAL	The South Carolina Historical Magazine 97, no. 1 (1996)
EXCERPT	Original journal pages 47-48
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THE FEDERAL GOVERNMENT'S ATTACK ON THE KU KLUX KLAN: A REASSESSMENT

RICHARD ZUCZEK*

ON OCTOBER 17, 1871, PRESIDENT ULYSSES S. GRANT SUSPENDED the writ of habeas corpus in nine counties of South Carolina, firing the opening barrage in the federal government's war on the Ku Klux Klan. For years the Klan had terrorized Republicans and wreaked havoc with the fledgling southern Republican Party. At long last the government struck back. The Palmetto State would serve as a test case; the flexing of federal muscle was intended to punish civil-rights violations and deter future ones. Success was expected to bolster the southern Republican Party and Reconstruction in general, while failure might embolden conservative whites and further endanger Republican lives and Republican programs.

Historians hold differing views on the scope of the federal campaign, but generally agree on its results. Most scholars contend that the intervention in South Carolina restored peace, destroyed the Klan, and bolstered the administration's enforcement program. For instance, Allen Trelease, in what has become the standard account of the Klan during Reconstruction, maintains that Klan terror ended only "as a result of federal intervention." Herbert Shapiro claims that the federal government's "limited" steps were enough to "destroy the organization," while Joel Williamson credits "a crushing imposition of federal power" with the destruction of the Klan. James Sefton emphasizes the army's role, stating that "the application of military force broke the Klan in South Carolina." Robert Kaczorowski, on the other hand, believes that "federal prosecutions in South Carolina so demoralized members of the Ku Klux Klan that its leaders issued orders to stop all Klan activity." Even Eric Foner, in the most important Reconstruction synthesis of our time, *Reconstruction, 1863-1877: America's Unfinished Revolution*, characterizes the "crackdown" as a strategic victory; he argues that in its "larger purposes — restoring order, reinvigorating the morale of Southern Republicans, enabling blacks to exercise their rights as citizens —

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South Carolina Historical Magazine 97 No. 1 (January 1996)

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the policy proved a success."[1]

In this age of revisionism gone wild, it may seem blasé to challenge the standard views on the U.S. government's enforcement efforts. For too long, however, scholars have attributed great significance to federal actions in South Carolina without examining in detail the actual events. Historians who came of age in the 1950s and 1960s were eager to find a solution to the civil and racial strife rampant in America; when historians found a decline of violence in South Carolina coinciding with the onset of federal activity, the conclusions seemed both logical and timely. Unfortunately, these conclusions are not wholly accurate. The Grant administration attempted to make an example of South Carolina by destroying the Klan there; instead, the federal "crackdown" demonstrated the enforcement program's weaknesses rather than its strengths, and ultimately damaged Reconstruction more than it did the Klan.

THIS IS NOT, HOWEVER, AN ARTICLE ON THE KU KLUX KLAN, but rather an examination of the federal government's response to it. Lawlessness was rampant throughout the former Confederate states, and the federal government did little in the years following Appomattox to curb disorder. As with other southern states, South Carolina's adjustment to the post-war world was a violent one. The election of 1868 — the first since readmission — marked the appearance of the Ku Klux Klan in the state. Bands appeared in South Carolina in the spring of 1868 following the success of the new state constitution and black suffrage. Republican state authorities offered little resistance; the few loyal constables and the poorly trained black state militia were incapable of deterring Klansmen and arresting criminals. Through two years and two state elections, black and white Republicans suffered whippings, assassinations, and midnight visits by the hundreds. By 1870 conservatives were instigating riots and carrying out well-organized assaults on black militia units and Republican meetings. In the winter of 1870 and 1871 battles took place in Laurensville, Unionville, and Chester, and the entire counties of Spartanburg and York were declared

[1]Allen W. Trelease, *White Terror: The Ku Klux Klan Conspiracy and Southern Reconstruction* (New York: Harper and Row, 1971), p. 361; Herbert Shapiro, "The Ku Klux Klan during Reconstruction: The South Carolina Episode," *Journal of Negro History* 49 (January 1964), p. 46; Joel Williamson, *After Slavery: The Negro in South Carolina during Reconstruction, 1861-1877* (Chapel Hill: University of North Carolina Press, 1965), p. 266; James E. Sefton, *The United States Army and Reconstruction, 1865-1877* (Baton Rouge: Louisiana State University Press, 1967), p. 226; Robert J. Kaczorowski, *The Politics of Judicial Interpretation: The Federal Courts, Department of Justice, and Civil Rights, 1866-1876* (New York: Oceana Publications, Inc., 1985), p. 93; Eric Foner, *Reconstruction, 1863-1877: America's Unfinished Revolution* (New York: Harper and Row, 1988), p. 458.

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